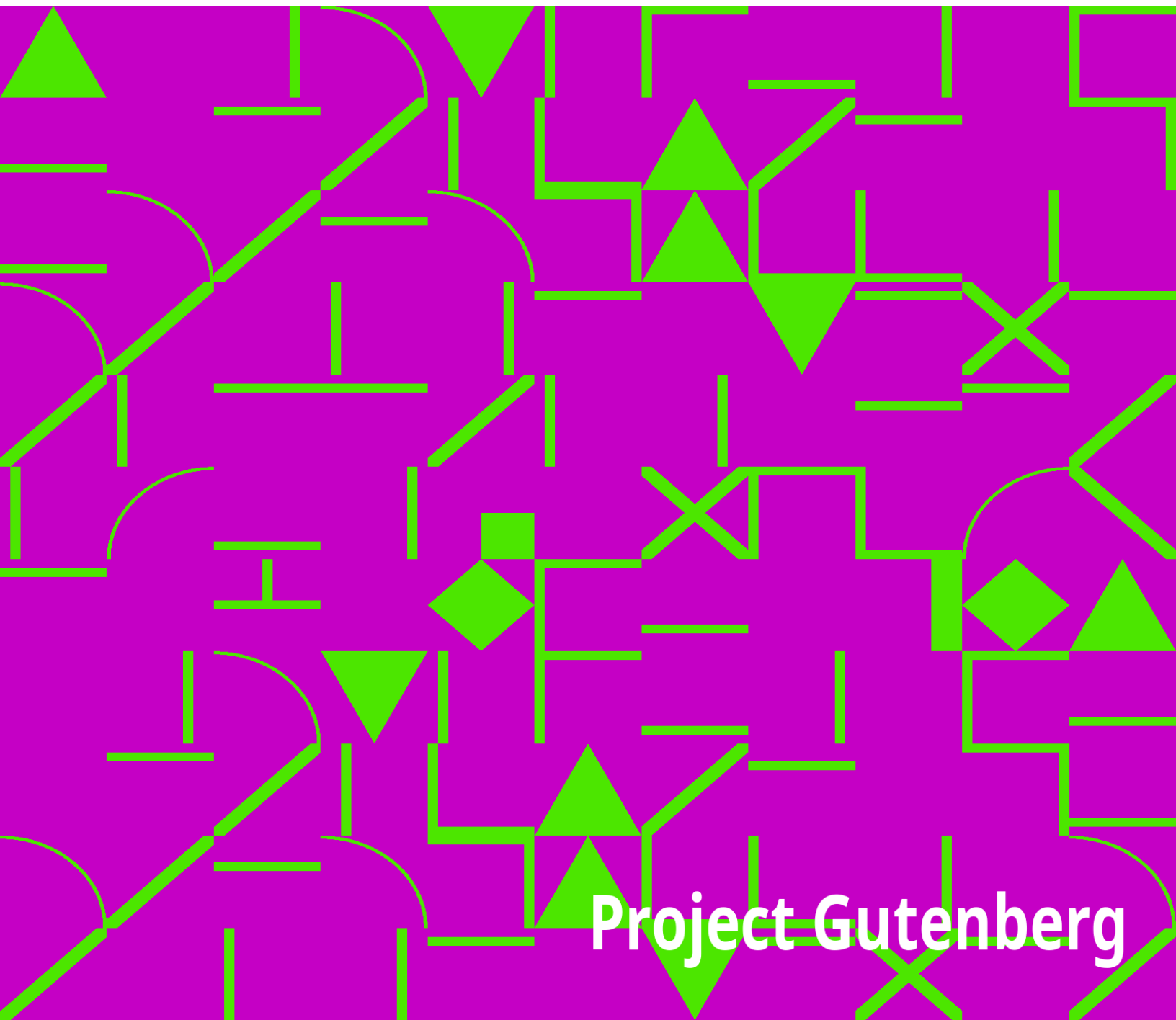


A history of England principally in the seventeenth century, Volume 1 (of 6)

Leopold von Ranke

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**A history of England principally in the
seventeenth century, Volume 1 (of 6)**

Leopold von Ranke

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A

HISTORY OF ENGLAND

PRINCIPALLY

IN THE SEVENTEENTH CENTURY

BY

LEOPOLD VON RANKE

VOLUME I

PREFACE.

Once more I come before the public with a work on the history of a nation which is not mine by birth.

It is the ambition of all nations which enjoy a literary culture to possess a harmonious and vivid narrative of their own past history. And it is of inestimable value to any people to obtain such a narrative, which shall comprehend all epochs, be true to fact and, while resting on thorough research, yet be attractive to the reader; for only by this aid can the nation attain to a perfect self-consciousness, and feeling the pulsation of its life throughout the story, become fully acquainted with its own origin and growth and character. But we may doubt whether up to this time works of such an import and compass have ever been produced, and even whether they can be produced. For who could apply critical research, such as the progress of study now renders necessary, to the mass of materials already collected, without being lost in its immensity? Who again could possess the vivid susceptibility requisite for doing justice to the several epochs, for appreciating the actions, the modes of thought, and the moral standard of each of them, and for understanding their relations to universal history? We must be content in this department, as well as in others, if we can but approximate to the ideal we set up. The best-written histories will be accounted the best.

When then an author undertakes to make the past life of a foreign nation the object of a comprehensive literary work, he will not think of writing its history as a nation in detail: for a foreigner this would be impossible: but, in accordance with the point of view he would naturally take, he will direct his eyes to those epochs which have had the most effectual influence on the development of mankind: only so far as is necessary for the comprehension of these, will he introduce anything that precedes or comes after them.

There is an especial charm in following, century after century, the history of the English nation, in considering the antagonism of the elements out of which it is composed, and its share in the fortunes and enterprises of that

great community of western nations to which it belongs; but it will be readily granted that no other period can be compared in general importance with the epoch of those religious and political wars which fill the sixteenth and seventeenth centuries.

In the sixteenth century the part which England took in the work of emancipating the world from the rule of the western hierarchy decisively influenced not only its own constitution, but also the success of the religious revolution throughout Europe. In England the monarchy perfectly understood its position in relation to this great change; while favouring the movement in its own interest, it nevertheless contrived to maintain the old historical state of things to a great extent; nowhere have more of the institutions of the Middle Ages been retained than in England; nowhere did the spiritual power link itself more closely with the temporal. Here less depends on the conflict of doctrines, for which Germany is the classic ground: the main interest lies in the political transformation, accomplished amidst manifold variations of opinions, tendencies, and events, and attended at last by a war for the very existence of the nation. For it was against England that the sacerdotal reaction directed its main attack. To withstand it, the country was forced to ally itself with the kindred elements on the Continent: the successful resistance of England was in turn of the greatest service to them. The maintenance of Protestantism in Western Europe, on the Continent as well as in Britain, was effected by the united powers of both. To bring out clearly this alternate action, it would not be advisable to lay weight on every temporary foreign relation, on every step of the home administration, and to search out men's personal motives in them; a shorter sketch may be best suited to show the chief characters, as well as the main purport of the events in their full light.

But then, through the connexion of England with Scotland, and the accession of a new dynasty, a state of things ensued under which the continued maintenance of the position taken up in home and foreign politics was rendered doubtful. The question arose whether the policy of England would not differ from that of Great Britain and be compelled to give way to it. The attempt to decide this question, and the reciprocal influence of the newly allied countries, brought on conflicts at home which, though they in the main arose out of foreign relations, yet for a long while threw those relations into the background.

If we were required to express in the most general terms the distinction between English and French policy in the last two centuries, we might say that it consisted in this, that the glory of their arms abroad lay nearest to the heart of the French nation, and the legal settlement of their home affairs to that of the English. How often have the French, in appearance at least, allowed themselves to be consoled for the defects of the home administration by a great victory or an advantageous peace! And the English, from regard to constitutional questions of apparently inferior importance, have not seldom turned their eyes away from grievous perils which hung over Europe.

The two great constitutional powers in England, the Crown and the Parliament, dating back as they did to early times, had often previously contended with each other, but had harmoniously combined in the religious struggle, and had both gained strength thereby; but towards the middle of the seventeenth century we see them first come into collision over ecclesiastical regulations, and then engage in a war for life and death respecting the constitution of the realm. Elements originally separate unite in attacking the monarchy; meanwhile the old system breaks up, and energetic efforts are made to found a new one on its ruins. But none of them succeed; the deeply-felt need of a life regulated by law and able to trust its own future is not satisfied; after long storms men seek safety in a return to the old and approved historic forms so characteristic of the German, and especially of the English, race. But in this there is clearly no solution of the original controversies, no reconciliation of the conflicting elements: within narrower limits new discords break out, which once more threaten a complete overthrow: until, thanks to the indifference shown by England to continental events, the most formidable dangers arise to threaten the equilibrium of Europe, and even menace England itself. These European emergencies coinciding with the troubles at home bring about a new change of the old forms in the Revolution of 1688, the main result of which is, that the centre of gravity of public authority in England shifts decisively to the parliamentary side. It was during this same time that France had won military and political superiority over all its neighbours on the mainland, and in connexion with it had concentrated an almost absolute power at home in the hands of the monarchy. England thus reorganised now set itself to contest the political superiority of France in a long and bloody war,

which consequently became a struggle between two rival forms of polity; and while the first of these bore sway over the rest of Europe, the other attained to complete realisation in its island-home, and called forth at a later time manifold imitations on the Continent also, when the Continent was torn by civil strife. Between these differing tendencies, these opposite poles, the life of Europe has ever since vibrated from side to side.

When we contemplate the framework of the earth, those heights which testify to the inherent energy of the original and active elements attract our special notice; we admire the massive mountains which overhang and dominate the lowlands covered with the settlements of man. So also in the domain of history we are attracted by epochs at which the elemental forces, whose joint action or tempered antagonism has produced states and kingdoms, rise in sudden war against each other, and amidst the surging sea of troubles upheave into the light new formations, which give to subsequent ages their special character. Such a historic region, dominating the world, is formed by that epoch of English history, to which the studies have been devoted, whose results I venture to publish in the present work: its importance is as great where it directly touches on the universal interests of humanity, as where, on its own special ground, it develops itself apart in obedience to its inner impulses. To comprehend this period we must approach it as closely as possible: it is everywhere instinct with collective as well as individual life. We discern how great antagonistic principles sprang almost unavoidably out of earlier times, how they came into conflict, wherein the strength of each side lay, what caused the alternations of success, and how the final decisions were brought about: but at the same time we perceive how much, for themselves, for the great interests they represented, and for the enemies they subdued, depended on the character, the energy, the conduct of individuals. Were the men equal to the emergency, or were not circumstances stronger than they? From the conflict of the universal with the special it is that the great catastrophes of history arise, yet it sometimes happens that the efforts which seem to perish with their authors exercise a more lasting influence on the progress of events than does the power of the conqueror. In the agonising struggles of men's minds appear ideas and designs which pass beyond what is feasible in that land and at that time, perhaps even beyond what is desirable: these find a place and a future in the colonies, the settlement of which is closely

connected with the struggle at home. We are far from intending to involve ourselves in juridical and constitutional controversies, or from regulating the distribution of praise and blame by the opinions which have gained the day at a later time, or prevail at the moment; still less shall we be guided by our own sympathies: our only concern is to become acquainted with the great motive powers and their results. And yet how can we help recognising manifold coincidences with that conflict of opinions and tendencies in which we are involved at the present day? But it is no part of our plan to follow these out. Momentary resemblances often mislead the politician who seeks a sure foothold in the past, as well as the historian who seeks it in the present. The Muse of history has the widest intellectual horizon and the full courage of her convictions; but in forming them she is thoroughly conscientious, and we might say jealously bent on her duty. To introduce the interests of the present time into the work of the historian usually ends in restricting its free accomplishment.

This epoch has been already often treated of, if not as a whole, yet in detached parts, and that by the best English historical writers. A native author has this great advantage over foreigners, that he thinks in the language in which the persons of the drama spoke, and lets them be seen through no strange medium, but simply in their natural form. But when, too, this language is employed in rare perfection, as in a work of our own time,—I refer not merely to rounded periods and euphony of cadence, but to the spirit of the narrative so much in harmony with our present culture, and the tone of our minds, and to the style which by every happy word excites our vivid sympathy;—when we have before us a description of the events in the native language with all its attractive traits and broad colouring, a description too based on an old familiar acquaintance with the country and its condition: it would be folly to pretend to rival such a work in its own peculiar sphere. But the results of original study may lead us to form a different conception of the events. And it is surely good that, in epochs of such great importance for the history of all nations, we should possess foreign and independent representations to compare with those of home growth; in the latter are expressed sympathies and antipathies as inherited by tradition and affected by the antagonism of literary differences of opinion. Moreover there will be a difference between these foreign representations. Frenchmen, as in one famous instance, will hold more to

the constitutional point of view, and look for instruction or example in political science. The German will labour (after investigation into original documents) to comprehend each event as a political and religious whole, and at the same time to view it in its universal historical relations.

I can in this case, as in others, add something new to what is already known, and this to a larger extent as the work goes on.^[1]

In no nation has so much documentary matter been collected for its later history as in England. The leading families which have taken part in public business, and the different parties which wish to assert their views in the historical representation of the past as well as in the affairs of the present, have done much for this object; latterly the government also has set its hand to the work. Yet the existing publications are far from sufficient. How incredibly deficient our knowledge still is of even the most important parliamentary transactions! In the rich collections of the Record Office and of the British Museum I have sought and found much that was unknown, and which I needed for obtaining an insight into events. The labour spent on it is richly compensated by the gain such labour brings; over the originals so injured, and so hard to decipher, linger the spirits of that long-past age. Especial attention is due to the almost complete series of pamphlets of the time, which the Museum possesses. As we read them, there are years in which we are present, as it were, at the public discussion that went on, at least in the capital, from month to month, from week to week, on the weightiest questions of government and public life.

If any one has ever attempted to reconstruct for himself a portion of the past from materials of this kind,—from original documents, and party writings which, prompted by hate or personal friendship, are intended for defence or attack, and yet are withal exceedingly incomplete,—he will have felt the need of other contemporary notices, going into detail but free from such party views. A rich harvest of such independent reports has been supplied to me for this, as well as for my other works, by the archives of the ancient Republic of Venice. The 'Relations,' which the ambassadors of that Republic were wont to draw up on their return home, invaluable though they are in reference to persons and the state of affairs in general, are not, however, sufficient to supply a detailed and consecutive account of events. But the Venetian archives possess also a long series of continuous Reports,

which place us, as it were, in the very midst of the courts, the capitals, and the daily course of public business. For the sixteenth century they are only preserved in a very fragmentary state as regards England; for the seventeenth they lie before us, with gaps no doubt here and there, yet in much greater completeness. Even in the first volume they have been useful to me for Mary Tudor's reign and the end of Elizabeth's; in the later ones, not only for James I's times, but also far more for Charles I's government and his quarrel with the Parliament. Owing to the geographical distance of Venice from England, and her neutral position in the world, her ambassadors were able to devote an attention to English affairs which is free from all interested motives, and sometimes to observe their general course in close communication with the leading men. We could not compose a history from the reports they give, but combined with the documentary matter these reports form a very welcome supplement to our knowledge.

Ambassadors who have to manage matters of all kinds, great and small, at the courts to which they are accredited, fill their letters with accounts of affairs which often contain little instruction for posterity, and they judge of a man according to the support which he gives to their interests. This is the case with the French as well as with other ambassadors in England. Nevertheless their correspondence becomes gradually of the greatest value for my work. Their importance grows with the importance of affairs. The two courts entered into the most intimate relations: French politicians ceaselessly endeavoured to gain influence over England, and sometimes with success. The ambassadors' letters at such times refer to the weightiest matters of state, and become invaluable; they rise to the rank of the most important and instructive historical monuments. They have been hitherto, in great part, unused.

In the Roman and Spanish reports also I found much which deserves to be made known to the readers of history. The papers of Holland and the Netherlands prove still more productive, as I show in detail at the end of the narrative.

A historical work may aim either at putting forward a new view of what is already known, or at communicating additional information as to the facts. I have endeavoured to combine both these aims.

NOTES:

[1] *Note to the third edition.*—In the course of my researches for this work the representation of the seventeenth century has occupied a larger space than I at first thought I should have been able to give it; it forms the chief portion of the book in its present form. I have therefore allowed myself the unwonted liberty of altering the title so as to make this clear. Still the representation of the sixteenth century, which is not now mentioned in the title, has not been abridged on this account. The history of the Stuart dynasty and of William III make up the central part of the edifice; what is given to the earlier, as well as the later times may, if I may be allowed the comparison, correspond to its two wings.

TRANSLATORS' PREFACE.

'The History of England, principally during the Seventeenth Century,' which is here laid before the reader in an English form, is one of the most important portions of that cycle of works on which Leopold von Ranke has long been engaged. His History of the Popes, his History of the Reformation in Germany, his French History, his work on the Ottomans and the Spanish Monarchy, his Life of Wallenstein, his volume on the Origin of the Thirty Years' War, and other smaller treatises, all aim at delineating the international relations of the states of Europe. His History of England may well be regarded as the concluding portion of this series; for the relations of England, first with France, and then with Holland, eventually determined the course of European politics.

The book however is more than a history of this period, for Professor Ranke, according to his custom, has prefixed to it a luminous and interesting sketch of the earlier part of our history, presented, as all summaries ought to be, in the form of studies of the most important epochs. And at the end of the work are Appendices, which supply not only happy examples of historical criticism in the discussions on the chief contemporary writers of the period, but also a mass of original documents, most of which have never before been published. Above all, the critiques on Clarendon and Burnet, and the correspondence of William III with Heinsius, will well repay careful study; and the Appendices throw light on some of the more important details connected with the history of the time, besides shewing the student how a great master has found and used his materials.

The present translation was undertaken with the author's sanction, and was intended in the first instance for the use of students in Oxford. Its publication has been facilitated by a division of labour, the eight volumes of the original having been entrusted each to a separate hand. The translators are Messrs. C. W. Boase, Exeter College; W. W. Jackson, Exeter College; H. B. George, New College; H. F. Pelham, Exeter College; M. Creighton, Merton College; A. Watson, Brasenose College; G. W. Kitchin,

Christchurch; A. Plummer, Trinity College. The task of oversight, of reducing inequalities of style, and of supervising the Appendices and Index, has been performed by the editors, C. W. Boase and G. W. Kitchen. Notwithstanding the disadvantages incident to a translation, it is hoped that the work in its present shape will be welcomed by a large number of English readers, and will help to increase the deserved renown of the author in the country to the history of which he has devoted such profound and fruitful study.

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FIRST BOOK.

THE CHIEF CRISES IN THE EARLIER HISTORY OF ENGLAND.

As we turn over the pages of universal history, and follow the shifting course of events, we perceive almost at the first glance one comprehensive process of change going on, which, more than any other, governs the external fortunes of the world. Through long periods of time the historic life of the human race was active in Western Asia and in the lands bordering on the Mediterranean which look towards the East: there it laid the foundations of its higher culture. We may rightly regard as the greatest event that meets us in the whole course of authentic history, the fact that the seats of the predominant power and culture have been transplanted to the Western lands and the shores of the Atlantic Ocean. Not merely the abodes of the ancient civilised nations, but even the capitals which were the medium of communication between East and West, have fallen into barbarism; even the great metropolis, from which first political, and then spiritual, dominion extended itself in both directions over widespread territories, has not maintained its rank. It was due to this tendency of things, combined with a certain geographical cause, that neither could the medieval Empire attain its full development, nor the Papacy continue to subsist with unimpaired authority. From age to age the political and intellectual life of the world transferred itself ever more and more to the nations dwelling further West, especially since a new hemisphere was opened up to their impulses of activity and extension. So it was that the chief interests of the Pyrenean peninsula drew towards its ocean coasts; that there grew up on either side of the Channel which separates the Continent from Britain, the two great capitals in which modern activity is chiefly concentrated; that Northern Germany, together with the races which touch on the North Sea and the Baltic, developed a life and a system of their own; it is in these regions latterly that the universal spirit of the human race chiefly works out its task, and displays its activity in moulding states, creating ideas, and subjugating nature.

Yet this transmission, this transplanting, is not the work of a blind destiny. While civilisation in the East succumbed and died out before the advance of races incapable of culture, it was welcomed in the West by races possessing the requisite capacity, which by their inborn force gave it new forms and indestructible bases for its outward existence. Nor have the nations and kingdoms arisen each from its mother earth, as it were in obedience to some inward impulse of inevitable necessity, but amid constant assimilation and rejection, ever repeated wars to secure their future, and a ceaseless struggle with opposing elements that threatened their ruin.

The object of universal history is to place before our eyes the leading changes, and the conflicts of nations, together with their causes and results. Our purpose is to depict the history of one of the chief of the Western nations, the English, and that too in an age which decisively modified both its inner constitution and its outward position in the world, but it cannot be understood unless we first pourtray, with a few quick touches, the historical events under the influence of which it became civilised and great.

CHAPTER I.

THE BRITONS, ROMANS, AND ANGLO-SAXONS.

The history of Western Europe in general opens with the struggle between Kelts, Romans, and Germans, which determined out of what elements modern nations should be formed.

Just as it is supposed that Albion in early times was connected with the Continent, and only separated from it by the raging sea-flood which buried the intermediate lands in the abyss, so in ethnographic relations it would seem as if the aboriginal Keltic tribes of the island had been only separated by some accident from those which occupied Gaul and the Netherlands. The Channel is no national boundary. We find Belgians in Britain, Britons in Eastern Gaul, and very many names of peoples common to both coasts; there were tribes which, though separated by the sea, yet acknowledged the same prince. Without being able to prove how far natives of the island took part in the expeditions of conquest, which pouring forth from Gaul inundated the countries on the Danube and Italy, Greece and Western Asia, we yet can trace the affinity of names and tribes as far as these expeditions extend. This island was the home of the religion that gave a certain unity to the populations, which, though closely akin, nevertheless contended with each other in ceaseless discord. It was that Druidic discipline which combined a priestly constitution with civil privileges, and with a very peculiar doctrine of a political and even moral purport. We might be tempted to suppose that the atrocity of human sacrifice was first introduced among them by the Punic race. For they were from primeval times connected with the Carthaginians and Phoenicians, who were the first to traverse the outer sea, and sought in the island a metal which was very valuable for the wants of the ancient world. Distant clans might retain in the mountains their original wildness, but the southern coasts ranked in the earliest times as rich and civilised. They stood within the circle of the relations that had been created by the expeditions of the Keltic tribes, by the

mixture of peoples thence arising, by the war and commerce of the earliest age.

In the great war between Rome and Carthage, which decided the destiny of the ancient world, the Keltic tribes took part as allies of the Punic race. If Carthage had conquered, they would have maintained in most, if not all, the lands they had occupied, and especially in their own homes, their old manners and customs, and their religion in its existing form. It was not merely the supremacy of the one city or the other, but the future of Western Europe that was at stake when Hannibal attacked the Romans in Italy. Rome, which had already grown strong in warring against the Gauls, won the victory over the Carthaginians. Thenceforth one after another of the Keltic nations succumbed to the superiority of the Roman arms, which at last invaded Transalpine Gaul, and struck its military power to the ground.

From this point the reaction against the Keltic enterprises necessarily extended itself also to Britain.

The great general who conquered Gaul did not feel sure of being able to accomplish his task unless he also obtained influence over the British tribes, from which those of the Continent constantly received help and encouragement, unless he established among them the authority of the Roman name.

It was an important moment in the world's history, well worthy of remembrance, when Caesar first trod the soil of Albion. Already repulsed from the steep chalk cliffs of the island, he found the flat shore on which he hoped to disembark occupied by the enemy, some in their war-chariots, others on horseback and on foot; his ships could not reach the shore; the soldiers hesitated, encumbered with their armour as they were, to throw themselves into a sea with which they were not familiar, in presence of an enemy acquainted with the ground, active, brave, and superior in numbers; the general's order had no effect on them; when however an eagle-bearer, calling on the gods of Rome, threw himself into the flood, the men would have thought themselves traitors had they allowed the war-standard, to which an almost divine worship was paid, to fall into the hands of the enemy; fired by the danger that threatened their honour, and by the religion of arms, from one ship after another they followed him to the fight; in the

hand-to-hand combat in the water which ensued they gained the superiority, supported most skilfully by their general wherever it was necessary; the moment they reached the land, the victory was won.^[2]

We cannot reckon it a slight matter, that Caesar, though not at the first, yet at the second and better prepared expedition, succeeded in carrying away with him hostages from the chief tribes. For this very form was the one customary in that century and among those tribes, by which he bound them and their princes to himself.

It was the first step towards the Roman supremacy. But Gaul and West Germany had first to be subdued, and the Empire securely concentrated in one hand, before—a century later—the conquest of the island could be really attempted.

Even then the Britons still fought without helmet or shield, as did the Gauls of old before Rome. In Britain, just as on the Lombard plains, the war-chariot was their best arm; their defective mode of defence necessarily yielded to the organised tactics of the legion. How easily did the Romans, pushing forward under cover of their mantelets, clear away the rude entrenchments by which the Britons used formerly to secure themselves against attack. The Druids on Mona trusted in their gods, whose will they thought to ascertain from the quivering fibres of human sacrifices; and for a moment the sight of the crowd of fanatics collected around them checked the attack, but only for a moment: as soon as they came to blows they were instantly scattered, and their holy places perished with them. For this is the greatest result of the Roman wars, that they destroyed the rites which contradicted the idea of Humanity. Yet once more an injured princess—Boadicea—united all the sympathies which the old constitution and religion could awaken. Dio has depicted her, doubtless according to the reports which reached Rome. A tall form, with the national decoration of the golden necklace and the chequered mantle, over which her rich yellow hair flowed down below her waist. She called on her peoples to defend themselves at any risk, since what could befall those to whom each root gave nourishment, each tree supplied shelter: and on her gods, not to let the land pass into the possession of that insatiable, unjust foe of foreign race. So truly does she represent the innate characteristics of the British race, when oppressed and engaged in a desperate defence. She is earnest, rugged, and

terrible; the men who gathered round her were reckoned by hundreds of thousands. But the Britons had not yet learnt the art of war. A single onslaught of the Romans sufficed to scatter their disorderly masses with a fearful butchery. It was the last day of the old British independence. Boadicea would not, any more than Cleopatra, adorn a Roman triumph; she fell by her own hand.

Within a few dozen years the Roman eagles were masters of Britain as far as the Highlands: the Keltic clan-life and the religion of the Druids withdrew into the Caledonian mountains, and the large islands off that coast; in the conquered territory the religion of the arms that had won the victory, and the might of the Great Empire, were supreme. The work which was begun by superiority in war was completed by pre-eminence in civilisation. It seemed an advantage and an improvement to the sons of the British princes, to adopt the Roman language, and knowledge, and mode of life; they delighted in the luxury of colonnades, baths, feasts, and city life. Men like Agricola used these modes of Romanising Britain by preference. Just as the Britons exchanged their rude shipbuilding and their leathern sails for the discoveries of a more advanced art of navigation, so they learnt to carry on their agriculture in Roman fashion; in later times Britain was considered as the granary of the legions in Germany. Most of the cities in the land betray by their very names their Roman origin; London, though it existed earlier, owes its importance to this connexion. It was the emporium destined as it were by nature for the peaceful commerce that now arose between the Western provinces of the Empire. Once in the third century an attempt was made to make the island independent, but it failed the moment the marts on the opposite coast fell into the hands of the Emperor who was universally recognised. Britain seemed an integral part of the Roman Empire. It was from York that Constantine marched forth to unite its Eastern and Western halves once more under one government.

But soon after him an epoch began in which the third great nationality, at first thought to be part of the Keltic race, then driven back or taken into service by the Romans, but always maintaining its peculiar original independence—the German, rose to supremacy in the West. In the fifth century it had become everywhere master in the militarily-organised Roman frontier districts: encouraged by the embarrassments of the authorities it advanced into the peaceful provinces.

It is of importance to remark what the fate of Britain was in these struggles.

From the Romanised territory an Augustus, called Constantine, set up by the revolted legions, invaded Gaul, not merely to check the inroads of the barbarians, but at the same time to possess himself of the Empire. He at one time held a great position, when the legions of Gaul and Aquitaine also took his side, and Spain saluted him Emperor. But the authority of Honorius the generally recognised Emperor could not be so easily set aside: discontented followers of the new Augustus again went over to the old one: before them and the barbarians combined Constantine fell, and soon after paid for his attempt with his life.

The result, then, was that Honorius restored his authority to a certain extent everywhere on the Continent, but not in Britain. To the towns which had taken up arms while Constantine was there he gave the right of self-defence—he could do nothing for them. The Roman Empire was not exactly overthrown in Britain—it ceased to be.^[3]

At this time, when the connexion between Rome and Roman Britain was broken off, the Germans possessed themselves of the latter country.

The Anglo-Saxons and Christianity.

Germans had been long ago settled in this as in so many other provinces of the Western and Eastern Empires. Antoninus had brought over German tribes from the Danube, Probus others from the Rhineland. In the legions we find German cohorts, and very many others joined them as free allies. In the civil wars between the Emperors we hear of one side relying on the Franks, the other on the Alemanni in their service; Constantine the Great is called to be Caesar by help of the chiefs of the Alemanni. But besides this, German seafarers, who appeared under the name of Saxons, after they had learnt shipbuilding and navigation from the Romans, settled on the opposite coasts of Britain and Gaul, and gave their name to both. Not then for the first time, nor at the invitation of the Britons, as the Saga declares,^[4] did the descendants of Wodan make their first trial of the sea in light vessels. Alternating between piracy and alliance—now with a usurper and now with the lawful Emperor, between independence and subjection, German

seafarers had long ago filled all seas and coasts with the terror of their name. In the North too they are mentioned together with Scots and Attacotti. When now the Roman rule over the island and the surrounding seas came to an end, to whom could it pass? To the peaceful Provincials, if they could indeed gird on the sword, or to the old companions in arms of the Romans? There is no doubt that the same general impulse which urged on the German peoples, in the great revolution of affairs, into the Roman provinces, led the enterprising inhabitants of the German and Northern coasts, Frisians, Angles, and Jutes, as well as Saxons, into Britain. A fearful war broke out, in which it may be true to say the ruined towns became the sepulchres of their inhabitants, but no man found the quiet time necessary for depicting its details. After it had filled a century and a half with its horrors, and men again lifted up their eyes, they found the island divided between two great nationalities, which had separated themselves as opposing forces. The natives had as good as abandoned the civilisation they had learnt from Rome, and leant on their kinsfolk in North Gaul, and the Scots in Ireland and the Highlands; they occupied the west of the island. The Germans were settled in the east, in the greatest part of the south, and in the north, in most of the old Roman settlements,—but they were far from forming a united body. Not seven or eight merely, but a large number of little tribal kingdoms, occupied or fought for the ground.

If we wish to point out in general the distinction between the Anglo-Saxon and other German settlements, it lies in this, that they rested neither on the Emperor's authorisation whether direct or indirect, nor on any agreement with the natives of the land. In Gaul Chlodwig assumed and carried on the authority of the Roman Empire;—in Britain it went wholly to the ground. Hence it was that here the German ideas could develop in their full purity, more so than in Germany itself, over which the Frankish monarchy, which had also adopted Roman tendencies, had gained influence.

Just as the natives who would not submit were driven out of the German settlements, so within their boundaries the germs of Christianity, which had already spread in the island, were as good as annihilated. Among the victorious Germans the Northern heathenism existed in full strength. In many names of places, at the water-springs, the watersheds, in the designations of the days of the week, the names of the gods of Germany and the North appear; the kings trace their descent directly from them as their

immediate ancestors; the Sagas and poems about them symbolise those battles with the elements, the storm, the sea, and the powers of nature, which are peculiarly characteristic of the Northern mythology. With this, however, arose the question, so important for the history of the world, whether the great territory already won for the ideas of the universal culture and religion of mankind should be again lost.

Towards the end of the 6th century the epoch began in which, as the German invaders of Gaul had already done, so now those of Spain and Italy, whether Arians or heathens, came over to the Catholic faith of the Provincials. This took place under the mediation of the chief Pontiff, who had raised the city, from which the Empire took its name, to be the metropolis of the Faith. Lombards and Visigoths became as good Catholics as the Franks already were. The relationship of the royal families, which held all Germans in close connexion, and the zeal of Rome, which could not possibly suffer the loss of a province that it had once possessed, now combined to call forth a similar movement among the Anglo-Saxons, yet one which worked itself out in a very different way. Since among the natives a peculiar form of church-life, not unconnected with the Druidic discipline, had arisen, with which Rome would hold no communion, and which rejected all demands of submission, the spiritual enmity of the missionary was united to the national enmity of the conqueror. When a king still heathen, while attacking the Britons, directed his weapons against the monks of Bangor, who (collected on a height) were offering up prayers against him, and massacred them to the number of twelve hundred, the followers of the Roman Mission saw in this a punishment decreed by God for apostasy, and the fulfilment of the prophecies of their apostle.^[5] On the other hand British Christian kings also made common cause with the heathen Angles, and wasted with fire and sword the provinces that had been converted by Rome. Had not in the vicissitudes of internal war the native church organisation of the North won influence over the Anglo-Saxons, heathenism would never have been conquered; it would have always found support among the Britons.

When this however had once taken place, the whole Anglo-Saxon name attached itself to the Roman ritual. Among the motives for this change those which corresponded to the naive materialistic superstition of the time may have been the most influential, yet there were other motives also which

touched the very essence of the matter. Men wished to belong to the great Church Communion which then in still unbroken freedom comprehended the most distant nations.^[6] They preferred the bishops whom the kings appointed (with the authorisation of the Roman See), to those over whom the abbot of the great monastery on the island of Iona exercised a kind of supremacy. Here there was no question of any agreement between the German king and the bishops of the land, as under the Merovingians in Gaul; they even avoided restoring the bishops' sees which had flourished in the old Roman times in Britain. The primitive and independent element manifests itself in the decision of the princes and their great men. In Northumberland, Christianity was introduced by a formal resolution of the King and his Witan: a heathen high priest girt himself with the sword, and even with his own hand threw down his idols. The Anglo-Saxon tribes in fact passed over from the popular religion and mythology of the North and of Germany, which would have kept them in barbarism, to the communion of the universal religion, to which belonged the civilisation of the world. Never did a race show itself more susceptible of such an influence: it presents the most remarkable example of how the old German ideas, which had now taken living root in this soil, and the Roman ecclesiastical culture, which was vigorously embraced, met and became intertwined. The first German who made the universal learning, derived from antiquity, his own, was an Anglo-Saxon, the Venerable Beda; the first German dialect in which men wrote history and drew up laws, was likewise the Anglo-Saxon. Despite all their reverence for the threshold of the Apostles they admitted foreign priests no longer than was indispensable for the foundation of the new church: in the gradual progress of the conversion they were no longer needed, we soon find Anglo-Saxon names everywhere in the church: the archbishops and leading bishops are as closely related to the royal families, as the heathen high priests had been before.

It was exactly through the co-operation of both principles, originally so foreign to one another, that the Anglo-Saxon nature took firm and lasting form.

The Kelts had formerly lived under a clan system which, extending over vast districts, yet displayed in each spot characteristic weaknesses which the hostility of every neighbour rendered fatal. Then the Romans had introduced a military administrative constitution, which displaced this tribal

system, while it also subjected Britain to the universal Empire, of which it formed only an unimportant province. A characteristic form of life was first built up in Britain by the Anglo-Saxons on the ruins of the Roman rule. The union into which they entered with the civilised world was the freely chosen one of the religion of the human race; they had no other connexion to control them. Their whole energies being concentrated on the island, they gave it for the first time, though continually at war with each other, an independent position.

Their constitution combines the ideas of the army and the tribe: it is the constitution of armies of colonists bringing with them domestic institutions which had been theirs from time immemorial. A society of freemen of the same stock, who divided the soil among themselves in such a manner that the number of the hides corresponded to that of the families (for among no people was there a stronger conception of separate ownership), they composed the armed array of the country, and by their union maintained that peace at home which again secured each man's life and property. At their head stands a royal family, of the highest nobility, which traces its origin to the gods, and has by far the largest possessions; from it, by birth and by election combined, proceeds the King; who then, sceptre in hand, presides in the court of justice, and in the field has the banner carried before him; he is the Lord, to whom men owe fidelity; the Guardian, to whom the public roads and navigable rivers belong, who disposes of the undivided land. Yet he does not stand originally so high above other men that his murder cannot be expiated by a wergeld, of which one share falls to his family—not a larger one than for any other of its members,—and the other to the collective community, since the prince belongs to the former by birth, to the latter by his office. Between the simple freeman and the prince appear the eorls, ealdormen, and thanes, in some instances raised above the mass by noble birth or by larger possessions, natural chiefs of districts and hundreds, in others promoted by service in the King's court and in the field, sometimes specially bound to him by personal allegiance: they are the Witan who have elected him out of his family (in a few instances they depose him); they concur in giving laws, they take part in making peace. Now the bishops take place by their side. They appear with the ealdormen in the judicial meetings of the counties: if the Gerefa neglects his duty, it is for them to step in; yet they have also their own spiritual jurisdiction. It is a

spiritual and temporal organisation of small extent, yet of a certain self-sufficing completeness. Many of the present shires correspond to the old kingdoms, and bear their names to this day. The bishops' sees often coincide with the seats of royalty; for the kings wished each to have a bishop to himself in his little territory, since they had to endow the bishopric. How many regulations still in force date from these times!

The Anglo-Saxons always had an immediate and near relation to the kingdom of the Franks.

It was with the daughter of a Frankish prince that the first impulse towards conversion came into a Saxon royal house. By the Anglo-Saxons again the conversion of inner Germany was carried out, in opposition to the same Scoto-Irish element which they withstood in Britain. Carl the Great thought it expedient to inform the Mercian King Offa of the progress of Christianity among the Saxons in Germany: he looked on him as his natural ally. Both kingdoms had moreover a common interest as against the free British populations on their western marches, who were allied with each other across the sea: decisive campaigns of Carl the Great and King Egbert of Wessex coincide in point of time, and may have supported each other.

Similarly, we may suppose that Egbert, who lived a number of years as an exile at Carl's court, and could not have remained uninfluenced by his mode of government and improved military tactics, was then also incited and enabled, after his return, to subdue the little kingdoms and unite them with Wessex: by the side of the 'Francia' of the continent he created in the island a united 'Anglia.' But still there subsisted a yet greater difference. Sprung from the stock of Cerdic, Egbert belonged to the popular royalty which we find throughout at the head of the invading Germans; he is, so far, more like the Merovingians whom Carl's predecessors overthrew, than like Carl himself; and he was almost entirely destitute of that strong groundwork of military institutions on which the Carolingians supported themselves. His rise depended much more on the fact that the old families in Mercia, Northumbria, and Kent had disappeared, and the succession in general had become doubtful; after Egbert had conquered the claimants to the throne in a great and bloody battle, he was recognised by the Witans of the several kingdoms as their common prince, and his family as that which in fact it now was,—the leading one of all. After the example of Pipin's family,

whose alliance with the Papacy was the most important historical event of the epoch and founded Western Christendom, the descendants of Cerdic also got themselves anointed by the popes—for the religious movement still had the predominance over every other. The amalgamation of the tribes and kingdoms found its expression in the Church, through the prestige and rank of the Archbishop of Canterbury, almost earlier than it did in the State; the unity of the Church broke down the antipathies of the tribes, and prepared the way for that of the kingdoms. In the midst of this work of construction, so incomplete as yet, but so full of hope, of these birthpangs of a new life, the very existence of the country was threatened by the rise of a new Great Power. For so may we well designate the influence which the Scandinavian North exercised by land over Eastern Europe, and at the same time over all the Western coasts by sea.

Only a part of the German peoples had been influenced by the idea of the Empire or the Church; the inborn heathenism of the rest, irritated by the losses it had sustained and the dangers that continually threatened it, roused itself for the most formidable onslaught that the civilised world has ever had to withstand from the heroic and barbarous children of Nature.

The mischief they wrought in Britain, from the middle of the ninth century onwards, is indescribable.

The Scoto-Irish schools, then in their most flourishing state (they trained John Scotus Erigena, of all the scholars of that time the man who had the widest intellectual range), fell before the Danish, not the Anglo-Saxon assaults; an element of intellectual activity which might have been of the greatest importance was thus lost to the Western world. But the Northmen persecuted the Romano-English forms as bitterly as they did the Irish. In the places where those Anglo-Saxon scholars had been trained, who then enlightened the West, the Northmen planted the banner which announced utter destruction; with twofold rapacity they threw themselves on the more remote abbeys which seemed to derive protection from their inaccessibility, and to guarantee it by their dignity; in searching for the treasures which they believed had been placed in them for security, they destroyed the monuments and means of instruction which were really there; in Medeshamstede, where there was a rich library, the flames raged for fourteen days. The half-formed union of the various districts into one

kingdom seems to have crippled rather than strengthened the power of local resistance: the Danes became masters of Kent and of East-Anglia, of Northumberland, and even of Mercia; at last Wessex too, after already suffering many losses, was invaded; from both sides at the same moment, from the inland and from the coast, the deluge of robber-hordes poured over its whole extent.

Things had come to such a point that the Anglo-Saxon community seemed inevitably devoted to the same ruin which had overtaken first the Britons and then the Romans, they seemed doomed to make way for another reconstruction. Britain would have become an outpost of the restored heathenism, which could then have been with difficulty repulsed from the Eastern and Western Frankish empires, afflicted as they were by similar attacks, and governed by the discordant and weak princes who then ruled them. At this moment of peril King Alfred appeared. It was not merely for his own interests, nor merely for those of England, but for those of the world, that he fought. He is rightly called 'the Great;' a title fairly due only to those who have maintained great universal interests, and not merely those of their own country.

The distress of the moment, and the deliverance from it, have been kept in imperishable remembrance by popular sagas and church legends. It is well worth the trouble to trace out in the authenticated traditions, brief as they are, the causes that decided the event. We may state them as follows:— Since the attacks of the Vikings were especially ruinous, from their occupation of the strong places whence they could command and plunder the open country, one step in the work of liberation was taken when Alfred, for the first time, wrested from them a stronghold which they had seized, deep in the west. Then he, too, occupied strong positions, and knew how to defend them. With the bravest and most devoted of his nobles, and of the population that had not yet submitted, he established a hill-fortress on a height rising like an island out of the standing waters and marshlands in the still only slightly cultivated land of Somersetshire; this not only served him as an asylum, but also as a central point from which he too ranged through the land far and wide, like the enemy, except that his object was to guard it, and make it ring once more with the already forgotten name of the King. Around his banners gathered, with reviving courage, the population of the neighbouring districts also: the Saxons could again appear in the open field;

from their advancing shield-wall the disorderly onsets of the Vikings recoiled, the victory was theirs. Hereupon, moreover, as if the decision between the two religions depended on the result of the war, the leader of the heathens came over to Christianity, and took an Anglo-Saxon name. The Danes attached themselves to the principles and the powers which they had come forth to destroy.

King Alfred is a marvellous phenomenon: suffering from a disease which sometimes broke out with violence, and which he never ceased to feel for a single day of his life, he not merely withstood the extreme of peril at that moment so big with ruin, but also founded a system of resistance throughout the kingdom, in which his arms so worked together by sea and land that each new band of Vikings betook themselves again to their ships, and those that had already penetrated into the country, gave way step by step. We remark with interest how, under Alfred and his children, his son who succeeded him, and his manlike daughter, the protecting fortresses advance from place to place, and provide free space for the Anglo-Saxon community. The culture already existing, the whole future of which had been saved by Alfred, attained in him its fullest development. How many years had passed since the hour when an illuminated initial letter gave him his first taste for a book, before he could master even the elementary branches of knowledge! then he devoted his whole efforts to instil new life into the studies that had almost perished, and to give them a national character. He not merely translated a number of the later authors of antiquity, whose works had contributed most to the transmission of scientific culture; in the episodes which he interweaves in them he shows a desire for knowledge that reaches far beyond them; but especially we find in them a reflective and thoughtful mind, solid sense at peace with itself, a fresh way of viewing the world, a lively power of observation. This King introduced the German mind with its learning and reflection into the literature of the world; he stands at the head of the prose-writers and historians in a German tongue—the people's King of the most primeval kind, who is also the teacher of his people. We know his laws, in which extracts from the books of Moses are combined with restored legal usages of German origin; in him the traditions of antiquity are interpenetrated by the original tendencies of the German mind. We completely weaken the impression made on us by this great figure, so important in his first limited

and arduous efforts, by comparing him with the brilliant names of antiquity. Each man is what he is in his own place.

Though the Anglo-Saxon monarchy wanted that element of authority which the kings of other German tribes drew from the Roman government by transmission or succession, yet it had strengthened itself, like the others, by union with the Church. Alfred, too, was at Rome in his boyhood: it stood him in good stead that he had been anointed, and, as men said, adopted by a Roman pope. In the reconquest of the land, Church ideas had played an important part. It was impossible to drive out the invading foes, they could only be held in check; never would they have submitted to the Anglo-Saxon commonwealth had they not at the same time been converted to Christianity. Nothing, moreover, contributed more to this than the effort, which was then the order of the day in the Christian world, to base the organisation of the Church on monasticism: from Italy this tendency spread to Germany, from South France to North, from thence to England, where it produced its greatest effect. Now the power of conversion is inherent only in sharply-defined doctrines; and it was precisely this tendency that penetrated the Northern natures: the sons of the Vikings became the champions of monachism; to the fury with which the fathers had destroyed the monasteries succeeded in the sons a zeal to restore them. And in what good stead this stood the Anglo-Saxon kings! The kingly power obtained, through the splendour which the union with religion bestowed on its victorious arms, a reverential recognition by the old native population as well as by the invaders.

Alfred's grandson had regained Northumbria by a somewhat doubtful title, and had then maintained his right in a great battle, renowned in song; his great-grandson, Edgar, in one of his charters thanks the grace of God which had permitted him to extend his rule further than his predecessors, over the islands and seas as far as Norway, and over a great part of Ireland. We are not to look on it as a mere piece of vanity, when he seeks after new titles for his power, when he calls himself Basileus and Imperator; the former is the title of the Eastern, the latter of the Western emperors; he will not yield the precedence to either the one or the other, though the latter are so closely related to him by blood. We cannot express the feeling of a supreme power, independent of men, derived from the grace of God, the King of kings, more strongly than it was expressed by Edgar under Dunstan's influence;

the ruling motives of life in Church and State make it conceivable that a monkish hierarch, such as Dunstan, shared, as it were, the King's power, and shaped the course of the authority of the state.

It was still the ancestral Anglo-Saxon crown which glittered on Edgar's head, but, if we may so say, its splendour had at the same time received a monkish and hierarchic colouring.

NOTES:

[2] The words of some MSS. in Caesar's Commentaries, iv. 25, 'deserite, milites, si vultis, aquilam, atque hostibus prodite,' might well be taken for the genuine words, originally noted down in his Ephemerides (journal).

[3] Βρεττανιαν μεντοι οἱ Ρωμαιοι ανασωσασθαι ουκετι εσχον, αλλ' ουσα ὑπο τυραννοις απ' αυτου εμενε. Procop. de bello Vand. I. No. 2. p. 318 ed. Bonn. Compare Zosimus, vi. 4. on, we may assume, the better authority of Olympiodorus.

[4] The simplest form of the Saga occurs in Gildas, with very few historical ingredients. Nennius enlarges it with Anglo-Saxon traditions. Bede has combined both with some notices from the real history. Since the departure of the Romans was rightly fixed about 409, and Gildas said the Britons had rest for forty years, Bede settled that the Saxons arrived in 449.

[5] Bede, Hist. Eccl. ii. 2. Some have wished to consider the remark, that Augustine had been then long dead, as a later interpretation, 'ad tollendam labem caedis Bangorensis;' this, however, is against the spirit of that age.

[6] 'Omnem orbem, quocunque ecclesia Christi diffusa est per diversas nationes et linguas uno temporis ordine.' Bede, Hist. Eccl. iii. 14.

CHAPTER II.

TRANSFER OF THE ANGLO-SAXON CROWN TO THE NORMANS AND PLANTAGENETS.

In the families of German national kings we not unfrequently find among the women a hideous mixture of ambition, revenge, and bloodthirstiness, which brings kings and kingdoms to ruin. In England it appears, despite of Christianity and monastic discipline, in its most atrocious form after the death of Edgar. His eldest son, for some years his successor, was treacherously murdered by his stepmother (who wished to advance her own son to the throne), at a visit which he paid her as he returned from hunting. It was that Edward whose innocence and leaning towards the Church have gained him the name of Martyr. The son of the murderess did ascend the throne, but the guilt of blood seemed to cleave to the crown; he met with the obedience of his father's times no more. The Anglo-Saxon magnates seized the occasion which this crime, or the subsequent vacillation of the government between violence and weakness, offered them, to aim at an independent position, and to indulge in a personal policy, each man for himself.

At this very moment the Danes renewed their invasions.

Little did Edgar and those around him understand their position, when they attributed the peace they enjoyed to their own military power, in the splendid and extensive display of which they took delight. In reality it was the state of the world at large that brought this peace about. First of all, it was due to the settlement of the Normans in North Gaul, under the condition that they should be of one religion and one realm, and should fulfil the natural duty of keeping off fresh incursions: the current of Northern invasion thus lost its aim and direction. But it was of still more decisive effect at the first that the energetic family which arose in North Germany, and even assumed the imperial authority, not content with warding off the Danes, sought them out in their own country instead, and carried the war against heathenism into the North. The Saxons beyond the sea were indebted for the peace which they enjoyed chiefly to the great and

splendid deeds of arms of their kindred on the mainland. How much all depended on this became very clear when Otto II, in the full glow of great enterprises, met with an unlooked for and early death. Within the empire two able women and their advisers succeeded in maintaining peace; but in Denmark, as in other neighbouring countries, the hostile elements got the upper hand. The Danish king's son, Sven Otto, abandoned the religion which he regarded as a yoke laid on him by the German conquerors; he could not destroy the order of things established in Denmark, but he revived the old sea-king's life, and threw himself with the old superiority of the Viking arms on the English coasts.

Ethelred on this attack fell into the greatest distress, mainly because he was not sure of his great nobles. How often did the commanders of the fleet desert it at the moment of action, and the leaders of the inland levies go over to the enemy! Ethelred sought for safety by an alliance with the Duchy of Normandy, then daily rising to greater power. Thus supported, he proceeded to unjustifiable outrages against his domestic as well as his foreign foes. The great nobles whom he suspected were mercilessly killed or exiled, and their children blinded. The Danes who remained in the land he caused to be murdered all on one day.

The consequences of this deed necessarily recoiled upon himself. When Sven some years after again landed with redoubled enmity, which was to a certain extent justified, he experienced no effectual resistance whatever; Ethelred had to fly before him and quit the island. But now that Sven too, who had been already saluted by many as King, died in the first enjoyment of his victory, a question arose which extended far beyond the personal relations and embarrassments of the moment.

The influence always exercised by the Witans of the Anglo-Saxon kingdoms in determining the succession to the throne remained much the same when they were all fused into a single kingdom; even among the descendants of Alfred, the great men designated the sovereign. In the disturbed state of things in which they now found themselves, the lawful King having fled, and the other, who had put himself into actual possession of the supreme authority, being dead, they framed the largest conception of their right. They formally made conditions with Ethelred for his return, and he consented to their demands through his son.^[7] Since he, however, did not

fulfil his promise—for how could he have altered his nature?—they held themselves released from their engagement to maintain this family on the throne. Sven's son, Canute, had taken his father's place among the Danes; he had been long ago baptised, he was of a character which commanded confidence, and possessed at the time overwhelming power. After Ethelred's death the lay and spiritual chiefs of England decided to abandon the house of Cerdic for ever, and to recognise Canute as their King. How many jarls and thanes of Danish origin do we find around the kings under all the last governments. Edgar was especially blamed for the very reason that he took them under his protection. But they had been subjected only by war; no hereditary sentiment of natural loyalty attached them to the West Saxon royal house. The ecclesiastical aristocracy was besides determined by religious considerations; to them these disasters and crimes seemed sufficient proof of the truth of those prophecies of coming woe which Dunstan was believed to have uttered. They repaired to Canute at Southampton, and concluded a peace with him, the conditions of which were that they would abandon the descendants of Ethelred for ever, and recognise Canute as their King; he, on the other hand, promised to fulfil the duties of a King truly, in both spiritual and temporal relations.^[8] Yet once more, Ethelred's eldest son, Edmund Ironsides, who was himself half a Dane by birth, roused himself to a vigorous resistance: London and a part of the nobility took his side; he gained through force of arms a settlement by which, though indeed he lost the best part of the land and the capital itself, he maintained the crown; he died however, soon after, and then the whole country recognised Canute as King. The last scion of the royal house in the land was banished, and all the claims of the family to the crown again declared void. The Anglo-Saxon magnates undertook to make a money payment to the Danish host; in return they received the pledge from the King's hand, and the oath by his soul taken by his chiefs.^[9] It was a treaty between the Anglo-Saxon and the Danish chiefs, by which the former received the King of the latter as also their own.

This extremely important event links the centuries together, and determines the future fortunes of England. The kingly house, whose right and pre-eminence was connected with the earliest settlements, which had completed the union of the realm and delivered it from the worst distress, was at a moment of moral deterioration and disaster excluded by the spiritual and

temporal chiefs, of Anglo-Saxon and Danish origin. They had first tried to limit it, to bind it by its own promise; when this led to nothing, they annihilated its right by a formal resolution of the realm, and procured peace by raising to the throne another sovereign who had no right by birth. Canute did not owe the crown to conquest, though his greater power contributed to the result, but to election, which now appeared as the superior right: hitherto the Witan had always exercised it within the limits of the royal family; this time they disregarded that family altogether.

Canute decreed or allowed some bloody acts of violence, in order to strengthen the power that had fallen to his lot; but afterwards he administered it with a noble spirit answering to his position. He became the leading sovereign of the North: men reckoned five or six kingdoms as subject to him. England was the chief of them all, even for him; it was in possession of the culture and religion which he wished should prevail in the rest: the missionaries of the North went forth from Canterbury. England itself, however, gained a higher position in the world by its union with a power which ruled as far as Norway and North America, and carried on commerce with the East by the Baltic. In Gothland the great emporium of the West, Arabic as well as Anglo-Danish coins are found; the former were carried from the North as far as England. Canute favoured the Anglo-Saxon mode of life; he liked to be designated the 'successor of Edgar;' he confirmed his legislation; and it was his intention, at least, to rule according to the laws: as he even submitted himself to the military regulations of the Huskarls, so he commanded right and law to be administered in civil matters without respect to his own person.

But a union of such different kingdoms could only be a transitory phenomenon. Canute himself thought of leaving England again independent under one of his sons.

With this object he had married Ethelred's widow Emma. For, according to Anglo-Saxon ideas, the Queen was not merely the King's wife, but also sovereign of the land, in her own right. It was settled that the children of this marriage should succeed him in England. Probably Canute did not wish the inheritance of the crown in his house to depend merely on the goodwill of the Witan.

After Canute's death we can observe a wavering between the principles of election and birthright. The magnates again elected, but limited their choice to the King's house. After the extinction of the Danish-Norman family, they came back to the English-Norman one; they called the son of Ethelred and Emma, Edward the Confessor, to the throne of his fathers, though, it is true, without leaving him much power. This lay rather in the hands of the Earls Godwin of Kent and Leofric of Mercia; especially in the former, whose wife was related to Canute, did the Anglo-Saxon spirit of independence energetically manifest itself. He was once banished, but returned and recovered all his offices. When however, Edward too died without issue, the dynastic question once more came before the English magnates. It might have seemed most consistent to recall the Aetheling Edgar a member of the house of Cerdic from exile, and to carry on the previous form of government under his name. But the thoughts of the English chiefs no longer turned in that direction. Not very long before a king from the ranks of the native nobility had ascended the throne of the Carolingians in the West Frank empire; in the East Frank, or German empire, men had seen first the mightiest duke, then one of the most distinguished counts, attain the imperial dignity. Why should it not be possible for something similar to happen in England also? The very day on which Edward the Confessor died, Godwin's son, Harold, was elected by the magnates of the kingdom, and crowned without delay^[10] (Jan. 5, 1066). The event now happened which was only implied in what occurred at Canute's accession: the house of Cerdic was abandoned, and the further step taken of raising another native family to its throne.

It was not this time a pressing necessity that brought it about; but we cannot deny that, if carried through, it opened out an immeasurable prospect.

For such would have been the case, if the attempt to found a Germanic Anglo-Saxon kingdom under Harold, and maintain it free from any preponderating foreign influence had been successful. By recalling Edgar the influence of Normandy, against which the antipathies of the nation had been awakened under the last government, would have been renewed. But just as little were those claims to be recognised which the Northern kings put forward for the re-establishment of their supremacy. Even as regards the Papacy, the government began to adopt an independent line of conduct.

The question now was, whether the Anglo-Saxon nation would be unanimous and strong enough to maintain such a haughty position on all sides.

The first attack came from the North; it was all the more dangerous, from the fact that an ambitious brother of the new King supported it: only by an extreme effort were these enemies repelled. But, at the same moment, an attack was threatened from another enemy of infinitely greater importance—Duke William of Normandy. It was not only this sovereign, and his land, but a new phase of development in the history of the world, with which England now entered into conflict.

The Conquest.

Out of the antagonism of nationalities, of the Empire and the Church, of the overlord and the great chiefs, in the midst of invasions of foreign peoples and armies, the local resistance to them and their occupations of territory, a new world had, as it were, been forming itself in Southern Europe, and especially in Gaul. Still more decidedly than in England had the invading Vikings in France attached themselves to the national element, even in the second generation they had given up their language; they discovered at the same time a form which reconciled the membership in the kingdom, and the recognition of the common faith, with provincial freedom. In France no native power successfully opposed and checked the advancing Normans, such as that which the Danes had encountered in England. On the contrary they exercised the greatest influence over the foundation of a new dynasty. A system developed itself over the whole realm, in which, both in the provincial authorities and in the lower degrees of rank, the possession of land and share in public office, feudalism and freedom, interpenetrated each other, and made a common-weal which yet harmonised with all the inclinations that lend charm and colouring to individual life. The old migratory impulse and spirit of warlike enterprise set before itself religious aims also, which lent it a higher sanction; war for the Church, and conquest (which meant for each man a personal occupation of land) were combined in one. Starting from Normandy, where great warlike families were formed that found no occupation at home (for these young populations are wont to

multiply quickest), North French love of war and habits of war transplanted themselves to Spain and to Italy. How must it have elevated their spirit of enterprise when in the latter country the Papacy, which had just thrown off the supremacy of the emperor, and entered on a new stage in the development of its power, made common cause with their arms, and a practised Norman warrior, Robert Guiscard, appeared as Duke of Apulia and Calabria 'by grace of God and of S. Peter and, under his protection, of Sicily also in time to come'!^[11] The Pope gave him lands in fief, which had hitherto belonged to the Greek Empire, and which the Germans had been unable to conquer; he promised, in return, to defend the prerogatives of S. Peter. Between the hierarchy which was striving to perfect its supremacy, and the warlike chivalry of the 11th century, an alliance was formed like that once concluded with the leaders of the Frankish host. The ideas were already stirring from which proceeded the Crusades, the foundation of the Spanish kingdoms, and the creation of the Latin Empire at Constantinople. In the princely fiefs of the French Crown, and above all in Normandy, they seized on men's minds. Chivalrous life and hierarchic institutions, dialectic and poetry, continual war at home and ceaseless aspirations abroad, were here fused into a living whole.

In the Germanic countries also this close alliance of hierarchy and chivalry now sought to win influence, but here it met with a strenuous resistance. In England, Edward the Confessor had tried to prepare the way for it: Godwin and his house opposed it. And when the former named the Norman Robert Archbishop of Canterbury, and the latter drove him out, the English quarrels became connected with those of Rome; Stigand, the archbishop put in by Godwin, received his pallium from Pope Benedict X, who had been elected in the old tumultuous manner once more by the neighbouring Roman barons, but had to succumb to Hildebrand's zeal for a regular election by the cardinals, on which the emancipation of the Papacy depended. It seemed, then, intolerable at Rome that there should be a primate of the English Church, connected by his Church position with a phase of the supreme priesthood now condemned and abolished: it is very intelligible that this priesthood in its present form took up a hostile position towards the England of that time. In this, moreover, it found an ally ready to act in Duke William of Normandy, who wished to be regarded as the born champion of the Anglo-Saxon dynasty, and as the natural successor to its rights. Once

already his father had collected a fleet to restore the exiled Aethelings, and was only kept back from an invasion by unfavourable weather. There had often since been rumours, that Edward had destined Duke William to be his successor; men asserted that Harold had previously recognised this right, and that in return William's daughter, and a part of the land as an independent possession, had been promised him.^[12] In his own position William had cleared the ground for himself with a strong hand. He had beaten his feudal lord in the open field, and thus not only recovered a frontier fortress lost during his minority, but also strengthened the independence of the duchy. At the same time William had vanquished his rebellious vassals in arms, banished them, deprived them of their possessions, and got rid, with the Pope's consent, of an archbishop who was allied with them. Death freed him from another mighty opponent, the Duke of Brittany, who threatened him with a great maritime expedition. It throws a certain light on his policy, to see how he made himself master of the county of Maine in 1062. On the ground that Count Heribert, whom he had supported in his quarrel with Anjou, had become his vassal and made him his heir,^[13] he overran Maine, and put his adherents in possession of the fortresses which commanded the land. However we may decide as to the details told us about his relations to Edward and Harold, it seems undeniable that William had received provisional promises from both—for Harold loved to side with Edward. He was not the man to put up with their being broken. The system, however, which through Harold's accession gained the upper hand in England, was in itself hostile to the Norman one: and that a king of England like the present might some day become dangerous to the duke, amidst all the other hostilities which threatened him, is clear. To these motives was now added the approbation of the Roman See. The Pope's chief Council deliberated on the enterprise, above all did the archdeacon of the Church, Hildebrand, declare himself in its favour. He was reproached—then or at a later time—with being the author of bloodshed; he declared that his conscience acquitted him, since he knew well, that the higher William mounted, the more useful he would be to the Church.^[14] Alexander II now sent the duke the banner of the Church. As a few years before Robert Guiscard had become duke, so now a Norman duke was to become king, in the service of the Church. The Normans were still divided in their views as to the enterprise, but when this news arrived, all opposition ceased, for in the service of S. Peter and the Church men

believed themselves secure of success; then lay and spiritual vassals emulously armed ships and men; in the harbour of S. Valery, which belonged to one of those who had been last gained over, the Count of Ponthieu, the fleet and the troops gathered together.^[15] The Count of Flanders, the duke's father-in-law, secretly favoured the enterprise; another of his nearest relations, Count Odo of Champagne, brought up his troops in person; Count Eustace of Boulogne armed, to avenge on Godwin's house an affront he had once suffered at Dover; a number of leading Breton counts and lords attached themselves to William in opposition to their duke, who cherished wholly different projects. To the lords and knights of North France were joined many of lower rank, whose names show that they came from Gascony, Burgundy, the duchy of France, or the neighbouring districts belonging to the German Empire. Of their own free will they ranged themselves round William, to vindicate the right which he claimed to the English crown, but each man naturally entertained brilliant hopes also for himself. William is depicted as a man of vast bodily strength, which none could surpass or weary out, with a strong hardy frame, a cool head, an expression in his features which exactly intimated the violence with which he followed up his enemies, destroyed their states, and burnt their houses. Yet all was not passionate desire in him. He honoured his mother, he was true to his wife. Never did he undertake a quarrel without giving fair notice, and certainly never without having well prepared for it beforehand. He knew how to keep up a warlike spirit in his vassals: there were seen with him only splendid men and able leaders; he kept strict discipline. So also he had seized the moment for his enterprise, at which the political relations of Europe were favourable to him. The two great realms, which might otherwise have well interposed, the East Frank (or the Roman-German) as well as the West Frank, were under kings not yet of age: the guardianship of the latter lay with the Count of Flanders, who thought he did enough in not standing openly by his son-in-law, of the former with great bishops devoted heart and soul to the hierarchic system.^[16] Harold, on the other hand, had no friend or ally, in North or East, in South or in West. To encounter the combined efforts of a great European coalition he had only himself and his Anglo-Saxons to rely on. Harold is depicted as coming forth perfect from the hands of nature, without blemish from head to foot, personally brave before the enemy, gentle among his own people, and endowed with natural eloquence. His enemy's passion for, and knowledge of, war were not in

him; the taste of the Anglo-Saxons was directed more to peaceful enjoyments than to ceaseless wars. At this moment too they were weakened by great losses in the last bloody war; many of the most trustworthy and bravest had fallen, others wavered in their fidelity; Harold had not been able to put even the coasts in a state of defence; William landed without resistance, to demand his crown from him. When reminded of his promise Harold was believed to have answered in the very spirit of Anglo-Saxon independence, that he had no right to make any such promise without the consent of the Anglo-Saxon chiefs and people. And not to meet the invading foe instantly at the sword's point would have seemed to him disgraceful cowardice. And so William and Harold, the North French knights and the national war-array of the Anglo-Saxons, encountered at Hastings. Harold fell at the very beginning of the fight. The Normans, according to their wont, knew how to separate their enemies by a pretended flight, and then by a sudden return to surround and destroy them in isolated bodies. It was the iron-clad, yet rapidly moving cavalry, which decided the battle.^[17]

William expected, now that his rival had fallen, to be recognised by the Anglo-Saxons as their King. Instead of this the chiefs and the capital raised Edgar the Aetheling, grandson of Edmund Ironsides, to the throne: as though William would retire before a scion of the old West-Saxon house, of which he professed to be the champion. He held firmly to the transfer made to him by the last king without regard to any third person, ratified as it was by the Roman See, and marched on the capital.

Edgar was a boy, and the magnates were at variance as to who should have the authority to exercise guardianship over him. When William appeared before the city, and threatened the walls with his siege-machines, it too lost courage. The embassy which it sent him was amazed at the grandeur and splendour of his appearance, was convinced as to the right which King Edward had transferred to him,^[18] and penetrated by the danger which a resistance, in itself hopeless, would bring on the city. Aldermen and people abandoned Edgar, and recognised William as King. There is an old story, that the county of Kent, on capitulating, made good conditions for itself. To the nobles also, who submitted by degrees, similar terms may have been accorded, but their position was almost entirely altered. We need notice only this one point. Their chief right, which they exercised to a perhaps unauthorised extent, was that of electing the King; they had now elected

twice, but the first election was annulled by defeat in the open field, the second by increasing superiority in arms; they had to recognise the Conqueror, who claimed by inheritance, as their King, whether they would or no. There is something almost symbolic of the resulting state of things in the story of William's coronation, which was now celebrated by the tomb of Edward the Confessor at Westminster. For the first time the voices of the Anglo-Saxons and the Normans were united to greet him as King, but the discordant outcry of the two languages seemed a sign of conflict to the troops gathered outside, and made the warlike fury, so hardly kept under control, boil up again in them; they set the houses of London on fire. Whilst all hurried from the church, the ceremony it is said was completed by shuddering priests in the light of the flames: the new King himself, who at other times did not know what fear was, trembled.^[19]

By this coronation-acclaim, two constituent elements of the world, which had been fundamentally at conflict with each other, became indissolubly united.

That against which the Anglo-Saxons had set themselves to guard with all their strength during the last period, the inroad of the Norman-French element into their Church and their State, was now accomplished in fullest measure. William's maxim was, that all who had taken arms against him and his right had forfeited their property; those who escaped, and the heirs of those who had fallen, were deprived alike. In a short time we find William's leading comrades in the war, as earls of Hereford, Buckingham, Shrewsbury, Cornwall; his valiant brothers were endowed with hundreds of fiefs; and when the insurrection which quickly broke out led to new outlawries and new confiscations, all the counties were filled with French knights. From Caen came over the blocks of freestone to build castles and towers, by which they hoped to bridle the towns and the country. It is an exaggeration to assume a complete transfer of property from the one people to the other; among the tenants in chief about half the names are still Anglo-Saxon. At first, those who from any even accidental cause had not actually met William in arms were left in possession of their lands, though without hereditary right: later, after they had conducted themselves quietly for some time, this too was given back to them. In the next century it excited surprise that so many great properties should have remained in the hands of the Anglo-Saxons.^[20] It would have been altogether against William's plan, to

treat the Anglo-Saxons as having no rights. He wished to appear as the rightful successor of the Anglo-Saxon kings: by their laws he would abide, only adding the legal usages of the Normans to those of the Danes, Mercians, and West Saxons; and it was not merely through his will, but also by its higher form, and connexion with the ideas of the century, that the Norman law gained the upper hand. But however much we may deduct from the usual exaggerations, this fact remains, that the change of ownership which took place, like the change in the constitution and the general state of things, was of enormous extent: the military and judicial power passed entirely into the hands of the victors in the war. And in the Church alterations no less thoroughgoing ensued. Under the authority of Papal legates, the great office-holders of the English Church, who had been opposed to the newly arisen hierarchic system, were mercilessly deprived of their places. The King was afterwards personally on tolerably good terms with Stigand, the Archbishop of Canterbury, but was not inclined on his account to oppose the Church. The archbishopric, and with it the primacy of England, passed to the man in whom the union of the Church authority and orthodoxy of that which we may call the especially hierarchic century was most vividly represented, the man who had been the chief agent in establishing the dogma of Transubstantiation, the great teacher of Bec, Lanfranc. In most of the bishoprics and abbeys we find Normans of kindred tendency. It was precisely in the enterprise against England that the hierarchy concluded its compact with the hereditary feudal state, which was all the more lasting in that they were both still in process of formation.

In this way was England attached by the strongest ties to the Continent, and to the new system of life and ecclesiastico-political constitution which had then gained the upper hand in Latin Europe. Under the next three successors of the Conqueror, none of whom enjoyed a completely legal recognition, it sometimes appeared as though England would again tear herself away from Normandy: such variances were not without influence on home affairs: in the general relations of the country they wrought no change at all. On the contrary, these were developed on a still larger scale, owing to the complicated family connexions which so peculiarly characterise that epoch. From the county of Anjou which, like the dominion of the Capets, had been formed in the struggle against the invasion of the Normans, a sovereign arose who had the right to rule the Norman conquests, the son of the

Conqueror's granddaughter, Henry Plantagenet. He had become, though not without appeal to the sword, which his father wielded powerfully on his behalf, master of Normandy, and had then married Eleanor of Poitou, who brought him a great part of South France: he then succeeded more by fair means than by force in establishing his right to the throne of England. Henry was the first to establish in France the power of the great vassals, by which the crown was long in danger of being overthrown. The Kings of Castille and Navarre submitted to his arbitration. And under a sovereign whose grandfather had been King of Jerusalem, and one of the mightiest rulers of that Western kingdom established in the East, the tendencies, which had led so far, could not fail to extend themselves to the utmost in all their spheres of action? The hierarchic and chivalrous spirit of Continental Europe, which under the Normans had seized on England, was much strengthened by the accession of the Plantagenets. It thus came to pass that after the disastrous loss of Jerusalem, the knights of Anjou and of Guienne, from Brittany (for Henry had added this province also to his family possessions) and from Normandy, gathered together in London, and took the Cross in company with the English. England formed a part of the Plantagenet Empire—if we may apply this word to so anomalous a state—and contributed to its extension, even though no interest of its own was involved. But towards such a result the relations which this alliance established between England and Southern Europe had long tended. Not seldom was the military power of the provinces over the sea employed for enterprises that aimed at the direct advantage of England itself. Whether and when the German element without this influence would have become master of the British group of islands none could say. The English dominion over Ireland in particular is derived from Henry II, and his alliance at that time with the Papacy; he crossed thither under the Pope's authorisation: at the Pope's word the native kings did homage to him as their lord.^[21] And the foreign-born Plantagenets struck living root in England itself. As Henry II's mother was the daughter of a princess descended from the West-Saxon house, he was hailed by the natives as their lawfully-descended King; in accordance with Edward the Confessor's prophecy, that from the severed bough should spring up a new tree: they traced his descent without scruple back to Wodan. This King, moreover, has impressed his mark deeply on English life; to this day justice is administered in England under forms established by him.

The will of destiny cannot be gainsaid. Just as Germany without its connexion with Italy, so England without its connexion with France, would never have been what it is. More than all, the great commonwealth of the western nations, whose life pervades and determines the history of each separate state, would never have come into existence. But on this ground first, amidst continual warfare, was gradually accomplished the formation of the nationalities.

NOTES:

[7] *Se in omnibus eorum voluntati consensurum, consiliis acquieturum.*

[8] Florentius Wigorniensis: 'Post cujus (Aethelredi) mortem episcopi abbates duces et quique nobiliores Angliae, in unum congregati pari consensu in dominum et regem Canutum sibi elegere—ille juravit, quod et secundum deum et secundum seculum fidelis eis esse vellet dominus.' The oath which Ethelred had taken was, however, only 'secundum deum.'

[9] Florentius, 593: 'Accepto pignore de manu sua nuda cum juramentis a principibus Danorum, fratres et filios Eadmundi omnino despexerunt eosque esse reges negaverunt.'

[10] In Ingulphus (Savile Script. 511) it is said expressly: per Archiepiscopum Eboracae, Aedredum (Aldredum). But it is surprising that the Bayeux Tapestry expressly names Stigand (Lancelot: *Description de Tapisserie de Bayeux*, in Thierry, I). Yet Harold could not possibly have meant, by passing over the Archbishop of Canterbury, to declare him to be incompetent, since he had been appointed by his party.

[11] *Juramentum fidelitatis Roberti Guiscardi*: 1059 in Baronius, *Annales Eccles.* ix. 350.

[12] The simplest statement occurs in the *Carmen de bello Hastingensi*, p. 352, according to which Edward promised the succession, and sent ring and sword to the duke by Harold; but as early as in William of Jumièges we have the tale of Harold's captivity in Ponthieu, and the promise made him, and the chief outlines of what in Guilielmus Pictaviensis, and Ordericus Vitalis, lies before us with further embellishments, and to which the Bayeux Tapestry (itself, too, a kind of historical memorial of the time) adds some further traits.

[13] Guilielmus Pictaviensis, *Gesta Wilhelmi ducis*, in Duchesne 189, already relates this in reference to the English affair.

[14] *Gregorii Registrum*, vii. 23; Mansi, xx. 306.

[15] William of Jumièges, *Hist.* vii. 34. 'Ingentem exercitum ex Normannis et Flandrensibus ac Francis ac Britonibus aggregavit.'

[16] Guilielmus Pictaviensis 197 assures us that help was promised from Germany in the name of Henry IV.

[17] William of Malmesbury, *Gesta Regum*, III. § 245. 'Magis temeritate et furore praecipitati quam scientia militari Wilhelmo congressi.'

[18] 'Contulit Eguardus quod rex donum sibi regni Monstrat et adfirmat vosque probasse refert.' So Guido (*Carmen de bello Hastingensi*, 737) makes Ansgard on his return speak to the citizens.

[19] Ordericus Vitalis 503. In Guido the ceremony is described with the greatest calmness, as though it passed undisturbed; but the conclusion of his work seems wanting.

[20] *Dialogus de Scaccario*, i. 10. 'Miror singularis excellentiae principem, in subactam et sibi suspectam Anglorum gentem hac usum misericordia, ut non solum colonos indempnes servaret, verum ipsis regni majoribus feudos suos et amplas possessiones relinqueret.' In Madox, *History of the Exchequer*, ii. 391. In *Domesday Book* the memory of Edward the Confessor is always treated with the greatest respect. Ellis, *Introduction to Domesday Book*, i. 303.

[21] 'Ut illius terrae populus te sicut dominum veneretur.' *Breve of Hadrian IV*.

CHAPTER III.

THE CROWN IN CONFLICT WITH CHURCH AND NOBLES.

Highly as we may estimate the due appreciation and expression of those objective ideas, which are bound up with the culture of the human race, still the spiritual life of man is built up not so much on a devout and docile receptivity of these ideas as on their free and subjective recognition, which modifies while it accepts, and necessarily passes through a phase of conflict and opposition.

In England the authority both of Church and State now came forward with far more strength than before. The royal power was a continuation of the sovereignty inherited from Anglo-Saxon times, but, leaning on its continental resources, and supported by those who had taken part in the Conquest, it developed itself much more durably. The clergy of the land were far more closely and systematically bound to the Papacy; thus it had become more learned and more active. The one sword helped the other; just at this very time, the King and the Archbishop of Canterbury were depicted as the two strong steers that drew the plough of England.

But yet, below all this there existed a powerful element of opposition. After the new order of things had existed more than eighty years, among a portion of the Anglo-Saxon population the design was started of putting a violent end to it, of destroying at one blow all those foreigners who seemed its representatives, just as the Danes had all been murdered on one day.

It was an evil thought, and all the more atrocious because manifold ties had been already gradually formed between the two populations. How could they ever become fused into one nation if the one was always plotting the destruction of the other?

It was not merely by alliances of blood and family, but even still more by great common political and ecclesiastical interests that the English nationality, which contains both elements, was founded. And, in truth, the

leading impulse towards it was that the conquerors, no less than the conquered, felt themselves oppressed by the yoke which the two supreme authorities laid on them, and hence both combined to oppose them. But centuries elapsed before this could be effected. The first occasion for it was given when the two authorities quarrelled with each other, and alternately called on the population to give its voluntary aid.

For, as the authorities which represent the objective ideas are of different origin, they have never in our Western Europe remained more than a short time in complete harmony with each other. Each retains its natural claim to be supreme, and not to endure the supremacy of the other. The one has always more before its eyes the unity of the whole, the other the needs and rights of the several kingdoms and states. Amidst their antagonism European life has moulded itself and made progress.

Close as their union was at the time of the Conquest of England, yet even then their quarrel broke out. Though the Conqueror pledged himself again to pay a tribute which the Anglo-Saxon kings had formerly charged themselves with, and which had been long unpaid, yet this was not sufficient for the Roman See: Gregory VII demanded to be recognised as feudal lord of England. But this was not what William understood, when he had allowed the papal banner to wave over the fleet that brought him to England. It was not from the Pope's authorisation that he derived his claim to the English crown, as if this had been merely transferred to him by the Papal See, but from the Anglo-Saxon kings, as whose heir and legal successor he wished to be regarded. He answered the Pope that he could enter into no other relation to him than that in which his predecessors in England had stood to previous popes.

For the first time the popes had to give up altogether the attempt to make kings their feudal dependents; they attempted, however, an almost deeper encroachment into the very heart of the royal power, when they then formed the plan of severing the spiritual body corporate, which already possessed the most extensive temporal privileges, from their feudal obligation to the sovereigns. The English kings opposed them in this also with resolution and success. Under the influence of the father of scholasticism, Anselm of Canterbury, Primate of England, a satisfactory agreement was arranged long before the Concordat was obtained in Germany. In general there was little

to fear, as long as the Archbishop of Canterbury had a good understanding with the Crown; and this was the case in the first half of the 12th century, if not on all points, yet, at least on all leading questions. Far-reaching differences did not appear until the higher ecclesiastics embraced the party of the Papacy, which happened in England through Thomas Becket.

Henry II and Becket.

It was precisely from him that this would have been least expected. He had been the King's Chancellor, or if we may avail ourselves of a somewhat remote equivalent expression, his most trusted cabinet minister, and had as such, in both home and foreign affairs, rendered the most valuable services. The introduction of scutage is attributed to him, and he certainly had a large share in the acquisition of Brittany. It was through the direct influence of the King that he was elected archbishop.^[22] But from that hour he seemed to have become another man. As he had hitherto rivalled the courtiers in splendour, pleasure, and pomp, so would he now by strictness of life equal the sanctity of the saints; as hitherto to the King, so did he now attach himself to the interests of the Church. It might, so we may suppose, be some satisfaction to his self-esteem, that he could now confront his stern and mighty sovereign as Archbishop 'also by the grace of God,' for so he designates himself in his letter to the King; or he might feel himself bound to recover the possessions of his Church, which had been wrested from it by the Crown or the high nobility. But, as spiritually-minded men are moved more by universal ideas than by special interests, so for Becket the determining impulse without doubt lay above all in the sympathy which he devoted to the hierarchic movement in general.

Those were the times in which the attempt of the Emperor Frederic I to call a council, and in it to decide on a contested papal election, had created general excitement among the peoples and churches of Southern Europe, which would only consent to be led by a pope independent of the empire. Driven from Italy, Alexander III, the Pope rejected by the Emperor, found a cordial reception in France; and here he now collected on his side a papal council in opposition to the imperial one, in which the cardinals, whose election the Emperor was trying to annul, and the bishops of Spain and

South Italy, and those of the collective Gaulish dioceses (more than a hundred in number), and the English bishops also, gathered around him, and laid the Pope elected by the Emperor under the anathema. It was inevitable that the idea of the Church, as independent of the temporal power, should here find its strongest expression. Some canons were passed which prohibited the usurpation of ecclesiastical property by the laity, and made it a crime in the bishops to allow it.^[23]

Thomas Becket was welcomed in this council with a seductive kindness; but besides this, what is harder than to set oneself against the common feeling of one's own order, when moderation already appears to be apostasy? He returned to England filled with the ideas of hierarchic independence; in preparing to carry it through, he necessarily brought on the conflict which had hitherto been avoided.

The Plantagenet King, whose whole heart was in the work of securing the obedience of the manifold provinces that had fallen to his lot; who hastened ceaselessly from one to the other (when people thought him far away in South France, he had already recrossed the sea to England), ever occupied in extending his inherited power by institutions of a legal and administrative nature, was not inclined to give way to the Church in this attempt. He would neither make the election of the higher clergy free, nor allow their excommunication to be valid without State control; he not only maintained the right of the lay courts to try ecclesiastics for heinous offences, which else often remained unpunished; but, even in the sphere of spiritual jurisdiction, he claimed to hear appeals in the last instance without regard to the Pope. In all this the lay and spiritual nobility agreed with him; in a Council at Clarendon they framed 'constitutions,' in which they declared these rules to be the law of the realm, as it had always been observed, and ought to be observed henceforth.^[24]

Becket did not possess the inflexible obstinacy which distinguishes most of the champions of the hierarchy. As the accordant voice of Europe moved him to take up the hierarchic principles, so now the accordant voice of his country's rulers made an impression on him: he listened to the ecclesiastics who entreated him not to draw the King's displeasure on them, and to the laymen, who prayed him not to bring on them the necessity of executing it on the ecclesiastics: he virtually accepted the Constitutions of Clarendon.

But then again he could not prevail on himself to observe them. Only when his vacillation endangered him personally, so that he could expect nothing else to follow but a condemnation by a new assembly of the royal court, did he come to a decision. Then he took the hierarchic side resolutely; in contradiction to the Constitutions, he appealed to the Pope. It is a remarkable day in English history, that 14th October 1164, on which Thomas Becket, after reading mass, appeared before the court without his archiepiscopal dress, but cross in hand. He forbade the earl, who wished to announce the judgment to him, to speak, since no layman had power to sit in judgment on his spiritual father;^[25] he again put himself under the protection of God and the Roman Church, and then passed from the court, no man venturing to lay hands on him, still armed with his cross, to a church close by, from whence he escaped to the Continent. By this he brought into England the war of the two powers, which had already burst into flame in Italy and Germany. The archbishop and primate rejected the supreme judicial authority of the Curia Regis; only in the chief pontiff at Rome did he recognise his rightful judge: by undertaking to bring into full view the complete independence of the spiritual principle on this ground also, he broke down that unity of authority, which had, been hitherto maintained in the English realm, and entered into open war with his King.

Henry II was, like most of the sovereigns of that age, above all things a warrior; you could see by his stride that he spent his days on horseback; and he was an indefatigable hunter. But yet he found time besides for study; he took pleasure in solving, in the company of scholars, the difficulties of the theologico-philosophical problems which then largely occupied men's minds; there is no doubt that he also fully understood these politico-ecclesiastical questions. He was by no means a good husband, rather the contrary, but, in other things, he could control himself; he was moderate in eating and drinking. Success did not make him overweening, but all the more prudent;^[26] ill-success found him resolute; yet it was remarked that he was more severe in success, milder in adversity. If contradicted, he showed all the excitability of the Southern French nature; he passed from promises to threats, from flatteries to outbursts of wrath, until he met with compliance. His administration at home witnesses to a noble conception of his mission and to a practical understanding; from his lion-like visage shone forth a pair of quiet eyes, but how suddenly did they flame up with wild

fire, if the passion was roused that slumbered in the depths of his soul! It was the passion of unlimited power; an ambition for which, as he once said, the world appeared to be too small. He never forgave an opponent; he never reconciled himself with an enemy or took him again into favour.

He would of himself have been much inclined to abandon Alexander III, and attach himself to the Pope set up by the Emperor: his ambassadors took part in a German diet at which the most extreme steps were approved of. But Henry was not sufficiently master of his clergy nor, above all, of his people for this; the solemn curse of Thomas Becket wrought on men from far away. Was there really any foundation for what men then said, that the King thought it better that his foe should be in the country rather than out of it? An apparent reconciliation was brought about, which, however, left the main questions undecided, each side only consenting generally to a peace with the other. Becket did not allow himself to be hindered by it, on his return to England, from excommunicating leading ecclesiastics who had supported the King's party. But at this Henry's deep-seated wrath awoke. Beset by the exiles with cries for protection, he let the complaint escape him in the presence of his knights, that among so many to whom he had shown favour there was not one who had courage enough to avenge the insults offered to him.^[27] As opposed to the Church sympathies which through the clergy wrought on all people, the temporal state was mainly kept together by the reciprocal relations of the feudal lord and sovereign to his vassals and knights, and of them to him: to spiritual reverence was opposed personal devotion. But these feelings, too, as they have their justification, so they have their moral limitations; they are as capable of exaggeration and excess as all others. Enflamed by the King's words which seemed to touch the honour of knighthood, four of his knights hastened to Canterbury, and sought out the man, who dared to bid the King defiance in his own kingdom; as Becket refused to recall the excommunication, they murdered him horribly in the cathedral. When required to obey the King, Becket was wont to reserve the rights of the Church and the priesthood; for this reservation he died.

Henry II by calling forth, intentionally or not, this brutal act of violence in the ecclesiastical strife, drew on himself the catastrophe of his life.

By Becket's murder the ideas of Church independence gained what was yet wanting to them, a martyr: his death was more advantageous to them than his life could ever have been. The belief that the victim wrought miracles, which were ascribed to him in increasing measure, at first slight, then more and more surprising ones, viz. cures of incurable diseases,—who does not know the resistless nature of this illusion, bound up as it is with the nearest needs of man in every form?—made him the idol of England. Henry II had to live to see the man who had refused him the old accustomed obedience, revered among his people with almost divine honours as one of the greatest saints that had ever lived. The great Hohenstaufen in the unsuccessful struggle with the Papacy was at last brought to declare that all he had hitherto done rested on an error; and in like manner, but one far more humiliating and painful, Henry II had to do penance, and receive the discipline of the scourge, at the tomb of the man who had been murdered by his loyal subjects. On a hasty glance it seems as though his Constitutions were established, but a more accurate inquiry shows that the articles which displeased the Pope were left out. The hierarchic ideas gained the day in England also.

It was precisely the Church quarrel that fed the discords which broke out in the King's own house. His eldest son found a pretence for his revolt, and essentially promoted it, by alleging that the murderers of the glorious martyr were unpunished; he on his side promised the clergy to make good all existing injuries, since what belonged to the Church should not serve man's ostentation. The example of the elder wrought on the younger sons too, who, to withstand their father, recognised the supremacy of the King of France. Henry's last years were filled with depression, and even with despair; when dying he was believed to have bequeathed his curse to his children. In the cloisters his death was ascribed to the intercession and merits of S. Thomas.

For with the acceptance of the hierarchic ideas the prestige of their martyr grew day by day. In the crusade of 1189 men saw him appear in dreams, and declare that he was appointed to protect the fleet, to calm the storms.

It was under these auspices that the chivalry of the Plantagenet realm took part in the Third Crusade: King Richard (in whom the ideas of Church and Chivalry attained their highest splendour) at their head gave back to the

already lost kingdom of Jerusalem, in despite of a very powerful foe, a certain amount of stability: as he served the hierarchic views with all his power, there was no question under him as to any dispute between Church and State. But this power itself could not be increased owing to his absence. Whilst he fought for the Church far away, elements of resistance were stirring in his realm which had been there long ago, and soon after his death came to the most violent outbreak.

John Lackland and Magna Charta.

Despite all the community of interests between the sovereigns of the Conquest and their vassals, grounds of hostility between them had never been altogether wanting. The Conqueror's sons had to make concessions to the great lords, because their succession was not secure; they needed a voluntary recognition, the price of which consisted in a relaxation of the harsh laws with which the monarchy had at first fettered every department of life. But when the great nobles had managed, or decided, contests for the throne, Were they likely to feel bound unconditionally to obey the man whom they had raised? Besides Henry II in his ecclesiastical quarrel needed the consent of his vassals; his court-Assemblies were no longer confined to proclamations of ordinances from the one side only; consultations were held, leading to decisions that concerned them all.

But what is now surprising is the fact, that even the associates in the Conquest, and much more their descendants, claimed the rights which the Anglo-Saxon magnates had once possessed. They, too, appealed incessantly to the *Laga*, the laws of Edward the Confessor, by which was meant the collection of old legal customs, the observation of which had been promised from the first. Following the precedent of their kings, the families that had risen through the Conquest regarded themselves as the heirs of the fallen Anglo-Saxon chiefs, into whose place they had stepped. The rights of the old Witan and of the vassals of the new feudal state became fused together.

We must now lay greater weight than is commonly done on the incidents that occurred during King Richard's absence. He had entrusted the administration of the realm to a man of low origin, William, bishop of Ely, who carried it on with great energy, and not without the pomp and

splendour, which grace authority, but arouse jealousy. Hence lay and spiritual chiefs combined against him: with Earl John, the brother of the absent King, at their head, they banished the hated bishop by the strong hand, and of their own authority set another in his place. The city of London, which had been already allowed the election of its own magistrates by Henry II, had then formed a so-called *Communia* after the pattern of the Flemish and North French towns; bishops, earls, and barons, swore to support the city in it.^[28]

These first attempts at an opposition by the estates obtained fresh weight when on Richard's death a contest again arose about the succession. Earl John claimed it for himself, but Arthur, an elder brother's son, seemed to have a better right, and had been moreover recognised at once in the South French provinces. The English nobles fortified their castles, and for some time assumed an almost threatening position; they only acknowledged John on the assurance that each and all should have their rights.^[29] John's possession of the crown was therefore derived not merely from right of inheritance, but also from their election.

A strong territorial confederacy had thus gradually grown up, confronting the royal power with a claim to independent rights; events now happened that roused it into full life.

King John incurred the suspicion of having murdered Arthur, who had fallen into his hands, to rid himself of his claims; he was accused of it by the peers of France, and pronounced guilty; on which the Plantagenet provinces which were fiefs of the French crown went over to the King of France at the first attack. The English nobility would at least not fight for a sovereign on whom such a heinous suspicion lay: on another pretence it abandoned him.

But then broke out a new quarrel with the Church. The most powerful pontiff that ever sat in the Roman See, Innocent III, thought good to decide a disputed election at Canterbury by passing over both candidates, including the King's, and caused the election of, or rather himself named, one of his friends from the great school at Paris, Stephen Langton. As King John did not acknowledge him, Innocent laid England under an Interdict.

Alike careless and cruel, naturally hasty and untrustworthy, of doubtful birthright, and now rejected by the Church, John must have rather expected resistance than support from the great men of the realm. He tried to assure himself of those he suspected by taking hostages from their families; he confiscated the property of the ecclesiastics who complied with the Pope's orders, and took it under his own management; he employed every means which the still unlimited extent of the supreme authority allowed, to obtain money and men; powerfully and successfully he used the sword. But in the long run he could not maintain himself by these means. When a revolt broke out in Wales at the open instigation of the Pope, and the King's vassals were summoned to put it down, even among them a general discontent was perceptible; John had reason to dread that if he came near the enemy with such an army he might be delivered into their hands or killed: he did not venture to carry out the campaign. And meanwhile he saw himself threatened from abroad also. King Philip Augustus of France armed, to attack his old opponent at home (whom he had already driven from in those provinces over which he himself was feudal sovereign), and to carry out the Pope's excommunication against him. He boasted, probably with good grounds, of having the English barons' letters and seals, promising that they would join him. He would have restored all the fugitives and exiles; the Church element would have raised itself all the more strongly, in proportion to its previous depression; a general revolt would have accompanied his attack, the English government according to all appearance would have been lost.

King John knew this well: to avoid immediate ruin he seized on a means of escape which was completely unexpected, but quite decisive—he gave over his kingdom in vassalage to the Pope.

What William I had so expressly rejected was now accepted in a moment of extreme pressure, from which such a step was the only means of escape. The moment the Pope was recognised as feudal lord of England, not only must his hostility cease, but he would be bound to take the realm under his protection. He now forbade the King of France, whom he had before urged on to its conquest, to carry out the invasion, which was already prepared.

It appears as if the barons had originally agreed with the King's proceeding, although they did not entirely approve its form. They maintained that they

had risen up for the Church's rights,^[30] and saw in the Pope a natural ally. They thought to gain their own purpose all the more surely now that Stephen Langton received the see of Canterbury, a man who, while he represented the Papal authority, at the same time zealously made their interests his own. At the very moment when the archbishop absolved the King from the excommunication, he made him swear that he would restore the good laws, especially those of King Edward, and would do all according to the legal decisions of his courts. It may be regarded as the first time that a Norman-Plantagenet king's administration was acted on by an obligatory engagement, when King John, on the point of taking the field against some barons whom he regarded as rebels, was hindered by the archbishop who reminded him that he would thus be breaking his last oath, which bound him to take judicial proceedings. The tradition that a forgotten charter of Henry I was produced by the archbishop (who was certainly, as his writings show, a scholar of research), and recognised as a legal document which gave them a firm footing, may admit of some doubt; there is no doubt that it was Stephen Langton who gathered around him the great nobles and bound them by a mutual engagement, to defend, even at the risk of life, the old liberties and rights which they derived from Anglo-Saxon times.

It was, in fact, of considerable importance that the primate, on whose co-operation with the King the Norman state originally rested, united himself in this matter as closely as possible with the nobles; among all alike, without regard to their origin, whether from France or from England, had arisen the wish to limit the crown, as it had been limited in the Anglo-Saxon period.

Here, however, they had to discover that the Pope was minded to protect the King, his vassal, not only against attacks from abroad, but also against movements at home. The engagements which the barons had formed, when he released them from their oath of fidelity to the King, he now declared to be invalid and void. The legate in England reported unfavourably on their proceedings, and it was seen that he was intimately allied with the King. The war was still raging on the continent, and the King had been again defeated, at Bouvines, July 27, 1214; he had returned disheartened, but not without bodies of mercenaries, both horse and foot, which excited anxiety in the allied nobles. This feeling was strengthened by the fact that, after the death of a chancellor connected with them by family, and on good terms

with them, he raised a foreigner, Peter des Roches, to that dignity, and it was believed that this foreigner would lend a hand to any attempt at restoring the previous state of things. Acts of violence of the old sort, and the King's lusts, which brought dishonour into their families, added to their indignation. In short, the barons, far from breaking up their alliance, confirmed it with new oaths. While they pressed the King to accept the demands which they laid before him, they sent one of the chief of their number, Eustace de Vescy, to Rome, to win the Pope to their cause, by reminding him of the gratitude due to them for their services in the cause of the Church. As lord of England, for they did not hesitate to designate him as such, he might admonish King John, and, if necessary, force him to restore unimpaired the old rights guaranteed them by the charters of earlier Kings.

[31]

But not so did Innocent understand his right of supreme lordship in England; he did not side with those who had helped to win the victory for him over the King, but with the King himself, to whose sudden decision he owed its fruits—the acknowledgment of his feudal superiority. He blamed the archbishop for concealing the movements of the barons from him, and for having, perhaps, even encouraged them, though knowing their pernicious nature: with what view was he stirring questions of which no mention had been made either under the King's father or brother? He censured the barons for refusing the scutage, which had been paid from old times, and for their threat of proceeding sword in hand. He repeated his command to them to break up their confederacy, under threat of excommunication.

As one step lower the primate and nobles, so in the highest sphere Innocent and John were in alliance. The Papacy, then in possession of supremacy over the world, made common cause with royalty. Would not the nobles, some from reverence for the supreme Pontiff's authority, others from a sense of religious obligation, yield to this alliance? Such was not their intention.

[32]

The King proffered the barons an arbitration, the umpire to be the Pope, or else an absolute reference of the whole matter to him, who then by his apostolic power could settle what was right and lawful. They could not possibly accept either the one or the other, after the known declarations of

the Pope. As they persevered in their hostile attitude, the King called on the archbishop to carry out the instructions of a Papal brief, and pronounce the barons excommunicated. Stephen Langton answered that he knew better what was the true intention of the holy father. The Pope's name this time remained quite powerless. Rather it was preached in London that the highest spiritual power should not encroach on temporal affairs; Peter, in the significant phrase of the time, could not be Constantine as well.^[33] Only among the lower citizens was there a party favourable to the King, but they were put down at a blow by the great barons and the rich citizens. The capital threw its whole weight on the side of the barons. They rose in arms and formally renounced their allegiance to the King; they proclaimed war against him under the name of 'the army of God.' Thus confronted by the whole kingdom, in which there appeared to be only one opinion, the King had no means of resistance remaining, no choice left.

He came down—15th June, 1215—from Windsor to the meadow at Runnymede, where the barons lay encamped, and signed the articles laid before him, happy enough in getting some of them softened. The Great Charter came into being, truly the 'Magna Charta,' which throws not merely all earlier, but also the later charters into the shade.

It is a document which, more than any other, links together the different epochs of English history. With a renewal of the earliest maxims of German personal freedom it combines a settlement of the rights of the feudal Estates: on this twofold basis has the proud edifice of the English constitution been erected. Before all things the lay nobles sought to secure themselves against the misuse of the King's authority in his feudal capacity, and as bound up with the supreme jurisdiction; but the rights of the Church and of the towns were also guaranteed. It was especially by forced collections of extraordinary aids that King John had harassed his Estates: since they could no longer put up with this, and yet the crown could not dispense with extraordinary resources, a solution was found by requiring that such aids should not be levied except with the consent of the Great Council, which consisted of the lords spiritual and temporal. They tried to set limits to the arbitrary imprisonments that had been hitherto the order of the day, by definite reference to the law of the land and the verdict of sworn men. But these are just the weightiest points on which personal freedom and

security of property rest; and how to combine them with a strong government forms the leading problem for all national constitutions.

Two other points in this document deserve notice. In other countries also at this epoch emperors and kings made very comprehensive concessions to the several Estates: the distinctive point in the case of England is, that they were not made to each Estate separately, but to all at the same time. While elsewhere each Estate was caring for itself, here a common interest of all grew up, which bound them together for ever. Further, the Charter was introduced in conscious opposition to the supreme spiritual power also; the principles which lay at the very root of popular freedom breathed an anti-Romish spirit.

Yet it was far from possible to regard them as being fully established. There were also conditions contained in the Charter, by which the legal and indispensable powers of the King's government were impaired: the barons even formed a controlling power as against the King. It could not be expected that King John, or any of his successors, would let this pass quietly. And besides, was not the Pope able to do away with the obligation of which he disapproved? We still possess the first draft of the Charter, which presents considerable variations from the document in its final form, among others the following. According to the draft the King was to give an assurance that he would never obtain from the Pope a revocation of the arrangements agreed on; the archbishop, the bishops, and the Papal plenipotentiary, Master Pandulph, were to guarantee this assurance. We see to what quarter the anxieties of the nobles pointed, how they wished above all to obtain security against the influences of the Papal See. Yet this they were not able to obtain. There was no mention in the document either of the bishops or of Master Pandulph; the King promised in general, not to obtain such a revocation from any one; they avoided naming the Pope.^[34]

In reality it made no difference, whatever might be promised or done in this respect. Innocent III was not the man to accept quietly what had taken place against his declared will, or to yield to accomplished facts. On the authority of the words 'I have set thee over the nations and over the kingdoms,' which seemed to him a sufficient basis for his Paramount Right, he gave sentence rejecting the whole contents of the Charter; he suspended Stephen Langton, excommunicated the barons and the citizens of London, as the true authors

of this perverse act, and forbade the King under pain of excommunication to observe the Charter which he had put forth.

And even without this King John had already armed, to annul by force of arms all that he had promised. A war broke out which took a turn especially dangerous to the kingdom, because the barons called the heir of France to the English throne and did him homage. So little were the feelings of nationality yet developed, that the barons fought out the war against their King, supported by the presence and military Power of a foreign prince. For the interests of the English crown it was perhaps an advantage that King John died in the midst of the troubles, and his rights passed to his son Henry, a child to whom his father's iniquity could not be imputed.^[35] In his name a royalist party was formed by the joint action of Pembroke, the Marshal of the kingdom and the Papal Legate, which at last won such advantages in the field, that the French prince was induced to surrender his claim, which he himself hardly held to be a good one—the English were designated as traitors by his retinue,—and give back to the barons the homage they had pledged him. But he did so only on the condition that not merely their possessions, but also the lawful customs and liberties of the realm should be secured to them.^[36] At a meeting between Henry III and the French prince at Merton in Surrey, it was agreed to give Magna Charta a form, in which it was deemed compatible with the monarchy. In this shape the article on personal freedom occurs; on the other hand everything is left out that could imply a power of control to be exercised against the King; the need of a grant before levying scutage is also no longer mentioned. The barons abandoned for the time their chief claims.

It is, properly speaking, this charter which was renewed in the ninth year of Henry III as Magna Charta, and was afterwards repeatedly confirmed. As we see, it did not include the right of approving taxes by a vote.

Whether men's union in a State in general depends on an original contract, is a question for political theorists, and to them we leave its solution. On the other hand, however, it might well be maintained that the English constitution, as it gradually shaped itself, assumed the character of a contract. So much is already involved in the first promises which William the Conqueror made at his entry into London and in his agreement with the partisans of Harold. The same is true of the assurances given by his sons,

especially the second one: they were the price of a very definite equivalent. More than any that had gone before however does Magna Charta bear this character. The barons put forward their demands: King John negotiates about them, and at last sees himself forced to accept them. It is true that he soon takes arms to free himself from the obligation he has undertaken. It comes to a struggle, in which, however, neither side decidedly gains the upper hand, and they agree to a compromise. It is true the barons did not expressly stipulate for the new charter when they submitted to John's son (for with John himself they could certainly have never been reconciled), but yet it is undeniable that without it their submission would never have taken place, nor would peace have been concluded.

As, however, is generally the case, the agreement had in it the germs of a further quarrel. The one side did not forget what it had lost, the other what it had aimed at and failed to attain. Magna Charta does not contain a final settlement, by which the sovereign's claims to obedience were reconciled with the security of the vassals; it is less a contract that has attained to full validity, than the outline of a contract, to fill up which would yet require the struggles of centuries.

NOTES:

[22] He says himself later, 'terror publicae potestatis me intrusit,' in Gervasius, 497.

[23] Canones Concilii Turonensis, Article III, 'ut laici ecclesiastica non usurpent;' and Article I of those previously omitted in Mansi, XXI. 1178 seq.

[24] Concilium Clarendoniae, 8 Cal. Febr. MCLXIV, Article VIII, de appellationibus. 'Si archiepiscopus defuerit in justitia exhibenda, ad dominum regem perveniendum est postremo; ita quod non debeat ultra procedi absque assensu domini regis.' Wilkins, i. 435.

[25] Rogeri de Hoveden Annales ed. Savile, 283. 6. 'Prohibeo vobis ex parte omnipotentis dei et sub anathemate, ne faciatis hodie de me iudicium, quia appellavi ad praesentiam domini papae.' None, however, of the accounts we have can be looked on as quite accurate.

[26] 'Ambigua fata formidans.' Knyghton de eventibus Angliae, 2391.

[27] Gervasius 1414 'se ignobiles et ignavos homines nutritis, quorum nec unus tot sibi illatas injurias voluerit vindicare.'

[28] 'Episcopi comites et barones regni—juraverunt quod ipsi eam communiam et dignitatem civitatis Londinensis custodirent.'

[29] Hoveden, p. 450, 'quod redderet unicuique illorum ius suum, si ipsi illi fidem servaverint et pacem.'

[30] 'Quod ipsi audacter pro libertate ecclesiae ad mandatum suum se opposuerint,—honores quos ei (Papae) et romanae ecclesiae exhibuistis, id per eos coactus fecistis.'—Mauclerc, literae ad legem, in Rymer, Foedera, i.

[31] Mauclerc, literae de negotio Baronum, in Rymer, Foedera, i. 185: 'Magnates Angliae—instanter domino Papae supplicant, quod cum ipse sit dominus Angliae vos—compellat, antiquas libertates suas—eis illaesas conservare.'

[32] Literae Johannis regis, quibus quae sit baronum contumacia narrat. Apud Odiham, 29 die Maii.

[33] In Matthew Paris: 'Quod non pertinet ad papam ordinatio rerum laicarum.'

[34] Articuli magnae cartae libertatum, § 49. Magna carta regis Johannis. In Blackstone, the Great Charter, 9, 23.

[35] Matthew Paris. 'Nobiles universi et castellani ei multo facilius adhaeserunt, quia propria patris iniquitas filio non debuit imputari.'

[36] Forma pacis inter Henricum et Ludovicum, in Rymer, i. 221. 'Coadiutores sui habeant terras suas—et rectas consuetudines et libertates regni Angliae.'

CHAPTER IV.

FOUNDATION OF THE PARLIAMENTARY CONSTITUTION.

There is a very accurate correspondence in this epoch also between the general history of the Western world and events in England: these last form but a part of the great victory of the hierarchy and its advance in power, which marks the first half of the 13th century. By combining with the vassals the Popes had overcome the monarchy, and had then in turn overcome the vassals by combining with the monarchy and its endangered rights. It must not be regarded as a mere title, an empty word, if the Pope was acknowledged to be feudal Lord of England: his legates, Gualo, Pandulph, Otho, and with them some native prelates, devoted to him (above all that Peter des Roches, who, by his conduct when Bishop of Winchester, through the mistrust awakened, incurred almost the chief responsibility of the earlier troubles), spoke the decisive word in the affairs of the kingdom and crushed their opponents. It was reported that Innocent IV was heard to say, 'Is not the King of England my vassal, my servant? At my nod he will imprison and punish.'^[37] Under this influence the best benefices in the kingdom were given away without regard to the freedom of election or the rights of patrons, and in fact mostly to foreigners. The Pope's exchequer drew its richest revenues from England; there was no end to the exactions of its subordinate agents, Master Martin, Master Marin, Peter Rubeo, and all the rest of them. Even the King surrounded himself with foreigners. To his own relations and to the relations of his Provençal wife fell the most profitable places, and the advantages arising from his paramount feudal rights; they too exercised much influence on public affairs, and that in the interests of the Papal power, with which they were allied. Riotous movements occasionally took place against this system, but they were suppressed: men suffered in silence as long as it was only the exercise of rights once acknowledged. But now it happened that the Popes in their war with the last of the Hohenstaufen, whom they had resolved to destroy, proposed to employ the resources of England and in a very different manner than before. They awoke Henry III's dynastic ambition by promoting the

elevation of his brother to be King of the Romans, and destining his younger son Edmund for the crown of Naples and Sicily. King Henry pledged himself in return to the heaviest money-payments. It began to appear as if England were no longer a free kingdom, using its resources for its own objects: the land and all its riches was at the service of the Pope at Rome; the King was little more than a tool of the hierarchy.

It was at this crisis that the Parliaments of England, if they did not actually begin, yet first attained to a definite form and efficiency.

The opposition of the country to the ecclesiastico-temporal government became most conspicuous in the year 1257, when Henry, happy beyond measure in his son's being raised to royal rank by the Apostolic See, presented his son to the Great Council of the nation, already wearing the national costume of Naples, and named the sum, to the payment of which he had pledged himself in return. The Estates at once refused their consent to his accepting the crown, which they considered could not be maintained owing to the untrustworthiness of the Italians, and of the Romish See itself, and the distance of the country; the money-pledge excited loud displeasure. Since they were required to redeem it, they reasonably enough gave it to be understood that they ought to have been consulted first. It was precisely the alliance of the Pope and the King that they had long felt most bitterly; they said truly, England would by such a joint action be as it were ground to dust between two millstones. As, however, despite all remonstrances, the demands were persevered with,—for the King had taken on himself the debts incurred by Pope Alexander IV in the Neapolitan war, and the Pope had already referred to England the bankers entrusted with the payments,—a storm of opposition broke out, which led to what was equivalent to an overthrow of the government. The King had to consent to the appointment of a committee for reforming the realm, to be named in equal proportions by himself and by the barons; from this, however, was selected a council of fifteen members, in which the King's opponents had a decisive majority. They put forth Statutes, at Oxford, which virtually stripped the King of his power; he had to swear to them with a lighted taper in his hand. The Pope without hesitation at once condemned these ordinances; King Louis IX of France also, who was called in as arbiter, decided against them: and some moderate men drew back from them: but among the rest the zeal with which they held to them was thus only inflamed to greater violence. They had the

King in their power, and felt themselves strong enough to impose their will on him as law.

Without doubt they had the opinion of the country on their side. For the first time since the Conquest the insular spirit of England, which was now shared even by the conquerors themselves, manifested itself in a natural opposition to all foreign influence. The King's half-brothers with their numerous dependents were driven out without mercy, their castles occupied, their places given to the foremost Englishmen. The Papal legate Guido, one of the most distinguished members of the Curia, who himself became Pope at a later time, was forbidden to enter England. Most foreigners, it mattered not of what station or nationality, were forced to quit the realm: it went hard with those who could not speak English. The leader of the barons, Simon de Montfort, was solemnly declared Protector of the kingdom and people; he had in particular the lower clergy, the natural leaders of the masses, on his side. When he was put under the ban of the Church his followers retorted by assuming the badge of the cross, since his cause appeared to them just and holy.^[38]

At this very juncture it was that the attempt was made to form a Parliamentary Assembly corresponding to the meaning of that word.

The Statutes or Provisions of Oxford contain the first attempt to effect this, by enacting that thrice every year the newly formed royal Council should meet together with twelve men elected by the Commonalty of England, and consult on the affairs of the kingdom.^[39] There is no doubt that these twelve belonged to the nobles and were to represent them: the decisive point lies in the fact that it was not a number of nobles summoned by the King, but a committee of the Estates chosen by themselves that was placed by the side of the Council. The Council and the twelve persons elected formed for some years an association that united the executive and legislative powers.

But this continued only as long as the King acquiesced in it. When he had the courage to resist, it is true that in the first encounter which ensued, he was himself taken prisoner: but his partisans were not crushed by this; and soon after his wife, who had collected about her a considerable body of mercenaries, in concert with the Pope and the King of France, thought herself strong enough to invade England. Simon felt that he needed a

greater, in other words, a broader, basis of support. And the design he then conceived has secured him an imperishable memory. He summoned first of all representatives of the knights of the shires, and directly afterwards representatives of the towns and the Cinque Ports, to form a Parliament in conjunction with the nobles of the realm. This was not an altogether new thing in the European world; we know that in the Cortes of Aragon, as early as the 12th century, by the side of the high nobility and the ecclesiastics there appeared also the Hidalgos and the deputies of the Commons; and Simon de Montfort might well be aware of this, since his father had been in so many ways connected with Aragon. In England itself under King John men had come very near it without however carrying it through: not till afterwards did the innovation appear a real necessity. In opposition to the one-sided power exercised by the foreigners, nothing was so much insisted on in daily talk and in the popular ballads as the propriety of calling the natives of the land to counsel, since to them its laws were best known. This justifiable wish met with adequate satisfaction now that the Commons were summoned; the public feeling against the foreigners, on which Simon de Montfort necessarily relied, thus found expression. The assembly which he called together doubtless sympathised with his party views. As he invited only those nobles to it who remained true to him (they were not more than twenty-three in number), so he appears to have summoned those only of the towns which adhered to him unconditionally. But the arrangement involved more than was contemplated from his point of view.

Amid the storms he had called forth Simon de Montfort perished: the King was freed, the royal authority re-established. A new Papal legate entered London in the full splendour of his office, Cardinal Ottoboni; Guido having meanwhile himself obtained the tiara, and using every means to subdue the unbending spirits, from which danger even to the Church was dreaded.^[40] Yet the old state of things was not restored: neither the rule of foreigners, nor the absolute dependence on the Papal policy. The later government of Henry III has a different character from the earlier: the legate himself confirmed Magna Charta in the shape finally accepted. It is not merely at the great national festivals that we find representatives of the towns present, whom the King has summoned; it is beyond a doubt that one of the most important statutes of the time was passed with their consent.^[41] Yet regulations for the summons of representatives from the towns were as little

fixed by law as those for voting the taxes. It would by no means harmonise with the constitution of Romano-German states, that organic institutions should come into full force in mere antagonism to the highest authority. They must coincide with the interests of that authority, as was the case in England under Henry's warlike son Edward I.

Without doubt Edward, who once more revived in the East the reputation of the Plantagenet Kings for personal valour, would have preferred to fight there for the interests of Christendom, he even speaks of it in his will; or else he would have wished to recover from the French crown the lands which his father had inherited, and which had passed into French possession; but neither the one nor the other was possible; another object was assigned to his energy and his ambition, one more befitting an English king: he undertook to unite the whole island under his sceptre.

In Wales, the conquest of which had been so often attempted and so often failed, there lived at this time Prince Llewellyn, whose personal beauty, cunning, and high spirit fitted him to be a brilliant representative of the old British nationality. The bards, reviving the old prophecies, promised him the ancient crown of Brutus; but when he ventured out of the mountains, he was overpowered and fell in a hand-to-hand conflict. The English crown was not to fall to his lot, but Edward transferred the title of Prince of Wales to his own son. The great cross of the Welsh, the crown of Arthur, fell into his hands: he no longer tolerated the bards: their age passed away with the Crusades.

From Wales Edward turned his arms against Scotland. There Columban had in former days anointed as king a Scottish prince, who was also of Keltic descent; how the German element nevertheless got the upper hand not merely in the greatest part of the country, but also in the ruling family, is the great problem of early Scottish history: a thoroughly Germanic monarchy had arisen, but one which after it had once given a home to the Anglo-Saxons who fled before the Normans, thought its honour concerned in repelling all English influences. A disputed succession gave Edward I an opportunity of reviving the claims of his predecessors to the overlordship of Scotland: he gave the Scotch a king, whom the Scotch rejected simply because he was the English King's nominee. The war, which sometimes seemed ended—there were times at which Edward could regard himself as

the Lord of all Albion,—ever blazed out again; above all, the support the Scotch received from the King of France brought about complications which filled all Western Europe with trouble and war; but it was in the home politics of England that their effect was destined to be greatest.

Compelled to make incessant efforts, which exhausted the resources of the crown, Edward appealed to the voluntary assistance of his subjects. He laid down to them the principle, that their common perils should be met with their united strength, that what concerns all must also be borne by all. In the war against Wales he had gathered together the representatives of the counties and the towns, to hear his demands and to act accordingly; chiefly to vote him subsidies. After the victory he had called an assembly of nobles, knights, and towns, to take counsel with them about the treatment of the captives and the country. Similarly he drew together the representatives of the towns in order to decide the affairs of Scotland. With especial emphasis did he call for their united help against Philip the Fair of France, who thought to destroy the English tongue from off the earth: knights and towns were pledged to help in carrying out the resolutions thus adopted by common consent.

In spite of all this appealing to free participation in public matters, Edward I did not refrain from the arbitrary imposition of taxes, and those the most oppressive: the eighth, even the fifth part of men's income. For the campaign in Flanders he summoned the under-tenants as well as the tenants in chief. We find instances of arbitrary seizure of whatever was necessary for the war.

King Edward excused this by his maxim that the interests of the land must be defended with the resources of the land,^[42] but we can conceive how, on the boundary line between two different systems, acts of violence, which combined the arbitrariness of the one with the principles of the other, caused a general agitation. In the year 1297 the spiritual lords under their archbishop, as well as the temporal ones (who denied the obligation to serve beyond the sea) under the Constable and Marshal, set themselves energetically to oppose the King. The people, which had the most to suffer from the arbitrary exactions, took their side with cordial approval. They set forth all the grievances of the country, and insisted on their immediate and final redress.

To avoid the pressure, the King had already quitted England, to carry on his campaign in Flanders: the demand was laid before the Councillors whom he had left behind as assessors to his son, who was named Regent. They however were in great perplexity, partly from the trouble of this agitation itself, but mainly from the revolt in Scotland which had broken out in a formidable manner. William Walays, like one of those Heyduck chiefs who rise in Turkey against the established order of things, the right of which they do not recognise, had come down from the hill country, at the head of the fugitives and exiles, a robber-patriot, of gigantic bodily strength and innate talent for war. His successes soon increased his band to the size of an army; he beat the English in a pitched battle, and then swept over the borders into the English territory. If the royal commissioners would oppose a strong resistance to this inroad, they must needs ratify a provisional concession of the demands brought forward. The King, who had meanwhile reached Flanders, which the French had entered from two sides, could not possibly yield to the Scottish movement—whether he wished to carry on the war or make a truce: nothing therefore remained to him but to confirm the concessions made by his councillors.

It is not absolutely certain how far these had gone; one word of discussion may be allowed on the matter.

The historians of the time have maintained that the right of voting the taxes was granted to the Estates, and in fact conjointly to the nobles whether spiritual or temporal, and the representatives of the counties and towns: the copy of a statute is extant, in which this is very expressly stated.^[43] But since the statute does not exist in an authentic shape, and is not to be found in the Rolls of the Realm, we cannot safely base any conclusion on it. As to the date too at which it may have been passed, our statements waver between the twenty-eighth and the thirty-fourth year of Edward. On the other hand we find in the collection of charters an undoubted charter of confirmation given at Ghent and dated 5 November 1297, in which not merely are the Great Charter of Henry III and the Forest Charter confirmed, but also some new arrangements of much importance guaranteed, and confirmed by ecclesiastico-judicial regulations.^[44] According to it the grants of taxes and contributions which had been hitherto made to the King for his wars were not to be regarded as binding for the future. He reserves only the old customary taxes: to the higher clergy, the nobility, and the commons of

the land the assurance is given, that under no circumstances, however pressing, should any tax or contribution or requisition—not even the export duty on wool—be levied except by their common consent and for the interests of all.^[45] In the Latin text all sounds more open and less reserved: but even the words of the authentic document include a very essential limitation of the prerogative of the crown, which hitherto had alone exercised the right of estimating what the state needed and of fixing the payments by this standard. The King was averse at heart to the limitation even in this form. When he came back from Flanders after concluding a truce with France, and army and people were met together at York, to carry out a great campaign against Scotland, he was pressed to confirm on English soil the concessions which he had granted on foreign ground.^[46] He held it advisable that the campaign should be first carried through; four of his confidential friends swore in his stead (since an oath in person was thought unbecoming to the King), that, the campaign ended, the confirmation should not be wanting. The enterprise was most successful, it led to a great victory over the Scots, and it was the leaders of the English aristocracy who did the best service there; nevertheless, when they met together next Lent (1299) in London, the King strove to avoid an absolute promise: he wished to expressly reserve the undefined 'rights of the crown.' But this delay aroused a general storm: and as he was quite convinced that he could not, under this condition, reckon on further support in the war which still continued, he at last submitted to what was unavoidable, and allowed his clause to drop.^[47]

I do not know whether I am mistaken in ascribing to these concessions a different character from that of the earlier ones. It was not a sovereign defeated and reduced to the deepest humiliation who made them, nor did the barons obtain articles which aimed at securing their own direct supremacy: the concessions were the result of the war, which could not be carried on with the existing means. When Edward I laid stress on the necessity of greater common efforts, the counter-demand which was made on him, and to which he yielded, merely implied that a common resolution should be previously come to. His concessions included a return for service already done, and a condition for future service. It did not abase the royal authority; it brought into clear view the unity of interests between the crown and the nation.

Another great crisis united them for the second time. As Edward led the forces of England year by year across the Tweed, to compel the Scots to acknowledge his overlordship by the edge of the sword, the Pope who assumed himself to be the Suzerain of the kingdoms of the world, Boniface VIII, met him with the assertion that Scotland belonged to the Church of Rome, the King therefore was violating the rights of that Church by his invasions. To confront the Pope, King Edward thought it best, as did Philip the Fair of France about the same time, to call in his Estates to his aid, since without them no answer to the claim was possible. The Estates then in a long letter not merely maintain the right of the English crown, but also reject the Pope's claim to decide respecting it as arbiter, as incompatible with the royal dignity: even if the King wished it, yet they would never lend a hand to anything so unseemly and so unheard of.^[48] The King, without regard to the Pope, continued his campaigns against Scotland with unabated energy.

It marks the character of Edward I that he nevertheless did not break with the Papacy on this account; so too he still raised taxes that had not been voted, and held Parliaments in the old form: when representatives of the counties and towns were summoned it is not always clear whether they were elected or named.^[49] Edward I could not free himself from the habits of arbitrary rule and the old ideas connected with them. But with all this it is still undeniable that under him the monarchy took a far more national position than before; it no longer stood in a hostile attitude as against the community of the land, but belonged to it.

And his successors soon saw themselves forced to complete still further the foundations of a new state of things, which had been thus laid.

Under Edward II the old ambition of the barons to take a preponderant part in the government reappeared once more with the greatest violence. The occasion was afforded by the weakness of this sovereign, who allowed his favourite, the Gascon Gaveston, a disastrous influence on affairs. Discontented with this, the King's nearest cousin, Thomas of Lancaster, placed himself at the head of the great nobles, as indeed he was believed to have sworn to his father in law (whose rich possessions passed to him, and who feared a return of the foreign influences), that he would adhere to the interest of the barons, which was also that of the country. In the fourth year

of his government Edward was obliged to accept all the regulations made by a Committee of the Nobles called the 'Ordainers.'

Without advice of the nobles he was forbidden either to begin a war, or to fill up high offices of State, or even to leave the country: the officers of the crown were to be responsible to them. Gaveston had to pay for his short possession of influence by death without mercy.

It was long before the King found men who had the courage to defend the lawful authority of the crown. At last the two Hugh Despencers undertook it: under their leadership the barons were defeated, and Thomas of Lancaster in his turn paid for his enterprises with his life. For in England, if anywhere, the assumption of power led inevitably to the scaffold.

It is hardly needful to say that the regulations of the Ordainers were now revoked. But must not some means be also thought of, to prevent similar acts of violence for the future? It was deemed necessary to declare even the form, under cover of which they had been ratified, invalid for all time. And so an enactment was now made, in which the first definite idea of the Parliamentary Monarchy becomes visible. It was declared that never for the future should any ordinance affecting the King's power and proceeding from his subjects be valid, but only that should be law which was discussed, agreed on, and enacted in Parliament by the King with the consent of the prelates, the earls and barons, and the commonalty of the realm.^[50] For it was above all things necessary to withdraw the legislative authority for ever from the turbulent grandees. The monarchy opposed to them its alliance with the commonalty of the realm, as it was expressed by the representatives of the knights and the commons. Among the founders of the English constitution these Hugh Despencers, through whom the legislative power was first transferred to the united body of King Lords and Commons, take a very important position.

This thought was however rather one left for the future to carry out, than one which swayed or contented the English world at the time. Edward II fell before a new attack of the revolted barons, with whom even his wife was allied: he had to think it a piece of good fortune that, on the ground of his own abdication, his son was acknowledged as his successor. The latter however could only obtain real possession of the royal power by

overthrowing the faction to which his father had succumbed. While he restored the memory of the two Despencers, who had been condemned and executed by the barons, he also decided to carry on a Parliamentary government; it is the first that existed in England.

For the general course of the development it is significant that the rights of Parliament in relation to the voting of taxes, and now also to legislation as a whole, were acknowledged before an appropriate form was found for its consultations. In the first years of Edward III its four constituent parts, prelates, barons, knights, and town deputies, held their debates in four different assemblies; but gradually the two first were fused into an Upper, the two last into a Second House, without any definite law being laid down to that effect: the nature of things led to the custom, the custom in course of time became law.

That which had been already preparing under the first Edward came under the third for the first time into complete operation, viz. the participation of the Estates in the management of foreign affairs and of war.

In the year 1333 the Parliament advised the King to break the peace with Scotland, which the barons had concluded of their own authority according to their own views, not to put up with any more outrages, and not merely to take back the lost border-fortress of Berwick, but to force the Scots to acknowledge the supremacy of England.

In the year 1337 and afterwards the Parliament more than once approved the King's plan of asserting the claim he had through his mother on the French throne by force of arms and through alliances with foreign princes, ^[51] and promised to support him in it with their lives and properties; it was all the more ready for this, as France had been repeatedly threatening England with a new Conquest. In the year 1344 the Peers, each in his own name, called on the King to cross the sea and not let himself be hindered by any one, not even by the Pope, from appealing to the judgment of God by battle. The clergy imposed on themselves a three-years' tenth, the counties a fifteenth, the towns two tenths; the great nobles followed him in person with their squires and horsemen, without even alluding to their old remonstrances. So that splendid army made its appearance in France, in which the weapons of the yeomen vied with those of the knights, and

which, thanks chiefly to the former, won the victory of Cressy. Whilst the King made conquests over the French, his heroic Queen repelled the Scotch. In these wars the now united nation, which put forth all its strength, came for the first time to the feeling of its power, to a position of its own in the world and to the consciousness of it. The King of Scotland at that time, and the King of France some years later, became prisoners in England.

A period followed in which England seemed to have obtained the supremacy in Western Europe. The Scots purchased their King's freedom by a truce which bound them to long and heavy payments, for which hostages were given as a security. A peace was made with the French by which Guienne, Gascony, Poitou, and such important towns as Rochelle and Calais were surrendered to the English. The Prince of Wales, who took up his residence at Bordeaux, mixed in the Spanish quarrels with the view of uniting Biscay to his territories in South France. As the result of these circumstances and of the well-calculated encouragement of Edward III, we find that English commerce prospered immensely and, in emulous alliance with that of Flanders, began to form another great centre for the general commerce of the world. It was still chiefly in the hands of foreigners, but the English made great profits by it. Their riches gained them almost as much prestige in the world as their bravery.^[52] The more money-resources the towns possessed, and the more they could and did support the King, the greater became their influence on the affairs of the realm. No language could be more humble than that of these 'poor and simple Commons,' when they address themselves to 'their glorious and thrice gracious King and lord.'^[53] But for all that their representations are exceedingly comprehensive and pressing; their grants are not to take effect, unless their grievances are redressed; they never leave out of sight the interests of their staple; they assail the exactions of the officials or the clergy with great zeal. The regard paid to them gives the whole government a popular character.

On an attempt of the King to exercise the legislative power in his great council, they remonstrated; they had no objection to the ordinances themselves, but insisted that valid statutes could only proceed from the lawfully assembled Parliament.

Now too the relations to the Papal See came again into consideration. Seated at Avignon under the influence of the French crown, the Popes were

natural opponents of Edward III's claims and enterprises; they sometimes thought of directing the censures of the Church against him. On the other hand, the complaints in England against the encroachments and pecuniary demands of the Curia were louder than ever, without however coming to a rupture on these points. But at last Urban V renewed the old claim to the vassalage of England; he demanded the feudal tribute first paid by King John, and threatened King and kingdom, in case they were not willing to pay it, with judicial proceedings.^[54] We know the earlier kings had seen in the connexion with Rome a last resource against the demands of the Estates: on the King's side it required some resolution to renounce it. But the very nature of the Parliamentary government, as Edward III had settled it, involved a disregard of these considerations for the future. It was before the Parliament itself that he laid the Papal demands for their consent and counsel. The Estates consulted separately: first the spiritual and lay lords framed their resolution, then the town deputies assented to it. The answer they gave the Pope was that King John's submission was destitute of all validity, since it was against his coronation-oath, and was made without the consent of the Estates; should the Pope try to enforce satisfaction of his demand by legal process or in any other manner, they would all—dukes earls barons and commons—oppose him with their united force.^[55] The clergy only assented to the declaration of invalidity; to threaten the holy father with their resistance, they considered unbecoming. But the declaration of the lay Estates was in itself sufficient for the purpose: the claim was never afterwards raised again.

The Estates had often been obliged to contend against the King and the Roman See at the same time; now the King was allied with them against the Papacy. Now that the Parliamentary constitution was established in its first stage, it is clear how much the union of the Crown and the Estates in opposition to external influence had contributed to it. It was destined however shortly to undergo yet other tests.

NOTES:

^[37] Matthew Paris, *Historia Major* ann. 1253, p. 750.

^[38] In Henr. Knyghton, 2445. According to Matthew Paris they swore, not to let themselves be held back by anything—'quin regnum, in quo sunt nati homines geniales et eorum progenitores, ab ingenerosis et alienigenis emundarent.'

[39] 'Les XXIV ont ordene, ke treis parlemens seient par an,—a ces treis parlemens vendrunt les cunseillers le rei eslus,—ke le commun eslise 12 prodes hommes ke vendrunt as parlemens—pur treter de besoigne le rei et del reaume.' On the explanation of this passage, the 'Report on the dignity of a peer' 102 contains matter wellweighed on all sides.

[40] Letter of Clement IV to Louis IX, in Rainaldus, 1265, p. 167. 'Quid putas—per talia machinamenta quaeri? Nisi ut de regno illo regium nomen aboleatur omnino: nisi ut Christianus populus a devotione matris ecclesiae et observantia fidei orthodoxae avertatur.'

[41] 'Convocatis discretioribus regni tam ex majoribus quam minoribus.' Statute of Marleberge, 1267.

[42] 'Nostrae voluntatis fuit ut de bonis terrae ipsa terra conservaretur.' In Knyghton, ii, 2501.

[43] Statutum de tallagio non concedendo, or Nova additio cartarum; in Hemingburgh, articuli inserti in magna charta.

[44] 'Carta confirmationis regis Edwardi I,' in the collection of charters prefixed to the collection of the Statutes in the 'Statutes of the Realm,' p. 37.

[45] 'Avuns graunte—as Arceevesques etc. e as Countes—e a toute la communauté de la terre que mes pur nule busoigne tieu manere des aydes mises ne prises de nre Roiaume ne prendrums fors ke par commun assent de tout le Roiaume e a commun profist de meismes le Roiaume, sauve les auncienes aydes e prises due e acoustumees.' The Articulus insertus in Magna Charta, according to the other statements, runs, 'nullum Tallagium vel auxilium imponatur seu levetur sine voluntate atque assensu communi Archiepiscoporum Episcoporum et aliorum liberorum hominum in regno nostro.'

[46] Hemingburgh: eo quod confirmaverat eas in terra aliena.

[47] Matthew of Westminster, 433. 'Procrastinatis quampluribus diebus demum videns rex quod non desisterent ab inceptis nec adquiescerent sibi in necessitatibus suis, respondit se esse paratum concedere et ratificare petita.'

[48] At Lincoln, 21 Feb. 1301. In Rymer, Rainaldus, Spondanus.

[49] Report 183; Hallam, Additional Notes 332.

[50] Revocatio novarum ordinationum, 1323, 29 May, Statutes of the Realm I. 189, 'les choses, qui serount à establir—soient tretées accordees et establies en parlements par notre Sr. le Roi et par lassent des Prelats Countes et Barouns et la communalte du roialme.'

[51] Speech of W. Shreshall 1351, Parliamentary History (1762) i. 295.

[52] We know the letter of the Duke of Guelders, in which he praised equally 'lanæ commoda,—divitias in comparatione ad alios reges centuplas,' and the 'probitas militaris, arcuum asperitas,' in Twysden ii. 2739.

[53] Report 324.

[54] 'Est en volonté de faire procès devers le roy et son roialme pur le dit service et cens recoverir.'

[55] 'Qu'ils resisteront et contre esteront ove toute leur puissance.' Edw Coke first published the document, Institutes iv. 13. In Urban V's letter to Edward in Rainaldus 1365, 13, the demand is not so clearly expressed, but mention is made in it of the Nuncio's overtures; it is to these that the resolution of the Parliament referred.

CHAPTER V.

DEPOSITION OF RICHARD II. THE HOUSE OF LANCASTER.

England did not long maintain herself in the dominant position she then occupied; the plan of extending her rule into Spain proved ruinous to the Prince of Wales. Not merely was his protégé overpowered by the French 'Free Companies,' which had gathered round his opponent: a Castilian war-fleet succeeded in destroying the English one in sight of the harbour of Rochelle. On this, their natural inclination towards the King of France awoke in the nobles and towns of South France; without great battles, merely by the revolt of vassals tired of his rule, Edward III again lost all the territories conquered with such great glory, except a few coast towns. Then a gloom settled down around the aged conqueror. He saw his eldest son, who, though obliged to quit France, in England enjoyed the fullest confidence and had every prospect of a great future, sicken away and die. And he too experienced, what befalls so many others, that misfortune abroad raised him up opponents at home. In the increasing weakness of old age, which gave rise to many well-grounded grievances, he could not maintain the independence of the royal power, with the re-establishment of which he had begun his reign. He was forced to receive into his Council men whom he did not like. He was still able to effect thus much, that the succession to the kingdom came to the son of the Prince of Wales, Richard II. But would he, a boy of eleven, be able to take the helm of the proud ship? Men saw factions arise that grouped themselves round the King's uncles, who were not fully disposed to defend his authority.

The great question for English history now was, whether the Parliamentary constitution, whilst it limited the King's prerogative, would also give him security. For the Commons had been at last admitted into the King's Council chiefly in order that they might withstand the violence of the factions. The situation however was not without its complications, for with the political movement one of yet wider aim was connected.

When the kingdom was at the very height of its power there arose in a college at Oxford the man who began that contest against the Papal supremacy which has never since ceased. John Wiclif attached himself first of all to the political movements of his time. One of his earliest writings was directed against the feudal supremacy of the Popes over England. He supported the Parliament's complaints of Romish Provisions and exactions of money, with great learning and at great length. Had his activity confined itself to these subjects, he would be hardly more remembered than perhaps Marsilius of Padua. What gave him quite a special significance was the fact that he brought into clear view the contradiction between the ruling form of the Church and the original documents of the Faith. From the claim of the Popes to be Christ's representatives, he drew the conclusion that they ought also to observe the Gospel which comes from the God-Man, follow His example, and give up their worldly power.^[56] The leading Church dogma, that most closely connected with the hierarchic system, the dogma of Transubstantiation, he attacked as being one which equally contradicted Scripture and Reason. He urges his proofs with the acuteness of a skilful Schoolman, but throughout he shows a deep inner religious feeling. We may distinguish in him two separate tendencies. His appeal to Scripture, his attempt to make it accessible to the people, his treatment of dogmatic and religious questions which he will allow to be decided only by Revelation,—all this makes him an evangelic man, one of the chief forerunners of the German Reformation. But, as he himself felt, his strength lay rather in destruction than in construction. In asserting the doctrine that the title to office depends for its validity on personal worth, that even the rule of temporal lords rests on the favour in which they stand with God, and in raising subjects to be the judges over their oppressive masters, he entered on a path like that which the Taborites and the leaders of the peasants in Germany afterwards took.^[57]

And these were precisely the doctrines for which his scholars, who traversed the land to make them known, found a well prepared soil in the people of England. How could the rise of popular elements fail to call forth a kindred effort also among the lower classes? The belief arose that Nature intended all men to be equal. The country people spoke of their primitive rights, traces of which were found in the memorials of the Conqueror's times, and which had then been taken from them. When now, instead of

seeing these respected, they were subjected to new impositions, and this with harshness and insolence, they rose in open revolt. So overpowering was the attack which they directed against the capital and the King's palace, that Richard II found himself forced to grant them a charter which secured them personal freedom. Had they contented themselves with this, they might have done best for themselves and perhaps for the crown, but when they demanded yet further and more extreme concessions, they roused against themselves the whole power of the organised State, for which they were as yet no match. The Mayor of London himself struck down with his dagger the leader of the bands, Wat Tyler, because he seemed to threaten the King; the Bishop of Norwich was not hindered by his spiritual character from levelling his lance against the insurgents;^[58] after which he accompanied the leaders, who were taken and condemned to death, to the scaffold, with words of comfort; in other places the lay nobles did their best. When therefore in the next Parliament the King brought forward the proposal to declare the serfs free by a united resolution,—for the previous charter that had been wrung from him was considered invalid,—both Lords and Commons rejected it, as tending to disinherit them and prove pernicious to the kingdom.

It is not to be supposed that a movement like this, which the lower class of citizens in the towns had joined, just as in the German peasant war, and which was mainly directed against the landed gentry, could be stifled by one defeat: it continued to ferment uninterruptedly in men's hearts.

Still less did the condemnation passed by Convocation on the deviations from the teaching of the Church effect their suppression. On the basis of Wiclif's doctrines grew up the sect of the Lollards, which condemned the worship of images, pilgrimages, and other external church ceremonies, designated the union of judicial authority with spiritual office as unnatural—'hermaphroditism'—rejected excommunication with abhorrence, and made secret and systematic war against the whole Church establishment.

But further besides these feuds there was one within the State system itself which now became most conspicuous.

In the midst of the general ferment how necessary had a strong and resolute hand become! But Richard's government had shown itself somewhat weak;

by many it was suspected of having meant to turn the disturbances to its own advantage. The commons, who mainly represented the lower gentry and the upper citizens, abandoned him, and attached themselves to the nobles, just as these revived their old jealousy against the crown. For the almost inevitable result of success in suppressing a popular agitation is to heighten the self-confidence of an aristocracy. Impatient at being excluded from all share in the government, and strengthened in his ambition by the military disasters of the last years, the youngest of Richard's uncles, Thomas of Gloucester, put himself at the head of the grandees, whose plans the commons, instead of opposing, now on the contrary adopted as their own. The great questions arose, which have so often since then convulsed the European world, as to the relation of a Parliamentary assembly to the Monarchy, and their respective rights.

The first demand of the English Parliament was that the ministers of State should be named by it, or at least should be responsible to it. Much as this demand itself implies, yet even more extensive views were behind. The Peers told the King plainly that if he would not rule according to the common law and with their advice, it was competent for them to depose him, with consent of the people, and to raise another of the royal house to the throne;^[59] they threatened him openly with the fate of Edward II.

Richard could do nothing but submit. Eleven lords were appointed to restore order in the country; Richard had to swear to carry out all they should ordain (November 1386). There remained but one way by which to oppose this open violence: the King collected the chief judges at Nottingham, and laid the question before them, whether the Commission now forced upon him did not contravene the royal power and his prerogative. The judges were far from so interpreting the Constitution of England as to allow that the King is unconditionally bound by the commands of Parliament. They affirmed under their hand and seal that the appointment of that Commission against the King's will contravened his legal prerogative; those by whom he had been forced to accept it, and who had revived the recollection of the statute against Edward II, they declared to be guilty of high treason. But Parliament itself saw in this sentence not a judgment but an intolerable outrage. At its next sitting it summoned the judges before its tribunal, and in its turn declared them to be themselves guilty of high treason. Chief Justice Tresilian died a shameful death at

Tyburn. The King lived to find yet harsher laws laid upon him: his uncle Gloucester was more powerful than he was himself.

He was not however disposed to bear this yoke for ever. He first freed himself from the war with France, which tied his hands; by his marriage with Charles VI's young daughter he sought to win that king over as an ally on his own side; at home too he gained himself friends; when all was prepared, he struck a sudden blow (July 1397), which no one would have expected from him. He removed his leading opponents (above all his uncle Gloucester, and Arundel Archbishop of Canterbury), banished them or threw them into prison: then he succeeded in getting together a Parliament in which his partisans had the upper hand. It moreover completely adopted the ideas of the judges as to the Constitution; it revoked the statutes which had been forced on the King,^[60] and gave effect to the sentence of Nottingham. By making the King a very considerable grant for his lifetime, it freed him from the necessity of summoning it anew; he rose at once to a high pitch of self-confidence: he was believed to have said that the laws of England consisted in his word of mouth.

In England, just as in France at the same epoch, political opinions and parties ebbed and flowed in ceaseless antagonism. Richard's success was only momentary. He too, like so many of his ancestors, had incurred a grievous suspicion; the crime laid to his charge was that his uncle, who died in prison, had been murdered there by his command. Besides his absolute rule was not free from arbitrary acts of many kinds; among the great nobles each trembled for his own safety; the clergy, never on good terms with Richard, were impatient at being deprived of their Primate, who was to them 'the tower in the protecting bulwark of the Church.' In the capital too men were against a rule which seemed to put an end to popular influence; it needed only the return of an exile, the young Henry of Lancaster (whom the King would not allow to take possession of his inheritance by deputy, and who in conformity with the feeling of the time broke his ban to do himself right); all men then deserted the King; the nobles could now think of carrying out the threat which they had once hurled against him.

Richard was compelled to call a Parliament, and at the moment it met to pronounce his own abdication. The Parliament was not contented with

accepting this; it wished to put an end to all doubt for the future, and to establish its own right for ever.

A long list of articles was drawn up, from which it was concluded that the King had broken his coronation oath and forfeited his crown; the assembled Estates, when severally and conjointly consulted, held them sufficient to justify them in proceeding to the King's deposition. They named Proctors, two for the clergy, two for the high nobility—one for the earls and dukes, the other for the barons and bannerets, two for the knights and commons—one for the Northern, the other for the Southern counties. They sat as a court of justice before the vacant throne, with the Chief Justice in their midst: then the first spiritual commissioner, the Bishop of S. Asaph, rose, and in the place and name and under the authority of the Estates of the realm announced the sentence of deposition against the late King, and forbade all men to receive any further commands from him. Some opposition was raised; it is said that the Bishop of Carlisle very expressly denied the right of subjects to sit in judgment on their hereditary sovereign;^[61] but how could this have had any effect against the Parliament's claim which had been formulated so long?

As the crown was now regarded as vacant, Henry of Lancaster arose,—in the name of God, as he said, whilst he made the sign of the cross on his forehead and breast,—to claim it for himself, in virtue of his birth and the right which accrued to him through God and the help of his friends. It was not properly speaking an election that now took place: the spiritual and lay lords, as well as the other members of the Parliament, were asked what their opinion of his claim was: the answer of all was that the Duke should be their King. When, conducted by the two archbishops, he ascended the vacant throne, he was greeted with the joyous acclaim of those assembled. The Archbishop of Canterbury made a speech full of unction, the drift of which was, that henceforth it would not be a child, such as the late sovereign had been, self-willed and void of understanding, but a Man that would rule over them, in the full maturity of his understanding, and resolved to do not so much his own will as the will of God.^[62]

Thus did the spiritual and lay nobility, in and with the Parliament, make good their claim to dispose of the crown. They went to work against Richard II with less reserve than against Edward II. In the latter case the

Queen had taken part in the movement; they had set the son in his father's stead. But this time they did not wait for the actual consummation of the King's marriage; they raised a prince to the throne who had openly opposed him in the field, and was not even the next in succession. For there were still the descendants of an elder brother left, who according to English usage had a prior right. The Parliament held itself competent to settle on its own authority even the succession to the crown. It enacted that it should belong to the King's eldest son, and after him to his male issue, and on their failure to his brothers and their issue. The proposal formally to exclude succession in the female line did not pass; but for a long while to come the actual practice had that effect.

Besides the motives involved in the extension of the Power of the Estates in and for itself there was yet another reason for such a proceeding. And this arose out of the growth, and increasing urgency, of the religious divisions. The Lollards preached, and taught in schools, according to their views: in the year 1396 in a petition to Parliament they traced all the moral evils and defects of the world to the fact that the clergy were endowed with worldly goods, and showed the advantage which would arise from the application of these to the service of the state and the prosecution of war.^[63] They seem to have flattered themselves that by this they would win over the lay lords, but they were completely mistaken. For these remarked on the contrary that their own property had no better legal foundation than that of the clergy,^[64] and only attached themselves to the rights of the Church all the more zealously.

That which would have been impossible under Richard II's vacillating government, the first Lancaster now undertook: in full agreement with the Estates he a few days after his accession announced to Convocation that he purposed to destroy heretics and heresies to the best of his power.^[65] In the next Parliament a statute was drawn up in which relapsed heretics were condemned to the flames. And still more remarkable than this mode of punishment, which was that of the Church-law, is the regulation of the procedure in this statute. In former times the sentence had been pronounced by the archbishop and the collective clergy of the province, and the King's consent had to be asked before it was executed. The decision was now committed to the bishop and his commissary, and the sheriff was instructed to inflict the punishment without further appeal, and to commit the guilty to

the fire on the high grounds in the country, that terror might strike all the bystanders. It is clear how much the power of the bishops was thus extended. Soon after, on the proposal of the lay lords, at whose head the Prince of Wales is named, a further statute passed, in which to spread the rumour that King Richard was yet alive, and to teach that the prelates ought to be deprived of their worldly goods, are treated as offences of equal magnitude and threatened with a similar punishment; the object being alike in both,—to raise a tumult. And in fact, when Henry V himself had ascended the throne, an outbreak did occur, in which these causes co-operated. The Lollards were strengthened in their resistance to the government of the house of Lancaster by the rumour that their rightful King was yet alive. Henry V was obliged to crush them in open battle, and then force them to remain quiet by a new statute, which enacted the confiscation of their goods as well.^[66] His alliance and friendship with the Emperor Sigismund was based on the fact, that he regarded the Hussites as only the successors of the Lollards.

This orthodox tendency was now moreover combined with a strict Parliamentary government. Under the Lancasters there is no complaint as to illegal taxes; they allowed the moneys voted by the Parliament to be paid over to treasurers named by itself and accountable to it; that which earlier Kings had always rejected as an affront, the claim of Parliament to exercise a sort of supervision over the King's household, the Lancasters admitted; the royal officers were bound by oath to observe the statutes and the common law; the prerogative, hitherto exercised by the Kings, of softening the severity of the statutes by proclamations contravening their purpose was expressly abolished.

The Lancasters owed their rise to their alliance with the clergy and the Parliament: a fact which determined the character and manner of their government. The most manifold results might be expected, even beyond the borders of England, from their having by this very alliance won for themselves a great European position.

Nowhere was greater interest taken in Richard's fate than at the French court. Louis Duke of Orleans, whose voice was generally decisive there, once challenged the first Lancaster to a duel, and when he refused it pressed him hard with war. That Owen Glendower could once more maintain

himself as Prince in Wales was entirely due to his French auxiliaries. That we find Henry IV more secure of his throne in his later years than in his earlier is a phenomenon the explanation of which we seek in vain in English affairs alone: it results from the fact that his powerful foe, Louis of Orleans, was murdered in the year 1407 at the instigation of John Duke of Burgundy, and that then the quarrel of the two parties, which divided France, burst out with increased violence, and remained long undecided. From the French there was no longer anything to fear: they emulously sought the alliance of the highest power in England; there even arose circumstances under which the Lancasters could think of renewing the claims of Edward III, from whom they too were descended.

At the time that Henry V ascended the English throne, the Orleanists had again gained the preponderance in France: they unfurled the Oriflamme against the Duke of Burgundy, who was now in fact hard pressed. Henry negotiated with them both. But while the Orleanists made difficulties about granting him the independent possession of the old English provinces, Burgundy declared himself ready to acknowledge him as King.^[67] The common interests moreover of home politics allied him with this house.

Henry could reckon on the sympathies of a part of the population of France, when he led the power of England across the sea. A successful battle in which he destroyed the flower of the French nobility gave him an undoubted superiority. The vengeance which the Orleanists wreaked even under these circumstances on the Duke of Burgundy, who was now murdered in his turn, brought the Burgundian party over completely to his side, together with the greater part of the nation. Things went so far that Charles VI of France decided to marry his daughter to the victorious Lancaster and to acknowledge him, as his heir after his death, as his representative during his life.

It was a very extraordinary position which Henry V now occupied. The two great kingdoms, each of which by itself has earlier or later claimed to sway the world, were (without being fused into one) to remain united for ever under him and his successors. Philip the Good of Burgundy was bound to him by ties of blood and by hostility to a common foe: as heir of France Henry sat in the Parliament by which the murderers of the last duke, who were also the chief opponents of the new state of things, were prosecuted.

Another promising connexion was opened to him by the marriage of the youngest of his brothers with Jaqueline of Holland and Hainault, who possessed still more extensive hereditary claims. Henry recommended the eldest to Queen Johanna of Naples to be adopted as her son and heir. The King of Castile and the heir of Portugal were descended from his father's sisters. The pedigrees of Southern and Western Europe alike met in the house of Lancaster, the head of which thus seemed to be the common head of all.

In England Henry did not neglect to guard the rights of the National Church; but at the same time no one exerted himself more energetically to close the schism: the solemn condemnation of Wiclif's doctrines by the General Council of Constance served to vouch for his attitude in religious matters: the English Church obtained in it a place among the great National Churches.

Henry V found himself in the advantageous position of a potentate raised to power by a usurpation for which he was not however personally responsible. He could spare and reinstate Richard II's memory, as much as in him lay, though he owed the crown to his overthrow. That he furthered and advanced also in France the municipal and parliamentary interests, which were his mainstay in England, procured him the obedience which was there paid him, and a European influence. In his moral character Henry ranks above most of the Plantagenets. He had no favourites and let no unjust acts be imputed to him. He was stern towards the great and careful for the common people; at his first word men could tell what they had to expect from him. The French were frightened at the keenness of his expression, but they revered his high spirit, his bravery and truthfulness. 'He transacts all his affairs himself; he considers them well before he undertakes them; he never does anything fruitlessly. He is free from excesses, and truthful: he never makes himself too familiar. On his face are visible dignity and supreme power.'^[68] He possessed in full measure the bold impulses of his ancestors, their attention to the general affairs of Western Christendom. In the war with the Lollards he was once wounded; that he recovered from his wound was designated as the work of divine Providence, which had destined him to be the conqueror of the Holy Land. He informed himself about its state as it was then constituted under the Mameluke rule: a Chronicle of Jerusalem and a History of Godfrey of

Bouillon were two of the books he loved most to read. And without doubt such an undertaking would have been the true means, if any such means were possible, of uniting more closely, by common undertakings successes and interests, the realms already bound together under one sceptre. The Ottomans had not yet extended themselves in the East with their full force: something might yet have been effected there; for the King of France and England, who was yet young in years, a great future seemed to be at hand.

Sometimes it seems as though fortune were specially making a mock of man's frailty. In this fulness of power and of expectations, Henry V was attacked by a disease which men did not yet know how to cure and to which he succumbed. His heir was a boy, nine months old.

Of the two surviving brothers of the deceased King, the younger ruled England under the already established predominance of the Estates of the Realm, while the elder governed France with an increased participation on the part of the Estates: their efforts could only be directed towards preserving these kingdoms for their nephew Henry VI. We might almost wonder that this succeeded so well for a time: in the long run it was impossible. The feeling of French nationality, which had already met the victor himself with secret warnings, found its most wonderful expression in the Maid who revived in the French their old attachment to their native King and his divine right; the English, when she fell into their hands, with ungenerous hate inflicted on her the punishment of the Lollards: but the Valois King had already gained a firm footing. It was Charles VII who understood how to appease the enmity of Burgundy, and in unison with the great men of his kingdom to give his power a peculiar organisation corresponding to its character, so that he was able to oppose to the English troops better armed than their own, and make the restoration of a firm peace even desirable for them. But this reacted on England in two ways. The government, which was inclined for peace, fell into as bitter a quarrel as any that had hitherto taken place with the national bodies politic, which either did not recognise this necessity, or attributed the disasters incurred to bad management. The man most trusted by the King fell a victim to the public hate. But, besides this, there arose—awakened by these events and in a certain analogy with what happened in France—the recollection of the rights which had been set aside by the accession of the house of Lancaster. Their representative, Richard Duke of York, had hitherto kept quiet; for he

was fully convinced that a right cannot perish merely because it lies dormant. Cautiously and step by step, while letting others run the first risk, he at last came forward openly with his claim to the crown. Great was the astonishment of Henry VI, who as far as his memory reached had been regarded as King, to find his right to the highest dignity doubted and denied. But such was now the case. The nation was split into two parties, one of which held fast to the monarchy established by the Parliament, while the other wished to recur to the principle of legitimate succession then violated. Not that political conviction was the leading motive for their quarrel. First of all we find that the opponents of the government—though themselves of Parliamentary views—rallied round the banners of the hitherto forgotten right of birth. Every man fought, less for the prince whose device he bore, the red or the white rose, than for his own share in the enjoyment of political power. On both sides there arose chiefs of almost independent power, who clad their partisans in their own colours, at whose call those partisans were ready any moment to take arms: they appointed the sheriffs in the counties and were lords of the land. But when blood had once been shed, no reconciliation of the parties was possible. Ha, cried the victor to the man who begged for mercy, thy father slew mine, thou must die by my hand. In vain did men turn to the judges: for the statutes contradicted each other, and they could no longer decide where the right lay. From the Parliaments no solution of these questions could be expected; each served the victorious party, whose summons it obeyed, and condemned its opponent. As the resources on each side were tolerably equal, even the battles were not decisive: the result depended less upon real superiority than on accidental desertions or accessions, and most largely on foreign help. After the English had failed, during the antagonism of Valois and Burgundy, in establishing their supremacy on the Continent, the quarrel—quieted for a moment—which broke out again between Louis XI and Charles the Bold in the most violent manner, reacted on them with all the more vehemence. King Louis would not endure that a good understanding should exist between Edward IV and Duke Charles, to whom Edward had married his sister: he drew the man who had hitherto done the most for the Yorkist interests, the Earl of Warwick, over to his own side; and scarcely had the latter appeared in England when Edward IV was forced to fly and Henry VI was reinstated. Louis had prepared church-thanksgivings to God for having given the English a king of the blood of France and a friend to

that country. But meanwhile Edward was helped by Charles the Bold, to whom he had fled, though not openly in arms, yet with ships which he hired for him, with considerable sums of money, and even with troops which he allowed to join him.^[69] To these, his Flemish and Easterling troops, it was chiefly attributed that Edward gained the upper hand in the field and recovered his throne. But what a state of things was this! The glorious crown of the Plantagenets, who a little while before strove for the supremacy of the world, was now—stained with blood and powerless as it was—tossed to and fro between the rival parties.

NOTES:

[56] 'I take it as a wholesome counsell, that the Pope leeve his worldly lordship to worldly lords as Christ gafe him and move all his clerks to do so.' Wicklege's Bileve, in Collier i. Rec. 47.

[57] 'Quod nullus est dominus civilis, nullus est episcopus, nullus est praelatus, dum est in mortali peccato—quod domini temporales possunt auferre bona temporalia ab ecclesia habitualiter delinquente vel quod populares possunt ad eorum arbitrium dominos delinquentes corrigere.'

[58] Walsingham: 'Antistes belliger velut aper frendens dentibus.'

[59] 'Si rex ex maligno consilio—se alienaverit a populo suo nec voluent per jura regni et statuta et laudabiles ordinationes cum salubri consilio dominorum et procorum regni gubernare et regulari—extunc licitum est eis cum communi assensu et consensu populi regem ipsum de regali solio abrogare et propinquiorem aliquem de stirpe regia loco ejus sublimare.' In Knyghton ii. 2683.

[60] 'Comme chose fait traitoïrousement et encontre sa regalie, sa coronne et sa dignité—le roy de lassent de tous les s^{rs} et cōes ad ordeine et establi que null tiel commission ne autre sembleable jammes ne soit purchacez pursue ne faite en temps advenir.' Statutes of the Realm II. 98.

[61] Hayward, Life of King Henry IV, gives a detailed copy of this speech, which however can possess no more claim to authenticity than the words that Shakespeare puts into the Bishop's mouth.

[62] Le record et procès de la renonciation du roi Richard avec la deposition. Twysden, ii. 2743.

[63] Conclusiones Lollardorum porrectae pleno parlamento. Wilkins iii. 222. From the document in 229 we see that these doctrines had penetrated into Oxford.

[64] The temporal possessions with which the prelates are as rightly endowed as it has been or might be best advised by the laws and customs of our kingdom;

and of which they are as surely possessed as the lords temporal are of their inheritances.

[65] Convocatio 6 die Oct. 1389 ... *modus procedendi contra haereticos*. Wilkins iii. 238, 254.

[66] He imputes to them, 'l'entent de adnuller la foie chretienne auxi a destruer le roi mesme et tous maners estates dicell royaume et auxi toute politie et les leies de la terre.'

[67] Treaty of 23rd May 1414. Certainly Duke John in September 1414 concluded the treaty of Arras which is based on the assumption of his having no understanding with England; but he never ratified it.

[68] 'De diligence portoit le gonphanon de ses besoignes.' Chastellain, *Chronique du duc Philippe*, ch. 98.

[69] Chastellain, *Chronique des derniers ducs de Bourgogne*, ch 191. 'Le duc cognoissoit bien, que ceste mutacion en Angleterre étoit pratiquée pour le desfaire et non pour autre fin.'

BOOK II.

ATTEMPTS TO CONSOLIDATE THE KINGDOM INDEPENDENTLY IN ITS TEMPORAL AND SPIRITUAL RELATIONS.

We may regard it as the chief result of the Norman-Plantagenet rule, that England became completely a member of the Romano-German family of nations which formed the Western world. In however many ways the invading nobility had mingled with the native houses, it yet held fast to its ancient language; even now it is part of the ambition of the great families to trace their pedigree from the Conquerors. Attempts had been made, sometimes of a more political, sometimes of a more doctrinal nature, to break loose from the hierarchy, which prevailed throughout these nations; but they had only increased its strength; the native clergy saw that its safety lay in the strictest adherence to the maxims of the Universal Church. Similarly the character of the Estates in England was akin to that of those in North France and especially in the Netherlands; on this rests the sympathy which the enterprises of Edward III and Henry V met with; for it was indeed the feeling of these centuries, that the members of any one of the three Estates felt themselves quite as closely bound to the members of the same Estate in other lands as to their own countrymen of the other Estates. There was but one Church, one Science, one Art in Europe: one and the same mental horizon enclosed the different peoples: a romance and a poetry varying in form yet of closely kindred nature was the common possession of all. The common life of Europe flowed also in the veins of England: an indestructible foundation for culture and progressive civilisation was laid. But we saw to what point matters had come notwithstanding, as regards the durability of its internal system and its power. The Plantagenets had extended the rule of England over Scotland and Ireland: in the latter it still subsisted, but only within the narrow limits of the Border Pale; in the former it was altogether overthrown. The best result that had been effected in home politics, the attempt to unite the Powers of the country in Parliament had, after a short and brilliant success, led to the deepest disorder by disregarding the rights of birth. The degraded crown above all

had thus become the prize of battle for Pretenders allied with France or Burgundy. But it could not possibly remain thus. The time was come to give the English realm an independent position and internal order corresponding at once to its insular situation and to the degree of culture it had attained.

The first who attempted this with some success was Edward IV, of the house of York, who in the war of the Roses had remained master of the field.

But everywhere there began once more an era of autocratic princes.

CHAPTER I.

RE-ESTABLISHMENT OF THE SUPREME POWER.

Edward IV was a most brilliant figure, the handsomest man of his time, at least among the sovereigns, so that the impression he thus made was actually a power in politics; we find him incessantly entangled in love affairs: he was fond of music and enjoyment of all kinds, the pleasures of the table, the uproar of riotous company: his debauched habits are thought to have shortened his life, and many a disaster sprung from his carelessness; but he had also Sardanapalus' nature in him: with quickly awakening activity he always rose again out of his disasters; in his battles he appeared the last, but he fought perhaps the best; and he won them all. In the history of European Monarchy he is not unworthy to be ranked by the side of Ferdinand the Catholic, Charles the Bold, Louis XI, and some others who regained prestige for their dignity by the energy of their personal character.

In itself we must rate it as important that he made good the birthright of the house of York, independent as it was of the maxims of Parliament, or rather contradictory to them, and maintained the throne. He deemed himself the direct successor of Richard II; the three kings who had since worn the crown by virtue of Parliamentary enactments were regarded by him as usurpers. We have Fortescue's contemporary treatise in praise of the laws of England, which (written for a prince who never came to the throne) contains the idea of Parliamentary right which the house of Lancaster upheld: but Edward IV did not so apprehend it. He allowed the lawfulness of his accession to be recognised by Parliament, because this was of use to him: but otherwise he paid little regard to its established rights. We find under him for five years no meeting of Parliament; then a Parliament that had met was prorogued some four or five times without completing any business, till it at last agreed to raise the customs duties, included under the names of Tonnage and Poundage; a revenue which being voted to the Kings for life (and this came gradually to be regarded as a mere formality) gave their government a strong financial basis. Other Parliaments repaid their

summons with considerable grants, with large and full subsidies: yet Edward IV was not content even with these. Under him began the practice, by which the wealthy were drawn into contributions for his service in proportion to their property, of which the King knew how to obtain accurate information; these contributions were called Benevolences because they were paid under the form of personal freewill offerings, though none dared to refuse them.^[70] we may compare the imposts which in the Italian republics the dominant parties were wont to inflict on their opponents. Though holding Church views in other points, and at any rate a persecutor of the Lollards, he did not however allow the clergy to enter on their temporalities without heavy payments: he created monopolies in the case of some especially profitable articles of trade. In short, he neglected no means to render the administration of the supreme power independent of the money-grants of Parliament. He made room for the royal prerogative as understood by the old kings, as well as for the right of birth.

But yet he had not established a secure position, since the party of the enemy was still very powerful, and after his early death a quarrel broke out in his own house which could not fail to destroy it.

To the characteristic traits of the Plantagenets, their world-wide views, their chivalry abroad, their versatility at home, the ceaseless war they waged with each other and with others for power, their inextinguishable love of rule, belongs also the way in which those who held power rid themselves of foes within their own family. As formerly King John had murdered in prison Arthur the lawful heir to the throne, so Richard II imprisoned and murdered his uncle Thomas of Gloucester, who was dangerous to himself. Richard II, like Edward II, died by the hand of a relative who had wrested the crown from him; of the details of his death we have not even a legend left. Another Gloucester, who had for many years guarded the crown for the infant Henry VI, was, at the very moment when he might become dangerous to the new government, found dead in his bed. So Henry VI perished in the Tower the day before Edward IV made his entry into London. Edward IV preferred to have his brother Clarence, though already under sentence of death, privately killed. But the most atrocious murder of all was that of the two infant sons of Edward IV himself; they were both murdered at once, as was fully believed, at the behest of their uncle Richard III, who had put himself in possession of the throne. I know not whether the actual character of Richard

answered to that type of inborn wickedness which commits crime because it wills it as crime, such as following the hints of the Chronicle^[71] a great poet has drawn for us in imperishable traits, and linked with his name: or whether it was not rather the love of power, that animated the whole family, which in Richard III grew step by step into a passion that made him forget all laws human and divine: enough, he did such deeds that the world's abhorrence weighs justly on him.

But it was owing to the internal discord of the ruling family that throughout the course of its history a path was made for political and national development, and so it was now: these crimes opened a way out of the disorders of the time. For as Richard, while continuing to persecute the house of Lancaster, struck still harder blows against the chief members of that of York, he gave occasion to the principal persons of both parties, who were equally threatened, and had the same interest in opposing the usurper, to draw nearer to each other.

The widowed Queen Elizabeth, who was lingering out her life in a sanctuary, was brought into secret connexion through the mediation of distinguished friends with the mother of the man who now came forward as head of the Lancasters, Henry Earl of Richmond, and it was determined that Henry and Elizabeth's daughter, in whom the claims of both lines were united, should marry each other, a prospect which might well prepare the way for the immediate combination of the two parties. Henry of Richmond at their head was then to confront the usurper and chase him from the throne. The fugitives scattered about in the sanctuaries and churches called him to be their captain.^[72]

The question arises—it has been often answered in the negative—whether Henry was rightfully a Lancaster, and whether he had any well-grounded claims on the English crown. He loved to derive his family from the hero of the Welsh, the fabulous Arthur. His grandfather, Owen Tudor, a Welshman, was brought into connexion with the royal house by his marriage with Henry V's widow, Catharine of France: for unions of royal ladies with distinguished gentlemen were then not rare. And Owen Tudor of course obtained by this a higher position, but there could be no question of any claim to the crown. This was derived simply from the fact that the son of this marriage, Edmund Tudor Earl of Richmond, married a lady of the

house of Somerset, descended by her father from John of Gaunt, the ancestor of the Lancasters, by his third marriage with Catharine Swynford. It has been said that this marriage, in itself of an irregular nature, was only recognised as legitimate by Richard II on the condition that the issue from it should have no claim to the succession—and so it is in fact stated in the often printed Patent. But the original of the document still exists, and that in two forms, one of which is in the Rolls of Parliament, the other on the Patent Rolls. In the first the limitation is wanting, in the second it exists, but as an interpolation by a later hand. It may be taken as admitted that Richard II in legitimising the marriage did not make this condition, and that it was first inserted by Henry IV (who took offence at the legitimisation of his half-brothers) at the ratification. But the legitimisation once effected could not possibly be limited in a one-sided manner by a later sovereign. I think no objection can be made to the legality of Henry VII's claim, which then passed over to his successors.^[73] The limitation belonged to those proceedings of one-sided caprice by which Henry IV tried to secure for his direct descendants the perpetual possession of the crown. It was not from him, but from his father, the founder of the family, that the Earls of Richmond derived their claim.

Now that the banner of a true Lancaster appeared again in the field, and the discontented Yorkists, ill-treated by Richard, joined him, it might certainly be hoped that the usurper would be overthrown, and that a strong power would emerge from the union of both lines. Yet the issue was even then very doubtful.

As in the earlier civil wars, so now too the help of a foreign power was necessary. With French help the Earl of Richmond led about 2000 men, of which not more than perhaps 800 were English, to Wales;^[74] in his further advance he was joined by proportionately considerable reinforcements; yet he did not number more than 5000 men under his banners, badly clothed and still worse armed, when Richard with his chivalry came upon him in overwhelming numbers. Henry would have been lost, had he not found partisans in Richard's ranks. Even before the engagement the desertion from Richard began: then in the middle of the battle the chief division of his army passed over to Henry. Richard found the death he sought: for he was resolved to be King or die: on the battlefield itself Henry was proclaimed King.

There is no doubt that he owed to his union with the house of York, whose right was then generally regarded as the best, not only his victory, but the joyous recognition also which he experienced afterwards: yet his whole nature revolted against basing his state on this union: he cherished the ambition of ruling only through his own right.

At the first meeting of Parliament, which he did not call till he was fully in possession and crowned King, he was met by a very genuinely English point of law. It arose from the fact that many members of the Lower House had been attainted by the late government. How could they make laws who were themselves beyond the pale of law? Who could cleanse them from the stain that clove to them? This objection could be raised against Henry himself. In this perplexity recourse was had to the judges: and they decided that the possession of the crown supplied all defects, and that the King was already King even without the assent of Parliament.^[75] In the general disorder things had gone so far, that it was necessary to find some power outside the continuity of legal forms, from which they might start afresh. The actual possession of the throne formed this time the living centre round which the legal state could again form itself. By exercising the authority inherent in the possession of the crown, the King could effect the revocation of the sentences that weighed on his partisans and on a large portion of the Parliament. After the legal character of that Assembly had been established, it proceeded to recognise Henry's rights to the crown in the words used for the first of the Lancastrian house.

In the papal bull which ratified Henry's succession, three grounds are assigned for it: the right of war, the undoubted nearest right to the succession, and the recognition by Parliament. On the first the King himself laid great stress: he once designates the issue of the battle as the decision of God between him and his foes. He thus avoided any mention of the marriage with Edward IV's daughter, which he did not complete till he was acknowledged on all sides. The papal bull declared that the crown of England was to be hereditary in Henry's descendants, even if they did not spring from the Yorkist marriage.

We can easily understand this: Henry would not tolerate by his side in the person of his wife a joint ruler of equal, and even better, right than his own; but we can understand also that this proceeding drew on him new enmities.

At the very outset the widowed Queen gave it to be understood that her daughter was rather lowered than raised by the marriage. The whole party of York moreover felt itself contemned and insulted. To the ferment of displeasure and ambition into which it fell must be attributed the fact that a pair of adventurers, who acted the part of genuine descendants of the house of York, Lambert Simnel and Perkin Warbeck, supported from abroad, found the greatest sympathy and recognition in England. The first Henry VII had to meet in open battle, the second he got into his hands only by a great European combination.

But he did not wish to have always to encounter open disturbance. He was entirely of the opinion which his chancellor gave, that enmities of such a sort could not be extinguished by the sword of war, but only by well-planned and stringent laws which would destroy the seed of rebellion, and by institutions strong enough to administer those laws. Above all he found it intolerable that the great men kept numerous dependents attached to them under engagements which were publicly paraded by distinctive badges. The lower courts of justice and the juries did not do the service expected from them in dealing with the transgressions of the law that came before them. Uncertainty as to the supreme authority, and the power which the great party-leaders exercised, filled the weaker, who had to sit in judgment on them, with dread of their sure revenge. To put an end to this disorder Henry VII established the Starchamber. With consent of the Parliament, from which all hostile party-movements were excluded, he gave his Privy Council, which was strengthened by the chief judges, a strong organisation with this end in view. It was to punish all those personal engagements, the exercise of unlawful influence in the choice of sheriffs, all riotous assemblies, lastly to have power to deal with the early symptoms of a tumult before it came to an outbreak, and that under forms which were not usual in the English administration of justice. This powerful instrument in the hands of government might be much abused, but then seemed necessary to keep in check unreconciled enemies and the spirit of faction that was ever surging up again. We see the prevailing state of things from the fact, that the King's councillors themselves, to be secured against acts of violence, passed a special law, which characterised attacks on them as attacks on the King himself. But then, like men who stood in the closest connexion with the King and his State, they used their authority with

unapproachable severity. The internal tranquillity of England has been thought to be mainly due to the erection of this court of justice.^[76]

Since Henry laid so much stress on his being a Lancaster, it might have been expected that he would revive the rights of the Parliament. But in this respect he followed the example of the house of York. He too imposed Benevolences, like Edward IV, and that to a yet greater extent; he made an ordinance that what was voluntarily promised should be exacted with as much strictness as if it were an ordinary tax. Another source of financial gain, which has brought on him still worse reproaches, was his commission against infractions of the law. It was inevitable that in the fluctuation of authority and of the statutes themselves innumerable illegalities should have taken place. And they were still always going on. The King took it especially ill that men omitted to pay the dues which belonged to the crown in right of its feudal superiority. All these negligences and failures were now visited and punished with the severity of the old Norman system, and at the same time with the officiousness of party-men of the day, who saw their own advantage in it. This proceeding pressed very many heavily on private persons and communities, and ruined families, but it filled the King's coffers. One of his maxims was that his laws should not be broken under any circumstances, another that a sovereign who would enjoy consideration must always have money: in this instance both worked together.

If we look at the lists of his receipts we find that they consist, as in other kingdoms, of the crown's revenue proper, which was considerably increased by the escheated possessions of great families which had become extinct, the customs duties settled on him for life, the tenth from the clergy, and the feudal dues. It was estimated that they produced nearly the same revenue as that of the French kings at this time, but it was remarked that the King of England only spent about two-thirds of his income. He did not need a Parliamentary grant, especially as he kept out of dangerous foreign entanglements. In his last thirteen years he never once called a Parliament.

This precisely corresponded to the idea of his government. After all had become doubtful owing to the alternate fluctuations of parties he had established his personal claim by the fortune of arms, and made it the central point of his government. Was he to allow it to be again endangered

by the ceaseless ebb and flow of popular opinion? He founded a supreme court independent of popular agitation, a finance system independent of the grants of a popular assembly.

But he thus found himself under the disadvantage of having to apply compulsion unceasingly: his government bore throughout the bitter and hateful character of a party-government. With untiring jealousy he watched the secret opponents who still looked out for some movement from abroad, as a signal for fresh revolt: he kept diaries of their doings and conduct: it was said he availed himself of the confessional for this purpose: men whose names were from time to time solemnly cursed at S. Paul's on account of past treasons, so that they counted for open enemies, became useful to him as spies. If the decision lay between services received and suspicious conduct, the latter easily weighed down the balance, to the ruin of the victim. William Stanley, who had played the most important part in the battle which decided the fate of the crown, and was regarded as almost the first man in the realm after the King, had at the appearance of Perkin Warbeck (who gave himself out as Edward's younger son, Richard of York) let slip the words, 'he would take his side, if he were the person he gave himself out to be.' He had to atone for these words by his death, since he had intimated a doubt as to the King's lawful right, which might mislead others into sedition. Gradually the movements ceased: the high nobility showed a loyal submission to the King: yet it did not attach itself to him, it let him and his government alone. The King's principle was, to execute the laws most strictly, yet he was not cruel by nature; if men implored his mercy, he was ready to grant it. The contracted position of a sovereign, who maintains his authority with the utmost strictness, does not however exclude a paternal care for the country. Henry clipped his people's wings, to accustom them to obedience, and then was glad when they grew again. We find even that he made out a sketch of how the land should be cultivated so that every man might be able to live. The people did not love him, but it did not exactly hate him either: this was quite enough for Henry VII.

A slight man, somewhat tall, with thin light-coloured hair, whose countenance bore the traces of the storms he had passed through; in his appearance he gave the impression of being a high ecclesiastic rather than a chivalrous King. He was in this almost the exact opposite of Edward IV. He too certainly arranged public festivities and spared no expense to make

them splendid, since his dignity demanded it, but his soul took no pleasure in them, he left them as soon as ever he could; he lived only in business. In his council sat men of mark, sagacious bishops, experienced generals, magistrates learned in the law: he held it to be his duty and his interest to hear their advice. And they were not without influence: one or two were noted as able to restrain his self-seeking will. But the main affairs he kept in his own hands. All that he undertook he conducted with great foresight and as a rule he carried it through. Foreigners regarded him as cunning and deceitful; to his own people his successful prudence seemed to have something supernatural about it. If he had personal passions, he knew how to keep them under; he seemed always calm and sober, sparing of words and yet affable.

He directed almost his chief energies to this object, to keep off all foreign influences from his well-ordered kingdom.

NOTES:

[70] *Historiae Croylandensis Continuatio* II. 'Concessae sunt decimae ac quintodecimae multiplices in coetibus clericorum et laicorum, habentibus in faciendis concessionibus hujusmodi interesse. Praeterea haereditarii ac possessionati omnes de rebus immobilibus suarum possessionum partem libere concedebant. Cumque nec omnia praedicta sufficere visa sunt, inducta est nova et inaudita impositio oneris, ut per benevolentiam quilibet daret id quod vellet, imo verius quod nollet.'

[71] At least Sir Thomas More has not invented the nature and manner of the murder; it is derived from a confession of the persons concerned in it in Henry VII's time. 'Dightonus traditionis hujus principale erat instrumentum' (Bacon 212). Tyrel too seems to have known of it.

[72] 'Videntes, quod si novum conquestionis suae capitaneum invenire non possent brevi de omnibus actum foret.' *Hist. Croyl.* 568.

[73] I take this from Nicolas, *Observations on the state of historical literature*, 1830, p. 178. Hume's objection, that the mother's right came before the son's, is done away with by the fact that men had in general never yet seen reigning Queens.

[74] How the world regarded it then we ascertain from the words of the *Chroniques de Jean Molinet*, ed. Buchon, iii. 151. 'Le Comte de Richmond fut couronne et institué Henri VII, par le confort et puissant subside du roi de France.'

[75] 'A quo tempore Rex coronam assumpserat, fontem sanguinis fuisse expurgatum—ut regi opera parlamentaria non fuisset opus.' So Bacon, *Henricus*

VII. 29.

[76] Edw. Coke: 4 Inst. cap. ix. 'It is the most honourable court, our Parliament excepted, that is in the Christian world.—In the judges of the same are the grandees of the realm: and they judge upon confession or deposition or witness. —This court doth keep all England in quiet.'

CHAPTER II.

CHANGES IN THE CONDITION OF EUROPE.

For the history of the world the decisive event of the epoch was the rapid rise of the French monarchy, which after it had freed itself from the English invasions, became master of all the hitherto separate territories of the great vassals, and lastly even of Brittany, and rapidly began to make its preponderance felt on all sides.

Considered in itself no one would have been more called on to oppose this than the King of England, who even still bore the title of King of France. In fact Henry did once revive his claim on the French crown, on Normandy and Guyenne, and took part in a coalition, which was to have forced Charles VIII to give up Brittany; he crossed to Calais and threatened Boulogne. But he was not in earnest with these comprehensive views in his military enterprise, any more than Edward IV had once been in a similar one. Henry VII was contented when a considerable money payment year by year was secured to him, as it had been to Edward. The English called it a tribute, the French a pension. It was acceptable to the King, and advantageous for his home affairs, just at that moment—1492—to have a sum of money at his free disposal.

And no one could have advised him to attach himself unconditionally to the house of Burgundy. Duke Charles' widow was still alive, who found it unendurable that the house of York, from which she sprang, should be dethroned from its 'triumphant majesty, which shone over the seven nations of the world'—for so she expressed herself. With her the fugitive partisans of the house of York found refuge and protection: by herself and her son-in-law Maximilian of Austria the pretenders were fitted out who contested the crown with Henry VII. Henry could not really wish Brittany to pass to his sworn foe, so that he might be threatened from this quarter also at every moment. For how could he delude himself with the hope that a transitory alliance would prevail over a dynastic antipathy?

At this crisis Ferdinand the Catholic of Spain offered him an alliance and connexion by marriage.

That which induced this sovereign to do so was above all Charles VIII's invasion of Italy, and his conquest of Naples, to which the crown of Aragon had just claims. His plan was to oppose to the mighty consolidated power of France a family alliance with the Austro-Burgundian House, with Portugal, above all with England: he hoped that this would react on Italy, always wont to adhere to the most powerful party. Ferdinand offered the King of England a marriage between his youngest daughter Catharine and the Prince of Wales. In the English Privy Council many objections were made to this; they did not wish to draw the enmity of France on themselves and would have rather seen the prince united to a princess of the house of Bourbon, as was then proposed. It was on Henry VII's own responsibility that the offer was accepted. In September 1496 an agreement was come to about the conditions: on 15th August 1497 the ceremony of betrothal took place in the palace at Woodstock.^[77]

The motive which impelled Henry to his decision is sufficiently clear; it was his relation to Scotland, on which the Spaniards already exercised influence.

There the second pretender, Perkin Warbeck, had found a warm reception from the young and chivalrous James IV: he there married a lady of one of the chief houses: accompanied in person by this sovereign he made an attempt to invade England, which only failed owing to the unfavourable time of the year. The Spanish ambassador Pedro de Ayala then out of regard to Henry secured Perkin's withdrawal from Scotland. But in 1497 the danger revived in a yet greater degree. Warbeck landed in Cornwall where all the inhabitants rallied round him, and a revolt already once suppressed broke out again; at this moment James IV, urged on by the nobles of the land, crossed the border with a splendid army: the co-operation of the two movements might have placed the King in a serious difficulty. Again it was the Spanish ambassador who made James IV determine not to let himself be urged on further; but rather to give him the commission, to adjust his differences with England. Henry VII was set free to suppress the revolt in Cornwall; Perkin Warbeck was taken in his flight.

As the object of the Spaniards was to sever Scotland from her old alliance with France, and that too by means of a family alliance, it was an essential point in their mediation that Henry VII, as he betrothed his son Arthur to a Spanish Infanta, should similarly betroth his daughter Margaret to James IV. The understanding with Spain and that with Scotland went hand in hand.

And on another side too the alliance with Spain was very useful to the King of England. Ferdinand had married his elder daughter Juana to Maximilian's son the Archduke Philip: Philip could not possibly uphold the Yorkist interests so zealously as his father or his grandmother. It was an event of importance that at Whitsuntide 1500 a meeting took place between the English and the Austro-Burgundian Court in the neighbourhood of Calais. Henry applied himself to win over those whom he knew to be his enemies: but at the same time he wished it to be remarked that the Archduke showed him the honour which belongs to a lawful King. If there were still Yorkist partisans in England, who placed their hopes in the house of Burgundy, they would find that they had nothing more to hope from that quarter.

So the Spanish alliance served the prudent and circumspect politician, to secure him from any hostile action on the side of Scotland and the Netherlands. When Catharine in 1501 came to England for her marriage, she was received with additional joy because it was felt that her near connexion with the Burgundian house promised good relations with the Netherlands.^[78]

But never was a more eventful marriage concluded.

We do not know whether the Prince of Wales had really consummated it when he died before he was yet sixteen. But the two fathers were so well satisfied with an alliance which increased the security of the one and gained the other great consideration in the world, that they could not bring themselves to give up the family connexion, by which it was so much strengthened. The thought occurred to Ferdinand—a very unusual one in the rest of the European world, though not indeed in Spain—of marrying the Infanta to Henry, brother of the deceased prince, who was now recognised as Prince of Wales. With his condolence for the loss he united a proposal for the new marriage. In England from the beginning men did not hide from themselves that as regarded the future succession, which ought

not to be contested from any side, the matter had its delicate points. The solution which Henry found shows clearly enough the natural tactics of the old politician. He obtained from the Roman Court a dispensation for the new marriage, which expressly included the case of the first marriage having been consummated. But it almost appears as though he did not fully trust this authorisation. High as the prestige of the supreme Pontiff still stood in the world, there were yet cases in which canonists and theologians doubted as to his dispensing power; men could not possibly have forgotten that, when Richard III wished to marry his niece Elizabeth, a number of doctors disapproved of such a marriage, even if the Pope should sanction it. At any rate Henry VII instigated, or at least did not oppose, his son's solemnly entering a protest, after the marriage ceremony between him and Catharine was performed, against its validity (on the ground of his being too young), the evening before he entered his fifteenth year, in the presence of the Bishop of Winchester, his father's chief Secretary of State. Hence all remained undecided. Catharine lived on in England: her dowry did not need to be given up; the general influence of the political union was saved; it could however be dissolved at any moment, and there was therefore no quarrel on this account with France, whence from time to time proposals proceeded for a marriage in the opposite interest. The prince kept himself quite free, to make use of the dispensation or not.

For the King himself too, whose wife died in 1503, many negotiations were entered into on both sides. The French offered him a lady of the house of Angoulême; he preferred Maximilian's daughter, Margaret of Austria, not indeed for her personal qualities, however praiseworthy they might be; he stipulated after his usual fashion for the surrender of the fugitive Edmund de la Pole, Earl of Suffolk, who was regarded as the chief representative of the house of York, and (as once previously in France) had at that time found a refuge in the Netherlands. Philip, who after the death of his mother-in-law wished to take possession of his wife's kingdoms in Spain, was on his voyage from Flanders driven by a storm on the English coasts: he was Henry's guest at Windsor, Richmond, and London. Here then the King's marriage with Philip's sister was concerted, and with it the surrender of Suffolk. Philip strove long against this: when he yielded, he at least got a promise that Henry VII would spare the life of the earl, whom he accused of treason. He kept his word: the prisoner was not executed till after his death.

Margaret had no inclination to wed herself with the harsh and self-seeking King, who was growing old: he himself, when Philip shortly after his arrival in Castile was snatched away by an early death, formed the idea of marrying his widow Juana, though she was no longer in her right mind. He opened a negociation about it, which he pursued with zeal and apparent earnestness. The Spaniards ascribe to him the project of marrying himself to Ferdinand's elder daughter, and his son to the younger, and making the latter marriage, which he was purposely always putting off, the price of his own. One should hardly ascribe such a folly to the prudent and wise sovereign at his years and with his failing strength. That he made the proposals admits of no doubt: but we must suppose that he wished purposely to oppose to the pressure of the Spaniards for the marriage of his son with the Infanta a demand which they could never grant. For how could they let the King of England share in Juana's immense claims of inheritance? Henry wished neither to break off nor to complete his son's marriage; for the one course would have made Spain hostile, while the second might have produced a quarrel with France. Between these two powers he maintained an independent position, without however mixing in earnest with their affairs, and only with the view of warding off their enmity and linking their interests with his own. His political relations were, as he said, to draw a brazen wall round England, within which he had gradually become complete lord and master. The crown he had won on the battlefield, and maintained as his own in the extremest dangers, he bequeathed to his son as an undoubted possession. The son succeeded the father without opposition, without a rival—a thing that had not happened for centuries. He had only to ascend the throne, in order to take the reins of government into his hand.

Henry VIII and Cardinal Wolsey in their earlier years.

But that the political situation should continue as it was could not be expected. What has not seldom in the history of great kingdoms and states formed a decisive turning point now came to pass: to the father who had founded and maintained his power with foresight and by painful and

continuous labour, succeeded a son full of life and energy, who wished to enjoy its possession, and feeling firm ground under his feet determined to live in a way more after his own mind. Henry VIII too felt the need of being popular, like most princes on their accession: he sacrificed the two chiefs of the fiscal commission, Empson and Dudley, to the universal hate. In general his father's point of view seemed to him too narrow-hearted, his proceedings too cautious.

The first great question which was laid before him concerned his marriage: he decided for it without further delay. No doubt that in this political reasons came chiefly into account. France had been ever growing mightier, it had just then struck down the republic of Venice by a great victory; men thought it would one day or another come into collision with England, and held it prudent to unite themselves beforehand with those who could then be useful as allies. At that time this applied to the Spaniards above all others.^[79] Yet, unless everything deceives us, political considerations only coincided with the prince's inclinations. The Infanta was in the full bloom of her age; the prince, was even younger than herself and against his will had been kept apart from any association with her, might well be impressed by her: besides she had known how to conduct herself with tact and dignity in her difficult position; with a blameless earnest mien she combined gentleness and loveable qualities. The marriage was carried out without delay; in the ceremonies of her husband's coronation Catharine could actually take part as Queen. How fully did these festivities again breathe the ancient character of chivalrous splendour. Men saw the King's champion, with his own herald in front, in full armour, ride into the hall on his war-steed which carried the armorial bearings of England and France; he challenged to single combat any one who would dare to say that Henry VIII was not the true heir of this realm; then he asked the King for a draught of wine, who had it given him in a golden cup: the cup was then his own.

Henry VIII had a double reason for confidence on his throne,—the blood of the house of York also flowed in his veins. In European affairs he was no longer content with keeping off foreign influences, he wished to take part in them like his ancestors with the whole power of England. After the dangers which had been overcome had passed out of the memory of those living, the old delight in war awoke again.

When France now began to encounter resistance in her career of victory, first through Pope Julius II, then through King Ferdinand, Henry did not hesitate to make common cause with them. It marks his disposition in these first years, that he took arms especially because men ought not to allow the supreme Priest of Christendom to be oppressed.^[80] When King Louis and the Emperor Maximilian tried to oppose a Council to the Pope, Henry VIII dissuaded the latter from it with a zeal full of unction. He drew him over in fact to his side: they undertook a combined campaign against France in which they won a battle in the open field, and conquered a great city, Tournay. Aided by the English army Ferdinand the Catholic then possessed himself of Navarre, which was given up to him by the Pope as being taken when it was in league with an enemy of the Church. Louis's other ally, the Scottish King James IV, succumbed to the military strength of North England at Flodden, and Henry might have raised a claim to Scotland, like that of Ferdinand to Navarre: but he preferred, as his sister Margaret became regent there, to strengthen the indirect influence of England over Scotland. On the whole the advantages of his warlike enterprises were for England small, but not unimportant for the general relations of Europe. The predominance of France was broken: a freer position restored to the Papacy. Henry VIII felt himself fortunate in the full weight of the influence which England had won over European affairs.

It was no contradiction of the fundamental ideas of English policy, when Henry VIII again formed a connexion with Louis XII, who was now no longer formidable. He even gave him his younger sister to wife, and concluded a treaty with him, by which he secured himself a money payment, as his predecessors had so often done before. Yet he did not for this break at all with Ferdinand the Catholic, though he had reason to complain of him: rather he concluded a new alliance with him, only in a less close and binding manner. He would not have endured that the successor of Louis XII (who died immediately after his marriage), the youthful and warlike Francis I, after he had possessed himself of Milan, should have also advanced to Naples. For a moment, in consequence of these apprehensions, their relations became less close: but when the alarm proved to be unfounded, the alliance was renewed, and even Tournay restored for a compensation in money. Many personal motives may have contributed to this, but on the whole there was sense and system in such a

policy. The reconquest of Milan did not make the King of France so strong that he would become dangerous, particularly as on the other side the monarchy which had been prepared by the Spanish-Netherlands' connexions now came into existence, and the grandson of Ferdinand and Maximilian united the Spanish kingdoms with Naples and the lordship over the Netherlands.

To this position between the two powers it would have lent new weight and great splendour if the German princes could have been induced to transfer to the King of England the peaceful dignity of a Roman-German Emperor. He bestirred himself about this for a moment, but did not feel it much when it was refused him.

But now since the empire too was added to the possessions in Spain, Italy, and the Netherlands, and hence redoubled jealousy awakened in King Francis I, which held out an immediate prospect of war, the old question came up again before King Henry, which side England was to take between them, and that in a more pressing form than ever. A special complication arose from the fact that yet another person with separate points of view now took part in the politics of the age.

In another point Henry VIII departed from his father's tactics and habits; he no longer sat so regularly with his Privy Council and deliberated with them. He had been persuaded that he would best secure himself against prejudicial results from the discords that reigned among them, by taking affairs more into his own hand. A young ecclesiastic, his Almoner Thomas Wolsey, had then gained the greatest influence over him; he had been introduced alike into business and into intimacy with the King by Fox, Bishop of Winchester, who wished to oppose a more youthful ability to his rivals in the Privy Council. In both relations Wolsey was completely successful. It stood him in good stead that another favourite, Charles Brandon, Duke of Suffolk, who had married Henry's sister (Louis XII's widow), and was the King's comrade in knightly exercises and the external show of court-life, for a long time remained in intimate friendship with him. Wolsey was conversant with the scholastic philosophy, with Saint Thomas Aquinas; but that did not hinder him from cooperating also in the revival of classical studies, which were just coming into notice at Oxford: he had a feeling for the efforts of Art which was then attaining a higher estimation, and an

inborn talent for architecture, to which we owe some wonderful works.^[81] The King too loved building; the present of a skilfully cut jewel could delight him; and he sought honour in defending the scholastic dogmas against Luther's views; in all this Wolsey seconded and supported him, he combined state-business with conversation. He freed the King from the consultations of the Privy Council, in which the intrinsic importance of the matter always weighs more than one's own will; Henry VIII first felt himself to be really King when business was managed by a favourite thoroughly dependent on him, trusted by him, and in fact very capable. Wolsey showed the most many-sided activity and an indefatigable power of work. He presided in court though he was not strong in law; he mastered the department of finance; the King named him Archbishop of York, the Pope Cardinal-Legate, so that the whole control of ecclesiastical matters fell into his hands; foreign affairs were peculiarly his own department. We have a considerable number of his political writings and instructions remaining, which give us an idea of the characteristics of his mind. Very circumstantially and almost wearisomely do they advance—not exactly in a straight line—weighing manifold possibilities, multiplied reasons: they are scholastic in form, in contents sometimes fantastic even to excess, intricate yet acute, flattering to the person to whom they are addressed, but withal filled with a surprising self-consciousness of power and talent. Wolsey is celebrated by Erasmus for his affability, and to a great scholar he may have been accessible, but to others he was not so. When he went to walk in the park of Hampton Court, no one would have dared to come within a long distance of him. When questions were asked him he reserved to himself the option of answering or not. He had a way of giving his opinion so that every man yielded to him; especially as the possession of the King's favour, which he enjoyed, made it impossible to oppose him. If the government was spoken of, he was wont to say, 'the King and I,' or 'we,' or at last 'I.' Just because he was of humble origin, he wished to shine by splendid appearance, costly and rare furniture, unwonted expenditure. Early one morning his appointment as Cardinal arrived, that same morning at mass he displayed the insignia of his new dignity. He required outward tokens of reverence, and insisted on being served on bended knee. He had many other passions, of which the chief was ecclesiastical ambition pervaded by personal vanity.

It gave him high satisfaction that both the great powers emulously courted the favour and friendship of his King, of which he seemed to have the disposal.

In June 1520 took place within the English possessions on French soil the meeting between Henry VIII and Francis I, which is well designated as the Field of the Cloth of Gold. It was properly a great tournament, proclaimed in both nations, to which the chief lords yet once more gathered in all their splendour. With the festivities were mingled negotiations in which the Cardinal of York played the chief part.

Immediately before this in England, and just afterwards on the continent, Henry VIII met Charles V also, with less show but greater intimacy; the negotiations here took the opposite direction.

In 1521, when war had already broken out between the two great powers, the cardinal in his King's name undertook the part of mediator. There in Calais he sat to a certain degree in judgment on the European powers. The plenipotentiaries of both sovereigns laid their cases before him: with apparent zeal and much bustle he tried at least to conclude a truce: he complained once of the Emperor, that he disregarded his good advice though weighty and to the point: on which the latter did come a step nearer him. It was a magnificent position if he understood and maintained it. The more powerful both princes became, the more dangerous to the world their enmity should be, the more need there was of a mediating authority between them. But the purity of intention which is required to carry out such a task is seldom given to men, and did not exist in Wolsey. His ambition suggested plans to him which reached far beyond a peace arbitration.

When he promoted that first interview with Francis I against the will of the great men and of the Queen of England, the Emperor's ambassadors, who were thrown into consternation by it, remarked that the French King must have promised him the Papacy, which however, they add, is rather in the Imperial than in the royal gift. It does not appear that the Emperor went quite so far at once, he only warned the cardinal against the untrustworthy promises of the French, and sought to bring him to the conviction—while making him the most advantageous offers—that he could expect everything

from him.^[82] Clear details he reserved till they met in person; and then he in fact drew him over completely to his side. Under Wolsey's influence King Henry, immediately on the outbreak of the war, gave out his intention of making common cause with the Emperor. For he had not, he said, so little understanding as not to see that the opportunity was thus offered him of carrying out his predecessors' claims and his own, and he wished to use it. Only he preferred not to commence war at once, since he was not yet armed, and since a broader alliance should be first formed. The cardinal hoped to be able to draw the Pope, the Swiss, and the Duke of Savoy, as well as the Kings of Portugal, Denmark, and Hungary, into it. What an impression then it must have made on him, when Pope Leo X, without being pressed, at once allied himself with the Emperor! Wolsey's attempt at mediation—no room for doubt about it is left by the documents that lie before us—was only meant as a means of gaining time. At Calais Wolsey had already given the imperial ambassadors, in the presence of the Papal Nuncio, the most definite assurances as to the resolution of his King to take part in the war against France. Before he returned to England to call the Parliament together, which was to vote the necessary ways and means, he visited the Emperor at Bruges. At the last negotiations, being at times doubtful about his trustworthiness, Charles V held it doubly necessary to bind him by every tie to himself. He then spoke to him of the Papacy, and gave him his word that he would advance him to that dignity.^[83]

The opportunity for this came almost too soon. When Leo X died, just at this moment, Wolsey's hopes rose in stormy impatience. When the Emperor renewed his assurance to him, he demanded of him in plain terms to advance his then victorious troops to Rome, and put down by main force any resistance to the choice proposed. Before anything could be done, before the ambassador whom Henry VIII despatched at once to Italy reached it, the cardinals had already elected, and elected moreover the Emperor's former tutor, Hadrian. But was not this a proof of his irresistible authority? Hadrian's advanced age made it clear that there would be an early vacancy: and to this Wolsey now directed his hopes. He gave assurance that he would administer the Papacy for the sole advantage of the King and the Emperor: he thought then to overpower the French, and after completing this work he already saw himself in spirit directing his weapons to the East, to put an end to the Turkish rule. At his second visit to England

the Emperor renewed his promise at Windsor castle; he spoke of it in his conferences with the King.^[84] Altogether the closest alliance was concluded. The Emperor promised to marry Henry's daughter Mary, assuming that the Pope would grant him the necessary dispensation. Their claims to French territories they would carry out by a combined war. Should a difficulty occur between them, Cardinal Wolsey was fixed on as umpire.

So did the alliance between the houses of Burgundy and Tudor come to pass, the basis of which was to be the annihilation of the power of the Valois, and into which the English minister threw his world-wide ambition. From England also a declaration of war now reached Francis I. Whilst the war in Italy and on the Spanish frontiers made the most successful progress, the English, in 1522 under Howard Earl of Surrey, in 1523 under Brandon Earl of Suffolk, both times in combination with Imperial troops, invaded France on the side of the Netherlands, invasions which, to say the least, very much hampered the French. Movements also manifested themselves within France itself, which awoke hopes in the King that he might make himself master of the French crown as easily as his father had once done of the English. Leo X had already been persuaded to absolve the subjects of Francis I from their oaths to him. It was in connexion with this that the second man in France, the Constable of Bourbon, slighted in his station, and endangered in his possessions, resolved to help himself by revolting from Francis I. He wished then to recognise no other King in France but Henry VIII: at a solemn moment, after receiving the sacrament, he communicated to the English ambassador, who was with him, his resolution to set the French crown on King Henry's head: he reckoned on a numerous party declaring for him. And in the autumn of 1523 it looked as if this project would be accomplished. Suffolk and Egmont pressed on to Montdidier without meeting with any resistance: it was thought that the Netherland and English forces would soon occupy the capital, and give a new form to the realm. Pope Hadrian was just dead at Rome; would not the united efforts of the Emperor and the King of England succeed, by their influence on the conclave, especially now that they were victorious, in really raising Wolsey to the tiara?

This however did not happen. In Rome not Wolsey but Julius Medici was elected Pope; the combined Netherland and English troops retreated from Montdidier; Bourbon saw himself discovered and had to fly, no one

declared for him. This last is doubtless to be ascribed to the vigilance and good conduct of King Francis, but in the retreat of the troops and in the election of the Pope other causes were at work. In the conclave Charles V certainly did not act with as much energy for Wolsey as the latter expected: Wolsey never forgave him. But he too has been accused of having basely abused the confidence of the two sovereigns: he had kept up friendly connexions all along with Francis I and his mother, and they likewise had given him pensions and presents: he had purposely supported the Earl of Suffolk so ill that he was forced to retreat.^[85] Of all the complaints raised against him, not so much before the world as among those who were behind the scenes, this was exactly the most hateful and perhaps the most effectual.

In 1524 the English took no active part in the war. Not till February 1525, when the German and Spanish troops had won the great victory of Pavia and King Francis had fallen captive into the Emperor's hands, did their ambitious projects and thoughts of war reawaken.

Henry VIII reminded the Emperor of his previous promises, and invited him to make a joint attack on France itself from both sides: they would join hands in Paris; Henry VIII should then be crowned King of France, but resign to the Emperor not merely Burgundy but also Provence and Languedoc, and cede to the Duke of Bourbon his old possessions and Dauphiné. The motive he alleges is very extraordinary: the Emperor would marry his daughter and heiress, and would at some future time inherit England and France also and then be monarch of the world.^[86] Henry declares himself ready to press on with the utmost zeal, provided he can do it with some security, and himself undertake the conduct of the war in the Netherlands and the support of Bourbon. The letter is from Wolsey, full of copious and pressing conclusions; but should not the far-reaching nature of its contents have been a proof even to him that it could never be taken in earnest?

Charles V could not possibly enter into the plan. He had lent it a hearing as long as it lay far away, but when it came actually close to view, it was very startling for him. The union of the crowns of France and England on the head of Henry VIII would in itself have deranged all European relations, above all it would have raised that untrustworthy man, who was still all powerful in his Council, to a most inconvenient height of power. The

Spanish kingdoms too were pressing for the settlement of their succession. He was in the full maturity of manly youth: he could not wait for Mary of England who had barely completed her tenth year: he resolved to break off this connexion, and give his hand to a Portuguese princess, who was nearly of his own age.

It could not be otherwise but that to the closest union, which was broken at the moment when it might well have been able to attain its object, the bitterest discord should succeed.

NOTES:

[77] Zurita Anales de Aragon v. 100. The Spanish ambassador who then negotiated the marriage was Doctor Ruyz Gonzales de Puerta. But the idea was much older: in 1492 at the first alliance mention was made of it (v. II); in the recently published Journal of an English Embassy to Spain, there appears in March 1489, 'donne Katherine al notre princess de Angleterre.' Memorial of Henry VII, 180.

[78] Zurita v. 221. 'La princesa fue recibida con tanta alegria communemente de todos, que affirmavan aver de ser esta causa, no solo de muy grande paz y prosperidad de sodo a' quel reyno, pero de la union del y de los estados de Flandes.'

[79] Zurita vi. 193. 'Por que el rey Luys cada dia se yva haziendo mas poderoso y no teniendo el rey de Inglaterra confederation y adherencia con los que avian de ser enemigos forçosos del rey de Francia, quedava aquel reyno en grande peligro.'

[80] He accepts the doctrine: 'Christi vicarium nullum in terris judicem habere nosque ei debere vel dyscholo auscultare.' Lettres de Louys XII, iii. 307.

[81] As it is said in Cavendish, Cardinalis Eboracensis:—

'My byldynges somptious, the roffes with gold and byse
Craftely entaylled as conning could devise,
With images embossed most lively.'

[82] In an opinion given at Corunna it is said that he must be persuaded, 'qu'il prende pour agreable et accepte ce que l'empereur lui a offert, luy traynant d'une soupe en miel parmy la bouche, que n'est le (que du) bien, que l'empereur luy veut (20 April 1520).' Monumenta Habsburgica ii. 1. 177, 183.

[83] In a letter to his ambassador, the Bishop of Badajoz, the Emperor mentions 'les propos, que luy (au cardinal) avons tenu a Bruges touchants la papalite.' Monumenta Habsburgica ii. 1. 501.

[84] Wolsey mentions in his letter to the King 'the conference and communications, which he (the Emperor) had with your grace in that behalf.' In Burnet iii. Records p. 11.

[85] Du Bellay au Grandmaistre 17 October 1529, in Le Grand, Histoire du divorce iii. 374: 'Que il avait toujours en tems de paix et de guerre intelligence secrette a Madame, de la quelle la dicte guerre durant, il avoit eu des grants presens, qui furent cause, que Suffolc estant a Montdidier il ne le secourut d'argent comme il devoit dont advint que il ne print Paris.'

[86] The Instructions to Tunstall and Wingfield (30 March 1525), hitherto known only from the extract in Fiddes, are now printed in the State Papers vi. 333. Compare my German History, Bk. IV. ch. 2, but the statement there made needs revision in accordance with the newly-found documents.

CHAPTER III.

ORIGIN OF THE DIVORCE QUESTION.

Perhaps it is not a matter of such very great weight whether the Emperor did his best for Wolsey in the conclave, or Wolsey his best for the Emperor in the campaign of 1523. That the result did not correspond to the expectations on either side was quite enough to bring about an estrangement. What could the Emperor do with an English minister who was not in a condition to support warlike enterprises properly? what could the English do with an ally who appropriated to himself exclusively the advantages of the victory they had won? Henry VIII, while trying to win the French crown, had only weakened it, and thereby given the house of Burgundy a preponderance in European affairs, by which all other powers, and himself as well, felt themselves threatened.

After the battle of Pavia a feeling prevailed throughout the world that the rule of Spain and Burgundy would be intolerable, if France were no longer independent. The ministers of the Pope in Rome first came to a consciousness of this: as the best means of restoring the balance, they looked to the dissolution of the alliance between Henry VIII and Charles V. The Pope's Datary, Giberti, made approaches to the English Court, though still with timid caution, in order in the first place only to propose a reconciliation between England and France.^[87]

To his joy he remarked that Henry VIII and Cardinal Wolsey were more inclined to this plan than he had expected. If not before yet certainly since his alienation from the Emperor, the cardinal had entered into secret negotiations with the mother of the King of France: the last proposals to the Emperor had been only an attempt to turn the success of his arms to the advantage of England also: when he rejected them, the cardinal entered into the French connexion with increased zeal. Before the end of the summer of 1523 peace between England and France was effected with the sympathising co-operation of Rome.

In it the Regent Louise accepted the conditions laid down by the cardinal: she did not neglect to secure him by a considerable pension. From the beginning she had on her side also tried to excite his world-wide ambition; for Francis I and Henry VIII, if once they became friends, would do noble deeds to their own-undying renown and to the glory of God, and the direction of their enterprises would fall to the cardinal.^[88]

Even after Henry VIII abandoned him, the Emperor still kept the upper hand. He extorted the Peace of Madrid; the League of the Italian princes with France, by which its execution was to have been hindered, and to which England lent her moral support without actually joining it, led Charles V to new victories, to the conquest of Rome, and hence to a position in the world which now did really threaten the freedom of all other nations. The necessary result was that France and England drew still more closely together. Cardinal Wolsey appeared in France; a close alliance was concluded and (not without considerable English help) an army sent into the field, which in fact gained the upper hand in Italy and restored to the Pope, who had escaped to Orvieto, some feeling of independence. Soon the largest projects were formed on this side also, in which the two Kings expected to have the Pope entirely with them. The French declared their wish to conquer Naples and never restore it to the Emperor, not even under the most favourable conditions. Wolsey thought that the Pope might pronounce the deposition of the Emperor in Naples and even in the Empire, for which certain German electors could be won over; he boasted that he would bring about such a revolution as had not been seen for a century.

It was at this crisis in the general situation, and when an attempt was being made to direct politics towards the annihilation of the Emperor, that the thought occurred of dissolving Henry VIII's marriage with the Emperor's aunt, the Infanta Catharine.

It is very possible, as a contemporary tradition informs us, that Wolsey was instigated to this by personal feelings. His arrogant and wanton proceedings, offensive by their excesses, and withal showing all the priestly love of power, were hateful to the inmost soul of the pure and earnest Queen. She is said to have once reproached him with them, and to have even repelled his unbecoming behaviour with a threatening word, and he on his part to have sworn to overthrow her.^[89] But this personal motive first

became permanently important when joined with a more general one. The Queen was by no means so entirely shut out from the events of the day as has been asserted; in moments of difficulty we find her summoning the members of the Privy Council before her to discuss the pending questions with them. When Wolsey began a life and death struggle with the Emperor, the influence of the Queen, whose most lively sympathies were with her nephew, stood not a little in his way; it was his chief interest to remove her.

It was indeed the feeling of the time, that family unions and political alliances must go hand in hand. At the very first proposal for a reconciliation between England and France, Giberti had advised the marriage of the English princess Mary, who had been rejected by the Emperor, with a French prince, and there had been much negotiation about it. But owing to the extreme youth of the princess it was soon felt that this would not lead to the desired end. If a definitive rupture was to take place between England and the Burgundo-Spanish power, Henry VIII's marriage with Catharine must be dissolved and room thus made for a French princess. This marriage however was itself the result of that former state of politics which had led to the first war with France. Wolsey formed the plan of marrying his King, in Catharine's stead, with the sister or even with the daughter of Francis I who was now growing up:^[90] then only would the alliance between the two powers become indissoluble. When he was in France in 1527, he said to the Regent, the King's mother, that within a year she would live to see two things, the most complete separation of his sovereign from Spain, and his indissoluble union with France.^[91]

But to these motives of foreign policy was now added an extremely important reason of home policy: this lay in the precarious state of the Succession.

When the King several years before was congratulated on the birth of his daughter, with an intimation that the birth of a son might have been still more acceptable, he replied quickly, they were both still young, he and his wife, why should they not still have a son? But gradually this hope had ceased, and as hitherto no Queen had ever reigned in her own right in England, the opinion gained ground that at the King's death the throne would fall vacant. It had a little before created a party among the people for the Duke of Buckingham, when he maintained that he was the nearest heir

to the crown, and would not let it be taken from him. He had been executed for this: Mary's right to the succession met with no further opposition; but even so it was still always a doubtful future that lay before the country. People wished to marry Mary at one time to the Emperor, at another to the King or a prince of France: so that her claim to the inheritance of the crown should pass to the house of Burgundy or to that of Valois. But how dangerous this was for the independence of the country! Henry would surely not have lost himself in Wolsey's intrigues, had he had a son and heir, to represent the independent interests of England.

In other times relations of this kind would have probably been reckoned as in themselves sufficient reason for a divorce: but not so in that age. The very essence of marriage lies in this, that it raises the union, on which the family and the order of the world rests, above the momentary variations of the will and the inclination; by the sanction of the Church it becomes one of that series of religious institutions which set limits on every side to individual caprice. No one yet dared so far to deny the religious character of marriage, as to have avowed mere political views in wishing for a separation, either before the world, or even to himself. But now there was no want of spiritual reasons which might be brought forward for it. The King's own confessor revived the doubts in him which had once been raised before his marriage with his brother's widow. And when the King was then reminded that such a marriage had been expressly forbidden in the books of Moses, and threatened with the punishment of childlessness, how could it fail to make an impression on him, when this threat seemed to be strictly fulfilled in his case? Two boys had been born to him from this marriage, but both had died soon after their birth. Even within the Catholic Church it had been always a moot point whether the Pope could dispense with a law of Scripture. The divine punishment inflicted on the King, as he thought, seemed to prove that the Pope's dispensation (encroaching as it did on the region of the divine power), on the strength of which the marriage had been concluded, had not the validity ascribed to it. Scruples of this sort cannot be said to be a mere pretence; they have something of the half belief, half superstition, so peculiarly characteristic of the spirit of the age and of that of the King. And none could yet foresee what results they implicitly involved.

It still appeared possible that the Pope would revoke the dispensation given by one of his predecessors, especially as some grounds of invalidity could be found in the bull itself. Wolsey's idea was that the Pope, in the pressing necessity he was under of ranging England and France against the preponderance of the Emperor, could be brought to consent to recall the dispensation, and this would make the marriage null and void from the beginning. Always full of arrogant assumption of an influence to which nothing could be impossible, Wolsey assured the King that he would carry the matter through.^[92]

When tidings of this proposal first reached Rome, those immediately around the Pope took special notice of the political advantages that might accrue from it. For hitherto there was a doubt whether Henry VIII was really so decidedly in favour of France as was said: a project like this, which would make him and the Emperor enemies for ever, left no room for doubt about it. When the Pope saw himself secure of this support in reserve, his word, in a matter which concerned the highest personal and civil interests, acquired new weight even with the Emperor.^[93]

It is undeniable that the Pope at first expressed himself favourably. It appeared to make an especial impression on him, that the want of a male heir might cause a civil war in England, and that this must be disadvantageous to the Church as well.^[94] He only asked not to be pressed as long as he was in danger of experiencing the worst extremities from the overwhelming power of the Emperor. In the spring of 1528, when the French army advanced victoriously into the Neapolitan territory and drove back the Emperor's forces to the capital, Wolsey's request for full powers to inquire into the affair in England was taken into earnest consideration by the Pope. It was at Orvieto, in the Pope's working room, which was also his sleeping-chamber: a couple of cardinals, the Dean of the Roman Rota, and the English plenipotentiaries sat round the Pope, to talk over the case thoroughly. One of the cardinals declared himself against the Commission demanded by Wolsey, since such a grant contravened the usage of the last centuries in the Roman tribunals; the Pope answered, that in a matter concerning a King who had done such service to the Holy See, they might well deviate from the usual forms; he actually delegated this Commission to Cardinal Campeggi, whom the English esteemed as their friend, and to Wolsey.

By this nothing was yet effected: it even appears as though Clement VII had given tranquillising promises to the Emperor; the Bishop of Bayonne declared that the Pope's intention was thus to keep both sides dependent on him—but it was at all events one step on the road once taken, which aroused hope in England that it would lead to the desired end.

But let us picture to ourselves the enormous difficulty of the case. It lay above all in the inner significance of the question itself. In his first interview with Henry VIII Campeggi remarks that the King was completely convinced of the invalidity of the Papal dispensation, which could not extend to Scripture precepts. No argument could move him from this; he answered like a good theologian and jurist. Campeggi says, an angel from heaven would not make him change his opinion. He could not but see that Wolsey cherished the same view.

But was it possible for the Roman court to yield in this and to revoke a dispensation, which involved the very substance of its spiritual omnipotence? It would have thus only strengthened, and in reality confessed, the antagonism against its authority which was based on Holy Scripture. Campeggi could not yield a hair's breadth.

The only solution lay—and Campeggi was authorised to attempt it—in inducing Queen Catharine to renounce her place and dignity. Soon after his arrival he represented to her at length how much depended on it for her and the world, and promised her that in return not only all else should be secured to her that she could desire, but above all that the succession of her daughter also should be guaranteed. The wish, in which both Pope and King agreed, that she should enter a convent, Campeggi at first did not mention to her; he thought she would herself seek for some expedient. But she avoided this. Campeggi had spoken to her in the name of the Pope: she only said she thought to abide till death in obedience to the precepts of God and of the Church: she would ask for counsellors from the King, would consult with them, and then communicate to the Holy Father what her conscience bade her. Her consent still remained possible. This gained, the legate would have no need to mention further the validity or invalidity of the dispensation. He was still hoping for it, when Wolsey came to him one morning early (26 Oct. 1528) and told him the Queen had asked the King for leave to make her confession to him (Campeggi), and had obtained it. A

couple of hours later the Queen appeared before him. She told him of her earlier marriage, which was never really consummated; that she had remained as unchanged by it as she had been from her mother's womb; and this destroyed all grounds for the divorce. Campeggi was however far from drawing such a conclusion; he advised her in plain terms to make a vow and enter a convent, repeating the motives stated before, to which he now added the example of a Queen of France. But his words died away without effect. Queen Catharine declared positively that she would never act thus; she was called by God to her marriage, and resolved to live and die in it. A judgment might be pronounced in this matter; if the marriage was declared to be invalid, she would submit, she would then be as free as the King; but without this she would hold fast to her marriage union. She protested, in the strongest terms conceivable, that they might kill her, they might tear her limb from limb, yet she would not change her mind; had she two lives, she would lay them both down in such a cause. It would be better, she said, for the Pope to try to divert the King from his design; he would then be able to trust all the more in the inclination of her kinsman the Emperor to help in bringing about a peace.

In the presence of the counsellors given her at her wish, both legates repeated two days later in a formal audience their admonition to the Queen not to insist on a definite decision; but already Campeggi had little hope left; he was astonished that the lady, usually so prudent, should in the midst of peril so obstinately reject judicious advice.^[95]

The question between King and Queen was, we might say, also of a dogmatic nature. Had the Pope the right to dispense with the laws of Scripture or had he not? The Queen accepted it as it had been accepted in recent times, especially as the presupposed conditions of a marriage had not been fulfilled in her case. The King rejected it under all circumstances, in agreement with scholars and the rising public opinion.

But into this question various other general and personal reasons now intruded themselves. If the question were answered in the negative Wolsey held firmly to the view of forming an indissoluble union between France and England, of securing the succession by the King's marriage with a French princess, of restoring universal peace; to this he added the project, as he once actually said in confidential discourse, of reforming the English

laws, doubtless in an ecclesiastical and monarchic sense; if he had once accomplished all this, he would retire, to serve God during the rest of his life.

But he had already (and a sense of it seems almost to be expressed in these last words so unlike his usual mode of thought) ceased to be in agreement with his King. Henry VIII wished for the divorce, the establishment of his succession by male offspring, friendship with France, and Peace: but he did not care for the French marriage. He was some years younger than his wife, who inclined to the Spanish forms of strict devotion, and regarded as wasted the hours which she spent at her dressing table. Henry VIII was addicted to knightly exercises of arms, he loved pleasant company, music, and art; we cannot call him a gross voluptuary, but he was not faithful to his wife: he already had a natural son; he was ever entangled in new connexions of this kind. Many letters of his survive, in which a tincture of fancy and even of tenderness is coupled with a thorough sensuousness; just in the fashion of the romances of chivalry which were then being first printed and were much read. At that time Anne Boleyn, a lady who had lately returned from France, and appeared from time to time at Court, saw him at her feet; she was not exactly of ravishing beauty, but full of spirit and grace and with a certain reserve. While she resisted the King, she held him all the faster.^[96]

The reasons of home and foreign policy mentioned above, and even the religious scruples, have their weight; but we cannot shut our eyes to the fact that this new passion, nourished on the expectation of the divorce which was not unconditionally refused by the spiritual power, gave the strongest personal impulse to carry the affair through.

The position of parties in the State also influenced it. Wolsey who had diminished the consequence of the great lords, and kept them down, and offended them by his pride, was heartily hated by them. Adorned though he was with the most brilliant honours of the Church, yet for the great men of the realm he was nothing but an upstart: they had never quite given up the hope of living to see his fall. But if he brought the French marriage to pass, as he designed, he would have won lasting support and have become stronger than ever. Besides the great men took the Burgundian side, not that they wished to make the Emperor lord of the world, but on the other hand

they did not want a war with him: merchants and farmers saw that a war with the Netherlands, where they sold their wool, would be an injury to all. When Wolsey flattered the Pope with the hope of an attack on the Netherlands, he was, the Bishop of Bayonne assures us, the only man in the country who thought of it. He felt keenly the universal antipathy which he had awakened, and spoke of the efforts and devices he would have need of, to maintain himself.

It was therefore just what the nobles wanted, that Wolsey fell out with the King in a matter of such engrossing nature, and that they found another means of access to him.

The Boleyns were not of noble origin, but had been for some time connected with the leading families. Geoffrey the founder of the house had raised himself by success in business and good conduct to the dignity of Lord Mayor of London. His son William married the daughter of the only Irish peer who had a seat and vote in the English Parliament, Sir Thomas Ormond de Rochefort, Earl of Wiltshire. His titles passed through his daughter to his grandsons, of whom one, Thomas Boleyn, was created Viscount Rochefort, and married the daughter of the Duke of Norfolk; his daughter was Anne Boleyn: she took high rank and an especially distinguished position in English society because her uncle, Thomas Duke of Norfolk, was Henry VIII's chief lay minister (he held the place of High Treasurer) and was at the same time the leading man of the nobility. He had the reputation of being versed in business, cultivated, and shrewd; he was Wolsey's natural opponent. That the King showed an inclination to his niece, against the cardinal's views, was for him and his friends a great point gained.^[97] It was soon seen that Anne's influence had obtained the recall of an opponent of Wolsey, who had insulted him and was banished from the Court.^[98] It was of the greatest importance for home affairs, that the King was inclined to make Anne Boleyn his wife. The English kings in general did not think marriages in their own rank essential. Henry's own grandfather, Edward IV, had married a lady of by no means distinguished origin. It was seen beforehand that, if this happened, Wolsey could not maintain himself, and authority would again fall into the hands of the chief families. Even the cardinal's old friend, the Earl of Suffolk, now joined this combination: the whole of the nobility sided with it.

But besides this the chief foreign affairs took a turn which made it impossible to carry out Wolsey's political ideas. In the summer of 1528 the attacks of the allies on Naples were repulsed, and their armies annihilated. In the spring of 1529 the Emperor got the upper hand in Lombardy also. How utterly then did the oft-proposed plan, of depriving him of the supreme dignity, sink into nothingness: he was stronger than ever in Italy. The Pope was fortunate in not having joined the allies more closely; the relations of the States of the Church with Tuscany made a union with the Emperor necessary; he had a horror of a new quarrel with him. And as the Emperor now took up the interests of his mother's sister in the most earnest manner, and protested against proceeding by a Commission granted for England, the Pope could not possibly let the affair go on unchecked. When the English ambassadors pressed him, he exclaimed to them (for apart from this he would gladly have shown more favour to the King) that he felt himself as it were between anvil and hammer. Divers proposals were made, one more extraordinary than the other, if only the King would give up his demand;^[99] but this was no longer possible. The two cardinals, Campeggi and Wolsey, had to begin judicial proceedings: King and Queen appeared before the Court, Articles were put forward, witnesses heard: the Correspondence shows that the King and Anne Boleyn expected with much confidence a speedy and favourable decision.^[100] Wolsey too did not yet abandon this hope. It was thought at the time that he did not do all he might have done for it, that in fact he no longer favoured it, seeing as he did that it would turn out to the advantage of his rivals.^[101] But it was in truth his fate, that the consequences of the design which originated with him recoiled on his own head. If it succeeded, it must be disadvantageous to him: if it failed, he was lost. The exhortations he addressed to the French Court, to exert yet once more its whole influence with the Papal Court for this matter, sound like a cry of distress in extreme peril. He had only undertaken it to unite France and England; the thing was reasonable and practicable, the Pope would not wish by refusing it to offend both crowns at once; he would value it more highly than if he himself were raised to the Papacy. But he had now to find that King Francis, as well as Pope Clement, was seeking a separate peace with the Emperor. Wolsey had given Henry the strongest assurances on this point, that such a thing would never happen, France would never separate herself from him. But yet this now happened, and how could any influence from that quarter on the Roman Court be still expected in favour of

England, in a matter which was so highly offensive to the Emperor! The legates received from Rome distinct instructions to proceed slowly, and in no case to pronounce a decision.^[102] While King Henry and those around him were eagerly expecting it, the cardinals (using the holidays of the Roman Rota as a pretence) announced the suspension of their proceedings.

It appeared in an instant into what a violent ebullition of wrath, which unsettled every thing, the King fell in consequence; it seemed as if all his past way of governing had been a mistake. In contradiction to many of the older traditions of English history he had hitherto ruled chiefly through ecclesiastics to the disgust of the lay lords: now he betook himself to the latter, to complain of the proceedings of the two cardinals. These were still in the hall where they had sat, when Suffolk and some other lords appeared, and bade them bring the matter to an end without delay, even if it were by a peremptory decree, that might be issued on the next day, on which the holidays would not have begun. But the prorogation was in fact only the form under which the cardinals fulfilled their orders from Rome; they could not possibly recall it. Suffolk broke out into the exclamation that cardinals and legates had never brought good to England. The two spiritual lords looked at each other with amazement. Had they any feeling that his words contained a declaration of war on the part of the lay element in the State against ecclesiastical and foreign influences in general? Wolsey, at any rate, could not shut his eyes to the significance of such a war. He often said that what Henry VIII took in hand he could not be brought to give up by any representations; he had sometimes tried it, he had fallen at his feet, but it had been always in vain.

Henry contained himself yet a while, as hopes had been given him that the proceedings might be resumed. But when a Breve came, by which Clement VII recalled his Commission and evoked the question of the divorce to Rome, he saw clearly that the influence of the Emperor in the Pope's Council had quite gained the upper hand over his own on this point. He was resolved not to submit to it. Had he not, before the mayor and aldermen of London, declared with a certain solemnity his resolution to carry through the divorce for the good of the land? his passion and his ambition had joined hands for this purpose before the eyes of the country. To prevent the need of recoiling, he formed a plan of incalculable importance, the plan of

separating his nation and his kingdom from the spiritual jurisdiction of the Roman See.

NOTES:

[87] 'Giberto al Vescovo di Bajusa. 3 Luglio. Ci sono avisi d'Inghilterra de' 14 del passalo che mostrano gli animi di la e massimamente Eboracense non dico inclinati ma accesi di desiderio di concordia con Francia'.... Lettere di principi I. 168.

[88] 'Le dit Cardinal sera conducteur, modérateur et gouverneur de toutes les entreprises.' The Regent's Instructions in Brinon, *Captivité de François I.* 57.

[89] Riccardus Scellejus de prima causa divortii (Bibliotheca Magliabecch. at Florence). 'Catharina ita stomachata est, ut de Vulseji potentia minuenda cogitationem susciperet, quod ille cum sensisset, qui ab astrologo suo accepisset, sibi a muliere exitium imminere, de regina de gradu dejicienda consilium inivit.'

[90] Lodovico Falier, *Relatione di 1531* 'avendo trattato, di dargli a sorella del Cristianissimo adesso maritata al re di Navarra, gli promese di far tanto con S. Sta che disfacesse le nozze.'

[91] Du Bellay au Grandmaistre 21 October 1528; after Wolsey's own narrative in Le Grand, *Histoire du divorce de Henri VIII*, iii. 186.

[92] He says so himself. Bellay's letter in Le Grand iii. 318.

[93] In Sanga to Gambara, 9 February 1528. L. d. p. ii. 85. 'La cosa che V. S. sa, che non potrà seguire senza gran rottura, fa S. S. facile a creder che posse essere ciò che dice (Lotrec).

[94] 'Considering the nature of men, being prone into novelties—the realm of England would not only enter into their accustomed divisions, but also would owe or do small devotion unto the church: wherefore his Holiness was right well content and ready to adhibit all remedy that in him was possible as in this time would serve.' Knight to the Cardinal, 1 Jan. 1528, in Burnet i. Collect. p. 22.

[95] In corrupta. Campeggi's letters to Sanga, 17, 26, 28 Oct. 1528. Laemmer, *Monumenta Vaticana*, 18 Oct. p. 25 seq. He gives his motive for communicating what the Queen said to him in confession as being her own wish. The archives too have long kept their secret.

[96] According to Ricc. Scellejus, she prays the King, 'ne pergat suam oppugnare castitatem, quae dos erat maxima, quam posset futuro offerre marito, quaque violanda reginam etiam dominam proderet,—quoniam se illi fidelitatis sacramento obligasset.'

[97] It seemed helpful to their working against the cardinal. Particularities of the life of Queen Anne, in Singer's *Cavendish* ii. 187.

[98] Du Bellay in Le Grand iii. 296. 'Le duc de Norfolk et sa ande commencent déjà à parler gros (28 Jan. 1520).'

[99] In a letter of Sanga to Campeggi (*Lettere di diversi autori eccellenti* p. 60), we read the following words: 'In quanto alla dispensa di maritar il figliolo con la figliola del re, se con haver in questa maniera stabilita la successione S. M. si rimanesse del primo pensiero della dissolutions S. Bne inclineria assai Più.' This looks as if a marriage between Henry VIII's natural son and Mary was spoken of.—So I wrote previously. The thing is quite true. Campeggi writes 28 Oct. to Sanga. 'Han pensato si maritar la (la figliola) con dispensa di S. Sta al figlio natural del re, a che haveva pensato anch'io per stabilimento della successione.' (*Monumenta Vaticana* p. 30.)

[100] Sanga to Campeggi 2 Sept. 1528 in the *Lettere di diversi autori eccellenti*, Venetia 1556, p. 40. 'V. Sra. vedra l'esito che ha havuto l'impresa del regno.— Bisogna che S. Bne vedendo l'imperatore vittorioso non si precipiti a dare all'imperatore causa di nuova rottura.... Sia almanco avvertita di non lasciarsi costringere a pronuntiare senza nuova et expressa commissione di qua.'

[101] Falier says so very positively.

[102] Sanga 29 May. 'S. Bne ricorda che il procedere sia lento et in modo alcuno non si venghi al giudicio.' Of the same date is Bellay's letter in which those exhortations of Wolsey to the French Court are contained.

CHAPTER IV.

THE SEPARATION OF THE ENGLISH CHURCH.

Already at Orvieto Stephen Gardiner had told the Pope that, if the King did not obtain justice from him, he would do himself justice in his own kingdom. Later it was plainly declared to the Pope that, if they saw the Emperor had the ascendancy in his Council, the nobility of England with the King at their head would feel themselves compelled to cast off obedience to Rome. It seems as though the Roman Court however had no real fear of this. For the King, so they said, would do himself most damage by such a step.^[103] The Papal Nuncio declared himself positively convinced, that it was necessary to deal with the English sharply and forcibly, if one would gain their respect.

But these tendencies were more deeply rooted among the English than was remembered at Rome. They went back as far as the Articles of Clarendon, the projects of King John, the antipapal agitation under Edward III; the present question which involved an exceptionable and personal motive, exposed to public disapprobation, nevertheless touched on the deepest interests of the country. The wish to make the succession safe was perfectly justifiable. According to Clement VII's own declarations, the English were convinced that he was only hindered by regard for the Emperor from coming to a decision which was essential to them. His vacillation is very intelligible, very natural: but it did not correspond to the idea of the dignity with which he was clothed. There was to be an independent supreme Pontiff for this very reason, that right might be done in the quarrels of princes, without respect of persons, according to the state of the case. It clashed with the idea of the Papacy that alterations of political relations exercised such a decisive influence as they did in this matter. There was indeed something degrading for the English in their being made to feel the reaction of the Emperor's Italian victory, and his preponderance, in their weightiest affairs.

Henry VIII had now made up his mind to throw off that ecclesiastical subjection, which was politically so disadvantageous; the circumstances

were very favourable. It was the time at which some German principalities, and the kingdoms of the North, had given themselves a constitution which rested on the exclusion of the hierarchic influences of Rome: the King could reckon on many allies in his enterprise. Moreover he had no dangerous hostilities to fear, as long as the jealousy lasted between the Emperor and King Francis. Between them Henry VIII needed only to revert to his natural policy of neutrality.

And the accomplishment of the affair was already prepared in the country itself, through no one more than through Cardinal Wolsey.

The dignity of legate, which was granted him by Pope Leo, and then prolonged for five, for ten years, and at last for life, gave him a comprehensive spiritual authority. He obtained by it the right of visiting and reforming all ecclesiastical persons and institutions, even those which possessed a legal exemption of their own. Some orders of monks, which contended against it, were reduced to obedience by new bulls. But from the visitation of the monasteries Wolsey proceeded to their suppression: he united old convents (such as that one which has brought down to recent times the name of an Anglo-Saxon king's daughter, Frideswitha, from the eighth century) with the splendid colleges which he endowed so richly, for the advancement of learning and the renown of his name, at Oxford and at Ipswich. His courts included all branches of the ecclesiastical and mixed jurisdiction, and the King had no scruple in arming him with all the powers of the crown which were necessary for the government of the Church. What aspirations then arose are shewn by the compact which Wolsey made with King Francis I to counteract the influence which the Emperor might exert over the captive Pope. When it was settled in this, that whatever the cardinal and the English prelates should enact with the King's consent should have the force of law, does not this imply at least a temporary schism?

When Clement became free, he named Wolsey his Vicar-General for the English Church: his position was again to be what it had been from the beginning, the expression of the unity between the Pope and the Crown. But now how if this were dissolved? The victorious Emperor exercised a still greater influence over the Pope when free than he had ever done over him when captive. Under these circumstances Wolsey submitted to the supreme

spiritual power, the King resolved to withstand it: it was exactly on this point that open discord broke out between them. For a time the cardinal seemed still to maintain his courage; but when on St. Luke's day—the phrase ran that the evangelist had disevangelised him—the great seal was taken from him, he lost all self-reliance. Wolsey was not a Ximenes or a Richelieu. He had no other support than the King's favour; without this he fell back into his nothingness. He was heard to wail like a child: the King comforted him by a token of favour, probably however less out of personal sympathy than because he could not be yet quite dispensed with.^[104] The High Treasurer, Norfolk, who generally acted as first minister, received the seals, and held them till some time afterwards Thomas More was named Chancellor. While these administered affairs in London, Suffolk, as President of the Privy Council, was to accompany the King in person. The chief direction of the administration passed over to the two leading lay lords.

Henry VIII's resolution to call the Parliament together was of almost greater importance for the progress of events than the alteration in the ministry.

During the fourteen years of his administration Wolsey had summoned Parliament only once, and that was when, in order to carry on the war in alliance with the Emperor against France, he needed an extraordinary grant of money. But his opening discourses were received with silence and dislike. Never, says a contemporary who was present, was the need of money more pressingly represented to a Parliament and never was there greater opposition; after a fortnight's consultation the proposal only passed at a moment when the members of the King's household and court formed the majority of those present.^[105] The Parliament and the country always murmured at Wolsey's oppressive and lavish finance management;^[106] a later attempt to raise taxes that had not been voted doubled the outcry against him. His fall and the convocation of a Parliament seemed a return to parliamentary principles in general, which in themselves exactly agreed with the view taken by the King in the present questions.

In the first years of Henry VIII the Parliament had wished to do away with some of the most startling exemptions of the clergy from the temporal jurisdiction, for instance in reference to the crimes of felony and murder; the ecclesiastics had on the other hand extended their jurisdiction yet

further, even to cases that had reference solely to questions of property. Hence the antagonism between the two jurisdictions had revived at that time with bitter keenness. It is noticeable that the temporal claims were upheld by a learned Minorite, Henry Standish, who declared it to be quite lawful to limit the ecclesiastical privileges for the sake of the public good; especially in the case of a crime that did not properly come before any spiritual court. Both sides then applied to the King: the ecclesiastics reminded him that he ought to uphold the rights of Holy Church, the laymen that he should maintain the powers of jurisdiction belonging to the crown. The King's declaration was favourable to the laymen; he recommended the clergy to acquiesce in some exceptions from their decretals. But the contest was rather suspended than decided. Wolsey's government followed, in which the spiritual courts extended their powers still further, and in reality exercised an offensive control over all the relations of private life. Even the ecclesiastics did not love his authority: they acquiesced in it because it was ecclesiastical: the laity endured it with the utmost impatience.

It was inevitable that at the first fresh assembly of a Parliament these contests about jurisdiction should be mentioned. The Lower House began its action with a detailed charge against the spiritual courts, not merely against their abuses and the oppression that arose from them, but against their very existence and their legislation; the clergy made laws without the King's foreknowledge, without the participation of any laymen, and yet the laity were bound by them. The King was called on to reconcile his subjects of the spiritual and temporal estate with each other by good laws, since he was their sole head, the sovereign, lord and protector of both parties.

It was a slight phrase.^[107] 'the sole head of his subjects spiritual and temporal,' but one of the weightiest import. The very existence of the clergy as an order had hitherto depended precisely on their claim to a legislative power independent of the temporal supremacy as being their original right: on its universal maintenance rested the Papacy and its influence on the several countries. Were the clergy now to leave it to the King, who however only represented the temporal power, to adjust the differences between their legislation and that of the state? Were they, like the laity, virtually to recognise him as their Head?

It is clear that they would thus sever themselves from the great union under one spiritual Head, from the constitution of the Latin Church. Whoever it was that introduced the word 'Head,' no doubt had this in view. The King and the laity took it up, they wished only to induce the clergy themselves to come to a resolution in this sense.

The chief motive which was to serve this purpose is connected with the lordship which the Popes possessed in England in the thirteenth century, or rather with the reaction against it which went on throughout the fourteenth. This is most distinctly expressed in the statutes of 1393, which threatened with the severest penalties all participation in any attempt, to the injury of the King's supremacy, to obtain a church-benefice from Rome; and this too even where the King had given his consent to it. Clergy and laity were thus allied against the encroachments of the Roman Curia. Wolsey was now accused of having transgressed this statute.^[108] he had in virtue of his legatine power given away benefices, and established a jurisdiction by which that of the King was encroached on; he was found guilty of this in regular form. He anticipated the full effect of this sentence by submitting without any defence and surrendering all his property to the King. It was then that York House in Westminster, with its gardens and the land adjoining, the Whitehall of later times, passed into the possession of the crown.^[109] He still kept his archbishopric; we find him soon after at Caywood, the palace belonging to it, and in fact even busied once more with his buildings. At times the King again thought of his old counsellor, and to many it quite seemed as though he might yet recover power. In those days the general belief was, that Anne Boleyn had exerted her whole influence against it. But most of the other persons of distinction in court and state were also opposed to Wolsey. Did he then really, as was imputed to him, try to gain a party among the clergy, and move the Pope to pronounce excommunication against the King?^[110] A pretext at any rate was found for arresting him as a traitor: but as he was being brought to the Tower, he died on the way. He wished, so far as we know, to starve himself to death; it was at that time supposed that in his wish to die he was aided by help from others.

Neither for his mental nor for his moral qualities can Wolsey be reckoned among men of the first rank; yet his position and the ability which he showed in it, his ambition and his political plans, what he did and what he

suffered, his success and his fall, have won him an imperishable name in English history. His attempt to link the royal power with the Papacy by the closest ties rent them asunder for ever. No sooner was he dead than the clergy became subject to the Crown—a subjection which could forebode nothing less than this final rupture.

The whole clergy was so far involved in Wolsey's guilt that it had supported his Legatine Powers, and so had shared in the violation of the statutes. It shows the English spirit of keeping to the strict letter of the law, that the King, though he had for years given his consent and help in all this, now came forward to avenge the violation of the law. To avert his displeasure the Convocation of Canterbury was forced to vote him a very considerable sum of money, yet even this did not satisfy him. Rather it seemed to him the fitting and decisive moment for forcing the clergy, conformably with the Address of the Commons, to accept the Anglican point of view. He demanded from Convocation the express acknowledgment that they recognised him as *the Protector and the Supreme Head of the Church and Clergy of England*; he commanded the judges not to issue the Act of Pardon unless this acknowledgment were at once incorporated with the bill for the money payment. It is not hard to see what made him choose this exact moment for so acting; it was the serious turn which the affair of his Divorce had taken at Rome. He had once more made application to the Curia to let it be decided in England; the Cardinals discussed the point in their Consistory, Dec. 22, 1530, but resolved that the question must come of right before the Assessors of the Rota, who should afterwards report on it to the Sacred College.^[111] What their sentence would be was the less doubtful, since the Curia was now linked closer than ever with the Emperor, who had just closed the Diet of Augsburg in the way they wished, and was now about to carry out its decrees. The traces of a new alliance with Rome, which was imputed to Wolsey as an act of treason, must have contributed to the same result. The King wished to break off this connexion by a Declaration, which would serve him as a standing-ground later on, and show the Court of Rome that he had nothing to fear from it. On Feb. 7, 1531, the King's demand was laid before both Houses of Convocation. Who could avoid seeing its decisive significance for the age? The clergy, which had without much trouble agreed to the money-vote, nevertheless strove long against a Declaration which altered their whole position. But a hard necessity lay on

them. In default of the Pardon, which, as the judges repeatedly assured them, depended on this Declaration, they would have found themselves out of the protection of the King and the Law. They sent two bishops, to get the King's demand softened by a personal appeal; Henry VIII refused to hear them. They proposed that some members of both Houses should confer with the Privy Council and the judges; the answer was that the King wished for no discussion, he wanted a clear answer. Thus much however they ascertained, that the King would be content with a mode of statement in which he was unconditionally recognised as the protector and sovereign of the Church and clergy of England, but as its supreme head only so far as religion allows. This was comprehended in the formula *in so far as is permitted by the law of Christ*, an expression which men might assent to on opposite grounds. Some might accept it from seeing in it only the limitation which is set to all power by the laws of God; others from thinking that it excluded generally the influence of the secular power on what were properly spiritual matters. When the clause was laid before them, at the morning sitting of Feb. 11, it was received with an ambiguous silence; but on closer consideration, it was so evidently their only possible resource, that in the afternoon, first the Upper House of Convocation, and then the Lower, gave their consent. Then the King accepted the money-bill, and granted them in return the Act of Pardon.^[112]

The clergy had yet other causes for seeking the King's protection. The writings of the Reformers, which attacked good works and vows, the Mass and the Priesthood, and all the principles on which the ecclesiastical system rested, found their way across the Channel, and filled men's minds in England also with similar convictions. The only safeguard against them lay in the King's power; his protection was no empty word, the clergy was lost if it drew on itself Henry's aversion, which was now directed against the Papal See.

The heavy weight of the King's hand and the impulse of self-preservation were however not the only reasons why they yielded. It is undeniable that the conception of the Universal Church, according to which the National Church did but form part of a larger whole, was nearly as much lost among the clergy as among the laity. In the Parliament of 1532 Convocation had presented a petition in which they desired to be released from the payments which had been hitherto made to the supreme spiritual authority, especially

the annates and first-fruits. The National Church was the existing, immediate authority—why should they allow taxes to be laid on them for a distant Power, a Power moreover of which they had no need? As the bishops complained that this injured their families and their benefices, Parliament calculated the sums which Rome had drawn out of the country on this ground since Henry VII's time, and which it would soon draw at the impending vacancies; what losses the country had already suffered in this way, and would yet suffer.^[113]

The tendency of men's minds in this direction showed itself also in the understanding come to on the chief question of all.

Parliament renewed its complaints of the abuses in the ecclesiastical legislation, and learned men brought out clearly the want of any divine authority to justify it; at last the bishops virtually renounced their right of special legislation, and pledged themselves for the future not to issue any kind of Ordinance or Constitution without the King's knowledge and consent. A revision of the existing canons by a mixed commission, under the presidentship of their common head, the King, was to restore the unity of legislation.

The clause was then necessarily omitted by which the recognition of the Crown's supremacy over the clergy had been hitherto limited. The defenders of the secular power put forth the largest claims. They said, the King has also the charge of his subjects' souls, the Parliament is divinely empowered to make ordinances concerning them also.^[114]

So a consolidation of public authority grew up in England, unlike anything which had yet been seen in the West. One of the great statutes that followed begins with the preamble that England is a realm to which the Almighty has given all fulness of power, under one supreme head, the King, to whom the body politic has to pay natural obedience, next after God; that this body consists of clergy and laity; to the first belongs the decision in questions of the divine law and things spiritual, while temporal affairs devolve on the laity; that one jurisdiction aids the other for the due administration of justice, no foreign intervention is needed. This is the Act by which, for these very reasons, legal appeals to Rome were abolished. It was now possible to carry out what in previous centuries had been attempted in vain. All

encroachments on the prerogative of the 'Imperial Crown' were to be abolished, the supreme jurisdiction of the Roman Curia was to be valid no longer; appeals to Rome were not only forbidden but subjected to penalties.

The several powers of the realm united to throw off the foreign authority which had hitherto influenced them, and which limited the national independence, as being itself a higher power.

As the oaths taken by the bishops were altered to suit these statutes, the King set himself to modify his coronation oath also in the same sense. He would not swear any longer to uphold the rights of the Church in general, but only those guaranteed to the Church of England, and not derogatory to his own dignity and jurisdiction; he did not pledge himself to maintain the peace of the Church absolutely, but only the concord between the clergy and his lay subjects according to his conscience; not, unconditionally, to maintain the laws and customs of the land, but only those that did not conflict with his crown and imperial duties. He promised favour only for the cases in which favour ought to find a place.^[115]

How predominant is the strong feeling of aggrandisement, of personal right, and of kingly independence!

Henry VIII too regarded himself as a successor of Constantine the Great, who had given laws to the Church. True, said he, kings are sons of the Church, but not the less are they supreme over Christian men. Of the doctrines which came from Germany none found greater acceptance with him than this—that every man must be obedient to the higher powers. We possess Tyndale's book in which these principles are set forth; by Anne Boleyn's means it came into Henry's hands. That Pope Clement summoned him formally before his judgment-seat, he declared to be an offence to the Kingly Majesty. Was a Prince, he exclaims, to submit himself to a creature whom God had made subject to him; to humble himself before a man who, in opposition to God and Right, wished to oppress him? It would be a reversal of the ordinance of God.^[116]

Whilst we follow the questions which here come into discussion—on the relations of Church and State, the rights of nations and kings—questions of infinite importance for this as for all other states, we almost lose sight of the affair of the Divorce, which had been the original cause of quarrel, and

which had meanwhile moved on in the direction given it once for all. Pope Clement restrained himself as much as possible, he still more than once made advances to the King and offered him conciliatory terms; but the King had already gone too far in his separation from Rome to be able to accept them. At the beginning of 1533 he celebrated his marriage with Anne Boleyn privately. He had once, when he was still waiting for the Pope's decision, tried to influence it by favourable opinions of learned theologians. ^[117] With this view he had applied to the most distinguished universities in Italy and Germany, in France and in England itself; and managed to obtain a large number of decisions, by which the Pope's right of dispensation was denied; and this in spite of the constant efforts in various ways of the Imperial agents; even the two mother-universities, Bologna and Paris, had declared in his favour. He protested that he had been thereby enabled in his conscience to free himself from the yoke of an unlawful union, bordering on incest, and to proceed to another marriage. But all the more urgent was it that the legality of this marriage should be recognised according to the forms at that time lawfully valid. He no longer wished for a recognition from the Pope; he laid the question before the two Convocations of the English Church-provinces. For the general course of Church history we must admit it to be an event of the highest significance, that they dared to pronounce the dispensation of Pope Julius II invalid according to God's law. The authority hitherto regarded as the expression of God's will on earth was found guilty, by the representatives of the Church of one particular country, of transgressing that will. It now followed that the King's marriage, concluded on the strength of that dispensation, was declared by the Archbishop's court at Canterbury null and void, and invalid from the beginning. Catharine was henceforth to be treated no longer as Queen but only as still Princess-dowager.

She was unable to realise the things that were happening around her. That she was expected to renounce her rank as Queen awoke in her quite as much astonishment as anger. 'For she had not come to England,' she said, 'on mercantile business at a venture, but according to the will of the two venerated kings now dead: she had married King Henry according to the decision of the Holy Father at Rome: she was the anointed and crowned Queen of England; were she to give up her title, she would have been a concubine these twenty-four years, and her daughter a bastard; she would

be false to her conscience, to her own soul, her confessor would not be able to absolve her.' She became more and more absorbed in strict Catholic religious observances. She rose soon after midnight, to be present at the mass; under her dress she wore the habit of the third order of S. Francis; she confessed twice and fasted twice a week; her reading consisted of the legends of the saints. So she lived on for two years more, undisturbed by the ecclesiastico-political statutes which passed in the English Parliament. Till the very end she regarded herself as the true Queen of England.

Immediately after the sentence on Catharine followed Anne's coronation, which was performed with all the ancient ceremonial, all the more carefully attended to because she was not born a princess. On the Thursday before Whitsuntide she was escorted from Greenwich by the Mayor and the Trades of London, in splendidly adorned barges, with musical instruments playing, till she was greeted by the cannon of the Tower. The Saturday after she went in procession through the City to Westminster. The King had created eighteen knights of the Order of the Bath. These in their new decorations, and a great part of the nobility, which felt itself honoured in Anne's elevation, accompanied her:^[118] she sat on a splendid seat, supported by and slung between horses: the canopy over her was borne by the barons of the Cinque Ports; her hair was uncovered, she was charming as always, and (it appears) not without a sense of high good fortune. On Sunday she was escorted to Westminster Abbey by the Archbishop of Canterbury and six bishops, the Abbot of Westminster and twelve other abbots in full canonicals: she was in purple, her ladies in scarlet, for so old custom required; the Duke of Suffolk bore the crown before her, which was placed on her head by the hands of the archbishop. Nobles and commons greeted her with emulous devotion, the ecclesiastics joined in; they expected from her an heir to England.—Not a son, but a daughter, Elizabeth, did she then bear beneath her heart.

Anne's coronation was at the same time the complete expression of the revolt of the nation collectively from the Roman See: it is noteworthy that Pope Clement VII, in his all-calculating and temporising policy, even then reserved to himself the last word. As he had once yielded to the Emperor, to conclude his peace with him, so now again—for he did not wish to be entirely dependent on him—he had entered into close relations with King Francis, who on his side saw in the continuance of his union with England

one of the conditions of his position in Europe. The political weight of England reacted indirectly on the Pope: he indeed annulled Archbishop Cranmer's decision, but he could not yet bring himself to take a further step, often as he had promised the Emperor and pledged himself in his agreements to do so.^[119] Charles V supplied his ambassador at Rome with yet another means to advance (as he expressed himself) the decision of the proceedings with the Pope and with the Holy See—for he made a distinction between them. The Pope inquired of him what, after this had ensued, would then be done to carry it out. The Emperor answered, his Holiness should do what justice pledged him to do, what he could not omit if he would fulfil his duty to God and the world, and maintain his own importance; this must come first, the Church must use all its own means before it called in the temporal arm: but if the matter came to that point, he would not fail to do his part; to declare himself explicitly beforehand might excite religious scruples.^[120] And however much the policy of the Pope might waver, there could be no doubt about the decision of the Rota. On the 23 March 1534 one of the auditors, Simonetta, bishop of Pesaro, made a statement on the subject in the consistory of the cardinals: there were only three among them who demanded a further delay: all the rest joined without any more consideration in the decision that Henry's marriage with Catharine was perfectly lawful, and their children legitimate and possessed of full rights. The Imperialists held this to be a great victory, they made the city ring with their cries of 'the Empire and Spain':^[121] yet even then the French did not give up the hope of bringing the Pope to another mind. But meanwhile in England the last steps were already taken.

King Henry reckons it as honourable to himself that he had not yielded to the offer of the Roman Court, made to him indirectly, to decide in his favour, but had set himself against its usurped jurisdiction, without being influenced by the proposal,^[122] not for himself alone but in the interest of all kings. Yet once more had he laid the question before learned ecclesiastics, whether the Pope of Rome had any authority in England by divine right; as the University of Oxford declares, their theologians had searched for this through the books of Holy Scripture and its most approved interpreters; they had compared the places, conferred with each other on them and come at last to the conclusion, to answer the King's question unreservedly in the negative. The Cambridge scholars and both Convocations declared

themselves in the same sense. On this the Parliament had no scruple in abrogating piece by piece the hierarchic-Romish order of things; it was nothing but a revocable right which they had hitherto borne with. The Annates were transferred to the crown; never more was an English bishop to receive his pallium from Rome. It was made penal to apply for dispensing faculties; with their abolition the fees usually paid for them also ceased. The oldest token of the devotion of the Anglo-Saxon race to the Roman See, the Peter's penny, was definitely abolished. Care was taken that for the appeal in the last resort, hitherto made to the Roman courts, there should be a similar court at home. On the other hand the King granted a greater freedom in the election of bishops, at least in its outward forms. The existing laws against heretics were confirmed, though those independent proceedings of the bishops which had been usual in the times of the Lancasters received some limitation. For the episcopal constitution and the old doctrine were to be retained: the wish was to establish an Anglo-Catholic Church under the supremacy of the crown. The King added to his titles the designation of 'Supreme Head on earth of the Church of England immediately under God.' The Parliament awarded him the right of Visitation over the Church in reference to abuses and even to errors, as well as the right of reforming them. For the exercise moreover of the Papal authority, which so far passed over to him, he had an example before him which he had only to follow. Wolsey for a series of years, as Legate of the Pope and then as his Vicar General, had administered the English Church by means of English courts: the unity of the English common-weal had been represented in his twofold power as legate and first minister; practically it was no violent change when the King himself now appointed a Vicar General who, empowered by him, exercised this authority without any reference to the Pope. It was an assistant of Wolsey, Thomas Cromwell, who was at the same time Keeper of the Great Seal, who regulated the management of these affairs in a way not altogether new to him. From this point of view Wolsey represents exactly the man of the transition, who occupied the intermediate position in nationalising the English Church.

Though Henry VIII did not always follow in his father's footsteps, he was yet his genuine successor in the work he began. What the first Tudor achieved in the temporal domain, viz. the exclusion of foreign influence, that the second extended to spiritual affairs. The great question now was,

whether the conflicting elements, in themselves independent but ceaselessly agitated by their connexion with the rest of Europe, would continue loyal to the idea of the common-weal; then even their opposition might become a new impulse and help to perfect the power of the State and the Constitution.

NOTES:

[103] 'Quasi che quello, che minacciano, non fosse prima a danno loro.' So it is said in a letter of Sanga, April 1529, *Lettere di diversi autori* p. 69.

[104] 'Pour ce qu'il n'est encoires temps qu'il meure que premierement l'on n'ayt entendu et veriffié plusieurs choses.' Chapuis to Charles V, 25 Oct. 1529, in Bradford, *Correspondence of the Emperor Charles V*, p. 291.

[105] A letter printed in Fiddes (*Life of Wolsey*, Records II. p. 115, no 58), adds to the laconic parliamentary notices the desirable explanation: 'the knights being of the King's council, the King's servants and gentlemen ... were long time spoken with and made to see (a misprint for "say") yea, it may fortune, contrary to their heart.'

[106] Giustiniani: *Four Years*, I. 162. 'They see that their treasure is spent in vain, and consequently loud murmurs and discontent prevail through the kingdom.'

[107] 'The only head sovereign lord and protector of both the said parties, your subjects spiritual and temporal.' *Petition of the Commons 1529*, in Froude, *History of England* i. 200.

[108] *Indictment* in Fiddes, *Life of Wolsey* p. 504.

[109] 'Pro domino rege, de recuperatione.' *Ibid.* Collections no. 103.

[110] Falier: 'cominciò a machinar contra la corona con S. Sta.'

[111] Pallavicino, *Concilio di Trento* III, XIV, V, from a Roman diary.

[112] *Original accounts* in Burnet iii. 52, 53.

[113] *Proceedings* in Burnet, *History of the Reformation* i. 117. Strype had already remarked its difference from the original demands.

[114] *Matters to be proposed in Convocation* (in Strype, *Ecclesiastical Memorials* i. 215.) 'That the King's Majesty hath as well the care of the souls of his subjects as their bodies, and may by the law of God by his Parliament make laws touching and concerning as well the one as the other.'

[115] Facsimile in Ellis's *Original Letters*, Ser. ii. vol i. But this alteration cannot have taken place at the beginning of his government. This would presuppose all the results won by so much effort. The handwriting too is not that of a boy, but of a grown man.

[116] *Instruction for Rochefort*, *State Papers* vii. 427.

[117] Jean Joachim au roi (de France) 15 Feb. 1510, afinche questa opinion (della Faculta di Parigi) insieme con altre opinion delle universita di Anglaterra et d'altrove per M^r. Winschier [father of Anne Boleyn] al papa si possino monstrar o presentar.

[118] 'The moste part of the nobles of the realm.' Cranmer's letter to Hawkyns. *Archaeologia* xviii. 79.

[119] In the treaty of Bologna (1 Feb. 1533) is an article, 'pro administranda justitia super divortio Anglicano et—amputando omnem superfluam dilationem'

[120] Instruccion para el Conde de Cifuentes y Rodrigo Avalos. *Papiers d'état de Granvelle* ii. 45

[121] In a later report to the Emperor it is said, that the rights of the Queen and Princess were recognised, 'a l'instance poursuite de S. Me. Imperiale.' *Ibid.* ii. 210.

[122] In Halliwell, *Letters of the Kings of England* i. 337.

CHAPTER V.

THE OPPOSING TENDENCIES WITHIN THE SCHISMATIC STATE.

Among the results of these transactions in England that which most directly concerned the higher interests of the nation was the abolition, by a formal decision of Parliament, on religious grounds, of the hereditary title of the King's daughter by his Spanish Queen, and the recognition of the succession of Queen Anne's issue to the throne, even in the case of her having only the one daughter who had been meanwhile born. This does not depend so much on the actual measures taken as on the fact, that now, according to Wolsey's plan, the government had broken with the political system which had prevailed hitherto, and indeed in a sense that went far beyond his views. Not merely was a French alliance avoided; the separation from the Church of Rome was to become the basis of the whole dynastic settlement of England.

At home men felt most the harshness and violence of basing a political rule on Church ideas. The statute contains threats of the sharpest punishments against all who should do or write or even say anything against it: a commission was appointed, in which we find the Dukes of Norfolk and Suffolk, which could require every one to take an oath of conformity to it. It was to be carried out with the full weight of English adherence to the law.

It was to this very statute that Bishop Fisher of Rochester and Sir Thomas More fell victims. They did not refuse to acknowledge the order of succession itself thus enacted, for this was within the competence of Parliament, but they would not confirm with their oath the reason laid down in the statute, that Henry's marriage with Catharine was against Scripture and invalid from the beginning. More ranks among the original minds of this great century: he is the first who learnt how to write English prose; but in the great currents of the literary movement he shrank back from the foremost place: after he had aided them by writings in the style of Erasmus, he set himself as Lord Chancellor of England to oppose their onward sweep with much rigour: he would not have the Church community itself touched.

Of the last statute he said, it killed either the body if one opposed it, or the soul if one obeyed: he preferred to save his soul. He met his death with so lively a realisation of the future life, in which the troubles of this life would cease, that he looked on his departure out of it with all the irony which was in general characteristic of him. The fact that the Pope at this moment had named Bishop Fisher cardinal of the Roman Church seems to have still more hastened his execution. They both died as martyrs to the ideas by which England had been hitherto linked to the Church community of the West and to the authority of the Papacy.

If we turn our eyes abroad, the succession statute above all must have made a most disagreeable impression on the Emperor Charles V. He saw in it a political loss, an injury to his house, and indeed to all sovereign families, and a danger to the Church. With a view to opposing it, he formed the plan of drawing the King of France into an enterprise against England. He proposed to him the marriage of his third son, the Duke of Angoulême, with the Princess Mary, who was recognised as the only lawful heiress of England by the Apostolic See, and whose claims would then accrue to this prince.^[123] And they would not be difficult, so he said, to establish, as a great part of the English abhorred the King's proceedings, his second marriage, and his divergence from the Church. At the same time the Emperor proposed the closest dynastic union of the two houses by a double marriage of his two children with a son and a daughter of Francis I. What in the whole world would he not have attained, if he had won over France to himself! His combination embraced as usual West and East, Church and State, Italian German and Northern affairs.

Perhaps the success of such a scheme was not probable; but independently of this, Henry VIII had good cause to prepare himself to meet the superior power of the Emperor, with whom he had so decidedly broken. As we have already hinted, he could have no want of allies in this struggle. It was under these circumstances that he entered into relations with the powerful demagogues who were then from their central position at Lubeck labouring to transform the North, and to sever it from all Netherlandish-Burgundian influence. But it was of still more importance to him to form an alliance with the Protestant princes and estates of Germany proper, who had gradually become a power in opposition to Pope and Emperor. In the autumn of 1535 we find English ambassadors in Germany, who attended

the meeting of the League at Schmalkald, and the most serious negotiations were entered on. Both sides were agreed not to recognise the Council which was then announced by the Pope, for the very reason that the Pope announced it, who had no right to do so. The German princes demanded an engagement that if one of the two parties was attacked, the other should lend no support to its enemy; for the King this was not enough; he wished, in case he was attacked, to be able to reckon on support from Germany in cavalry, infantry, and ships, in return for which he was ready to give a very considerable contribution to the chest of the League. It was even proposed that he should undertake the protection of the League.^[124]

All this however was based on a presupposition, which could not but lead the English to further ecclesiastical changes. It was not a schism affecting the constitution and administration of justice, but a complete system of dissentient Church doctrines, with which Henry VIII came in contact. The German Protestants made it a condition of their alliance with England, that there should be full agreement between them as to doctrine.

We may ask whether this was altogether possible.

If we compare the Church movements and events that had taken place during the last years in Germany and in England, their great difference is visible at a glance. In Germany the movement was theological and popular, corresponding to the wants and needs of the territorial state; in England it was juridico-canonical, not connected with appeals to the people or with free preaching, but based on the unity of the nation. Though the German Diet had for a moment inclined to the Reform and had once even given it a legal sanction, it afterwards by a majority set itself against it: to carry it through became now the part of the minority, the Protesting party. In England on the contrary all proceeded from the plan of the sovereign and the resolutions of Parliament, in which the bishops themselves with few exceptions took part. Perhaps a more deep-seated ground of difference may be that the German bishops were more independent than the English, and that an Emperor was then ruling who, being at the same time King of Spain and Naples, troubled himself little about the unity of Germany in particular; while in England a newly-formed strong political power existed which made the national interests its own and upheld them on all sides.

Despite all this the English Schism had nevertheless a deep inner analogy with the German Reformation.

From the beginning the dispute as to jurisdiction was based on the historical point of view, on which Luther too laid much stress. Standish, who has been already mentioned, derived the right to limit the ecclesiastical prerogatives, from this among other grounds, that there were Christian churches in which they were altogether rejected, for instance the rule as to the celibacy of the clergy was not accepted by the Greeks. He inferred too, that, as no one disputed the claim of the Greek Church to be Christian, the conception of the universal Church must be different from that which Romanism asserts. Both countries also found the groundwork of the true church-community in Scripture. In the chief instance before them, that of the divorce, the German theologians were not of the same mind as the English; but both sides agreed in this, that there was a revealed will of God, which the ecclesiastical power might not contravene: the conviction took root that the Papacy did not represent the highest communion of men with divine things, but that this rested on the divine record alone. The use of Scripture had at last influenced various questions in England also. For abolishing the Annates it was argued that such an impost contradicts a maxim of the Apostle Paul; for doing away the Papal jurisdiction, that no place of Scripture justifies it. This is what was meant when the assertion that the Papacy is of divine right was denied. This becomes quite clear when Henry VIII instead of the previous prohibitions against distributing the Bible in the vernacular gave his licence for it. As he once declared with great animation, the advancement of God's word and of his own authority were one and the same thing.^[125] The engraved title-page of the translation which appeared with his *privilegium* puts into his mouth the expression 'Thy word is a light to my feet.' The order soon followed to place a copy of the Book of books in every church: there every man might look into the disputed places, and convince himself, by this highest of codes, as to the rightfulness of the procedure that had been chosen.

But then it was impossible to stop at mere divergences of jurisdiction. The German interpretation of Scripture gained ground in every direction: a theological school grew up, though only here and there, which adhered to it more or less openly.

It must needs have had the greatest effect, that the followers of this view obtained a great number of bishoprics. The archbishopric of Canterbury had already fallen to the lot of a man who had completed his theological training in Germany: this very man, Thomas Cranmer, had carried through the divorce; his was one of those natures which must have the support of the supreme power to help them to follow out their own views; as they then appear enterprising and courageous, so do they become pliant and yielding when this favour fails them; they do not shine through moral greatness, but they are well suited to preserve, under difficult circumstances, what they have once embraced, for better times. Hugh Latimer was cast in a sterner mould; he actually dared, in the midst of the persecutions, to admonish the King, whose chaplain he was, of the welfare of his soul and his duty as King. However little this act effected for the moment, yet he may have thus contributed to enlighten the King (who now and then showed him personal goodwill) as to his title of 'Defender of the Faith.' Latimer was a fervent and effective preacher: he was made bishop of Worcester. Nicolas Shaxton, Bishop of Salisbury, Hilsey of Rochester, Bisham of S. Asaph's and then S. David's, Goodrich of Ely, were all disposed to Protestantism. Edward Fox who had been named Bishop of Hereford, had at Schmalkald openly declared the Pope to be Antichrist, and assured the Protestants in the strongest manner of his sovereign's inclination to attach himself to their Confession. It was the grand union of these biblical scholars among the bishops, which in the Convocation of 1536 undertook to carry through the work of drawing their church nearer that of Germany. Latimer opened the war by a fervent sermon against image-worship, indulgences, purgatory, and other doctrines or rites which were at variance with the Bible. Cranmer proved that Holy Scripture contains all that is necessary for man to know for the salvation of his soul, and that tradition is not needed. The Bishop of Hereford communicated it, as an experience of his journey, that the laity everywhere would now be instructed only out of the Revelation. Thomas Cromwell, who took part in the sittings as the King's representative, lent them much support, and once brought with him a Scottish scholar who had just returned from Wittenberg, to combat the received doctrine of the Sacrament.^[126] On the other side also stood men of weight and consideration, Lee archbishop of York who had expressly opposed himself, together with his clergy, to the adoption of the King's new title, Stokesley of London who broke a lance for the seven sacraments, Gardiner of

Winchester and Longland of Lincoln who after contributing materially to the King's divorce nevertheless rejected any alteration in doctrine, Tonstall of Durham, Nix of Norwich.

It seems as though the King, who was still busied in the Parliament itself with the confirmation of his church regulations, thought he detected in this party too much predilection for the Papacy. He found another motive in the necessity of having allies for the coming Council; he decisively took the side of Reform. Ten articles were laid before the Convocation in his name, the first five of which are taken from the Augsburg Confession or from the commentaries on it; as to these the Bishop of Hereford agreed with the theologians of Wittenberg. In them the faithful were referred exclusively to the contents of the Bible, and the three oldest creeds; only three sacraments were still recognised, Baptism, Penance, and the Lord's Supper. The real presence was maintained in them, in the words of those commentaries, and entirely in Luther's original sense.^[127] But still this tendency was not yet so strong as to be able to make itself exclusively felt. In the following articles, the veneration, even the invocation, of saints, and no small part of the existing ceremonies, were allowed—though in terms which with all their moderation cannot disguise the rejection of them in principle. Despite these limitations the document contains a clear adoption of the principles of religious reform as they were carried out in Germany. It was subscribed by 18 bishops, 40 abbots and priors, 50 members of the lower house of Convocation: the King, as the Head of the Church, promulgated it for general observance. His vicegerent in Church affairs commanded all the clergy entrusted with a cure of souls to explain the articles, and also at certain times to lay before the people the rightfulness of the abrogation of Papal authority. He required them to give warnings against image-worship, belief in modern miracles, and pilgrimages. Children were henceforth to learn the Lord's Prayer, the articles of the Creed, and the Ten Commandments in English.^[128] It was the beginning of the Church service in the vernacular, which was rightly regarded as the chief means of withdrawing the national Church from Romish influence.

But Cromwell was also engaged in another enterprise, not less hostile and injurious to the Papacy.

As many of the great men in State and Church thought, so thought also the pious members of the monasteries and cloistered convents; they opposed the Supremacy, not as they said from inclination to disobedience, but because Holy Mother Church ordered otherwise than King and Parliament ordained.^[129] The apology merely served to condemn them. In the rules they followed, in the Orders to which they belonged, the intercommunion of Latin Christianity had its most living expression; but it was exactly this which King and Parliament wished to sever. Wolsey had already, as we know, and with the help of Cromwell himself, taken in hand to suppress many of them: but in the new order of things there was absolutely no more place for the monastic system; it was necessarily sacrificed to the unity of the country, and at the same time to the greed of the great men.

But it cannot be imagined that innovations which struck so deep could be carried through without opposition. After all the efforts of the old kings to establish Christianity in agreement with Rome, after the victories of the Papacy when the kings quarrelled with it, and the violent suppression of all dissent, it was inevitable that the belief of the hierarchic ages, which is besides so peculiarly adapted to this end, had in England as elsewhere sunk deep into men's minds, and in great measure still swayed them. Was what had been always held for heresy no longer to merit this name because it was avowed by the ruling powers? In the northern counties neither the clergy nor the people would hear of the King's supremacy; they continued to pray for the Pope; Cromwell's injunctions were disregarded. It may be that horrible abuses and vices were prevalent in the cloisters, but all did not labour under such reproaches; many were objects of reverence in their own districts, and centres of hospitality and charity. It would have been wonderful if their violent destruction had not excited popular discontent. And this temper was shared by those who enjoyed the chief consideration in the provinces. Among the nobles there were still men like Lord Darcy of Templehurst, who had borne arms against the Moors in the service of Isabella and Ferdinand: how offensive to them must innovations be which ran counter to all their reminiscences! The lords in these provinces were believed to have pledged their word to each other to suppress the heresies, as they called the Protestant opinions, together with their authors and abettors. The country people, who apprehended yet further encroachments, were easily stirred up to commotion; collections of money were made from

house to house, and the strongest men of each parish provided with the necessary weapons: in the autumn of 1536 open revolt broke out. A lawyer, Robert Aske, placed himself at its head; he set before the people all the damage that the suppression of the monasteries did to the country around, by diverting their revenues and abstracting their treasures. In a short time he had gained over the whole of the North. The city of York joined him; Darcy admitted him into the strong castle of Pomfret: in that broad county only one single castle still held out in its obedience to the government: then the neighbouring districts also were carried away by the movement: Aske saw an army of thirty thousand men around him. He took the road to London to, as he said, drive base-born men out of the King's council, and restore the Christian church in England: he called his march a 'Pilgrimage of Grace.' But when he came into contact with royal troops at Doncaster he paused; for it was not a war, which would cost the country too dear, but only a great armed remonstrance in favour of the old system that he contemplated. He contented himself with presenting his demands—suppression of heresies, restitution of the supreme charge of souls to the Pope, restoration of the monasteries, and in particular the punishment of Cromwell with his abettors, and the calling of a Parliament.^[130]

When we consider that Ireland was in revolt, Cornwall in a state of ferment, men's Catholic sympathies stirred up by foreign princes, it is easy to understand how some voices in the King's Privy Council were raised in favour of concession. Henry VIII, a true Tudor, was not the man to give in on such a point. He upbraided the rebels in haughty words with their ignorance and presumption, and repeated that all he did and ordered was in conformity with God's law and for the interests of the country; but it was mainly by promising to call a Parliament at York that he really laid the gathering storm. But at the first breach of the law that occurred he revoked this promise;^[131] if he had relaxed the maintenance of his prerogative for a moment, he exercised it immediately after all the more relentlessly. He at last got all the leaders of the revolt into his hands, and appeared to the world to be conqueror. But we cannot for this reason hold that the movement did not react upon him. His plan was not, and in fact could not be, to incur the hostility of his people or endanger the crown for the sake of dogmatic opinions. True, he held to his order that the Bible should be promulgated in the English tongue, for his revolt from the hierarchy, and

demand of obedience from all estates, rested on God's written word: nor did he allow himself to swerve from the legally enacted suppression of the monasteries; but he abandoned further innovations, and an altered tendency displayed itself in all his proclamations. Even during the troubles he called on the bishops to observe the usual church ceremonies: he put forth an edict against the marriage of priests (although he had been inclined to allow it) from regard to popular opinion. The importation of books printed abroad, and any publication of a work in England itself without a previous censorship, were again prohibited. Processions, genuflections, and other pious usages, in church and domestic life, were once more recommended. The sharpest edicts went forth against any dissent from the strict doctrine of the Sacrament and against any extreme variations in doctrine. The King actually appeared in person to take part in confuting the misbelievers. He would prove to the world that he was no heretic.

It had also already become evident that no invasion by the Emperor was at present impending. Soon after his overtures to the King of France, Charles V perceived that he could not win him over to his side. In the Spanish Council of State they took it into consideration that Henry VIII, if anything was undertaken against him, would at all times have the King of France on his side, and in his passionate temperament might be easily instigated to take steps which they would rather avoid.^[132] After Catharine's death they made mutual advances, which it is true did not bring about a good understanding, but yet excluded actual hostilities. It would only disturb our view if we were here to follow one by one the manifold fluctuations in the course of these political relations and negotiations. One motive in favour of peace under all circumstances was supplied by the ever-growing commerce between England and the Netherlands, on which the prosperity of both countries depended, and the destruction of which would have been injurious to the sovereigns themselves. When, some time after, the prospect of an alliance with France against England was presented to him by the interposition of the new Pope, Paul III, Charles declined it. He remarked that the German Protestants, to whom his attention must be mainly directed, would be strengthened by it.^[133] At the most an interruption of this system could only be expected in case civil disturbances in England invited the Emperor to make a sudden attack. Once it even appeared as if a Yorkist movement might be combined with the religious agitation. A descendant of

Edward IV, the Marquis of Exeter, formed the plan of marrying the Princess Mary, and undertaking the restoration of the old church system. He found much sympathy in the country for this plan; the co-operation of the Emperor with him might have been very dangerous.

Henry lost no time in fortifying the harbours and coasts against such an attack.

But the chief means of preventing all dangers of this kind lay in cutting from under them the ground on which they rested. Henry VIII was not minded to yield a jot of the full power he had inherited: on the contrary his supremacy in church matters was confirmed in 1539 by a new act of Parliament: another finally ordained the suppression of the greater abbeys also, whose revenues served to endow some new bishoprics, but mainly passed into the possession of the Crown and the Lords: the unity of the Church and the exclusive independence of the country were still more firmly established. But the more Henry was resolved to abide by his constitutional innovations, the more necessary it seemed to him, in reference to doctrine, to avoid any deviation that could be designated as heretical. And though he some years before made advances to the Protestants because he needed their support against the Emperor and the Pope, things were now on the contrary in such a state that he could feel himself all the safer, the less connexion he had with the Germans. Under quite different auspices of home and foreign politics was the religious debate, that had led in 1536 to the Ten Articles, resumed three years later. The bishops who held to the old belief were as steady as ever and, so far as we know, bound together still more closely by a special agreement. They knew how to get rid of the old suspicion of their having thought of restoring the Papal supremacy and jurisdiction, by showing complete devotion to the King. On the other hand the Protestants had suffered a very sensible loss in Bishop Fox of Hereford, who had always possessed much influence over the King, but had died lately. An understanding between the two parties on questions which were dividing the whole world was not to be thought of; they confronted each other as irreconcilable antagonists. The debates were transferred on Norfolk's proposal to Parliament and Convocation; at last it was thought best that each of the two parties should bring in the outline of a bill expressing its own views. This was done: but first both bills were delivered to the King, on whose word, according to the prevailing point of

view, the decision mainly depended. We may as it were imagine him with the two religious schemes in his hand. On the one side lay progressive innovation, increasing ferment in the land, and alliance with the Protestants: on the other, change confined to the advantages already gained by the crown, the contentment of the great majority of the people, who adhered to the old belief, peace and friendship with the Emperor. The King himself too had a liking for the doctrines he had acknowledged from his youth. The balance inclined in favour of the bishops of the old belief: Henry gave their bill the preference. It was the bloody bill of the Six Articles, mainly, so far as we know, the work of Bishop Gardiner of Winchester.

The doctrine of transubstantiation and all the usages connected with it, private masses and auricular confession, and the binding force of vows, were sanctioned anew; the marriage of priests and the giving the cup to the laity were prohibited; all under the severest penalties. The whole of the high nobility to a man agreed to it: the Lower House raised the resolutions of the clergy into law.

How completely did the German ambassadors, who had come over with the expectation of seeing the victory in England of the theologians who were friendly to them, find themselves deceived! They still however cherished the hope that these resolutions would never be carried out. Their ground for hope lay in the King's marriage with a German Protestant princess, which was just then being arranged.

Some years before Anne Boleyn had fallen a victim to a dreadful fate. How had the King extolled her shortly before his marriage as a mirror of purity, modesty and maidenliness! hardly two years afterwards he accused her of adultery under circumstances which, if they were true, would make her one of the most depraved creatures under the sun. If we go through the statements that led to her condemnation, it is difficult to think them complete fictions: they have been upheld quite recently. If on the other hand we read the letter, so full of high feeling and inward truthfulness, in which Anne protests her innocence to the King, we cannot believe in the possibility of the transgressions for which she had to die. I can add nothing further to what has been long known, except that the King, soon after her coronation, in November 1533, already showed a certain discontent with her.^[134] Was it after all not right in the eyes of the jealous autocrat that his

former wife's lady in waiting now as Queen wore the crown as well as himself? Anne Boleyn too might not be without blame in her demeanour which was not troubled by any strict rule. Or did it seem to the King a token of the divine displeasure against this marriage also, that Anne Boleyn in her second confinement brought a stillborn son into the world? It has been always said that the lively interest she took in the progress of the outspoken Protestantism, whose champions were almost all her personal friends, contributed most to her fall. For the house from which she sprung she certainly in this respect went too far. In the midst of religious and political parties, pursued by suspicion and slander, and in herself too tormented by jealousy, endangered rather than guarded by the possession of the highest dignity, she fell into a state of excitement bordering on madness.

On the day after her execution the King married one of her maids of honour, the very same who had awakened her jealousy, Jane Seymour. She indeed brought him the son for whom his soul longed, but she died in her confinement.

In the rivalry of parties Cromwell after some time formed the plan of strengthening his own side by the King's marriage with a German princess; he chose for this purpose Anne of Cleves, a lady nearly related to the Elector of Saxony, and whose brother as possessor of Guelders was a powerful opponent of the Emperor. This was at the time when the Emperor on his way to the Netherlands paid a visit to King Francis, and an alliance of these sovereigns was again feared. But by the time his new wife arrived all anxiety had already gone by, and with it the motive for a Protestant alliance for the King had ceased. Anne had not quite such disadvantages of nature as has been asserted: she was accounted amiable:^[135] but she could not enchain a man like Henry; he had no scruple in dissolving the marriage already concluded; Anne made no opposition: the King preferred to her a Catholic lady of the house of Howard. But the consequent alteration was not limited to the change of a wife. The hopes the Protestants had cherished now completely dwindled away: it was the hardest blow they could receive. Cromwell, the person who had been the main instrument in carrying out the schism by law, and who had then placed himself at the head of the reformers, was devoted to destruction by the now dominant party. He was even more violently overthrown than Wolsey had been. In the middle of business one day at a meeting of the Privy Council he was informed that he

was a prisoner; two of his colleagues there tore the orders which he wore from his person, since he was no longer worthy of them;^[136] that which had been the ruin of so many under his rule, a careless word, was now his own.

Now began the persecution of those who infringed the Six Articles, on very slight grounds of fact, and with an absence of legal form in proving the cases, that held a drawn sword over innocent and guilty alike. Bishops like Latimer and Shaxton had to go to the Tower. But how many others atoned for their faith with their life! Robert Barnes, one of the founders of the higher studies at Cambridge, well known and universally beloved in Germany, who avowed the doctrines imbibed there without reserve, lost his life at the stake. For what the peasants had once demanded now again came to pass;—the heretics perished by fire according to the old statutes.

After some time a check was given to extreme acts of violence. Legal forms were supplied for the bloody laws, which softened their severity. To Archbishop Cranmer, who was likewise attacked, the King himself stretched out a protecting hand. When he once more made common cause with the Emperor against France, and undertook a war on the Continent, he previously ordered the introduction of an English Litany, which was to be sung in processions. The fact that the Bible was read in the vernacular, and popular devotional exercises retained in use, saved the Protestant ideas and efforts, despite all persecution, from extinction.

It gives a disagreeably grotesque colouring to the government of Henry VIII to see how his matrimonial affairs are mixed up with those of politics and religion. Queen Catharine Howard, whose marriage with him marked also the preponderance of the Catholic principle, was without any doubt guilty of offences like those which were imputed to her predecessor Anne: at her fall her relations, the leaders of the anti-Protestant party, lost their position and influence at court. The King then married Catharine Parr, who had good conduct and womanly prudence enough to keep him in good temper and contentment. But she openly cherished Protestant sympathies; and she was once seriously attacked on their account. Henry however let her influence prevail, as it did not clash with his own policy.

Now that once the sanctity of marriage had been violated, the place of King's wife became as it were revocable; the antagonistic factions sought to

overthrow the Queen who was inconvenient to them; that which has been at various times demanded of other members of the household, that they should be in complete agreement with the ruling system, was then required with respect to their wives, and indeed to the wife of the sovereign himself; the importance of marriage was now shown only by the violence with which it was dissolved.

This self-willed energetic sovereign however by no means so completely followed merely his own judgment as has been assumed. We saw how after Wolsey's fall he at first inclined to the protestant doctrines, and then again persecuted them with extreme energy. He sacrificed, as formerly Empson and Dudley, so Wolsey and now Cromwell to the public opinion roused against them. He recognised with quick penetration successive political necessities and followed their guidance. The most characteristic thing is that he always seemed to belong body and soul to these tendencies, however much they differed from each other: he let them be established by laws contradictory to each other, and insisted with relentless severity on the execution of those laws.

Under him, if ever, England appears as a commonwealth with a common will, from which no deviation is allowed, but which moves forward inclining now to the one side now to the other. It was no part of Henry VIII's Tudor principles and inclinations to call the Parliament together; but for his Church-enterprise it was indispensable. He gave its tendencies their way and respected the opinion which it represented: but at the same time he knew how to keep it at all times under the sway of his influence. Never has any other sovereign seen such devoted Parliaments gathered round him; they gave his proclamations the force of law, and allowed him to settle the succession according to his own views; they then gave effect to what he determined.

In this way it was possible for Henry VIII to carry through a political plan that has no parallel. He allowed the spiritual tendencies of the century to gain influence, and then contrived to confine them within the narrowest limits. He would be neither Protestant nor Catholic, and yet again both; an unimaginable thing, if it had only concerned these opinions: but he retained his hold on the nation because his plan of separating the country from the

Papal hierarchic system, without taking a step further than was absolutely necessary, suited the people's views.

In the earlier years it appeared as though he would alienate Ireland by his religious innovations, since there Catholicism and national feeling were at one. And there really were moments when the insurgent chiefs in alliance with Pope and Emperor boasted that with French and Scotch help they would attack the English on all sides and drive them into the sea. But there too it proved of infinite service to him that he defended dogma while he abandoned the old constitution. In Ireland the monasteries and great abbeys were likewise suppressed; the O'Briens, Desmonds, O'Donnells, and other families were as much gratified as the English lords and gentlemen with the property almost gratuitously offered them. Under these circumstances they recognised Henry VIII as King of Ireland, almost as if they had a feeling of the change of position as regards public law into which they thus came: they received their baronies from him as fiefs and appeared in Parliament.

Towards the end of his life Henry once more drew the sword against France in alliance with the Emperor. What urged him to this however was not the Emperor's interest in itself, but the support which the party hostile to him in Scotland received from the French. Moreover he did not trouble himself to bring about a decisive result between the two great powers: he was content with the conquest of Boulogne. He had reverted to his father's policy and resolved not to let himself be drawn over by any of his neighbours to their own interests, but to use their rivalry for his own profit and security.^[137]

And he was able to do yet more than his father to increase England's power of defence against the one or the other. We hear of fifty places on the coast which he fortified, not without the help of foreign master-workmen: the two great harbours of Dover and Calais he put into good condition and filled them with serviceable ships. For a long time past he had been building the first vessels of a large size (such as the Harry and Mary Rose) which then did service in the wars.^[138] It may be that the property of the monasteries was partly squandered and ought to have been better husbanded: a great part of their revenues however was applied to this purpose, and conferred much benefit on the country so far as its own peculiar interests were concerned.

The characteristic of his government consists in the mixture of spiritual and temporal interests, the union of violence with fostering care. The family enmities, which Henry VII had to contend with, are combined with the religious under Henry VIII, for instance in the Suffolk family: as William Stanley under the father, so Fisher and More under the son, perished because they threw doubt on the grounds for the established right, and still more because they challenged that right itself. It raised a cry of horror when it was seen how under Henry VIII Papists and Protestants were bound together and drawn to the place of execution together, since they had both broken the laws. Who would not have been sensible of this? Who would not have felt himself distressed and threatened? Yet at the opening of the Session of 1542, after the Chancellor had stated in detail the King's services (who had taken his place on the throne), Lords and Commons rose and bowed to the sovereign in token of their acknowledgment and gratitude. In the Session of 1545 he himself once more took up the word. In fatherly language he exhorted both the religious parties to peace; a feeling pervaded the assembly that this address was the last they would listen to from him; many were seen to burst into tears.

For his was the strong power that kept in check the fermenting elements and set them a law that might not be broken. On their antagonism, by favouring or restraining them, he established his strong system of public order. In Henry VIII we remark no free self-abandonment and no inward enthusiasm, no real sympathy with any living man: men are to him only instruments which he uses and then breaks to pieces; but he has an incomparable practical intelligence, a vigorous energy devoted to the general interest; he combines versatility of view with a will of unvarying firmness. We follow the course of his government with a mingled sense of aversion and admiration.

NOTES:

[123] *Papiers d'état du Cl. de Granvelle* ii. 147, 210.

[124] *Documents in the Corpus Reformatum* ii. 1032, iii. 42.

[125] Henry VIII to the judges—in Halliwell i. 342 (25 June 1535).

[126] Burnet, *History of the Reformation* i. 213. Soames, *History of the Reformation* ii. 157.

[127] Seckendorf, *Historia Lutheranismi* iii. 13, xxxix. p. 112: my German History iv. 46.

[128] Injunctions given by the authority of the King. Burnet's Collection p. 160.

[129] Prior of Charterhouse (Houghton), Speech, in Strype i. 313.

[130] Froude, *History of England* iii. 104.

[131] 'The people were unsatisfyed that the parliament was not held at York; but our King alledged that since they had not restaured all the religious houses [as they had promised] he was not bound strictly to hold promise with them.' Herbert, Henry VIII, p. 428.

[132] Los impedimentos en que esta S. M. por la malignidad del dicho rey de Francia que haze gran fundamento en la adherencia del dicho rey de Inglaterra, y la obstinacion ceguedad y pertinacia en que esta. (Report in the State Archives at Paris.)

[133] As it is said in the Emperor's letter of refusal to his ambassador at Rome. 'Los desviados de Germania se juntarian mas estrechamente con el rey de Inglaterra.' (Document in the Archives at Paris.)

[134] In a letter of the Emperor, 2 November, is mentioned 'le descontentement, que le roi d'Ingleterre prenoit de Anna de Bolans.' *Papiers d'état* ii. 224.

[135] Marillac au roi, 8 Juillet 1540. 'Le peuple l'aymoit et estimoit bien fort, comme la plus douce gracieuse humaine Reyne, qu'ils eurent onque.'

[136] A description of the scene, which deserves to be known, is contained in the letter of the French ambassador, Marillac, to the Constable Montmorency, 23 June 1540.

[137] Froude iv. 104.

[138] Marillac assures us that there were not more than eight vessels in England over 500 tons, that then the King built in 1540 fourteen larger ones, among them 'le grand Henri,' over 1800 tons; he had however 'peu de maistres que entendent a l'ouvrage. Les naufs (navires) du roi sont fournies d'artillerie et de munition beaucoup mieux que de bons pilots et de mariniers dont la plus part sont estrangers.' (Letter of 1 Oct. 1540.)

CHAPTER VI.

RELIGIOUS REFORM IN THE ENGLISH CHURCH.

The question arises, whether it was possible permanently to hold to Henry's stand-point, to his rejection of Papal influence and to his maintenance of the Catholic doctrines as they then were. I venture to say, it was impossible: the idea involves an historical contradiction. For the doctrine too had been moulded into shape under the influence of the supreme head of the hierarchy while ascending to his height of power: they were both the product of the same times, events, tendencies: they could not be severed from each other. Perhaps they might have been both modified together, doctrine and constitution, if a form had been found under which to do it, but to reject the latter and maintain the former in its completed shape—this was impracticable.

When it was seen that Henry could not live much longer, two parties became visible in the country as well as at court, one of which, however much it disguised it, was without doubt aiming at the restoration of the Pope's supremacy, while the other was aiming at a fuller development of the Protestant principle. Henry had settled the succession so that first his son Edward, then his elder daughter (by his Spanish wife), then the younger (by Anne Boleyn), were to succeed. As the first, the sovereign who should succeed next, was a boy of nine, it was of infinite importance to settle who during the time of his minority should stand at the helm. The nearest claim was possessed by the boy's uncle on the mother's side, Edward Seymour, Earl of Hertford, who had begun to play a leading part in Henry's court and army, was in close alliance with Queen Catharine Parr, and like her cherished Protestant sympathies. But the Norfolks with their Catholic sympathies who had previously so long exercised a leading influence on the government, would not give way to him. Norfolk's son, the Earl of Surrey, adopted the immoral plan of ensnaring the King, who though dying was yet supposed to be still susceptible to woman's charms, by means of his sister, in order to draw him back to the side of his family and the strict Catholics: a

plot which failed at once when his sister refused to play such a part. The ambitious announcements into which he allowed himself to be hurried away could only bring about the opposite result: he himself was executed, his father thrown into prison, and the man who could have done most in the Catholic direction, Bishop Gardiner, was struck out of the list of those who, after the King's death, were to form the Privy Council.^[139] Immediately afterwards, January 1547, Henry died. He had composed the Privy Council of men of both tendencies in the hope, as it appears, that in this way his system would be most surely upheld. But men were too much accustomed to see the highest power represented in one leading personage, for it to continue long in the hands of a Board of Councillors. From the first sittings of the Privy Council Edward VI's uncle, the Earl of Hertford, came forth as Duke of Somerset and Protector of the realm. In him the reforming tendency won the upper hand.

It appeared at once with full force at the Coronation, which was not celebrated at all after the form traced out by Henry VIII, since even this would have tied them far too much to the existing system; Cranmer, in the discourse which he there addressed to the young King, departed in the most decided manner from all the ideas hitherto attached to a coronation. Whither had the times of the first Lancaster departed, in which a special hierarchic sacredness was given to the Anointing through its connexion with Thomas Becket? Becket's shrine had been destroyed. The present Archbishop of Canterbury went back to the earliest times of human history: he brought forward the example of Josias, who likewise came to the government in tender years and extirpated the worship of idols: so might Edward VI also completely destroy image-worship, plant God's true service, and free the land from the tyranny of the Bishop of Rome; it was not the oil that made him God's anointed, but the power given him from on high, in virtue of which he was God's representative in his realm. His duty to the Church was changed into his duty to religion: instead of upholding the existing state of things, it at once pledges and empowers him to reform the Church.^[140]

The great question now was, how an alteration could be prepared in a legal manner, and how far it would be possible to maintain in this the constitution of the realm in its relation to the states of Europe. On the ground of the supremacy and of a precedent of Henry VIII, they began with a resolution to despatch commissions throughout the realm, to revive the suppressed

Protestant sympathies; the precedent was found in the ordinances that had once proceeded from Thomas Cromwell, just as if they had not in the least been annulled by what had happened since, but simply set aside by party feeling and neglect. They were to enquire whether, as therein ordered, the bishops had preached against the Pope's usurpation, the parish priests had taught men to regard not outward observances but fulfilment of duty as the real 'good works,' and had laboured to diminish feast-days and pilgrimages. Above all, images to which superstitious reverence was paid were at last to be actually removed: the young were to be really taught the chief points of the faith in English, a chapter of the Bible should be read every Sunday, and Erasmus' Paraphrase employed to explain it. In place of the sermon was to come one of the Homilies which had been published under the authority of the Archbishop and King. For this last ordinance also authority was found in an injunction of Henry VIII. Archbishop Cranmer, whose work they are, establishes in them the two principles, on which he had already proceeded in 1536, one that Holy Scripture contains all that it is necessary for men to know, the other that forgiveness of sins depends only on the merits of the Redeemer and on faith in Him. On this depends absolutely the possibility of rooting out of men's minds the belief in the binding force of Tradition, and the hierarchic views as to the merit of good works. The Archbishop's views were promoted by eloquent and zealous preachers such as Matthew Parker, John Knox, Hugh Latimer; more than all by the last, who had been released from the Tower, weak in body but with unimpaired vigour of spirit. The fact of his having maintained these doctrines in the time of persecution, his earnest way and manner, and his venerable old age doubled the effect of his discourses.

No direct alteration could be thought of so long as the Six Articles still existed with their severe threats of punishment. In the Parliament elected under the influence of the new government it needed little persuasion to procure their repeal. The Protector assured the members that he had been urgently entreated to effect this, since every man felt himself endangered.

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One of those popular beliefs gained ground, which are often more effective in great assemblies than elaborate proofs: the conviction that doctrine and authority were too closely akin for the separation from Rome to be

maintained without deviation in doctrine; the breach must be made wider if it was to continue, and the hierarchic doctrines give way.

So it came about that by a unanimous resolution of Convocation, which Parliament confirmed, the alteration was approved, which almost more than any other characterises those Church formularies that deviate from the Romish, the administration of the communion in both kinds.

Now it was exactly from this that the transformation of the whole divine worship in England proceeded. The very next Easter (1548) a new form for the communion office was published in English. This was followed, according to a wish expressed by the young King, by a Liturgy for home and church use, in which the revised Litany of Henry VIII was also included. In this 'Common Prayerbook' they everywhere kept to what was before in use, but everywhere also made changes. The Reforming tendencies obtained the upper hand in reference to its doctrinal contents; thus even one of the rubrics previously in favour by which auricular confession was declared to be indispensable was now omitted; it was left to every man's judgment to avail himself of it or not. At times they again sought out what had been disused in later ages: they recurred to Anglo-Saxon usages. The Common Prayer-book is a genuine monument of the religious feeling of this age, of its learning and subtlety, its forbearance and decision. In the Parliament of 1549 it was received with admiration: men even said it was drawn up under the inspiration of the Holy Spirit. The order went forth for its adoption in all churches of the land, no other liturgy was to be used; it has nourished and edified the national piety of the English people.^[142]

And just as it was now asserted that in all this they were only carrying out the views of the deceased King, as he had set them forth many years before and had at the last again proclaimed them, so now Somerset undertook to carry through another of his intentions as well, which was closely connected with his religious plans.

In 1542 Henry VIII had agreed with some of the most powerful nobles of Scotland that in that country too the Church should be reformed, all relations with France broken off, and the young Queen brought to England in order if possible to marry his son Edward at some future day. The scheme

broke down owing to all kinds of opposition, but the idea of uniting England and Scotland in one great Protestant kingdom had thus made its appearance in the world and could never again be set aside. The ambition to realise it filled the soul of Somerset. When, before the end of the summer of 1547, he took up arms, he hoped to bring about an acknowledgment of England's old supremacy over Scotland, to prepare the way for the future union of both countries by the marriage, and to annihilate the party there which opposed the progress of Protestantism. A vision floated before him of fusing both nations into one by a union of dynasty and of creed. It was mainly from the religious point of view that his ward regarded the matter. 'They fight for the Pope,' wrote Edward to the Protector when he was already in the field, 'we strike for the cause of God, without doubt we shall win.'^[143]

Somerset had already penetrated far into the land when he offered the Scots to retreat and make peace on the one condition that Mary should marry Edward VI. But the ruling party did not so much as allow his offer to be known. A battle took place at Pinkie, in which Somerset won a brilliant victory. Not a little did this victory contribute to establish his consequence in the world: even in Scotland some districts on the borders took the oath of fidelity to King Edward. But in general the antipathies of the Scotch to the English were all the more roused by it; they would hear nothing of a wooing, carried on with arms in the hand: the young Queen was after some time (August 1548) carried off to France, to be there married to the Dauphin. The Catholic interests once more maintained their ascendancy in Scotland over those of the English and the Protestants.

And how could Somerset's plans and enterprises fail to meet with resistance in England itself? All the elements were still in existence that had once set themselves in opposition to King Henry with such energy. When an attempt was made in earnest to carry out the innovations at home, in the summer of 1549, the revolt burst into flame once more.

In Cornwall a tumult arose at the removal of an image, and the King's commissary was stabbed by a priest. The troubles extended to Devonshire, where men forced the priests to celebrate the mass after the old ritual, and then took the field with crosses and tapers, and carrying the Host before them. When their numbers became so large as to embolden them to put

forth a manifesto, they demanded before all—incredible as it may seem—the restoration of the Six Articles and the Latin Mass, the customary reverence to the Sacrament and to images. They did not go so far as to demand the restoration of the authority of the Roman See, like the rebels under Henry VIII; but they pressed for a fresh recognition of the General Councils, and of the old church laws as a whole. At least half of the confiscated church property was to be given back, two abbeys at least were to remain in each county. But this movement owed its peculiar character to yet another motive. The enclosures of the arable land for purposes of pasture, of which the peasantry had been long complaining, did not merely continue; the nobility, which took part in the secularisation of the churchlands in an increasing degree, extended its grasp also to the newly-gained estates. So it came to pass that a rising of the peasants against the nobles was now united with tendencies towards church restoration, as in previous times with ideas of quite a different kind. East and West were in revolt at one and the same time and for different reasons. On a hill near Norwich, the chief leader, a tanner by trade, called Ket, took his seat under a great oak which he called the Oak of Reformation; he had the mass read daily after the old use: but he also planned a remodeling of the realm to suit the views of the people. The wildest expectations were aroused. A prophecy found belief according to which monarchy and nobility were to be destroyed simultaneously, and a new government set up under four Governors elected by the common people. And woe to him who wished to reason with the peasants against their design. They were already bending their bows against a preacher who attempted to do so, he was only saved with difficulty. But they were still less capable this time of withstanding the organised power of the State than they had been under Henry VIII. In Devonshire they were beaten by Lord Russel, the ancestor of the Dukes of Bedford; in Norfolk, where they had risen in the greatest force, by John Dudley Earl of Warwick. Under his banners we find German troops as well, who were untouched by the national sympathies, and in the rebels combated only the enemies of Protestantism. The government obtained a complete victory.

The insurrectionary movement was suppressed, but it once more produced a violent reaction in home affairs, by which this time the head of the government was himself struck down.^[144] Among English statesmen there is none who had a more vivid idea of the monarchical power than the

Protector Somerset. He started from the view that religious and political authority were united in the hand of the anointed King in virtue of his divine right. The prayer which he daily addressed to God is still extant; it is full of the feeling that to himself, as the representative and guardian of the King, not only his guidance but also the direction of all affairs is entrusted. Such was also the view of the young sovereign himself. In one of his letters he thanks the Protector for taking this employment on him, and for trying to bring his State to its lawful obedience, the country to acknowledge the true religion, and the Scots to submission. Somerset did not think himself bound by the opinion of the Privy Council, since with him, and with no other, lay the responsibility for the administration of the State. He held it to be within his competence to remove at pleasure those of its members who showed themselves adverse to him. He too had that jealousy of power, which always directs itself against those who stand nearest to it. There is no doubt that his brother, Thomas Lord Seymour, impelled by a restless ambition, hoped to overthrow the existing government and put himself in possession of the highest place, and committed manifold illegal acts; he—the Lord Admiral of the realm—even entered into alliance with the pirates in the Channel.^[145] But despite this it was thought at the time very severe when the Protector gave his word that the vengeance of the law should be executed on his brother. His reason was that Lord Seymour would not submit to sue in person for mercy to him the injured party and possessor of power. Such were these men, these brothers. The one died rather than pray for mercy: the other made the bestowal of it depend on this prayer, this confession of his supreme authority.^[146] The Protector took all affairs, home and foreign, exclusively into his own hand. Without asking any one, he filled up the ministerial and civil posts: to the foreign ambassadors he gave audience alone. He erected in his house a Court of Requests,^[147] which encroached not a little on the business of Chancery. The palace in the Strand, which still bears his name, was to be a memorial of his power; not merely houses and gardens, but also churches which occupied the ground, or from which he wished to collect his building materials, were destroyed with reckless arbitrary power. Great historical associations are indissolubly linked with this house. For it was Somerset after all, who through personal zeal opened a free path for the Protestant tendency which had originated under Henry VIII but had been repressed, and gave the English government a Protestant character. He connected with this not merely the Union of Scotland and

England, but a yet further idea of great importance for England itself. He wished to free the change of religion from the antipathy of the peasantry which was at that time so prominent. In the above-mentioned dissensions he took open part for the demands of the commons: he condemned the progress of the enclosures and gave his opinion that the people could not be blamed so heavily for their rebellion, as their choice lay only between death by hunger and insurrection. It seemed as though he wished in the next Parliament by means of his influence to carry through a legal measure in favour of the commons.

But by this he necessarily awakened the ill will of the aristocracy. He was charged with having instigated the troubles themselves by proclamations which he issued in opposition to the Privy Council; and with not merely having done nothing to suppress them but with having on the contrary supported the ringleaders and taken them under his protection.^[148] No doubt this was the reason why the campaign against the rebels in Norfolk was not entrusted to him, as he wished, but (after some vacillation) to his rival, John Dudley, Earl of Warwick. The victory gained by him, with the active sympathy of the nobility, which was defending its own interests, was a defeat for Somerset. Even those who did not believe that he had any personal share in the movement, nevertheless reproached him with having allowed conditions to be prescribed to himself and his government by the people; the common man would be King. Financial difficulties arising from an alteration in the coinage, and ill success in the war against France, contributed to give his opponents the ascendancy in the Privy Council. Somerset once entertained the idea of setting the masses in movement on his own behalf: one day he collected numerous bands of people at Hampton Court, under cover of summoning them to defend the King, by whose side his enemies wished to set up a regency. But this pretext had little foundation, it was only himself whom his rivals would no longer see at the head of affairs: after a short fluctuation in the relations between the main personages he was forced to submit. He saved his life for that time: after an interval he was released from prison and again entered the Privy Council: then he once more made an attempt to recover the supreme power by help of the people, but thus drew his fate on himself. The masses who regarded him as their champion showed him loud and heartfelt sympathy at his execution.

On Somerset's first fall it was said that the Emperor Charles V had a share in bringing it about, and this is very conceivable; for what result could be more displeasing to this sovereign than that Protestantism, which he was putting down in Germany, should have gained at the same moment a strong position in England: it is certain that the change of administration was greeted with joy by the court at Brussels.^[149]

But it brought the Emperor no advantage. At the moment the new government assumed a hostile attitude towards France: but soon afterwards the Earl of Warwick, who now took the lead of affairs as Duke of Northumberland, found himself driven to the necessity of making a peace with that power, by which Boulogne was given up and Scotland abandoned to French influence. One article of the treaty contains indirectly a renunciation of the proposed marriage between the King of England and the Queen of Scotland. And this treaty was greatly to the Emperor's disadvantage, since it now set the French free to renew the hostility against him which had been broken off some years before by an agreement all in his favour. They allied themselves for this purpose with the German princes who found the Emperor's yoke intolerable. These princes had even applied to the English government: and Edward would personally have been much inclined to lend an ear to their proposals. If the fear of being involved in war with the Emperor on this account withheld him from open sympathy, yet it is certain that his general political attitude essentially contributed to enable them to take up arms and break the Emperor's ascendancy.

Among the determining causes of a movement which is part of the history of the world must be specially reckoned the personal disposition of this prince, young as he was even at the close of his reign. Somerset had kept him rather close: the Duke of Northumberland gave him greater freedom, allowed him to manage his own money, and was pleased when he made presents and showed himself as King; he was careful to see that immediate obedience was paid him.^[150] Whilst Edward had been hitherto almost exclusively busied with his studies, he now turned to knightly exercises for which he also showed aptitude: he sat well on horseback, drew his bow and broke his lance as well as any other young man of his age. But with all this his learning was not neglected.^[151] Edward VI not merely possessed for his years extraordinary and manifold attainments; the written remains which are extant from his hand display a rare mental growth. What he has written

for instance on his connexion with the two Seymours, his uncles, indicates a clear and almost a judicial conception of existing relations, which is very uncommon. On his tutor's advice, to prevent his passing thoughts from getting confused, he regularly noted them down, and composed a diary which has the same characteristics and may be regarded as a valuable historical monument. But studies and religion coincide in him: he is Protestant to the core; his chief ambition is by means of his rank and power to place himself at the head of the Protestant world. The duke could not have ventured to oppose the progress of the Reformation.

In the days of distress, after the defeat in the Schmalkaldic war, England was regarded as the refuge of the gospel: men welcomed the scholars who fled thither, whose co-operation in the conflict with Catholicism, still so powerful, was very desirable. In Cranmer's palace at Lambeth were assembled Italians, French, Poles, Swiss, South Germans and North Germans; the Secretary of State, William Cecil, who had been trained in the service of the Protector, but had kept his place after his fall, obtained them the King's support. Martin Bucer and Paulus Fagius received promotion at Cambridge, Peter Martyr at Oxford: he there maintained the Calvinistic views on the communion in a great disputation. There were Walloon and French churches in the old centres of Catholic worship, Canterbury and Glastonbury; John a Lasco preached in the church of the Augustines in London. With no less vigour than these foreigners did natives, sometimes returned exiles, maintain the views then prevailing on the Continent. Under these influences it was impossible, in conformity with the view taken up in 1536, to abide by the dogmas, which had been put forth by the school of Wittenberg, now completely overthrown. The difference comes out very remarkably when we compare the Common Prayer-book of 1549 with the revised edition of 1552. Originally men had held fast to the real presence in England also: Cranmer in his catechism expressly declared for it: in the formula of the first book, which was compiled out of Ambrose and Gregory, this view was retained.^[152] but men in England had since convinced themselves that this doctrine had not prevailed so exclusively in Christian antiquity as had been hitherto thought: following the example of Ridley, the most learned of the Protestant bishops, the majority had given up the real presence: in the new Common Prayer-book a controversial passage was even inserted against it. First on their own impulse, and then with the help

of the Privy Council, the zealous Protestant-minded bishops removed the high altars from the churches and had wooden tables for the communion put in their place: since with the word Altar was associated the idea of Sacrifice.

It was now inevitable that the question from which all had started in England, as to the relation between State and Church, should be decided completely in favour of the secular principle. It is very true that Cranmer held fast to the objective view of the visible church. If the ceremonies were altered with which the Romish church imparts the spiritual consecration, yet in this respect only the mystical usages introduced in recent centuries were abandoned, and the ritual restored to the form used in more primitive times, especially in the African church. But it was surely a violent change, when those who wished to receive consecration were now previously asked, whether their inward call agreed both with the will of the Redeemer and the law of the land; they were required to assent to the principle that Scripture contains all which it is necessary for man to know, and to pledge themselves to guard against any doctrine not in conformity with Scripture. It is generally believed, and the fact is of lasting importance, that the Convocation of the clergy, a commission of the spirituality, the Primate-Archbishop and a number of bishops, took part in the change; but yet the decisive decrees went forth from the Parliament, to which the spiritual power had been irrevocably attached since Henry VIII, and sometimes from the Privy Council alone. To establish a normal form of doctrine, men set to work to compose a Confession, which was completed at that time in forty-two Articles. There had been a wish that Melanchthon should have come over in person to aid in composing it; at any rate his labours had much influence in deciding the shape it took. The Articles belong to the class of Confessions, as they were then framed in Saxony by Melanchthon, in Swabia by Brenz, to be laid before the coming Council. And it is just in this that their value lies, that by them England attached herself most closely to the Protestant community on the Continent. They are the work of Cranmer, who was entrusted with their composition by the King and Privy Council, and communicated his labours first to the King's tutor, Cheke, and the Secretary of State, Cecil: in conjunction with them he next laid them before the King; with the assistance of some chaplains their final form was given them; then the Privy Council ordered them to be subscribed. The influence

of the government on the nominations to the office of bishop was now still more open: the bishops were to hold office as long as they conducted themselves well,—in other words, as long as the ruling powers were content with them: the church jurisdiction was no longer administered in the name of the bishopric, but, like the temporal jurisdiction, in the King's name and under the King's seal; when they proceeded to revise the church laws, the primary maxim was, not to admit anything that contravened the temporal laws.^[153] The use of the power of the keys was also derived by Cranmer from the permission of the sovereign. Against this ever-increasing dependence some bishops of the old views made a struggle; to avoid coming into direct conflict with the supremacy, which they had acknowledged, they put forth the assertion that it could not be exercised by a King under age; they connived at the mass being read in side-chapels of their cathedrals, or refused to allow the change of the altars into communion-tables, or kept alive the controversy as to the doctrine of faith. The government on their side persisted in enforcing uniformity. They brought all opponents before a commission consisting of secular as well as ecclesiastical dignities, which had no scruple in pronouncing the deprivation of the bishops: a fate which befell Gardiner of Winchester, Bonner of London, Day of Chichester, Heath of Worcester. In vain did they plead that the court before which they were brought was not a canonical one; the government appealed to the general rights of the temporal power as it had once been exercised by the Roman Emperors. In the conflict of church opinions the Protestant-minded prelates now had the upper hand. Many who did not conform bought toleration from the government by sacrifices of money and goods. Elsewhere the newly-appointed bishops assented to concessions which did not always profit even the crown, but sometimes, as at Lichfield, private persons.^[154] Already the further question was discussed whether there is in fact any essential distinction between bishops and presbyters: a church of foreigners was set up in London, to present a pattern of the pure apostolic constitution as an example to the country. The government which had acquired such a thorough mastery over the clergy developed an open disinclination to the old forms of constitution in the church. Who could have said, so long as things remained in the path thus once entered upon, whither this would lead?

NOTES:

[139] Froude iv. 515 (extracts from the documents).

[140] Collier ii. 220 (Records lii).

[141] Proclamation of 8 July 1549 in Tytler, *England under Edward VI and Mary I*, p. 180.

[142] The point of view under which it was drawn up appears in a declaration inserted in the edition of 1549: 'the most weighty cause of the abolishment of certain ceremonies was, that they were abused partly by the superstitious blindness of the unlearned, and partly by unsatiable avarice.—Where the old (ceremonies) may be well used there they [their opponents] cannot reprove the old only for their age. They ought rather to have reverence unto them for their antiquity, if they will declare themselves to be more studious of unity and concord, than of innovations and newfangledness which—is always to be eschewed.'

[143] 12 Sept. 1547 in Halliwell ii. 31. Cranmer appointed a prayer in church for the marriage of Edward and Mary, 'to confound all those, which labour to the lett and interruption of so godly a quiet and amity.' In Somerset's prayer printed, since the first edition of this book, in Froude v. 47, it is said: 'Look upon the small portion of the earth, which professeth thy holy name; especially have an eye to thy small isle of Britain;—that the Scotismen and we might thereafter live in one love and amity, knit into one nation by the marriage of the King's Majesty and the young Scottish Queen.'

[144] Godwin, *Rerum Anglicarum Annales* 315.

[145] Proofs in Froude v. 136.

[146] So Queen Elizabeth tells us. Ellis, *Letters* ii. ii. 257.

[147] Cecil however was not the first Master of Requests: Thomas More already appears under this title; Nares, *Life of Burghley* i. 179.

[148] 'You have suffered the rebels to lie in camp and armour against the King his nobles and gentlemen; you did comfort divers of the said rebels.' Articles against the Lord Protector, in Strype, *Memorials of Cranmer* ii. 342.

[149] Marillac 26 Oct. 1549. 'Ceux-ci (at the Emperor's court) font une merveilleuse demonstration de joye de ce que le protecteur est abattu.' In Turnbull, *Calendar of State Papers* 1861 p. 47 an Instruction of the Council is mentioned, 'to acquaint the Emperor with the proceeding taken against the Duke of Somerset.' We should like to be better informed about this Instruction, in which too the Emperor was asked for aid.

[150] Soranzo, *Relatione d'Inghilterra* 1554. 'Per posseder la sua grazia ben amplamente, non solo faceva qualche spettacolo, per dargli piacere, ma gli diede liberta di danari.' *Florentine Collection* viii. 37.

[151] As he advises a friend: 'Apply yourself to riding shooting or tennis—not forgetting sometimes when you have leisure, your learning, chiefly reading the Scripture.' Halliwell ii. 49.

[152] Wheatly in Soames, *History of the Reformation* iii. 604.

[153] In the commission of 32 members (bishops, divines, civilians, lawyers) we find the names of Will. Cecil, Will Peters, Thomas Smith.

[154] Compare Heylin, *History of the Reformation* 50, 101.

CHAPTER VII.

TRANSFER OF THE GOVERNMENT TO A CATHOLIC QUEEN.

We can easily see how the power of the crown, founded by the first Tudor, and developed by the second through the emancipation from the Papacy, was further strengthened under the third. From Edward VI we have essays, in which he speaks about the spiritual and temporal government with the consciousness of a sovereign, whose actions depend only on himself. In the Homilies, which obtained legal sanction, there is found an express condemnation of resistance to the King, 'for Godes sake, from whom Kings are, and for orders sake.'

Whilst men were now expecting that Edward VI would arrive at manhood, and take the government completely into his own hands, and conduct it in the sense he had hitherto foreshadowed—not merely carrying out the Reformation thoroughly at home, but assuming the leadership of the Protestant world, symptoms appeared in him of the malady to which his half-brother Richmond had succumbed at an early age. But how then if the same fate befell him? According to Henry VIII's arrangement Mary was then to ascend the throne who, through her descent from Queen Catharine and from an inborn disposition which had become all the more confirmed by her opposition to her father and brother, represented the Catholic and Spanish interest. Nothing else could be expected but that she would employ the whole power of the State in support of her own views, would, so far as it could possibly be done, bring back the church to its earlier form, would depress the men who had hitherto played a great part by the side of the King and subject them to the opposite faction. But were they quietly to acquiesce in their fate?

The ambition of the Duke of Northumberland associated itself with the great interests of religion, to prevent the threatening ruin. He persuaded the young King that it lay in his power to alter his father's settlement of the succession, as in itself not conformable to law, neither Mary nor the younger sister Elizabeth being entitled to the throne, as the two marriages

from which they sprang had been declared illegal, and a bastard could not be made capable of wearing the English crown by any act of Parliament. Henry VIII had in his settlement of the succession passed over the descendants of his elder sister, married in Scotland, as foreigners, but acknowledged those of the younger, Mary of Suffolk, as the next heirs after his own children. Mary's elder daughter Frances had married Henry Grey of Dorset, who had already obtained the title of Suffolk, and had three daughters, the eldest of whom was Jane Grey. It was to her, whom the Duke of Northumberland married to one of his sons, that he now directed the King's attention, and induced him to prefer her to his sisters. Yet it was not so much to herself in person as to her male issue that Edward's attention was originally directed. Never yet had a Queen ruled in England in her own right, and even now there was a wish to avoid it. Edward arranged that, if he himself died without male heirs, the male heirs of Lady Frances, and if she too left none, then those of Lady Jane, should succeed. He hoped still to live till such an heir should be eighteen years old, in which case he could enter on the government immediately after himself. If his death occurred earlier, Jane was to conduct the administration during the interval, not as Queen but as Regent, and conjointly with a Council of government still to be named by him.^[155] This Council of executors was to avoid all war, all other change, and especially not to alter the established religion in any point: rather it was to devote itself to completing the ecclesiastical legislation in conformity with that religion, and to the abolition of the Papal claims.^[156] We see that Edward's view was, like that of many other sovereigns, to secure the continuance of his political and religious system of government for long years after his own death. The members of the Privy Council, before whom these arrangements were laid in the King's handwriting, promised on their oath and their honour to carry them out in every article, and to defend them with all their power.^[157]

And if the affair had been undertaken in this manner, who could say that it might not have succeeded? Northumberland did not neglect to form a strong family interest in favour of the new combination that he designed. He married his own daughter to Lord Hastings, who was descended from the house of York, and one of Jane's sisters with the son of the powerful Earl of Pembroke. He could reckon on the support of the King of France, to whom the succession of a niece of the Emperor was odious, and on the consent of

the Privy Council, which was in great part dependent on him; how could the Protestant feeling have failed to gain him a large party in the country, especially since something might be said for the plan itself.

But Edward VI's malady developed quicker than was expected. At the last moment he was further induced to award the succession not to the male heirs of Lady Jane, but to herself and her male heirs.^[158] He died with the prayer that God would guard England from the Papacy.

Lady Jane Grey had hitherto devoted her days to study. For father and mother were severe and found much in her to blame: on the other hand quiet hours of inward satisfaction were given her by the instructions of a teacher, always alike kindly disposed, who initiated her into learning and an acquaintance with literature: bending over her Plato, she did not miss the amusement of the chase which others were enjoying in the Park. After her marriage too, which did not make her exactly happy, she still lived thus with her thoughts withdrawn from the world, when she was one day summoned to Sion-House where she found a great and brilliant assembly. She still knew nothing of the King's death. What were her feelings, when she was told that Edward VI was dead; that to secure the kingdom from the Popish faith and the government of his two sisters who were not legitimate, he had declared her, Lady Jane, his heiress, and when the great dignitaries of the realm bent their knees and revered her as their Queen! At times they had already talked to her of her claim to the throne, but she had never thought much of it. When it now thus became a reality, her whole soul was overcome by it: she fell to the ground and burst into a flood of tears. Whether she had a full right to the throne, she could not judge: what she felt was her incapacity to rule. But whilst she uttered this, a different feeling passed through her, as she has told us herself: she prayed in the depths of her soul that, if the highest office belonged to her legally, God might give her the grace to administer it to his honour. The next day she betook herself by water to the Tower, and received the homage offered her. The heralds proclaimed her accession in the capital.

But here this proclamation was received in silence and even with murmurs. The succession had been settled by Henry VIII on the basis of an act of Parliament: nothing else was expected but that this would be adhered to, and Mary succeed her brother: that Edward without any legal authorisation

of a similar kind had now put a distant relative in his sister's place, seemed an open robbery of the lawful heir. It made no impression, that at the proclamation men were reminded of the Popery of the Princess Mary and her intention to restore the Papal power. Religious discord had not yet become so strong in England as to make men forget the fundamental principles of right on its account. The man who brought the princess the first news of Edward's death (which was still kept secret) remarks expressly in telling it, that he did not love her religion but abhorred the attempt to set aside lawful heirs. Mary prudently betook herself to Norfolk, where she had the most determined friends, to a castle on the sea; so as to be able, if her opponent should maintain the upper hand, to escape to the Emperor. But every one declared for her, the Catholics who saw in her the born champion of their religion and were strongest in those very districts, and the Protestants to whom the princess made some, though not binding, promises; she was proclaimed Queen in Norwich. If the Duke of Northumberland wished to carry out his projects, it was necessary for him to suppress this movement by force. He at once took the field for this purpose, with a fine body of artillery and two thousand infantry, and occupied a position in the neighbourhood of Cambridge.

It seemed as though the crown would once more be fought for in open field just as it had been a century before, and that in fact, just as then, the neighbouring powers would interfere. On Northumberland's side French help was expected; on the other hand application was already made to the Emperor to send armed troops over the sea to his cousin.^[159] It was not however this time to reach such a point: while the combination attempted in favour of Jane Grey met with strong popular resistance, it was shattered to pieces by internal discord. If the new Queen had such a good right as they told her, she would share it with none, not even with her husband; she would not appear as a creature of the Dudleys and a tool of their ambition: she would only name him a duke and would not allow him to be crowned with her as King. We recognise in this her high idea of the kingly power and its divine right; but we can also easily conceive that the discord which broke out on this point in the family could not but act on the members of the Privy Council, of whom only a section were in complete understanding with Northumberland, while the rest had merely yielded to the ascendancy of his power. While the duke was expecting armed reinforcements from

London, a complete revolution took place there: under the management of the Privy Council Mary was proclaimed Queen, and a summons sent to Northumberland to submit to her. The fleet which was destined to prevent Mary's flight had already declared for her; the troops which were called out in the counties to fight against her crossed over to her side; in Northumberland's camp the same opinion gained the upper hand: the duke felt himself incapable of withstanding it: he allowed himself to be carried along by it like the rest. Men saw the extraordinary spectacle of the man who had marched out to destroy Mary now ordering her accession to be proclaimed in his encampment, he accompanied the herald and himself cried out Mary's name.^[160] These English nobles have boundless ambition, they grasp with bold hand at the highest prizes: but they have no inner power of resistance, as against the course of events and public opinion they have no will of their own. However the duke might behave, he could not save either his freedom or his life. Soon afterwards Mary entered London amid the joyous shouts of the people. She was still united as closely as possible with her sister Elizabeth: they appeared together hand in hand. Jane Grey remained as a prisoner in the Tower, which she had entered as Queen. Never did the natural right of succession, as it was established by the testator of the inheritance and the Parliament, obtain a greater triumph.

After the succession was decided, the great questions of government came into the foreground, above all the question what position Mary should take up with regard to religious matters.

Among the Protestants the opinion prevailed that it could not yet be known whether she would not let religion remain in the state in which she found it. Towns where the Protestant feeling was strongest joyfully attached themselves to her in this expectation.

Her cousin, the Emperor Charles, who justly regarded her accession as a victory, and who from the first moment exercised the greatest influence on her resolutions, advised her before all things to moderate her Catholic zeal. She should reflect that many of the lords by whom she was now supported, a part of the Privy Council, and the people of London, were Protestants, and guard against estranging them. She should at once call a Parliament to show that she meant to rule in the accustomed manner, and take care that the

Northern counties, as well as Cornwall, where men still held the most firmly to Catholicism, were represented in it.

This good advice was not without influence on the Queen. In a tumult which arose two days after her arrival in the city, she had the Lord Mayor summoned in order to tell him that she would force no man's conscience, she hoped that the people would through good instruction come back to the religion which she herself professed with full conviction. When she repeated this soon after in a proclamation, she added that these things must shortly be ordered by common consent. But of what kind this order would be, there could be already no doubt after these words: she desired a change, but intended to bring it about in a legal manner.

In all the steps taken by her government her Catholic sympathies predominated. She felt no scruple in using the spiritual rights, which the constitution gave her, in favour of Catholicism. As 'Head of the Church next under God,' Mary forbade all preaching and interpretation of Scripture without special permission. But she entrusted the power of giving this permission to the same Bishop Gardiner who had offered the most persevering resistance to the Protestant tendencies of the previous government. The antagonism between the bishops entered again on an entirely new phase: the Catholics rose, the Protestants were depressed to the uttermost. Tonstal, Heath, and Day were, like Gardiner, restored to their sees on the ground of the protests lodged against the proceedings taken with reference to them at their deprivation, protests which were regarded as valid. Ridley had to give up the see of London again to Bonner: the Bishops of Gloucester and Exeter experienced the royal displeasure; not merely Latimer but also Cranmer were imprisoned in the Tower. Everywhere the images were replaced, in many churches the celebration of the mass was revived. Those preachers who declared themselves against it had to follow their bishops to prison. The Calvinistic model-congregation was dissolved. The foreign scholars quitted the country; and their most zealous followers also fled to the continent before the coming storm of persecution.

At the beginning of October the Queen's coronation took place with the old customary ceremonies, for which the Emperor's leading minister, Granvella, Bishop of Arras, sent over a vase of consecrated oil, on the mystical meaning of which great stress was again laid. The Queen had some scruples

about the coronation, as she wished previously to get rid of her title, 'Head of the Church': but the Emperor saw danger in delay; he thought the declaration she had in the deepest secrecy made to the Roman See, that she meant to re-establish its authority, removed any religious scruple. He fully approved of the coronation preceding the Parliament, and recommended the Queen, in virtue of her constitutional right, without any delay to name bishops and prelates, who might be useful to her at its impending meeting.

But the supreme power once constituted, as formerly in the civil wars, so also in the times of the Reformation movement, had always exercised a decisive influence on the composition of the Parliamentary assemblies; would not this then be the case when it had declared itself again Catholic? No doubt the government, at the head of which Gardiner appeared as Lord Chancellor, used all the means at its disposal to guide the elections according to its views. It appears to have been with the same motive that the Queen in a proclamation, which generally breathed nothing but benevolence, remitted payment of the subsidies last voted under her brother. Yet we can hardly attribute the result wholly to this. Parliamentary elections are wont to receive their impulse from the mistakes of the last administration and the evils that have come to light: and much had undeniably been done under Edward VI which could not but call forth discontent. The ferment at home was increased by financial disorder: church property had suffered enormous losses. But above all the supreme power had taken a sudden start in breaking through its ancient bounds. And, last of all, the Protestant tendencies had allied themselves with an undertaking which ran directly counter to the customary law and to previous Parliamentary enactments. And so it might come to pass that the same feelings swayed the elections which had mainly brought about Mary's accession.

But, after all, the result of these elections was not such as to make a complete return to the Papal authority probable. The Emperor Charles, who mainly guided the Queen's steps, warned her from attempting it. She had prayed him to communicate to her the Pope's declarations issued in favour of her hereditary right: he sent them to her, but with the advice to make no use of them, since they might involve her in difficulties without end. It seemed to him sufficient if the Parliament simply repealed the enactments which had formerly been passed respecting the invalidity of her mother's

marriage with her father. In the bill which was drawn up on this point in the Upper House it was merely stated that the marriage, in itself valid and approved by the wisest persons of the realm, had been made displeasing to the King through evil influences and annulled by a sentence of Archbishop Cranmer, on whom the greatest blame fell. To many men this seemed already going too far, since together with the dispensation the old church authority was again recognised: but as there was not a word about the Pope in it, this was less apparent: the bill was passed unanimously. The act might be regarded as a political one. On the other hand religion was very directly affected by the proposal to repeal the alterations in the church service which had been introduced under Edward VI, and to abolish the Common Prayer-book. On this ensued the hottest conflict. Once the proposal had to be laid aside: when it was resumed, the debate on it lasted six days: a third of the members were steadily against it. But in the majority the opinion again prevailed that Henry VIII's church constitution—retention of the Catholic doctrines and emancipation from the Papacy—was the most suitable for England: a resolution was carried to the effect that only such books as were in use under Henry VIII should be henceforth used in the church. The new forms of divine service, which contained a clearly marked body of doctrine, were abolished and the old ones restored.

The position which the Parliament took up in relation to another scarcely less important question coincided with this sense of national independence.

It was a very widespread wish in England that the Queen should give her hand to young Courtenay, son of that Marquis of Exeter who had himself once thought of marrying Mary against her father's wishes. He was a young man of suitable age, handsome figure, and mental activity; Mary had not merely freed him from the prison in which her brother had kept him, but also endowed him with the Earldom of Devon, one of his father's possessions; in this act many saw a token of personal inclination. Bishop Gardiner was decidedly in his favour, and we can conceive how a great ecclesiastic, who had the power of the state in his hands, wished to altogether exclude every foreign influence; he of course knew that Courtenay would also conform in church matters.

Gardiner spoke once with the Queen about it and was very pressing: she was absolutely against it. The old chronicle is entirely in error when it

repeats the then widespread rumour of Mary's inclination for Courtenay. Mary told the Imperial ambassador that she was altogether ignorant of what love was; she had never seen Courtenay but once in her life, at the moment when she released him. She intended to marry, since she was assured that the welfare of the realm required it, but not an Englishman, not one who was a subject. As in other things, so in this, she requested the Emperor to give her his advice.

Charles V would not have been absolutely against the plan of his cousin giving her hand to an English lord, whom England might obey more easily than a stranger: but, when she showed such an aversion to it, he did not hesitate for a moment as to what advice to give her. One of his brother's sons was taken into consideration, but rejected by him on the ground that there was already much ill-will against Spain stirring in the Netherlands, and a union of the German line with England might some day make it difficult for his own son to maintain those provinces: he therefore proposed him to the Queen. Don Philip, not yet thirty but already a widower for the second time, was just then negotiating for a marriage with a Portuguese princess. These negotiations were broken off and counter ones opened with England. Mary showed a joyful inclination to it at the first word: it was to this that her secret thoughts had turned.

It looked as if the dynastic union of the Burgundian-Spanish house with the English, which was also a political alliance and had been violently broken off at the same time with that alliance, would now be restored more closely than before, and this time for ever. Men took up the idea that Philip's eldest son was to continue the Spanish line, as Ferdinand and his sons the German, but that from the new marriage, if it should be blest with offspring, an English line of the house of Burgundy was to proceed: a prospect of the extension of the power of England and of her influence on the continent, which it was expected would set aside all opposition.

In England however every voice was against it, among nobles and commons, people and Parliament, high and low. The imperial court fully believed that it was Gardiner who brought the matter forward in Parliament. The House resolved to send a deputation to the Queen with the request that she would marry an Englishman. Mary, who had as high an idea of her prerogative as any of her predecessors or successors, felt herself almost

insulted; she interrupted the speech as soon as she understood its purport, and declared that Parliament was taking too much on itself in wishing to give her advice in this matter: only with God, from whom she derived her crown, would she take counsel thereon.^[161] When the Parliament, not satisfied with this, prepared a fresh application to her, it was dissolved.

But if this happened among men who adhered to her views in other points, what would those say who saw themselves, contrary to their expectation, oppressed and endangered by the Queen's measures in religious matters?

The agitation was so general that men caught at the hope of putting an end to all that was begun by a sudden rising. We find a statement which must not be lightly rejected, that the English nobility, which had taken great part in the Reformation movement and put itself in possession of much church property, came to an understanding at Christmas 1553, and decided on a general rising on the next Palm Sunday, 18th March.^[162] thus doing as the French, German, Netherlandish and Scotch nobility had done, who took the initiative in this matter. In Cornwall Peter Carew was to have the lead, in the Midland Counties the Duke of Suffolk, in Kent Thomas Wyatt. As the Queen's Privy Council was even now not unanimous, they hoped to bring about an overthrow of the government before it was yet firmly established: and either to compel the Queen to dismiss her evil counsellors and give up the Spanish marriage, or if she remained obstinate to put her sister Elizabeth in her place, who would then marry Courtenay. The French, who saw in the Queen's marriage with the prince of Spain a danger for themselves, urged on the movement, and had a secret understanding with the rebels; their plan was to support it by an incursion from Scotland where they were then the masters, and an attack on Calais.^[163] But as often happens with such comprehensive plans, the government detected them; the attempt to carry them out had to be made before the preparations were complete; in most of the places where an effort was made it was suppressed without much trouble. Carew fled to France; Suffolk, who in vain tried to draw Coventry over to his side, was captured. On the other hand Sir Thomas Wyatt's rising in Kent was formidable. He collected a couple of thousand men, defeated the royal troops, some of whom joined him, and as he had the sympathies of a great part of the inhabitants of London with him, he attempted forthwith an attack on the capital. But the new order of things had too firm a legal foundation to be so easily overthrown. The Queen betook herself to the

Guildhall and addressed the assembled people, decided as she was and confident in the goodness of her cause; the general feeling was in favour of supporting her. All armed for defence. For a couple of days, during which Wyatt lay before the city, every one was under arms, mayor, aldermen and people; the lawyers went to the courts with armour under their robes: priests were seen celebrating mass with mail under their church vestments. The Queen had some trustworthy troops, whose leader, the Earl of Pembroke, told her he would never show his face to her again if he did not free her from these rebels. When Wyatt at last appeared in Hyde Park with exhausted and badly fed men, he was met and beaten by an overwhelming body of Pembroke's troops; with a part of his followers he was driven into the city, and there made prisoner without much bloodshed.

It has always been reckoned to the Queen's credit that amid the alarm of these days she never quitted the unfortified palace. She had now an opportunity to rid herself completely of Northumberland's faction. Jane Grey, whose name at least had been mentioned, her father Suffolk, her uncle Thomas Grey, were executed; Wyatt also and a great number of the prisoners paid for their rebellion with their lives.^[164]

NOTES:

[155] King Edward: My devise for the succession: in 'Chronicle of Queen Anna, with illustrative documents and notes' by Nicholls, 89.

[156] King Edward's Minutes for his last will. In 'Chronicle of Queen Anna, with illustrative documents and notes' by Nicholls, 101.

[157] Engagement of the council, the signatures all autograph. Ibid. 90.

[158] This was done by a correction. The original text was 'to the Lady Jane's heires masle;' instead of 'Jane's,' the King now wrote 'to the Lady Jane and her h. m. (Nares' Burghley i. 452. Nicholls, 87.)

[159] Lettre écrite à l'empereur par ses ambassadeurs en Angleterre 19 Juill. Luy (au roi de France) sera facile, d'envoyer 2 ou 3 m. Français et quelques gens de chevaux. Plusieurs de ce royaume sont d'opinion, si V. M. assistoit ma dite dame (Mary) de gens et de secours contre le dit duc, la dite dame ne diminueroit en rien l'affection du peuple.

[160] Proclama avec le dict herault Mm. Marie à haute voix. Lettre des ambassadeurs a l'empereur. Papiers d'état de Granvelle iv. 58.

[161] To the reports of the French and Spanish ambassadors (compare Ambassades de M^{ss}. de Noailles en Angleterre ii. 269, Turner ii. 204, Froude vi. 124) may be added that of the Venetian: 'ch'ella si consiglierebbe con dio e non con altri.' I combine this with Noailles' account; for these ambassadors were immediately informed by their friends of the deputation and have noted down that part of the Queen's speech which made most impression on the bystanders.

[162] Soranzo Relatione 79, a testimony worth consideration, as Soranzo stood in a certain connexion with the rebels.

[163] So Simon Renard reports 24th Feb. 1553-4 to the Emperor after Wyatt's confession. 'Le roy feroit emprinse de coustel d'Escosse et de coustel de Guyenne (it should without doubt be Guisnes) et Calais': in Tytler ii. 207. Wyatt's statements in the 'State Trials' refer to a confession which is not given there, and from which the ambassador may have taken his account.

[164] Renard à l'empereur, 8 Feb. The communications in Tytler, which come from Brussels, and the Papiers d'état de Granvelle, which come from Besançon, supplement each other, yet even when taken both together they are still not quite complete.

CHAPTER VIII.

THE CATHOLIC-SPANISH GOVERNMENT.

The effort to overthrow Mary's throne had strengthened it: for the second time she had rallied around it the preponderant majority of the nation. And this was all the more surprising, since no one could doubt any longer in what direction the Queen's exclusive religious views would lead her. In her victory she saw a divine providence, by which it was made doubly her duty to persevere, without looking back, in the path she had once taken. In full understanding with her Gardiner proceeded without further scruple, in the Parliament which met in April 1554, to attempt to carry through the two points on which all else depended, the abrogation of the Queen's spiritual title, which implied restoration of the Pope's authority, and the revival of the old laws against heretics. These views and proposals however met with unexpected opposition, both in the nation, and no less in the Privy Council and Parliament, especially in the Upper House. The lay lords did not wish to make the bishops so powerful again as they had once been, and rejected the restoration of the Pope's authority unless they previously had security for their possession of the confiscated church property. The first proposition could not, so far as can be seen, even be properly brought forward:^[165] the second, the revival of the heresy laws, was accepted by the Commons over whom Gardiner exercised great influence, but the Peers threw it out. It was especially Lords Paget and Arundel who opposed Gardiner's proposals in the Privy Council and the Lords and caused their rejection.

Only in one thing were the two parties united, in recognising the marriage contract concluded with Spain: it was passed unanimously by Parliament.

In July 1554 Don Philip reached England with a numerous fleet, divided into three squadrons, with a brilliant suite on board. At Southampton the leader of one of the two parties, the Earl of Arundel, received him; Bishop Gardiner, the leader of the other, gave the blessing of the church to the marriage in Winchester cathedral. The day before the Emperor had resigned the crown of Naples to his son, to make him equal with the Queen in rank.

How grand it sounded, when the king-at-arms proclaimed the united titles: Philip and Mary, King and Queen of England, France, Naples, Jerusalem, Ireland! A title with an almost Plantagenet sound, but which now however only denoted the closest union between the Spanish monarchy and the Catholics of England. Philip was solicitous to gain over the different parties and classes of England: for he had been told that England was a popular monarchy. He belied his Spanish gravity and showed himself, despite the stiffness that was his natural characteristic, affable to every man: he tried to make the impression, and successfully, that he desired the prosperity of England. One of the chief resources of the time, that of securing the most considerable persons by means of pensions, he made use of to a great extent. Both parties were provided for by annual payments and presents, Pembroke and Arundel as well as Derby and Rochester. We are assured that this liberality exercised a very advantageous influence on the disposition of the country.^[166] Gardiner looked on it as a slight, that he was passed over in the list, for these pensions were considered at that time an honour, but this did not prevent him from praising the marriage in his sermons as ordained by heaven for the restoration of religion.

All now depended on whether the King's influence would be sufficient to carry at the next meeting of Parliament in November, the proposals which had been rejected in the last session.

But for this, according to the view not merely of the English lords, but of the imperial ambassador and of the Emperor himself, a previous condition was indispensable. The English nobles must be relieved from all apprehension lest the confiscated ecclesiastical property should ever again be wrested from them. Cardinal Pole had been already for some time residing in the Netherlands: but he was told that his arrival in England would be not merely fruitless but detrimental unless he brought with him a sufficient dispensation with regard to this. In Rome the concession was opposed on the ground that it would be setting a bad precedent. But when it was pointed out that the English confiscations did not touch any church lands, but only monastic property, and still more that without this concession the restoration of obedience to the church could not be attained, Pope Julius III yielded to the request. Two less comprehensive forms were rejected by the Emperor: at last one was granted which would satisfy the English. The form of the absolution which the Pope was to bestow after

their submission was previously arranged: it was agreed to avoid everything that could remind men of the old pretensions and awaken the national antipathies.

Meanwhile the elections to Parliament were completed. The proclamation issued gives the ruling points of view without reserve. An invitation to elect Catholic members of merit was coupled with the assurance that there was no intention of disturbing any kind of property. The means lately used for preventing any hostile influence were not yet sufficient: the advice was given from Brussels to go back to the older and stricter forms.

The leading men of the Upper House were won over: there could be no doubt about the tone of the Lower. At their first sitting a resolution to release Cardinal Pole from the attainder that weighed on him, and invite him to return to England, passed without opposition. Now the Emperor had no longer any scruple in letting him go. He said as to this very matter, that what is undertaken at the wrong time hinders the result which might else have been expected; everything has its time: the time for this appeared to him now come. From Philip we have a letter to his sister Juana in which he extols himself with much satisfaction for the share he had taken in recalling the cardinal and restoring the Papal authority. 'I and the most illustrious Queen,' he says in it, 'commanded the Parliament of the three Estates of the realm to recall him; we especially used our efforts with the chief among them to induce them to consent to the cardinal's return: at our order prelates and knights escorted him to our Court, where he has delivered to us the Breve of his Holiness.'—'We then through the Chancellor of the realm informed the Estates of what seemed to us becoming, above all how much it concerned themselves to come to a conclusion that would give peace to their conscience.'^[167]

The Parliament declared itself ready to return to the obedience of the Roman See, and repeal all the statutes against it, provided that the cardinal pronounced a general dispensation, that every man might keep without scruple the ecclesiastical property which had fallen to his share.^[168] On this understanding Cardinal Pole was allowed to exercise his legatine power, and the King and Queen were entreated to intercede that the absolution might be bestowed.

With heartfelt joy Cardinal Pole pronounced it without delay, first at a meeting of the Parliament in the palace, then with greater solemnity at S. Paul's at a high mass attended by the Court with a brilliant suite; among those present were the knights who wore the Burgundian order of the Golden Fleece, and those who wore the English Order of the Garter. The King stood by the Chancellor when from the outer corridor of the church he announced the event and its motives to the great crowds there assembled. It made an impression on the imperial ambassadors that no outward sign of discontent was heard.

The agreement that now followed bears more of a juridical than of a religious character. The jurisdiction was given back to the Pope which he possessed before the twentieth year of Henry VIII (1529): the statutes by which it was abolished were severally enumerated and repealed: on the other hand the Pope's legate in his name consented that the owners of church property should not be disturbed in their possession, either now or at any future time, either by church councils or by Papal decrees. Such property was henceforth to be quite as exclusively subject to the jurisdiction of the crown as any other; whoever dared to call in question the validity of the title in any spiritual court whatever, within or without the realm, was to be punished as an enemy of the Queen. The cardinal legate strove long to prevent the two enactments, as to the restoration of obedience and the title to the ecclesiastical property, from being combined together in one Act, since it might look as if the Pope's concession was the price of this obedience to him; he once said, he would rather let all remain as it was and go back to Rome than yield on this point. But the English nobility adhered immoveably to its demand; it wished to prevent all danger of the restoration of obedience becoming in any way detrimental to its acquisitions, an object which was clearly best secured by combining both enactments in a single statute, so that they must stand or fall together; even the King's representations effected no alteration in this; the cardinal had to comply.

On the other hand the King's influence, if we believe himself, had all possible success in the other affair, which was at any rate not less weighty. 'With the intervention of the Parliament,' he continues in the above-mentioned letter, 'we have made a law, I and the most illustrious Queen, for the punishment of heretics and all enemies of holy church; we have revived the old ordinances of the realm, which will serve this purpose very well.' It

was more especially the statute against the Lollards, by which Henry V had entered into the closest alliance with the hierarchy, that was to be re-enacted by Parliament. Gardiner had not been able to carry it through in the previous session, though it was known that the Queen wished it. Under the King's influence, who was accustomed to the execution of heretics in Spain, the Lords after some deliberation let their objections drop and accepted the bill.

If we put together these four great Acts, the abolition of the Common Prayer-book, the Spanish marriage, the restoration of obedience to Rome, and the revival of the heresy laws, we could hardly doubt the intention of the members of the government, and of the Parliament, to return completely to the ancient political and religious state of things. With some members such an intention may have been the predominant one: to assume it in all, or even in the majority, would be an error.^[169]

The agreement then legalised as to ecclesiastical property, and the abolition of the monastic system, already formed such an anomaly in the Roman Catholic church, that the ecclesiastical condition of England would have always retained a very abnormal character. And the obedience expressed was by no means complete. For it should have included above all a recognition of that right of dispensation, about which the original quarrel had broken out, and the revocation of the order of succession which was based on its rejection. In fact Gardiner's intention was to bring matters to this; being besides a great enemy and even persecutor of Elizabeth, he wished to see her illegitimacy pronounced in due form;^[170] the resolutions passed seemed necessarily to lead to it. Men however did not proceed this time so logically in England. They did not wish to base the future state of the realm on Papal decrees, but on the ordinances once enacted by King and Parliament. They could not deceive themselves as to the fact that Elizabeth, though she conformed outwardly, yet remained true at heart to the Protestant faith; but not on that account would the Parliament deny her right to the English throne. It also by no means entertained exactly Spanish sentiments. The Emperor expressed the wish that his son might be crowned: his ambassador's advice however was against proposing it in Parliament; since, with the high ideas entertained in England of the rights implied in the coronation, this would never be allowed. In the event of the Queen's dying before Philip, and leaving children, the guardianship was reserved to him:

but even for this object conditions had been originally proposed which would have been much more advantageous to him: these the Upper House threw out. So little was even then the policy of the Queen and King at the same time the policy of the nation and Parliament. In the Privy Council the old discords continued. The government obtained a greater unity by the fact that Gardiner, who now followed the Queen's lead in every respect, carried most of the members with him by the authority which her favour gave him. As Paget and Arundel, since they could effect nothing, refused to appear any more, there always remained a secret support for the discontent that was stirring. In the beginning of 1555 traces of a conspiracy in favour of Courtenay were again detected: if the inquiry into it led to no discovery, it was because—so it was thought—the commission entrusted with it did not wish to make any.

At this moment the revived heresy-laws began to be put into execution. Prosecutions were instituted for statements that under another order of things would have been considered as fully authorised. Still more than to single offences was attention directed to any variations in doctrine. In these proceedings we can remark the points which were then chiefly in question.

The first of the accused, one of the earliest and most influential of the martyrs, John Rogers, was reminded of the article which speaks of the faith in one holy catholic church; he replied that by it was meant the universal church of all lands and times, not the Romish, which on the contrary had deviated in many points from the main foundation of all churches, Holy Scripture. Rowland Taylor, who gloried in a marriage blest with children, which Gardiner would not acknowledge to be a marriage at all, maintained that Christian antiquity had allowed the marriage of priests. Gardiner accused him of ignorance. 'But,' said Taylor, 'I have read the Holy Scripture, the Latin and the Greek fathers;' a canon of the Nicene council, which was cited on the point, he interpreted far more correctly than the bishop. John Hooper was called in question because he held divorce to be permissible on the ground given in Scripture, and because he found that the view of the real presence had no foundation in Scripture.^[171] Their offence was the conception of church-communion as resting on the foundation of Scripture and extending therefore far beyond Romanism: the most telling defence could not save them here, for only the carrying out of old laws was concerned, and these unconditionally condemned such opinions. As the

condemned were being taken back by night to their prison, many householders came out of their doors with lights in their hands, to greet them with their prayers and thank them for their steadfastness: a deep and sorrowful sympathy, but one which scarcely dared to utter itself, and thus renounced the attempt to effect anything. Rogers suffered death in London, Hooper at his episcopal see of Gloucester, Taylor (who on the way showed as much good wit as Sir Thomas More had formerly done) in his parish, Saunders at Coventry, Ferrar in the market-place at Caermarthen. Their punishment, in every place where they had taught, was intended to confirm the doctrines they had rejected. There have been more bloody persecutions elsewhere: this was distinguished by the fact that many of the more eminent men of the nation became its victims. Among them, besides those we have named, were Ridley, who was looked on as the most learned scholar in England, the eloquent Latimer, Bradford a man of deep piety, Philpot who united learning and religion. How could Archbishop Cranmer, who had contributed almost more than any one to carry through the Reformation, who had pronounced the divorce of the Queen's mother, possibly find mercy? He persuaded himself of it once; and, yielding as he was, allowed himself to be tempted into a recantation, in despite of which he was condemned to death. But then there awoke in him also the whole consciousness of the truth of his belief. The hand with which he had signed the recantation he held firm, and let it burn in unutterable agony, as an expiation which he imposed on himself, before the flame of the faggots closed over him. The executions extended themselves over the whole country and even over the neighbouring islands; the diaries show that they continued till 1558. Many could have fled, but wished to testify to the firmness of their belief by dying for it, and thus to strengthen in their faith the people from whom they were taken away. Most of them showed a sublime contempt of death, which inflamed others to imitate them. How many would have been prepared to throw themselves with their friends into the flames! And no one could say that here there was any question of tendencies to revolt. The Protestants had on the whole kept themselves far from it: they did not contest the Queen's right to the throne; they died as her obedient subjects.

But now what an impression must these executions produce, combined with what preceded and followed them.

Gardiner appears in all this imperious, proud, and with that confident tone which the possessors of power assume, implying that they regard themselves as being also mentally superior; Bonner Bishop of London fanatical, without any power of discernment, and almost bloodthirsty. His attention was once drawn to the ill effects of his rough acts of violence; he replied that he must do God's work without fear of men. Under the last government they had both had much to endure: they had been deprived by their enemies and thrown into prison: now they employed the temporal arm in their own favour; they felt no scruple in sentencing their old opponents to death in accordance with the severity of the laws which they had again brought into active operation. Such was the issue of the contest between the bishops under the changing systems of government.

As Queen Mary is designated 'The Bloody,' we are astonished when we read the authentic descriptions, still extant, of her personal appearance. She was a little, slim, delicate, sickly woman, with hair already turning grey. She played on the lute, and had even given instruction in music; she had a skilful hand; on personal acquaintance she made the impression of goodness and mildness. But yet there was something in her eyes that could even rouse fear; her voice, which could be heard at a great distance, told of something unwomanly in her. She was a good speaker in public; never did she show a trace of timidity in danger. The troubles she had experienced from her youth, her constant antagonism to the authority under which she lived, had especially hardened in her the self-will which is recognisable in all the Tudors. A peculiarity found elsewhere also in gifted women, that they are weary of all which surrounds them at home, and give to what is foreign a sympathy above its worth, had become to her a second nature. She rejected with aversion the idea of marrying Courtenay, for this reason among others that he was an Englishman. She, the Queen of England, had no sympathy for the life, the interests, the struggles of her people: she hated them from her childhood. All her sympathies were for the nation from which her mother came, for its views and manners: her husband was her ideal of a man: we are assured that she even overlooked his infidelities to her because he did not enter into permanent relations with any other woman. Besides this he was the only man who could support her in the great project for which she thought herself marked out by God, the restoration of Catholicism.^[172] This is the meaning of her pledging herself in

her bedchamber before a crucifix, when she had not yet seen him, to give her hand to him and to no other. For with him and his fortunes were linked the hopes of a restoration of Catholicism. Mary was absolutely determined to do all she could to strengthen it in England. Gardiner assures us, and we may believe him in this, that it was not he who prompted the revival of the old laws against the Lollards; the chief impulse to it came on the contrary from the Queen. And as those laws ordered the punishment of heretics by fire, and Parliament had consented, and the orthodox bishops offered their aid, it would have seemed to her a blameable weakness, if out of feelings of compassion she had stood in the way of the execution of those laws, to the suspension of which the bishops ascribed the spread of heretical opinions. Many of the horrors which accompanied their execution may have remained concealed from her; still it cannot be doubted, that the persecutions would never have begun without her. No excuse can free her memory from the dark shade which rests on it. For that which is done in a sovereign's name, with his will and consent, determines his character in history.

The conduct of the Queen and her government, without whose help ecclesiastical authority would have been null and void, had a result that extended far beyond her time: men began to inquire into the claims of the temporal power. John Knox, who had now to fly from England before a Queen, as he had previously from Scotland before a Queen-regent, and whose word was of weight, poured forth his feelings in a piercing call, which he himself named 'a blast of the trumpet,' against the right of women to the government of a country, which ought to be exercised only by men. And while Knox went no further than the immediate case, others examined into the powers of all State authority: above all, to prevent its taking part in religious persecution, they brought forward the principles according to which sovereignty issues originally from the people. Mary's government had awakened in Protestantism, and that not merely in England, the hostility of political theory.

But besides no man could hide from himself, that discontent, even without theory, had grown in England in an alarming manner. The French and Imperial ambassadors both gave their courts information of it, the former with a kind of satisfaction, the latter with apprehension and pain. He laments the bad effect which the religious persecution produces, makes

pressing objections to it and demands that the bloody zeal of the bishops shall be moderated; but the matter was regularly proceeding in a kind of legal way; we do not find that he effected anything.

The Queen had hitherto flattered herself and her partisans with the hope that she would give the country an heir to the throne. When this expectation proved fallacious in the summer of 1555 it produced an impression which, as the imperial ambassador says, no pen could describe. The appearance had been caused by an unhealthy condition of body, which was now looked on rather as a prognostic of her fast approaching death. It is already clear, remarks the ambassador, that least confidence can be placed in those who have been hitherto most trusted: many a man still wears a mask: others even show their ill-will quite openly. For so badly is the succession at present arranged that my lady Elizabeth will without doubt ascend the throne on Mary's death and will restore heresy.

While things were in this state, Philip II was led to resolve on going to the Netherlands by the vicissitudes of the French war and his father's state of health; he wished either to bring about peace, or to push the war with energy.

He had hitherto exercised a moderating influence on the government. Not to let all fall back into the previous party-strife, he thought it best to give the eight leading members of the Privy Council a pre-eminent place in the management of business. He could not avoid admitting men of both parties even among these; but he had already found a man whom he could set over the others and trust with the supreme rule of affairs in complete confidence. This was Cardinal Pole, who after Cranmer's death received the Archbishopric of Canterbury, long ago bestowed on him at Rome, and was released from the duty of again returning to the Roman court. He was descended from the house of the Yorkist Suffolks, persecuted by the earlier Tudors with great severity; but how completely did this family difference recede before the world-wide interests of religion! He served with the most entire devotion a queen of the house of Lancaster-Tudor who on her side reposed in him unlimited reliance: she wished to have him about her for hours every day. Reginald Pole was a man of European and general ecclesiastical culture; he shared in a tendency existing within Catholicism itself, which approached very nearly to Protestantism on one dogmatic

question: we also hear that he would gladly have moderated the persecution;^[173] but when it is said, that the obstinacy of the Protestants hindered him in this, all that can be implied is, that they held fast to a confession which was now absolutely condemned by the hierarchic laws, while he was bound and resolved to carry these laws into effect. His chief care was above all not to be involved in English party-divisions: he therefore usually worked with a couple of Italian assistants who shared his sentiments and his plans. The union of the ecclesiastical and temporal authority is seen once more in Pole, as it had been in Wolsey: he combined the powers of a legate with the position of a first minister. His distinguished birth, his high ecclesiastical rank, the confidence of the King and Queen, enhanced by completely blameless personal conduct,^[174] procured him an authority in the country which seemed almost that of the sovereign.

A singular government this, composed of an absent king, who however had to be consulted in all weighty matters, a cardinal, and a dying queen who lived exclusively in church ideas. Difficulties could not be wanting: they arose first in church matters themselves.

We know how much the recognition of the alienation of the church property, to which Julius III was brought to consent by the Emperor, contributed to the restoration of church obedience; among the English nobility it formed the main ground of its submission. But in May 1555 Pope Paul IV ascended the Papal throne, in whom dislike of the Austro-Spanish house was almost a passion, and who wished to base his ecclesiastical reputation on the recovery of the alienated church property. His third Bull orders its restoration, including the possessions of monastic foundations, and the revenues hitherto received from them. The English ambassadors who had been sent to Rome under wholly different conditions, to announce the restoration of obedience, found this Pope there on their arrival. When they mentioned the confirmation of the alienation of the monastic property, he answered them in plain terms: for himself he would be ready to consent, but it lay beyond his power; the property of the church was sacred and inviolable, all that belonged to it must be restored to the uttermost farthing. And so ecclesiastically minded was Queen Mary that she in her heart agreed with the Pope. The monasteries in particular she held to be an indispensable part of the church-system, and wished for their restoration. Already the fugitive monks were seen returning: a number of Benedictines

who had remained in the country resumed the dress of their Order; the Queen made no secret of her wish to restore the monastery of Westminster in particular. Another side of church life was affected by the fact that, owing to the suppression of the great abbeys, a number of benefices, which were dependent on them, had lost their incomes and had fallen into decay. That Henry VIII should have appropriated to the crown the tenths and first-fruits, which belonged to the church, seemed to Queen Mary unjustifiable; she felt herself straitened in her conscience by retaining these revenues, and was prepared to give them back, whatever might be the loss to the crown. But she could not by herself repeal what had been done under authority of Parliament: in November 1555 she attempted to gain over that assembly to her view. A number of influential members were summoned to the palace, where first Cardinal Pole explained to them that the receipt of the first-fruits was connected with the State's claim of supremacy over the church, but that, after obedience was restored, it had no longer any real justification. He put forward some further reasons, and then the Queen herself took up the word. She laid the greatest stress on her personal wish. She asked the Parliament, after having shown obedience to her in so many ways, to prove to her that the peace of her soul lay near their hearts, and to take this burden from her. But the conception of the crown and its property had in England already ceased to be so merely personal. The most universally intelligible motive in the whole church-movement was the feeling, that the resources of the nation ought to be devoted to national purposes, and every one felt that the diminution of the royal revenues would have to be made up by Parliamentary grants. In addition to this, it appeared to be only the first step to such an universal restitution, as Pope Paul IV clearly contemplated and directed. Was there not much more to be said for the recovery of the church revenues from private hands than for their withdrawal from the crown which used them for public purposes?—A member of the Lower House wished to answer the Queen at once after her address: but, as he was not the Speaker, he was not allowed to do so.

When the proposal came under discussion in the Lower House, it met with lively opposition. A commission was then appointed, to which the Upper House sent two earls, two barons, and two bishops, and to which some lawyers were added; by these the proposed articles were revised and then laid before them again. The decisive sitting was on the 3rd December 1555.

The doors were closed: no stranger was allowed to enter nor any member to leave the House. After they had sat in hot debate from early morning till three in the afternoon—just one of those debates, of which we have to regret that no detailed account has survived—the proposal was, it is true, accepted, but against such a large minority as was hitherto unheard of in the English Parliament, 120 votes to 183. Queen and cardinal regarded it as a great victory, for they had carried their view: but the tone of the country was still against them. However strong the stress which the cardinal laid on the statement that the concession of the crown was not to react in any way on private men's ownership of church property, the apprehension was nevertheless universal,^[175] that with the Queen's zeal for the monasteries, and a consistent carrying out of the Pope's principles, things would yet come to this. But the interests which would be thus injured were very widespread. It was calculated that there were 40,000 families which in one way or another owned part of the church property: they would neither relinquish it nor allow their title to be called in question. Powerful lords were heard to exclaim that they would keep the abbey-lands as long as they had a sword by their side. The popular disposition was reflected in the widespread rumour, which gained credence, that Edward VI was still alive and would soon come back.

From time to time seditious movements showed the insecurity of the situation. At the beginning of 1556 traces were detected of a plan for plundering the treasury in order to levy troops with the money.^[176] The Western counties were discontented because Courtenay was removed from among them: he died subsequently in Italy. Sir Henry Dudley, the Duke of Northumberland's cousin, rallied around him some zealous and enterprising malcontents, who planned a complete revolution: he found secret support in France, whither he fled.^[177] In April 1557 a grandson of the Duke of Buckingham, Thomas Stafford, also coming from France, landed and made himself master of Scarborough castle. He had only a handful of followers, but he ventured to proclaim himself Protector of the realm, which he promised to secure against the tyranny of foreigners, and 'the satanic designs of an unlawful Queen.' He was crushed without difficulty. But in the general ferment which this aroused, it was observed how universal was the wish for a change.^[178]

Meanwhile foreign affairs took a turn which threatened to involve England in a dangerous complication. The peace between the great powers had not been concluded: the truce they had made was broken off at the instigation of the Pope; hostilities began again, and Philip II returned to England for a couple of months to induce her to join in the war against France. The diplomatic correspondence shows that the imperial court from the beginning valued their near relation to England chiefly as the basis of an alliance against France. We can easily understand how this early object was now attained. Besides many other previous wrongs, Stafford's enterprise, which was ascribed to the intrigues of France, was a motive for declaring war against that Power. And a French war still retained its old charm for the English: their share in it surpassed all expectation. The English land forces co-operated with decisive effect in the great victory of S. Quintin, and similarly the appearance of the English fleet on the French coasts ensured Philip's predominance on the ocean. But it is very doubtful whether this was the part the English power should have played at this moment. By his father's abdication and retirement into the cloister Philip had become lord and master of the Spanish monarchy. Could it be the mission of the English to help in consolidating it in his hands? On the foundation then laid, and mainly through the peace which France saw herself compelled to make, its greatness was built up. For the Spanish monarchy the union with England, which rested on the able use to which the existing troubles and the personal position of the Queen were turned—and which, strictly speaking, was still a result of the policy of Ferdinand the Catholic—was of indescribable advantage: to the English it brought a loss which was severely felt. They had neglected to put Calais in a proper state of defence; at the first attack it fell into the hands of the French. The greatest value was still laid in England on a possession across the sea, which seemed indispensable for the command of the Channel; its extension was the main object of Henry VIII's last war: that now it was on the contrary utterly lost was felt to be a national disaster; the population of the town, which consisted of English, was expelled together with the garrison.

And as Pope Paul IV was now allied with the King of France, the result was that he found himself at war with Philip II (whom he tried to chase from Naples), and hence with England as well. His hatred to the house of Austria, his aversion to the concessions made in England with reference to church

property, and to the religious position which Cardinal Pole had hitherto taken up in the questions at issue within the Catholic Church, determined the Pope to interfere in the home affairs of England with a strong hand. For these Cardinal Pole was the one indispensable man, on whose shoulders the burden of affairs rested. But it was this very man whom Paul IV now deprived of his legatine power, on which much of his consequence rested, and transferred it to a Franciscan monk.

But what now was the consequent situation of affairs in England! The Queen, who recognised no higher authority than that of the Papal See, was obliged to have Paul IV's messages intercepted, lest they should become known. While the ashes of the reputed heretics were still smoking on their Calvaries, the man who represented the Catholic form of religion, and was working effectively for its progress, was accused of falling away from the orthodox faith, and summoned to Rome to answer for it.

Meanwhile England did not feel herself strong enough, even with the help that Philip offered, to attempt the reconquest of Calais. The finances were completely disordered by the war; and the Parliament showed little zeal in restoring the balance: just before this the Queen had found herself obliged even to diminish the amount of a subsidy already as good as voted. However unwilling she might be to take the step after her previous experiences, she had to decide once more in the autumn of 1558 on calling a Parliament. Circumstances wore an appearance all the more dangerous, as the Scotch were allied with the victorious French: the Queen represented to the Commons the need of extraordinary means of defence. A number of the leading lords appeared in the Lower House to give additional weight to the demand of the Crown by their presence. The Commons, though not quite willingly, were proceeding to deliberate on the subsidies demanded, when an event happened which relieved them from the necessity of coming to any resolution.

A tertian or quartan fever was then prevalent in the Netherlands and in England, which was very fatal, especially to elderly persons of enfeebled health.^[179] The Queen, who had been for some time visited by her usual attacks of illness, could not resist this disease, when suffering besides, as she was, from deep affliction at the disappointment of all her hopes, and from heart-rending anticipations of the future: once more she heard mass in

her chamber—she died before it was ended, on the 17 November 1558. Cardinal Pole also was suffering: completely crushed by this news he expired the following night. It was calculated that thirteen bishops died a little before or after the Queen. As if by some predetermined fate the combination of English affairs which had been attempted during her government came at once to an end.

NOTES:

[165] The Queen imputed the chief blame to Paget 'Quand l'on a parlé de la peyne des heretiques, il a sollicité les Seigneurs pour non y consentir ny donner lieu à peyne de mort' Renard à l'empereur, in Tytler ii. 386.

[166] Les seigneurs quilz ont pension du roy font tels et si bons offices es contrées et provinces du roy ou ils ont charge que l'on ne oye dire si non que le peuple est content de l'alliance; ce que divertit les mauvais.' Renard à l'empereur, 13 Oct. Papiers d'état iv. 348.

[167] Carta del rey Don Felipe a la princesa de Portugal Donna Juana su hermana, in Ribadeneyra, Historia del Scisma 381.

[168] Renard informs King Ferdinand that this resolution would be adopted the 29 Nov (Papiers d'état iv. 344), 'Confiant que la dispense soit generale, pour sans scrupule confirmer la possession des biens ecclesiastiques es mains de ceux qui les tiennent.'

[169] 'La chambre haulte y faict difficulté pour ce, que l'autorité et jurisdiction des évesques est autorizee et que la peine semble trop grievve.' Renard à l'empereur, Papiers d'état iv. 347.

[170] Renard, *ibid.* 341. 'Le chancellier insistoit, que l'on declaira Mme. Elizabeth bastarde en ce parlement' They feared 'l'evidente et congne contrariété qui seroit en tout le royaume.'

[171] *Condemnatio Johannis Hooper*, in Burnet Coll. iii. 246. Compare Foxe, *Martyrs* vol. iii; Soames iv.

[172] According to a despatch of Micheli (25 Nov. 1555) she says to the Parliament: 'che non ad altro fine dalla Maesta di dio era predestinata e riservata alla successione del regno, se non per servirsi di lei principalmente nella riduzione alla fede cattolica.'

[173] *Erat tanta in plerisque animorum obstinatio ac pertinacia, ut benignitati et clementiae nullum plane locum relinquerent.* Vita Poli, in Quirini i. 42.

[174] Micheli, *Relatione*, 'Incontaminatissimo da ogni sorte di passione et interessi humani, non prevalendo in lui ni l'autorità de principi ni rispetto di sangue ni d'amicizia.'

[175] 'Assicurando e levando il sospetto, che per quello che privatamente ciascuno possedeva, non sarebbe mai molestato ni travagliato.' Micheli, despatch 25 Nov., from whose reports I draw my notices of these proceedings in general.

[176] Micheli, despatch 1556, 7 April, notes 'la maggior parte dei gentilhuomini del contado di Dansur (Devonshire) come conscii et partecipi della congiura.' 5 Magg. 'Tutta la parte occidentale è in sospetto.'

[177] The Constable to Noailles, Amb. v. 310. 'Le roy a advisé d'entretenir doucement Dudelay et secrettement toute fois, pour s'en servir s'il en est de besoiing luy donnant moyen d'entretenir aussi par de là des intelligences, qu'il faut retenir.'

[178] Suriano, despatch 29 April 1557. 'Si è scoperto l'animo di molti, che non si sono potuti contener di mostrarsi desiderosi di veder alteration del stato presente.'

[179] Godwin 470 'Innumeri perierunt, sed aetate fere provectiones et inter eos sacerdotum ingens numerus.'

BOOK III.

QUEEN ELIZABETH. CLOSE CONNEXION OF ENGLISH AND SCOTCH AFFAIRS.

To appreciate the motives which led Henry VIII to attach such importance to a male heir, and to exclude his daughter by the Spanish marriage from the succession, we need only cast our eyes on what happened under her, when in spite of all she had become Queen. The idea with which the Tudors had ascended the throne, and administered the realm, that of founding a political power strong in itself and alike independent of home factions and foreign influence, was sacrificed by Mary to her preference for the nation from which her mother came and from which she chose her husband. The military power of England served to support the Spanish monarchy at a dangerous and doubtful moment in the course of its formation. And while Mary's father and brother had made it the object of their policy to deprive the hierarchy of all influence over England, she on the contrary reinstated it: she put the power and all the resources of the State at its disposal. Though historically deeply rooted, the Catholic tendency showed itself, through the reactionary rule which it brought about and through its alliance with the policy of Spain, pernicious to the country. We have seen what losses England suffered by it, not merely in its foreign possessions, but—what was really irreparable—in men of talent and learning, of feeling and greatness of soul; and into what a state of weakness abroad and dissolution at home it thereby fell. A new order of things must arise, if the national element, the creation of which had been the labour of centuries, was not to be crushed, and the mighty efforts of later ages were not to succumb to religious and political reaction.

CHAPTER I.

ELIZABETH'S ACCESSION. TRIUMPH OF THE REFORMATION.

During Mary's government, which had been endurable only because men foresaw its speedy end, all eyes were directed to her younger sister Elizabeth. She was the daughter of Anne Boleyn, who bore her under her heart when she was crowned as Queen. After many changes, Henry VIII, in agreement with Parliament, had recognised her right of inheritance; the people had risen against the enterprise of the Duke of Northumberland for her as well as for Mary. And it had also been maintained against Mary herself. Once, in Wyatt's conspiracy, letters were found, which pointed at Elizabeth's having a share in it: she was designated in them as the future Queen. The predominant Spanish-Catholic party had her examined and would have much wished to find her guilty, in order to rid themselves of her for ever. But Elizabeth was not so imprudent as to lend her hand to a movement, which if unsuccessful—a result not hard to foresee—must destroy her own good title. And moreover she, with her innate pride, could not possibly have carried out the wishes of the French by marrying Courtenay, whom her sister had rejected. The letter, which she wrote to Mary at this crisis, is full of unfeignedly loyal submission to her Queen, before whom she only wishes to bend her knee, to pray her not to let herself be prejudiced by false charges against her sister; and yet at the same time it is highminded and great in the consciousness of innocence. Mary, who was now no longer her friend, did not vouchsafe her a hearing, but sent her to the Tower and subjected her to a criminal examination. But however zealously they sought for proofs against her, yet they found none: and they dared not touch her life unless she were first publicly found guilty. She was clearly the heiress to the throne appointed under the authorisation of Parliament: the people would not give up the prospects of the future which were linked with her. When she appeared in London at this moment of peril, surrounded by numerous attendants, in an open litter, with an expression in which hopeful buoyant youth mingled with the feeling of innocence and distress, pale and proud, she swayed the masses that crowded round her

with no doubtful sympathy.^[180] When she passed through the streets after her liberation, she was received with an enthusiasm which made the Queen jealous on her throne.

Yet Elizabeth was not merely the head of the popular opposition to her sister's policy: from the first moment onwards she was in collision with another female foe, whose pretensions would determine the relations of her life. If Henry VIII formerly in settling the succession passed over in silence the rights of his married sister in Scotland, which had now come to her granddaughter Mary Stuart, the memory of them was now all the more vividly revived by the Catholic party in the country. For with the religious reverence which men devoted to the Papacy it was not at all possible to reconcile the recognition of Elizabeth, whose very existence was as it were at variance with it. Nor was a political motive for preferring Mary Stuart wanting. That for which Henry VIII and Somerset had striven so zealously, the union of England and Scotland, would be thus attained at once. They were not afraid that Scotland might thus become predominant; Henry VII at the conclusion of the marriage, having his attention drawn to this possible risk, replied with the maxim, that the larger and more powerful part always draws the smaller after it. The indispensable condition for the development of the English power lay in the union of the whole island: this would have ensued in a Catholic, not in a Protestant, sense. Was not this union of political advantage and religious concord likely to influence the Privy Council of England, which under Mary was again zealously Catholic, and also to influence Queen Mary Tudor herself?

Great political questions however do not usually present themselves to men in such perfect clearness, but are seen under the modifying circumstances of the moment. It was at that time all important that Mary Stuart had married the Dauphin: she would have united England not merely with Scotland, but at the same time with France, thus bringing it for ever under the influence of that country. How revolting must such a prospect have been to all English feeling! England would have become a transmarine province of France, it would in time have been absorbed like Brittany. Above all, French policy would have completely gained the upper hand in Europe. This apprehension induced the Spanish statesmen—Elizabeth's eager enemies as long as they expected their King to have issue of Mary Tudor—when this hope failed, to give the princess sympathy and attention. Philip II,

when her troubles revived (for both Gardiner and Pole were her enemies), informed her through secret messengers, that he was her good friend and would not abandon her. Now that Mary was failing before all men's eyes, and every one was looking forward to her death, it was his evident interest to further Elizabeth's accession. In this sense spoke his ambassador Feria, whom he sent at this moment to England, before the assembled Privy Council,^[181] even Mary was urged to declare herself to the same effect. From an advice written for Elizabeth during the first moments of her reign we see that all still looked very dangerous: she was urged in it to possess herself of the Tower and there to receive the allegiance of the high officers of State, to allow no departure from the English ports, and so on. Men expected turbulent movements at home, and were not without apprehension of an attempt at invasion from France. The decision however followed without any commotion and on the spot. Though most of its members were Catholic, the Privy Council did not hesitate. A few hours after Mary's decease the Commons were summoned to the Upper House, to receive a communication there: it was, that Mary was dead, and that God had given them another Queen, My lady Elizabeth. The Parliament dissolved; the new Queen was proclaimed in Westminster and in London. Some days afterwards she made her entry into the capital amidst the indescribable rejoicings of the people, who greeted her accession as their deliverance and their salvation.

But if this, as we see, involved in its very essence a hostile attitude towards France and Scotland, on the other hand the question was at once laid before the Queen, and in the most personal way imaginable, how far she would unite herself with Spain, the great Power which was now on her side. Philip resolved, inasmuch as propriety in some measure allowed it, to ask for her hand—not indeed from personal inclination, of which there is no trace, but from policy and perhaps from religion: he hoped by this means to keep England firm to the Spanish alliance and to Catholicism.^[182] And on the English side also much might be said for it. An ally was needed against France, even to obtain a tolerable peace: there was some danger that Philip, if rejected by the Queen, might perhaps marry a French princess; to be secure against the French claims the Queen seemed to need the support of Spain. Her first answer was not in the negative. She declared she must consult with Parliament as to the King's proposal: but he might be assured

that, if she ever married, she would not give any one else the preference over him.

Well considered, these words announce at once her resolution not to marry. Between Mary Tudor who thought to bring the crown to the heir of Spain, and Mary Stuart similarly pledged to the heir of France, nothing was left for her—since she would not wish the husband of her choice to be of inferior rank—but to remain unmarried. From listening to Philip's wooing she was kept back by her sister's example, whose marriage had destroyed her popularity. And for Elizabeth there would have been yet another danger in this alliance. Was not her legitimacy dependent on the invalidity of her father's marriage with his brother's widow? It would be a very similar case if she were to marry her sister's husband. Besides she would have needed the Pope's dispensation for such a union—as Philip had already explained to her—while her birth and crown were the results of a Papal dispensation being declared a nullity. She would thus have fallen into a self-contradiction, to which she must have succumbed in course of time. When told that Philip II had done her some service, she acknowledged it: but when she meditated on it further, she found that neither this sovereign nor any other influence whatever would have protected her from her enemies, had not the people shown her an unlimited devotion.^[183] This devotion, on which her whole existence depended, she would not forfeit. After a little delay she let Philip know that she felt some scruples as to the Papal dispensation. She gave weight to the point which had been under discussion, but added that she was altogether disinclined to marry. We may doubt whether this was her immoveably formed resolution, considering how often afterwards she negotiated about her marriage. It might seem to her allowable, as an instrument of policy, to excite hopes which she did not mean to fulfil: or her views may in fact have again wavered: but these oscillations in her statements can mean nothing when set over against a great necessity: her actual conduct shows that she had a vivid insight into it and held firm to it with tenacious resolution. She was Henry's daughter, but she knew how to keep herself as independent as he had thought that only a son could possibly do. There is a deep truth in her phrase, that she is wedded to her people: regard to their interests kept her back from any other union.

But if she resolved to give up the relation of close union in which England had hitherto stood with Spain, it was indispensable to make peace with France. It was impossible to attain this if she insisted on the restoration of Calais; she resolved to give it up, at first for a term of years. Of almost the same date as her answer of refusal to Philip's ambassador is her instruction empowering her ambassador to let Calais go, as soon as he saw that the Spaniards would conclude their peace with France without stipulating for its restoration. She was able to venture this, for however deeply the nation felt the loss of the place, the blame for it could not be imputed to her. Without repeating what was then asserted, that her distinct aim was to turn the hatred of the nation against the late government and its alliance with Spain, we may still allow that this must have been the actual result, as it really proved to be. It was indeed said that Philip II, who not merely concluded peace with France but actually married a daughter of Henry II, would make common cause with him against England: but Elizabeth no more allowed herself to be misled by this possibility, which also had much against it, than Henry VIII had been under similar circumstances. Like him and like the founder of her family, she took up an independent position between the two powers, equally ready according to circumstances for war or peace with one or the other.

Meanwhile she had already proceeded to measures which could never have been reconciled with the Spanish alliance, and to ecclesiastical changes which first gave her position its true character.

Her earliest intimation of again deviating from the Church was given by restoring, like a devoted daughter, her father's monument, which Mary had levelled with the ground. A second soon followed, which at once touched on the chief doctrine in dispute. Before attending a solemn high mass she required the officiating bishop to omit the elevation of the host. As he refused, she left the church at the moment the ceremony was being consummated. To check the religious strife which began to fill the pulpits she forbade preaching, like her predecessors; but she allowed the Sunday Lessons, the Litany, and the Creed to be read in English. Elizabeth had hitherto conformed to the restored Catholic ritual: it could not be quite said that she belonged to either of the existing confessions. She always declared that she had read no controversial writings. But she had occupied herself with the documents of the early Church, with the Greek and Latin Fathers,

and was thoroughly convinced that the Romanism of the later centuries had gone far astray from this pattern. She had made up her mind, not as to every point of doctrine, but as to its general direction: she believed too that she was upheld and guarded by God, to carry out this change. 'How wonderful are God's ordinances,' she exclaimed, when she heard that the crown had fallen to her.

What course however was now to be taken was a question which, owing to the antagonism of the factions and the close connexion of all ecclesiastical and political matters, required the most mature consideration.

The Queen was advised simply to revert to Edward VI's regulations, and to declare all things null and void that had been enacted under Mary, mainly on the ground that they had been enacted in violation of legal forms. A speech was laid before her, in which the validity of the last elections was disputed, since qualified members had been excluded from the sittings of both houses, although they were good Englishmen: the later proclamations of summons were held to be null, because in them the formula 'Supreme Head of the English Church' had been arbitrarily omitted, without a previous resolution of Parliament, though on this title so much depended for the commonwealth and people: but no one could give up a right which concerned a third person or the public interest; through these errors, which Mary had committed in her blindness, all that had then been determined lost its force and authority.^[184] But the Queen and her counsellors did not wish to go so far. They remarked that to declare a Parliament invalid for some errors of form was a step of such consequence as to make the whole government of the nation insecure. But even without this it was not the Queen's purpose merely to revert to the forms which had been adopted under her brother. She did not share all the opinions and doctrines which had then obtained the upper hand: she held far more to ceremonies and outward forms than Edward VI or his counsellors: she wished to avoid a rude antagonism which would have called forth the resistance of the Catholics.

In the Parliament that met immediately after the coronation (which was still celebrated by a Catholic bishop), they began with the question which had most occupied the late assembly, namely, should the Church revenues that had been attached to the crown be restored to it. The Queen's proposal, that

they should be left to the crown, was quite the view of the assembly and obtained their full consent.

The Parliamentary form of government however had also the greatest influence on religious affairs. Having risen originally in opposition to Rome, the Parliament, after the vicissitudes of the civil wars, first recovered its full importance when it took the side of the crown in its struggle with the Papacy. It did not so much concern itself with Dogma for its own sake: it had thought it possible to unite the retention of Catholicism with national independence. Under Mary every man had become conscious that this would be impossible. It was just then that the Parliament passed from its previous compliant mood into opposition, which was not yet successful because it was only that of the minority, but which prepared the way for the coming change of tone. It attached itself joyfully to the new Queen, whose birth necessarily made her adopt a policy which took away all apprehensions of a union with the Romish See injurious to the country.

The complete antagonism between the Papal and the Parliamentary powers, of which one had swayed past centuries and the other was to sway the future, is shown by the conduct of the Pope, when Elizabeth announced her accession to him. In his answer he reproached her with it as presumption, reverted to the decision of his predecessors by which she was declared illegitimate, required that the whole matter should be referred to him, and even mentioned England's feudal relation to the Papacy:^[185] but Parliament, which had rejected this claim centuries before, acknowledged Elizabeth as legitimately sprung from the royal blood, and as Queen by the law of God and of the land; they pledged themselves to defend her title and right with their lives and property.

Owing to this the tendencies towards separation from Rome were already sure to gain the superiority: the Catholic members of the Privy Council, to whom Elizabeth owed her first recognition, could not contend effectively against them. But besides this, Elizabeth had joined with them a number of men of her own choice and her own views, who like herself had not openly opposed the existing system, but disapproved it; they were mainly her personal friends, who now took the direction of affairs into their hands; the change which they prepared looked moderate but was decided.

Elizabeth rejected the title of 'Supreme Head of the Church,' because it not merely aroused the aversion of the Catholics, but also gave offence to many zealous Protestants; it made however no essential difference when she replaced it by the formula 'in all causes as well ecclesiastical as civil, supreme.' Parliament declared that the right of visiting and reforming the Church was attached to the crown and could be exercised by it through ecclesiastical commissioners. The clergy, high and low, were to swear to the ecclesiastical supremacy, and abjure all foreign authority and jurisdiction. The punishment for refusing the oath was defined: it was not to be punished with death as under Henry VIII, but with the loss of office and property. All Mary's acts in favour of an independent legislation and jurisdiction of the spirituality were repealed. The crown appropriated to itself, with consent of Parliament, complete supremacy over the clergy of the land.

The Parliament allowed indeed that it did not belong to it to determine concerning matters really ecclesiastical; but it held itself authorised, much like the Great-Councils of Switzerland, to order a conference of both parties, before which the most pressing questions of the moment, on the power of national Churches, and the nature of the Mass, should be laid.

The Catholic bishops disliked the whole proceeding, as may be imagined, since these points had been so long settled; and they disliked no less the interference of the temporal power, and lastly the presidency of a royal minister, Nicolas Bacon. They had no mind to commit themselves to an interchange of writings: their declarations by word of mouth were more peremptory than convincing. In general they were not well represented since the deaths of Pole and Gardiner. On the other hand the Protestants, of whom many had become masters of the controverted questions during the exile from which they had now returned, put forward explicit statements which were completely to the point. They laid stress chiefly on the distinction between the universal, truly Catholic, Church and the Romish: they sought to reach firm ground in Christian antiquity prior to the hierarchic centuries. While they claimed a more comprehensive communion than that of Romanism, as that in which true Catholicity exists, they sought at the same time to establish a narrower, national, body which should have the right of independent decision as to ritual. Nearly all depended on the question, how far a country, which forms a separate community and thus has a separate Church, has the right to alter established ceremonies and

usages; they deduced such an authority from this fact among others, that the Church in the first centuries was ruled by provincial councils. The project of calling a national council was proposed in Germany but never carried out: in England men considered the idea of a national decree, mainly in reference to ritual, as superior to all others. But we know how much the conception of ritual covered. The question whether Edward VI's Prayer-book should be restored or not, was at the same time decisive as to what doctrinal view should be henceforth followed.^[186]

The Catholic bishops set themselves in vain against the progress of these discussions. They withdrew from the conference: but the Parliament did not let itself be misled by this: it adopted the popular opinion, that they did not know what to answer. At the division in the Upper House they held obstinately fast to their opinion: they were left however, though only by a few votes, in the minority.^[187] The Act of Uniformity passed, by which the Prayer-book, in the form which should be given it by a new revision, was to be universally received from the following Midsummer. The bishops raised an opposition yet once more, at a sitting of the Privy Council, on the ground that the change was against the promises made by Mary to the See of Rome in the name of the crown. Elizabeth answered, her sister had in this exceeded her powers: she herself was free to revert to the example of her earlier predecessors by whom the Papal power was looked on as an usurpation. 'My crown,' she exclaimed, 'is subject only to the King of Kings, and to no one else:' she made use of the words, 'But as for me and my house, we will serve the Lord.' The Protestant bishops had perished at the stake, but the victory was theirs even in their graves.

The committee of revision consisted of men, who had then saved themselves by flight or by the obscurity of a secluded life. As under Edward men came back to the original tendencies prevalent under Henry VIII, so they now reverted to the settlement under Edward; yet they allowed themselves some alterations, chiefly with the view of making the book acceptable to the Catholics as well. Prayers in which the hostility of decided Protestantism came forward with especial sharpness, for instance that 'against the tyranny of the Bishop of Rome,' were left out. The chief alteration was in the formula of the Lord's Supper. Elizabeth and her divines were not inclined to let this stand as it was read in the second edition of Edward's time, since the mystical act there appeared almost as a mere

commemorative repast.^[188] They reverted to a form composed from the monuments of Latin antiquity, from Ambrose and Gregory, in which the real presence was maintained; this which already existed in the first edition they united with the view of the second. As formerly in the Augsburg confession in Germany, so in England at the last recension of the Common Prayer-book an attempt was made to keep as near as possible to the traditional system. For the Queen this had also a political value: when Philip II sent her a warning, she explained that she was only kept back from joining in the mass by a few points: she too believed in God's presence in the Sacrament.^[189]

She was of a similar mind in reference to other matters also. If at first, under pressure from zealous Protestants who saw in images an occasion for superstition, she ordered their removal, we perceive that in a short time she regretted it, especially as it made a bad impression in Wales and the Northern counties; in her chapel men again saw the cross and the lighted tapers, as before. The marriages entered into by priests had given much offence, and not unjustly, as they were often inferior unions, little honourable to them, and lowering the dignity of their order. Elizabeth would have gladly forbidden them altogether: she contented herself with setting limits to them by ordering that a previous permission should be requisite, but she always disliked them. She felt a natural pleasure in the splendour and order of the existing church service. For the future also the spirituality were to be bound to appear—in the customary dress—in a manner worthy of God's service, with bent knees and with ceremonious devotion. When they proceeded to revise the confession drawn up by Cranmer, which two years afterwards was raised to a law in the shape of the 'Thirty-nine Articles,' they struck out the places that leant to Zwingli's special view; on the other hand they added some new propositions, which stated the right of the higher powers, and the authority of each kingdom to determine religious usages for itself.^[190]

For in this consisted the essence of the alteration, that the Civil Authority, as it was then composed, decided the church-questions that arose, and raised its decision into law.

The Statute was, that no person should hold a public office, whether spiritual or temporal, who did not conform to this law. Thirteen bishops,

four-and-twenty deans, eighty rectors of parishes, and most of the heads of colleges resigned. It has been said that this number, about two hundred, is not very considerable, since the English clergy held 9000 benefices and offices; but it comprehended all those who held the government of the church and represented the prevalent opinion in it. The difficulty arose how to replace the bishops in conformity with the principles of the English church constitution as then retained: perhaps the difficulty was intentional. There were however two conforming bishops who had received the laying on of hands according to the Roman ritual, and two others according to the Reformed: these consecrated the new Archbishop of Canterbury. It was objected to this act that none of them was in actual possession of a bishop's see: the Queen declared every defect, whether as to the statutes of the realm or church-usages, since time and circumstances demanded it, to be nullified or supplied. It was enough that, generally speaking, the mystery of the episcopal succession went on without interruption. What was less essential she supplied by the prerogative of the crown, as her grandfather had done once before. The archbishop consecrated was Dr. Parker, formerly chaplain to Anne Boleyn: a thoroughly worthy man, the father of learned studies on English antiquities, especially on the Anglo-Saxon times. By him the laying on of hands and consecration was bestowed on the other bishops who were now elected: they were called on to uphold at the same time the idea of episcopacy in its primitive import, and the doctrines of the Reformation.

In regard to the election of bishops also Elizabeth went back one step from her brother's system; she gave up the right of appointment, and restored her father's regulations, by which it is true a strong influence was still reserved for the Civil Power. Under her supreme authority she wished to see the spiritual principle recognised as such, and to give it a representation corresponding to its high destiny.

Thus it must needs be. The principle which comes forward for the first time, however strong it may appear, has yet to secure its future: it must struggle with the other elements of the world around it. It will be pressed back, perhaps beaten down: but in the vicissitude of the strife it will develop its inborn strength and establish itself for ever.

An Anglican church,—nationally independent, without giving up its connexion with the reformed churches of the continent, and reformed,

without however letting fall the ancient forms of episcopacy,—in accordance with the ideal, as it was originally understood, was at length, after a hard schooling of trials, struggles, and disasters, really set on foot.

But now it is clear how closely such a thoroughgoing alteration affected the political position. Reckoning on the antipathies, which could not but hence arise against Elizabeth in the catholic world, and above all on the consent of the Roman See, the French did not hesitate to openly recognise the claims of the Dauphiness Mary Stuart to the English throne. She was hailed as Queen, when she appeared in public: the Dauphin's heralds bore the united arms of England, Ireland, and Scotland.^[191] And this claim became still more important after the unexpected death of Henry II, when the Dauphin ascended the French throne as Francis II. The Guises, uncles of Mary the new Queen, who saw their own greatness in her success and were the very closest adherents of the church, got into their hands all the powers of government. The danger of their hostility lay above all in this, that the French already exercised a predominant influence over Scotch affairs, and hoped in a short time to become complete masters of that country in the Queen's right. She moreover had already by a formal document transferred to the French royal house an eventual right of inheritance to her crown. But if matters came to this, the old war of England and France would be transferred from the fields of Boulogne and Calais to the Scotch border. An invasion of the English territory from that side was the more dangerous, as the French would have brought thither, according to their custom, German and Swiss troops as well. England had neither fortresses, nor disciplined troops, nor even generals of name, who could face such an invasion. It was truly said, there was not a wall in England strong enough to stand a cannon shot.^[192] How then if a defeat was sustained in the open field? The sympathies of the Catholics would have been aroused for France, and general ruin would have ensued.

It was a fortunate thing for Elizabeth that the King of Spain, after she had taken up a line of conduct so completely counter to his wishes and ideas, did not make common cause with the French as they requested him. But she could not promise herself any help from him. Granvella told the English as emphatically as possible, that they must provide for themselves. Another Spanish statesman expressed his doubt to them whether they were able to do so: he really thought England would one day become an apple of discord

between Spain and France, as Milan then was. It was almost a scoff, to compare the Island that had the power of the sea with an Italian duchy. But from this very moment she was to take a new upward flight. England was again to take her place as a third Power between the two great Powers; the opportunity presented itself to her to begin open war with one of them, without breaking with the other or even being exactly allied with it.

At first it was France that threatened and challenged her.

And to oppose the French, at the point where they might be dangerous, a ready means presented itself; England had but to form an alliance with those who opposed the French interests in Scotland. As these likewise were in opposition to their Queen, it was objected that one sovereign ought not to combine with the subjects of another. Elizabeth's leading statesman, William Cecil, who stood ever by her side with his counsel in the difficulties of her earlier years, and had guided her steps hitherto, made answer that 'the duty of self-preservation required it in this case, since Scotland would else be serviceable to France for war against England.'

Cecil took into his view alike the past and the future. It was France alone, he said, that had prevented the English crown from realising its suzerainty over Scotland: whereas the true interest of Scotland herself lay in her being united with England as one kingdom. This point of view was all the more important, since the religious interest coincided with the political. The Scots, with whom they wished to unite themselves, were Protestants of the most decided kind.

NOTES:

[180] 'Ayant visage pale fier haultain et superbe pour desguyser le regret qu'elle a.' Renard to the Emperor 24 Feb. 1554, in Tytler ii. 311. He adds, 'si pendant l'occasion s'adonne, elle (la reine) ne la punyt et Cortenay, elle ne sera jamais assurée.'

[181] 'Manifestò el contentamiento grande que tendria el rey de saber que se declaba la sucesion en favor de ella (Isabel), cosa que S. M. habia descado sempre.' In Gonzalez, Apuntamientos para la historia del rey Don Felipe II. Memorias de la real academia de historia, Madrid, vii. 253.

[182] One of the documents which Mackintosh (History of England iii. 25) missed, the commission for the proposal to Elizabeth, which gives its contents, was soon after printed in Gonzalez, Documentos I. 405.

[183] Feria: 'Dando a entender, que el pueblo la ha puesto en el estado que esta, y de esto no reconoce nada ni a V. M., ni a la nobleza del reino.'

[184] An oration of John Hales to the Queen delivered by a certain nobleman, in Foxe, Martyrs iii. 978. 'It most manifestly appeareth, that all their doings from the beginning to the end were and be of none effect force or authority.'

[185] P Sarpi, Concilio di Trento, lib. v. p. 420, confirmed by Pallavicino lib. xiv.

[186] Horne's Papers for the reformed, in Collier ii. 416.

[187] Ribadeneyra: 'No fueron sino tres votos mas, los que determinaron en las cortes, que se mudasse la religion catolica, que los que pretendian que se conservasse.' Ribadeneyra says the Queen gained Arundel's vote by allowing him to hope for her hand, and then laughed at him; but Feria's despatches show that she mocked at his pretensions even before her entry on the government.

[188] Soames iv. 675. Liturgiae Britannicae 417.

[189] From Feria's despatches, Apuntamientos 270.

[190] In Heylin there is a comparison of the original forty-two with the later thirty-nine Articles; but he did not venture at last to do what he proposed at first, give his opinion as to the reason and nature of the variations.

[191] Leslaeus de rebus gestis Scotorum: Henricus Mariam Reginam Angliae Scotiae et Hiberniae declarandam curavit,—Angliae et Scotiae insignia in ipsius vasis aliisque utensilibus simul pingi fingique ac adeo tapetibus pulvinis intexi jussit. (In Jebb i. 206.)

[192] From one of Cecil's first notes, 'if they offered battle with Almaines, there was great doubt, how England would be able to sustain it.' In Nares ii. 27.

CHAPTER II.

OUTLINES OF THE REFORMATION IN SCOTLAND.

In its earliest period church reform was everywhere introduced or promoted by the temporal governments; in Germany by the government of the Empire, and by the Princes and towns which did not allow the authorisation, once given them through the Empire, to be again withdrawn; in the North by the new dynasties which took the place of the Union-Princes; in Switzerland itself by the Great-Councils which possessed the substance of the republican authority. After manifold struggles and vicissitudes this tendency had at last yet once more established itself in its full force under Queen Elizabeth in England.

But another tendency was also very powerful in the world. In South Europe, France, the Netherlands, and a part of the German territory, the state attached itself to the principles of the old Church. At this very time in Italy and Spain this led to the complete destruction of what was there analogous to the Reformation; it has had more influence on the later circumstances of these countries than it had then. But where the religious change had already obtained a more durable footing, as in France and the Netherlands, politico-religious variances of the most thoroughgoing nature arose almost of necessity: the Protestantism of Western Europe was pervaded by anti-monarchical ideas. We noticed how much everything was preparing for this under Queen Mary in England also: that it did not so happen was owing to the arrangements made by Elizabeth. But this tendency appeared in full force in Scotland, and in fact more strongly there than anywhere else.

In Scotland the efforts made by all the monarchic powers of this period in common were not so successful as in the rest of Europe. The kings of the house of Stuart, who had themselves proceeded from the ranks of the nobility, never succeeded in reducing the powerful lords to real obedience. The clannish national feeling, closely bordering on the old Keltic principle, procured the nobles at all times numerous and devoted followers: they fought out their feuds among themselves, and then combined anew in free

confederacies. They held fast to the view that their sovereigns were not lords of the land (for they regarded their possessions as independent properties), not kings of Scotland but kings of the Scots, above all, kings of the great vassals, who had to pay them an obedience defined by laws. It gave the kings not a little superiority that they had obtained a decisive influence over the appointment to the high dignities in the Church, but this proved advantageous neither to the Church nor at last to themselves. Sometimes two vassals actually fought with each other for a rich benefice. The French abuses came into vogue here also: ecclesiastical benefices fell to the dependents of the court, to the younger sons of leading houses, often to their bastards: they were given or sold *in commendam*, and then served only for pleasure and gain: the Scotch Church fell into an exceedingly scandalous and corrupt state.

It was not so much disputed questions of doctrine as in Germany, nor again the attempt to keep out Papal influence as in England, but mainly aversion to the moral corruption of the spirituality which gave the first impulse to the efforts at reformation in Scotland. We find Lollard societies among the Scots much later than in England: their tendencies spread through wide circles owing to the anticlerical spirit of the century, and received fresh support from the doctrinal writings that came over from Germany. But the Scotch clergy was resolved to defend itself with all its might. Sometimes it had to sit in judgment on invectives against its disorderly and luxurious life, sometimes on refusals to pay established dues: or Lutheran doctrines had been preached: it persecuted all with equal severity as tending to injure the stability of holy Church, and awarded the most extreme penalties. To put suspected heretics to death by fire was the order of the day; happy the man who escaped the unrelenting persecution by flight, which was only possible amid great peril.

These two causes, an undeniably corrupt condition and relentless punishment of those who blamed it as it well deserved, gave the Reform movement in Scotland, which was repressed but not stifled, a peculiar character of exasperation and thirst for vengeance.

Nor was it without a political bearing in Scotland as elsewhere. In particular Henry VIII proposed to his nephew, King James V, to remodel the Church after his example: and a part of the nobility, which was already favourably

disposed towards England, would have gladly seen this done. But James preferred the French pattern to the English: he was kept firm in his Catholic and French sympathies by his wife, Mary of Guise, and by the energetic Archbishop Beaton. Hence he became involved in the war with England in which he fell, and after this it occasionally seemed, especially at the time of the invasions by the Duke of Somerset, as if the English, and in connexion with them the Protestant, sympathies would gain the ascendancy. But national feelings were still stronger than the religious. Exactly because England defended and recommended the religious change it failed to make way in Scotland. Under the regency of the Queen dowager, with some passing fluctuations, the clerical interests on the whole kept the upper hand. In spite of a general sympathy the prospects of Reform were slender. It could not reckon on any quarrel between the government and the higher clergy: foreign affairs rather exercised a hostile influence. It is remarkable how under these unfavourable circumstances the foundation of the Scotch Church was laid.

Most of the Scots who had fled from the country were content to provide for their subsistence in a foreign land and improve their own culture. But there was one among them who did not reconcile himself for one moment to this fate. John Knox was the first who formed a Protestant congregation in the besieged fortress of S. Andrew's; when the French took the place in 1547 he was made prisoner and condemned to serve in the galleys. But while his feet were in fetters, he uttered his conviction in the fiery preface to a work on Justification, that this doctrine would yet again be preached in his fatherland.^[193] After he was released, he took a zealous share in the labours of the English Reformers under Edward VI, but was not altogether content with the result; after the King's death he had to fly to the continent. He went to Geneva, where he became a student once more and tried to fill up the gaps in his studies, but above all he imbibed, or confirmed his knowledge of, the views which prevailed in that Church. 'Like the first Reformers of French Switzerland, Knox also lived in the opinion that the Romish service was an idolatry which should be destroyed from off the earth. And he was fully convinced of the doctrine of the independence of the spiritual principle side by side with the State, and believed that the new spirituality also was authorised to exclude men from the Church, views for which Calvin was at that very time contending. Thus he was equally armed

for the struggle against the Papacy and against the temporal power allied with it, when a transient relaxation of ecclesiastical control in Scotland made it possible for him to return thither. In the war between France and Spain the Regent took the side of France: she lighted bonfires to announce the capture of Calais; out of antipathy to Mary Tudor and her Spanish government she allowed the English fugitives to be received in Scotland. Knox himself ventured to return towards the end of 1555: without delay he set his hand to form a church-union, according to his ideas of religious independence, which was not to be again destroyed by any State power.

Among the devout Protestants who gathered together in secret the leading question was, whether it was consistent with conscience to go to mass, as most then did. Knox was not merely against any one doing wrong that good might come of it, but he went on further to restore the interrupted Protestant service of God. Sometimes in one and sometimes in another of the places of refuge which he found he administered the Communion to little congregations according to the Reformed rite; this was done with greater solemnity at Easter 1556 in the house of Lord Erskine of Dun, one of those Scottish noblemen who had ever promoted literary studies and the religious movement as far as lay in his power. A number of people of consequence from the Mearns (Mearnshire) were present. But they were not content with partaking the Communion; following the mind of their preacher they pledged themselves to avoid every other religious community, and to uphold with all their power the preaching of the Gospel.^[194] In this union we may see the origin of the Scotch Church properly so called. Knox had no doubt that it was perfectly lawful. From the power which the lords possessed in Scotland he concluded that this duty was incumbent on them. For they were not lords for themselves, but in order to protect their subjects and dependents against every violence. From a distance he called on his friends—for he had once more to leave Scotland, since the government recurred to its earlier severity—not again to prefer their own ease to the glory of God, but for very conscience' sake to venture their lives for their oppressed brethren. At Erskine's house met together also Lord Lorn, afterwards Earl of Argyle, and the Prior of S. Andrews, subsequently Earl of Murray; in December 1557 Erskine, Lorn, Murray, Glencairn (also a friend of Knox), and Morton, united in a solemn engagement, to support God's word and defend his congregation against every evil and tyrannical power

even unto death.^[195] When in spite of this another execution took place which excited universal aversion, they proceeded to an express declaration, that they would not suffer any man to be punished for transgressing a clerical law based on human ordinances.

What the influence of England had not been able to effect, was now produced by antipathy to France. The opinion prevailed that the King of France wished to add Scotland to his territories, and that the Regent gave him aid thereto. When she gathered the feudal array on the borders in 1557 (for the Scots had refused to contribute towards enlisting mercenaries) to invade England according to an understanding with the French, the barons held a consultation on the Tweed, in consequence of which they refused their co-operation for this purpose. The matrimonial crown was indeed even afterwards granted to the Dauphin, when he married Mary Stuart;^[196] but thereupon misunderstandings arose with all the more bitterness. Meetings were everywhere held in a spirit hostile to the government.

It was this quarrel of the Regent with the great men of the country that gave an opportunity to the lords who were combined for the support of religion to advance with increasing resolution. Among their proposals there is none weightier than that which they laid before her in March 1559, just when the Regent had gathered around her a numerous ecclesiastical assembly. They demanded that the bishops should be elected for the future by the nobility and gentry of each diocese, the parish clergy by the parishioners, and only those were to be elected who were of esteemed life and possessed the requisite capacity: divine service was to be henceforth held in the language of the country. The assembled clergy rejected both demands. They remarked that to set aside the influence of the crown on the elections involved a diminution of its authority which could not be defended, especially during the minority of the sovereign. Only in the customary forms would they allow of any amendments.

But this assembly was not content with rejecting the proposals: they confirmed the usages and services stigmatised by their opponents as superstitious, and forbade the celebration of the sacraments in any other form than that sanctioned by the Church. The royal court at Stirling called a number of preachers to its bar for unauthorised assumption of priestly functions.

The preachers were ready to come: the lords in whose houses they sojourned were security for them. And already they had the popular sympathy as well as aristocratic protection. It was an old custom of the country that, in especially important judicial proceedings, the accused appeared accompanied by his friends. Now therefore the friends of the Reformation assembled in great numbers at Perth from the Mearns, Dundee, and Angus, that, by jointly avowing the doctrines on account of which their spiritual leaders were called to account, their condemnation might be rendered impossible.

As to the Regent we are assured that she was not in general firmer in her leaning towards the hierarchy than other Princes of the time, and had once even entertained the thought that the supreme ecclesiastical power belonged to her;^[197] but, perhaps alarmed by the vehemence of the preachers, she had done nothing to obtain such a power. It now appeared to her that it would be a good plan to check the flow of the masses to the place of trial by some friendly words which she addressed to Erskine of Dun.^[198] The Protestants saw in them the assurance of an interposition in the direction of lenity, and stayed away; but without regard to this and without delay the Justiciary at Stirling, Henry Levingstoun, proceeded to business on the day appointed, 20 May 1559. As the preachers did not appear, those who had become security for them were condemned to a money-fine, while they themselves were denounced as rebels,^[199] as having withdrawn themselves from the royal jurisdiction; an edict followed which pronounced them exiled, and in the severest terms forbade any to give them protection or favour.

The news fell like a spark of fire among the inflammable masses of Protestants assembled at Perth. The sentence promulgated was an open act of hostility against the lords, who felt themselves bound by their word which they had given to the preachers and by their vow to each other. They considered that the Regent's promise had given them a right against her; Lord Erskine, whom the others had warned, declared that he had been deceived by her. While the Regent had prevented a collision between the two parties at Stirling, she had occasioned in one of them, at Perth, the outbreak of a popular storm against the hierarchy of the land, their representatives, and the monuments of their religion. John Knox, who had come, as he said, to be where men were striving against Satan, called on them in a fiery sermon to destroy the images which were the instruments of

idolatry. The attempt of a priest, after the sermon, to proceed to high mass and open the tabernacle of the altar, was all that was needed to cause a tumult even in the church itself, in which the images of the saints were destroyed; and the outbreak spreading through the city directed itself against the monasteries and laid them too in ruins. How entirely different is Knox from Luther! The German reformer made all outward change depend on the gradual influence of doctrine, and did not wish to set himself in rebellious opposition to the public order under which he lived. The Scot called on men to destroy whatever contravened his religious ideas. The Lords of the Congregation, who became ever more numerous, declared themselves resolved to do all that God commands in Scripture, and destroy all that tended to dishonour his name. With these objects, and with their co-operation and connivance, the stormy movement once raised surged everywhere further over the country. The monasteries were also destroyed in Stirling, Glasgow, and S. Andrews; the abbeys of Melrose, Dunfermline, and Cambuskenneth fell: and the proud abbey of Scone, an incomparable monument of the hierarchic feeling of earlier ages, was, together with the bishop's palace, levelled to the ground. It may be that the popular fury went far beyond the original intentions of the leaders, but without doubt it was also part of their purpose, to make an end above all of the monasteries and abbeys, from which nothing but resistance could be expected.^[200] It has been regarded even in our days as a measure of prudence, dictated by the circumstances, that they destroyed these monuments, which by their imposing size and the splendour of the service performed in them would have always produced an impression adverse to the Reformation. On the other hand the cathedrals and parish churches were to be preserved, and after being cleansed from images were to be devoted to Protestant worship. Everywhere the church-unions, which were at once formed and organised on Protestant principles, gained the upper hand. The Mass ceased: the Prayer-book of King Edward VI took its place.

So the reformed Scotch Church put itself in possession, in a moment, of the greatest part of the country. It was from the beginning a self-governed establishment: it found support in the union of some lords, whose power likewise rested on independent rights: but it first gained free play when the French policy of the Regent alienated the nobility and the nation from her. On the one side now stood the princess and the clergy, on the other the lords

and the preachers. As their proposals were rejected and preparations made to defend the hierarchic system with the power of the State, the opposition also similarly arose, claiming to have an original right: revolt broke out; the church system of the Romish hierarchy was overthrown and a Protestant one put in its place. In the history of Protestantism at large the year 1559 is among the most important. During the very days in which the revised Common Prayer-book was restored in England (so definitely putting an end to the Catholic religion of the realm), the monuments of Roman Catholicism in Scotland were broken in pieces, and the unrevised Common Prayer-book introduced into the churches. But yet how great was the difference! In the one country all was done under the guidance of a Queen to whom the nation adhered, in consequence of Parliamentary enactments, the ancient forms being preserved as far as possible: here the whole transaction was completed in opposition to the Regent, under the guidance of an aristocracy engaged in conflict with her, amidst very great tumult, while all that was ancient was set aside.

At the beginning of July the Scotch lords had become masters of the capital as well, and had reformed it according to their own views, with the most lively sympathy of the citizens. They were resolved to uphold the change of religion now effected, cost what it would, and hoped to do so in a peaceful manner. When Perth again opened her gates to the Regent after the first tumult, under the condition that she should punish no one, she promised at the same time to put off the adjustment of all questions in dispute to the next Parliament. There they intended to carry at once the recognition of the Reformation in its whole breadth, and the removal of the French. We perceive that it was their plan in that case to obey the Regent as before, and to unite the abbey-lands to the possessions of the crown. 'But if your Grace does not agree to this,' so runs the letter of a confederate, 'they are resolved to reject all union with you.'

It was soon shown that the last was the only alternative. The regent collected so many French and Scotch troops that the lords did not venture to stop her return to Edinburgh. They came to an agreement instead, in which she promised to prosecute no member of the Congregation, and especially no preacher, and not to allow the clergy on the ground of their jurisdiction to undertake any annoying proceedings: in return for which the lords on their side pledged themselves not to disturb any of the clergy or destroy any

more of the church buildings. It was a truce in which each party, sword in hand, reserved to itself the power of defending its partisans against the other. The two parties encountered in Edinburgh. The inhabitants had called Knox to be their preacher, and when he thought it unsafe to stay in the city after the Congregation withdrew, another champion of the Reformation, Willok, filled his place with hardly less zeal and success. But on the other side the bishop of Amiens appeared with some doctors of the Sorbonne at the Regent's court. Here and there the Protestant service was again discarded; the Paris theologians defended the old dogma among the Scotch scholars, and made even now some impression; the mass and the preaching contended with each other. As to the Regent's views there can be no doubt. She drew the attention of the French court to the frequent intercourse between the nobles of Protestant views in France and Scotland, and to the encouragement the Scots had from the French; but she gave the assurance that she would soon finish with the Scots if she received support. Some French companies had just landed at Leith, they had brought with them munitions of war and money: the Regent demanded four companies more, to make up twenty, and perhaps 100 hommes d'armes; if only four French ships were stationed at Leith to keep off foreign assistance, she pledged herself to put down the movement everywhere.^[201]

Then the Scots also decided that they must employ their utmost means of resistance. They had framed politico-religious theories, in virtue of which they believed in their right to do so. The substance of the whole is that they acknowledged indeed an obligation on the conscience which required obedience to the sovereign, but at the same time they held that the obligation came to an end as soon as the sovereign contravened the known will of God: an idolatrous sovereign, so said the preachers, could be deposed and punished:—should the supreme Head put off the reform which was required by God's law, the right and the duty of executing it falls on the subordinate authorities.

But the lords claimed also an authority based on the laws of the land. When the French troops began to fortify Leith, they held themselves justified in raising remonstrances against it: they demanded that the Regent should desist from the design. As she replied with a proclamation which sounded very offensive to themselves, they had no scruple in taking up arms. Each noble collected his men round him and appeared at their head in the field.

Relying on the fine army which was thus brought together, they repeated their demand, with the remark, that in receiving foreign troops into the harbour-town there was involved a manifest attempt to enslave the land by force: if the Regent would not lend an ear to their remonstrances, they being the hereditary councillors of the crown, they would remember their oath which bound them to provide for the general welfare. The Regent expressed her astonishment to the lords through a herald that there should be any other authority in the realm than that of her daughter, the Queen. She already felt herself strong enough to order them and their troops to disperse, on pain of the punishment appointed for high treason. On this the great men met in the old council-house at Edinburgh, to consider the question whether it was obligatory to pay obedience to a princess, who was but regent, and who disregarded the opinion of the hereditary councillors of the crown. The consultation, at which some preachers supported the views of the lords with similar arguments, ended in the declaration that the Regent no longer possessed an authority which she was using to the damage of the realm. In the name of the King and Queen they announced to her that the commission she had received from them was at an end. 'And as your Grace,' so they continued, 'will not acknowledge us as your councillors, we also will no longer acknowledge you as our regent.'^[202]

To this pass matters had now come. The combined interests, on the one side of the crown and the clergy, on the other of the lords and the Protestants, came into open and avowed conflict. The Act of Suspension is but the proclamation of war in a form which would enable them to avoid directly breaking with their duties towards their born prince.

The lords' first enterprise was directed against the French troops which held Leith in their possession, and which were now first of all to be driven out of the country: but the hastily-constructed fortifications there proved stronger than was expected. And not merely were their assaults on Leith repelled, but the Lords soon saw themselves driven from their strongest positions, for instance from Stirling; their possessions were wasted far and wide; the war, which was transferred to Fife, took an unfortunate turn for them; to all appearance they were lost if they did not obtain help from abroad.

But to whom could they apply for it if not to their neighbour, just now rising in power, Elizabeth Queen of England?

They might have hesitated, as they had indeed repelled the influence of Henry VIII and of Somerset, even when it was united with reforming tendencies. But how entirely different were matters now from what they had been then! With their own hands they had already given themselves a Protestant church-system, which was national in a high degree, and somewhat opposite to the English one. So long as it existed, the influence England would gain by giving them help could never become the supremacy, at which it is certain attempts had previously been made.

We know too the objections which were made in England against a union with the Scots. To these were added the Queen's decided antipathies to the new form of church government and to its leaders: she could not bear the mention of Knox's name. But all these considerations disappeared before the pressing danger and the political necessity. In opposition to France, Protestant England and Protestant Scotland, however different the religious and even the political tendencies prevailing in each of them, held out their hands to each other.

Elizabeth had already at an earlier time privately given the Scots some support: the moment at which she gave them decisive assistance is worth noticing.

The Regent's French and Scotch troops were planning an attack on S. Andrews, and had made themselves masters of Dysarts; the lords, again retreating, marched along the coast, and the French were in pursuit when a fleet hove in sight in the distance. The French welcomed it with salvos of cannon, for they had no doubt that it was their own fleet, bringing them help from France, long expected, and now in fact known to be ready. But it soon appeared that they were English vessels, in advance of the larger fleet which had put to sea under Vice-admiral Winter. Nothing remained for the French, when thus undeceived, but to give up their project and withdraw. But the whole state of things was thus altered. Soon after this the Scots, to whose assistance English troops had also come by land, were able to advance against Leith and resume the suspended siege.

Everything that is to come to pass in the world has its right time and hour. Incredible as it may seem, the champion of the strictest Catholicism, the King of Spain, was at this moment not merely for help being given to the

Scots, but pressing for it; his ministers complained not that the Queen interfered, but that she did not do so more quickly. For in the union of Scotland and France, which was already complete in a military sense, they saw a danger for themselves. The enthusiastic Knox, who only lived and moved in religious ideas, was, more than he foresaw, a link in the chain of European affairs. Without the impulse which he gave to the minds of men, that resistance to the Regent, by which a complete union with France was hindered, would have been impossible.

A treaty was made in Berwick between Queen Elizabeth and the Scotch lords, by which they bound themselves to drive the French out of Scotland with their united strength. The lords promised to remain obedient to their Queen, but Elizabeth assented to the additional words, that this was not to be in such cases as might lead to the overthrow of the old Scottish rights and liberties. This was a very comprehensive clause, which placed the further attempts of the Scotch lords against the monarchical power under English protection.

While the siege of Leith was being carried on by land and sea, commissioners from France appeared on the part of Queen Mary Stuart and her husband, as they had now assumed the place of the Regent (who had died in the midst of these troubles), to attempt to bring about an agreement. The chief among them was Monluc, bishop of Valence, a well-meaning and moderate man even in religious matters, who, convinced of the impossibility of carrying on the war any further with success, gave way step by step before the inflexible purpose of the English plenipotentiary, William Cecil. He put his hand to the treaty of Edinburgh, in which the withdrawal of the French troops from Scotland and the destruction of the fortifications of Leith were stipulated for. This satisfied the chief demand of the lords, and at the same time agreed with the wish of the neighbouring Power. The King and Queen of France and Scotland were no longer to bear the title and arms of England and Ireland. For Scotland a provisional government was arranged on the basis of election by the Estates; it was settled that for the future also the Queen and King should decide on war and peace only by their advice. It is easy to see how much a limitation of the Scotch crown was connected with the interests of the Power that was injured by its union with the crown of France.

Religion was not expressly mentioned; Queen Elizabeth had purposely avoided it. But when the Scotch Parliament, to which the adjustment of the matters in dispute was once more referred in the treaty of Edinburgh, now met, nothing else could be expected than what in fact happened. The Protestant Confession was accepted almost without opposition, the bishops' jurisdiction declared to be abolished according to the view of the confederate lords, the celebration of the Mass not only forbidden, but, after the example of Geneva, prohibited under the severest penalties.

How mightily had the self-governing church-society, founded three years and a half before in the castle at Dun, secured its foothold! By its union with the claims of the aristocracy it had broken up the existing government not merely of the Church but also of the State. It was of unspeakable importance for the subsequent fortunes of England that this vigorous living element had been taken under the protection of the Queen of that country and supported by her.

But at the same time, if we may so say, it complicated her personal relations inextricably.

NOTES:

[193] Extract in M'Crie, Life of John Knox 36.

[194] Knox, History of the Reformation,—a work which some later insertions have not deprived of its credit for trustworthiness, which it otherwise deserves,—p. 92. 'That they refussit all society with idolatri and band them selves to the uttermost of their powery to manetein the trew preiching of the evangille, as God should offer unto thame preichers and opportunity.'

[195] 'That we sall—apply our haill power substance and our verie lyves, to mantein set forward and establish the most blissit word of God, and his congregatioun sall labour—to have faithful ministeris, puirlye and trewlye to minister Christis evangell and sacramentis to his pepyll.'

[196] According to Leslaeus 205, in this the promise was specially emphatic, that everything should be done, 'Ne regina nostra Angliae sceptro excluderetur.' This was during Mary Tudor's lifetime.

[197] So King James said at the Conference of Hampton Court, State Trials ii. 85; negociations must have taken place of which we know nothing.

[198] Knox: 'That she wald tak sume better order:' and so in Calderwood. Buchanan xvi. 590: 'Se interea nihil adversus quemquam illius sectae molituram.' Spottiswood i. 271: 'That the diet should desert and nothing be done to the prejudice of the ministres.'

[199] Praefati Paulus Methven, Joannes Cristesoun, Willielmus Harlaw et Joannes Willok denunciati sunt rebelles S. D. N. regis et reginae. From the Justiciary records in M'Crie, Note GG. 360.

[200] Kirkaldy of Grange, one of the leaders of the Protestants, to Sir Henry Percy, Edinburgh, 1 July, in Tytler vi. 107. 'The manner of their proceeding in reformation is this. They pull down all manner of friaries and some abbeyes, which willingly receive not the reformation: as to parish churches they cleanse them of images and other monuments of idolatry and command that no masses be said in them.' Even now M'Crie says: 'I look upon the destruction of those monuments as a piece of good policy.' Life of Knox 130.

[201] I find this only in Lesley 215, who is in general the best informed as to the relations of the Regent with the French court.

[202] 'As your grace will not acknowledge us, our soverane lords and ladyis liegis for your subjectis and counssail, na mair will we acknowledge you for our regent.' Declaration of 23 Oct. 1559.

CHAPTER III.

MARY STUART IN SCOTLAND. RELATION OF THE TWO QUEENS TO EACH OTHER.

People were now fully satisfied that they had obtained something great, and had laid a firm foundation for secure relations throughout all future time: but it became clear at once that this was not the case. Francis II and his wife seemed to have forgotten that they had promised on their royal word, in the instructions to their ambassadors, to accept whatever they should arrange: they refused to ratify the treaty of Edinburgh. For it was really concluded by the Queen of England with men in rebellion against them, by whom it was chiefly subscribed. They regarded it as an insult that the Scots deputed an embassy of great lords to England, whilst the request to confirm all that was arranged in Scotland was laid before them, their Queen and their King, by a gentleman of less distinguished birth. They felt themselves highly injured by a Parliament being called even before they had ratified the treaty, without any authorisation on their side. How were they to accept its resolutions? Francis II on the contrary said, he would prove to the Scots that they had no power to meet together in their own name, just as if they were a republic.^[203] And as little was he inclined to give up the title and arms of England according to the treaty: he said he had hitherto borne them with good right, and saw no reason to give satisfaction to others, before he had received any himself.

Those were the days in which the French government, guided by the Queen's uncles, including the Cardinal of Lorraine, had considerably repressed the Protestant movements which were stirring in France, had brought the insurgent princes into its power, and was occupied in establishing a strict system of obedience in ecclesiastical and political matters; with kindred aims it sought in Scotland also to revert to its earlier policy; all concessions made to the contrary it ignored. I see here, says the English ambassador Throckmorton, more intention of vengeance than inclination to peace.

At this juncture occurred the unexpected event which gave French affairs another shape. King Francis II died at the beginning of December 1559 without issue; and the Guises could not maintain the authority they had hitherto possessed. The kingdom which, by the extent and unity of its power, was wont to exercise a dominant influence over all others, fell into religious and political troubles which engrossed and broke up its force.

Elizabeth took some part also in these movements within France itself: it was her natural policy to support the opponents of the Guises, who likewise stood so near her in their religious confession. With their consent she once occupied Havre, but allowed it without much hesitation to fall again into the hands of the French government which was then guided by Catharine Medici, who for some time even made common cause with the leaders of the Huguenots. We cannot here follow out these relations any further, for to understand them fully would require us to go into the details of the changeful dissensions in France: for English history these are only so far important as they made it impossible for the French to act upon England.

On the other hand the entire sequel of English history turns on the relation to Scotland: Scotch affairs already form a constituent part of the English, and demand our whole attention.

At first sight it would not have seemed so impossible to bring about peace and even friendship between the Queen of Scotland and the Queen of England: for the former was of course no longer bound to the interests of the French crown. But this expectation also proved deceitful. A primary condition would have been the acceptance of the treaty of Edinburgh; Elizabeth demanded this expressly and as if it were obligatory on Mary, who would as little consent to it after, as before, the death of her husband. She ceased to bear the arms of England: all else she deferred till her arrival in Scotland. Immediately on this, at the first step, the mutual antipathy broke out.^[204] In consequence of the refusal to ratify the treaty, Elizabeth declined Mary's request to be allowed to return home through England. Mary regarded this as an insult: it is worth while to hear her words. 'I was once,' so she said, 'brought to France in spite of all the opposition of her brother: I will return to Scotland without her leave. She has combined with my rebellious subjects: but there are also malcontents in England who

would listen to a proposal from my side with delight: I am a Queen as well as she, and not altogether friendless, and perhaps I have as great a soul too.'

Few words, but they contain motives of jealousy rising out of the depths of her inmost heart and announce a stormy future. But at first Mary could not give effect to them.

Some Catholic lords did indeed request her to come to them in the northern counties, whence they would escort her to her capital with an armed force. But who could advise her to begin her government with a civil war? She would then have herself driven the Protestant lords over to the side of her foe. But she had connexions with them as well. Their leader, her half-brother James, Prior of S. Andrews, whom she now created Earl of Murray, a man of spirit, energy, and comprehensive views, appeared before her in France; his experience and caution and even the inner tie of blood-relationship always gave him a great influence over her resolutions. He showed her how it was possible to rule Scotland even under existing circumstances, so as to have a tolerable understanding with Elizabeth, but reserving all else for the future. These counsels she followed. Not with Elizabeth's help, but yet without hindrance from her, she arrived at Holyrood in August 1561. Murray succeeded in obtaining, though not without great opposition, and almost by personally keeping off opponents, that she should be allowed to have mass celebrated before her. He took affairs into his own hands; the Protestants had the ascendancy in the country and in the royal council.

Not that Queen Mary by this fully acquiesced in what had happened, or recognised the state of affairs in Scotland. She even now confirmed neither the treaty of Edinburgh, nor the resolutions of Parliament based on it: but in the first place took possession of her throne, reserving her dynastic rights.

A sight without a parallel, these two Queens in Albion, haughty and wondrous creatures of nature and circumstances!

They were both of high mental culture. From Mary we have French poems, of a truth of feeling and a simplicity of language, which were then rare in literature. Her letters are fresh and eloquent effusions of momentary moods and wishes: they impress us even if we know that they are not exactly true. She has pleasure in lively discussion, in which she willingly takes a playful,

sometimes a familiar, tone; but always shows herself equal to the subject. From Elizabeth also we have some lines in verse, not exactly of a poetic strain, not very harmonious in expression, but full of high thoughts and resolves. Her letters are skilful but, owing to their allusions and antitheses, far from perspicuous products of reflection, although succinct and rich in matter. She was acquainted with the learned languages, had studied the ancient classics and translated one or two, had read much of the church-fathers: in her expressions there sometimes appears an insight into the inner connexion between history and ideas, which fills us with astonishment. In conversation she tried above all things to produce a sense of her gifts and accomplishments. She shone through a combination of grandeur and condescension which appeared like grace and sweetness, and sometimes awakened a personal homage, for which in the depths of her soul she cherished a longing. She did but toy with such feelings, to Mary they were a reality. Mary possessed that natural power of womanly charm which awakens strong, even if not lasting, passion. Her personal life fluctuates between the wish to find a husband who could advance her interests and those passionate ebullitions by which she is also herself overpowered. This however does not hinder her from devoting all her attention to the business of government. Both Queens work with like zeal in their Privy Council: and they only deliberate with men of intimate trust; the resolutions which are adopted are always their own. Elizabeth yields more to the wisdom of tried councillors, though even these are not sure of her favour for a moment, and have a hard place of it with her. Mary fluctuates between full devotion and passionate hate: she is almost always swayed by an unlimited confidence in the man who meets her wishes. Elizabeth lets things come to her: Mary is ever restless and enterprising.^[205] Elizabeth appeared once in the field, to animate the courage of her troops in a great peril. Mary took a personal share in the local Scottish feuds: she was seen riding at the head of a small feudal army against the enemy, with pistols at her saddle-bow.

But we here discontinue this representation of the antitheses of character between them, which first acquired historical import through the differences of position in which the two sovereigns found themselves.

Elizabeth was mistress of her State, as well in its religious as its political constitution. She had revived the obedience once paid to her father; and remodelled the Church in the decidedly Protestant spirit which

corresponded to her personal position; at first every man submitted to the new order of things, though many looked on its growth only with aversion. Mary on the contrary had to accommodate herself to a form of Church, and even of State, government, which was founded in opposition to the right of her predecessors, and above all to her own views. If she ever thought of making her own religion predominant, or of oppressing that which was newly established, open resistance was announced to her in threatening terms by its leader John Knox. However much this reaction against her religious belief straitened her on the one side, yet on another side it opened out to her a wider prospect. She already had numerous personally devoted partisans in Great Britain, both in Scotland where she could yet once more call them together, and in England where she was secretly regarded by not a few as the lawful Queen; but, besides this, she had many in Catholic Europe, which had become reunited during these years (the times when the Council of Trent was drawing to a close) around the Papal authority, and was preparing to bring back those who had fallen away. This great confederacy gave Mary a position which made her capable of confronting a neighbour in herself so much more powerful.

Elizabeth once touched on the old claims of England to supremacy over Scotland: the ambition of all the Scotch kings, to prove to the English that they were independent of them, still lived in Mary: when queen was set over against queen, it took a more sharply-expressed shape; any whisper of subjection seemed to her an outrage.

For the moment Mary had, as before mentioned, given up the title of 'Queen of England': but all her thoughts were directed towards the point of getting her presumptive hereditary right to that kingdom recognised, and of preparing for its realisation at a later time.

But now there were two ways by which she might gain her end. She might either get her claim to the English throne recognised by an agreement with its present possessor, which did not appear so unattainable, as Elizabeth was unmarried, and such a settlement would have been legally valid in England; or she might enter into a dynastic alliance with a neighbouring great power, so as to be enabled to carry her claims into effect one day through its military strength.^[206]

With this last view negotiations were during several years carried on for a marriage with Don Carlos the son of the Spanish King. For in the same proportion that the union of Scotch and French interests dissolved, did the opposite alliance between Spain and England become looser. The most varied reasons made Philip II wish to enter into direct and close relations with Scotland. Immediately after the death of Francis II, a negotiation was set on foot with a view to this alliance, on Mary's giving an audience to the Spanish ambassador, to the vexation of Queen Catharine of France, who wished to see this richest of princes, and the one who seemed destined to the greatest power, reserved for her own youngest daughter. After Mary returned to Scotland similar rumours were renewed, and from time to time we meet with a negotiation for this object. When her minister Lethington was in London in the spring of 1563, he agreed with the Spanish ambassador that this marriage was the only desirable one: it was longed for by all Scotch and English Catholics. Soon afterwards the ambassador sent a young member of the embassy to Scotland, in the deepest secrecy, by a long circuit through Ireland; not without difficulty he obtained an interview with Mary Stuart, in which he assured himself of her inclination for the marriage. In the autumn of 1563 Catharine Medici showed herself well informed about this negotiation and much disquieted by it.^[207] It appeared to depend only on Philip's decision whether the marriage was concluded or not.^[208] After some time the Scotch Privy Council sent the bishop of Ross to Spain, to bring the matter about. The Queen herself corresponded on it with Cardinal Granvella and the Duchess of Arschot.

Don Carlos was too weak, too morbidly excited, to be married when young. King Philip, who did not wish to feed his ambition, at last gave the plan up, and recommended, instead of his son, his nephew the Archduke Charles of Austria.

But the one was as disagreeable to the English court as the other. Elizabeth had announced eternal enmity to Queen Mary if she married a prince of the house of Austria. Besides, the Spanish influence in England troubled her: she now saw herself already under the necessity of demanding and enforcing the recall of the Spanish ambassador, because he drew the Catholic party round him and incited them to oppose the laws of England. What might have come of it, if a prince of this house should now obtain rule over a part of the island itself?

But while Mary through these secret negotiations tried to obtain the support of a great Catholic house for her claims, she neglected nothing that could contribute at the same time to make a good and friendly understanding with Queen Elizabeth possible, and to bring it about. In the company of her half-brother Murray, who held the reins of government with a firm hand, supported by his religious and political friends, she undertook a campaign into the Northern counties (which inclined to Catholicism), to make them submit to the universal law of the land. Only one priest was allowed at court, from whom she heard mass; some of those who read the mass elsewhere were occasionally punished for it; clergymen who complained of the hardship they experienced were referred to Murray. This proceeding too was only temporary, it was intended to incline the Queen of England to her wishes. All quarrel was carefully avoided: on solemn festivals she drank to the English ambassador, to the health of his mistress. Besides, there were negotiations for a meeting of the two Queens in person at York, where Mary hoped to be solemnly recognised as presumptive heiress of England. [209] However much it otherwise lies beyond the mental horizon of this epoch of firm and mutually opposed convictions, Mary was then thought capable of willingly adopting the forms of the English Church; to this even the Cardinal of Lorraine had assented. She herself unceasingly declared that she wished to honour Elizabeth as a mother, as an elder sister. But the Queen of England, after all sorts of promises, preparations, and delays, declined the interview. She would hear absolutely nothing of any recognition of the claim of inheritance. With naive plainness she inferred that such a declaration would not lead 'to concord with her sister, the Queen of Scotland,' since naturally a sovereign does not love his heir;—how indeed could that be possible, since every one is wont to make the heir the object of his aim and hopes;—she might increase Mary's importance by the recognition, but at the same time she would undermine her own;—whether Mary had a right to the English throne, she did not know and did not even wish to know: for she was (and as she said this, she pointed to the ring on her finger in proof) married to the people of England; if the Queen of Scotland had a right to the English throne, that should be left to her unimpaired.

And none could deny that such a declaration as Mary required had its hazardous side for Elizabeth. Henry VIII's settlement of the succession, on

which Elizabeth's own accession rested, excluded the Scotch line: in virtue of it the descendants of the younger sister, who were natives of England, possessed a greater right. And how if the Queen of Scots, when recognised as heir to England, afterwards gave her hand to a Catholic prince hostile to Elizabeth? The dangers indicated above would then be doubled, the followers of the ancient Church would have attached themselves to the royal couple, and formed a compact party in opposition to Elizabeth's arrangements, which would never have attained stability.

To meet this very objection, it was suggested that Mary might marry a Protestant, in fact Robert Dudley Earl of Leicester, who was looked upon as the favourite of the Queen of England herself. Elizabeth could have been quite secure of him: she herself recommended him. Mary was at the first moment unpleasantly affected by the idea that she was expected to take as a husband one who was a born subject of England; but she was by no means decidedly against it, always supposing that in that case Elizabeth would recognise her right of inheritance in a valid form for herself and her issue by this marriage. Above all men Murray was in favour of this. He said, although his power must be diminished by the Queen's union with Leicester, yet he wished for it, in so far as it was bound up with the confirmation of the heirship; for that was the hope by which he had kept Mary firm to the existing system, and separated her from her old friends all these years past. Such was without doubt the case: it is this point of view that renders Mary's policy and conduct during the last years intelligible. If he, so Murray continued, could not make his promise good, Mary would think he had deceived her: should she afterwards marry a Catholic prince, what would be their position?^[210] Once more was the request brought before Queen Elizabeth. But even under these circumstances she could not be induced to grant it. She said, if Mary trusted her and married Leicester, she should never repent it: but these words, which contained no definite engagement, had rather an opposite effect on Mary. In the hope of the recognition of her heirship she had hitherto endured the absolute constraint of her position: she would even have agreed to the choice of a husband by which she feared to be disparaged and controlled: for how could she have concealed from herself, that by it she would have fallen into a permanent dependence on the policy of England? With all her compliances and advances she had nevertheless gained nothing. Her vexation relieved itself

by a violent outburst of tears: but during this inward storm she decided at the same time to drop her union with Elizabeth, and thus leave herself free for an opposite policy.

She had refused the Archduke because his possessions were too small to secure her ends, too distant for him to be able to help her. Then another suitor presented himself for her hand, who would not indeed bring her any increase of power, but would strengthen her claims, which seemed to her very desirable. This was the young Henry Lord Darnley, through his mother likewise a descendant of Henry VII's daughter who had married in Scotland, and through his father Matthew Earl of Lennox related to that family of the Stuarts which was descended from Alexander, a younger son of James Stuart the ancestor of the Scotch kings. In his descent there lay a double recommendation for him. It was remarked also that he had in his favour in Scotland itself the numerous and important Stuarts (Lord Athol too belonged to them); but mainly that a scion of this marriage would not find in England any rival of similar claims, which might be easily the case if young Darnley should marry into a family of the English nobility and bring it his rights.^[211] Darnley was a youth remarkable for his fine figure, tall and well built; he made a great impression on the Queen at his very first appearance. In July 1565 the marriage was celebrated and Henry Darnley proclaimed King: the heralds named his name first, when they delivered the royal proclamations.

He had hitherto, at least publicly, held to the Protestant faith: even now he occasionally attended the preaching: but after a little wavering he avowed himself a Catholic and drew over a number of lords with him by his example. The Catholic interest thus obtained a complete ascendancy at court.

And now Mary did not delay a moment longer in making decisive advances to the Catholic powers. She had in fact no need to fear that the King of Spain would be offended at her refusing his nephew, if she attached herself to him in other matters. When she announced her marriage to him, she not merely requested him to interest himself for her and her husband's claims in England; she designated him as the man whom God had raised up above all others to defend the holy Catholic religion, and asked for his help to enable her to withstand the apostates in her kingdom: as long as she lived, she

would join him against all and every enemy.^[212] This quite fell in with the ideas which Philip himself cherished. From the park of Segovia in October 1565 he commissioned Cardinal Pacheco to reassure the Pope with the declaration that he meant to support the Queen of Scots not less than the Pope himself. In this they must, he remarked, keep three points in view: first the subjugation of her rebellious subjects, which he thought not difficult, as Elizabeth would not support them; then the restoration of the Catholic Church in Scotland, than which nothing would give him greater satisfaction; lastly, the most difficult of all, the obtaining the recognition of her right to the English throne: in all this he would support the Queen with his counsel and with money: he could not however come forward himself, it could only be done in the Pope's name.^[213]

The ordinary accounts of the conferences at Bayonne have proved erroneous, as the proposals which were certainly made there by the Spaniards were not accepted. But Philip II's resolutions seem not less comprehensive in this case; these were his hostility to Queen Elizabeth, still concealed from the world but fully clear to his own consciousness, and his resolve to do everything in his power to place Mary, if not now, yet at a future time on the English throne. The great movement he was designing was to begin from Scotland. Like the Guises at a later time, so now Mary and her partisans in England and Scotland, if he supported her, were to be instruments in his hand.

Mary had the good fortune to break up the seditious combination of some lords who opposed her marriage. Strengthened by this she prepared for quite a different state of things. She received money from Spain: Pope Pius V had promised to support her as long as he had a single chalice to dispose of. She expected disciplined Italian troops from him: artillery and other munitions of war were brought together for her in the Netherlands. Leaning on Rome and Spain the spirited Queen hoped to become capable of any great enterprise.^[214]

It was clearly to be expected that she would unite a political tendency with the religious one. In the letter quoted above Philip reminds her how dangerous to monarchy were the doctrines of the pretended Gospellers:^[215] opinions like those which Knox, regardless of all else, put before her personally, as to the limitations of royal power justified by religion, she as a

matter of course would not endure. It is more surprising to find that she also called in question the rights which the nobility claimed as against the royal government, assigning a sort of theoretic ground for her view. The nobles base them, so she said, on the services of their ancestors; but if the children have renounced their virtue, neglect honour, care only for their families, despise the King and his laws and commit treason, must the sovereign even then still let his power be limited by theirs? How vast were the plans which this Queen entertained—to restore Catholicism in Scotland, to resume the war against the nobility in which her ancestors had failed, to overthrow the Protestant opinions, and therewith to become one day Queen of England!

Among those around her was an Italian, David Riccio of Poncalieri in Piedmont, who had previously been secretary to the Archbishop of Turin, and then in the same capacity accompanied his brother-in-law, the Conte di Moretta, who went to Scotland as ambassador of the Duke of Savoy. He knew how to express himself well in Italian and French, and was besides skilful in music.^[216] As he exactly supplied a voice which was wanting in the Queen's chapel, she asked the ambassador to let him enter her service. Riccio was not a blooming handsome man; though still young, he gave the impression of advanced years: he had something morose and repellent about him; but he showed himself endlessly useful and zealous, and won greater influence from day to day. He not merely conducted the foreign correspondence, on which all now depended and for which he was indispensable,—it became his office to lay everything before the Queen that needed her signature, and through this he attained the incalculable actual power of a confidential cabinet-secretary; he saw the Queen, who took pleasure in his company, as often as he wished, and ate at her table. James Melvil, whom she had commissioned to warn her, if he saw her committing faults, did not neglect doing it in this case; he represented to her the ill effects which favouring a foreigner drew after it: but she thought she could not let her royal prerogative be so narrowly limited.^[217] Riccio had promoted the marriage with Darnley: the latter seemed to depend on him; ^[218] it was even said that the secretary used at pleasure a signet bearing the King's initials. It was no wonder indeed if this influence created him enemies, especially as he took presents which streamed in on him abundantly: yet the real hostility came from quite another quarter.

The English Council of State did not fail to notice the danger which lay in a policy of estrangement on the part of Scotland. It was proposed to put an end to its progress once for all by an invasion of Scotland: or at least the wish was expressed to arm for defence, e.g. to fortify Berwick, and above all to renew the understanding with the Scotch lords; Murray, whom Mary had in vain tried to gain over by reminding him of the interest of their family and the views of their father, would most gladly have delivered Darnley at once into the hands of the English. By thus openly choosing his side he had been forced, together with his chief friends, Chatellerauld, Glencairn, Rothes, and some others, to leave Scotland: the Queen, refused with violent words the demand of the English court that she should receive them again; she called a Parliament instead for the beginning of March, in which their banishment was to be confirmed and an attempt made to restore Catholicism. This was not so difficult, as the resolutions of 1560 had never yet been ratified. There appeared at court the Catholic lords, Huntley, Athol, and Bothwell who was ever ready for fighting (he had returned from banishment); they came to an understanding with Riccio. But now it happened that the personal union (on which all rested) between the King, the Queen, and the powerful secretary changed to discord. Darnley, who wished not merely to be called King but to be King, demanded that the matrimonial crown should be conferred on him by the Parliament; this would have given him independent rights. The Queen on her side wished to keep the supreme power undiminished in her hands: and Riccio may well have confirmed her in this, as his own importance depended thereon: Darnley ascribed the opposition he met with from his wife not so much to her own decision as to the low-born foreigner against whom he now conceived a violent hatred. His father, Lennox, who cared little for the restoration of Catholicism in itself, entirely agreed with him as to this. They held it allowable to put out of the way the intruder who dared to hinder their house from mounting to the highest honours, and who by the confidential intimacy in which he stood with the Queen gave rise to all kinds of offensive rumours. With this object they—for the instigation came from them—joined in a union with the Protestant nobles. These regarded Riccio as their most thoroughgoing opponent: they too wished him to be got rid of; but his death alone could not content them. A Parliament was to meet at once, from which they expected nothing but a complete condemnation of their former friends, and absolutely ruinous resolutions against themselves.

They made the overthrow of this system a condition of their taking a share in getting rid of Riccio. The King consented that Murray should be again placed at the head of the government, in return for which the matrimonial crown was promised him.

On the 7th March the Queen went to the old council-house of Edinburgh to make the necessary arrangements for the Parliament. The insignia of the realm, sword crown and sceptre, were borne before her by the Catholic lords, Huntley, Athol, and Crawford, the heads of those houses which had once already, in France, offered her their alliance. The King had refused to take part in the ceremony. She named the Lords of Articles, who from of old exercised a decisive influence in the Scotch Parliaments, and restored the bishops to their place among them. As the Queen declares, her object was to promote the restoration of the old religion and to have the rebels sentenced by the assembled Estates. In Holyrood, besides Huntley and Athol, Bothwell, Fleming, Levingstoun, and James Balfour had also found favour, all men who had taken an active part for the restoration of Catholicism or for the re-establishment of the power of the crown: how much it must have surprised men to find that the Queen granted Huntley and Bothwell, who had been declared traitors, admittance into the Privy Council. If the Parliament adopted resolutions in accordance with these preliminaries, it was to be expected that the work of political and religious reaction would begin at once, with the active participation not only of the Pope from whom some money had already come, but also of other Catholic powers with whom Riccio kept the Queen in communication.

A serious danger assuredly for the lords and for Protestantism; there was not a moment to lose if they wished to avert it; but the attempt to do so assumed, through the wild habits of the time and the country, that character of violence which has made it the romance of centuries. The event had such far-reaching results that we too must devote a discussion to it.

In the low, narrow, and gloomy rooms of Holyrood House there is a little chamber to which the Queen retired when she would be alone: it was connected by an inner staircase with the King's lodgings. Here Mary was sitting at supper on Saturday the 9th March 1566, with her natural sister the Countess of Argyle, her natural brother the Laird of Creich, who commanded the guard at the palace, and some other members of her

household, among whom was also Riccio; when the King, who had been expected somewhat earlier, appeared and seated himself familiarly by his wife. But at the same moment other unexpected guests also entered. These were Lord Ruthven, who had undertaken to execute the vengeance of King and country on Riccio, and his companions; under his fur-fringed mantle were seen weapons and armour: the Queen asked in affright what brought him there at that unwonted hour. He did not leave her long in doubt. 'I see a man here,' said Ruthven, 'who takes a place that does not become him; by a servant like this we in Scotland will not let ourselves be ruled,'^[219] and so prepared to lay hands on him.

Riccio took refuge near her; the Queen declared that she would punish an attack on him as high treason, but swords were bared before her eyes, Riccio was wounded by a thrust over her shoulder, and dragged away: on the floor and on the steps he received more than fifty wounds: the King's own dagger was said to have been seen in the body of the murdered man. This may be doubted, as his jealousy was by no means so real; yet he said soon after that he was responsible for the honour of his wife. In the turmoil he had only just stretched out his hand, to guard her person from any accident. For the nobles, who though acting with the utmost violence yet did not wish to risk their whole future, it was enough that he was there: his presence would authorise their act and give it impunity. When the murder was done Ruthven returned to the Queen and declared to her that the influence she had given Riccio had been unendurable to them, as had been also his counsels for the restoration of the old religion, his enmities against the great men of the land, his connexions with foreign princes; he announced to her plainly the return of the banished lords, with whom the others would unite in an opposite policy. For they had not merely aimed at Riccio: at the same time the Lords Morton and Lindsay, who had collected a number of trustworthy men, had advanced with them and beset the approaches to the palace-yard. Their plan was to get into their hands all their enemies who had gathered round the Queen. But while their attention was fastened on Riccio's murder, most of the threatened persons succeeded in escaping. All the rest who did not belong to the household, and were taken in the palace, were removed without distinction: the Queen was treated like a prisoner.^[220] She still possessed a certain popularity, as being hereditary sovereign: a movement arose in the city in her favour, but this

was counterbalanced by the antipathies of the Protestants, and a declaration of the King sufficed to still it. The next day a proclamation appeared in his name which directed the members of the Parliament, who had already arrived, to depart again.

It was at any rate secured that a restoration of Catholicism or a legal prosecution of the banished lords was not to be thought of; the original plan however was not completely carried out. As it appears, the temper of the country had not been so far prepared beforehand as to make it possible to deprive the Queen of her power. And the spirited princess did not let herself be so easily subdued. Above all she succeeded in gaining over her husband again, to whom the predominance of the lords was itself derogatory; he helped her to escape and accompanied her in her flight. When they were once safe in a strong place, her partisans gathered round her; she placed herself at the head of a force, small though it was, and occupied the capital; the chief accomplices in the attack of Holyrood, Morton and Ruthven, fled from the country. She did not however revert to her old plans: she resumed her earlier connexions instead, her half-brother Murray again obtained influence, the old members of the Privy Council stood by his side, after some time Morton was able to return. Foreigners found that Scotland was as quiet as before.

But this apparent quiet concealed a discord destined to produce still greater complications. The Queen had only learnt afterwards the share which Darnley had taken in Riccio's murder: it was her husband who had instigated this insult to her royal honour: how could she ever again repose confidence in him? And he no longer found support in the lords whom he had deserted at the moment of the crisis. He was very far now from obtaining the matrimonial crown or even any real influence: he saw himself excluded from affairs more than ever, and despised. When his son was baptised at Stirling, the father could not appear, though he was in the palace: he was afraid of being insulted in public. His condition filled him with shame: he often thought of leaving the kingdom, and made preparations for doing so. But he was not able to state and prove his grievances: he had to acknowledge before the assembled Privy Council that he had no complaints worth mentioning.

The Queen on her side had sometimes let drop her wish to be rid of such a husband. She could not however think seriously of having her marriage with him dissolved, as this could only be done by declaring it null and void, and by that step her son, of whom she had just been delivered, and who was to inherit all her rights, would have been at the same time declared illegitimate. She was told that means would be found to carry the matter through without prejudice to her son. She warned her friends not to undertake anything which, though meant to help her, might prepare yet more trouble.

How men stood to each other is clear from the fact that on the one side Darnley and his father linked themselves with the Catholic party—they were said to have adopted a plan of seizing the government, in the Queen's despite, in the name of her new-born son^[221]—while on the other side the rest of the barons pledged themselves not to recognise him but only the Queen. A league was already concluded between some of them, originating with Sir James Balfour (who had been marked out for death by the halter in Holyrood), to rid the world by force of a tyrant and enemy of the nobility, against whom men must secure their lives.

Thus all was in preparation for a fresh catastrophe; a new personal relation of the Queen brought it to pass.

Among the nobles of Scotland James Hepburn, Earl of Bothwell, was especially distinguished for a fine figure, for youthful strength, intrepid manly courage, proved in a thousand adventures, and decided character. Though professedly a Protestant, he had attached himself to the Regent without wavering, and assured the Queen of his assistance while she was still in France. Can we wonder if Mary, under the pressure of the party combinations around, needing before all things a friend personally devoted to her, sought for support in this tried and energetic man? As she in general prized nothing more highly than bold and valiant deeds, she had often told him how much she admired him; but yet more than this,—we cannot doubt that she let herself be drawn into a passionate connexion with him. Who does not know the sonnets and the love-intoxicated letters she is believed to have addressed to him? I would not say that every word of the latter is genuine; through the several translations—from the French original (which is lost) into the Scotch idiom, from this into Latin, and then back into

French as we now have them—they may have suffered much alteration: we have no right to lay stress on every expression, and interpret it by the light of later events: but in the main they are without doubt genuine: they contain circumstances which no one else could then know and which have since been proved to be true; no human being could have invented them.^[222] It does not seem as if Mary's fondness for Bothwell was returned by him in the same degree: in her letters and poems she is constantly combating a rival, to whom his heart seems to give the preference. This was Bothwell's own wife whom he had only shortly before married: she stayed with him for a time in the neighbourhood of the court, but he took care that the Queen knew nothing of her being there. As he was before all things ambitious and desirous of power, he only cared for the Queen's love and the possession of her person so far as it would enable him to share her authority and to obtain the supreme power in Scotland. But for this another thing was necessary; the King must be removed out of the way. As Darnley had once joined Riccio's political enemies in the Holyrood assassination, so Bothwell now united himself with Darnley's enemies with a view to his murder, for which they were already quite prepared. Morton was asked to join the enterprise this time also: but he demanded a declaration from the Queen that she was not against it: and this Bothwell could not obtain.

But, it may be said, was not the Queen in collusion with him? Did she not purposely bring back her husband, who had fallen sick at Glasgow, to Edinburgh, and did she not lodge him in a lonely house there not far from the palace under the pretence that the purer air would contribute to his recovery, but in fact to deliver him over all the more surely to destruction? Such has been always the general belief: even her partisans, the zealous Catholics, at that time inclined to believe that the Queen at least connived in the plot.^[223] But there was yet another view taken at the time, according to which the better relations that had begun between husband and wife were not due to hypocrisy but were genuine, and a complete reconciliation and reunion was to have been expected: the returning inclination towards her husband was contending in the Queen with her passion for Bothwell; and he was driven on, by the apprehension that his prey and the prize of his ambition would escape him, to hasten the execution of his scheme.^[224] And psychologically the event might be best explained in this way. But the statement has not sufficiently good evidence for it to be maintained

historically. A poet might, I think, so apprehend it: for it is one of the advantages of poetic representation, that it can take up even a slightly supported tradition, and following it can infer the depths of the heart, those abysmal depths in which the storms of passion rage, and those actions are begotten which laugh laws and morality to scorn, and yet are deeply rooted in the souls of men. The informations on which our historical representation must be based do not reach so far: on a scrupulous examination they do not allow us to attain a definite conviction as to the degree of complicity. Only there can be no doubt as to the fact that this time too ambition and the lust of power played a great part. If Bothwell once said he would prevent Darnley from setting his foot on the necks of the Scotch, he thereby only expressed the feeling of the other nobles. Yet he executed his murderous plot without their joining in it and by means of his own servants.^[225] In the house before mentioned he caused a quantity of gunpowder to be laid under the chamber in which Darnley slept, in order to blow him into the air: alarmed at the noise made by opening the door, the young sovereign sprang from his bed; while trying to save himself, he was strangled together with the page who was with him: the powder was then fired and the house laid in ruins.^[226]

So the dreadful deed was done: the news of it filled men at first with that curiosity which always attaches to dark events that touch the highest circles; they then busied themselves with the question as to who would ascend the Scottish throne and give the Queen his hand,—among the other suitors Leicester now thought the time come for him, and for renewing good relations between England and Scotland:—but meanwhile to every man's astonishment and horror a rumour spread that the Queen would unite herself with the man to whom the murder of her husband was ascribed. Men fell on their knees before her, to represent the dishonour she would thus draw on herself, and even the danger into which she would bring her child. Letters from England were shown her in which the ruin of all her prospects as to the English throne was intimated, if she took this step: for it would strengthen the suspicion, which had arisen on the spot, that she had been an accomplice in her husband's murder. But she was already no longer her own mistress. Bothwell now did altogether what he would. He obtained from the lords, who feared him, a declaration that he was guiltless of any share in the King's murder, and even their consent to his marriage with the Queen. He

said publicly he would marry the Queen, whoever might be against it, whether she would or not. And if Mary wished ever again to govern the country, and make the lords feel her vengeance, Bothwell might appear to her the only man who could assist her in this. Half of her free will, half by force, she fell into his power and thus into the necessity of giving him her hand. An archiepiscopal matrimonial court found in a near relationship between Bothwell and his wife a pretext for dissolving his previous marriage.^[227] Bothwell was created Duke of Orkney: he began to exercise the royal power for his own objects; his friends, even the accomplices in the murder, were promoted.^[228]

But how could it be expected that the Lords would tolerate in the much more dangerous hands of Bothwell a power they would not have endured in Darnley's? Against him they had the full support of the people; filled with moral aversion to the Queen for the guilt she had incurred, or which was attributed to her, they expressed their loyalty only in hostility to her; a general uneasiness showed itself as to the safety of her son who was likewise threatened by his father's murderers.

Under a banner on which were depicted the murdered King and his child the latter praying for help, a great army marched against the castle where the newly-married pair dwelt. Bothwell merely regarded the hostile lords as his rivals, who envied him the great position to which he had raised himself, and thought to rout them all with the feudal array which gathered round him at the Queen's summons. But at the decisive moment the feeling of the country infected his own people as well; instead of being able to fight he had to fly. He was forced to live as a pirate in the Northern Seas; for he could no longer remain in the country. The Queen fell into the power of the Lords, who placed her in the strong castle which the Douglas had built in the middle of Loch Leven, and detained her as a prisoner.

In France it was not wholly forgotten that she had once been the Queen of that realm; a fiery champion of the Catholics boasted that, if they would give him a couple of thousand arquebusiers, he would free her from custody in despite of the Scots; but Catharine Medici, who besides was no friend of hers, rejected this absolutely, as they had already so many irons in the fire.^[229] On the other hand Elizabeth concerned herself for the interests of her endangered neighbour with a certain emphasis. But the Scots were already

discontented with the conduct of England, and complained loudly that since the treaty of Leith nothing good had come to them from thence;^[230] they were resolved to pay their neighbour no more attention, but to manage their own affairs for themselves.

Their path was clearly marked out for them. They had murdered Riccio, conspired against Darnley, driven Bothwell away, and all for the special reason that they had tried to create a strong supreme power over them: they could not possibly allow the Queen, irritated and insulted as she was, to again obtain the exercise of her power. Mary therefore was forced to resign the Scotch crown in favour of her son, and to name her brother Murray regent during his minority. Immediately on this the ceremony of anointing and crowning the child was performed in an almost grotesque manner.^[231] Two superintendents and a bishop set the crown on his head, which the Lords there present touched in token of their consent; two of them, Morton and Hume, then swore in the name of the new King, James VI, that he would uphold the religion now prevailing in Scotland, and combat all its enemies.

When after this Murray, who had exiled himself to France, and had taken no share in the last catastrophe (which he foresaw), returned, he was in a position once more to conduct the government according to his old policy, only with greater independence. A Parliament was called which now for the first time confirmed the statutes made in 1560 in favour of the Kirk, and also came to such an arrangement about the confiscated church-property as made it possible for it to exist.

So ruinous for Mary were the results of her attempt to break through the combination which formed the condition of her government in Scotland, and to effect a restoration of the old ecclesiastical and political forms. Before the power which she wished to overthrow her own had gone down.

But she was not yet minded to submit to it. And mainly through a personal relation which she had entered into with the young George Douglas, who conceived hopes of her hand, she succeeded in escaping out of her prison and over the lake, bold and venturous as she always was. In the country there were many who thought themselves to stand so high above the bastard Earl of Murray, that they held it a disgrace to obey him: all these gathered

round her; and as she then, the very day after her escape, revoked her abdication, they bound themselves together to replace her on the throne. In the league, at the head of which stood the Hamiltons, we find eight bishops and twelve abbots,—for the re-establishment of the Catholic Church was part of the plan: a considerable army was brought into the field with this object. Murray and his party were however the stronger of the two, they represented the organised power of the State, and their soldiers were the best disciplined. The Queen, who, at Langsyde, from a neighbouring eminence, looked on at the battle between the two armies, had to witness her own men being scattered without having done the enemy any damage,—Murray is said to have lost only one man. He himself put a stop to the slaughter of the fugitives. Still even now her affairs did not seem to those around her utterly lost, for all her friends had not yet appeared in the field, and there were still strong places to which she could retreat. But she aimed not merely at defence, but at overpowering her enemies. As what she had just seen left her no hope of this in Scotland, she adopted the idea of demanding help from the Queen of England. For the latter had in the strongest terms made known to the Scotch barons her displeasure at the treatment of their Queen, which was not in harmony with the laws of God or man, and had threatened to punish them for the wound thus inflicted on the royal dignity. She had once sent Mary herself a jewel as a pledge of her friendship. Mary was warned by those around her not to put full trust in these assurances. But she was quite accustomed to take her resolutions under passionate emotion, and could not then be dissuaded from her views. Through forests and woods, over stock and stone, without a single woman attendant, without any other food than the Scotch oatcake, day and night she kept on her way to the coast, from which she betook herself in a small boat to Carlisle. Her soul was thirsting to subdue the rebels: her firm trust was to draw Queen Elizabeth into the war against them: she came, not to seek a refuge, but to gain troops and assistance.

NOTES:

[203] Throckmorton to Chamberlain, 21 Nov. 1560, in Wright, Elizabeth i. 52.

[204] Throckmorton, in Tytler, History of Scotland vi. 194. In a memoir of Cecil, 'a note of indignities and wrongs done by the Queen of Scots to the Queen's Majesty,' in Murdin 582, the greatest stress is justly laid on this refusal.

[205] Castelnau, Mémoires iii. 13. 'Cette jeune princesse avoit un esprit grand et inquiète, comme celui du feu Cardinal de Lorraine son oncle, auxquels ont succédé la pluspart des choses contraires à leurs délibérations.'

[206] As it is once expressed in one of her letters: 'pour l'avancement de mes affaires tant en ce pays (Scotland) qu'en celui là, ou je pretends quelque droit (England).' In Labanoff, Lettres et Mémoires de Marie Stuart i. 247.

[207] 'Que la conveniencia publica, en especial la de la religion aconsejaba que la reina su ama, se casase con el principe Don Carlos.' From the ambassador's reports in Gonzalez 299.

[208] 'Qu'il ne tiendra, qu'au dit Espagne qu'il (ce mariage) se ne fasse.' Additions à Castelnau.

[209] Compare Conaeus, Vita Mariae, in Jebb i. 24.

[210] Conversation with Randolph, in Tytler vi. 316. Murray says to him: 'the Queen would dislike and suspect him, because he had deceived her with promises which he could not realise: he was the counsellor and devizer of that line of policy, which for the last five years had been pursued towards England; he it was that had induced her to defer to Elizabeth.'

[211] Spottiswood, History of the Church of Scotland ii. 25. 'If it should fall him to marry with one of the great families of England, it was to be feared that some impediment might be made to her in the right of succession.'

[212] Lislebourc (Edinburgh), 24 July 1565, in Labanoff vii. 430.

[213] Compare Apuntamientos 312. The letter itself in Mignet ii. App. E.

[214] Sacchinus, Historia societatis Jesu, pp. iii, xiii, no. 166.

[215] Fragment d'un Mémoire de Marie Stuart sur la noblesse. Labanoff vii. 297.

[216] Mémoire adressé à Cosme I, from the Archivio Mediceo at Florence, in Labanoff vii. 65.

[217] James Melvil, Memoirs 59.

[218] From a despatch of Randolph's in Mackintosh, History of England iii. 73. 'David is he that worketh all, chief secretary of the Queen of Scotland, only governor to her good man.' Can the date be right?

[219] 'Volemo quel galante la e non volemo esser governati per un servitor.' Letter to Cosimo I, in Tuscany, in Labanoff vii. 92.

[220] Queen Mary to the Archbishop of Glasgow, 2 April 1566, in Keith and Labanoff. Of all the reports on this event the most important and trustworthy.

[221] 'That the king ... suld take the prince our son and crown him and being crownit as his father suld tak upon him the government.' Mary to the Archbishop of Glasgow, in Labanoff i. 396.

[222] Compare Robertson, Dissertation on King Henry's murder, Works i., History of Scotland 243. From a letter of Thuanus to Camden (1606) it is clear

how much trouble it already cost him to arrive at a decided opinion.

[223] 'Monsenor de Moreta ... anadio (to his narrative of the event) algunas particularidades, que en juicio del embajador probaban o inducian mucha sospecha que la reina avia sabido y aun permitido el suceso.' Apuntamientos 320. The affair has been very wrongly drawn into the sphere of religious controversy.

[224] Account in the collection for the history of the times of the Emperor Maximilian II, which Simon Schardius embodied in the *tomus rerum Germanicarum* iv, not authentic, yet based on what was then held in Scotland to be true. It runs: 'Rex cum illa se accedente ita suaviter sermones commutat, ut reconciliatae annulum daret, hoc pacto, ut illa se in lectum conjugalem intra duos dies admitteret. Erant in aula, qui hanc offensionem placari minime vellent, unde, priusquam rex voti compos fieret, eum e medio tollere constituerunt.'

[225] Trial of James Earl Bothwell. State trials.

[226] Report of the Nuncio, which agrees fairly with the statements in Schardius.

[227] Mary's confessor told the Spanish ambassador in answer to his questions: 'Que el caso se habia consultado con los obispos catolicos y que unanimemente havian dicho que lo podia hacer (casarse) por que la muger de Bodwell era pariente sua en quarto grado.'

[228] Memorandum of Cecil. 'She committed all authority to him and his companions, who exercised such cruelty as none of the nobility that were counsel of the realm durst abide about the Queen.'

[229] Norris to Elizabeth 23 July 1567, in Wright i. 260.

[230] Throckmorton to Cecil: 'upon other accidents [since Leith] they have observed such things in H. My's doings, as have tended to the danger of such as she had dealt withall.' Wright 251.

[231] Calderwood ii. 384: 'Modo cha ha usato la regina di Scotia per liberarsi,' from the Florentine archives, in Labanoff vii. 135.

CHAPTER IV.

INTERDEPENDENCE OF THE EUROPEAN DISSENSIONS IN POLITICS AND RELIGION.

If we inquire into the reason why Philip II gave up his previous relations with England and sided with the Queen of Scots, we shall find it mainly in the fact that the victory of Protestant ideas in England exercised a counter-action which was insupportable for the government he had established in the Netherlands. But that he gave Mary no help in her troubles, though information was once collected as to how it might be done, may also be traceable to the disturbances that had broken out in the Netherlands, the suppression of which occupied all his attention and resources.

In 1568 the Duke of Alva was master of the Netherlands: he was already able to send a considerable force to help the French government, which had once more broken an agreement forced upon it by the Huguenots; the stress of the religious war was transferred to France, and there too the Catholic military force by degrees gained the upper hand.

It was under these circumstances that Mary Stuart appeared in England with a demand for help. If in the Netherlands the attempts of the nobles and the Protestant tendencies had been alike defeated, they had on the other hand, by a similar union, achieved a decisive victory in Scotland. Was Elizabeth to join Mary in combating them?

Elizabeth disliked the proceedings of the Scotch nobles towards their lawful Queen; the adherents of the Scotch church-system were already troublesome to her in England: but, however much she found to blame in them, in the great contest of the world they were her allies. Mary on the other hand held to that great system of life and thought with which the English Queen and her ministers had broken. Whatever Elizabeth might have previously promised, she did not mean to be bound by it under circumstances so completely altered.^[232] Had she chosen to restore Mary, she would have opened the island to all the influences which she desired to exclude. Nor did she wish to let her retire to France, for while Mary had

resided there previously, England had not had a single quiet day: without doubt the Catholic zeal prevailing there would have been at once excited in support of her claims to the English throne. An attempt was again made to reconcile the Scotch nobles with their Queen: but as this led to an enquiry respecting her share in the guilt of the King's murder—those letters of Mary to Bothwell now first came to the knowledge of the public—the dissension became rather greater and quite irreconcilable.

One now begins to feel sympathy with the Queen of Scots, especially as her share in the crime imputed to her is not quite clear. Of her own free will she had come to England to seek for assistance on which she thought she could reckon: but high considerations of policy not merely prevented its being given but also made it seem prudent to detain her in England.^[233] Elizabeth and her ministers brought themselves to prefer the interests of the crown to what was in itself right and fit. Mary did not however on this account vanish from the stage of the world: rather she obtained an exceedingly important position by her presence in England, where one party acknowledged her immediate claim to the throne, the other at least her claim to the succession; and hence arose not merely inconveniences but very serious dangers for the English government. Even in 1569, at a moment when the Catholic military power had the superiority in France and the Netherlands, Mary's uncle, the Cardinal of Lorraine, proposed to the King of Spain an offensive alliance against Queen Elizabeth.^[234] In the civil wars of France they had just won the victory in two great battles. Who could say what the result would have been if in the still very unprepared condition of England an invasion had been undertaken by the combined Catholic powers?

But the life and the destiny of Europe depend on the fact that the great general antagonisms are perpetually crossed by the special ones of the several states. Philip did not wish for an alliance with the French; it seemed to him untrustworthy, too extensive and, even if it led to victory, dangerous. He declared with the greatest distinctness, that he thought of nothing but of putting down his rebels (including at the time the Moriscoes), and the complete pacification of the Netherlands; he would not hear of a declaration of war against England. The difficulty of this sovereign's position on all sides and his natural temperament were the determining element in the history of the second half of the sixteenth century. His great object, the re-

establishment and extension of the Catholic religion, he never leaves out of sight for a moment; but yet he pursues it only in combination with his own special interests. He is accustomed to weigh all the chances, to proceed slowly, to pause when the situation becomes critical, to avoid dangerous enterprises. Open war is not to his taste, he loves secret influences.

In November 1569 a rebellion broke out in England, not without the connivance of the Spanish ambassador, but mainly under the impression made by the Catholic victories in France, as to which Mary Stuart also had let it be known that they rejoiced her inmost soul. It was mainly the Northern counties that rose, as had before been the case in 1536 and 1549. Where the revolt gained the upper hand, the Common Prayer-book and sometimes the English translation of the Bible as well were burnt, and the mass re-established. Many nobles, above all in the North itself, still held Catholic opinions. At the head of the present insurrection stood the Percies of Northumberland, the Nevilles of Westmoreland, the Cliffords of Cumberland; Richard Norton, who rose for the Nevilles, venerable for his grey hair, and surrounded by a troop of sons in their prime, carried the Cross as a banner in front of his men. The nobility did not exactly want to overthrow the Queen, but it wished to force her to alter her government, to dismiss her present ministers, and above all to recognise Mary Stuart's claim to the succession—which would have given her an exceedingly numerous body of supporters in England and thus have seriously hampered the Queen. But now the government possessed a still more decided ascendancy than even in 1549. It had come upon the traces of the enterprise in time to quell it at its first outbreak, and had at once removed the Queen of Scots out of reach of the movement. The commander in the North, Thomas Ratcliffe, Earl of Sussex, one of the Queen's heroes, who bore himself bravely and blamelessly in other spheres of action as well as in this, and has left behind him one of the purest of names, encountered the rebels with a considerable force, composed entirely of his own men; these the rebels were the less able to withstand, as they knew that still more troops were on the march. As the ballad of a northern minstrel says, the gold-horned bull of the Nevilles, the silver crescent of the Percies, vanished from the field: the chiefs themselves fled over the Scotch border, their troops dispersed, their declared partisans underwent the severest punishments.

Many who knew themselves guilty passed over to the Queen's party in order to escape.

But at the very time of this victory the war against the Queen at home and abroad first received its most vivid impulse through the supreme head of the Catholic faith. Pope Pius V, who saw in Elizabeth the protectress of all the enemies of Catholicism, had issued the long prepared and hitherto withheld excommunication against her. In the name of Him who had raised him to the supreme throne of Right, he declared Elizabeth to have forfeited the realm of which she claimed to be Queen: he not merely released her subjects from the oath they had taken to her: 'we likewise forbid,' he added, 'her barons and peoples henceforth to obey this woman's commands and laws, under pain of excommunication.'^[235] It was a proclamation of war in the style of Innocent III: rebellion was therein almost treated as a proof of faith.

The way in which the Queen opened her Parliament in 1571 forms as it were a conscious contrast to the Papal bull, and its declaration that she was deposed. She appeared in the robes of state, the golden coronal on her head. At her right sat the dignitaries of the English Church, at her left the lay lords, on the woolsack in the centre the members of the Privy Council, by the sides stood the knights and burgesses of the lower house. The keeper of the great seal reminded the Houses of the late years of peace, in which—a thing without example in England—no blood had been shed; but now peace seemed likely to perish through the machinations of Rome. All were of one accord that they must confront this attempt with the full force of the law. It was declared high treason to designate the Queen as heretical or schismatic, to deny her right to the throne, or to ascribe such a right to any one else. To proselytise to Catholicism, or to bring into England sacred objects consecrated by the Pope, or absolutions from him, was forbidden and treated as an offence against the State. What a decidedly antipapal character did the Church, which retained most of the hierarchic usages, nevertheless assume! The oath of supremacy became indispensable even for places at court and in the country districts, in which it had not hitherto been required. Men deemed the Queen's ecclesiastical power the palladium of the realm.

In this form the war of religion appeared in England. The Protestant exiles from the Netherlands and France sought and found a refuge here in large

bodies; it has been calculated that they then composed one-twentieth of the inhabitants of London, and they were settled in many other places. But the fiery passions, which on the Continent led to the re-establishment of Catholicism, reacted on the old English families of the Catholic faith as well, and produced, under the influence of Spanish or Italian agitators, ever new attempts at overthrowing the government.

It was just then, there cannot be any doubt of it, that Thomas duke of Norfolk, who might be regarded as almost the chief noble of the realm, became concerned in such an attempt. Somewhat earlier the idea had been entertained that his marriage with Mary Stuart might contribute to restore general quiet in both kingdoms: but Queen Elizabeth had abandoned this plan, and he had pledged himself to her under his hand and seal not to enter into any negotiation about it without her previous knowledge. Nevertheless he had allowed himself to be drawn by an Italian money-changer, Roberto Ridolfi, who had lived long in England, not merely into a new agreement with this object in view but into treasonable designs. Norfolk possessed an immense following among the nobility of both religious parties: and, as he would not declare himself a Catholic at once, he thought to have the Protestant lords also on his side, if he married Mary Stuart, whom many of them regarded as the lawful heiress of the realm. He applied for the Pope's approval of his proceedings, and promised to come forward without reserve if a Spanish force landed in England: he affirmed that his views were not directed to his own advancement, but only to the purpose of uniting the island under one sovereign, and re-establishing the old laws and the Catholic religion. These thoughts hardly originated with the duke, they were suggested to him by Ridolfi, who himself drew up the instructions with which Norfolk and Mary despatched him to the Pope and the King of Spain. ^[236] Ridolfi had been sent to Mary with full powers from the Pope, and also well provided with money. When he now appeared again in Rome with his instructions, which really contained simply the acceptance of his proposals, he was, as may be imagined, received with joy: the Pope, who expected the salvation of the world from these enterprises, recommended them to King Philip. In Spain also they met with a good reception. We are astonished at the naiveté with which the Council of State proceeded to deliberate on the proposal of a sudden stroke by which an Italian partisan undertook to seize the Queen and her councillors at one of her country-houses. The King at last

left the decision to the Duke of Alva. Alva would have been in favour of the plan itself, but he took into consideration that an unsuccessful attempt would provoke a general attack from all sides on the Netherlands, which were only just subdued and still full of ferment. He thought the King should not declare himself until the conspirators had succeeded in getting the Queen into their hands, alive or dead. If Norfolk made his rising contingent on the landing of a Spanish force in England, Alva on the other hand required that he should already have got the Queen into his power before his own master made his participation in the scheme known.^[237]

But while letters and messages were being exchanged in this way (for Ridolfi held it necessary to be in communication with his friends in England and Scotland), Elizabeth's watchful ministers had already discovered all. Even before Ridolfi reached Spain, Elizabeth gave the French ambassador an intimation of the commission with which the Queen of Scots had entrusted him.^[238] The latter had not yet received any kind of answer from Spain when the Earl of Shrewsbury, in whose custody she then was at Sheffield, reproached her with the schemes in which she was implicated, and announced to her a closer restriction of her liberty as a punishment for them: further Elizabeth would not at that time as yet proceed against her. In Spain and Italy they were still expecting the Duke of Norfolk to take up arms, when he was already a prisoner. Elizabeth struggled long against giving him over to the arm of the law, but her friends held an execution absolutely necessary for her personal security. On the scaffold in the Tower Norfolk said he was the first to die on that spot under Queen Elizabeth and trusted he would be the last. All people said Amen.

The scheme of this revolt proceeded more from Italy and Rome than from Spain: King Philip had taken no active part in it, the Duke of Alva had rather set himself against it: but we need only glance at their correspondence to perceive how completely nevertheless they were implicated in the matter. To carry on the war against Elizabeth not in his own name but in the name, and for the restoration of the rights, of the Queen of Scotland, would have exactly suited the policy of Philip II: he thought such an opportunity would never present itself again; they must avail themselves of it and finish the affair as quickly as possible, that France might not take part in it. If Alva counts up the difficulties which manifestly stood in the way of the scheme, yet he promises to execute the King's

wishes with all the means in his power, with person and property: 'God will still send the King other favourable opportunities as a reward for his religious zeal.'^[239]

Queen Elizabeth expelled the Spanish ambassador, Guern de Espes, who had undeniably taken part in Ridolfi's schemes as well as in the last rising, from England; as soon as he reached Brussels, the English and Scotch fugitives gathered round him, and communicated to him many new schemes of invasion, to which his ear was more open than that of the Duke of Alva. An attack was to be tried, now on Scotland, now on Ireland, now on England itself.

We cannot suppose that in England they knew every word that was uttered about these plans, or that everything they did believe there was well grounded. But from year to year men's minds were more and more filled with the idea that Philip II was the great enemy of their religion and of their country. In the sphere of classical literature the translation of Demosthenes in 1570 is noteworthy in this respect. What Demosthenes says against Philip of Macedon, in regard to the Athenians, the translator finds applicable to Philip II; he calls the English to open war in the words of the ancient orator, 'for as it was then, so is it now, and ever will be.'

But for this Elizabeth on her side did not feel inclined or prepared. Many acts of hostility took place at sea in a piratical war, in politics they stood sharply opposed to each other: but they were not inclined on either side for an open contest, front to front.

Above all the English held it necessary now to come to a good understanding with the other of the two great neighbouring powers. It stood them in good stead that a tendency to moderate measures gained sway in France; the English ambassadors took a very vivid interest in the project of a marriage between Henry of Navarre and Margaret of Valois. While the victory of Lepanto filled the hearts of the partisans of Spain with fresh hopes, the jealousy it awakened in the French contributed largely to their withdrawal from Spain and the Pope, and their readiness for an alliance with England. The two powers promised each other mutual support against any attack, on whatever ground it might at any time be undertaken. A later

explanation of the treaty expressly confirmed its including the case of religion.^[240]

Thus secured on this side the Queen proceeded to carry out an idea which had immense consequences. It is not a mere suspicion, partially derived from the result, to suppose that she thought King Philip's combining with her rebels gave her a right to combine with the King's revolted subjects: she herself said so once to the French ambassador: while talking with him, she one day dropped her voice, and said that as Philip kept her state disturbed, she did not hold herself any longer bound to treat him with the regard she had hitherto shewn him in the quarrels of the Netherlands.

It is not quite true that she supported with her own power the Gueux ('Beggars'), who had fled to the sea from Alva's persecutions, in the decisive attacks they now made on Brielle and Vliessingen (Brill and Flushing): but this was hardly needed, it was quite enough that her feeling was known, she merely let things take their way, she did not prevent the attack of the rebels against Philip II (powerful at sea as they were) being supported by the fugitive Walloons residing in England, and by Englishmen also. It was estimated that there were then in Vliessingen 400 Walloons and 400 English: 1500 English lay before the town, to keep off the attacks of the Spaniards. French troops gave aid in corresponding numbers. They were all recalled at a later time; but meanwhile the insurrection had gained a consistency which made it impossible for the Spaniards to subdue the Netherlands.

As formerly Elizabeth had joined the Scotch lords against the Regent and the Queen of Scotland, so now she helped the insurgents of the Netherlands against the King of Spain. In the first case she had Philip II himself on her side, in the second case France.

By this policy she found the means of securing herself at home, from the Spanish attacks. It was more than ever necessary for Philip to concentrate on the war in the Netherlands all the forces of which he could dispose. The Queen did not yet take direct part in it, and Philip had to avoid everything that could induce her to do so. It was not her object to bring about the independence of the Provinces: but she insisted on the departure of the Spanish troops, the observance of the provincial constitutions, and above all

assured liberty for the Protestant faith. In 1575 she offered the King her mediation, not however without including one special English matter, namely the mitigation of the severe religious laws in reference to English merchants in the Spanish countries: the King took the opinion of the Grand Inquisitor on it. As if he could ever have been in its favour himself! The Pacification of Ghent in 1576 was quite in accordance with the Queen's views, since it established the supremacy of the Estates, and freedom of religion for the chief Northern provinces. To maintain this, she had no hesitation in concluding an alliance with the States, and in consequence despatching a body of English troops to the Netherlands. She informed the King himself of this, and requested him to recall the Stadtholder Don John, his half-brother (who was trying to break the peace), and to receive the Estates into his favour: she did not by this think to come to a breach with him.

The idea of entrusting Don John of Austria, the victor of Lepanto, with the restoration of Catholicism in West Europe had been at that time adopted in Rome. His was a fiery nature pervaded by Catholic principles, and seized with the most vivid ambition to be something in the world and to effect something. The Irish wished him to be their king; he was to free Mary Stuart from prison, vindicate her rights alike in Scotland and in England, and at her side ascend the throne of the British kingdoms now united in Catholicism. Mary gladly acceded to this, as she had already long wished for a marriage with the Spanish house. It was probably to give this combination a firmer basis that she proposed, in case her son did not prove to be a Catholic, to transfer her claims on the throne of England to the King of Spain, or to any of his relatives whom he should name in conjunction with the Pope.^[241] But whom could she mean by these last words but Don John himself, who then stood in close connexion with the Guises, whom she also recommended most pressingly to the King. But she had at the same time directed her aim towards Scotland. There her enemies Murray and Lennox had perished by assassination; under the following regents, Mar and Morton, Mary had still nevertheless so many partisans, that they never could have ventured, as they were requested to do from England, to allow Mary to come to Scotland and be put on her trial: their own power would have been endangered by it. Mary too believed herself to have prepared everything there so well for an enterprise by Don John that, as she says, an

overthrow of the Scotch government would infallibly have ensued if Philip II had only put his hand to the work. And how closely were his interests bound up with it! Without a conquest of the island-kingdom, as his brother represented to him, the Netherlands could never be subdued. But even now he shunned an open rupture. Besides this his brother's restlessness and thirst for action, and his political intrigues which were already reacting on Spain, were disagreeable to him; he could not make up his mind to take a decisive step.

He had again and again been vainly entreated to interest himself in the population of Ireland, in which national and religious antagonism contended against the supremacy of England. One of the confidential agents secretly sent thither assured him that he was implored by nine-tenths of the inhabitants to take them under his protection and save their souls, that is restore them the mass, which they could no longer celebrate publicly: they appealed to their primeval relationship with the Iberian people, to ancient prophecies which looked forward to this, and to the great political interests at stake. Philip was not disinclined to attempt the enterprise; but he required the co-operation of France, without doubt to break the opposition of this power in the affairs of the Netherlands; a condition which could not be made acceptable to the French by any interposition of Rome.

And so, if Pope Gregory XIII wished to undertake anything against Ireland, he had to do it himself. Men witnessed the singular spectacle of an expedition against Ireland being fitted out on the coasts of the States of the Church. A papal general from Bologna came to the assistance of the powerful Irish chief, Fitzmaurice. They commanded the Irish districts far and wide, and made inroads into the English: for a long time they were very troublesome, although not really dangerous.

King Philip was then busied in an undertaking which interested him still more closely than even that of the Netherlands: he made good his hereditary claim to Portugal, without being obstructed in it either by the opposition of a native claimant or by the counter-working of the European powers.

In the face of this success, by which the Spanish monarchy became master of the whole Pyrenean peninsula and its many colonies in East and West, it was all the more necessary for the other two powers to hold together. Many

causes of quarrel indeed arose between them. How could the shocking event of the night of St. Bartholomew fail to awaken all the antipathies of the English, and indeed of Protestantism in general! Elizabeth did not let herself be prevented by her treaty from supporting the French Protestants in the manner she liked, that is without its being possible to prove it against her. Under Charles IX she contributed to prevent them from succumbing, under Henry III she helped them in recovering a certain political position: for this very object the Palsgrave Casimir led into France German troops paid with English money. Catharine Medici often reproached her with observing a policy like that of Louis XI. But the common interest of the two kingdoms was always more powerful than these differences; frequent and long negotiations were carried on for even a closer union. The marriage of Queen Elizabeth with Catharine's youngest son was once held to be as good as certain: he actually appeared personally in England. We refrain from following the course of these negotiations. The interest they awaken constantly ends in disappointment, for they are always moving towards their object without attaining it. But perhaps it will repay our trouble to consider the reasons which came into consideration for and against the proposed connexion.

The main reason for it was that England must hinder an alliance between Spain and France, especially one in favour of the Queen of Scots. And certainly nothing had stood the English policy in Scotland in such stead as the good understanding with France. But much more seemed attainable if France and England were united for ever. They would then be able to compel the King of Spain to conclude a peace with the Netherlands which would secure them their liberties; and, if he did not observe it, they would have grounds for a common occupation of a part of the Provinces. If there should be any issue of the marriage, this would put an end to all attacks on Elizabeth's life, and greatly strengthen the attachment of her subjects.

But against it was the fact that this marriage would bring the Queen into disagreeable personal relations; and the country would be as unwilling to see a French king as it had once a Spanish one. And how would it be, if a son sprung from the marriage, to inherit both the French and the English throne? was England to be ruled by a viceroy? What an opposition the world would raise to the union of these mighty kingdoms, into what

complications might it not lead! Scotland would again attach itself to the French: the Netherlands and the German princes would be alienated.

The members of the Privy Council, after they had weighed all these considerations, at last pronounced themselves on the whole against it. They recommended the continuance of the present system,—the support of the Protestants, especially in France, a good understanding with the King of Scotland, and the maintenance of religion and justice in England: thus they would be a match for every threat of the King of Spain.^[242]

But that sovereign had one ally against whom these precautions could not suffice, the Order of Jesuits and the seminaries of English priests under its guidance.

Young exiles from England, who were studying in the Universities of the Netherlands, to prevent the Catholic priesthood from perishing among the English at home, had been already in Alva's time brought together in a college at Douay, which was then removed to Rheims as the revolt spread in the Netherlands. Pope Gregory XIII was not content with supporting this institution by a monthly subsidy; he was ambitious of imitating Gregory the Great and exercising a direct influence on England: he founded in Rome itself a seminary for the reconversion of that country. He made over for this purpose the old English hospital which was also connected with the memory of Thomas Becket. The first students however fell out with each other, and there was seen in Rome the old antagonism of the 'Welsh' and the 'Saxons'; in the end the latter gained the upper hand, it was mainly their doing that the institution was given over to the Jesuits. Not long after its activity began. Each student on his reception was bound to devote his powers to spreading the Catholic doctrines in England; by April 1580 a company of thirteen priests was ready, after receiving the Pope's blessing, to set out with this object. The chief among them were Robert Parsons, who passed into England disguised as a soldier, and Edmund Campion as a merchant. The first went to Gloucester and Hereford, the other to Oxford and Northampton: they and the friends who followed them found everywhere a rich harvest.^[243] It was arranged so that they arrived in the evening at the appointed houses of their friends: there they heard confessions and gave advice to the faithful. Early in the morning they

preached, and then broke up again; it was customary to provide them an armed escort to guard them from any mischance.

Withal the forms of the church-service in England had been so arranged that it might remain practicable for the Catholics also to take part in it. How many had done so hitherto, perhaps with a rosary or a Catholic book of prayers in their hands! The chief effort of the seminarist priests, on their return to the country, was to put an end to this: they dissuaded intercourse with the Protestants even on indifferent matters. The Queen's statesmen were astonished to find how much the number of recusants increased all at once; from secret presses proceeded writings of an aggressive, and exceedingly malignant, character; in many places Elizabeth was again designated as illegitimate, a usurper, no longer as Queen. On this the repressive system, which had been already set in motion in consequence of Pope Pius V's bull, was made more stringent; this is what has brought on the Queen's government the charge of cruelty. The Catholics too began to compose their martyrologies. One of the first priests whose execution they describe, Cuthbert Mayne, was condemned by the jury for bringing the Bull with him into other people's houses together with some *Agnus Dei*.^[244] Young people were condemned for trying to make their way to the foreign seminaries. On the wish of the missionaries Pope Gregory XIII explained the bull so far, that the excommunication pronounced in it against all who should obey the Queen's commands was meant to be in suspense till it was possible to execute it against the Queen herself on whom it continued to weigh^[245]. This limitation however rather increased the danger. The Catholics could remain quiet till rebellion was possible, then it became a duty. The law-courts now sought above all to make the accused priests declare themselves as to the validity of the bull and its obligation. Men held themselves justified in extreme severity against those who 'slip into the country at the instigation of the great enemy, the Pope, and poison the hearts of the subjects with pernicious doctrines.'^[246] On this ground Campion met his death; Parsons escaped. Assuredly there were not so many executed as the Catholic world wished to reckon, but yet probably more than the statesmen of England admitted. They persisted that it was not a persecution for religion: and in fact the controverted questions lay mainly in the region of the conflict between Papacy and Monarchy: those executed were not so much martyrs of Catholicism as of the idea of the Papal

supremacy over monarchs. But how closely connected are these ideas with each other! The priests for their part believed that they were dying for God and the Church. But the effect which the English government had in view was, with all its severity, not produced. We are assured on Catholic authority that in 1585 there were yet several hundred priests actively engaged. From their reports it is clear that they were still always counting on a complete victory. They vigorously pressed for the attempt at an invasion, which they represented as almost sure of success; 'for two-thirds of the English are still Catholic; the Queen has neither strong places nor disciplined troops: with 16,000 men she might be overthrown.' This time also the house of the Spanish ambassador, Bernardino Mendoza, formed the meeting-point for these tendencies; he kept up a constant communication with the emigrants who had been declared rebels, and with the discontented at home, with Mary Stuart and her friends in Scotland, with the zealous Catholics throughout the world, especially with the Guises, with whom Philip II himself now had an understanding. The increasing power of his sovereign gained him also an ever-increasing consideration.

It was in these days that the Western and Southern Netherlands were again subdued by King Philip. After the death of his brother, his nephew Alexander Farnese of Parma had formed an army of unmixed Catholic composition, which had naturally from its inner unity gained the upper hand over the government of the States, which had called now a German and now a French prince to its head, and was composed of different religions and nationalities. First the seaports, then the towns of Flanders, and at last the wealthy Antwerp also, which by its mental activity and commercial resources had materially nourished the revolt, fell into the hands of the Spaniards. The Prince of Orange was assassinated by a fanatic. Alexander of Parma, who ascribed his victories to the Virgin Mary, pushed on his conquests gradually till they reached the Northern and Eastern Provinces.

The reaction of these events, even while they were still in progress, was first felt in Scotland. There the young King James VI after many vicissitudes had, while still under age, taken the reins of government into his own hands: and a son of his great uncle, Esmé Stuart (who exchanged the title Aubigny which he brought from France for the more famous name of Lennox, and was a great friend of the Guises and the Jesuits) obtained the chief credit with him. Lennox promoted Catholicism, which was not so

difficult, as part of the nobility still adhered to it, at least in secret; he too lived and moved in comprehensive plans for the re-establishment of the Church. Through the Guises he hoped to be placed in a position to invade England with a Catholic army of 15,000 men; if the English Catholics then did their duty, everything they wanted could be attained: for himself he was resolved to liberate Mary or die in the attempt. Mary was also to reascend the Scotch throne: her son was to be co-regent with her, provided that he himself returned to the bosom of the Catholic Church. Mary Stuart with her indestructible energy was involved in these designs also. She commended them warmly to the Pope and the King of Spain: for it was precisely in Scotland that the universal re-establishment could best be begun.^[247] She wished only to know on what resources in men and money her friends there might reckon. We must remember the situation and the peril of these schemes and preparations, if we would understand to some degree the violent measures on which the Protestant lords in Scotland resolved. As in a similar case of an earlier time in Germany, they closed the castle, in which King James was received, against his attendants: Lennox had to leave Scotland. But the young King was shrewd enough, and sufficiently well advised, to rid himself of the lords almost in the same way that they had taken him. He succeeded, chiefly through the help of the French ambassador, a friend of the Guises. Hereupon too he seemed much inclined to favour the undertaking with which Henry Guise occupied himself in 1583, a scheme for a revolution in the affairs of both countries. Guise hoped, with the support of the King of Spain, the Pope, and the Duke of Bavaria, to be able to effect something decisive. James VI let his uncle know his full agreement with the proposed schemes. But, in fact, it did not seem to matter much whether he agreed or not. It was reported to Queen Mary, that the Catholic party in Scotland reckoned on having the most powerful king of Christendom on their side, with or against James' will; that Philip II was building so many vessels that in a short time he would become completely master of the Western ocean, and be able to invade whatever countries he pleased.

It is evident how dangerous for England these Scotch movements were in themselves: Queen Elizabeth thought herself most vulnerable on the side of Scotland: moreover she already saw herself directly threatened. A plan fell into her hands, in which the number of ships and men necessary for an

invasion of England, the harbours where they were to land, the places they were to seize, even the men on whose help they could reckon, were enumerated.^[248] She convinced herself that the plan came from Mendoza, who held out the prospect of his King's assistance for the purpose, as the attack was to be made simultaneously from the Netherlands and from Spain. This time too Elizabeth dismissed the hostile ambassador; but how could she flatter herself with having thus exorcised the threatening elements? Now that the foe, with whom she had been for fifteen years at war—though not an open war yet one of which both sides were conscious—had become very much stronger, she was forced to take up a decisive position against him, to save herself from being overpowered.

In 1584 her chief minister, William Cecil, now Lord Burleigh, High Treasurer of the kingdom, drew her attention to this necessity. He represented to her that she had nothing to fear from any one in the world except from Spain—but from Spain everything. King Philip had gained more victories from his cabinet, than his father in all his campaigns: he ruled a nation which was thoroughly of one mind in religion, ambitious, brave, and resolute; he had a most devoted party among the discontented in England. The question for the Queen was, whether she hoped to tame the lion or whether she wished to bind him. She could not build on treaties, for the enemy would not keep them. And, if he was allowed to subdue the Netherlands completely, no one in the world could avoid seeing to what object his power would be directed. He advises the Queen not to let things go so far—for those countries were the counterscarp of England's fortress—but to proceed to open war, to withstand the Spaniards in the Netherlands and attack them in the Indies. 'Better now,' he exclaims, 'while the enemy has only one hand free, than later when he can strike with both.'^[249]

In August 1585 Antwerp fell into the hands of the Spaniards; in the capitulation the case is already taken into consideration, that Holland and Zealand also might submit. The Northern Netherlands were threatened from yet another side, as Zutphen and Nimuegen had just been taken by the Spaniards. In this extreme distress of her natural ally she delayed no longer. The sovereignty they offered her she refused anew, but she engaged to give considerable assistance, in return for which, as a security for her advances, the fortresses Vliessingen and Briel were given up into her possession. To prove how much she was in earnest in this, she entrusted the conduct of the

war in the Netherlands to Dudley, Earl of Leicester, who was still accounted her favourite and was one of the chief confidants of her policy. In December 1585 Leicester reached Vliessingen; on the 1st of January 1586, Francis Drake appeared before St. Domingo and occupied it. The war had broken out by land and by sea.

NOTES:

[232] Randolph states that the promise was given before Darnley's death. Strype, *Annals* iii. i. 234.

[233] That this was thought of from the first is not to be supposed; the Queen had once previously declared herself against it. 'We fynde her removing either into this our realm or into France not without great discommodities to us.' Letter to Throckmorton, in Wright i. 253.

[234] Gonzalez, *Apuntamientos* 338. From the 'short memoryall' of 1569 in Hayne's *State Papers* 585 (though much in it is incorrect), we see that men believed in the union of both crowns against England, with 'the earnest desyre to have the Quene of Scotts possess this crown of England.'

[235] 'Sentenza declaratoria contra Elizabetta, che si pretende reina d'Inghilterra.' In Catena, *Vita di Pio V*, 309. The agreement of the bull (e.g. as to the 'huomini heretici et ignobili,' who had penetrated into the royal privy council) with the manifesto of the last rebellion, is worth observing.

[236] The instructions which Mary and Norfolk gave their Italian agent for the Roman See are preserved in the Vatican archives and printed in Labanoff iii. 221. From Leslie's expression (*Negotiations*, in Anderson iii. 152) that the duke negotiated with Ridolfi through a Mr. Backer, 'because he had the Italian tongue,' and that then all the plans were communicated to *him* ('the whole devises'), we might conclude that Norfolk was in general very much in foreign hands.

[237] Lo que se platico en consejo 7 Julio 1571. Some other weighty documents are in Appendix V to Mignet's *Histoire de Marie Stuart*, vol. ii.

[238] Already on the 16th April the French ambassador, while speaking with Elizabeth on the conclusion of the treaty agreed on, remarks, 'qu'elle a quelque nouvelle offence contre la dite reyne d'Ecosse,' which could have been nothing else but the first news of the seizure of one of Ridolfi's servants at Dover on the 10th April, who then under torture had confessed all.

[239] 'Vendran otras ocasiones en tiempo di V. M. per pagarle dios el celo, con que tam caldamente abraza este su negocio.' *Contestation del duque di Alba*, in Gonzalez 450.

[240] De la Mothe Fénélon au roi de France 22 Dec. 1571. Correspondence diplomatique de Bertrand de Salignac de la Mothe Fénélon iv. 317.

[241] Sketch of a will, in Labanoff iv. 354. 'Je cedde mes droits, que je pretends et puis pretendre à la couronne d'Angleterre et autres seignuries et royaumes en dependant au roy catholique ou autres des siens qu'il lui plaira, avesque l'advis et consentement de S. S.'

[242] Conference at Westminster touching the Queen's marriage with the Duke of Anjou 1579. Egerton Papers 78. Sussex, who had previously given a somewhat different opinion, was one of those who signed.

[243] Sacchinus, *Historia societatis Jesu* iii. 1; vii. 1; viii. 96.

[244] 'Perche contro alle leggi d'Inghilterra egli havesse portato seco una bollo papale, alcuni grani benedetti et agnus dei.' Martyrio di Cutberto Maino, in Pollini, *Istoria eccl. delle rivoluzioni d'Inghilterra* p. 499. It is a pity that the eminent Hallam had not the first reports at hand.

[245] *Facultates concessae Rob. Personio et Edm. Campiano* 14 April 1580. 'Catholicos tum demum obliget, quando publica ejusdem bullae executio fieri poterit.'

[246] *Execution of Justice in England*. Somers Tracts i.

[247] Lettre a Don Bernardino de Mendoza 6-8 April 1582. 'La grande aparence, qu'il ha de pourvenir (parvenir) maintenant au dict restablissement de la religion en ceste isle, començant pour la Scotia (par l'Ecosse).' In Mignet App. 522.

[248] According to the Venetian accounts (*Dispaccio di Spagna*, Marzo 1584) the King had sent an experienced soldier as a spy to England to investigate the possibility of a landing, 'havendo pensato di concertarsi bene con il re di Scotia, perche ancora egli a un tempo medesimo si movesse da quella parte.'

[249] The Lord Treasurers advise in matters of Religion and State. Somers Tracts i. 164.

CHAPTER V.

THE FATE OF MARY STUART.

How completely the circumstances of these times are misunderstood, when they are measured by the rules of an age of peace! Rather they were filled with hostilities in which politics and religion were mingled; foreign war was at the same time a domestic one. The religious confessions were at the same time political programmes.

The Queen took up arms not to make conquests, but to secure her very existence against a daily growing power that openly threatened her, before it had become completely an overmatch for her: she provoked an open war: but she had not done enough when she now, as is necessary in such cases, took into consideration the training of soldiers, securing the harbours, fortifying strong places, improving the navy: the most pressing anxiety arose from the general Catholic agitation in the country.

Elizabeth's statesmen were well aware that the sharp prosecution of the seminarist priests was not enough to put an end to it. With reference to the laity, the Lord Treasurer, however strict in other respects, recommends to his sovereign quite a different mode of proceeding. We should never proceed to capital punishment of such men: we should rather mitigate the oath imposed on them: in particular we should never force the nobles to a final decision between their religious inclinations and their political duties, never drive them to despair. But at the same time he gives a warning against awakening any hope in them that their demands could ever be satisfied, for this would only make them more obstinate. And on no consideration should arms be put into their hands. 'We do not wish to kill them, we cannot coerce them, but we dare not trust them.' Nothing would be more dangerous than to assume a confidence which was not really felt.

Even before this the Privy Council had recommended the Queen to employ Protestants only in the government of her State, and to exclude all Catholics from a share in it.^[250] The before-mentioned 'Advice' of Lord Burleigh is

remarkable for extending the Protestant interest and adding a popular one to it. He thinks it intolerable that the copyholders and tenants of the Catholic lords, even when they fulfil their obligations in all other respects, experience bad treatment from them on account of religion: it is impossible to let many thousand true subjects be dependent on such as have hostile intentions. The plan Henry VIII had once entertained, of diminishing the authority of the Lords, is now brought by the High Treasurer at this crisis once more into vivid recollection. The Queen is to bind the Commons to herself, to win over their hearts. And Burleigh advises allowing the followers of dissenting Protestant Churches, especially the Puritans, to worship as they please: in preaching and catechising they are more zealous than the Episcopalians, very far more successful in converting the people, and indispensable for weakening the popish party. We see how the necessity of the war acts on home affairs. The chief minister favoured the elements which were forcing their way out through the existing forms of the state.

In this general strain on men's minds their eyes once more turned to the Queen of Scots in her captivity. What would there have been at all to fear at other times from a princess under strong custody and cut off from all the world? But in the excitement of that age she could even so be still an object of apprehension. Her personal friends had from the first not seen a great mischance in her enforced residence in England. For by blameless conduct she refuted the evil report which had followed her thither from Scotland; and her right as heiress of the crown came to the knowledge of the whole nation.^[251] In the days at which we have arrived we know with certainty that her presence in the country formed a great lever for Catholic agitation. A report found in the papal archives has been published, by which it is clear how much support men promised themselves from her for every resolute undertaking.^[252] This document says that since she has numberless partisans, and although in prison has uninterrupted communication with them, she will always find means, when the time comes, of giving them notice of the approaching opportunity: she is resolved to encounter every hardship, nay even death itself, for the great cause.^[253]

Occupied with measures of defence on all sides, the English government had already long been considering how to meet this danger. This was the very reason why Elizabeth's marriage was so often spoken of with popular approbation: if she had children, Mary's claims would lose their importance.

Gradually however every man had to confess to himself that this was not to be expected, and on other grounds hardly to be wished. Then men thought how to solve the difficulty in another way.

The chief danger was this: if an attempt on Elizabeth's life succeeded, the supreme authority would devolve on Mary, who was on the spot, who cherished entirely opposite views, and would have at once realised them:—the thought occurred as early as 1579 of declaring by formal act of parliament that all persons by whom the reigning Queen should be in any way endangered or injured should forfeit any claim they might have to the crown;^[254] terms which though general were in reality directed only against the Queen of Scots; at that time the proposal was not carried into effect.

The negotiations are not yet completely cleared up which were carried on with Mary in 1582-3 for her restoration in Scotland. The English once more repeated their old demand, that Mary should even now ratify the treaty of Edinburgh, and annul all that had been done in violation of it by her first husband or by herself. She was further not merely to renounce every design against the security and peace of England, but to pledge herself to oppose it: and in general, as long as Elizabeth was alive, to put forward no claim to the English throne: whether she had such a right after Elizabeth's death the parliament of England was to decide.^[255] Here too the old view came into the foreground: Parliament was to be made the judge of hereditary right. The negotiation failed owing to the Scotch intrigues of these years, in which the intention rather was to assert the claim of inheritance with the strong hand.

And from day to day new attempts on Elizabeth's life came to light. In 1584 Francis Throckmorton, who took part in these very schemes, was executed: in 1585 Parry also, who confessed having been in connexion with Mary's plenipotentiary in France, and who had come over to assassinate Queen Elizabeth. Writings were spread abroad in which those about her were called on to imitate, against this female Holofernes, the example set in the book of Judith.

Protestant England in the danger of its sovereign saw its own. In all churches prayers were offered for her safety. The most remarkable proof of this temper is contained in an association of individuals for defending the

Queen, which was at that time subscribed to far and wide through the country. It begins with a statement that, to promote certain claims on the crown, the Queen's life was threatened in a highly treasonable manner, and enters into a union in God's name, in which each man pledges himself to the others, to combat with word and deed, and even to pursue with arms, all who should make any attempt on the Queen's person; and not to rest till these wretches were completely destroyed. If the attempt was so far successful as to raise a claim to the crown, they pledged themselves never to recognise such a claim: whoever broke this oath and separated himself from the association should be treated by the other members as a perjurer.

[256]

The main object of this association was to cut off all prospect of the succession from any attempt in favour of the Queen of Scots: a great part of the nation pledged itself to reject a claim made good in this manner as exceptionable in every respect. The Parliament of 1585, many of whose members belonged to the association, not merely confirmed it formally: it now also expressly enacted, that persons in whose favour a rebellion should be attempted, and an attack on the Queen undertaken, should lose their right to the crown: if they themselves took part in any such plots, they were to forfeit their life. The Queen was empowered to appoint a commission of at least twenty-four members to judge of this offence.

These resolutions and unions were of a compass extending far beyond the present occasion, however weighty. How important the ecclesiastical contest had become in all questions concerning the supreme temporal power! That the deposition of Queen Elizabeth, pronounced by the Pope, had no effect was due to the Protestant tendencies of the country, and to the fact that her hereditary claim had been hitherto unassailed. But now it was a similar hereditary claim, made by Queen Mary, not, it is true, formally recognised, but also not rejected, on which the partisans of this princess based their chief hope. Mary herself, who always combined the most vivid dynastic feelings with her religious inclinations, in her letters and statements does not lay such stress on anything as on the unconditional validity of her claim to inherit the throne. When for instance her son rejected the joint government which she proposed to him, she remarked with striking acuteness that this involved an infringement of the maxims of hereditary right; since he rejected her authorisation to share in the

government, and recognised as legitimate the refusal of obedience she had experienced from her rebellious subjects. Once she read in a pamphlet that people denied Queen Elizabeth the power to name a successor who was not of the Protestant faith: she wrote to her that the supreme power was of divine right, and raised high above all these considerations, and warned her against opinions of that kind which were avowed by some near her, and which might lead to the elective principle and become dangerous to herself. This could not fail to have an exactly opposite effect on Elizabeth. She was again threatened through the strict dynastic right that she also enjoyed: she needed some other additional support. Despite all inclination to the contrary, she decided to look for it in the Parliament. She likewise aimed at making Mary submit the validity of her claim to its previous decision. She could not but be thankful that her subjects pledged themselves not to recognise any right to the succession which was to be asserted by an attack on her life; she ratified the act by which Parliament gave these feelings a legal form. It is obvious how powerfully the rights of Parliament were thus advanced as against the absolute claim of the hereditary monarchy. In the course of the development of events this was to be the case in a still higher degree.

Mary rejected with horror the suspicion that she could take part in an attempt on Elizabeth's life: she wished to enrol herself in the Association for her security.^[257] And who could have failed to believe at least that the threats against her own right and life, in case of a second attempt at assassination, would deter her partisans as well as herself from any thought of it! For they well understood the energy with which the Parliament knew how to vindicate its laws.

But it is vain to try to bridle men's passions by showing them their results. If the attempt on the Queen's life succeeded, succeeded this Parliament of course would be annihilated as well as the Queen herself, and another order of things begin.

In the seminary at Rheims the priests persuaded an English emigrant, called Savage, who had served in the army of the Prince of Parma, that he could not better secure himself eternal happiness than by ridding the world of the enemy of religion who was excommunicated by the holy father. Another English emigrant, Thomas Babington, a young man of education and

ambition, in whom throbbed the pulse of chivalrous devotion to Mary, was informed of this design by a priest of the seminary, and was fired with a kind of emulation which has something highly fantastic about it. Thinking that so great an enterprise ought not to be confided to one man, he sought and found new confederates for it; when the murder was effected, and the Spanish troops landed, he was to be the man who with a hundred sturdy comrades would free his Catholic Queen from prison and lead her to her throne. Mendoza at that time (and indeed by Mary's recommendation, as she tells us) was Spanish ambassador in France: he was in communication with Babington and strengthened him in his purpose. Of all the distinguished men of the age Mendoza is perhaps the one who took up most heartily the idea of uniting the French and Spanish interests, and advocated it most fervently. King Philip II was also informed of the design. He now, as he had done fifteen years before, declared his intention, if it succeeded, of making the invasion simultaneously from Spain and Flanders. The Queen's murder, the rising of the Catholics, and at the same moment a twofold invasion with trained troops would have certainly been enough to produce a complete revolution. The League was still victorious in France: Henry III would have been forced to join it: the tendencies of the strictest Catholicism would have gained a complete triumph.

If we enquire whether Mary Stuart knew of these schemes, and had a full understanding with the conspirators, there can be no doubt at all of it. She was in correspondence with Babington, whom she designates as her greatest friend. The letter is still extant in which she strengthens him in his purpose of calling forth a rising of the Catholics in the different counties, and that an armed one, with reasons for it true and false, and tells him how he may liberate herself. She reckons on a fine army of horse and foot being able to assemble, and making itself master of some harbours in which to receive the help expected not merely from Flanders and Spain, but also from France. In the letter we even come upon one passage which betrays a knowledge of the plot against Elizabeth's life; there is not a word against it, rather an approbation of it, though an indirect one.^[258]

And we have yet another proof of her temper and views at this time lying before us. As the zeal of the Catholics for her claim to the succession might be weakened by the fact that her son in Scotland, on whom it naturally devolved, after all the hopes cherished on his behalf, still remained

Protestant, she reverted to an idea that had once before passed through her mind: she pledged herself to bring matters in Scotland to such a point that her son should be seized and delivered into the hands of the King of Spain: he was then to be instructed in the Catholic faith and embrace it; if James had not done so at the time of her death, her claim on England was to pass to Philip II. Day and night, so she said, she bewailed her son's being so stiffnecked in his false faith: she saw that his succession in England would be the ruin of the country.

So it stands written in her letters: it is undeniable: but was that really her last and well-considered word? Was it her real wish that Elizabeth should be killed, her son disinherited notwithstanding her dynastic feelings, and that Philip II should become King of England? Were the Catholic-Spanish tendencies of Elizabeth's predecessor, Queen Mary Tudor, so completely reproduced in her?

I think we can hardly maintain this with full historic certainty. Mary Stuart was not altogether animated by hot religious zeal: if she had been, how could she formerly have left the Protestant lords in possession of power so long as she did, and even have once thought of marrying Leicester with his Protestant views? Her son affirmed that he possessed letters from her, in which she approved of his religious views and confirmed him in them. It was not religious conviction and the abhorrence of any other faith, as in Mary Tudor, but her dynastic right and her self-confidence as sovereign that were the active and predominant motives in all the actions of Mary Stuart. And if there are contradictions in her utterances, we cannot hold her capable, like Catharine Medici, of taking up and secretly furthering two opposite plans at the same time; her different tendencies appear consecutively, not simultaneously, in exact accordance with her impulses. For Mary Stuart was never quiet an instant: even in her prison she shared in the movement of the world; her brain never ceased working; she was brooding over her circumstances, her distress and her hope, how to escape the one and realise the other: sometimes indeed there came a moment of resignation, but only soon to pass away again. She throws all her thoughts into her letters which, even if they are aiming at some object close at hand, are at the same time ebullitions of the moment, passionate effusions, productions of the imagination rather than of the understanding. Who could think such a letter possible as that in which she once sought to inform

Elizabeth of the evil reports about her which the Countess of Shrewsbury made, and recounted a mass of scandalous anecdotes she had heard from her. The communication was meant to ruin the countess: Mary did not remark that it must also draw down the Queen's hatred on herself. No one would have dared even to lay the letter before the Queen. Mary's was a passionate nature, endowed with literary gifts: she let her pen run on without saying anything she did not really think at the instant, but without remembering in the least what lay beyond her momentary mood. Who will hold women of this character strictly to what stands in their letters? These are often as inconsiderate and contradictory as their words.

While Mary was writing the above-mentioned letters, she was completely taken up with the proposals made to her. She guarded herself from inserting anything that could hinder their being carried into effect: by the eventual transfer of her son's claims to the foreign King, all opposition on the part of zealous Catholics would be done away. Her hopes and wishes hurried her away with them, so that she lost sight of the danger in which she thus placed herself. And was she not a Queen, raised above the law? Who would take it on himself to attack her?

Mary Stuart was then under the charge of a strict Puritan, Sir Amyas Paulet, of whom she complained that he treated her as a criminal prisoner and not as a queen. The government now allowed a certain relaxation in the external circumstances of her custody, but not in the strictness of the superintendence. There hardly exists another instance of such a striking contrast between projects and facts. Mary composes these letters full of far-ranging and dangerous schemes in the deepest secrecy, as she thinks, and has them carefully re-written in cipher: she has no doubt that they reach her friends safely by a secret way: but arrangements are made so that every word she writes is laid before the man whose business it is to trace out conspiracies, Walsingham, the Secretary of State. He knows her ciphers, he even sees the letters that come for her before she does: while she reads them with haste and in hope of better fortune at hand, he is only waiting for her answer to use it against her as a decisive proof of her guilt.

Walsingham now found himself in possession of all the threads of the conspiracy; as soon as that letter to Babington was in his hands, he delayed no longer to arrest the guilty persons: they confessed, were condemned and

executed. By further odious means—the prisoner being removed from her apartments on some pretence and the rooms then searched—possession was obtained of other papers which witnessed against her. Then the question could be laid before the Privy Council whether she should now be brought to trial and sentenced in due form.

Who had given the English Parliament any right to make laws which should be binding on a foreign queen, and in virtue of which, if she transgressed them, she could be punished with death? In fact these doubts were raised at the time.^[259] Against them it was alleged that Mary, who had been forced to abdicate by her subjects and deprived of her dignity, could not be regarded any longer as a queen: while a deposed sovereign is bound by the laws of the land in which he resides. If she was still a queen, yet she was subject to the feudal supremacy of England, and because of her claim to its crown also subject to its sovereignty—two arguments that contradict each other, one of a feudal, the other of a popular character and closely connected with the idea of popular sovereignty. Whether the one or the other convinced any person, we do not hear; it was moreover not a matter for argument any longer.

For how could anything else be expected but that the judicial proceedings prepared several years before would now be put in force? A law had been passed calculated for this case, if it should occur. The case had occurred, and was proved by legal evidence. It was necessary for the satisfaction of the country and Parliament—and Walsingham laid particular stress on this—that the matter should be examined with full publicity.

The commission provided for in the Act of Parliament was named: it consisted of the chief statesmen and lawyers of the country. In Fotheringhay, whither the prisoner had now been brought, the splendid ancestral seat of the princes of the house of York, at which many of them were buried, they met together in the Hall on the 14th October. Mary let herself be induced to plead by the consideration that she would be held guilty, if she did not make any defence: it being understood that it was with the reserve that she did not by this give up any of the rights of a free sovereign. Most of the charges against her she gradually admitted to be true, but she denied having consented to a personal attempt on Elizabeth's life. The court decided that this made no essential difference. For the rebellion

which Mary confessed to having favoured could not be conceived of apart from danger to the Queen of England's life as well as her government.^[260] The court pronounced that Mary was guilty of the acts for which the punishment of death had been enacted in the Parliamentary statute.

We cannot regard this as a regular criminal procedure, for judicial forms were but little observed; it was the decision of a commission that the case had occurred in which the statute passed by Parliament found its application. Parliament itself, then just summoned, had the proceedings of the Commission laid before it and approved their sentence.

But this did not bring the affair to an end. Queen Elizabeth deferred the execution of the judgment. For in relation to such a matter she occupied quite a different position from that of Parliament.

From more than one quarter she was reminded that, by carrying out the sentence, she would violate the divine right of kings; since this implied that subjects could not judge, or lay their hands on, sovereigns. How unnatural if a queen like herself should set her hand to degrade the diadem.^[261]

In the Privy Council some were of opinion that, as Mary could not be regarded as the author of the last plot, but only as privy to it, closer imprisonment would be a sufficient punishment for her. Elizabeth caught at this idea. The Parliament, she thought, might now formally annul Mary's claim to the English throne, declare it to be high treason to maintain it any longer, and high treason also to attempt to liberate her from prison: this would deter her partisans from an attempt then become hopeless, and also satisfy foreign nations. But it was urged in reply, that now to repudiate Mary Stuart's claim for the first time would be equivalent to recognising its original validity; and an English law would make no impression either on Mary or on her partisans. The remembrance of what had happened in Scotland revived again; of Darnley's murder, which men imputed to her without hesitation: she was compared to Johanna I of Naples who had taken part in her husband's murder: it was said, Mary has doubled her old guilt by attempts against the sacred person of the Queen; after she had been forgiven, she has relapsed into the same crime, she deserves death on many grounds.^[262]

Spenser, in the great poem which has made him immortal, has depicted the conflict of accusations and excuses which this cause called forth. One of his allegorical figures, Zeal, accuses the fair and splendid lady, then on her trial, of the design of hurling the Queen from her throne, and of inciting noble knights to join in this purpose. The Kingdom's Care, Authority, Religion, Justice, take part with him. On the other side Pity, Regard for her high descent and her family, even *Grief* herself, raise their voices, and produce a contrary impression. But Zeal once more renews his accusation: he brings forward Adultery and Murder, Impiety and Sedition, against her. The Queen sitting upon the throne in judgment recognises the guilt of the accused, but shrinks from pronouncing the word: men see tears in her eyes; she covers her face with her purple robe.

Spenser appears here, as he usually does, an enthusiastic admirer of his Queen. But neither should we see hypocrisy in Elizabeth's scruples, which sprang much more from motives which touched her very nearly. She kept away from all company: she was heard to break her solitary meditation by uttering old proverbs that applied to the present case. More than once she spoke with the deputation of Parliament which pressed for a decision. What she mainly represented to them was, how hard it was for her, after she had pardoned so many rebellions, and passed over so much treason in silence, to let a princess be punished, who was her nearest blood-relation: men would accuse her, the Virgin Queen, of cruelty: she prayed them to supply her with another means, another expedient: nothing under the sun would be more welcome to her. The Parliament firmly insisted that there was no other expedient; it argued in detailed representations that the deliverance of the country depended on the execution of the sentence. The Queen's own security, the preservation of religion and of the state, made it absolutely necessary. Mary's life was the hope of all the discontented, whose plots were directed only to the object of enabling her to ascend the throne of England, to destroy the followers of the true religion, and expel the nobility of the land—that is the Protestant nobility. And must not satisfaction be given to the Association which was pledged to pursue a new attempt against the Queen's life even to death? 'Not to punish the enemy would be cruel to your faithful subjects: to spare her means ruin to us.'

Meanwhile they came upon the traces of a new attempt. In presence of the elder French ambassador, Aubespine, a partisan of the Guises, mention was

made of the necessity of killing Elizabeth in order to save Mary at the last moment. One of his officers spoke with a person who was known in the palace, and who undertook to pile up a mass of gunpowder under Elizabeth's chamber sufficient to blow it into the air; he was led to hope for rewards from Guise and his brother Mayenne, whose interests would have been greatly promoted by such a deed.^[263] But this time too Elizabeth was made acquainted with the design before it came to maturity. She ascribed her new danger to the silence, if not to the instigation, of the ambassador, the friend of the Guises: in its discovery she saw the hand of God. 'I nourish,' she exclaims, 'the viper that poisons me;—to save her they would have taken my life: am I to offer myself as a prey to every villain?'^[264] At a moment when she was especially struck with the danger which threatened her from the very existence of her rival, after a conversation with the Lord Admiral, she had the long-prepared order for the execution brought to her, and signed it with quick and resolute strokes of the pen.

The observation of Parliament, that her safety and the peace of the country required her enemy's death, at last gained the upper hand with her as well. But this did not imply that her conflicting feelings were completely silenced. She was haunted in her dreams by the idea of the execution. She had once more recourse to the thought that some serviceable hand might spare her the last authorisation, by secretly executing the sentence of the judges—an act which seemed to be justified even by the words of the Association; the demand was made in due form to the Keeper of the prisoner, Sir Amyas Paulet; he rejected it—and how could anything else have been expected from the conscientious Puritan—with an expression of his astonishment and indignation. Elizabeth had commissioned Secretary Davison, when she signed the order, to have it sealed with the Great Seal. Her idea seems to have been that, when all the forms had been duly complied with, she might the more easily get a secret execution, or that at some critical moment it might be at once performed; but she still meant to keep the matter in her own hand: for the custom was, before the last step, to once more ask her approval. But Davison, who marked her hesitation, did not think it advisable at this moment. Through Hatton he acquainted Lord Burleigh with the matter, and Burleigh put the question to the other members of the Privy Council: they took it on themselves to despatch the

order, signed and sealed as it now was, without further delay to Fotheringhay.^[265]

On the 8th of February 1587 it was executed on Mary in the very hall where the sittings of the court had been held. As compared with Elizabeth's painful disquiet, who shrank from doing what she held to be necessary, and when she at last did it wished it again undone and thought she could still recall it, the composure and quiet of soul, with which Mary submitted to the fate now finally decided, impresses us very deeply. The misfortune of her life was her claim to the English crown. This led her into a political labyrinth, and into those entanglements which were connected with her disastrous marriage, and then, through its combination with the religious idea, into all the guilt which is imputed to her more or less justly. It cost Mary her country and her life. Even on the scaffold she reminded men of her high rank which was not subject to the laws: she thought the sentence of heretics on her, a free queen, would be of service to the kingdom of God. She died in the royal and religious ideas in which she had lived.

It is undeniable that Elizabeth was taken by surprise at this news: she was heard sobbing as though a heavy misfortune had befallen herself. It may be that her grief was lightened by a secret satisfaction: who would absolutely deny it? But Davison had to atone for taking the power into his own hands by a long imprisonment: the indispensable Burleigh hardly obtained pardon. In the city on the other hand bells were rung and bonfires kindled. For the universal popular conviction agreed with the judgment of the court, that Mary had tried to deliver the kingdom into the hands of Spaniards.

NOTES:

[250] Consultation at Greenwich 1579, In Murdin 340. 'Pluck down presently the strengthe and government of all your papists and deliver all the strengthe and government of your realm into the hands of wise assured and trusty protestants.'

[251] Bishop Leslie's negotiations, in Anderson iii. 235.

[252] 'De praesenti rerum statu in Anglia brevis annotatio,' in Theiner, *Annales ecclesiastici* iii. 480 (at the year 1583). As mention is made in this writing of the restoration of order in the States of the Church, 'per felicissima novi pontificis auspicia,' we must certainly attribute it to the first years of Sixtus V.

[253] 'Tam ad hos (haereticos) quam ad catholicos omnes ad nostras partes trahendos supra modum valebit, licet in carcere, reginae Scotiae opera. Nam illa novit omnes secretos fautores suos et hactenus habuit viam praemonendi illos atque semper ut speramus habitura est, ut cum venerit tempus expeditionis, praesto sint. Sperat etiam—per amicos—et per corruptionem custodum personam suam ex custodia liberare.' In Theiner, *Annales ecclesiastici* iii. 482.

[254] The means to assure Her Majesty of peace. Egerton Papers 79.

[255] 'Jus successionis judicio ordinum Angliae subjecturam.' Camden, i. 360. Compare Strype, *Annals* iii. i. 131.

[256] Association for the assecuration of the Queen, subscribed by the members of Lincoln's Inn (Egerton Papers 208). We may assume that this was the general idea.

[257] In a pamphlet of the time it is stated that she had subscribed and sworn to the Association.

[258] Tytler (*History of Scotland* viii. App) maintains that the passage was inserted by Mary's enemies, and brings forward some reasons for this view which are worth considering. But Mignet (ii. 348) has already remarked how many other improbable suppositions this necessitates. And what would have been the use of it, as the letter even without this addition would have sufficed to condemn her.

[259] 'Objections against bringing Maria Queen of Scots to trial, with answers thereunto.' In Strype, *Annals* iii. 2. 397.

[260] Evidence against the Queen of Scots. Hardwicke Papers i. 245. 'Invasion and destruction of Her Majesty are so linked together, that they cannot be single. For if the invader should prevail, no doubt they would not suffer Her Majesty to continue neither government nor her life: and in case of rebellion the same reason holdeth.'

[261] The French ambassador began, according to Camden 480, with the maxim 'regum interesse ne princeps libera atque absoluta morte afficiatur.' What Camden quotes from a letter of James makes a certain impression; the words are still more characteristic in the original: 'quho beingh supreme et immediate

lieutenants of godd in heaven, cannot thairefoire be judget by thaire aequallis in earth, quat monstrous thing is it that souveraigne princes thaimselfis shoulde be the exemple giveris of thaire own sacred diademes prophaining.' 27 Jan. 1586-7. In Nicolas, Life of Davison 70.

[262] Reasons gathered by certain appointed in Parliament. In Strype iii. 1, 534.

[263] According to the protocol of an interview with the ambassador (in Murdin, 579) there can be no doubt of the reality of the plot. The ambassador does not deny that he had been spoken to about it, he only excuses himself for not having had the Queen informed of it, but asserts that he had rejected it with abhorrence.

[264] To James I, Letters of Elizabeth and James 42.

[265] Arraignment of Mr. Davison in the Star Chamber, State Trials 1230. In Nicolas, Life of William Davison, are printed the statements and memoranda of Davison as to his share in this matter. They are not without reserve; but, in what they contain, they bear the stamp of truth.

CHAPTER VI.

THE INVINCIBLE ARMADA.

At this moment the war with the Spaniards—the resistance which the English auxiliaries offered to them in the Netherlands, as well as the attack now being made on their coasts—occupied men's minds all the more, as the success of both the one and the other was very doubtful, and a most dangerous counter-stroke was to be expected. The lion they wished to bind had only become exasperated. The naval war in particular provoked the extreme of peril.

Hostilities had been going on a long while, arising at first from the privateering which filled the whole of the Western Ocean. The English traders held it to be their right to avenge every injustice done them on their neighbours' coasts—for man has, they said, a natural desire of procuring himself satisfaction—and so turned themselves into freebooters. Through the counter operations of the Spaniards this private naval war became more and more extensive, and then also gradually developed more glorious impulses, as we see in Francis Drake, who at first only took part in the mere privateering of injured traders, and afterwards rose to the idea of a maritime rivalry between the nations. It was an important moment in the history of the world when Drake on the isthmus of Panama first caught sight of the Pacific, and prayed God for His grace that he might sail over this sea some day in an English ship—a grace since granted not merely to himself but also in the richest measure to his nation. Many companies were formed to resume the voyages of discovery already once begun and then again discontinued. And as the Spaniards based their exclusive right to the possession of the other hemisphere on the Pope's decision, Protestant ideas, which mocked at this supremacy of the Romish See over the world, now contributed also to impel men to occupy lands in these regions. This was always effected in the main by voluntary efforts of wealthy mercantile houses, or enterprising members of the court and state, to whom the Queen gave patents of authorisation. In this way Walter Raleigh, in his political and

religious opposition to the Spaniards, founded an English colony on the transatlantic continent, in Wingandacoa: the Queen was so much pleased at it that she gave the district a name which was to preserve the remembrance of the quality she was perhaps proudest of: she called it Virginia.^[266]

But at last she formally undertook the naval war; it was at the same time a motive for the league with the Hollanders, who could do excellent service in it: by attacking the West Indies she hoped to destroy the basis of the Spanish greatness.

Francis Drake was commissioned to open the war. When, in October 1585, he reached the Islas de Bayona on the Gallician coast, he informed the governor, Don Pedro Bermudez, that he came in his Queen's name to put an end to the grievances which the English had had to suffer from the Spaniards. Don Pedro answered, he knew nothing of any such grievances: but, if Drake wished to begin war, he was ready to meet him.

Francis Drake then directed his course at once to the West Indies. He surprised St. Domingo and Carthagena, occupied both one and the other for a short time, and levied heavy contributions on them. Then he brought back to England the colonists from Virginia, who were not yet able to hold their own against the natives. The next year he inflicted still more damage on the Spaniards. He made his way into the harbour of Cadiz, which was full of vessels that had either come from both the Indies or were proceeding thither: he sank or burnt them all. His privateers covered the sea.

Often already had the Spaniards planned an invasion of England. The most pressing motive of all lay in these maritime enterprises. The Spaniards remarked that the stability and power of their monarchy did not rest so much on the strong places they possessed in all parts of the world as on the moveable instruments of dominion by which the connexion with them was kept up; the interruption of the communication, caused by Francis Drake and his privateers, between just the most important points on the Spanish and the Netherlandish coasts, seemed to them unendurable: they desired to rid themselves of it at any price. And to this was now added the general cry of vengeance for the execution of the Queen of Scots, which was heard from the pulpit in the presence of the King himself. But this was not the only result of that event. The life of Queen Mary and her claim to the

succession had always stood in the way of Spanish ambition: now Philip II could think of taking possession of the English throne himself. He concluded a treaty with Pope Sixtus V, under which he was to hold the crown of England as a fief of the Holy See, which would thus, and by the re-establishment of the Church's authority, have also attained to the revival of its old feudal supremacy over England.^[267]

Once more the Spanish monarchy and the Papacy were closely united in their spiritual and political claims. Sixtus V excommunicated the Queen afresh, declared her deposed, and not merely released her subjects from their oath of allegiance, but called on every man to aid the King of Spain and his general the Duke of Parma against her.

Negotiations for peace however were still being carried on in 1587 between Spanish and English plenipotentiaries. It was mainly the merchants of London and Antwerp that urged it; and as the Spaniards at that time had manifestly the best of the struggle, were masters of the lower Rhine and the Meuse, had invaded Friesland, had besieged and at last taken Sluys in despite of all resistance, we can understand how the English plenipotentiaries were moved to unexpected concessions. They would have consented to the restoration of the Spanish supremacy over the northern Netherlands, if Philip would have granted the inhabitants freedom of conscience. Alexander of Parma brought forward a proposal, to make, it is true, their return to Catholicism obligatory, but with the assurance that no Inquisition should be set over them, nor any one punished for his deviation from the faith. Even if the negotiation was not meant to be completely in earnest, it is worth remarking on what rock it was wrecked. Philip II would neither grant such an assurance, which in its essence involved freedom of conscience, nor grant this itself completely in a better form. His strength lay precisely in his maintaining the Catholic system with unrelenting energy: by this he secured the attachment of the priests and the zealous laity. And how could he, at a moment when he was so closely united with the Pope, and could reckon on the millions heaped up in the castle of St. Angelo for his enterprise, so completely deviate from the strictness of exclusive belief. He thought he was within his right when he refused any religious concession, seeing that every other sovereign issued laws prescribing the religion of his own territories.^[268]

If the war was to be continued, Alexander of Parma would have wished that all his efforts should be first directed against Vliessingen, where there was an English garrison; from the harbour there England itself could be attacked far more easily and safely. But it was replied in Spain that this enterprise was likewise very extensive and costly, while it would bring about no decisive result. And yet Alexander himself too held an invasion of England to be absolutely necessary; his reports largely contributed to strengthen the King in this idea; Philip decided to proceed without further delay to the enterprise that was needful at the moment and opened world-wide prospects for the future.

He took into consideration that the monarchy at this moment had nothing to fear from the Ottomans who were fully occupied with a Persian war, and above all that France was prevented from interfering by the civil strife that had broken out. This has been designated as the chief aim of Philip's alliance with the Guises, and it certainly may have formed one reason for it. Left alone, with only herself to rely on (so the Spaniards further judged), the Queen of England would no longer be an object of fear: she had no more than forty ships; once in an engagement off the Azores, in the Portuguese war, the English had been seen to give way for the first time: if it came to a sea-fight, the vastly superior Spanish Armada would without doubt prove victorious. But for a war on land also she was not prepared, she had no more than six thousand real soldiers in the country, with whom she could neither meet nor resist the veteran troops of Spain in the open field. They had only to march straight on London; seldom was a great city, which had remained long free from attack, able to hold out against a sudden assault: the Queen would either be forced to make a peace honourable to Spain, or would by a long resistance give the King an opportunity of forming out of the Spanish nobility, which would otherwise degenerate in indolence at home, a young troop of brave warriors. He would have the Catholics for him and with their help gain the upper hand, he would make himself master of the strong places, above all of the harbours; all the nations of the world could not take them from him again; he would become lord of the ocean, and thus lord and master of the continent. ^[269]

Philip II would have preferred to begin the work as early as the autumn of 1587. He hoped at that time that Scotland, where the Catholic lords and the people showed a lively sympathy with Queen Mary's fate, would be thrown

open to him by her son, who was supposed to wish to avenge her death. But to others this seemed not so certain; in especial the experienced Admiral Santa Cruz called the King's attention to the perils the fleet might incur in those seas: they would have to contend with contrary winds, and the disadvantage of short days and thick mists. Santa Cruz did not wish to endanger his fame, the only thing he had earned during a long life, by an ill-timed or very venturesome undertaking. He held an invasion of England to be more difficult than most other enterprises, and demanded such preparations as would make the victory certain. While they were being made he died, after having lost his sovereign's favour. His successor, the duke of Medina Sidonia, whom the King chose because he had distinguished himself at the last defence of Cadiz, did not make such very extensive demands; but the fleet, which was fitted out under him and by him, was nevertheless, though not in number of ships (about 130), yet in tonnage, size, and number of men on board (about 22,000) the most important that had ever been sent to sea by any European power. All the provinces of the Pyrenean peninsula had emulously contributed to it: the fleet was divided into a corresponding number of squadrons; the first was the Portuguese, then followed the squadrons of Castille, Andalusia, Biscay, Guipuzcoa, and then the Italian—for ships and men had come also in good number from Italy. The troops were divided like the squadrons; there was a 'Mass in time of war' for each province.

With not less zeal did men arm in the Netherlands; the drum beat everywhere in the Flemish and Walloon provinces, all roads were covered with military trains. In the Netherlands too there were a great number of Italians, Corsicans and inhabitants of the States of the Church and Neapolitans, in splendid accoutrements; there were the brothers of the grand duke of Tuscany and of the duke of Savoy: King Philip had even allowed the son of a Moorish prince to take part in the Catholic expedition. Infantry and cavalry also had come from Catholic Germany.

It was a joint enterprise of the Spanish monarchy and a great part of the Catholic world, headed by the Pope and the King, to overthrow the Queen who was regarded as the Head, and the State which was regarded as the main support, of Protestantism and the anti-Spanish policy.

We do not find any detailed and at the same time authentic information as to the plan of the invasion; a Spanish soldier and diplomatist however, much employed in the military and political affairs of the time, and favoured with the confidence of the highest persons, J. Baptista de Tassis, gives us an outline, which we may accept as quite trustworthy. We know that in Antwerp, Nieuport, and Dunkirk, with the advice of Hanseatic and Genoese master-builders, transports had been got ready for the whole force: from Nieuport (to which place also were brought the vessels built at Antwerp) 14,000 men were to be conveyed across to England, and from Dunkirk 12,000. But where were they to effect a junction with each other and with the Spaniards? Tassis assures us that they had selected for this purpose the roadstead of Margate on the coast of Kent, a safe and convenient harbour; ^[270] there immediately after the Spanish armada had arrived, or as nearly as possible at the same time with it, the fleet of transports from the Netherlands also was to make the shore, and Alexander of Parma was then to assume the command in chief of the whole force and march straight on London.

All that Philip II had ever thought or planned was thus concentrated as it were into one focus. The moment was come when he could subdue England, become master of the European world, and re-establish the Catholic faith in the form in which he professed it. When the fleet (on the 22nd July 1588) sailed out of Corunna, and the long-meditated, long-prepared, enterprise was now set in action, the King and the nation displayed deep religious emotion: in all the churches of the land prayers were offered up for forty days; in Madrid solemn processions were arranged to our Lady of Atocha, the patroness of Spain: Philip II spent two hours each day in prayer. He was in the state of silent excitement which an immense design and the expectation of a great turn in a man's fortune call forth. Scarcely any one dared to address a word to him.

It was in these very days that people in England first really became conscious of the danger that threatened them. A division of the fleet under Henry Seymour was watching, with Dutch assistance, the two harbours held by the prince of Parma: the other and larger division, just returned from Spain and on the point of being broken up, made ready at Plymouth, under the admiral, Howard of Effingham, to receive the enemy. Meanwhile the land forces assembled, on Leicester's advice, ^[271] in the neighbourhood of

London. The old feudal organisation of the national force was once more called into full activity to face this danger. Men saw the gentry take the field at the head of their tenants and copyholders, and rejoiced at their holding together so well. It was without doubt an advantage, that the threatened attack could no longer be connected with a right of succession recognised in the country; it appeared in its true character, as a great invasion by a foreign power for the subjugation of England. Even the Catholic lords came forward, among them Viscount Montague (who had once, alone in the Upper House, opposed the Supremacy, and had also since not reconciled himself to the religious position of the Queen), with his sons and grandsons, and even his heir-presumptive who, though still a child, bestrode a war-horse; Lord Montague said, he would defend his Queen with his life, whoever might attack her, king or pope. No doubt that these armings left much to be desired, but they were animated by national and religious enthusiasm. Some days later the Queen visited the camp at Tilbury: with slight escort she rode from battalion to battalion. A tyrant, she said, might be afraid of his subjects: she had always sought her chief strength in their good will: with them she would live and die. She was everywhere received with shouts of joy: psalms were sung, and prayers offered up in which the Queen joined.

For, whatever may be men's belief, in great wars and dangers they naturally turn their eyes to the Eternal Power which guides our destiny, and on which all equally feel themselves dependent. The two nations and their two chiefs alike called on God to decide in their religious and political conflict. The fortune of mankind hung in the balance.

On the 31st July, a Sunday, the Armada, covering a wide extent of sea, came in sight of the English coast off the heights of Plymouth. On board the fleet itself it was thought most expedient to attempt a landing on the spot, since there were no preparations made there for defence and the English squadron was not fully manned. But this was not in the plan, and would, especially if it failed, have incurred a heavy responsibility. Medina Sidonia was only empowered and prepared to accept battle by sea if the English should offer it. His galleys, improved after the Venetian pattern, and especially his galleons (immense sailing ships which carried cannon on their different decks on all sides), were without doubt superior to the vessels of the English. When the latter, some sixty sail strong, came out of the harbour, he

hung out the great standard from the fore-mast of his ship as a signal for all to prepare for battle. But the English admiral did not intend to let matters come to a regular naval fight. He was perfectly aware of the superiority of the Spanish equipment and had even forbidden boarding the enemies' vessels. His plan was to gain the weather-gauge of the Armada, and inflict damage on them in their course, and throw them into disorder. The English followed the track of the Armada in four squadrons, and left no advantage unimproved that might offer. They were thoroughly acquainted with this sea, and steered their handy vessels with perfect certainty and mastery: the Spaniards remarked with dissatisfaction that they could at pleasure advance, attack, and again break off the engagement. Medina Sidonia was anxious above all things to keep his Armada together: after a council of war he let a great ship which lagged behind fall into the hands of the enemy, as her loss would be less damaging than the breaking up of the line which would result from the attempt to save her: he sent round his sargentos mayores to the captains to tell them not to quit the line on pain of death.^[272]

On the whole the Spaniards were not discontented with their voyage, when after a week of continuous skirmishing they, without having sustained any very considerable losses, had traversed the English channel, and on Saturday the 6th August passed Boulogne and arrived off Calais: it was the first point at which they had wished to touch. But now to cross to the neighbouring coast of England, as seems to have been the original plan, became exceedingly difficult, because the English fleet guarded it, and the Spanish galleons were less able in the straits than elsewhere to compete with those swift vessels, It was also being strengthened every moment; the young nobility emulously hastened on board. But neither could the admiral proceed to Dunkirk, as the harbour was then far too narrow to receive his large ships, and his pilots were afraid of being carried to the northward by the currents. He anchored in the roadstead east of Calais in the direction of Dunkirk.

He had already previously informed the Duke of Parma that he was on the way, and had then, immediately before his arrival at Calais, despatched a pilot to Dunkirk, to request that he would join him with a number of small vessels, that they might better encounter the English, and bring with him cannon balls of a certain calibre, of which he began to fall short.^[273] It is clear that he still wished to undertake from thence, if supported according to

his views, the great attempt at a disembarkation which he was commissioned to effect. But Alexander of Parma, whom the first message had found some days before at Bruges, had not yet arrived at Dunkirk when the second came: the preparations for embarking were only then just begun for the first time; and they could scarcely venture actually to embark, as English and Dutch ships of war were still ever cruising before the harbour.

Alexander Farnese's failure to effect a junction with Medina Sidonia has been always traced to personal motives; it was even said in England, at a later time, that Queen Elizabeth had offered him the hand of Lady Arabella Stuart, which might open the way to the English throne for himself. It is true that his enterprises in the Netherlands appeared to lie closest to his heart; even Tassis, who was about his person, remarks that he carried on his preparations more out of obedience than with any zeal of his own. But the chief cause why the two operations were not better combined lay in their very nature. The geographical relation of the Spanish monarchy to England would have required two separate invasions, the one from the Pyrenean peninsula, the other from the Netherlands. The wish to combine the forces of such distant countries in a single invasion made the enterprise, especially when the means of communication of the period were so inadequate, overpoweringly helpless. Wind and weather had been little considered in the scheme. In both those countries immense materials of war had been collected with extreme effort; they had been brought within a few miles of sea of each other, but combine they could not. Now for the first time came to light the full superiority which the English gained from their corsair-like and bold method of war, and their alliance with the Dutch. It was seen that a sudden attack would suffice to break the whole combination in pieces: Queen Elizabeth was said to have herself devised the plan and its arrangement.

The Armada was still lying at anchor in line of battle, waiting for news from Alexander Farnese, when in the night between Sunday and Monday (7th to 8th August) the English sent some fire-ships, about eight in number, against it. They were his worst vessels which Lord Howard gave up for this purpose, but their mere appearance produced a decisive result. Medina Sidonia could not refuse his ships permission to slip their anchors, that each might avoid the threatening danger: only he commanded them to afterwards resume their previous order. But things wore a completely different

appearance the following morning. The tide had carried the vessels towards the land, a direction they did not want to take; now for the first time the attacks of the English proved destructive to them: part of the ships had become disabled: it was completely impossible to obey the admiral's orders that they should return to their old position. Instead of this, unfavourable winds drove the Armada against its will along the coast; in a short time the English too gave up the pursuit of the enemy, who without being quite beaten was yet in flight, and abandoned him to his fate. The wind drove the Spaniards on the shoals of Zealand: once they were in such shallow water that they were afraid of running aground: some of their galleons in fact fell into the hands of the Dutch. Fortunately for them the wind veered round first to the W.S.W., then to the S.S.W., but they could not even then regain the Channel, nor would they have wished it; only by the longest circuit, round the Orkney Islands, could they return to Spain.

A storm fraught with ruin had lowered over England: it was scattered before it discharged its thunder. So completely true is the expression on a Dutch commemorative medal, 'the breath of God has scattered them' (*flavit et dissipati sunt*).

Philip II saw the Armada, which he had hoped would give the dominion of the world into his hand, return home again in fragments without having, we do not say accomplished but even, attempted anything worth the trouble. He did not therefore renounce his design. He spoke of his wish to fit out lighter vessels, and entrust the whole conduct of the expedition to the Prince of Parma. The Cortes of Castille requested him not to put up with the disgrace incurred, but to chastise this woman: they offered him their whole property and all the children of the land for this purpose. But the very possibility of great enterprises belongs only to one moment: in the next it is already gone by.

First the Spanish forces were drawn into the complications existing in France. The great Catholic agitation, which had been long fermenting there, at last gained the upper hand, and was quite ready to prepare the way for Philip II's supremacy. But Queen Elizabeth thought that the day on which France fell into his hands would be the eve of her own ruin. She too therefore devoted her best resources to France, to uphold Philip II's opponent. When Henry IV, driven back to the verge of the coast of

Normandy, was all but lost, he was by her help put in a position to maintain his cause. At the sieges of the great towns, in which he was still often threatened with failure, the English troops in several instances did excellent service. The Queen did not swerve from her policy even when Henry IV saw himself compelled, and found it compatible with his conscience, to go over to Catholicism. For he was clearly thus all the better enabled to re-establish a France that should be politically independent, in opposition to Spain and at war with it; and it was exactly on this opposition that the political freedom and independence of England herself rested. Yet as his change of religion had been disagreeable to the Queen, so was also the peace which he proceeded to make; she exerted her influence against its conclusion. But as by it the Spaniards gave up the places they occupied on the French coasts, which in their possession had menaced England as well, she could not in reality be fundamentally opposed to it.

These great conflicts on land were seconded by repeated attacks of the English and Dutch naval power, by which it sometimes seemed as if the Spanish monarchy would be shaken to its foundations. Elizabeth made an attempt to restore Don Antonio to the throne from which Philip II had driven him. But the minds of the Portuguese themselves were very far from being as yet sufficiently prepared for a revolt: the enterprise failed, in an attack on the suburbs of Lisbon. The war interested the English most deeply. Parliament agreed to larger and larger grants: from two-fifteenths and a single subsidy (about £30,000), which was its usual vote, it rose in 1593 to three subsidies and six-fifteenths; the towns gladly armed ships at their own expense, and sailors enough were found to man them: the national energy turned towards the sea. And they obtained some successes. In the harbour of Corunna they destroyed the collected stores, which were probably to have served for renewing the expedition. Once they took the harbour of Cadiz and occupied the city itself: more than once they alarmed and endangered the West Indies. But with all this nothing decisive was effected; the Spanish monarchy maintained an undoubted ascendancy in Europe, and the exclusive possession of the other hemisphere: it was the Great Power of the age. But over against it England also now took up a strong and formidable position.

Events in France exercised a strong counter-action on the Netherlands; under their influence the reconquest of the United Provinces became

impossible for Spain. Elizabeth also contributed largely to the victories by which Prince Maurice of Orange secured a strong frontier. But these could not prevent a powerful Catholic government arising on the other side in the Belgian provinces: and though they were at first kept apart from Spain, yet it did not escape the Queen that this would not last for ever: she seems to have had a foreboding that these countries would become the battleground of a later age. However this might be, the antagonism of principle between the Catholic Netherlands (which were still ruled by the Austro-Spanish House) and the Protestant Netherlands (in which the Republic maintained itself), and the continued war between them, ensured the security of England, for the sake of which the Queen had broken with Spain. Burleigh's objects were in the main attained.

NOTES:

[266] Oldys, *Life of Sir W. Raleigh* 38.

[267] Spondanus, *Continuatio Baronii* ii. 847. The word 'dicitur,' which Spondanus uses, is omitted in Timpesti, *Vita di Sisto V*, ii. 51.

[268] A letter of Philip's to the King of Denmark, in the Venetian *Dispacci* of this year, which in general would be of great value for a detailed account of the event.

[269] The reports are in Herrera, *Historia del mundo* iii. 60 seq. In 1860 Mr. Motley (*History of the United Netherlands* ii. ch. xviii.) communicated extracts from the letters exchanged at that time between Alex. Farnese and Philip II, which reveal the wishes of each successive moment.

[270] J. B. de Tassis *Commentarii*: 'eo consilio, ut cum adventasset classis et constitisset in Morgat, qui est prope Dormiram [I read Douvram, as the copy from which the printed text is taken is very defective] districtus maris quietus portumque efficit satis securum, trajiceret Parmensis cum navigiis.' Papendrecht, *Analecta Belgica* II. ii. 491. In Motley i. ch. viii we now see that Al. Farnese in his very first plan pointed out the coast between Dover and Margate as the most proper place for the landing. A junction of the whole transport fleet with the Armada before Calais has something too adventurous in it to have been contemplated from the beginning.

[271] The Earl of Leicester to the Queen. *Hardwicke State Papers* i. 580. The dates given above are New Style.

[272] *Diario de los sucesos de armada llamada la invencible*, in Salva, *Collection de documentos ineditos* xvi. 449: essentially the same report as that used by Barrow, *Life of Sir Francis Drake*.

[273] Diario 458: 'mandase salir 40 filipotes luego para juntarse con esta armada para poder con ellos trabarse con los enemigos, que a causa de ser nuestros baseles muy pesados en comparacion de la ligereza de los enemigos no era posible en ninguna manera venir a las manos con ellos.'

CHAPTER VII.

THE LATER YEARS OF QUEEN ELIZABETH.

Every great historic existence has a definite purport; the life of Queen Elizabeth lies in the transactions already recorded, and their results in the change of policy which she brought about.

The issue of the war between the hierarchy, which had once swayed every act and thought of the West, and those who had fallen off from it was not yet decided as long as England with its power vacillated between the two systems. Then this Queen came forward, attaching herself to the new view as by a predetermined destiny; she carried it out in a form answering to the historical institutions of her kingdom, and with an energy by which she at the same time upheld that kingdom's power. It was against her therefore that the hierarchy, when it could renew the contest, mainly directed its most energetic efforts: an author of the period makes those leagued with the Pope against the Queen say to each other, 'come let us kill her, and the inheritance shall be ours.' The chief among these was the mighty King who had himself once ruled England. She maintained a war with this league, in which it was at each moment a question of existence for her. She was assailed with all the weapons of war and of treason; but she adopted corresponding means of defence against every assault: she not only maintained herself, but created in the neighbouring countries a powerful representation of the principle which she had taken up, without pressing the adoption of a form for it exactly like her own. Without her help the church-reformation in Scotland, and at that time in France, would have been probably suppressed, and in the Netherlands it would have never taken actual shape. The Queen is the champion of West-European Protestantism and of all the political growth that was attached to the new faith. She herself expresses her astonishment at her success in this: 'more at the fact,' she says once, 'that I am still alive, than that my enemies would not have me to live.' That Philip effected so little against her, she believes to be due above all to God's justice; for the King attacked her in an unkingly manner while negotiations were still

going on: she sees in this a proof that an ill beginning leads to a disgraceful end, despite all power and endeavour. 'What was to ruin me, has turned to my glory.'^[274]

It is surely the greatest happiness that can be granted to any human being, while defending his own interest, to be maintaining the interests of all. Then his personal existence expands into a central part of the world's history.

That personal and universal interest was likewise a thoroughly English one. Commerce grew amidst arms: the maintenance of internal peace filled the country with wellbeing and riches; palaces were seen rising where before only huts had stood: as the philosophic Bacon remarks, England now won her natural position in the world.

Elizabeth was one of those sovereigns who have beforehand formed an idea for themselves as to the duties of government. Four qualities, she says once, seemed to her necessary for it: justice and self-control, highmindedness and judgment; she might pride herself on the two first: never in a case of equal rights had she favoured one person more than another: never had she believed a first report, but waited for fuller knowledge: the two others she would not claim for herself, for they were men's virtues. But the world ascribed a high degree of these very virtues to her. Men descried her subtle judgment in the choice of her servants, and the directing them to the services for which they were best fitted. Her high heart was seen in her despising small advantages, and in her unshaken tranquillity in danger. While the storm was coming on from Spain, no cloud was seen on her brow: by her conduct she animated nobles and people, and inspirited her councillors. Men praised her for two things, for zealous participation in deliberation and for care in seeing that what was decided on was carried into effect.^[275]

But we may not look for an ideal female ruler in Queen Elizabeth. No one can deny the severities which were practised under her government even with her knowledge. The systematic hypocrisy imputed to her may seem an invention of her enemies or of historians not thoroughly informed; she herself declares truthfulness a quality indispensable for a prince; but in her administration, as well as in that of most other rulers, reasonings appear which rather conceal the truth than express it; in each of her words, and in

every step she took, we perceive a calculation of what is for her advantage; she displays striking foresight and even a natural subtlety. Elizabeth was very accessible to flattery, and as easily attracted by an agreeable exterior as repelled by slight accidental defects; she could break out at a word that reminded her of the transitory nature of human affairs or of her own frailty: vanity accompanied her from youth to those advancing years, which she did not wish to remark or to think were remarked. She liked to ascribe successes to herself, disasters to her ministers: they had to take on themselves the hatred felt against disagreeable or doubtful regulations, and if they did not do this quite in unison with her mood, they had to fear her blame and displeasure. She was not free from the fickleness of her family: but on the other hand she displayed also the amiable attention of a female ruler: as when once during a speech she was making in a learned language to the learned men of Oxford, on seeing the Lord Treasurer standing there with his lame foot, she suddenly broke off, ordered a chair to be brought him, and then continued; indeed it was said she at the same time wished to let it be remarked that no accident could discompose her. As Harrington, who knew her from personal acquaintance, expresses himself: her mind might be sometimes compared to a summer morning sky, beneficent and refreshing: then she won the hearts of all by her sweet and modest speech. But she was repellent in the same degree in her excited state, when she paced to and fro in her chamber, anger in every look, rejection in every word: men hastened out of her way. Among other correspondence we learn to know her from that with King James of Scotland,—one side of her political relations, to which we shall return:—how does every sentence express a mental and moral superiority as well as a political one! not a superfluous word is there: all is pith and substance. From care for him and intelligent advice she passes to harsh blame and most earnest warning: she is kind and sharp, friendly and rough, but almost ever more repellent and unsparing than mild. Never had any sovereign a higher idea of his dignity, of the independence belonging to him by the laws of God and man, of the duty of obedience binding on all subjects. She prides herself on no external consideration influencing her resolutions, threats or fear least of all; when once she longs for peace, she insists on its not being from apprehension of the enemy, but only from abhorrence of bloodshed. The action of life does not develop merely the intellectual powers: between success and failure, in conflict and effort and victory, the character moulds itself and acquires its

ruling tone. Her immense good fortune fills her with unceasing self-confidence, which is at the same time sustained by trust in the unfailing protection of Providence.^[276] That she, excommunicated by the Pope, maintains herself against the attacks of half the world, gives her whole action and nature a redoubled impress of personal energy. She does not like to mention her father or her mother: of a successor she will not hear a word. The feeling of absolute possession is predominant in her appearance. It is noticeable how on festivals she moves in procession through her palace: in front are nobles and knights in the costume of their order, with bared heads; next the bearers of the insignia of royalty, the sceptre, the sword, and the great seal: then the Queen herself in a dress covered with pearls and precious stones; behind her ladies, brilliant in their beauty and rich attire: to one or two, who are presented to her, she reaches out her hand to kiss as she goes by in token of favour, till she arrives at her chapel, where the assembled crowd hails her with a 'God save the Queen,' she returning them thanks with gracious words. Elizabeth received the whole reverence, once more unbounded, which men paid to the supreme power. The meats of which she was to eat were set on the table with bended knee, even when she was not present. It was on their knees that men were presented to her.^[277]

Between a sovereign like this and her Parliament points of contention could not be wanting. The Commons claimed the privilege of absolute freedom of speech, and repeatedly attacked the abuses which still remained in the episcopal Church, and the injurious monopolies which profited certain favoured persons. The Queen had members of the Lower House imprisoned for speeches disagreeable to her: she warned them not to interfere in the affairs of the Church, and even not in those of the State, and declared it to be her prerogative to summon and dissolve Parliament at her pleasure, to accept or reject its measures. But with all this she still did not on the other hand conceal that, in reference to the most important affairs of State, she had to pay regard to the tone of the two Houses: however much she might be loved, yet men's minds are easily moved and not thoroughly trustworthy. In its forms Parliament studied to express the devotion which the Queen claimed as Queen and Lady, while she tried to make amends for acts by which the assembly had been previously offended: for statements of grievances, as in the instance of the monopolies, she even thanked them, as for a salutary reminder. A French ambassador remarks in 1596 that the

Parliament in ages gone by had great authority, but now it did all the Queen wished. Another who arrived in 1597 is not merely astonished at its imposing exterior, but also at the extent of its rights. Here, says he, the great affairs are treated of, war and peace, laws, the needs of the community and the mode of satisfying them.^[278] The one statement is perhaps as true as the other. The solution of the contradiction depends on this, that Queen and Parliament were united as to the general relations of the country and the world. The Queen, as is self-evident, could not have ruled without the Parliament: from the beginning of her government she supported herself by it in the weightiest affairs; but a simple consideration teaches us how much on the other hand Parliament owed precisely to that introduction into these great questions, which the Queen thought advisable. They avoided, and were still able to avoid, any enquiry into their respective rights and the boundaries of those rights. And besides Elizabeth guarded herself from troubling her Parliament too much by demands for money. She has been often blamed for her economy which sometimes became inconvenient in public affairs: as in most cases, nature and policy here also coincided. That she was sparing of money, and once was actually in a condition to decline a grant offered her, gave the administration an independence of any momentary moods of Parliament, which suited her whole nature, and without this might have been easily lost.

William Cecil, Lord Burleigh, her treasurer, as economical as herself, was likewise her first minister. He had assisted her with striking counsel even before her accession, and since lived and moved in her administration of the state. He was one of those ministers who find their calling in a boundless industry,—he needed little sleep, long banquets were not to his taste:^[279] never was he seen inactive even for half an hour; he kept notes of everything great and small; business accompanied him even to his chamber, and to his retirement at S. Theobald's. His anxious thoughts were visible in his face, as he rode on his mule along the roads of the park; he only lost sight of them for a moment when he was sitting at table among his growing children: then his heavy eyebrows cleared up, light merriment even came from his lips. Every other charm of life lay far from him: for poetry and poets he had no taste, as Spenser was once made to feel: in literature he patronised only what was directly useful; he recommended no one except for his being serviceable. Magnanimous he was not; he was content with

being able to say to himself, that he drew no advantage from any one's ill fortune. He was designated even then as the man who set the English state in motion: this he always denied, and sought his praise in the fact that he carried out the views of the Queen, as she adopted them after hearing the plans proposed or even after respectful remonstrances. He had to bear many a slander: most of the reproaches made against him he brought himself to endure quietly: but if, he said, it could be proved against him that he neglected the Queen's interest, the war against Spain, and the support of the Netherlands, then he was willing to become liable to eternal blame. He was especially effective also through a moral quality—he never lost heart. It was remarked that he worked with the greatest alacrity when others were most doubtful. For he too had an absolute confidence in the cause which he defended. When the enemies' fortune stood highest, he was heard to say with great tranquillity, 'they can do no more than God will allow.'^[280]

By the side of this pilot of the state, Robert Dudley, who was promoted to be Earl of Leicester, drew all eyes on himself as the leading man at court. Burleigh was looked on as Somerset's creation, Dudley was the youngest son of the Earl of Northumberland: for it was of advantage to Elizabeth, especially at first, to unite around her important representatives of the two parties which had composed her brother's government. One motive for her attachment to Leicester is said to have been the fact that he was born on the same day, and at the very same hour with herself: who at that time would not have believed in the ruling influence of the stars? But, besides this, the Earl dazzled by a fine person, attractive manners, and an almost irresistible charm of disposition. The confidential intimacy which Elizabeth allowed him caused scandalous rumours, probably without ground; for if they had been true, Leicester, who had his father's ambition, would have played a very different part. Elizabeth heard of them; she once actually brought a foreign ambassador into her apartments, to convince him how utterly impossible it would be for her to see any one whatever without witnesses; she censured a foreign writer for letting himself be deceived by a groundless rumour, but she would not on this account dismiss the favourite from court. She liked to have him about her, and to receive his homage which had a tinge of chivalry in it: his devotion satisfied a need of her heart. He could not however take any power to himself which would infringe on her own supreme authority; once, when such a case occurred, she reminded

him that he was not in exclusive possession of her favour: she could bestow it on whom she would, and again recall it; at court, she exclaimed, there should be no Master, but only a Mistress.^[281] Neither did Leicester display great mental gifts: in the campaigns of the Netherlands he did not at all answer even the moderate expectations that had been formed of him. If the Queen nevertheless put him at the head of her troops when the Spanish danger threatened, this was because he possessed her absolute personal confidence.

With Leicester the Sidneys were most closely allied. Henry Sidney, his sister's husband, introduced civilisation and monarchic institutions into Wales, and was selected to extend them in Ireland. In his son Philip the English ideal of noble culture seemed to have realised itself; he combined a very remarkable literary power peculiar to himself, and talents suited for the society of men of the world (which well fitted him for the duties of an ambassador), with disinterested kindness to others, and a chivalrous courage in war, which gained him universal admiration both at home and in presence of the enemy.

Leicester's good word is also said to have opened an entrance to court for young Walter Raleigh and to have promoted his first successes. Raleigh combined in his own person the aspirations of the age in a most vivid manner. He was ambitious, fond of show, with high aims, deeply engaged in the factions of the court; but at the same time he had a spirit of noble enterprise, was ingenious and thoughtful. In everything new that was produced in the region of discoveries and inventions, of literature and art, he played the part of a fellow worker: he lived in the circle of universal knowledge, its problems and its progress. In his appearance he had something that announced a man of superior mind and nature.

Around Cecil were grouped the statesmen who had been promoted by him, and worked in sympathy with him: for instance Bacon the Keeper of the Seals, whom the Queen regarded as the oracle of the laws, and who also amused her by many a witty word; Mildmay, the Chancellor of the Exchequer, who though adhering to the principles now adopted yet gladly favoured the claims of Parliament, and even the tendencies of the Puritans; Francis Walsingham, Secretary of State, who had once suffered exile for his Protestantism and now supported it after his return with all the resources of

the administration; it is said of him that he heard in London what was whispered in the ear at Rome; he met the crafty Jesuits with a network of secret counter-action which extended over the world; there has never been a man who more vigilantly and unrelentingly hunted down religious and political conspiracies; to pay his agents, in choosing whom he was not too particular, he expended his own property. Cecil and Bacon had married two daughters of that Antony Cooke, who had once taken part in Edward VI's education: the other sisters, wedded to Hobby and Killigrew, men who were engaged in the most important embassies, extended the connexion of these statesmen. Walsingham was allied by marriage with Mildmay, and with Randolph the active ambassador in Scotland.

Once the Queen brought a man among them, who owed his rise only to her being pleased with his person and conversation, which likewise brought her much ill repute:^[282] she promoted her vice-chamberlain Christopher Hatton to be Lord Chancellor of England. The lawyers made loud and bitter complaints of this disregard of their claims and their order. Hatton had however been long on good terms with the leading statesmen: in all the late questions of difficulty as to Mary Stuart's trial he had held firm to them. His nephew and heir soon after married a granddaughter of Burleigh.

The Queen's own relations on the mother's side had always some influence with her. Francis Knolles who had married into this family, and was appointed by the Queen treasurer of her household, won himself a good name with his contemporaries and with posterity by his religious zeal and openness of heart. A still more important figure in this circle is Thomas Sackville, who is also named with honour among the founders of English literature; the part of the 'Mirror for Magistrates' which was due to him witnesses to an original conception of the dark sides of man's existence, and to a creative imagination. But the poet likewise did excellent service to his sovereign: he makes his appearance when an important treaty is to be concluded, or the people are to be called on to defend the country, or even when any agitation is feared in the troubles at home. He was selected to inform the Queen of Scots that the sentence of death had been pronounced on her. He is the Lord Buckhurst from whom the dukes of Dorset are descended.

The distinguished family to which Anne Boleyn belonged, and which had such an important influence on her rise, that of the Howards, proved in its elder branch as little loyal to the daughter as it had once been to the mother. On the other hand Elizabeth had experienced the attachment of the younger line, that of Effingham, and had since repaid it with manifold favours. From this branch came the Admiral, who commanded the sea-force in the decisive attacks on the Spanish Armada. We know that he was not himself a great seaman; but he understood enough of the matter to enable him to avail himself of those who understood more than he did. The Queen looked on him as the man marked out by Providence for the defence of herself and of the country.

General Norris, who gained reputation for the English arms on the continent by the side of Henry IV, was also related to her though more distantly: besides this, she wished to repay him for the good treatment she had formerly received in her distress from his grandfather.

How predominantly the personal element once more manifests itself in this administration! As the Queen's own interest is also that of all, those who belong to her family or have won her favour and done her essential service, are the chiefs of the State and the leaders in war. The royal patronage extended this influence over the Church and the universities. But we find it no less in all other branches. Sir Thomas Gresham, the Queen's agent in money-matters, was the founder of the Exchange of London, to which she at his request gave the name of the Royal Exchange.

In literature also we see the traces of her taste and her influence. Owing to the tone of good society the classics were studied by every one. The higher education was directed to them, as indeed the Queen herself found in them refreshment and food for the mind: many classical authors were translated, and the forms of the old poets revived or imitated. The Italians and Spaniards, who had led the way in similar attempts, further awoke the emulation of the English. In Edmund Spenser, in whom the spirit of the age shows itself most vividly, we constantly meet with imitations of the Latin or Italian poets, which here and there aspire to be paraphrastic translations, and may be inferior to his originals, even to the modern ones, in delicacy of drawing, since he purposely selected their most successful passages: yet how thoroughly different a spirit do his works breathe in their total effect!

What in the Italians is a play of fancy is in him a deep moral earnestness. The English nation has an inestimable possession in these works of a moral and religious grandeur, and a simple view of nature, which happily expressed in single stanzas stamp themselves on every man's memory. Spenser has assigned to allegory, as a style, a larger sphere than perhaps belongs to it, and one allegory is always interweaving itself with another; the heroes whom he takes from the old romances become to him representatives of the different virtues, but he possesses such an original power of vivid representation that even in this form he gains the reader's interest. But, if we ask what is the main thing which he celebrates, we find that it is precisely the course of the great war in which his nation is engaged against the Papacy and the Spaniards. The Faery Queen is his sovereign, whose figure under the manifold symbols of the qualities which she possessed, or which were ascribed to her, is always coming forward afresh in his verse. With wonderful power Elizabeth united around her all the aspiring minds and energies of the nation.

Not a few of the productions of the time have so strong an infusion of reverence for the Queen that we cannot help smiling: but it is true nevertheless that at her court the language formed itself, and all great aspirations found their central point. Elizabeth's statesmen, who had to deal with a Parliament that could not be led by mere authority, studied the rules of eloquence in the models of antiquity, and made their doctrines their own. On their table Quintilian lay by the side of the Statutes.

The Queen, who loved the theatre and declared it a national institution by a proclamation, made it possible for Shakespeare to develop himself; his roots lie deep in this epoch, he represents its manners and mode of life: but he spreads far out beyond it. We shall return to him in a more suitable place than this, in which we are treating of the Queen's influence.

It would contradict the nature of human affairs were we to expect that the general point of view, which swayed the State as a whole, could have induced every one who took part in its administration to move on to their common aim in one way. Of the great nobles of the court many rather supported the Puritans, as indeed the father of the Puritan Cartwright owed his position at Warwick to Leicester's protection; others inclined to favour the Catholics. The severity which the bishops thought themselves bound to

exercise met with opposition among the leading statesmen: and to these again the soldiers were opposed. It was a society full of life, and highly gifted, but for that very reason in continual ferment and internal conflict.

We have still to grasp clearly the event in which these antagonisms and the Queen's temperament yet once more led to a great catastrophe.

The aged Burleigh, who had provoked the war with Spain, wished also to end it. From his past experience he concluded that he could not inflict any decisive blow on the Spanish monarchy, which still displayed a vast power of resistance; in 1597 it could again offer a high price for peace. The Spaniards, who had taken Calais from the French by a sudden attack, offered the Queen the restoration of this old English possession in exchange for the strong places in the Netherlands, entrusted to her in pledge.^[283] For the Netherlands no other provision would have been thus made than was proposed in 1587: but England would have again won as strong a position on the Continent as it had before, and would have established its rule over the neighbouring seas: an open commerce would have been re-established, and Ireland freed from the hostile influence of the Spaniards: the Queen would have enjoyed peace in her advancing years. Burleigh saw as it were the conclusion of his life in this: he said that, if God granted him a good agreement with Spain, his soul would depart with joy.

But for this policy he could not possibly get the approval of the young, whose ambitious hopes were connected with the continuance of the war. They measured the power of the country by their own thirst for action. If the Queen, so they said, would only not do everything by halves and not follow her secretaries so much, she could, especially now she had the Dutch as allies, tear the Spanish monarchy in pieces. How could they fail, with some effort, in occupying the Isthmus of Panama? And then they would at one blow deprive the monarchy of all its resources. And above all, the man who then played the most brilliant part at court, Robert Devereux Earl of Essex, was of this opinion. He was Leicester's stepson, introduced by him at court, and after his death his successor as it were in the Queen's favour. An attractive manly appearance, blooming youth, chivalrous manners, won him

all hearts from the very first. With the Queen he entered into that rare relation, in which favour on the one side and homage on the other took the hues of mutual inclination, and even passion.

What Essex's idea of it was he once revealed at a dramatic festivity which he arranged for the Queen in honour of her accession. There he made a hermit, an officer of state, and a soldier come forward and address their exhortations to an esquire who was intended to represent himself. By the first the knight was desired to give up all feelings of love, by the second to devote his powers to State affairs, by the third to apply himself to war. The answer is: the knight cannot give up his passion for his lady, since she animates all his thoughts with divine fire, teaches him true policy, and at the same time qualifies him to lead an army. Essex had taken part in some campaigns of Henry IV, and afterwards commanded the squadron which was in possession of the harbour of Cadiz for a moment, but without being able to hold it: he also failed in another enterprise which was planned to seize the plate-fleet; but this did not prevent him from evermore designing fresh and comprehensive plans. His view in this matter he also once represented dramatically.^[284] He brought forward a native American prince who utters the wish to be freed from the Castilians and their oppressive rule: an oracle refers him to the Queen whose kingdom lies between the old and the new world, and who is naturally inclined to come to the aid of all the oppressed.

The negotiations for peace were wrecked mainly through their inherent difficulties: the Spaniards however had no hesitation in ascribing the ill result to the influence of the Queen's favourite, who had been won over by the King of France.^[285] But the war could not after this be waged on the grand scale contemplated, because Henry IV himself now concluded peace, which freed the hands of the Spaniards to act against England, and even awoke once more their ideas of an invasion.

Under the double influence of English oppression and the instigation of both Spain and Rome a revolt broke out in Ireland, in which the English suffered a defeat on the Blackwater, which is designated as the greatest mishap they had ever suffered in that island. Ulster, Connaught, and Leinster were in arms: their chief, Tyrone, who had learnt war in the English service, came forward as The O'Neil, and was already recognised

by the Pope as sovereign of Ulster; the Irish reckoned on Spanish assistance, either in Ireland itself, or through an attack on England. Priests and Jesuits fed the Irish with hopes that this time they would free themselves, and destroy the very memory of the English rule.

The Queen decided, in order to keep her hold on the island, to send over an unusually strong armament of horse and foot: and Essex, who had always been the loudest in blaming the errors of previous commanders, could not avoid at last himself undertaking its direction, though he did not do it with complete alacrity.

Though Burleigh was dead, his son Robert Cecil nevertheless maintained himself in possession of the secretaryship of state and was at the head of his father's old friends, joined as they were by others who were not indeed his friends but were enemies of Essex. It was unwillingly that Essex quitted the court and thus left the field open to them: especially as his personal relation to the Queen was no longer what it had been of old. Aspiring by nature, supported by the good opinion of the people (on which his grand appearance and his bold spirit of enterprise had made much impression), and by the devotion of brave officers who were ready to follow him in any undertaking by land or sea, he presumed to desire to be something for himself. He wished to be no longer absolutely dependent on the nod of his mistress. The story goes that she once, in a violent passion at his disrespectful conduct, gave him a box on the ear, and that he laid his hand on his sword. Even in his letters expressions indicating resistance break through his declarations of submission. His friends indeed advised him to return to absolute obedience: then the Queen would raise the man whom she honoured above all others. He rejected this advice because he held that the Queen was a woman, from whom one gets nothing but by superior authority. It almost appears as though he thought he might obtain such an authority by the Irish war.

But he found this expedition far harder than he had expected. Previously he had always said that the great rebel, Tyrone, must be tracked to Ulster, where were the roots of his power, and conquered there: then the rest of the country would return to obedience of itself. How great was the astonishment when he now nevertheless began with a march into Munster and Leinster, in which he wasted his resources without obtaining any great

success! He maintained that the Privy Council of Ireland had urged him on to this: its members denied it. At last the campaign to the North was undertaken: but in this region the Irish were found to have the complete superiority: the Queen's newly-levied troops on the other hand were neither adapted, nor quite willing, to venture on a decisive action: the officers signed a protest against it: and Essex saw himself obliged to enter into negotiations with Tyrone.

The conditions which that chief demanded in return for his submission are exceedingly comprehensive: complete freedom of the Catholic church under the Pope, and a transfer of the dignities of state to the natives, so that only a viceroy, who should always belong to the high nobility, was to come from England: the chief Irish families were to be restored to their old possessions, and freed from the most oppressive laws, for instance that of wardship; and the Irish were to be allowed free trade with England.^[286] These stipulations would have promised a free development to the Irish nation, and made the yoke of England exceedingly light. Essex accepted them, because the Spaniards were just now threatening an attack on England, and Tyrone could only be separated from them on these conditions; even then Tyrone begged that for the present they might be kept a profound secret, that he might not quarrel with the Spaniards too soon.

But how could such comprehensive concessions be expected from the proud Queen? How could her counsellors, who always preferred direct negotiation with Spain, have accepted them?

The idea occurred to the Earl of Essex to return to England with a part of his troops, and at their head enforce the acceptance of his treaty, after which he would throw himself with all his might into the Spanish war. And without doubt this would have been the only way to carry out his plan, and become altogether master of the government.

But it was represented to him that this looked exactly like an attempt at rebellion. Essex was induced to give it up, and make everything yet once more depend on the influence which he was confident he could exercise on the Queen by appearing in person. Even this however was a great risk: he not merely had no leave to do so, but it had been expressly forbidden him just previously: he thought it however the only way of obtaining his end.

Without even having announced his departure to the Queen, he suddenly appeared with slight attendance at Nonsuch, her country house.^[287] He dismounted before the door, and did not even take time to change his dress: as he was, with the dust of the journey on his face and clothes, he hastened to the Queen: that he did not find her in the reception-room did not check him; he rushed on into her chamber, where he entered without being announced, and kissed her hand: her hair was still flying about her face. At the first moment she received him graciously—in a couple of hours he might see her again: when he returned to her at table, she began to reproach him. From minute to minute the Queen predominated in her over the friend: by evening his arrest was announced to him.

Already by his conduct in Ireland Essex had supplied food for the slander of his enemies: how much more must this have been the case through his self-willed return! As he was fond of tracing his descent from royal blood, he was accused of even aspiring to the throne, after the example of Bolingbroke: for this purpose he had leagued himself with Tyrone and the Irish grandees, whose loyalty he praised notwithstanding their revolt. We can say with certainty that the views of the Earl of Essex never went so far. In the question as to the Queen's successor, which occupied every one, he had taken his side for the rights of the King of Scotland: he imputed to his enemies the design of favouring on the other hand the claim of the Infant of Spain (which was at that time put forward in all seriousness in a book much read) with the view of purchasing peace by his recognition. He assigned, as the motive for his conduct, his inability to endure the atheists, papists, and Spanish partisans in the Queen's council: as a Christian he could not possibly look on while religion perished, and as an Englishman he would not stand aloof while his fatherland was being ruined.^[288] He had never wished to be anything else than a subject—but 'only of his Queen, not the underling of an unworthy and low vassal.' So far as men saw, he stood in connexion with both the parties opposed to the prevailing system. He was prayed for in the churches of the Puritans: Cartwright was one of his friends; the Scotch doctrine, that the Supreme Power, if it showed itself negligent in matters of religion, could be compelled by those immediately under it to take them in hand, is said to have been preached with reference to him. As Earl Marshal of England, Essex indeed thought he possessed an independent right of interference. But the mitigation of the ecclesiastical

laws would also have benefited the Catholics; and it was among them that he had perhaps the most decided allies. If we might combine his views into a whole, they were directed towards raising the natives of America against Spain, at the same time that by toleration both in England and Ireland he united all patriots in the war against that power, in which he discerned that the chief interest of the nation lay.

Essex remained a long while in the custody of the Keeper of the Seal, who was favourably disposed towards him; then he was sentenced by the Star Chamber not to exercise any longer his high offices as member of the Privy Council, as Earl Marshal, and Master of the Ordnance, and to live as a prisoner in his own house during the Queen's pleasure. He seemed to reconcile himself to this fate, and behaved modestly for a considerable time: he was still flattering himself with the hope of regaining his sovereign's favour, when a monopoly was withdrawn from him which formed the chief part of his income. This new victory of his enemies was intolerable to him: he would not let himself be brought so low by them as to be forced to live like a poor knight, without influence and independence. The thought occurred to him that, if he could but see the Queen once more, he might effect a change in his own destiny and in that of England. The popularity he enjoyed in the capital, the continued attachment of his old companions in arms, the friendship of some considerable nobles, allowed him to entertain the hope that he could attain this in despite of those around her, could make himself master of the palace, and force her to summon a Parliament—in which the change of government and the succession of the King of Scotland should be alike confirmed. Essex was no longer the blooming man of times past, he was seen moving along with his neck bowed down, but he still had his mind fixed on wide-ranging and ambitious thoughts: from his youth up elevated by good fortune and favour, he held everything possible which he set his hand to do. On the 8th February 1601 an armed band assembled at his house under certain lords; the Keeper of the Seal and his attendant, whom the Queen despatched in order to inform herself of the cause of the agitation, were detained. Essex dared to march through the capital with his armed men, in order to raise it on his behalf. He reckoned on the desertion of the city militia to him, and the connivance of the city magistrates; but instead of finding support he only excited astonishment. No one stirred in his favour. He was scarcely able—for royal

troops were soon in arms against him—to make his way back to his house: there was nothing left for him but to surrender at discretion.

At his trial the principle, which had already had so much weight in the proceedings against Mary Stuart, was expressly stated, that every attempt at rebellion must be looked on as directed against the life of the reigning sovereign.^[289] A crisis had occurred which obliged Elizabeth to execute the man for whom among all men living she cherished the deepest and warmest feeling, just as formerly she had been forced to condemn one of the grandees connected with her by blood, and then her sister Queen of equal rights with herself—all of them for traitorous attempts against her government and person. She said she would gladly have saved Essex, but she was forced to let the laws of England take their course.

Essex is to be compared with his contemporary Biron in so far as they both rebelled against sovereigns with whom they had stood in the closest relations. In both it was mainly injured self-esteem which goaded them on. As Biron had a portion of the lower French nobility for him, so Essex had the soldiers by profession and the officers of the army to a great extent on his side: they both appealed once more to religious antipathies. But above all they thought of again making room for the old independence of the warlike nobles: they both succumbed to the authority of the firmly-rooted power of the state.

At that time there were fresh negotiations going on for a peace between Spain and England; but they could as little now as before agree on the great subjects in dispute, the question of the Netherlands, and the interests of commerce, which at the same time involved points of religion. And the Spaniards broke off negotiations all the more readily, as exaggerated rumours of Essex's conspiracy resounded everywhere, making a revolt in England appear possible. They then instantly thought of a landing in an English harbour, and this the Catholics promised to support with considerable bodies of horse and foot. In Ireland, where the refusal of the concessions held out to them by Essex revived the national enmities, the Spaniards really effected a landing: under Don Juan d'Aguilar they occupied Kinsale: and hoped not merely to become masters of Ireland but to cross from thence to their friends' assistance in England.

Hence Queen Elizabeth, who perceived the connexion of these hostilities, now reverted to the necessity of carrying on the war again on a larger scale. Her view was chiefly directed to a new enterprise against Portugal: its separation from Castile she held to be the greatest European success that was possible: but she hoped to bring about a change in Italy as well: there Venice was to attack the nearest Spanish territories. When she called the Venetians to aid—among other things she wished also to obtain a loan from the government—she put them in mind how much her resistance to the Spanish monarchy had benefited the European commonwealth: hence it was that Spain had been prevented from carrying out her tyrannical views throughout the world, in the Netherlands and in Germany, in France and Italy; the Republic, which loved freedom, would recognise this. Elizabeth thought to resume the war, if possible, at the head of all that part of Europe which was opposed to Spain, and in league with Henry IV, with whom she negotiated on this subject. In the beginning of 1603 a squadron was fitted out under Sir Richard Lawson to attack the coasts of the Pyrenean peninsula. Men discussed the comparative forces which the two kingdoms could bring into the field.

But the Queen's days were already drawing to a close.

In February 1603 the Venetian secretary Scaramelli had an audience of her, and gives a report of it from which we see that she still completely preserved her wonted demeanour. He found the whole court, the leading ecclesiastics and the temporal dignitaries, assembled around her: they had been entertained with music. When he entered, the Queen rose in her usual rich attire, with a diadem of precious stones, almost encircled with pearls: rubies hung from her neck; and in her mien no one could detect any decay of her powers. 'It is time at last,' she said to the secretary, who wished to throw himself on his knees before her, while she raised him with both hands, 'it is time at last for the Republic to send its representative to a Queen by whom it has been always honoured.' The letter of the Republic was handed to her, and she gave it to the Secretary of State; after he had opened it and given it back to her again, she sat down to read it: it contained a complaint that Venetian ships had been seized by the English privateers, who then made all seas unsafe. The English nation, she then said, is not so small but that evil and thievish men may be found in it: while she promised enquiry and justice, she nevertheless reverted to her main point that she had

received nothing from the republic during the forty-four years of her government but grievances and demands,—even the loan had been refused;—Venice had hitherto, contrary to her custom, not sent any embassy to her; not, she thought, because she was a woman, but through fear of other powers. Scaramelli answered that no temporal or even spiritual sovereign had any influence on the Republic in such matters; he ascribed the neglect to circumstances which no one could control. The Queen broke off: I do not know, she added, whether I have expressed myself in good Italian: I learned the language as a child, and think I have not forgotten it. After that serious address she again seemed gracious, and gave the secretary her hand to kiss, when she dismissed him. The next day commissioners were appointed to enquire into his grievances.^[290]

At that time the affairs of Ireland were once more occupying the Queen. The Spaniards had been compelled by Lord Mountjoy to leave the island; he had beaten them together with the Irish in a decisive action: but, despite his victory, many further conflicts took place, and the rebellion was not suppressed; Tyrone still maintained himself in the hills and woods of Ulster; and, as a return of the Spaniards was feared, Mountjoy too was at last disposed to come to an agreement with him. The Queen was in her inmost soul against this, for only fresh rebellions would be occasioned by it; she required an absolute surrender at discretion: if she once allowed the rebels to have their lives secured to them, she soon after retracted the concession. She even spoke of wishing to go to Ireland, in person; the impression produced by her presence would put an end to all revolt.

But at this moment a sudden alteration was remarked in her: she no longer appeared at the festivities before Lent, which went off in an insignificant style. At first her seclusion was explained by the death of one of her ladies whom she loved, the Countess of Nottingham: but soon it could not be concealed that the Queen herself was seized with a dangerous illness: sleep and appetite began to fail her: she showed a deep melancholy. 'No,' she replied to one of the kinsmen of her mother's house, Robert Cary, who at that moment had come back to court and addressed friendly words to her about her health, 'No Robin, well I am not, my heart has been for some time oppressed and heavy;' she broke off with painful groans and sighing, hitherto unwonted in her, now no longer suppressed. It was manifest that mental distress accompanied the bodily decay.^[291]

Who has not heard of the ring which Elizabeth is said to have once given to the Earl of Essex with the promise that, if it were presented to her, she would show him mercy, whatever might have occurred: he had, so the tale runs, in his last distresses wished to send it her through the Countess of Nottingham: but she was prevented from giving it by her husband who was an enemy of Essex, and so he had to die without mercy: the Queen, to whom the Countess revealed this on her death bed, fell into despair over it. The ring is still shown, and indeed several rings are shown as the true one: as also the tradition itself is extant in two somewhat varying forms; attempts have been made to get rid of the improbabilities of the first by fresh fictions in the second.^[292] They are both so late, and rest so completely on hearsay, that they can no longer stand before historical criticism.

Nevertheless we cannot deny, as the reports in fact testify in several places, that the remembrance of Essex weighed on the Queen's soul. It must certainly have reminded her of him, that she was now brought back exactly to the course he had insisted on, namely a friendly agreement with the invincible Irish chief. She had allowed less imperious, more compliant, declarations to reach Ireland. But was the man a traitor, who had recommended a policy to which they had been forced to have recourse after such repeated efforts? Had he deserved his fate at her hands?^[293] It was remarked that the anniversary of the day on which Essex two years before had suffered on the scaffold, Ash Wednesday, thrilled through her with heart-rending pain; the world seemed to her desolate, since he was no longer there; she imputed his guilt to the ambition, against which she had warned him, and which had misled him into steps, from the consequences of which she could not protect him. But had she not herself uttered the decisive word? She burst into self-accusing tears. Her distress may have been increased by finding that her statesmen no longer showed her the old devotion, the earlier absolute obedience. When they, as we know, had framed a formal theory for themselves, that they might act against an express command of the Queen, on the assumption of her general intention being directed to the public good, could the sharp-sighted, suspicious, sovereign fail to perceive it? Could she fail to remark the agitation as to her successor, which occupied all men's minds, while the reins were slipping from her hands? The people, on whose devotion she had from the first

moment laid so much stress, and partly based her government, seemed after Essex' death to have become cold towards her.

In every great life there comes a moment when the soul feels that it no longer lives in the present world, and draws back from it.

Once more Elizabeth had the English Liturgy read in her room: there she sat afterwards day and night on the cushions with which it was covered, in deep silence, her finger on her mouth: she rejected physic with disdain.^[294] Most said and believed she did not care to recover or to live any longer, that she wished to die. When she was at last got to bed, and had a moment left of consciousness and interest in the world, she had the members of her Privy Council summoned: she then either said to them directly that she held the King of Scotland to be her lawful and deserving successor, or she designated him in a way that left no doubt.^[295]

Amidst the prayers of the Archbishop of Canterbury, who was kneeling by her bed, she breathed her last.

It is not merely the business of History to point out how far great personages have attained the ideals which float before the mind of man, or how far they have remained below them. It is almost more important for it to ascertain how far the universal interests, in the midst of which eminent characters appear, have been advanced by them, whether their inborn force was a match for the opposing elements, whether it allowed itself to be conquered by them or not. There never was a sovereign who maintained a conflict of world-wide importance amidst greater dangers and with greater success than Queen Elizabeth. Her grandfather had begun a political emancipation from the ruling influences of the continent, her father an ecclesiastical one: Elizabeth took up their task and accomplished it victoriously against Rome and against Spain, while her people had an ever-increasing part in public affairs, and thus entered into a new stage of development. Her memory is inseparably connected with the independence and power of England.

NOTES:

^[274] Elizabeth to James VI, August 1588, in Rymer and Bruce 53.

[275] Molino: 'Fu prudentissima nel governare diligente nel consultare, perche voleva assistere a tutti li negotii, perspicacissima nel provvedere le cose ed accuratissima perche le deliberationi fatte fossero eseguite.'

[276] One of her expressions was: 'He that placed her in that seat would preserve her in it.' Contemporary notice in Ellis, Letters ii. iii. 194.

[277] Hentzner, Itinerarium 137.

[278] De Maisse, in Prevost-Paradol, Mémoire sur Elizabeth et Henri IV. Séances et travaux de l'académie des sciences morales, tom. 34.

[279] Ockland, in Strype iii. 2, 237: 'Somni perparcus, parce vinique cibique in mensa sumens, semper gravis atque modestus.'

[280] Letter to a friend, in Strype iii. 2, 379. Certain true general notes upon the actions of Lord Burleigh, in Strype iii. 2, 505. A letter from Leicester is in existence, in which he tries to prove that William Cecil had obligations to his father and not merely to the Protector.

[281] Naunton, Fragmenta regalia.

[282] Sir H. Nicolas, Life and Times of Christopher Hatton, communicates (p. 30) fragments of the Queen's letters, which lead him to remark that the supposition of an immoral relation (which he elsewhere adopts) is refuted by them. The Queen inquires for instance, What is friendship? 'The union of two minds bound to each other by virtue. He is no more a friend who desires more than the other can reasonably grant.'

[283] Herrera, Historia del mundo iii. 754.

[284] Device made by the Earl of Essex: Devereux, Lives and Letters of the Devereux, Earls of Essex, ii. App. F.

[285] Herrera complains at first of the 'ministros infideles' of the Queen: among them he names Essex.

[286] In Winwood, Memorials i.

[287] Rowland Whyte to Sir Robert Sidney, Michaelmass Day 1599 (the day after the Earl's arrival). Sidney Papers ii. 127.

[288] 'I could not but see and feel what misery was near unto my country by the great power of such as are known indeed to be atheists papists and pensioners of the mortal enemies of this kingdom.' Confession to Ashton, in Devereux ii. 165.

[289] 'As foreseeing that the rebel will never suffer the King to live or reign, who might permit or take revenge of the treason and rebellion.' In Campbell, Lives of the Lord Chancellors ii. 199.

[290] Dispaccio di Carlo Scaramelli 19 Feb. 1603 (Venetian Archives).

[291] Memoirs of Robert Cary 116.

[292] The first appears in Aubery's Mémoires pour servir à l'histoire de Hollande 1687, 214; with another apocryphal tale about finding the bones of Edward IV's

children as early as Elizabeth's time. Aubery asserts that he heard the history of the ring from his father's mouth, who had heard it from Prince Maurice of Orange, to whom it had been communicated by the English ambassador Carleton. According to him the Queen then took to her bed, dressed as she was, sprang from it a hundred times during the night, and starved herself to death. Who does not, in reading this, feel himself in a sphere of wild romance? Lady Spelman has tried to clear away the improbability involved in it, that Essex should have applied to the wife of one of his enemies, by making Essex give the ring to a boy passing by, who was to give it, not to the Countess of Nottingham, but to her sister, and then mistook the two ladies.

[293] Scaramelli, 27 March: 'per occasione del perdono finalmente fatto al conte di Tirone cadde in una consideratione, che il conte di Esses gia tanto suo intimo di cuore fosse morto innocente.'

[294] Letter of the French ambassador from London, 3rd April 1603. 'C'est la verité que delors, qu'elle se sentit atteinte du mal, elle dit de vouloir mourir.' Villeroy, *Mémoires d'estat* iii. 212. Cary: 'The Queen grew worse and worse, because she would be so.' Compare Sloane MS. in Ellis iii. 194.

[295] Scaramelli writes to his Signoria 7th April (New Style) what was said during those days: 'La regina nel fine della infirmita et della vita dopo haver dormito alcune poche hore ritornata di sana mente conoscendosi moribonda il primo di Aprile corr. fece chiamare i signori del regio consiglio—e commandava loro,—che la corona pervenisse al Più meritevole ch'ella ha trovato sempre nel suo secreto esser il Re di Scotia cosi per il dritto della successione, che per esserne Più degno che non è stata lei, poiche egli è nato re et ella privata—egli le portera un regno et ella non porta altro che se stessa donna.' Without quite accepting this, we must not pass it over. Winwood too writes to Tremouille: 'le jour avant son trespas elle declara pour son successeur le roy d'Escoce.' *Mémoires* i. 461.

BOOK IV.

FOUNDATION OF THE KINGDOM OF GREAT BRITAIN. FIRST DISTURBANCES UNDER THE STUARTS.

Under no dynasty in the world have great national changes been so dependent on the personal aims of princes as in England under the Tudors. Just as all Henry VIII's subsequent proceedings were determined by the affair of the divorce, so also the policy of his three children was due to the relations into which they were thrown by their birth.

No one however could derive the course of English history at this epoch from this cause alone. How could Henry VIII have even thought of detaching his kingdom from the Roman See, but for the ancient and deep-seated national opposition to its encroachments? But the nation had also for ages had manifold and deep sympathies with Rome; and Mary Tudor allied herself with these. Together with subjective personal agencies, national influences of universal prevalence were at work. The different leanings of the sovereigns appear as exponents of opposite tendencies already existing in the nation. The struggle between these was decided when, as in the reign of Elizabeth, the most vigorous nature combined with the most powerful interests and the most influential motives to gain the mastery, although others of a different character were still by no means suppressed.

Now however the energetic race of the Tudors had disappeared from the throne. By the right of natural inheritance another family ascended it, which had its roots and associations in Scotland, the crown of which country it united with that of England. If a long time elapsed before the English commonwealth was as closely attached to the new dynasty as it had been to the old, under which it had developed; so it is also clear that the point of view from which this dynasty started could not be exactly the same as that which had hitherto prevailed. This could not be expected under a prince who had already reigned for a quarter of a century and had long ago taken

up, in his native country, a firm position with regard to the great conflicts of the age. This position we must first of all endeavour to represent.

CHAPTER I.

JAMES VI OF SCOTLAND: HIS ACCESSION TO THE THRONE OF ENGLAND.

Origin of fresh dissension in the Church.

Our eyes again turn to the man to whom the last great religious and political change in Scotland is mainly due—John Knox.

We find him, propped on his staff and supported on the other side by a helping arm, stepping homewards from the church where he had once more performed a religious service: the multitude of the faithful lined the road, and greeted him with reverence. He could no longer walk alone, or raise his voice as before; it was only in a more confined space that he used still to gather a little congregation round him, to whom on appointed days and at fixed hours he proclaimed the teaching of the Gospel with unabated fire. He lived to hear of the wildest outbursts of the struggle on the continent, and to pronounce his curse on the King of France, who had taken part in the massacre of St. Bartholomew; but, in one respect, he was more fortunate than Luther, who in his last days was threatened with mischief from hostile elements about him which he could not control; for around John Knox all was peace. He thanked God for having granted him grace, that by his means the Gospel was preached throughout Scotland in its simplicity and truth: he now desired nothing more than to depart out of this miserable life; and thus, without pain, in November 1572, after bearing the burden and heat of the day, he fell asleep.

With him and his contemporaries the second generation of the reformers came to an end. They had fought out the battle against the papacy, and had established the foundations of a divergent system: now however a third generation arose, which had to encounter violent storms within the pale of the new confession itself.

In Scotland the Regents Mar and Morton now thought it necessary, even for the sake of the constitution, in which the higher clergy formed an important element, to restore episcopacy, which had been laid low in the tumult of the times; and to fill the vacant offices with Protestant clergy, appointed however in the old way, by the election of the chapters on the recommendation of the Government: it was desired at the same time to invest them with the power of ordination and a certain jurisdiction. Knox was at least not hostile to this measure. The resolution to convene an assembly of the Church at Leith was formed while he was still alive, and was ratified by Parliament in January 1573.

But in the Church, which had formed itself in perfect independence by means of free association, this project, which besides was spoiled by many blunders in the execution, necessarily provoked strong opposition. Andrew Melville may be regarded as Knox's successor in the exercise of the authority of leader; a man of wide learning, who had in his composition still more of the professor than of the preacher, and united convictions not less firm than those of Knox with an equal gift of eloquence. He however on principle excluded episcopacy in any form from the constitution, as, in his opinion, the Scriptures recognised only individual bishops: he especially disapproved of the connexion between the bishops and the crown. The spiritual and the temporal powers he considered to be distinct kinds of authority, of which the one was as much of divine right as the other. But he did not regard the clergy or ministry of preaching as alone charged with spiritual authority: he thought that the lay elders formed the basis of this authority: that, once elected, they were permanent, had themselves a spiritual rank, watched over the purity of doctrine, took the lead in the call of the preachers, and, together with these, formed assemblies by whose conclusions every member of the congregation was bound. A General Assembly erected on this basis had the legislative authority in the Church, with the right of visitation and of spiritual correction. It was incumbent on the King to protect them; but he was amenable to their sentence. Such is the discipline laid down in the Second Book, which was approved in the year 1578, in a General Assembly, of which Melville was Moderator.^[296]

With these opposite principles before his eyes, the young King grew up. He showed himself to be imbued with the reformed doctrine, but he was decidedly averse to this form of church government, which created a power

in the nation intended to counterbalance and withstand that of the monarch. The political views of his teachers, highly popular as they were, awoke in him, as was natural, the inborn feelings of a king. He longed with all his soul for the restoration of episcopacy, which, according to his view, was of almost chief importance for both Crown and Church.

This was indeed a different strife from the battle between Catholicism and Protestantism, which filled the rest of the world: but they had points of contact with one another, inasmuch as the reform of doctrine had almost everywhere put an end to episcopal government. And the larger conflict was constantly exercising fresh influence on the state of the question in Scotland.

When the Catholic party was on the point of becoming master of the young King, the Protestant lords, as has been mentioned above, gained possession of his person by the Raid of Ruthven. They were the champions of Presbyterianism in the Church; but as they had been overthrown, and overthrown moreover in consequence of the support which the King received from an ambassador friendly to the Guises, that form of government could not survive their fall. In the Parliament of 1584, which obeyed the wishes of the ruling powers, enactments distinctly opposed to it were passed. By these the constitution of the Three Estates united in Parliament was ratified. They forbade any one to attack the Estates either collectively or singly, and therefore to attack the bishops. No meeting in which resolutions should be taken about temporal or even about spiritual affairs was to be held without the King's approval: no jurisdiction was to be exercised which was not acknowledged by the King and the Estates. The judicial power of the King over all subjects and in all causes, and therefore even in spiritual causes, was therein expressly confirmed.

At that time however Jesuits and Seminarists effected an entrance into Scotland as well as into other countries, and produced a great effect: Father Gordon especially, who belonged to one of the most distinguished families in the country, that of the Earls of Huntly, was exceedingly active; and for two months the King allowed his presence at court. Who could guarantee that the young prince would not be entirely carried away by this current when his chief counsellor, with whom the final decision mainly rested, belonged to the party of the Guises?^[297] A great reward was offered to him:

he was to be married to an archduchess; and at some future day, after the victory had been won, he was to be raised to the throne of England and Scotland. When we take into consideration that Melville, who set himself to oppose this influence, had spent ten years at Geneva and among the Huguenots, we see plainly how the struggles which distracted the continent threatened to invade Scotland as well.

Alliance with England.

In this danger Queen Elizabeth, who for her own sake did not venture to allow matters to go so far, resolved to interfere more actively in the affairs of Scotland than she had hitherto done. It is not perfectly clear what share her government had in the return of the exiled Protestant lords, whose attack had compelled King James to allow the conviction for high treason of his former minister and favourite, who fled to France in consequence. But their return was certainly welcome to her; and she advised the King not to alienate the great men of his kingdom, that is to say the returned lords, from his own side. In the instructions to her ambassador it is expressly said that he should aim at withholding the King from any alliance with the League in France, which was then growing powerful. She had just determined to make open war upon the King of Spain, who guided all the proceedings of the League; what could be more important for her than to retain the King of one division of the island on her own side? For that object she need not require him to support the Presbyterians; his point of view was the same which she contended for in the Netherlands and in France, and very closely akin to her own.

She had besides a great reward to offer him. Distasteful as it was to her to speak of her successor, she then determined to give the King the assurance that nothing should be done which was prejudicial to his claim, and she agreed to a secret acknowledgment of it.^[298] Her ambassador gave expression to these views in Scotland, and she herself spoke in similar terms to the Scottish ambassador in England.

The acceptance of these overtures by King James was the decisive event of his life. He was not so blind as not to see that any promise on the part of England, although not binding in regular form, afforded a kind of certainty

entirely different from all the assurances of the League, however comprehensive. The Queen moreover pledged herself to a subsidy that was very acceptable to the poverty of the Scots, while her protection served the King himself as a stay against his nobles, whom he dared not alienate, but on whom he could not allow himself to be dependent.

Thus in July 1586 an offensive and defensive alliance was concluded at Berwick between the King and Queen in order to protect the religion adopted in their dominions, which, in the language of the Prayer-book, they termed the 'Catholic,' and to repel, not only every invasion, but every attempt on the person of their majesties or their subjects, without regard to any ties of blood or relationship. The King promised the Queen to come to her assistance with all his forces in the event of any attack on the Northern counties, and not to allow his subjects to support any hostile movements which might take place in Ireland. Every word shows how absolutely and entirely in the events that were at hand he identifies the interests of England with his own.^[299]

It was of more especial advantage to the Queen that James entirely renounced the cause of his mother. He had exerted himself in her behalf, but his intercession never went beyond the limits of friendly representation. Mary's secret resignation of her claims in favour of Philip II had certainly not been unknown to him; he complained on one occasion that she threatened him on his throne and was as little attached to him as to the Queen of England. He loudly condemned her conspiracies against Elizabeth and gave utterance to the unfeeling remark that she might drain the cup which she had mixed for herself. At the trial of his mother he was content with obtaining an assurance from the English Parliament, which was of great importance to him, that his rights should not be impaired by her condemnation. The claims to the English throne which brought Mary to destruction rather served to strengthen her son, as it threw him altogether on the side of the English system.^[300]

On the approach of the Spanish armada James at once placed his power and his person at the disposal of the Queen. He assured her that he would behave not as a foreign prince, but as if he were her son and a citizen of her realm. With unusual decision he put himself at the head of the Protestant

nobles, and pursued the Catholic lords who gave ear to those Spanish overtures which he had resisted.

He now sought for a wife in a Protestant family. With the concurrence, if not at the instigation, of the English ministers, he solicited the hand of a daughter of Frederick II, King of Denmark, whom Elizabeth had praised for adhering to the general interests of the Protestant world. In this enterprise James was influenced by the consideration that if any other state opposed his claims on England, Denmark with its naval power could afford him substantial assistance. A touch of romance is imparted to his youth by the circumstance that he set out in person to fetch home his bride, who was detained in Norway by contrary winds, and who had been promised to him by her mother after her father's death. Their marriage was celebrated at Opslo (Nov. 23, 1589), but their homeward voyage was now attended with difficulty; James therefore took his wife over the snow-clad mountains and the Sound, back to her mother to Kronborg and Copenhagen, and spent a couple of months there. He had many conversations with the divines of the country, during which the idea of an union of both Protestant confessions was mooted. He also paid a visit to Tycho Brahe on the island of Hveen, which gave him indescribable pleasure: he believed that in his company he fathomed the marvels of the universe, and lauded the astronomer in spirited Latin verse as the friend of Urania, and as the master of the starry world.^[301] And a general influence was exercised in Europe both by his alliance with the house of Oldenburg, and the connexion which he formed through it with many of the most distinguished families in Germany. His consort was niece of the Elector of Saxony, sister-in-law of the Elector of Brandenburg, and granddaughter of the German Nestor, Ulric of Mecklenburg. Her sister had just married Henry Julius Duke of Brunswick; at whose marriage, which was celebrated at Cronberg, a company of North German princes met together, which seemed like one single family. But the days of this assemblage were not occupied with banquets and festivities alone. To the impression which was then made on James may be traced the despatch of an embassy to the Temporal Electors of the Empire, which he deputed soon after his return to invite them to mediate between England and Spain. If the King of Spain were disinclined for peace, he thought that a powerful alliance should be formed against him for the maintenance of religion.

For such an alliance as this, England and Scotland seemed to offer a centre. In an assemblage of the clergy, the King had once congratulated himself on living at a time when the light of the Gospel was shining; and in the same spirit his Chancellor gave Lord Burleigh to understand, that this British microcosm, severed from the rest of the world, but united internally by language, religion, and the friendship of its princes, could best oppose the bloodthirstiness of an anti-Christian League.^[302]

Renewal of the Episcopal Constitution in Scotland.

In Scotland, as well as elsewhere, the waves of the all-prevailing struggle kept raging.

Embassies went backwards and forwards between Spain and the powerful lords, Huntly, Errol and Angus, who kept alive Catholicism in the Highlands; and a plan was formed to assemble a force of Scots and Spaniards in Scotland, which should first overthrow the forces of that country, and thence advance into England.^[303] King James at least believed that he had gathered a definite statement to this effect from an examination of those who had been arrested. Philip the Second's design of getting the crown of France into his own family would have been powerfully seconded by this undertaking, by which it was designed to treat Great Britain in the same way. In the beginning of 1593 we find James at Aberdeen engaged on a campaign against the Highlands: the lesser nobles and the Protestants were on his side: the great earls were driven back into the most remote districts as far as Caithness, and the larger part of their domains fell into the hands of the King. But they were not yet entirely conquered, and the next Parliament showed that they had the greater part of the nobility on their side. No one wished to be too severe on them;^[304] even the legal advisers of the crown recommended the King not to commence a suit against them, in which they might probably be acquitted. It is impossible to describe the displeasure which affected Elizabeth on this turn of affairs, which she ascribed to the pusillanimous and negligent government of James. Did he not know, she asked, that the religion of the rebels was only a cloak for treason? Would he trust men who had so often betrayed him? He could never expect them to keep their plighted faith in the future, if their great

offences in the past were not even acknowledged: a lax government set all turbulent spirits in motion, and led to shipwreck. With this advice, and similar suggestions from the clergy, came the news of fresh commotion. Francis Stuart, who had been made Earl of Bothwell by James, but who after this had given great trouble by frequently changing sides, had now joined the Catholic lords; and a plan had been concerted between them to deal with James as they had formerly dealt with his mother, to make him prisoner, and to put the prince just born to him in his place. At last in September 1594 we find the King again in the field. The young Argyle, whom he sent before him as his lieutenant, was met by the earls in open fight, but they did not venture to encounter the King himself. He took Strathbogie, the splendid seat of the Earls of Huntly; Slaines, the principal castle of the Earls of Errol; some strongholds in Angus; Newton, a castle of the Gordons; and had most of them razed. Even in these districts he proceeded at last to erect a regular government in the name of the King. His superiority was so decided that the earls left Scotland in the spring of 1595; Father Gordon also followed them reluctantly, after he had once more said mass at Elgin. But even this was not such a defeat of the Catholic party as might have been followed by their annihilation. The earls felt the hardships of exile with double force from the loss of the consideration which they had enjoyed at home; and when they offered their submission to the King, and satisfaction to the Scottish Church, James and his Privy Council were quite ready to accede to their offer: for they thought that disunion with his most powerful lieges lessened the reputation of the crown, and might be very dangerous at some future time if the throne of England became vacant; as these important personages might then, like Coriolanus, side with the enemy.

The only question now was, how the Presbyterian Church would regard this. James had come to a general understanding with the Church, when they made common cause against the League. In the year 1592 an agreement was arrived at, by which the King gave a general recognition to Presbyterianism, although he still left some grave questions undecided; for instance, that of the rights of the Crown, and the General Assemblies. But in proportion as he now gave intimation of a retrograde tendency in favour of the Catholic lords, he roused the prejudices of the Protestants against himself. They told him that the lords had been condemned to death

according to the laws of God, and by the sentence of Parliament, the Great Assize of the kingdom: that the King had no right to show mercy in opposition to these. He had allowed their return into the country; the Church demanded the renewal of their exile: not till then would it be possible to deliberate upon the satisfaction offered by them. All the pulpits suddenly resounded with invectives against the King. The proud feeling of independent existence was roused in all its force in the breasts of the churchmen. Andrew Melville explicitly declared, that there were two kingdoms in Scotland, of which the Church formed one: in that kingdom the sovereign was in his turn a subject; those who had to govern this spiritual realm possessed a sufficient authorisation from God for the discharge of their functions. The Privy Council might be of opinion that the King must be served alike by Jews and heathens, Protestants and Catholics, and become powerful by their aid; but in wishing to retain both parties he would lose both. The King forced himself to ask support for his projects from Robert Bruce, at that time the most prominent of the preachers, who answered him, that he might make his choice, but that he could not have both the Earl of Huntly and Robert Bruce for his friends at the same time.

[305]

By dealing gently with the Catholic lords the King had intended not only to win them over to his side, but also in prospect of the English succession, which was constantly before his eyes, to give the English Catholics a proof of the moderation of his intentions. Even in Scotland he wished not to appear the sovereign of the Presbyterian party alone. It was absolutely repugnant to him to adopt the ideas of the Church entirely as his own. But the leaders of the Church were bent on shutting him within a narrow circle in accordance with their own ideas, from which there should be no escape. In his clemency to Catholic rebels they saw a leaning to that Catholicism which fought against God and threatened themselves with destruction. The efforts which had been necessary to overpower these adversaries, and the obligations under which they had laid the King himself during the struggle, inspired them with resolution to bind him to their system by every means in their power.

But as the King also adhered to his own views, a conflict now broke out between them which holds a very important place in the history of the State as well as of the Church of Scotland.

The King ordered the Commissioners of the Church, who made demands so distasteful to him, to leave the capital. The preachers then turned to the people. From the pulpit Robert Bruce set before an already excited congregation the danger into which the ecclesiastical commonwealth had fallen owing to the return of the Catholic lords and the indulgence vouchsafed to them; and invited those present to pledge themselves by holding up their hands to the defence of their religion on its present footing. They not only gave him their assent, but went so far as to make a tumultuous rush for the council-house in which the King was sitting with some members of the Privy Council and the Lords of Session. With difficulty was the tumult so far quieted as to allow James to retire to Holyrood.^[306] Here a demand was laid before him to remove his councillors, to allow the commissioners to resume their functions, and to banish the lords again from the country. It was intended that religious profession should supply a rule for the guidance of the State.

But in political conflicts nothing is more dangerous than to overstep the law by any act of violence. It was the violence attempted by the leaders of the Presbyterians against the King, their attack on the rights of his crown, that procured him the means of resistance. He betook himself with his court to Linlithgow and there collected the nobles, who for the most part stood by him, the borderers, whose leaders the Humes and Kerrs took up arms for him, and bodies of Highlanders, a force to which the magistrates succumbed, not wishing their city to be destroyed; so that even the ministers thought it advisable to leave. On New-Year's Day 1597 James made his entry with a warlike retinue into Edinburgh, where a convention of the Estates met and passed decisive resolutions in his favour. Both the provost and baillies of the town were obliged to take a new oath of fealty by which they bound themselves to suffer no insults to the King and his councillors from the pulpit: and it was resolved that the citizens should henceforth submit the magistrates of their choice to the King for his approval. The right of deposing the ministers was assigned to the King, who was acknowledged sole judge of all offences, even of those committed in sermons and public worship.^[307]

The King had now the Temporal Estates on his side; for however popular the footing on which the Presbyterian Church might be constituted, no one wished to give it uncontrolled sway. King James was able to form plans for

transforming its constitution in such a manner as to make it consistent with the authority of the crown.

A series of questions which he dedicated to the consideration of the public was well calculated to further his end. He asked whether the external regimen of the Church might not be controlled both by King and clergy, and the legislative power be vested in them in common. Might not the King, as a religious and pious magistrate, have the power of summoning General Assemblies? Might he not annul unjust sentences of excommunication? Might he not interfere if the clergy neglected their duties, or if the bounds of the two jurisdictions became doubtful.

At the next assembly of the Church at Perth (Feb. 1597) the current set in the opposite direction. 'Mine eyes,' so says one of the most zealous adherents of the Church, 'witnessed a new sight, preachers going into the King's palace sometimes by night, sometimes in the morning,—mine ears heard new sounds.' The greatest pains had been taken to secure the presence of a number of ministers from the northern provinces, who were still more anxious about the spread of their doctrines than about controversies touching the constitution of the Church; and who rather reproached the clergy of the southern counties with having taken on themselves the government of the Church. But even among the latter the King, who spared neither threats nor flatteries, won adherents. Moreover an opinion gained ground that concessions must be made to him, as far as conscience allowed, in order not to alienate him entirely from the Church or drive him to take the opposite side. The answers to his questions contained admissions. The right of taking the initiative in everything relating to the external government of the Church was conceded to him, together with a share in the nomination of ministers in the principal towns; properly speaking the patronage of the Church in these towns was made over to him. The Church itself made a most important concession in renouncing its right of using the pulpit to attack the crown. Henceforward no one was to venture to impugn the measures of the King, until an officer of the Church had made a remonstrance to him on the subject. And the same ideas prevailed also in the subsequent assemblies at Dundee and Perth. The former of these conceded to the King a share in all the business which the Church took in hand; it allowed him to stay the proceedings of the Presbyteries when they ran counter to the royal jurisdiction or to recognised rights. In Dundee the

excommunicated lords were admitted to a reconciliation and acknowledged as true vassals of the King, after making a declaration by which they acknowledged the Scottish to be the true Church; although the stricter party would not even then forgive them. But the point of chief importance was that the King succeeded in getting a Commission formed to co-operate with him in maintaining peace and obedience in the kingdom. Invested with full powers by the Church but dependent on the King, this Commission procured him a preponderating influence in all ecclesiastical affairs. For the most part it consisted of men of moderate views.

There is a contemporary narrative of the decay of the Church in Scotland which begins from this date. For here, it was thought, ended the period during which the word revealed from Sinai and Zion to the apostles and prophets was the only rule of doctrine and Church discipline without any mixture of Babylon or the City of the Seven Hills, or of policy of man's devising; when the Church was 'Beautiful as the morning, fair as the moon, clear as the sun, terrible as an army with banners.'

James, who regarded all this as due merely to the opposition of enemies, went on his way without bestowing further consideration on the depth, strength, and inward significance of this spirit which was destined once more to agitate the world. He again took up in serious earnest the design of erecting a Protestant episcopacy which had been entertained by Mar and Morton. Not only was this necessary for the constitution but for the sake of the clergy also: as George Gladstaine explained before a large assembly at Dundee, it was desirable that they should take part in the exercise of the legislative power. A small majority, but still a majority, in this assembly decided in favour of the proposal. The King assured them that he wished neither for a Papistical nor for an English prelacy; he wished only that the best clergy should take cognizance of the affairs of the Church in the council of the nation. In order to unite both interests he desired that the General Assembly should propose to the King six candidates for each vacancy and should have the right of giving instructions to the King's nominee for his Parliamentary action, and of demanding an account from him of his execution of the same. The King esteemed it a great triumph when in the Parliament of 1600 he was able actually to introduce two bishops whom he had nominated with the concurrence of a Commission of the Synods.

It appears a general result worth noticing that he had again brought both parties in the country into subjection to the crown, the one however by open battle, the other by compliance which had somewhat the air of inclination towards it.

Preparations for the Succession to the English Throne.

That the former of these parties was properly speaking Protestant, and the latter in its sentiment Catholic, created a certain feeling of surprise. Queen Elizabeth, who had been attacked and insulted by the Presbyterians sometimes even from the pulpit, could not find fault with the crown for liberating itself from the ascendancy of the new Church as it had done from that of the old: on the contrary she had expressly approved of this policy; but she warned the King not to allow himself to be so blinded by personal preference as again to put confidence in any traitor, and not to separate himself from the flock which must fight for him if he wished to stand. In the case of Scotland, as well as in the case of her own dominions, she always kept before her eyes the contrast between the Catholic and the Protestant principle, in comparison with which all other differences appeared to her subordinate.

In his own views less rigid and consistent, King James had on the contrary even made advances to the Papacy. He at one time found it advisable to enter into relations with Pope Clement VIII, whose behaviour about the absolution of Henry IV showed that he did not at least belong to the party of Spain and the zealots. A letter to the Pope was forwarded from the Scottish cabinet addressing him as Holy Father, with the signature of the King as his obedient son. A Scot, by profession a Catholic, afterwards made the statement that, at the time when Pope Clement was encamped before Ferrara, he had been sent to him in order to seek his friendship, and to promise him religious liberty for the Catholics if King James should ascend the English throne. ^[308]

According to the account of King James himself Pope Clement invited him to return to the Catholic faith; to whom he made answer, that the prevailing

controversies might be again submitted to a general council; and that to the decision of such a council he would submit himself unconditionally. Clement replied that he need not speak of a council, for at Rome no one would hear of it; that the King had better remain as he was. These transactions are still enveloped in doubt and obscurity: the announcements of pretended agents cannot be depended on. There were often men who did not fully share in the secret and who in consequence far outran their commission.^[309] But it cannot be denied that there were attempts at an approximation. Among the English refugees after Mary's death two parties had arisen, one of which supported the Spanish claims, while the other was quite ready to acknowledge King James supposing that some concessions were made. Every day men who were inclined to Catholicism were seen rising into favour at the Scottish court. It was remarked that the Secretary of State, the Lord Justice, and the tutors of the royal children, were Catholics. Queen Anne of Scotland does not deny that many attempts were made to bring her back to the old religion: though she assures us that she did not hearken to them, it is notwithstanding undeniable that she felt a strong impulse in that direction. She received relics which were sent her from Rome, probably from superstition rather than from reverence for the saints, but at all events she received them. Her intimate friend, the Countess of Huntly, who often shared the same bed with the Queen, fostered these views in her. King James remained unaffected by them. He attended sermons three times a week; he was riveted to Protestantism by convictions which rest on learning: but how did it come to pass that he allowed these deviations from Protestantism about him? Was it from weakness and connivance, or was it from policy?

With the English Catholics also he established a connexion. Offers and conditions with a view to his succession were put before him; and English Catholics presented themselves at his court in order to proceed with the business or to maintain the connexion.

All this threw Queen Elizabeth into a state of great excitement. It was insufferable to her that any one should even speak of her death, or, as she said, celebrate her funeral beforehand. But now when James without her knowledge formed relations with her subjects, she regarded his conduct as an affront. Through her ambassador in Scotland she had an English agent named Ashfield arrested, and gained possession of his papers. Great

irritation on both sides ensued, of which the above-mentioned correspondence between the King and Queen gives evidence. In angry letters the latter complained of the disparaging expressions which James had let fall in his Parliament. In respectful language but with unusual emphasis the King complained that the accusations of an adventurer charging him with a plot against the life of the Queen were not repressed in England with proper severity. A period followed during which James expected nothing but further acts of hostility from Elizabeth's ministers. He pretended to know that the claims to the throne advanced by his cousin the Lady Arabella, daughter of Charles Darnley, the younger brother of his father Henry, who had the advantage of not being a foreigner, supplied them with a motive for their proceedings. He even thought it possible that a book published by Parsons under the name of Doleman, which maintained the claims of Isabella daughter of King Philip, was inspired by the English ministers themselves in order to throw his rights into the background. He ascribed to them the intention of coming to an agreement with the Spaniards to his disadvantage, only in order to maintain their own power.

So far the dislikes of King James and the Earl of Essex coincided. Although a formal understanding between them cannot be proved, they were nevertheless allies up to the point of regarding the Queen's ministers as their enemies.

Very significant were the instructions which James gave to an embassy which he despatched to England after the downfall of the Earl. His ambassadors were directed to ascertain whether the popular discontent went so far as to contemplate the overthrow of the Queen and her ministers, in which case they were to take care that the people 'invoked no other saint,' i.e. sought protection and support from no one else but him. Above all he wished to be assured with regard to the capital that it would acknowledge his right: he wished to form ties with the leading men in the civic and learned corporations; the greater and lesser nobles who inclined to him were to have early information what to do in certain contingencies, and to keep themselves under arms. As he had always thought it possible that he might require naval assistance from Denmark, so now he instigated a sort of free confederation of the magnates and barons of Scotland: they were to prepare their military retainers in order to enforce his rights. Not that he had formed any design against the Queen, but he believed that after her death he must

give battle to her ministers in order to gain the crown, and he appeared determined not to decline the contest.

In reality however this mode of action was foreign to his nature. How often he had said that a man must let fruit ripen before plucking it: and a foreign prince, to whose sayings he attached great value, had advised him to proceed by the safest path. This was the Grand Duke Ferdinand of Tuscany, who then played a certain part in Europe, as he had set on foot the alliance between Henry IV and the Pope in opposition to Spain: Mary de' Medici, Queen of France, was his niece. With the house of Stuart also he stood on the footing of a relation: his consort, like the mother of King James, was a scion of the house of Lorraine, and a marriage at some future day between the King's eldest son and the daughter of the Grand Duke was already talked of. This relationship, and Ferdinand's reputation for great political far-sightedness and prudence, caused his advice to exercise great influence on James's decisions, as James himself tells us. So long as victory wavered between Essex and his opponents, or, as he conceived, between the existing government and the people, James did not declare himself: when the issue was decided he gave his policy a different direction and made advances to the ruling ministers, whom up to this time he had regarded as his enemies.

They were quite ready and willing to meet him. Robert Cecil asserted later that he had by this means best provided for the safety and repose of the Queen, for that by an alliance between the government and the heir to the crown the jealousy of the Queen was best appeased: yet still he observed the closest secrecy with regard to it. It is known that he dismissed a secretary because he feared that he might see through the scheme and then betray it. He thought that he was justified in keeping the Queen in ignorance of a connexion that could only be distasteful to her at her advanced age, which had deepened the suspicion natural to her disposition, although at the same time this connexion was indispensable for her repose. These ministers were tolerably independent in their general conduct of affairs. They had embarked on other negotiations also without the knowledge of the Queen; they thought such conduct quite permissible, if it conduced to the advantage of England. And was not Robert Cecil moreover bound to seize an opportunity of calming the prejudices of the King of Scotland against himself and his house, which dated from his father's participation in the fate of Queen Mary? This was the only way of enabling

him to prolong his authority beyond the death of his mistress, with which it would otherwise have expired.

The letters are extant which were exchanged in these secret transactions between Henry Howard, whom the Secretary of State employed as his instrument, and a minister of King James. They are not so instructive as might have been expected; for the Asiatic style of Howard, which serves him as a mask, throws a veil even over much which we should like to know. But they now and then open a view into the movements of parties, especially in reference to the opposition of Cecil and his friends to Raleigh and Cobham, which towards the close of the Queen's reign filled the court with suppressed uneasiness.

The intercourse which had been opened certainly had the effect of once more putting England and Scotland on a friendly footing. One of his most trusty councillors, Ludovic Earl of Lennox, son of that Esmé Stuart who at one time had stood so high in the King's esteem, was sent by James on a mission to the Queen, in order to convince her of his continued attachment;^[310] and this ambassador in fact found favour with her. James declared himself ready to send his Highlanders to the assistance of the Queen in Ireland, and to enter as a third party into the alliance with France against Spain, if it were brought about. He did not hesitate to give her information of the advances which had been made by the other side, even by the Roman court. Among these he mentioned a mission of James Lindsay for the purpose of bringing him to promise toleration to the Catholics. It may be doubted whether it is altogether true, as he affirms, that he declined the proposal: but the Roman records attest that Lindsay in fact could get nothing from him but words.^[311]

It is enough to remark that on the whole the views of James were again brought into harmony with those of the Queen: but that does not mean that he had also broken off all relations with the other side. It would have been extremely dangerous for him if Pope Clement had pronounced against him the excommunication which was suspended over Elizabeth, and he was very grateful to the Pope for not going so far. And if he would not agree to treat the Catholics with genuine toleration, yet without doubt he let them hope that he would not persecute those who remained quiet.^[312] It was

probably not disagreeable to him if they looked for more. He was of opinion that he ought to have two strings to his bow.

He had now formed connexions with all the leading men in England of whatever belief. There was no family in which he had not won over one member to the support of his cause.^[313]

Accession to the Throne.

Thus on different sides everything had been carefully prepared beforehand when the Queen died. Although it may be doubtful whether she had in so many words declared that James should be her successor, yet it is historically certain that she had for a long time consented to this arrangement. The people had not yet so entirely conquered all hesitation on the subject.

At the moment of the Queen's decease the capital fell into a state of general commotion. Perhaps 40,000 decided Catholics might be counted in London, who had considered the government of the Queen an unauthorised usurpation. Were they now to submit themselves to a King who like her was a schismatic? Or were there grounds for entertaining the hope held out to them that the new prince would grant them freedom in the exercise of their religion. People pretended to find Jesuits in their ranks who were accused of stimulating the excitement of their feelings: and the government thought it necessary to arrest or keep an eye upon a number of men who were regarded as leaders of the Catholic party.

The trained bands of the town were called out to meet the danger, and they consisted entirely of Protestants. But they also were agitated by uncertainty about the intentions of their new sovereign. What the Catholics wished and demanded, the free exercise of their religion, the Protestants just as strongly held to be inadmissible and dangerous.

Meanwhile the Privy Council had met at Richmond, where they were joined by the lords who were in town. Some points of great importance were mooted—whether the Privy Council had still any authority, even after the death of the sovereign from whom their commission proceeded—whether

this authority was not entirely transferred to the lords as the hereditary councillors of the crown. The question was probably raised whether conditions should not be prescribed beforehand to the King of Scotland with regard to his government. But the prevailing ferment did not allow time for the discussion of these questions. On the same day (March 24) the heralds proclaimed James king under the combined titles of King of England, Scotland, France, and Ireland.

It could not be perceived that the pomp of this proclamation produced any extraordinary impression. No mourning for the death of the Queen was exhibited; still less joy at the accession of James: all other interests were absorbed by the anticipation of coming events. The tone of feeling first became decided some days afterwards, when a declaration from the new King was published, wherein he promised the maintenance of religion on its present footing, and the exclusion of every other form of it.^[314] On this the Protestants were quieted; the Catholics shewed themselves discouraged and exasperated. Yet the heads of the party who were held in custody were released on bail, and assured by the King's agents, that if even they were not permitted to worship in public, they should not have to fear either compulsion or persecution.

No movement was made against the acknowledgment of King James, although this was contrary to the old arrangements recognised by Parliament. But no one was forthcoming who could have enforced rights based upon these. The aged Hertford came forward to sign the proclamation of the lords both for himself, and in the name of his son who represented the Suffolks. The Lady Arabella made a declaration that she desired no other position than that which the present King might allow her. The Privy Council besought King James,—according to its own expression 'falling at his feet with deep humility,'—to come and breathe new life into the kingdom of England that had been bereaved of its head.

We must not stay to discuss incidental questions, e.g. how the first news reached James, and how he received it. He remained quiet until he had obtained sure intelligence, and then without delay prepared to take possession of the throne, to which his mother's ambition and his own had for so many years been directed. Once more he addressed the people of Edinburgh assembled in the great church after the sermon. He would not

admit the statement which had occurred in the discourse, that Scotland would mourn for his departure; for he was going, as he said, only from one part of the island to the other: from Edinburgh it was hardly further to London than to Inverness. He intended to return often; to remove pernicious abuses in both countries; to provide for peace and prosperity; to unite the two countries to one another. One of them had wealth, the other had a superabundance of men: the one country could help the other. He added in conclusion that he had expected to need their weapons: that he now required only their hearts.

What filled his soul with pride and the consciousness of a high calling, was the thought that he would now carry into effect what the Romans, and in later times the Anglo-Saxon and Plantagenet kings, and last of all the Tudors, had sought to achieve by force of arms or by policy, but ever in vain—the union of the whole island under one rule, like that which native legendary lore ascribed to the mythical Arthur. When he came to Berwick, around which town the two nations had engaged in so many bloody frays, he gave utterance, so it is said, to his intention of being King not of the one or of the other country but of both united, and of assuming the name of King of Great Britain.^[315]

At York he met his predecessor's Secretary of State, Robert Cecil. As no one knew the relations into which he had already entered with Cecil, every one was astonished at the kind reception which he accorded to him. That did not prevent him however from being just to the other side as well. He greeted the youthful Essex as the son of the most renowned cavalier whom the realm of England had possessed; he appointed him to be the companion of the Prince of Wales, and made him carry the bared sword before him at his entrance into some of the towns. Southampton and Neville were received into favour; the Earl of Westmoreland was placed in the Privy Council. He gave it to be understood that he would again raise to their former station the great men of the kingdom, who up to this time, as he said, had not been treated according to their merits.

In order to begin the work of union at once in the highest place, he added some Scottish members to the Privy Council, and placed Scots side by side with the Secretary of State and Treasurer of England. The Keeper of the Privy Seal was raised to the Lord Chancellorship, but obliged to resign the

post of Master of the Rolls, which fell to the share of a Scot, who however contented himself with drawing the income without discharging the duties of the office. The main feature of the condition of affairs which now grew up was the understanding between Cecil and those Scots who were most influential with the King. These were the leaders of the two parties, one of which hitherto had rather inclined to Spain and the other to France, Lennox and Mar, and especially the most active, perhaps the cleverest man of all, George Hume. These were consulted on affairs of importance. The Scots had the advantage, to which custom almost gave them a right, of seeing the King as often as they wished: but Cecil and his English friends, in consequence of their knowledge and practice in business, had the chief management of affairs in their hands.

The times were gloomy owing to the prevalence of an infectious disease; still extraordinary numbers of the English nobility thronged to London, in order to see the King, who took up his residence at Greenwich. It is computed that there were 10,000 people at court. James felt infinitely happy amidst the homage which clergy and laity vied with one another in rendering him.

NOTES:

[296] M'Crie, *Life of Andrew Melville*, ch. iii.

[297] In a memoir in the Barberini Library, 'De praesenti Scotiae statu in iis quae ad religionem spectant brevissima narratio,' it is said, 'supra hominum opinionem auctus est Catholicorum numerus.'

[298] Abstract of Randolph's instructions, from his own pen (Strype, *Annals* iii. i. 442): 'Nothing shall be done prejudicial to the King's title, but the same to pass by private assurance from Her Majesty to the King.'

[299] *Tractatus foederis et arctioris amicitiae*. Rymer vi. 4. Randolph says, 'Three were the causes (of the alliance), viz. the noblemen, the money, and the assurance.' Strype iii. i. 568.

[300] Courcelles, in Tytler vii. 333.

[301] Slangen, *Geschichte Christians* iv. i. 117. Chyträus, *Saxonia* 864, 870. Cp. Melvil, *Memoires*, 175.

[302] Thirlstane to Burleigh, Aug. 13, 1590. In Tytler ix. 49.

[303] Lord Burleigh's speech in the House of Lords, Strype, *Annals* iv. 192. According to the 'Narratio de rebus Scoticis,' the Scottish magnates were the first movers.

[304] James to Elizabeth. 'The sayde rebellis hadd so travelled by indirect means with everie nobleman, as quhen I feld thaier myndis—thay plainlie—refusid to yeild to any forfeiture.' 19 Sept. 1593. In Bruce, *Letters of Queen Elizabeth and King James VI of Scotland*, 87.

[305] Calderwood, v. 440. 'As to the wisdom of your counsell, which I call devilish and pernicious, it is this: that yee must be served with all sorts of men to come to your purpose and grandour Jew and Gentile, Papist and Protestant. And becaus the ministers and protestants in Scotland are over strong and controll the king they must be weakenned and brought low.'

[306] The tumult in Edinburgh, in Calderwood v. 511.

[307] In James Melville's *Diary* (p. 383) an act is mentioned with the date of January 1597, 'discharging the ministers stipends that wald not subscryve a Band acknowlaging the king to be only judge in matters of treassone or uther civill and criminall causses committed be preatching, prayer or what way so ever—Thair was keipit a frequent convention of esteates wharin war maid manie strange and seveire actes.'

[308] So Crichton informs the Venetian secretary, Scaramelli, July 10, 1603.

[309] With regard to the offers brought by Ogilvy to Spain this has been undeniably proved on the evidence of another Jesuit. Winwood i.

[310] He expressed to her an 'humble desire that I would banish from mynde any evill opinion or dought of your sincerity to me.' (Dec. 2, 1601, in Bruce.)

[311] 'Breve relazione di quanto si è trattato tra S. Sta ed il re d'Inghilterra.' MS. Rom. From no other quarter moreover is any direct proof adduced of a promise of toleration properly so called.

[312] The abbot of Kinloss told the Venetian secretary, 'che il re si trova obligatissimo col pontefice, chiamandolo veramente Clemente, perche per istanze che sono state più volte fatte a S. Be^{ne} da principi, non ha voluto mai dishonorarlo con divenire ad escommunicatione di sua persona, e che perciò S. M. desirera di corresponderle, aggiungendo che i catolici mentre staranno quieti et honestamente occulti non saranno cercati nè perseguitati.' (Scaramelli, 8 Maggio, 1603.)

[313] Scaramelli, from the lips of one of the King's agents, March 27.

[314] Scaramelli (April 12) alludes to a declaration from the King, 'Per la conservatione della religione in che vive essa citta e regno. Questo aviso,' he proceeds, 'ha reso sicuri gli heretici.' In Halliwell, Letters of the Kings of England ii. 97, there is a letter from the King to the same effect addressed to his agent Hambleton, the contents of which were probably divulged at the moment.

[315] Scaramelli, April 17, 'Dicendosi che lasciando i nomi di uno e l'altro regno habbia qualche intentione di chiamarsi re della Gran Bretagna per abbracciar con un solo nome ad imitatione di quel antico e famoso re Arturo tutto quello che gira il spatio di 1700 miglia unito.'

CHAPTER II.

FIRST MEASURES OF THE NEW REIGN.

How often in former times, when England was in the midst of great and glorious undertakings, had the Scots, who feared lest they themselves should be subjected to the power of their neighbours, taken the side of the enemy and obstructed the victory! Even the last wars might have taken quite a different course had Scotland made common cause with Spain. It was this connexion between the two kingdoms which made union with Scotland a political necessity for England. Raleigh describes this union under the present circumstances as no less fortunate for England than the blending of the Red and White Rose had been, as the most advantageous of all the means of growth which were open to her.

The kingdom of Scotland, like that of England, had extended the supremacy of the Teutonic over the Keltic races, for these two elements formed the main constituents of both kingdoms. The German in conflict with the Keltic race had developed its character and energy.

The Orkney Islands, to which Scotland asserted its claim even against the kindred race of the Norwegians, and the Hebrides, which were reputed the home of warriors of extraordinary bravery, were now united in one kingdom with the Channel Islands, which still remained in the possession of England from the days of the old connexion between the Normans of Normandy and that country. The Gael of Scotland, the Gwythel of Erin—and the Irish still appear in most records as savages—the Cymry of Wales and their Cornish kinsmen, who still spoke their old language, now appeared as subjects of the same sceptre. A.D. 1603. The accession of James to the throne exercised an immediate influence on Ireland. Tyrone, the O'Neil, threw aside the agreement which the Queen's ministers had concluded with him against their will, thinking that he no longer required it, since the right heir had ascended the throne. The people seemed willing to espouse the cause of the new King as that of the native head of their race, and a genealogy was concocted in which his descent was traced to the old

Milesian kings. The whole circuit of the British Isles was united under the name of Stuart. As a hundred years before the last great province of France had been gradually united to the French crown, and even within human memory Portugal, like the other provinces of the Spanish peninsula, had been added to the crown of Spain, so now a united Britain was formed side by side with these two great powers. James himself noticed the resemblance, and a proud feeling of self-confidence filled his breast, when he reflected that the change had been made without the help of arms, as if by the force of the internal necessity of things. Just as formerly the claim to universal supremacy together with the spread of the Church had greatly increased the importance of the Papacy, so now the claim to hereditary right possessed by James seemed to him of immeasurable value, for by it he had won so great and coveted a prize: it appeared to him the expression of the will of God.

Surprise might be felt that France, which for several centuries had exercised a ruling influence on Scotland, and which in this union of the two crowns might have seen a disadvantage if not a danger for herself, allowed it to take place without obstruction. This conduct may be explained principally by the violent opposition which existed between Henry IV and Spain even after the peace of Vervins, and by the hostile influence incessantly exercised by that power upon the internal relations of his kingdom, in the pacification of which he was still engaged. It would have been dangerous for Henry himself to revive the hatred between England and Scotland, which could only have redounded to the advantage of his foes.

James I however did not intend, and could not be expected to occupy exactly the same position as his predecessor. If he had adopted her views, yet this was a compliance exacted from him by a regard to the succession: he had felt that it was wrung from him. It is intelligible, and he did not attempt to disguise the fact, that he felt the death of Elizabeth to be in some sense his emancipation. He avoided appearing at her obsequies; every word showed that he did not love to recall her memory. In London people thought to please him by getting rid of the likenesses of the glorious Queen, and replacing them by those of his mother. The first matter which was submitted to him whilst still in Scotland, and which engaged him on the journey and immediately after his arrival, was the question whether he should proceed with the war which Elizabeth had planned; whether in fact he should

continue her general policy. Henry IV sent without delay one of his most distinguished statesmen, who was moreover a Protestant, Maximilian de Bethune, Duke of Sully, as Ambassador Extraordinary; and Sully did not neglect to explain to the King the plan of an alliance between the States of Europe under the lead of France, that should be able to cope with the Austro-Spanish power, a plan which Sully had entertained all his life. James gave the ambassador, as he wished, a private audience in a retired chamber of his palace at Greenwich, asked many questions, and listened with attention, for he loved far-reaching schemes; but he was far from intending to embark on them. As he had reached the throne without arms, so he wished to maintain himself there by peaceful means.^[316] It was natural that the Queen, who had been excommunicated by the Pope, and had carried on a war for life and death with the Spanish crown, should have intended to renew the struggle with all her might: such designs suited her personal position; but his own was different. Deeply penetrated by the idea of legitimacy, he even hesitated whether he should support the Netherlanders, who after all, in his judgment, were only rebels. To the remark that it would be a loss for England herself if the taking of Ostend, then besieged by the Spaniards, were not prevented, he replied by asking unconcernedly whether this place had not belonged in former times to the Spanish crown, and whether the English trade had not flourished there for all that. In these first moments of his reign however the difficulties of his government were already brought into view, together with the opposition between different tendencies latent in it. If he was unwilling to continue the policy of his predecessor, yet he could not absolutely renounce it: there were pledges which he could not break, interests which he could not neglect. In order to meet his objections the argument employed by Elizabeth was adduced, that she supported the Provinces only because the agreements, in virtue of which they had submitted themselves to the house of Burgundy, had been first broken by the other side.^[317] The King's tone of mind was such that this argument may well have had an effect upon him. At last he consented to bestow further assistance, although only indirectly. He conceded that one half of the sum which Henry IV paid to the States General should be subtracted from the demands which England had against France, and should be employed by the Netherlanders in recruiting in the English dominions. By this expedient he intended to satisfy the terms of the old alliance

between England and the Provinces, and yet not be prevented from coming to an agreement with Spain.

The ambassador of the Archduke and the Infanta, the Duke of Aremberg, was already in the country, but he was afflicted with gout and somewhat averse to transact business in writing; and nothing more than general assurances of friendship were exchanged. In October 1603 one of the Spanish envoys, Don Juan de Tassis, Count of Mediana, made his appearance. Astonishment was created when, on his entrance into the hall where the assembled Court awaited him, he advanced into the middle of the room before he uncovered his head. He spoke Spanish; the King answered in English: an interpreter was required between them, although A.D. 1604. they were both masters of French. But however imperfect their communications were, they yet came to an understanding. The King and the ambassador agreed in holding that all grounds for hostility between Spain and England had disappeared with the death of Queen Elizabeth.

After a fresh and long delay—for the Spaniards would have preferred to transfer the conference to some town on the continent—negotiations were first seriously undertaken in May 1604, and then after all in England. The affairs of the Netherlands formed the principal subject of discussion.

The King of Spain demanded that the King of England should abstain from assisting his rebellious subjects. The English explained the reason why the United Netherlands were not considered rebels. The Spaniards demanded that the fortresses at least, which the Provinces had formerly surrendered to the Queen as a security for the repayment of the loan made by her, should be restored to their lawful owner the King, who would not fail to repay the money advanced. King James answered that he was tied by the pledges of the Queen, and that he must maintain his word and honour.^[318] The Spaniards on this started the proposal that the English on their part should break off their traffic with the United Provinces. The English replied that this would be most injurious to themselves. In these transactions James was mainly guided by the consideration that, if he decidedly threw off the Provinces, he would be giving them over into the hands of France, to the most serious injury of England, and without advantage to Spain. On this account principally he thought that he was obliged to maintain his previous relations with them. The English found a very characteristic reason for

peace with Spain in the wish to restore their old commercial connexion with that country. The Spaniards were ready to make this concession, but only within the ancient limits, from which the trade with both the Indies was excluded. They argued that their government did not allow this even to all its own subjects; how then could foreigners be admitted to a share in it? Cecil on this remarked that England by its insular position was adapted for trading with the whole world, and could not possibly allow these regions to be closed against her; that she already had relations with countries on which no Spaniard had ever set foot, and that a wide field for further discoveries was still open. At no price would he allow his countrymen to be again excluded from America or the East Indies, to which countries they had just begun to extend their voyages.^[319]

The peace which was at length brought about is remarkable for its indefiniteness. The English promised that they would not support the rebellious subjects and enemies of the King of Spain; and it was arranged that an unrestricted trade should again be opened with all countries, with which it had been carried on before the war. At the first glance this looked as if any further alliance with Holland, as well as the navigation to the Indies, was rendered impossible. The Venetian envoy once spoke with King James on the subject, who answered that it would soon be shown that this opinion was erroneous. In fact, as soon as the first ships returned from the East Indies, preparations were at once made for a second expedition. The States General were not interfered with in the enlistment which they had been allowed to begin; for it was maintained that they could not be included under the term rebellious subjects. The only difference made was that similar leave to enlist in the English dominions was granted to the Spaniards also, who for that purpose resorted especially to Ireland. In this way the peace exactly expressed the relations into which England was thrown by the change of government. James, who for his own part would have wished simply to renew the friendly relations which had formerly existed, found himself compelled to stipulate for exceptions owing to the form which the interests of England had now assumed. The Spaniards allowed them, because even on these terms the termination of the war was of the greatest advantage to them, and they did not surrender the hope of changing the peace into a full alliance later on, although their proposals to that effect were in the first instance declined.

And notwithstanding any ambiguity which might arise as to the scope of the treaty with regard to individual questions, the conclusion of peace was in itself of great importance: it implied a change of policy which created the greatest stir. It affected the United Provinces and filled them with anxiety, for in their judgment not only was the action of Spain against them no longer fettered, but the Spanish ambassador in England was sure in time by means of gold and intrigues to acquire an influence which must be fatal to them.

The King thought that he had achieved a great success. His intention was to be as fully acknowledged by the Catholic powers as by the Protestant; to occupy a neutral position between those who were favourable, and those who were opposed, to Spain, and to live in peace with all, without however losing sight of the interests of England. Men could not be blind to the correspondence between this policy and the general tendency of these times. From the epoch of the Absolution of Henry IV and the overthrow of the League, the separation between religious and political interests had begun. Men on either side no longer regarded the ascendancy of Spain as a support or as a danger to religion. The Spanish government itself under the guidance of the Duke of Lerma acquired a peaceful character. Thus King James was made happy by seeing embassies from the Catholic states arrive in England. Not until he stood between the two parties did he feel himself to be in truth a king, and to surpass his predecessor.

This sovereign assumed a similar attitude towards the Catholics of England as well. He could not vouchsafe to them a real toleration; but a few months after his arrival in England he actually carried out what he had already promised, an alleviation of those burdens which weighed most heavily on them. The most grievous was the fine collected every month from those who refused to take part in the Protestant service. James declared to an assemblage of leading Catholics, that he would not enforce this fine so long as they behaved quietly, and did not show contempt towards himself and the State. The Catholics reminded him that their absence from the service of the Church might be interpreted as contempt. He assured them that he would not regard it in this light. The fines, which in late years had amounted to more than £10,000, decreased in the year 1603 to £300, and in 1604 to £200. The King, like his predecessor, would not tolerate Jesuits and Seminarists, but he was content with their banishment; it would have been

contrary to his temper to have had them executed. He sought to avoid all the consequences that must have been provoked by the hostility of this element which was still so powerful in the world at large and among his own subjects.

But even within the domain of Protestantism he was now encountered by a similar problem.

The investigation of the influence which the Scots and English have exercised on one another in the last few centuries would be a task of essential importance for the history of intellectual life; for in the development of the prevailing spirit of the nation the Scots as well as the English have had a large share. Even under Elizabeth these relations had begun to exist. The growth of English Puritanism especially, which had already given the Queen much trouble, must be regarded as but the dissemination of the forms and ideas that had arisen in the Church of Scotland. But how much stronger must the action of this cause have become now that a Scottish king had ascended the English throne! The union between two populations which so nearly resembled one another in their original composition, and in the direction taken by their religious development, could not be a merely territorial union: it must lead to the closest relation between the spirit of the two peoples.

It was natural from the state of the case, that on the accession of a Scottish king in England the English clergy who leaned to the Scottish system should embrace the hope of being emancipated to some extent from that strict subordination to their bishops which they endured with reluctance. On the first arrival of James, whilst he was still on his way to London, they laid before him an address signed by eight hundred of the clergy, in which they besought him, in accordance with God's word, to lighten the rigour of this jurisdiction and of their condition in general, and in the first place to allow them to set before him the feasibility of the alteration. They had nourished the hope that the King might be prevailed on to reduce the English episcopate to the level of the Scottish, in the shape in which he had just restored it.^[320]

But the tendencies which the King brought with him out of Scotland ran in an altogether different direction. He had often been personally affronted by

the Presbyterians: he hated their system; for in his opinion equality in the Church necessarily led to equality in the State. His intention was rather by degrees to develop further on the English model those beginnings of episcopacy which he had introduced into Scotland. In December 1603 he convened, as the Puritans wished, an assembly of the Church at Hampton Court, to which he also invited the leading men among the opponents of uniformity. But he opened the conference at once with a thanksgiving to Almighty God 'for bringing him into the promised land where religion was purely professed, where he sat among grave, learned, and reverend men, not, as before, elsewhere, a king without state, without honour, without order, where beardless boys would brave him to his face.' He declared that the government of the English Church had been approved by manifold blessings from God himself; and he said that he had not called this assembly in order to make innovations in the same, but in order to strengthen it by the removal of some abuses. In the conference which he opened he held the office of moderator himself. Certainly the suggestions of the Puritans were not altogether without result. When they expressed the wish to see the Sunday more strictly observed, to have a trustworthy and faithful translation of the Bible provided, and to have the Apocrypha excluded from the canonical scriptures, they met with a favourable reception; but the King would neither allow the confessions of faith to be tampered with, nor the ceremonies which had been brought under discussion to undergo the least diminution. He thought that they were older than the Papacy, that the decision of deeper questions of doctrine ought to be left to the discussion of the Universities, and that the articles of the faith would only be encumbered by them. And every limitation of episcopal authority he entirely refused to discuss. The bishops themselves were amazed at the zeal with which the King espoused the cause of ecclesiastical jurisdiction, and allowed their justification of it even on a point of great importance for the constitution, the imposition of the oath *ex officio*.^[321] They even exclaimed that God had bestowed on them a king, the like of whom had not been seen from the beginning of the world. It had been the intention and custom of other princes to limit the jurisdiction of the clergy, and to diminish their possessions. How much had they suffered from this even under Elizabeth! On the contrary it was one of the first endeavours of James I to put an end for ever to these attacks. For as in Scotland the abolition of bishoprics had been attended with a diminution of the authority

of the crown, he had reason to be deeply convinced of the identity of episcopal and monarchical interests. In the heat of the conference at Hampton Court he laid down as his principle, 'No bishop no king.'

But in all this did King James fall in with the spirit of the English constitution? Did he not rather at this point intrude into it the sharpness of his Scottish prejudices? The old statesmen of England had acknowledged the services of the English Puritans in saving the Protestant confession in the struggle with Catholicism. The Puritans only wished not to be oppressed. He confounded them altogether with their Scottish co-religionists with whom he had had to contend for the sovereignty of the realm.

In less than two months from the Hampton Court Conference the Book of Common Prayer was re-issued with some few alterations, with regard to which the King expressly stated that they were the only alterations which were to be expected; for that the safety of states consisted in clinging fast to what had been ordained after good consideration. This was soon followed by a new collection of ecclesiastical laws, in the shape which they had taken under the deliberations of Convocation. In them the royal supremacy was insisted on in the strongest terms, and that over the whole kingdom, Scotland included. The same competence with regard to the Church was therein assigned to the King which had belonged to the pious kings of Judah and to the earliest Christian emperors: their authority was declared to be second only to that of Heaven. Henceforward no one was to be ordained without promising to observe the Book of Common Prayer and to acknowledge the supremacy.^[322] And this statute had a retrospective application, even to those who were already in possession of an ecclesiastical benefice. The King and Archbishop Bancroft ordered that a short respite should be given to those who were inclined to acquiesce; but that those who made a decided resistance should without further ceremony be deprived of their benefices.

On this the whole body of Puritans necessarily became agitated. A number of clergymen sought out the King at Royston in December 1604. While they announced to him their decision rather to resign their benefices than to submit to these ordinances, they called his attention to the danger to which the souls of the faithful would be subjected by this severity. In February a

petition in favour of those ministers who refused to subscribe was presented to the King by some of the gentry of Northamptonshire. He expressed himself about this with great vehemence at a sitting of the Privy Council. He said that he had from his cradle suffered at the hands of these Puritans a persecution which would follow him to his grave. But in England the tribunals were quite ready to come to his assistance. In the Star Chamber it was declared a proceeding of seditious tendency to assail the King with joint petitions in a matter of religion.

Towards the end of February 1605 the bishops cited the clergy of Puritan views to appear at St. Paul's in London in order to take the oath. There were some members of this party who held it lawful to conform to the Anglican Church because it at least acknowledged the true doctrine. These had time for reflection given them; the rest who persevered in an opposition of principle were deprived of their offices without delay.

These proceedings for the first time recalled most vividly to men's minds the memory of the late Queen. People said that, though she disliked the Puritans, she had never consented to persecute them on religious grounds, for that she well knew how much she owed to them in every other respect. They saw a proof of the King's incapacity in his departure from her example and pattern. They thought him to blame for remitting in favour of Catholic recusants the execution of the penal laws enrolled among the statutes of the realm. And the foreign policy of the King awakened no less disapproval. It was felt as an injury, that he had put an end by the peace to the hostilities against Spain, which had now become even popular. Even the severe edicts issued against the piracy, which had found support in different quarters, produced in many places an unfavourable impression. The King was obliged to compensate the admiral for the losses which he affirmed that he had suffered in consequence.^[323] And how much greater were the apprehensions for the future which were connected with this policy! It was remarked that he sacrificed the interests of religion and of the country to those of the Catholics and the Catholic powers.

But there was now an organ of political opposition in the country in which all these hostile feelings found their expression. The resentment of injured interests, the resistance of the Puritans, and the excitement of the capital, impressed themselves on the Parliament.

All previous governments had exercised a systematic influence upon the election of members of the Lower House, and had encroached on their freedom. When the first elections under King James were about to be held he declared himself against the exercise of any such influence. He ordered that the elections should be conducted with freedom and impartiality, without regard to the bidding of any one and without the interference of strangers; and that the electors should be allowed to return the most deserving candidates in each county. He thought that, as he avoided unpopular measures, men would voluntarily meet his wishes. It appeared to him sufficient, if, in issuing the writs, he coupled with them the admonition to avoid all party spirit, and especially to abstain from electing such as from blind superstition on the one hand, or from fickleness or restlessness on the other, wished to disturb the uniformity of religion.^[324] But in politics personal gratitude is only a feeble motive. The elections followed the current of opinion which had been set in motion by the Hampton Court Conference. In the very first Parliament of King James many Puritans obtained entrance into the House: the new line which this Parliament struck out influenced the whole subsequent period.

The speech with which King James opened the session on the 19th of March 1604, immediately before the conclusion of the first year of his reign, has been often and often reproduced. It is full of the ideas with which his mind was principally occupied, of the union of both kingdoms in one great whole, and of the establishment of religious uniformity. He thought that in neither of the two kingdoms ought the memory of their special privileges to be kept alive, for they were pure monarchies from the first: no privilege could separate them from their head. He explicitly called the Puritans an ochlocratic sect.

It is extraordinary that, while he sought to win men's affections, it was his fortune to use expressions which were sure to provoke the strongest religious and political antipathies.

Parliament acknowledged his succession to be rightful and lawful, and granted to him, as to his predecessors, tonnage and poundage, i.e. the right of levying customs, for his life: it arranged according to his wishes for the withdrawal of many sentences which had been pronounced against his interest; but in other matters it offered him from the very first persistent

opposition. Contrary to what might have been expected, the first point concerned the validity of the elections.

In Buckinghamshire the King's officers had annulled an election on the ground of illegality, and had held a second. The Lower House found that this was improper, on the ground that the right of deciding in matters concerning the election of representatives belonged from ancient times to the House of Commons alone. They declined to confer on this subject with the Privy Council, or with the Upper House. Ill-will and jealousy were excited against those of higher rank who had wished to bring one of their own party into the House of Commons, and the tempers of the members seemed to be becoming no little inflamed. At last, by the personal mediation of the King,^[325] the Lower House was induced to allow both of the elected candidates to be unseated, and a third to be elected in their place. Even this it agreed to reluctantly; but it was at least its own resolution, and not the result of official influence: and the Speaker issued his writ for a new election. One of the foremost principles of parliamentary life, that the scrutiny of elections belonged to the Parliament alone, was in this manner indubitably established afresh.

Even his ideas on the union of the two kingdoms, which were nearest to his heart, were shared by few members of the Lower House; and he was obliged to raise the question by a new and urgent address. A commission of both Houses was indeed nominated to deliberate together with the Scots on the execution of the plan. The commission however was so numerous, and so large a number was required to be actually present for the transaction of business, that it was evident beforehand that no result would be achieved; especially as it was confidently to be expected that the Scots would appoint just as numerous a commission on their side.^[326] And the King was already aware that the opposition against him was not confined to the Lower House, but in this matter at least was most widely diffused. The proclamation was already drawn up by which he intended to declare himself King of Great Britain. The judges were consulted by the Upper House, but their sentence favoured the view that this alteration could not take place without disadvantage to the State.

The grant of a subsidy was most urgently needed by the King, whose purse had been emptied by the expenses of taking possession and by his

prodigality; but the tone of feeling was so unfavourable that he forbore to apply for it, as he would not expose himself to a refusal which was certain beforehand.

A petition in favour of some indulgence for the Puritans was drawn up in complete opposition to the King's views, although it seems not to have been carried through or sent in. A rigorous bill against the Jesuits and recusants on the other hand actually passed through the House. Lord Montague, who spoke against it, was brought before the House of Lords to answer for some expressions which he used on that occasion, and which savoured of Catholic principles.

It is quite clear that the very first Parliament of King James set itself systematically in opposition to him. He desired union, clemency to the Catholics, and punishment of the Puritans; and he required subsidies: on all these subjects an opposite view prevailed in Parliament. And the divergence was not confined to single points. The maintenance of that extended prerogative which had been once established, had been endured under a sovereign who was a native of the country, had deserved well of her subjects, and was thoroughly English in her sentiments. But similar pretensions appeared insufferable in a king of foreign birth, who pursued ideas that were British rather than English, or rather who had combined for himself a number of tendencies arising out of the position in which, grand as it was, he stood alone among English sovereigns. We perceive that by this time the notion had been definitely formed of reviving the rights of Parliament which had fallen into abeyance in the late reigns.^[327] Even under the Tudors Parliament had exercised a very considerable influence, but had more or less submitted to the ruling powers. Under the new government it thought of winning back the authority which it had wrung from more than one Plantagenet, and had possessed under the house of Lancaster. Already members were heard to assert that the legislative power lay in their hands; and that, if the King refused to approve the laws for which they demanded his sanction, they would refuse him the subsidies which he needed.

And this resolution was strengthened by the ill-feeling which the treatment of the Puritan ministers excited. The Parliament had been adjourned from August 1604 until February 1605: but the King feared that these clergymen, who had been assailed just at that time, might apply to the Lower House in

which so many Puritans had seats.^[328] He therefore prorogued it afresh in the hope of getting rid A.D. 1605. of certain persons who were especially hostile, or of bringing them over to his own side.

Instead of this, new grievances were constantly accumulating. In the absence of regular subsidies the King helped himself to money by a voluntary loan, which gave great offence, and in this matter also led people to contrast the late Queen's conduct with that of James. She had, so people said, conducted the war in Spain, afforded help to the Netherlands, and maintained garrisons on the Scottish border, three measures which had cost her millions; of all this there was no mention under the present King. On the contrary he had additional revenues from Scotland; for what reason did he require extraordinary subsidies?^[329] Men complained of his movements to and fro in the country, and of the harshness with which the right of the court to transport and cheap entertainment on these occasions was enforced; of his hunting, by which the tillage was injured; most of all, of his intended advancement of the Customs Duties, for this would damage trade and certainly would benefit only the great men who were interested in the farming of the Customs. The King had once thought of dissolving Parliament, but afterwards renounced the idea. As it was, when Parliament was summoned for November 1605, a stormy session lay before it, owing to the attack made by the Parliamentary and Puritan party upon the behaviour of the King in ecclesiastical and political questions, as well as upon the financial disorder which was gaining ground.

An event intervened which gave an entirely different direction to the course of affairs.

NOTES:

^[316] Économies royales v. 23.

^[317] Molino, Giugno 9, 1604: 'Se ben è vero, ch'erano suddite del re di Spagna, è anco verissimo, che quei popoli si erano soggetti alla casa di Borgogna—con quelle conditioni e capitoli, che si sa: i quali se fossero stati osservati dalli ministri di Spagna, senza dubbio quei popoli non se sariano ribellati. Da queste parole restarono li Spagnoli offesi.'

^[318] Cecil to Winwood, June 13. 'That he is tied by former contracts of his predecessors, which he must observe.'

[319] From the reports of the French ambassador, in Siri, *Memorie recondite* i. 278.

[320] Letter from the South (Winchester) to Berwick, in Calderwood vi. 235. 'I would the scotish presbyteries would be petitioners that our bishops might be like theirs in authority though they keep their livings. The King is resolved to have a preaching ministry.'

[321] The High Commission was compared with the Inquisition: 'men are urged to subscribe more than law requireth and by the oath *ex officio* forced to accuse themselves.' The archbishop answered that this was a mistake: 'if the article touch the party for life, liberty, or scandal, he may refuse to answer.' *State Trials* ii. 86. The account in Wilkins iv. 374 is more unsatisfactory than the character of the book would lead us to expect.

[322] Art. 36: 'Neminem nisi praevis trium articulorum subscriptione ordinandum'.

[323] Duodo relates (Dec. 6, 1603) that the King said to him: 'Che dubita, che li suoi capitani di mare siano alquanto interessati che anzi, e mostro di dirlo in gran confidenza era stato necessitato assegnar non so che provvisione del suo proprio denaro all'Amiraglio; perche si doleva di non potersi sostenere per esserli mancato alcun utile di questa natura.'

[324] 'The choice to be made freely and indifferently without respect of any commaunde sute prayer or other meanes to the contrary.' From a memorandum of the Lord Chancellor Egerton, Egerton Papers 385. Molino, May 12, 1604: 'Stimò il re che il concedere la libertà alle provincie di poter far elettione degli huomini per mandar al parlamento conforme agli antichi privilegi del regno et il non haver voluto osservare li molti tratti delli precessori suoi che non avrebbero permesso che la elettione cadesse in altre persone che in suoi confidenti e dipendenti, dovesse disponer gli animi di ogn'uno a sodisfarlo e compiacerlo.'

[325] Molino: 'Havendo voluto troncar l'occasione di qualche maggior scandalo; perche di già li sangui si andavano riscaldando molto.'

[326] Molino (Dispaccio 19 Maggio) states this reason.

[327] Molino: 'Parlando molto liberamente della libertà e della autorità del parlamento in vista però sempre degli antichi privilegi, quali erano andati in desuetudine e se saranno reassonti—senza dubbio sarà un detrimento dell'autorità e potestà regia.' (12 Maggio.)

[328] Molino: 'Dubitando che quando li capi di questa setta facessero qualche moto al parlamento, dove ne sono tanti di questa professione, potesse nascer qualche inconveniente.' (20 Oct. 1604.)

[329] Molino: 'Queste cose vanno spargendo quelli che han poco volontà di sodisfar alli desideri di S. M. che per se ne sta molto dubiosa.' (3 Nov. 1605.)

CHAPTER III.

THE GUNPOWDER PLOT AND ITS CONSEQUENCES.

James I was welcomed, if one may say so, by a conspiracy on his entrance into England.

Two men of rank, Markham and Brook, who had before held communications with him, and had cherished bright expectations, but found themselves passed over in the composition of the new government, now imagined that they might rise to the highest offices if they could succeed in detaching the King from those who surrounded him, and in getting him into their own hands, perhaps within the walls of the Tower or even in Dover Castle. They conspired for this object with some Catholic priests, who could not forgive the King for having deceived their expectations of a declaration of toleration at the commencement of his reign. They intended to call out so great a number of Catholics ready for action, that there could be no doubt of the successful issue of a coup-de-main. A priest was then to receive the Great Seal and above all things to issue an edict of toleration. We are reminded of the combination under Essex, when even some Puritans offered their assistance in an undertaking directed against the government. One of their leaders, Lord Grey de Wilton, a young man of high spirit and hope, was now induced to join the plot. But on this occasion the Catholics were the predominant element. The priests thought that the pretence of the necessity of supporting the King against the effect of a Puritan rising would best contribute to set the zealous Catholics in motion; and it is undeniable that other persons of high rank were also connected with these intrigues. The principal opponents of Cecil and his friends, whose hostile influence on Elizabeth had at an earlier A.D. 1603. period been feared by the minister, were Lord Cobham, the brother of Brook, and Sir Walter Raleigh. Cobham, who like most others had looked for the overthrow of Cecil on the accession of the King, fell into an ungovernable fit of disappointed ambition when Cecil was more strongly confirmed in his position; and his anger was directed against the King himself, from whom he now had nothing to expect, and

who had brought with him a family which made the hope of any further alteration appear impossible. He had let fall the expression in public that the fox and his cubs must be destroyed at one blow. Negotiations, aiming at the renewal of the Lady Arabella's claims, had been opened with the ambassador of the Archduke, who then perhaps felt anxiety lest King James, under the influence of Cecil, should adhere to the policy of his predecessor. In order to effect a revolution, Cobham launched into extravagant schemes which embraced all Europe.

The affair might have been dangerous, if a man of the activity, weight, and intelligence of Walter Raleigh had taken part in it. Raleigh does not deny that Cobham had spoken to him on the subject, but he affirms that he had not heeded the idle words, and had even forgotten them again:^[330] and in fact nothing has been brought to light which proves his complicity, or even his remote participation, in this plot. Still without doubt he was among the opponents of the government. If it is true, as people say, that he made an attempt by means of a letter to the King to procure the fall of Cecil, it is easily conceivable that the latter and his friends availed themselves of every opportunity to involve him in the accusation. Raleigh defended himself with so much courage and vigour, that the listeners who had come wishing to see him condemned went away with a tenfold stronger desire that he might be acquitted. He himself did not deny that he might be condemned by the cruel laws of England: he reminded the King however of a passage in the old statutes, in which for that very reason mercy and pity were recommended to him. The accused were all condemned. Brook and the priests paid the penalty of death: Markham, Cobham, and Grey were reprieved when they were already standing on the scaffold—reprieved moreover by an autograph mandate of James, which was entirely due to an unexpected resolution of the King, who wished to shine by showing mercy as well as by severity. The first of these lived henceforward in exile: the second continued to live in England, but weighed down by his disgrace: Grey and Walter Raleigh were imprisoned in the Tower. We shall meet with Raleigh once more: he never lost sight of the world, nor the world of him.

This conspiracy which, although wrongly as we have seen, bears the name of Raleigh, was an attempt to put an end in some way or other to the government, in the shape in which it had been erected by the union of English statesmen with the Scottish King. Its movers wished to effect this

object by getting rid either of the statesmen, or even of the King himself. But on the contrary they only succeeded in establishing the government so much the more firmly; and it then under the joint influence of both its components entered on the course which we have described. But if it was so seriously endangered at its commencement, its progress also could not be free from hostile attacks. The Puritans threw themselves into the ranks of the Parliamentary Opposition. The Catholics were brought into a most singular position.

In public they found themselves far better off under James than they had been under Elizabeth. Far greater scope was allowed to the local influence of Catholic magnates in protecting their co-religionists. The penal laws, which as regards pecuniary payments were virtually abolished, were moreover no longer vigorously enforced in any other respect. Not only were the chapels of the Catholic ambassadors in the capital numerous attended, but in some provinces, especially in Wales, Catholic sermons were known to be delivered in the open air, and attended by thousands of hearers.^[331] At times the opinion revived that the King was inclined to go A.D. 1604. over to Catholicism. He repudiated the supposition with some show of indignation. But, as we stated, the Queen incontestably sympathised with the Papacy. She even refrained from attending the Anglican service, and formed relations with the Nuncio in Paris, from whom she received communications and presents. Though Pope Clement on a former occasion had issued breves which made the obedience of Catholics to a new government dependent on the profession of Catholicism by the sovereign, yet these were virtually recalled by a later issue. When the English ambassador in Paris complained to the Nuncio there of the above-mentioned participation of Catholic priests in a conspiracy against the King, the Nuncio laid before him a letter of the Pope's nephew, Cardinal Aldobrandini, in which he declared it to be the Pope's pleasure that the Catholics in England should be obedient to their king, and should pray for him.^[332] Thus it exactly fell in with the King's views to be a Protestant, as was absolutely necessary for his authority in England and Scotland, and yet at the same time not to have the Catholics against him, and to be able to reckon the Pope of Rome among his friends.

It is evident that this state of affairs, as it was inconsistent with the laws of England, could not be permanently maintained. Even men of moderate

views in other respects disapproved the middle course taken by the King: for they thought it necessary to concede nothing to the adherents of the Papacy, if they were to be saved from the necessity of conceding everything. The Catholics desired a public declaration of toleration. But this could only have emanated from Parliament: the King had not the courage, and his ministers had not the wish, to make a serious proposal to that effect. On the contrary, when the Protestant spirit of the capital displayed itself so unmistakably in consequence of the severities with which the Puritans were threatened, the King and his Privy Council, while affirming that they were merely executing the laws, announced their intention of introducing a like severity in the treatment of the Catholics. James I appeared to feel himself insulted if any one threw a doubt on his wish to allow the laws to operate in both directions. And as the Parliament which was so zealously Protestant was expected to reassemble in the autumn of 1605, the laws against the Catholics began to be applied without forbearance. A renewed persecution was first set on foot against the priests, who it is true were not punished with death, at least in the vicinity of the Court, but were thrown into prison, where they not infrequently succumbed to the rough treatment which they had undergone. But even the laity daily suffered more and more from the violence of the spies who forced their way into their houses. They complained loudly and bitterly of the insecurity of their position, which had already gone so far that often no tenants could be found for their farms; and they considered that the least evil, for to-day they lost their possessions, to-morrow they would lose their freedom, and the day after their life.^[333] There had now for a long time been two parties among them, one of which submitted to what was inevitable, while the other offered a violent resistance. With the fresh increase of oppression, the latter party obtained the upper hand. They mocked at the hope, in which men indulged themselves, of a change of religion on the part of the King, who on the contrary was in their view an irreclaimable Protestant, and assumed an air of clemency to the Catholics, only to draw the rein tighter hereafter. A brief from the Pope exhorted them to acquiesce: but even the Pope could not persuade them to allow themselves to be sacrificed without further ceremony. Some of the most resolute once more applied to the Spanish court at this time as they had done before. But in that quarter not only had peace been concluded, but the hope of effecting a close alliance with England had been conceived. A deaf ear was turned to all their applications.

While they were thus hard pressed and desperate, the thought of helping themselves had, if not originated, at least ripened, in the breast of one or two of the boldest of them. They conceived a plan which in savage recklessness surpassed anything which was devised in this epoch so full of conspiracies.

Among the families which sheltered the mission-priests on their arrival in England, and who were moved by them to throw off their reserve in the profession of Catholicism, the Treshams and Catesbys were especially prominent in Northamptonshire. They belonged to the wealthiest and most important families in that county; and the penal laws had borne upon them with especial severity. The Winters of Huddington, who also were very zealous Catholics, were related to them. It is easy to understand, how the young men who were growing up in this family, such as Thomas Winter and Robert Catesby, acknowledging no duty to the Protestant government, retorted the oppression which they experienced from it with bold resistance and schemes of violence. In these they were joined by two brothers of the same way of thinking, John and Christopher Wright, stout and soldier-like men, belonging to a family which came originally from York. They all participated in the attempt of the Earl of Essex, for above all things they were eager for the overthrow of the existing government: and Robert Catesby was set at liberty only on payment of a heavy fine, which he could hardly raise by the sale of one of the most productive of the family estates. They were among those who, when Queen Elizabeth lay on her death-bed, proclaimed most loudly their desire for a thorough change, and were arrested in consequence.^[334] They had expected toleration at least from the new government: as this was not granted them they set to work at once on new schemes of insurrection. Christopher Wright was one of those who had invited Philip III to support the Catholics. When the Constable of Castile came to Flanders to negotiate the peace, Thomas Winter visited him in order to lay their wish before him. Though they met with a refusal from him as well as from his master they found nevertheless a support which was independent of the approval of individuals. In the archducal Netherlands a combination of a peculiar kind, favourable to their views, had been formed, in consequence of the permission to recruit in the British dominions, which by the terms of the peace had been granted to Spain as well as to the Netherlands. An English regiment, about fifteen hundred strong, had been

raised, in which the chaplains were all Jesuit fathers; and no officers were admitted but those who were entirely devoted to them. An English Jesuit named Baldwin, and a soldier of the same opinions, Owen by name, were the leading spirits among them. There was here, so to speak, a school of soldiers side by side with a school of priests, in which every act of the English government provoked slander, malediction, and schemes of opposition. Pope Clement was blamed for not threatening James with excommunication as Elizabeth had formerly been threatened; and the necessity for violent means of redress was canvassed without disguise. These views were repeated in congenial circles in Paris and reacted also upon their friends in England. Robert Catesby had been most active in the enlistment of the regiment. Christopher Wright on his journey to Spain was attended by one of the most resolute officers of this regiment, Guy Fawkes. The latter returned with Winter to England, and was pointed out by Owen as a man admirably qualified to conduct the horrible undertaking which was being prepared for execution. It must remain a question in whose head the thought of proceeding to it at this moment originated: we only know that Catesby first communicated it to another, and then with the aid of this comrade to the rest of the band. To this another member had been added, who was connected, if only in a remote degree, with one of the most distinguished families among the English nobility. I refer to Thomas Percy, a kinsman of the Earl of Northumberland, who through his influence had once received a place in the court establishment of King James of Scotland, and had then been the medium for forming a connexion between this prince and the Catholics. He was enraged because the assurances which he then thought that he might make to the Catholics in the name of the King, had not been fulfilled by the latter. In the spring of 1604, just at the time when the peace between England and Spain was concluded, by which no stipulations were made for the Catholics, they met one day in a lonely house near S. Clement's Inn, and bound themselves by a sacred and solemn oath to inviolable secrecy. It had been their intention once more to submit to the assembled Parliament an urgent petition in the name of the Catholics: but the resolutions of the House had sufficed to convince them that nothing could be gained by this step. Quite the contrary: it was apparent that the next session would impose far heavier conditions on them. An attack on the person of the King, or of his ministers, in the shape in which it had so often been resolved upon, could not do much even if it were successful: for the

Parliament was always in reserve with its Protestant majority to establish anti-Catholic statutes, and the judges to execute them. Catesby now disclosed a plan which comprehended all their opponents at once. The King himself and his eldest son, the officers of state and of the court, the lords spiritual and temporal, the members of the House of Commons, one and all at the moment when they were collected to reopen Parliament, were to be blown into the air with gunpowder in the hall where they assembled—there where they issued the detested laws were they to be annihilated; vengeance was to be taken on them at the same time that room was to be made for another order of things in Church and State.

This project was not altogether new. Already under Elizabeth there had been a talk of doing again to her what Bothwell had done or attempted to do to Henry Darnley: but men had perceived even at that time that this would not conduce to their purpose, and had hit upon a plan of blowing the Queen and her Parliament into the air together. Henry Garnet, the superior of the Jesuits, had been consulted on the subject; and he had declared the enterprise lawful, and had only advised them to spare as many of the innocent as possible in its execution.^[335] The scheme which had been started under Elizabeth was resumed under King James, when men saw that his accession to the throne did not produce the hoped-for change. On this occasion also scruples were felt on the ground that many a Catholic would perish at the same time. To a question on the subject submitted to him without closer description of the case Garnet answered in the spirit of a mufti delivering his fettah, that if an end were indubitably a good one, and could be accomplished in no other way, it was lawful to destroy even some of the innocent with the guilty.^[336] Catesby had no compassion even for the innocent: he regarded the lords generally as only poltroons and atheists, whose place would be better filled by vigorous men.

Without delay, before the end of December 1604, the conspirators proceeded to make their preparations. Percy, who was still numbered among the retainers of the court, hired a house which adjoined the Houses of Parliament. They were attempting to carry a mine through the foundation walls of that building—a design that says more for their zeal than for their intelligence, and one which could hardly have been effected—when a vault immediately under the House of Lords happened to fall vacant, and, as they were able to hire it, offered them a far better opportunity for the execution

of their scheme. They filled it with a number of powder-barrels which are said to have contained the enormous quantity of 9,000 pounds of powder, and they confidently expected to bring about the great catastrophe with all its horrors on November 5, 1605, the day which after many changes had been appointed for the opening of Parliament. Their intention was, as soon as the King and the Prince of Wales had perished, to gain possession of the younger prince or of the princess, and to place one or other on the throne, with A.D. 1605. a regency under a protector during their minority.^[337] All preparations had been made for bringing an effective force into the field; and its principal leaders were to assemble at Dunchurch in Warwickshire under pretence of hunting. The English regiment in Flanders was to be brought over and was to serve as the nucleus of a new force. There is no doubt that Owen was thoroughly conversant with their plans. Many other trustworthy people were admitted into the secret, and supported the project with their money. One of these was sent to Rome in order to convince the Pope of the necessity of the undertaking and to move him to resolutions in support of it. On All Saints' Day Father Garnet interrupted his prayer with a hymn of praise for the deliverance of the inheritance of the faithful from the generation of the ungodly.

But warnings had already come to the government, especially from Paris, where the priests of the Jesuit party ventured to express themselves still more plainly than in London. The warning was conveyed with the express intimation that 'somewhat is at present in hand among these desperate hypocrites.'^[338] What an impression must now have been produced when one of the Catholic lords, who at an earlier period had followed this party, but had for some time withdrawn from it, Lord Mounteagle, communicated to the first minister a letter in which he was admonished in mysterious language to hold aloof from the opening of Parliament. It may be that the King, as he himself relates, in deciphering the sense of a word hit upon the supposition that a fate similar to that of his father was being prepared for him; or it may be that the ministers had, as they affirm, come upon the traces of the matter; but however this may have been, on the evening before the opening of Parliament the vaults were examined, when not only were the powder-barrels found among wood and faggots, but also one of the conspirators, Guy Fawkes, who was busy with the last preparations for the execution of the plot. With a smiling countenance he confessed his purpose,

which he seemed to regard as the fulfilment of a religious duty. The pedantic monarch thought himself in the presence of a fanatical Mutius Scaevola.

The rest of the conspirators who were in London, alarmed by the discovery, hastened to the appointed rendezvous at Dunchurch; but the news which they brought with them caused general discouragement. With a band of about one hundred men, they set off to make their escape to Wales, the home of most of the Catholics, hoping to receive the promised reinforcements and the support of the population on their way. They once actually attempted to assure themselves of the latter; but on declaring that they were for God and the country, they received the answer that they ought also to be for the King. No one joined them, and many of their comrades had already dispersed when they were overtaken at Holbeach by the armed bands of Worcestershire under the Sheriff. Percy and Catesby, as they stood back to back, were shot dead by two balls from the same musket; the two Wrights were killed, and Thomas Winter taken prisoner.^[339]

The authority of government triumphed over this most frantic attempt to break through it, as it had triumphed in every similar case since the time of Henry VII.

It was perhaps the most remarkable feature in this last, that it was directed especially against the Parliament. During the Wars of the Roses, it had only been necessary to drive the then reigning prince out of the field, or to chase him away, in order to create a new parliamentary rule. The attempts against Queen Elizabeth rested on the hope of producing a similar result by her death: but it was apparent in her last years that her death would be useless, and the comparatively free elections after that event returned a Parliament of the same character as the preceding. Even under the new reign the Protestant party secured their ascendancy in the elections; and the only possibility of an alteration for the future was to be found in the annihilation of the Parliament, not so much of the institution—at least this was not mooted—but of the men **A.D. 1606.** who composed it and gave it its character. The violent attempt on the Parliament is a proof of its power. The Gunpowder Plot was directed against the King, not in his personal capacity as monarch, but as head of the legislative authority. It was felt that this power itself with all its component parts must be destroyed without scruple

or mercy, if an order of things in the State corresponding to the views of the hierarchical party was ever again to obtain a footing.

The necessary and inevitable result of the conspiracy was that Parliament, which did not enter on the session until January 1606, still further increased the existing severity of its laws. The great body of Catholics had not in any way participated in the plot; but yet, as it had originated among them, and was intended for the redress of their common grievances, they were all affected by the reaction which it produced. The Catholic recusants were to be subjected to the former penalties: they were sentenced to exclusion from the palace and from the capital; they were forbidden to hold any appointment in the public service either in the administration of justice, or as government officials, or even as physicians; they were obliged to open their houses at any moment for examination; the solemnisation of their marriages and the baptism of their children were henceforth to be legal only if performed by Protestant clergymen. It is evident that the Papal See would have preferred to restrain the agitation of the Catholics at this juncture; but as the latter appealed to the principle which had been impressed on them by their missionaries, that men had no duties to a king who was a heretic, the Parliament thought it necessary to impose on them an oath which concerned the authority of their Church as well as that of the State. Not only were they to be compelled to acknowledge the King as their legitimate prince, to defend him against every conspiracy and every attack, even when made under the pretext of religion, and to promise to reveal any such to him; they must also renounce the doctrine that the authority of the Church gave the Pope the right of deposing a king, and absolving his subjects from their oath of allegiance; and they must condemn as impious and heretical the doctrine that princes excommunicated by the Pope could be dethroned or put to death by their subjects.^[340] Attention was directed to the English regiment in the service of the Archduke; and it was thought dangerous that so many malcontents should be assembled there, and should practise the use of arms, in order perhaps to turn them some day against their country. It was enacted that the Oath of Supremacy should be imposed on every one who took service abroad before his departure, with a pledge that he would not be reconciled to the Papacy: even securities for the observance of the oath were to be exacted.

In the spring of the year 1605 the whole state of England still showed a tendency to clemency and conciliation. In the early part of 1606 the opposite tendency had completely obtained the upper hand.

But this state of affairs necessarily reacted on Catholic countries and governments. In Spain, where it was easiest to rouse the susceptibilities of Catholicism, the severe measures of the Parliament of themselves created a feeling of bitterness: but besides this, Irish refugees resorted thither who gave an agitating account of the way in which these measures were carried out in Ireland:^[341] so that the nation felt itself affronted in the persons of its co-religionists. Both governments, that of Spain and that of the Netherlands, refused to hand over to the English government men like Baldwin and Owen, who were taxed with participating in the plot, or to banish others whom the English government considered dangerous. The pious were reminded of the will of Queen Mary, in which she had transferred her hereditary right over England, France, Ireland and Scotland, to the House of Spain in case her son should not be converted to the Church.

And how deeply must the Court of Rome have felt itself injured by the imposition of the Oath of Supremacy. A Pope of the Borghese family had just been elected, Paul V, who was as deeply convinced of the truth of the Papal principles, and as firmly resolved to enforce them, as any of his predecessors; and who was surrounded by learned men and statesmen who looked upon the maintenance of these principles as the salvation of the world. Their religious pride was galled to the quick by the imposition of such an oath as that exacted in England, by which principles at that time zealously taught in Catholic schools were described not only as objectionable but as heretical. They thought it possible that the temporal power might prevail on the English Catholics to accept this oath, as in fact the archpriest Blackwell who had been appointed by Clement VIII took it, and advised others to do the same. But by this act the supremacy of the King would be practically acknowledged, and the connexion of the English Catholics with the Papacy dissolved. Moved by these considerations, Paul V, in a brief of September 1, 1606, declared that the oath contained much that was contrary to the faith, and could not be taken by any one without damage to his salvation. He expressed his anticipation that the English Catholics, whose constancy had been tested like gold in the fire of the persecutions, would show their firmness on this occasion also, and that they

would rather undergo all tortures, even death itself, than insult the Divine Majesty. At first the archpriest and the moderate Catholics, who did not consider that the political claims referred to in the oath were the true principles of the Papacy, declared that the brief was spurious; but after some time it was confirmed in all due form, and an address appeared from the pen of the most eminent apologist of the See of Rome, Cardinal Bellarmin, in which he reminded the archpriest that the general apostolical authority of the Pope could not be impugned even in a single iota of the subtleties of dogma: how much less then in this instance, where the question was simply whether men should look for the head of the Church in the successor of Henry VIII, or in the successor of S. Peter.

These statements however greatly irritated the King, both as a man of learning and as a temporal potentate. He took pen in hand himself in order to defend the oath, in the wording of which he had a large share. He expressed his astonishment that so distinguished a scholar as Bellarmin should confound the Oath of Supremacy with the Oath of Allegiance, in which no word occurred affecting any article of faith, and which was only intended to distinguish the champions of an attempt like the Gunpowder Plot from his quiet subjects of the Catholic religion. He said that nothing more disastrous to these could have happened than that the Pope should condemn the oath, and thereby the original relation of obedience which bound them to their sovereign; for he was requiring them to repudiate this obedience and to abjure again the oath which had already been taken by many, after the example of the archpriest. James I took much trouble to justify the form of oath by the decrees of the old councils.^[342]

Criminal attempts, even when they fail, have at times the most extensive political consequences. James I had started with the idea of linking his subjects of every persuasion to himself in the bonds of a free and uniform obedience, and of creating harmonious relations between the rival powers of the world and his own realm of Great Britain. Then intervened this murderous attempt; and the measures to which he had recourse in order to secure his person and his country against the repetition of criminal attacks like this last, rekindled the national and religious animosities which he desired to lull, and fanned them into a bright flame.

NOTES:

[330] Letter to the King. Works viii, 647; cf. i. 671.

[331] *Discursus status religionis*, 1605: 'Ipsi magnates non verentur se profiteri catholicos et plerique alii ex nobilitate, praecipue in principatu Walliae et in provinciis septentrionalibus,—ubi numerus eorum non ita pridem crevit in immensum.

[332] 'S. S^{ta} vole e comanda, che li Catolici siano obedienti al re d'Inghilterra, come a loro signore e re naturale. V^{ra} S^{ria} attenda con ogni diligenza e vigilanza a questi negotii d'Inghilterra procurando che conforme alla volonta di N. S^{ra} obedischino al suo re e non s'intrighino in congiure tumulti ed altre cose, per le quali possino dispiacere a quella M^a.'

[333] The Venetian Ambassador in his reports mentions 'doglienze e querelle accompagnate di lacrime di sangue.' The Roman reports are to the same effect. *De vero Statu Angliae*. La vera relatione dello stato. Agosto 1605. The persecution of the Catholics had begun on July 26.

[334] Camden in writing to Cotton names Bainham, Catesby, Tresham, and the two Wrights. He calls them 'gentlemen hunger-starved for innovation.' *Camdeni Epistolae* 347.

[335] Garnet says, in his conference with Hall, which was overheard, that he was accused of giving 'some advice in Queen Elizabeth's time of the blowing up of the parliament house with gunpowder; I told them it was lawful' Jardine, *Gunpowder Plot* 202.

[336] From his examination: Jardine 206.

[337] Lingard ix. 52. From Greenway's memoranda.

[338] From a letter of Parry to Sir T. Edmondes, Paris, October 10, 1605; in *Birch's Negotiations* 234.

[339] Molino just at the time reports this, as the King also relates it in his '*Conjuratio sulphurea*.' Cf. Barclay, *Series patefacti parricidii* 569.

[340] 'Juro quod ex corde abhorreo detestor et abjuro tanquam impiam et haeticam hanc damnabilem doctrinam et propositionem quod principes per papam excommunicati vel deprivati possint per suos subditos vel alios quoscunque deponi aut occidi'. The form originally drawn up had asserted that the Pope generally had no right to excommunicate kings. But King James, in his fondness for weighing every side of the question, did not wish to go so far as this.

[341] June 1606. Winwood, *Memorials* ii. 224. Cornwallis to Salisbury: 'Such an apprehension of despair here they have of late received to make any conjunction or further amitie with us, by reason of the extreame lawes and bitter persecution, as they terme it, against those of their religion both in England and especially in Ireland.' June 20, 229. 'They repair to the Jesuits, priests, fryars, and fugitives; the first three joyne with the last children of lost hope, who having given a

farewell to all laws of nature—dispose themselves to become the executioneris of the—inventions of the others.'

[342] *Apologia pro juramento fidelitatis, opposita duobus brevibus ... et literis Bellarmini ad Blackwellum Archipresbyterum. Opera Jacobi Regis, p. 237. Lond. 1619.*

CHAPTER IV.

FOREIGN POLICY OF THE NEXT TEN YEARS.

What had already taken place before James ascended the throne, occurred again under these circumstances. Although belonging to one of the two religious parties which divided the world between them, he had sought to form relations with the other, when circumstances which were beyond all calculation caused and almost compelled him to return to his original position.

The Republic of Venice enjoyed his full sympathies in the quarrel in which at this time it became involved with the Papacy. The laws which it had made for limiting the influence of the clergy appeared to him in the highest degree just and wise. He thought that Europe would be happy if other princes as well would open their eyes, for they would not then experience so many usurpations on the part of the See of Rome; and he showed himself ready to form an alliance with the Republic. The Venetians always affirmed that the lively interest of the King of England in their cause had already, by provoking the jealousy of the French, strengthened their resolution to arrange these disputes in conjunction with Spain.^[343] When the Republic, although compelled to make some concessions, yet came out of this contest without losing its independence, it continued to believe that for this result also it was indebted to King James.

A.D. 1609. In the same way, there can be no serious doubt that the refusal of the alliance, which the Spaniards had more than once proposed to the King of England, impelled the former to turn their thoughts to a peaceful adjustment of their differences with the Netherlands. They had made similar overtures to France also, but these had been shipwrecked by the firmness and mistrust of Henry IV. They were convinced however that, without winning over at least one of these two powers, they would never even by their strongest efforts again become masters of the Netherlands. In spite of some advantages which they had obtained on the mainland, they were so hard pressed by the superiority of the Dutch fleet, that they at last came

forward with more acceptable proposals than they had before made. The English government advised the States-General to show compliance on all other points if their independence were acknowledged: not to stand out even if this were recognised only for a while through a truce, for in that case they would obtain better conditions on the other points: and that in regard to these England would protect them.^[344] By their conduct to both sides, by standing aloof from the one and by bestowing good advice on the other, the English thus promoted the conclusion of the twelve years truce, and thereby procured for the United Provinces an independent position which they did not allow to be wrested from them again. The Spaniards attributed the result not so much to the Provinces themselves as to the two Powers allied with them: they thought that the articles of the treaty had been drawn up by the former, but devised and dictated by the latter. It was their serious intention that this agreement should be only temporary; they reckoned upon the speedy death of the King of France, and upon future troubles in England, for an opportunity of resuming the war.^[345] But whatever the future might bring to pass, England, as well as France, derived an incalculable A.D. 1610. advantage at the time from the erection of an independent state under their protection, which could not but ally itself with them against the still dominant power of Spain.

On the whole the general understanding which King James maintained with Henry IV secured a support for his State, and imparted to himself a political courage which was otherwise foreign to his nature. The two sovereigns also made common cause in the Cleves-Juliers question. Two Protestant princes with the consent of the Estates had taken possession of it on the strength of their hereditary title. When an Archduke laid hands on the principal fortress in the country, a general feeling of jealousy was roused: and even in England it was thought that the point at issue here was not the possession of a small principality, but the confirmation of the House of Austria and the Papacy in their already tottering dominion over these provinces of the Lower Rhine, which might exercise such an important influence on the State of Europe.^[346] When Henry IV joined the German Union and the Dutch for the protection of the two princes and for the conquest of Juliers, James also decided to bestow his aid. He took into his own pay 4000 of the troops who were still in the service of the Republic, sent them a general, and despatched them to the contested dominions to take part in the struggle.

It does not appear that any one in England was aware of the great designs which Henry IV connected with this enterprise. When, on the eve of its execution, he was struck down in the centre of his capital by the dagger of a fanatic, friends and foes alike were thrilled with the feeling that the event affected them all, and would have an immeasurable influence on the world. In England also it was felt as a domestic calamity. Robert Cecil, now Earl of Salisbury, said in Parliament that Henry IV had been as it were their advanced guard against conspiracies of which he had always given the first information: that the first warning of the Gunpowder Plot must have come from him; that he had as it were stood in the breach, and that now he had been the first victim. The crimes of Ravallac and of Catesby had sprung from the same source.

The enterprise against Juliers was not hindered by this event. The forces of the Union under the Prince of Anhalt, and the Dutch and English troops under Maurice of Orange and Edward Cecil, with the addition of a number of volunteers from such leading families in England as those of Winchester, Somerset, Rich, Herbert, had already made considerable progress in the siege when, at last, at the orders of the widowed Queen, the French also arrived, but in the worst plight and suffering severely from illness, so that they could not carry out the intention, with which they came, of sequestrating the place in the interests of France. When the fortress had been taken it was delivered to the two princes, who now possessed the whole country. This was an event of general historical importance, for by this means Brandenburg first planted its foot on the Rhine, and came into greater prominence in Europe on this side also. It took place, like the foundation of the Republic of the Netherlands, with the concurrence of England and France, and in opposition to Austria and Spain, but at the same time by the help of the Republic itself and of those members of the Estates of the German empire who professed the same creed.

The times had gone by when the Spaniards had taken arms as if for the conquest of the world; but their pretensions remained the same. It was still their intention, in virtue of the privileges assigned them by the Pope, to exclude all others from the colonisation of America and from commerce with the East Indies. They laid claim to Northern Africa because it had been tributary to the crown of Aragon, to Athens and Neopatras because they had belonged to the Catalans, to Jerusalem because it had belonged to the King

of Naples, and even to Constantinople because it had passed by will to Ferdinand II of Aragon from the last of the Palaeologi. On the strength of the claims made by the old dukes of Milan they deemed themselves to have a right to the towns of the Venetian mainland, and to Liguria. Philip III was in their eyes the true heir of the Maximilian branch of the German house of A.D. 1611. Austria: according to their view the succession in Bohemia and Hungary fell to him. The progress of the Catholic revival afforded them an opportunity of exercising a profound influence on the German empire, while the same cause extended their influence over Poland; they obtained through their commercial relations even the friendship of Protestant princes and towns in the North. Their intention was now to associate the two antagonistic powers of the West with their policy by means of alliances with the reigning families. The first considerable step in this direction was made after the death of Henry IV, when they succeeded in concerting with his widow a double marriage, between the young King of France and an Infanta of Spain, and between the future King of Spain and a French princess. It was thought certain beforehand that they would get the conduct of French policy into their hands during the minority of Louis XIII. But they were already seeking to draw the house of Stuart also into this alliance in spite of the difference of religion. In August 1611 the Spanish ambassador, whose overtures had hitherto been fruitless, came forward to announce that an alliance between the Prince of Wales and a Spanish infanta would meet with no obstacle on the part of Spain, if it should be desired on the part of England. It was thought that the Queen, who found a satisfaction of her ambition in this brilliant alliance, and the old Spanish and Catholic party, who were still very numerous in the highest ranks and among the people, might employ their whole influence in its favour.

But there was still at the head of affairs a man who was resolved to oppose this design, Robert Cecil, to whom it is generally owing that the tendencies of Elizabeth's policy lasted on so long into the time of the Stuarts as they did. I do not know whether the two Cecils can be reckoned among the great men of England: they would almost seem to have lacked that independent attitude and that soaring and brilliant genius which would be requisite for such an eminence; but without doubt few have had so much influence on its history. Robert Cecil inherited the employments, the experiences, and the personal connexions of his father William. He knew how to rid himself of

all rivals that rose to the surface^[347] by counteracting their proceedings in secret or openly, justifiably or not: enmity and friendship he reciprocated with equal warmth. He made no change in the method of transacting business which was conducted by the whole Privy Council; but his natural superiority and the importance that he gradually acquired always brought the decision into accordance with his views. The King himself gave intimations that he did not look upon his predominance as altogether proper. In one of his letters he jests over the supremacy calmly exercised by his minister at the centre of affairs, while he, the King, so soon as his minister summoned him, must hasten in, and yet at last could do nothing but accept the resolutions which he put into his hands. A small deformed man, to whom James, as was his wont, gave a jesting nickname on this account, he yet impressed men by the intelligence which flashed from his countenance and from every word he spoke; and even his outward bearing had a certain dignity. His independence was increased by his enormous wealth, acquired mainly by investments in the Dutch funds, which at that time returned an extraordinarily high interest. Surrounded by many who accepted presents, he showed himself inaccessible to such seductions and incorruptible. At this time he was the oracle of England.^[348]

Among the English youth the wish was constantly reviving that the war with Spain, in which success was expected without any doubt, might be renewed with all vigour. Robert Cecil was as little in favour of this as his father formerly had been. Peaceful relations with Spain were rendered especially necessary by the condition of Ireland, where Tyrone, not less dissatisfied with James than he had been with Elizabeth, had again thrown off his allegiance, and had at last gone abroad to procure foreign aid for his discontented countrymen. But if Cecil could not A.D. 1612. break with Spain, yet he would not allow that power to strengthen itself or to obtain influence over England herself. In regard to the proposal of marriage that was made he had said that the gallant Prince of Wales could find blooming roses everywhere and did not need to search for an olive.

The notion continued to prevail that James I, even if he did not take arms, ought to put himself at the head of the anti-Spanish party in Europe, now that Henry IV was no more.

The King and his ministers thought that for maintaining in the first place the state of affairs established in Cleves and Juliers, an alliance of the countries which had co-operated in producing it was the only appropriate means. In March 1612 we find the English ambassador at the Hague, Sir Ralph Winwood, at Wesel, where a defensive alliance that had long been mooted between James I and the princes of the Union, including those of the Palatinate, Brandenburg, Hesse, Wurtemberg, Baden, and Anhalt, was actually concluded. Both contracting parties promised one another mutual support against all who should attack them on account of the Union or of the aid they had given in settling and maintaining the tenure of Cleves and Juliers. The King was accordingly pledged to bring 4000 men into the field, and the Princes 2000 as their contingent, or to pay a sum of money fixed by rule at the choice of the country which should be attacked.^[349] The agreement was concluded for six years, the period for which it was also agreed that the Union should still continue. The idea was started, I do not know whether by King James or rather by the leading English statesmen, of making this alliance the basis of a general European coalition against the encroachments of the Spaniards.^[350] The German princes invited the Queen-Regent of France to join it, and to bring the Republic of the United Provinces into it. Mary de' Medici refused, on the ground that this was unnecessary, as the Republic was sufficiently secured by the defensive alliance previously concluded; but her ministers at that time still lent their assistance for the object immediately in view. The Spaniards had conceived the intention of raising the Archduke Albert to the imperial throne after the death of the Emperor Rudolph. A portion of the Electors, among others the Elector of Saxony, which had been prejudiced by the settlement of Juliers, was in his favour. He possessed the sympathies of all zealous Catholics; but England and France saw in the union of the imperial power with the possession of the Spanish Netherlands a danger for themselves and for the republic founded under their auspices. They plainly declared to the Spaniards that they would not permit it, but would set themselves against it with their allies, that is to say, of course, with the Republic and the Union.

^[351]

Little seems to have been heard in Germany of the protest of the powers in regard to the imperial succession: but it was effectual. The imperial throne was ascended not by Albert but by Matthias, who had far more sympathy

with the efforts of the Protestants and approved of the Union. Indeed the Spaniards too, under the guidance of the pacific Lerma, were not inclined to drive matters to extremities.

In the youthful republic of the Netherlands an estrangement, involving also a difference of opinion on religious questions, arose at that time between the Stadtholder and the magistrates of the aristocracy. The party of the Stadtholder clung to the strict Calvinistic doctrines; the aristocratic party were in favour of milder and more conciliatory views, which besides allotted to the temporal power no small influence over the clergy, as Arminius had maintained in his lectures at Leyden. After his death a German professor, Conrad Vorstius, had been invited to Holland, who added to the opinions of his predecessor others which deviated still more widely from Calvinism, and inclined to Socinianism. The world has always felt astonished that King James took a side in this controversy, wrote a book against Vorstius, and did not rest till he had been ejected from his office. In fact learned rivalry was not the only motive which induced him to take pen in hand: we perceive that the adherents of Arminius, the supporters of Vorstius, were obnoxious to him on political grounds also. The leaders of the burgher aristocracy showed a marked coldness to the interests of England after the conclusion of the truce, and a leaning to those of France. The King moreover was of opinion that positive orthodoxy was necessary for maintaining the conflict with Catholicism, and for upholding a state founded on religion: and he sent an invitation to the Prince of Orange to unite with him in this cause. The strict Calvinism of the prince was at the same time an act of homage to England.

While religious and political affairs were in this state of perplexity, which extended to the French Reformed Church as well, a marriage was settled between the Princess Elizabeth of England and the Elector Palatine, Frederick V.

This young prince, who at that time was still a ward, had the prospect of succeeding at an unusually early age to a position in which he could exert an influence on the German empire. By the mother's side he was grandson of the founder of Dutch independence, William of Orange; his uncles were the Stadtholder Maurice and the Duke of Bouillon, who might be considered the head of the Reformed Communion in France, and who had

married another daughter of William. Frederick had spent some years with the Duke at Sedan. The Duke of Bouillon, like Maurice, took an active part in various ways in the European politics of that age: these two men stood at the head of that party on the continent which most zealously opposed the Papacy and the house of Austria. Bouillon had first directed the attention of James to the young Frederick, and had painted to him his good qualities and his great prospects, and, although not without reserve, had pronounced a match between him and the Princess Elizabeth desirable,^[352] as it would form a dynastic tie between the Protestantism of England and that of the continent. The brother of the Duke of Wurtemberg, Louis Frederick, who then resided in England on behalf of the Union, still more decidedly advocated the match. He told the King that he would have in the young count not so much a son-in-law, as a servant who depended on his nod; and that he would pledge all the German princes to his interest by this means.^[353] After the conclusion of the alliance at Wesel the Count of Hanau, who was likewise married to a daughter of William, visited London with two privy councillors of the Palatinate, in order to bring the matter to an issue: they were to meet there with the Duke of Bouillon, to whose advice they had been expressly referred. Another suit for the hand of the Princess was then before the English court. The Duke of Savoy had made proposals for a double marriage between his two children and the English prince and princess. There appeared to be almost a match between Catholic and Protestant princes to decide which party should bear off 'this pearl,' the Princess of England. Without doubt religious considerations mainly carried the day in favour of the German suitor. The Princess displayed great zeal in behalf of Protestantism; and James said that he would not allow his daughter to be restricted in the exercise of her religion, not even if she were to be Queen of the world.^[354] On the 16th of May the members of the Privy Council signed the contract in which the marriage was agreed upon between 'My Lady Elizabeth,' only daughter of the King, and the Grand-Master of the Household and Elector of the Holy Roman Empire, Frederick Count Palatine, and the necessary provisions were made as to dower and settlements. This may be regarded as the last work of Robert Cecil: he died a few days after. The pulpits had attacked the marriage of the princess with a Catholic, and had exhorted the people to pray for her marriage with a Protestant. The common feeling of Protestants was gratified when this result came to pass.

The question of the future marriage of Henry Frederick Prince of Wales was treated in a kindred spirit though not exactly in the same way.

All eyes were already directed to this young prince and his future prospects. He was serious and reserved; a man of few words, sound judgment, and lofty ideas; and he gave signs of an ambitious desire to rival his most famous predecessors on the throne.^[355] He understood the calling of sovereign in a different sense from his father. On one occasion when his father set his younger brother before him as a model of industry in the pursuit of science, he replied that he would make a very good archbishop of Canterbury. For one who was to wear the crown skill in arms and knowledge of seamanship seemed to him indispensable; he made it his most zealous study to acquire both the one and the other. His intention undoubtedly was to make every provision for the great war against the Spanish monarchy which was anticipated. He wished to escort his sister to Germany in order to form a personal acquaintance with the princes of the Union, whom he regarded as his natural allies. These views could not have been thwarted if the proposal of the Duke of Savoy, which had been rejected in behalf of the Princess, had been accepted in behalf of the Prince.^[356] For every day the Duke separated himself more and more from the policy of Spain: he had even wished at one time to be admitted into the Union. He offered a large portion with the hand of his daughter, and was ready to agree to those restrictions in the exercise of her religion which it might be thought necessary to prescribe. Meanwhile, however, another project came up. The grandees of France wished to bring a prince of such high endowments and decided views into the closest relations with the house of Bourbon, in order to oppose the action of Spain on the French court by another influence. They made proposals for a marriage between the Prince of Wales and the second daughter of Henry IV, the Lady Christine of France. They found the most cordial reception for this scheme among the English who favoured Protestantism, and understood the course of the world. It was thought that the new League, for this was the designation given to the increasing preponderance of Spanish and Catholic views in France, would by this means be thrown into confusion in its own camp; the French government would be brought back to its old attitude of hostility towards Spain, and would only thus be completely sure of the States General, which could never separate themselves both from England and

France at the same time. The Prince embraced the notion that the Princess must immediately be brought to England to be instructed in the Protestant faith, and perhaps to be converted to it. As she was still very young his notion was so far reasonable, although in other respects her age was a considerable obstacle. While he referred the decision to his father, he yet made a remark which shows his own leanings, that this marriage would certainly be most acceptable to all his brother Protestants.^[357] What a prospect would have dawned on these if a young and energetic king of England, confederate with Germany and Holland, and looked up to in France for a double reason, both on account of the old and still unforgotten claims,^[358] and on account of his marriage, had taken the Huguenots under his protection or actually appealed to them in his own behalf!

The 5th of November 1612 was fixed as the day on which the question was to be decided by a commission expressly appointed for this purpose. King James, who is represented as favourable to the connexion with France, went from Theobald's to the meeting: the Prince had drawn out for himself the arguments by which he thought to refute the objections of opponents. On the very same day he was taken ill, and was obliged to ask for an adjournment; but from day to day and hour to hour his illness became more dangerous. He exhibited a composed and, when addressed on religious questions, a devout frame of mind, but he did not wish to die. When some one said to him that God only could heal him, he replied that perhaps the physicians also might do something. On the 17th of November, two hours after midnight, he died—'the flower of his house,' as men said, 'the palladium of the country, the terror of his foes.' They even went so far as to put him at this early age on a level with Henry IV, who had been proved by a life full of struggles and vicissitudes. The comparison rested on the circumstance that the young and highly-gifted prince was forced to succumb to an unexpected misfortune while preparing for great undertakings which, like those of Henry IV, were to be directed against Spain.

It is very probable that this prince, if he had lived to ascend the English throne, would have attempted to give to affairs a turn suitable to the vigorous designs which engrossed his thoughts. According to all appearance he would not have trodden in the footsteps of his father. He appeared quite capable of reviving the old plans of conquest entertained by the house of

Lancaster: he would have united outspoken Protestant tendencies with the monarchical views of Edward VI, or rather of Elizabeth. With the men who then held the chief power in England he had no points of agreement, and they already feared him.^[359] They were even accused of having caused his premature death.

Yet the course which had been struck out with the co-operation of the young prince was not abandoned at his death.

The Elector Palatine had already arrived in London. His demeanour and behaviour quieted the doubts of one party and put to shame the predictions of the other: he appeared manly, firm, bent on high aims, and dignified: he knew how to win over even the Queen who at first was unfavourable to him. Letters exchanged at that time are full of the joy with which the marriage was welcomed by the Protestants. But it was just as decidedly unwelcome to the other party. An expression which was then reported in Brussels shewed how lively the hatred was, and how widely and how far into the future political combinations extended. It was said that this marriage was designed to wrest the Imperial throne from the house of Austria; but it was added, with haughty reliance on the strength of Catholic Europe, that this design should never succeed.^[360]

Another collision seemed at times to be immediately impending. In the year 1613 the English government sent to ask the districts most exposed to a Spanish invasion, how many troops they could severally oppose to it, and had appointed the fire signals which were to announce the coming danger. It is indeed not wonderful that under such circumstances it continued the policy which was calculated to promote a general European opposition to the Spaniards.

When the French grandees thought fit to contest the Spanish marriages which Mary de' Medici made up, they had King James on their side, who regarded it as the natural right of princes of the blood to undertake the charge of public affairs during a minority. At the meeting of the Estates in 1614, it was their intention to get the government into their hands, and then to bring it back again to the line of policy of Henry IV. The English ambassador, Edmonds, showed that he concurred with them.

Soon afterwards the differences between the Duke of Savoy and the Spanish governor in Milan terminated in an open rupture. The French grandees, though they had not carried their point in the States-General, yet showed themselves independent and strong enough to follow their own wishes in interfering in this matter. While the Queen-Regent supported the Spaniards, they came to the assistance of the Duke. In this struggle King James also came forward on his side in concert with the Republic of Venice, which was still able to throw a considerable weight into the scale on an Italian question.

The cause of Savoy appeared the common cause of opposition to Spain. James deemed himself happy in being able to do something further for that object by removing the misunderstanding which existed between Protestant Switzerland and the Duke. On his own side he carefully upheld the old connexion between England and the Cantons. He gave out that in this manner the territories of his allies would extend to the very borders of Italy, for Protestant Switzerland formed the connecting link between his friends in that country and the German Union which, in turn, bordered on the Netherlands.

With the same view, in order that his allies might not have their hands tied elsewhere, he laboured to remove the dissensions between Saxony and Brandenburg, and between the States-General and Denmark. At the repeated request of certain German princes, he made it his business to put an end, by his intervention, to the war that had broken out between Sweden and Denmark. By the mediation of his ambassadors the agreement of Knäröd was arrived at, which regulated the relations between the Northern kingdoms for a considerable time. James saw his name at the head of an agreement which settled the rights of sovereignty in the extreme North 'from Tittisfiord to Weranger,' and had the satisfaction of finding that the ratification of this agreement by his own hand was deemed necessary.^[361] A general union of the Protestant kingdoms and states was contemplated in this arrangement.

In connexion with this, the commercial relations that had been long ago concluded with Russia assumed a political character. During the quarrels about the succession to the throne, when Moscow was in danger of falling under the dominion of Poland, which in this matter was supported by

Catholic Europe, the Russians sought the help of Germany, of the Netherlands, and especially of England. We learn that the house of Romanoff offered to put itself in a position of inferiority to King James, who appeared as the supreme head of the Protestant world, if he would free Russia from the invasion of the Poles.

Already in the time of Elizabeth the opposition to the Spanish monarchy had caused the English government to make advances to the Turks.

Just at the period when the fiercest struggle was preparing, at the time when Philip II was making preparations for annexing Portugal, the Queen determined to shut her eyes to the scruples which hitherto had generally deterred Christian princes from entering into an alliance with unbelievers. It is worth noticing that from the beginning East Indian interests were the means of drawing these powers nearer to one another. Elizabeth directed the attention of the Turks to the serious obstacles that would be thrown in their way, if the Portuguese colonies in that quarter were conquered by the far more powerful Spaniards.^[362] The commercial relations between the two kingdoms themselves presented another obvious consideration. England seized the first opportunity for throwing off the protection of the French flag, which had hitherto sheltered her, and in a short time was much rather able to protect the Dutch who were still closely allied with her. The Turks greatly desired to form a connexion with a naval power independent of the religious impulses which threatened to bring the neighbouring powers of the West into the field against them. They knew that the English would never co-operate against them with Spaniards and French. Political and commercial interests were thus intertwined with one another. A Levant company was founded, at the proposal of which the ambassadors were nominated, both of whom enjoyed a considerable influence under James I.

As in these transactions attention was principally directed to the commerce in the products of the East Indies carried on through the medium of Turkish harbours, was it not to be expected that an attempt should be made to open direct communication with that country? The Dutch had already anticipated the English in that quarter; but Elizabeth was for a long time withheld by anxiety lest the negotiations for peace with Spain, which were just about to be opened, should be interrupted by such an enterprise. Yet under her government the company was formed for trading with the East Indies, to

which, among other exceptional privileges, the right of acquiring territory was granted. It was only bound to hold aloof from those provinces which were in the possession of Christian sovereigns. We have seen how carefully in the peace which James I concluded with Spain everything was avoided which could have interrupted this commerce. James confirmed this company by a charter which was not limited to any particular time. And in the very first contracts which this company concluded with the great Mogul, Jehangir, they had the right bestowed on them of fortifying the principal factories which were made over to them. The native powers regarded the English as their allies against the Spaniards and Portuguese.

In the year 1612 Shirley, a former friend of Essex, who had been induced by the Earl himself to go to the East, and who had there formed a close alliance with Shah Abbas, returned to England, where he appeared wearing a turban and accompanied by a Persian wife. He entrusted the child of this marriage to the guardianship of the Queen, when he again set off for Persia, in order to open up the commerce of England in the Persian Gulf.

But it was a still more important matter that the attempts which had been made under the Queen to set foot permanently on the other hemisphere could now be brought to a successful issue under King James. It may perhaps be affirmed that, so long as the countries were at open war, these attempts could not have been made, unless Spain had first been completely conquered. England could not resume her old designs until a peace had been concluded, which, if it did not expressly allow new settlements, yet did not expressly forbid them, but rather perhaps tacitly reserved the right of forming them. Under the impulse which the discovery of the Gunpowder Plot gave, I will not say to war, but certainly to continued opposition to Spain, the King bestowed on the companies formed for that purpose the charters on which the colonisation of North America was founded. The settlement of Virginia was again undertaken, and, although in constant danger of destruction from the opposition of warlike natives and the dissensions of its founders, yet at last by the union of strict law and personal energy it was quickened into life, and kindled the jealousy of the Spaniards. They feared especially that it would throw obstacles in the way of the homeward and outward voyages of their fleets.^[363] Their hands, however, were tied by the peace: and we learn that when they made overtures for the marriage of the Prince of Wales with a Spanish Infanta, they proposed at the

same time that this colony should be given up. But the Prince of Wales from the interest which he took in all maritime enterprises was just the man to exert himself most warmly in its behalf. Under his auspices a new expedition was equipped, which did not sail till after his death, and then materially contributed to secure the colony. Not without good reason have the colonists commemorated his name.

How immensely important at least for England have her relations with the Spanish monarchy been shown to be! She had been formerly its ally, its attacks she had then withstood, and now resisted it at every turn. Only in rivalry with this power, and in opposition to it, was the great Island of the West brought into relations, for which it was suited by its geographical position, with every part of the known world.

NOTES:

[343] Contarini, Relatione 1610: 'Pareva che nelli moti passati col papa avesse la republica aggradito Più l'offerte dei Inglesi che gli offizii et interpositioni di Franza e da quelle pia che da questi riconosciuto l'accommodamento: il che per tutta la Franza si è potuto comprendere.'

[344] The Lords of the Privy Council to Sir Richard Spencer and Sir Ralph Winwood. Aug. 1, 1608. In Winwood ii. 429.

[345] This is affirmed by Bentivoglio, who as Nuncio at Brussels was closely acquainted with these transactions. Historia della guerra di Fiandra iii. 490.

[346] Winwood to Salisbury, October 7, 1609. Memorials iii. 78.

[347] Molino: 'E huomo astuto sagace e persecutore acerrimo de' suoi nemici ... ne a avuto multi et tutti egli a fatto precipitare.'

[348] Ibid.: 'L'autorità del quale è cosi assoluta, che con verità si puo dire essere egli il re e governatore di quella monarchia'

[349] Alligantia inter regem et electores Germaniae, in Rymer vii. ii. 178.

[350] Francesco Contarini visited him in September 1610 in the country, and joined him in the chase, on which occasion James touched on various topics in conversation: 'De' pensieri di Spagnoli con poca loro laude ... non mostro far alcun conto del Duca di Sassonia suo cognato ni della investitura data li dall'imperatore nel ducato di Cleves.'

[351] Beaulieu to Trumbull, Paris, June 29, 1612: 'Both from this state (France) and the state of England it hath been plainly enough intimated unto them (the Spaniards) that if they would go about to make the Archduke Albert Emperor or king of the Romans, both these states with their allies would set the rest to hinder it.'

[352] Green, *Princesses of England* v. 180; De la Boderie ii. 248.

[353] This is the report of A. Foscarini, Jan. 20, 1612.

[354] Winwood to Trumbull, *Memorials* iii. 357.

[355] Corroero 1609, May 20: 'Non solo riesce esquisitamente in tutti gli esercitii del corpo, ma si dimostra nelle attioni sue molto giudicioso e prudente.'—Ant. Foscarini 1612: 'Amplissimi erano i suoi concetti; di natura grave severa ritenuta di pochissime parole.'

[356] W. Raleigh: On a marriage between Prince Henry and a daughter of Savoy. *Works* viii. 237.

[357] Given in French by Levassor, *Histoire de Louis XIII*, i. 2, 347. So far as I know, the original has not yet been brought to light, although its genuineness cannot be doubted, as Levassor was acquainted with Robert Carr's letter to the Prince, which was first printed by Ellis ii. iii. 229.

[358] Foscarini, to whom we are indebted for information on many of these points: 'teneva mal animo contra Spagna e pretension in Francia.'

[359] It was affirmed that Henry Howard (Earl of Northampton) had been heard to say that 'the prince if ever he came to reign would prove a tyrant.' Bacon: *Somerset's Business and Charge*. *Works* vi. 100.

[360] Trumbull to Winwood, March 2, 1613. 'These men are enraged, fearing that we do aim at the wresting of the empire out of the Austrians hand which they say shall never be effected so long as the conjoyned forces of all the Catholiques in Christendom shall be able to maintain them in that right.' Winwood, *Mem.* iii. 439.

[361] Dispaccio di Antonio Foscarini, 5 Luglio 1612: 'Si aplica il re assai il pensiero a metter in pace li due re di Suecia e Danimarca et hieri fu qui di ritorno uno de' gentilhuomini inviati per tal fine:—poi si camineva immediatamente a stringere unione con tutti li principi di religione riformata.'

[362] A letter of Germigny in Charrière, *Negociations de la France dans le Levant* iii. 885 n, mentions the representations of the first agent. 'Cet Anglais avait remontré l'importance de l'agrandissement du roy d'Espagne mesmes où il s'impatroniroit de Portugal et des terres despendantes du dit royaume voisines à ce Seigneur au Levant.'

[363] A. Foscarini 1612, 9 Ag.: 'Preme grandemente a Spagnoli veder sempre Più stabilirsi la colonia in Virginia non perche stimino quel paese nel quale non è abondanza nè minera d'oro—ma perche femandovisi Inglesi con li vascelli loro, correndo quel mare impedirebbono la flotte.' 1613 Marzo 8: 'Le navi destinate per Virginia al numero di tre sono passate a quella volta e se ne allestiranno anco altre degli interessati in quella popolatione.'

CHAPTER V.

PARLIAMENTS OF 1610 AND 1614.

For the full occupation of this position in the world, and for maintaining and extending it, nothing was more necessary than internal harmony in Great Britain, not only between the two kingdoms, but also in each of them at home. While Robert Cecil procured full recognition for considerations of foreign policy, he conceived the further design of bringing about such an unity above all things in England itself, as, if successful, would have procured for the power of the King an authority paramount to all the other elements of the constitution.

The greatest standing evil from which the existing government suffered, was the inequality between income and expenditure; and if the lavish profusion of the King was partly responsible for this, yet there were also many other reasons for it. The late Queen had left behind no inconsiderable weight of debt, occasioned by the cost of the Irish war: to this were added the expenses of her obsequies, of the coronation, and of the first arrangements under the new reign. Visits of foreign princes, the reception and the despatch of great embassies, had caused still further extraordinary outlay; and the separate court-establishments of the King, the Queen, and the Prince, made a constant deficit inevitable. Perpetual embarrassment was the result.

James I expresses himself with a sort of naive ingenuousness in a letter to the Lords of Council of the year 1607. In this letter he exhorts them not to present to him any 'sute wherof none of yourselves can guess what the vallew may prove,' but rather to help him to cut off superfluous expenses, as far as was consistent with the honour of the kingdom, and to assist him to new lawful sources of revenue, A.D. 1610. without throwing an unjust burden upon the people. 'The only disease and consumption which I can ever apprehend as likeliest to endanger me, is this eating canker of want, which being removed I could think myself as happy in all other respects as any other king or monarch that ever was since the birth of Christ: in this disease

I am the patient, and yee have promised to be the physicians, and to use the best care uppon me that your witte, faithfulness and diligence can reach unto.^[364]

As Lord Treasurer, Robert Cecil had the task of taking in hand the conduct of this affair also. He had refused to make disbursements which he thought improper, but to which the King had notwithstanding allowed himself to be led away: he would not hear of increasing the revenue by such means as the sale of offices, a custom which seemed to be at that time transplanting itself from France into England. He sought to add to the revenue in the first place by further taxation of the largely increasing commerce of the country. And as tonnage and poundage had been once for all granted to the King, he thought it appropriate and permissible to raise the custom-house duties as an administrative measure. Soon after the new government had come into power it had undertaken the rearrangement of the tariff to suit the circumstances of the time. Cecil, who was confirmed in his purpose by a decision of the judges to the effect that his conduct was perfectly legal, conferred with the principal members of the commercial class on the amount and nature of the increase of duty.^[365] The plan which they embraced in accordance with the views prevalent at the time contemplated that the burden should principally fall upon foreigners.

The advantages which were obtained by this means were not inconsiderable. The Custom-House receipts were gradually increased under King James by one-half; but yet this was a slow process and could not meet the wants that likewise kept growing. The Lord Treasurer decided to submit a comprehensive scheme to Parliament, in order to effect a radical cure of the evil. The importance of the matter will be our excuse for examining it in detail.

He explained to them that a considerable increase of income (which he put down at £82,000) was required to cover the regular expenditure, but that a still greater sum was needed for casual expenses, for which in the state, as in every household, certainly a quarter of the sum reached by the regular expenditure was required. He therefore proposed that £600,000 should be at once granted him for paying off the debt, and that in future years the royal income should be raised by £200,000.

This request was so comprehensive and so far beyond all precedent, that it could never have been made without a corresponding offer of concessions on a large scale. The Earl of Salisbury in his proposal formally invited the Parliament to adduce the grievances which it had, and promised in the King's name to redress all such so far as lay in his power. It is affirmed that his clear-sighted and vigorous speech made a favourable impression. Parliament in turn acceded to the proposal, and alleged its most important grievances. They affected both ecclesiastical and financial interests: among the latter class that which concerned the Court of Wards is the most important historically.

Of the institutions by which the Normans and Plantagenets held their feudal state together, none perhaps was more effectual than the right of guardianship over minors, whose property the kings managed for their own advantage. They stepped as it were into the rights of fathers; even the marriage of wards depended on their pleasure. From the time of Henry VIII a court for the exercise of this jurisdiction and for feudal tenures generally had existed, which instituted enquiries into the neglect of prescriptive custom, and punished it. One of the most important offices was that of President of the Court, which was very lucrative, and conferred personal influence in various ways. It had been long filled by Robert Cecil himself.

The Lower House now proposed in the first place that this right and the machinery created to enforce it, which gave birth to various acts of despotism, should be abolished. How often had the property of wards been ruined by those to whom the rights of the state were transferred. The debts which were chargeable against them were never paid.^[366] The Lower House desired that not only the royal prerogatives, but also that the kindred rights of the great men of the kingdom over their vassals should cease, and especially that property held on feudal tenures should be made allodial.

It is evident what great interests were involved in this scheme, which was thoroughly monarchical, and at the same time was opposed to feudalism. Its execution would have put an end to the feudal tie which now had no more vitality, and appeared nothing more than a burden; but at the same time the crown would have been provided with a regular and sufficient income, and, what is more, would have been tolerably independent of the grants of Parliament, so soon as an orderly domestic system was introduced. We can

understand that in bringing this matter to an issue a minister of monarchical views might see an appropriate conclusion to a life or rather two lives, his father's and his own, dedicated to the service of the sovereign. And it appeared that he might well hope to succeed, as a considerable alleviation was offered at the same time to the King's subjects as well.

The King reminded them that the feudal prerogative formed one of the fairest jewels of his crown, that it was an heirloom from his forefathers which he could not surrender; honour, conscience, and interest, equally forbade it. The Lower House replied that it would not dispute about honour and conscience, but as to interest, that might be arranged. They were ready by formal contract to indemnify the crown for the loss which it would suffer.^[367]

The crown demanded £100,000 as a compensation for the loss it would suffer; and besides this, the £200,000 before mentioned which it required for restoring the balance between income and expenditure. We need not here reproduce the repulsive spectacle presented by the abatement of demands on the one side, and the increase of offers on the other. At last the Lord Treasurer adhered to the demand for £200,000 everything included. He declared that if this was refused the King would never again make a similar offer. On this at last the Parliament declared itself ready to grant the sum; but, even then, set up further conditions about which they could not come to an immediate agreement, so that their mutual claims were not yet definitively adjusted.

On the contrary these negotiations had by degrees assumed a tone of some irritation. Parliament found that the Earl of Salisbury had acted unconstitutionally in proposing to raise the scale of duties without its consent, and would not be content with his reference to the decision of the judges mentioned above, and to the conferences with the merchants. He endeavoured at a private interview with some of the leading members to bring round the opinion to his side: but the House was angry with those who had been present at it, and their good intentions were called in question.^[368]

The speeches also, with which the King twice interrupted the proceedings, produced an undesirable effect. He was inclined to meet the general wishes,

without surrendering however any part of his prerogatives. But at the same time he expressed himself about these in the exaggerated manner peculiar to him, which was exactly calculated to arouse contradiction.^[369] Whilst he was comparing the royal power to the divine, he found that the House on one pretext or another refused even to open a letter which he had addressed to them about the speech of some member which had displeased him: on the contrary he was obliged to receive back into favour the very member who had affronted him. Parliament regarded liberty of speech as the Palladium of its efficiency; foreigners were astonished at the recklessness with which members expressed themselves about the government.

As a rule the investigation of relative rights has an unfavourable result for those who are in actual possession of authority. The prerogative which the King exalted so highly presented itself to the Parliament in an obnoxious aspect. In the debates on the contract the question was raised, how Sampson's hands could be bound, that is to say, how the King's prerogative could be so far restricted as to prevent him from breaking or overstepping the agreement.

During a dispute with the House of Lords the sentiment was uttered, that the members of the Lower House as representing the Commons ranked higher than the Lords, each of whom represented only himself.^[370] It is easy to see how far this principle might lead.

Even his darling project of combining England and Scotland into a single kingdom could not be carried out by the King in the successive sessions of Parliament. One of the leading spirits of the age, Francis Bacon, was on his side in this matter as in others. When it was objected that it was no advantage to the English to take the poverty-stricken Scots into partnership, as for example in commercial affairs, he returned answer, that merchants might reckon in this way, but no one who rose to great views: united with Scotland, England would become one of the greatest monarchies that the world had ever seen; but who did not perceive that a complete fusion of both elements was needed for this? Security against the recurrence of the old divisions could not be obtained until this was effected. Owing to the influence of Bacon, who at that time had become Solicitor-General, the question of the naturalisation of all those born in Scotland after James had ascended the English throne, was decided with but slight opposition, in a

sense favourable to the union of the two kingdoms, by the Lord Chancellor and the Judges. The decision however was not accepted by Parliament. And when the question was now raised how far the assent of Parliament was necessary in a case like this, the adverse declaration of the Lord Chancellor was exactly calculated to provoke a contest of principle in this matter also. [371] With the advice of the Lord Chancellor and the Council James had declared himself King of Great Britain, and had expressed the wish that the names of England and Scotland might be henceforth obliterated; but his Proclamation was not considered sufficient without the assent of Parliament; and in this case the judges took the side of the Parliament. The dynastic ideas with which James had commenced his reign could not but serve to resuscitate the claim of Parliament to the possession of the legislative power. At other times the precedents adduced by the Lord Chancellor in the debate on the 'post-nati' might have controlled their decision: at the present time they no longer made any impression. The opposition of political ideas came to the surface in this matter as in others. The King held the strongly monarchical view that the populations of both countries were united with one another by the mere fact of their being both subject to him. To this the Parliament opposed the doctrine that the two crowns were distinct sovereignties, and that the legislation of the two countries could not be united. They wished to fetter the King to the old legal position which they were far more anxious to contract than to expand.

The consequences must have been incalculable, if the Earl of Salisbury and the Lord Chancellor had succeeded in carrying out their intentions. A common government of the two countries would have held in all important questions a position independent of the two Parliaments, and the person of the sovereign would have been the ruling centre of this government. If besides an adequate income had been definitely assigned to the crown independent of the regularly recurring assent of Parliament, what would have become of the rights of that body? Not only would Elizabeth's mode of government have been continued, but the monarchicalA.D. 1613. element which could appeal to various precedents in its own favour would probably have obtained a complete ascendancy.

But for that very reason these efforts were met by a most decided opposition. It is plain that these rival pretensions, and the motive from

which they sprang, paved the way for controversies of the most extensive kind.

The scheme of the contract was as little successful as that of the union of the two kingdoms. The parties were contented with merely removing the occasion for an immediate rupture; and after some short prorogations Parliament was finally dissolved.

The King, who felt himself aggrieved by its whole attitude as well as by many single expressions, was reluctant to call another. In order to meet his extraordinary necessities recourse was had to various old devices and to some new ones; for instance, the creation of a great number of baronets in 1612, on payment of considerable sums: but notwithstanding all this, in the year 1613 matters had gone so far, that neither the ambassadors to foreign courts, nor even the troops which were maintained could be paid. In the garrison of Brill a mutiny had arisen on this account; the strongholds on the coast and the fortifications on the adjacent islands went to ruin. For this as well as for other reasons the death of the Earl of Salisbury was a misfortune. The man on whom James I next bestowed his principal confidence, Robert Carr, then Lord Rochester, later Earl of Somerset, was already condemned by the popular voice because he was a Scot, who moreover had no other merit than a pleasing person, which procured him the favour of the King. The authority enjoyed by the Howards had already provoked dissatisfaction. The Prince of Wales had been their decided adversary, and this enmity was kept up by all his friends. Robert Carr, however, thought it advisable to win over to his side this powerful family to which he had at first found himself in opposition. Whether from personal ambition or from a temper that really mocked at all law and morality he married Frances Howard, whose union with the Earl of Essex had to be dissolved for this object.^[372] A.D. 1614. The old enemies of the Howards, the adherents of the house of Essex, many of whom had inherited this enmity, now became the opponents of the favourite and his government. When at last urgent financial necessities allowed no other alternative, and absolutely compelled the issue of a summons for a new parliament, the contending parties seized the opportunity of confronting one another. The creatures of the government neglected no means of controlling the elections by their influence; but they were everywhere encountered by the other party, who were favoured by the increasing dissatisfaction of the people.

At the opening of Parliament in April 1614, and on two occasions afterwards, the King addressed the Lower House. Among all the scholastic distinctions, complaints of the past, and assurances for the future, in which after his usual fashion he indulges, we can still perceive the fundamental idea, that if even the subsidies which he required and asked were granted him, he would notwithstanding agree to no conditions on his side, and take upon himself no distinct pledges. He was resolved no longer to play the game of making concessions in order to ask for something in return, as he had done some years before; he found that far beneath his dignity. Still less could he consent that all the grievances that might have arisen should be heaped up and presented to him, for that would be injurious to the honour of the government. Each one, he said, might lay before him the grievances which he experienced in his own town or in his own county; he would then attend to their redress one by one. In the same way he would deal with each House separately. If he is reproached with endeavouring to extend his prerogatives he denies the charge; but he affirms that he cannot allow them to be abridged, but that, in exercising them, he would behave as well as the best prince England ever had.^[373] He has no conception of a relation based on mutual rights; he acknowledges only a relation of confidence and affection. In return for liberal concessions he promises liberal favour.

This was a view of things resting upon a patriarchal conception of kingly power, in favour of which analogies might no doubt have been found in the early state of the kingdoms of the West, but which was now becoming more and more obsolete. What had still been possible under Elizabeth, when the sovereign and her Parliament formed one party, was no longer so now; especially as a man who had attracted universal hatred stood at the head of affairs. Besides this a dispute was already going on which we cannot pass over in silence.

It arose upon the same matter which had caused such grave embarrassment to the Earl of Salisbury, the unlimited exercise of the right of levying tonnage and poundage entirely at the discretion of the government. It was affirmed that the Custom-House receipts had increased more than twentyfold since the commencement of James's reign, and that a great part of the increased returns was enjoyed by favoured private individuals. The Lower House demanded first of all an examination into the right of the

government, and declared that without it they would not proceed to vote any grant.^[374]

In the Lower House itself on one occasion a lively debate arose on the subject. The opinion was advanced on the part of the friends of the government that, in this respect as in others, a difference existed between hereditary and elective monarchies, that in the first class, which included England, the prerogative was far more extensive than in the latter. Henry Wotton, and Winwood, who had been long employed on foreign embassies, explained what a great advantage in regard to their collective revenues other states derived from indirect taxes and customs. But by this statement they awakened redoubled opposition. They were told that the raising of these imposts in France had not been approved by the Estates and was in fact illegal; that the King of Spain had been forced to atone for the attempt to introduce them into the Netherlands by the loss of the greater part of the provinces. Thomas Wentworth especially broke out into violent invectives against the neighbouring sovereigns, which even called forth remonstrances from the embassies. He warned the King of England that in his case also similar measures would lead to his complete ruin.^[375] It was not only urged that England ought not to take example by any foreign country, but the very distinction drawn between elective and hereditary monarchies suggested a question whether England after all was so entirely a hereditary monarchy as was asserted. It was asked if it might not rather be said that James I, who was one of a number of claimants who had all equally good rights, owed his accession to a voluntary preference on the part of the nation, which might be regarded as a sort of election. These were ideas of unlimited range, and flatly contradicted those which James had formed on the rights of birth and inheritance. He felt himself outraged by their expression in the Lower House.

In order to give the force of a general resolution to their assertion, that in England the prerogative did not include the fixing of the amount of taxes and customs without the consent of Parliament, the Commons had made proposals for a conference with the Upper House. But hereupon the higher clergy declared themselves hostile, not only to their opinion, but even to the bare project of a conference. Neil, Bishop of Lincoln, affirmed that the oath taken to the King in itself forbade them to participate in such a conference; that the matter affected not so much a branch of the royal prerogative as its

very root; that the Lords moreover would have to listen to seditious speeches, the aim and intention of which could only be to bring about a division between the King and his subjects. The Lord Chancellor had asked the judges for their opinion; but they had declined to give any. The result was that the Upper House did not accede to the proposal of a conference.

The Commons were greatly irritated at the resistance which was offered to their first step. They too in conferences which related to other matters disdained to enter into the subjects brought before them. They complained loudly of the insulting expressions of the bishop which had been repeated to them. An exculpatory statement of the Upper House did not content them; they demanded full satisfaction as in an affair of honour, and until this had been furnished them they declared themselves determined to make no progress with any other matter.

The King however on his side now lost patience at this. He considered that an attack was made on the highest power when the general progress of business was hindered for the sake of a single question, and he appointed a day on which this affair of the subsidy must be disposed of. He said that, if it were not settled, he would dissolve Parliament.

One would not expect such a declaration to change the temper of the Lower House. Speeches were heard still more violent than those previously made. The Scots, to whose influence every untoward occurrence was imputed, were threatened with a repetition of the Sicilian Vespers. There were other members however who counselled moderation; for it almost appeared as if the dissolution of this Parliament might be the dissolution of all parliaments. Commissioners were once more sent to the King in order to give another turn to the negotiations. The King declared that he knew full well how far his rights extended, and that he could not allow his prerogatives to be called in question.^[376]

These passionate ebullitions of feeling against the Scots, although they referred to matters of a more alarming, but happily of an entirely different nature, made the King anxious lest the destruction of his favourites, or even his own ruin, might be required to content his adversaries. On the 7th of June he dissolved Parliament. He thought himself entitled to bring up for punishment the loudest and most reckless speakers, as well as some other

noted men from whom these speakers had received their impulse, for instance Cornwallis, the former ambassador in Spain. He considered that they had intended to upset the government: not only had they failed, but they themselves must atone for the attempt.^[377]

The estrangement was not too great to allow the hope of a reconciliation. It had been represented to the King that he ought not to be ready to regard financial concessions as a compliance unbecoming to the crown, for that in these matters he was at no disadvantage as compared with any person or any foreign power; that on the contrary the decision always proceeded from himself; that he was the head who cared for the welfare of the members. It was said that he need by no means fear that men would make use of his wants to lay fetters on him; that bonds laid by subjects on their sovereigns were merely cobwebs which he might tear asunder at any moment. Even Walter Raleigh had stated this.^[378] But the King had no inclination, after the Parliament had repelled his overtures with rude opposition, to expose himself by summoning a new one to new attacks on his prerogatives as he understood them. By the voluntary or forced contributions of different corporations, especially of the clergy and of the great men of the kingdom, he was placed in a condition to carry on his government in the ordinary way. Every measure which would have necessitated a great outlay was avoided.

It is plain however into what a disagreeable position he was thus brought. His whole method of government was based upon the superiority of England. He had at that time brought the system of the Church in Scotland nearer to the English model. The bishops in that country had even received their consecration from the English. But he had not effected this without violent acts of usurpation. He had been obliged to remove his most active opponents out of the country; but even in their absence they kept up the excitement of men's feelings by their writings. The Presbyterians saw in everything which he succeeded in doing, the work of cunning on the one side and treachery on the other, and gave vent to the deepest displeasure at his deviation from their solemn Covenant with God.

Relying on the right of England, but for the first time inviting immigrants from Scotland, James undertook the systematic establishment of colonies in Ireland. The additional strength however which by this means accrued to

the Protestant and Teutonic element entirely annihilated all leanings which had been shown in his favour at his accession to the crown, and aroused against him the strongest national and religious antipathies of the native population in that country.

He then met with this opposition in Parliament which hampered all his movements. It was foreign to his natural disposition to think of effecting a radical removal of the misunderstanding that had arisen. On the contrary he kept adding fresh fuel to it on account of the deficiencies of his government, which began to impair his former importance. The immediate consequence was that in foreign affairs he was no longer able to maintain the position which he had taken up as vigorously as might have been wished. His allies pressed him incessantly to bestow help on them: but if even he had wished it, this was no longer in his power. It was not that Parliament in withholding his supplies had disapproved of the object which they were intended to serve. On the contrary the Parliament lamented that this object was not pursued with sufficient earnestness; but it wished above all to extend its right of sanction over the whole domain of the public revenues. But the King was not inclined to treat with Parliament for the supplies of money required; he feared to incur the necessity of repaying its grants by concessions which would abridge the ancient rights of his crown. The centre of gravity of public affairs must lie somewhere or other. The question was already raised in England whether for the future it was to be in the power of the King and his ministers, or in the authority of Parliament.

NOTES:

[364] Letter to the Lords, anno 1607: in Strype, *Annals* iv. 560.

[365] Antonio Correro, 25 Giugno 1608: 'Con l'autorità ch'egli tiene con li mercanti di questa piazza li ha indutti a sottoporsi ad una nova gravezza posta sopra le merci che vengono e vanno da questo regno.'

[366] Molino: 'La gabella dei pupilli porge materia grande a sudditi di dolorsene e d'esclamare sino al celo studiando ogn'uno di liberarsi da simili bene.—Se uno aveva due campi di questa ragione e cento d'altra natura, i due hanno questa forza, di sottomettere i cento alla medesima gravezza.'

[367] Beaulieu to Trumbull. Winwood, *Memorials* iii. 123.

[368] Carleton to Edmonds: *Court and Times of James I*, i. 12, 123.

[369] Chamberlain to Winwood. *Mem.* iii. 175. 'Yf the practise should follow the positions, we should not leave to our successor that freedome we received from our forefathers.'

[370] Tommaso Contarini, 23 Giugno 1610: 'Che le loro persone, come representanti le communita, siano di maggior qualita che li signori titolati quali representano le loro sole persone, il che diede grandissimo fastidio al re.'

[371] Campbell, *Lives of the Lord Chancellors* ii. 225.

[372] Lorking, writing to Puckering (*The Court and Times of James the First* i. 254), remarks as early as July 1613 on the first mention of the marriage, that its design was 'to reconcile him (Lord Rochester) and the house of Howard together, who are now far enough asunder.'

[373] The King's second speech. *Parliamentary History* v. 285.

[374] A. Foscarini 1614, 20 Giugno. 'Il re ha sempre avuto seco (on his side) la camera superiore e parte dell'inferiore: il rimanente ha mostrato di voler contribuir ogni quantita di sussidio ma a conditione che si vedesse prima qual fosse l'autorità del re, sull'impor gravezze.'

[375] Chamberlain to Carleton, May 28. *Court and Times of James I*, i. 312.

[376] According to a report furnished by A. Foscarini: 'Elessero 40 d'essi a quali diede Lunedì audienza S. M.—dissero che la supplicavano per tanto lasciar per ultima da risolvere la materia di danari.' Unfortunately we have only very scanty information about this Parliament.

[377] Extract from a letter of Winwood to Carleton, June 16. Green, *Calendar of State Papers, James I*, vol. ii. 237.

[378] *The Prerogative of Parliaments*. Works viii. 154.

CHAPTER VI.

SURVEY OF THE LITERATURE OF THE EPOCH.

The times in which great political struggles are actually going on are not the most favourable for production in the fields of literature and art. These flourish best in the preceding or following ages, during which the impulse attending those movements begins or continues to be felt. Just such an epoch was the period of thirty or forty years between the defeat of the Armada and the outbreak of the Parliamentary troubles, a period comprising the later years of Queen Elizabeth and the earlier years of King James I. This was the epoch in which the English nation attained to a position of influence on the world at large, and in which at the same time those far-reaching differences about the most important questions of the inner life of the nation arose. The antagonism of ideas which stirred men's minds generally could not but reproduce itself in literature. But we also see other grand products of the age far transcending the limits of the present struggle. Our survey of the history will gain in completeness if we cast even but a transient glance, first at the former and then at the latter class of these products.

In Scotland the studies connected with classical antiquity were prosecuted with as much zeal as anywhere else in Europe; not however in order to imitate its forms in the native idiom, which no one at that time even in Germany thought of doing, but in order to use it in learned theological controversies, and to maintain connexion with brother Protestants of other tongues. St. Andrew's was at one time a centre for Protestant learning: Poles and Danes, Germans and French visited this university in order to study under Melville. Even Latin verse was written with a certain elegance. A fit monument of these studies and their direction is to be found in Buchanan's History of Scotland, a work without value for the earlier period, and full of party spirit in describing his own, as Buchanan is one of the most violent accusers of Mary Stuart, but pervaded by that warmth and decision which carry the reader along with it: at that time it was read all over the world.

Buchanan and Melville were among the champions of popular ideas on the constitution of states and the relations between sovereign and people. It cannot be affirmed that classical studies were without influence upon their views, but the doctrine to which they adhered grew out of a different root. It rests historically upon the doctrine of the superiority of the Church, and the councils representing the Church, over the Papacy, as it was put forth in the fifteenth century at Paris. A Scottish student there, John Major, made this doctrine his own, and after his return to his native country, when he himself had obtained a professorship, he applied it to temporal relations. The positions of the advocates of the councils affirmed that the Pope, it was true, received his authority from God, but that he might be again deprived of it in cases of urgent necessity by the Church, which virtually included the sum of all authority in itself. In the same way John Major taught that an original power transmitted from father to son pertained to kings, but that the fundamental authority resided in the people; so that a king mischievous to the commonwealth, who showed himself incorrigible, might be deposed again. His scholars, who took so large a part in the first disturbances in Scotland, and their scholars in turn, firmly maintained this doctrine. They differed from their contemporaries the Jesuits, who considered the monarchy to be an institution set up by the national will, in ascribing to it a divine right, but they urged that a king existed for the sake of the people, and that as he was bound by the laws agreed on by common consent, resistance to him was not only allowed, but under certain circumstances might even be a duty. We must also remark the opposite view, which was developed in contradiction to this, but yet rested on the same foundation. It was admitted that the king, if the people were considered as a whole, existed for their sake, and not the people for his; but the king, it was said, was at the same time the head of the people; he possessed superiority over all individuals: there was no one who could say in any case that the contract between king and people had been broken: no such general contract existed at all; there could be no question at all of resistance, much less of deposition, for how could the members rebel against the head? King James maintained that the legislative power belonged to the king by divine and human right, that he exercised it with the participation of his subjects, and always remained superior to the laws. His position rests on these views, in the development of which he himself had certainly a great share; he, like his opponents, had his political and ecclesiastical adherents. In the Scottish

literature of the time both tendencies are embodied in important historical works; the latter principally in Spottiswood's Church History, which represents the royalist views and is not without merit in point of form, so that even at the present day it can be read with pleasure; the former in contemporary notices of passing events which were composed in the language and even in the dialect of the country, and which in many places are the foundation even of Buchanan's history. They are the most direct expression of national and religious views, as they found vent in the assemblies of preachers and elders; in them we feel the life-breath of Presbyterianism. Calderwood and the younger Melville, who collected everything which came to hand, espoused the popular ideas; for information on facts and their causes they are invaluable, although in respect of form they do not rival Spottiswood, who, like them, employs the language of the country.

It might perhaps be said that it was in Scotland that the two systems arose which since that time, although in various shapes, have divided Britain and Europe. In the historians just mentioned we might see the types of two schools, whose opposite conceptions of universal and especially of English history, set forth by writers of brilliant ability, have exercised the greatest influence upon prevailing ideas.

In England these ideas certainly gained admission, but they did not make way at that time. When Richard Hooker expresses the popular ideas as to the primitive free development of society, this is done principally in order to point out the extensive authority of the legislative power even over the clergy, and to defend the ecclesiastical supremacy of the English crown, which had been established by the enactments of that very power. The question was mooted how far the sovereign was above the laws. Many wished to derive these prerogatives from the laws; others rejected them. Among those who maintained them unconditionally Walter Raleigh appears, in whose works we find a peculiar deduction of them in the statement that the sovereign, according to Justinian's phrase, was the living law: he derives the royal authority from the Divine Will, which the will of man could only acknowledge. He says in one place that the sovereign stands in the same relation to the law, as a living man to a dead body.

What a remarkable work would it have been, had Walter Raleigh himself recorded the history of his time. But the opposition between parties was not so outspoken in England as in Scotland; it had not to justify itself by general principles, to which men could give their adhesion; it contained too much personal ill-feeling and hatred for any one who was involved in the strife to have been able to find satisfaction in expressing himself on this head. The history of the world which Walter Raleigh had leisure to write in his prison, is an endeavour to put together the materials of Universal History as they lay before him from ancient times, and so make them more intelligible. He touches on the events of his age only in allusions, which excited attention at the time, but remain obscure to posterity.

In direct opposition to the Scots, especially to Buchanan, Camden, who wrote in Latin like the former, composed his *Annals of the Reign of Queen Elizabeth*. His contemporary, De Thou, borrowed much from Buchanan. Camden reproaches him with this, partly because in Scotland men preached atrocious principles with regard to the authority of the people and their right of keeping their kings in order. The elder Cecil had invited him to write the history of the Queen, and had communicated to him numerous documents for this purpose, which were either in his own possession or belonged to the national archives. Camden set cautiously to work, and went slowly on. He has himself depicted the trouble it cost him to decipher the historical contents of these scattered and dusty papers. He has certainly not surmounted all the difficulties which stand in the way of composing a contemporary history. Here and there we find even in his pages a regard paid to the living, especially to King James himself, which we would rather see away. But such passages are rare. Camden's *Annals* take a high rank among histories of contemporary transactions. They are of such authenticity in regard to facts, and show so intimate an acquaintance with causes gathered from trustworthy information, that we can follow the author, even where we do not possess the documents to which he refers. His judgments are moderate and at the same time in all important questions they are decided.

When we read Camden's letters we become acquainted with a circle of scholars engaged in the severest studies. In his *Britannia*, which gives a more complete and instructive picture of the country than any other work, they all took a lively interest. Their works are clumsy and old-fashioned,

but they breathe a spirit of thoroughness and breadth which does honour to the age. With what zeal were ecclesiastical antiquities studied in Cambridge, after Whitaker had pointed the way! Men sought to weed out what was spurious, and in what was genuine to set aside the part due to the accidental forms of the time, and to penetrate to the bottom of the sentiments, the belief, and activity of the writers. The constitution of the Church naturally led them to devote special study to the old provincial councils. For the history of the country they referred to the monuments of Anglo-Saxon times, and began even in treating of other subjects to bring the original sources to light. Everywhere men advanced beyond the old limits which had been drawn by the tradition of chroniclers and the lack of historical investigation hitherto shown.

Francis Bacon was attracted by the task of depicting at length a modern epoch, the history of the Tudors, with the various changes which it presented and the great results it had introduced, in which he saw the unity of a connected series of events. Yet he has only treated the history of the first of that line. He furnishes one of the first examples of exact investigation of details combined with reflective treatment of history, and has exercised a controlling influence on the manner and style of writing English history, especially by the introduction of considerations of law, which play a great part in his work. The political points of view which are present to the author are almost more those of the beginning of the seventeenth than those of the beginning of the sixteenth century. But these epochs are closely connected with each other. For what Henry VII established is just what James I, who loved to connect himself immediately with the former monarch, wished to continue. Bacon was a staunch defender of the prerogative.

The dispute which arose between Bacon as a lawyer and Edward Coke deserves notice.

Coke also has a place in literature. His reports are, even at the present day, known without his name simply as 'The Reports,' and his 'Institutes' is one of the most learned works which this age produced. It is rather a collection provided with notes, but is instructive and suggestive from the variety of and the contrast of its contents. Coke traced the English laws to the remotest antiquity; he considered them as the common production of the

wisest men of earlier ages, and at the same time as the great inheritance of the English people, and its best protection against every kind of tyranny, spiritual or temporal. Even the old Norman French, in which they were to a great extent composed, he would not part with, for a peculiar meaning attached itself, in his view, to every word.

On the other hand Bacon as Attorney-General formed the plan of comprising the common law in a code, by which a limit should be set to the caprice of the judges, and the private citizen be better assured of his rights. He thought of revising the Statute-Book, and wished to erase everything useless, to remove difficulties, and to bring what was contradictory into harmony.

Bacon's purpose coincided with the idea of a general system of legislation entertained by the King: he would have preferred the Roman law to the statute law of England. Coke was a man devoted to the letter of the law, and was inclined to offer that resistance to the sovereign which was implied in a strict adherence to the law as it was. In the conflict that arose the judges, influenced by his example, appealed to the laws as they were laid down, according to the verbal meaning of which they thought themselves bound to decide. Bacon maintained that the Judges' oath was meant to include obedience to the King also, to whom application must be made in every matter affecting his prerogative. This is probably what Queen Elizabeth also thought, and it was the decided opinion of King James. He made the man who cherished similar views his Lord Chancellor, and dismissed Coke from his service. Bacon when in office was responsible for a catastrophe which, as we shall see, not only ruined himself, but reacted upon the monarchy. The English, contemporaries and posterity alike, have taken the side of Coke. Yet Bacon's industry in business is not therefore altogether to be despised. He urged the King, who was disposed to judge hastily, to take time and to weigh the reasons of both parties. He gave the judges who went on circuit through the country the most pertinent advice. The directions which he drew up for the Court of Chancery have laid the foundations of the practice of that court, and are still an authority for it. His scheme of collecting and reforming the English laws still, even at the present day, appears to statesmen learned in the law to be an unavoidable necessity; and the opinion is spreading that steps must be taken in this matter in the direction already pointed out by Bacon.

Bacon was one of the last men who identified the welfare of England with the development of the monarchical element in the constitution, or at all events with the preponderance of the authority of the sovereign within constitutional limits. The union of the three kingdoms under the ruling authority of the King appeared to him to contain the foundation of the future greatness of Britain. With the assertion of the authority of the sovereign he connected the hope of a reform of the laws of England, of the establishment of a comprehensive system of colonisation in Ireland, and of the assimilation of the ecclesiastical and judicial constitution of Scotland to English customs. He loved the monarchy because he expected great things from it.

But it cannot be denied that he brought his ideas into a connexion with his interests, which was fatal to the acceptance of the former. His is just a case in which we feel relieved when we turn from the disputes of the day to the free domain of scientific activity, in which his true life was spent. He has indeed said himself that he was better fitted to hold a book in his hands than to shine upon the stage of the world. In his studies he had only science itself and the whole of the world before his eyes.

The scholastic system founded on Aristotle, the inheritance of centuries of ecclesiastical supremacy, had been assailed some time before he took up the subject; and the inductive method which he opposed to that system was not anything quite new. But the idea of Bacon had the most comprehensive tendency: it tended to free the thoughts and enquiries of men of science from the assumptions of a speculative theology which regulated their spiritual horizon. The most renowned adversaries of scholasticism he had to encounter in turn, because they covered things with a new web of words and theories which he could not accept. He thought to free men from the deceptive notions by which their minds are prepossessed, from the fascination of words which throw a veil over things, and of tradition consecrated by great names, and to open to them the sphere of the certain knowledge of experience. Nature is in his eyes God's book, which man must study directly for His glory and for the relief of man's estate; he thought that men must start from sense and experience, in order that by intercourse with things they might discover the cause of phenomena. He would have preferred for his own part to have been the architect of an universal science, an outline of which he had already composed; but he

possessed the self-restraint to hold back from this in the first instance, to work at details, and to make experiments, or, as he once says, to contribute the bricks and stones which might serve for the great work in the future. He only wanted more complete devotion and more adequate knowledge for his task. His method is imperfect, his results are untrustworthy in points of detail; but his object is grand. He designates the insight for which he labours by the Heraclitean name of dry light, that is, a light which is obscured by no partiality and no subordinate aim. He would place the man who possesses it as it were upon the mountain top, at the foot of which errors chase one another like clouds. And in his eyes the satisfaction of the mind is not the only interest at stake, but such discoveries as rouse the activity of men and promote their welfare. Nature is at the same time the great storehouse of God: the dominion over nature which men originally possessed must be restored to them.

In these speculations the philosopher became aware that there was a risk lest men should imagine that by this means they could also discover the nature of God. Bacon lays down a complete separation of these two provinces; for he thinks that men can only attain to second causes, not to the first cause, which is God; and that the human mind can only cope with natural things; that divine things on the contrary confuse it. He will not even investigate the nature of the human soul, for it does not owe its origin to the productive powers of nature, but to the breath of God.

It had been from the beginning the tendency of those schools of philosophy erected on the basis of ancient systems, in which Latin and Teutonic elements were blended, to transfuse faith with scientific knowledge; but Bacon renounces this attempt from the beginning. He puts forward with almost repulsive abruptness the paradoxes which the Christian must believe: he declares it an Icarian flight to wish to penetrate these secrets: but so much stronger is the impulse he seeks to give the human mind in the direction of enquiry into natural objects.^[379]

Among these he ranks the state of human society, to which all his life long he devoted a careful and searching observation. His Essays are not at all sceptical, like the French essays, from which he may have borrowed this appellation: they are thoroughly dogmatic. They consist of remarks on the relations of life as they then presented themselves, especially upon the

points of contact between private and public life, and of counsels drawn from the perception of the conflicting qualities of things. They are extremely instructive for the internal relations of English society. They show wide observation and calm wisdom, and, like his philosophical works, are a treasure for the English nation, whose views of life have been built upon them.

What better legacy can one generation leave to another than the sum of its experiences which have an importance extending beyond the fleeting moment, when they are couched in a form which makes them useful for all time? Herein consists the earthly immortality of the soul.

But another possession of still richer contents and of incomparable value was secured to the English nation by the development of the drama, which falls just within this epoch.

In former times there had been theatrical representations in the palaces of the kings and of great men, in the universities, and among judicial and civic societies. They formed part of the enjoyments of the Carnival or contributed to the brilliancy of other festivities; but they did not come into full existence until Elizabeth allowed them to the people by a general permission. In earlier times the scholars of the higher schools or the members of learned fraternities, the artisans in the towns, and the members of the household of great men and princes, had themselves conducted the representation. Actors by profession now arose, who received pay and performed the whole year round.^[380] A number of small theatres grew up which, as they charged but low entrance-fees, attracted the crowd, and while they influenced it, were influenced by it in turn. The government could not object to the theatre, as the principal opposition which it had to fear, that of the Puritans, shut itself out from exercising any influence over the drama, owing to the aversion of their party to it. The theatres vied with one another: each sought to bring out something new, and then to keep it to itself. The authors, among whom men of distinguished talent were found, were not unfrequently players as well. All materials from fable and from history, from the whole range of literature, which had been widely extended by native productions and by appropriation from foreign sources, were seized, and by constant elaboration adapted for an appreciative public.

While the town theatres and their productions were thus struggling to rise in mutual rivalry, the genius of William Shakspeare developed itself: at that time he was lost among the crowd of rivals, but his fame has increased from age to age among posterity.

It especially concerns us to notice that he brought on the stage a number of events taken from English history itself. In the praise which has been lavishly bestowed on him, of having rendered them with historical truth, we cannot entirely agree. For who could affirm that his King John and Henry VIII, his Gloucester and Winchester, or even his Maid of Orleans, resemble the originals whose names they bear? The author forms his own conception of the great questions at issue. While he follows the chronicle as closely as possible, and adopts its characteristic traits, he yet assigns to each of the personages a part corresponding to the peculiar view he adopts: he gives life to the action by introducing motives which the historian cannot find or accept: characters which stand close together in tradition, as they probably did in fact, are set apart in his pages, each of them in a separately developed homogeneous existence of its own: natural human motives, which elsewhere appear only in private life, break the continuity of the political action, and thus obtain a twofold dramatic influence. But if deviations from fact are found in individual points, yet the choice of events to be brought upon the stage shows a deep sense of what is historically great. These are almost always situations and entanglements of the most important character: the interference of the spiritual power in an intestine political quarrel in King John: the sudden fall of a firmly seated monarchy as soon as ever it departs from the strict path of right in Richard III: the opposition which a usurping prince, Henry IV, meets with at the hands of the great vassals who have placed him on the throne, and which brings him by incessant anxiety and mental labour to a premature grave: the happy issue of a successful foreign enterprise, the course of which we follow from the determination to prepare for it, to the risk of battle and to final victory; and then again in Henry V and Henry VI, the unhappy position into which a prince not formed by nature to be a ruler falls between violent contending parties, until he envies the homely swain who tends his flocks and lets the years run by in peace: lastly the path of horrible crime which a king's son not destined for the throne has to tread in order to ascend it: all these are great elements in the history of states, and are not only important for

England, but are symbolic for all people and their sovereigns. The poet touches on parliamentary or religious questions extremely seldom; and it may be observed that in *King John* the great movements which led to *Magna Charta* are as good as left out of sight; on the contrary he lives and moves among the personal contrasts offered by the feudal system, and its mutual rights and duties. Bolingbroke's feeling that though his cousin is King of England yet he is Duke of Lancaster reveals the conception of these rights in the middle ages. The speech which Shakspeare puts into the mouth of the Bishop of Carlisle is applicable to all times. The crown that secures the highest independence appears to the poet the most desirable of all possessions, but the honoured gold consumes him who wears it by the restless care which it brings with it.

Shakspeare depicts the popular storms which are wont to accompany a free constitution in the plots of some of his Roman dramas: of these Plutarch instead of Holinshed furnishes the basis. He is right in taking them from a foreign country: for events nearer to his audience would have roused an interest of a different kind, and yet would not have had so universal a meaning. What could be more dramatic, for example, and at the same time more widely applicable than the contrast between the two speeches, by the first of which Caesar's murder is justified, while by the second the memory of his services is revived? The conception of freedom which the first brings to life is set in opposition to the thought of the virtues and services of the possessor of absolute power, and thrust by them into the background; but these same feelings are the deepest and most active in all ages and among all nations.

But the attested traditions of ancient and modern times do not satisfy the poet in his wish to lay bare the depths of human existence. He takes us into the cloudy regions of British and Northern antiquity only known to fable, in which other contrasts between persons and in public affairs make their appearance. A king comes on the stage who in the plenitude of enjoyment and power is brought by overhasty confidence in his nearest kin to the extremest wretchedness into which men can fall. We see the heir to a throne who, dispossessed of his rights by his own mother and his father's murderer, is directed by mysterious influences to take revenge. We have before us a great nobleman, who by atrocious murders has gained possession of the throne, and is slain in fighting for it: the poet brings us into immediate

proximity with the crime, its execution, and its recoil: it seems like an inspiration of hell and of its deceitful prophecies: we wander on the confines of the visible world and of that other world which lies on the other side, but extends over into this, where it forms the border-land between conscious sense and unconscious madness: the abysses of the human breast are opened to view, in which men are chained down and brought to destruction by powers of nature that dwell there unknown to them: all questions about existence and non-existence; about heaven, hell, and earth; about freedom and necessity, are raised in these struggles for the crown. Even the tenderest feelings that rivet human souls to one another he loves to display upon a background of political life. Then we follow him from the cloudy North into sunny Italy. Shakspeare is one of the intellectual powers of nature; he takes away the veil by which the inward springs of action are hidden from the vulgar eye. The extension of the range of human vision over the mysterious being of things which his works offer constitutes them a great historical fact.

We do not here enter upon a discussion of Shakspeare's art and characteristics, of their merits and defects: they were no doubt of a piece with the needs, habits, and mode of thought of his audience; for in what case could there be a stronger reciprocal action between an author and his public, than in that of a young stage depending upon voluntary support? The very absence of conventional rule made it easier to put on the stage a drama by which all that is grandest and mightiest is brought before the eyes as if actually present in that medley of great and small things which is characteristic of human life. Genius is an independent gift of God: whether it is allowed to expand or not depends on the receptivity and taste of its contemporaries.

It is certainly no unimportant circumstance that Shakspeare brought out King Lear soon after the accession of James I, who, like his predecessor, loved the theatre; and that Francis Bacon dedicated to the King his work on the Advancement of Learning in the same year 1605.

Of these two great minds the first bodied forth in imperishable forms the tradition, the poetry, and the view of the world that belonged to the past: the second banished from the domain of science the analogies which they

offered, and made a new path for the activity displayed by succeeding centuries in the conquest of nature, and for a new view of the world.

Many others laboured side by side with them. The investigation of nature had already entered on the path indicated by Bacon, and was welcomed with lively interest, especially among the upper classes. Together with Shakspeare the less distinguished poets of the time have always been remembered. In many other departments works of solid value were written which laid a foundation for subsequent studies. Their characteristic feature is the union of the knowledge of particulars, which are grasped in their individuality, with a scientific effort directed towards the universal.

These were the days of calm between the storms; halcyon days, as they have well been named, in which genius had sufficient freedom in determining its own direction to devote itself with all its strength to great creations.

As the German spirit at the epoch of the Reformation, so the English spirit at the beginning of the seventeenth century, took its place among the rival nationalities which stood apart from one another on the domain of Western Christendom, and on whose exertions the advance of the human race depends.

NOTES:

[379] In a letter to Casaubon he says 'vitam et res humanas et medias earum turbas per contemplationes sanas et veras instructiores esse volo.' (Works vi. 51).

[380] Sam. Cox in Nicolas' Memoirs of Hatton, App. XXX.

BOOK V.

DISPUTES WITH PARLIAMENT DURING THE LATER YEARS OF THE REIGN OF JAMES I AND THE EARLIER YEARS OF THE REIGN OF CHARLES I.

It has been my wish hitherto in my narrative to suppress myself as it were, and only to let the events speak and the mighty forces be seen which, arising out of and strengthened by each other's action in the course of centuries, now stood up against one another, and became involved in a stormy contest, which discharged itself in bloody and terrible outbursts, and at the same time was fraught with the decision of questions most important for the European world.

The British islands, which in ancient times had been the extreme border-land, or even beyond the extreme border-land of civilisation, had now become one of its most important centres, and, owing to the union just effected, had taken a grand position among the powers of the world. But it is nevertheless clear at first sight that the constituent elements of the population were far from being completely fused. In many places in the two great islands the old Celtic stock still existed with its original character unaltered. The Germanic race, which certainly had an indubitable preponderance and was sovereign over the other, was split into two different kingdoms, which, despite the union of the two crowns, still remained distinct. The hostility of the two races was increased by a difference of religion, which was closely connected with this hostility though it was not merged in it. As a general rule the men of Celtic extraction remained true to the Roman Catholic faith, while the Germanic race was penetrated by Protestant convictions. Yet there were Protestants among the former, and we know how numerous and how powerful the Catholics were among the latter. Besides this, moreover, opposite tendencies with regard to ecclesiastical forms struck root in the two kingdoms. It was now the principal aim of the family by whose hereditary claim the two kingdoms and the islands had been united, not only to avert

the strife of hostile elements, but also to reconcile them with one another, and to unite them in a single commonwealth under its authority, which all acknowledged and which it was desired to extend by such an union. This was a scheme which opened a great prospect, but at the same time involved no inconsiderable danger. Each of the two kingdoms watched jealously over its separate independence. They would not allow the dynasty to bring about a common government, which would thus have set itself up above them, and would have established a new kind of sovereignty over them. While the crown sought to enforce prerogatives which were contested, it had to encounter in both kingdoms the claims advanced by the holders of power in the nation, whom in turn it endeavoured to repress. The quarrel was complicated by a conception of the relations of the crown to foreign powers answering to its new position, and running counter to the national view. At the same time very perceptible analogies to this state of things were offered by the religious wars, which began to convulse the continent more violently than ever, and aroused corresponding feelings in the British isles. The dynasty which tried to appease the prevailing opposition of principles might find that, on the contrary, it rather fomented the strife, and was itself drawn into it. This in fact took place. Springs of action of the most opposite nature and antagonisms growing out of nationality, religion, and politics, which could not be understood apart from one another, co-operated in giving rise to events which do not form a single continuous course of action, but rather present a varied and changing result, due to elements which were grand and full of life, but still waited for their final settlement. It is clear how much this depended on the character and discernment of the king.

CHAPTER I.

JAMES I AND HIS ADMINISTRATION OF DOMESTIC GOVERNMENT.

At one period of his youth James I had been accustomed to vary his application to his lessons with bodily exercises. At that age he had divided his days between learned studies and the chase of the smaller game in Stirling Park, accompanied in both pursuits by friends and comrades of the same age; and he retained during all his life the habits he had then formed. ^[381] He spent only a couple of months in the year in London, or at Greenwich: he preferred Theobald's, and still more distant country seats like Royston and Newmarket, where he could give himself up to hunting. Even before sunrise he was in motion, surrounded by a small number of companions practised in the chase and selected for that object, amongst whom he was himself one of the most skilful. He thought that he might vie with Henry IV even in field sports; but he was not hindered by his fondness for these amusements from continuing his studies with unwearied application. He was impelled to these not, strictly speaking, by thirst for general knowledge, although he was not deficient in this, but principally by interest in the theological controversies which engaged the attention of the world. He more than once went through the voluminous works of Bellarmine; and, in order to verify the citations, he had the old editions of the Fathers and of the Decrees of the Councils sent him from Cambridge. In this task a learned bishop stood at his side to assist him. He endeavoured with many a work of his own to thrust himself forward in the conflict of opinions. He had the vanity of wishing to be regarded as the most learned man in the two kingdoms, but he could only succeed in passing for a storehouse of all sorts of knowledge; for a man who overestimates himself is commonly punished by disregard even of his real merits. These may not meet with recognition until later times. The writings of James I wore the pedantic dress of the age; but in the midst of scholastic argumentation we yet stumble upon apt thoughts and allusions. The images which he frequently employs have not that delicacy of literary feeling which avoids what is ungraceful, but they are original and sometimes striking in their

simplicity. Naturally thorough and acute, he labours not without success to prove to his adversaries the untenableness of the grounds on which they proceed, or the logical fallacy of their conclusions. Here and there we catch the elevated tone of a consciousness that rests upon firm conviction. Even in conversation he sought to turn away from particulars as soon as they came under discussion, and to pass to general considerations, a province in which he felt most at home. In his incidental utterances which have been taken down, he displays sound sense and knowledge of mankind. It is especially worth noticing how he considers virtue and religion to be immediately connected with knowledge—the confusions in the world appear to him for the most part to arise from mediocrity of knowledge^[382]—and how highly moreover he estimates a sense for truth. He finds the most material difference between virtue and vice in the greater inward truthfulness of the former. King James delivers many other well-weighed principles of calm wisdom: it is only extraordinary how little his own practice corresponded with them.^[383] When in one of his earlier writings we mark the seriousness with which he speaks of the duty incumbent on a king of testing men of talent, of measuring their capacity, and of appointing his servants not according to inclination but according to merit, we should expect to find him in this respect a careful and conscientious ruler. Instead of this we find that he always has favourites, whose merits no one can discover; to whom he stands in the extraordinarily compound relation of father, teacher, and friend, and to whom he allows a share in the power which he possesses. He could never free himself from a ruinous prodigality towards those about him, in spite of resolutions of amendment. How soon were the costly objects flung away which Elizabeth had collected and left behind at her death!^[384] How many possessions or sources of revenue accruing to the crown did he allow to pass into private hands! Any regulation of his household expenditure was as little to be expected from him in England as in Scotland. Like the princes of the thirteenth century he considered that the royal power assigned him privileges and advantages in which he had a full right to allow his favourites and servants to share. Not seldom the most scandalous abuses were connected with these: for instance, when the court was to be provided with the common necessities of life during its journeys, it was required that they should be delivered to it at low prices: the servants exacted more supplies than were wanted, and then sold the surplus for their own profit. In grotesque contrast with the disgraceful

cupidity of his attendants is the exaggerated conception which James had formed for himself of the ideal importance of the royal authority, which at that time some persons attempted with metaphysical acuteness to lay down almost in the same terms as the attributes of the Deity. He had similar notions about his dignity and the unconditional obligation of his subjects. Even in his Parliamentary speeches he did not refrain from expressing them. He made no secret of them in his life in the country, where he met with unbounded veneration from every one. It was remarked as a point of contrast between him and Elizabeth, that while she had always spoken of the love of her subjects, James on the contrary was always talking of the obedience which they owed him on the ground of divine and human right. And people recognised many other points of contrast between them besides this.^[385] When the Queen had formed a resolution, she had never shrunk from the trouble of directing her attention to its execution even in the minutest details. King James did not possess this ardour; for he could not descend from the world of studies and general views in which he lived, to take a searching interest in the business of the government or of justice. He had indeed been known to say that it was annoying to him to hear the arguments on both sides quietly discussed in a question of right submitted to him; for that in that case he was unable to come to any conclusion. The Queen loved gallant men and characters distinguished for boldness: the King was without any sense of military merit, and felt uncomfortable in the presence of men of enterprising spirit. He thought that he could only trust those whom he had chained to himself by favours, presents, and benefits. The Queen served as a pattern of everything which was proper and becoming. James, who restricted himself to the intercourse of a few intimate friends, formed attachments which he thought were to serve as the rule of life. He himself was slovenly; in England, as formerly in Scotland, he neglected his appearance, and indulged in eccentricities which appeared repulsive to others, and were taken amiss from him. Even at that time there was a common feeling in England in favour of what is becoming in good society; and although the feeling was for a long time less deeply engraved on men's minds, and less sensitive to every outrage than it became at a later period, men did not pardon the King for coming into collision with it.

Hence this sovereign appeared in complete contradiction with himself. Careless, petty, and at the same time most unusually proud; a lover of pomp

and ceremony, yet fond of solitude and retirement; fiery and at the same time lax; a man of genius and yet pedantic; eager to acquire and reckless in giving away; confidential and imperious; even in little matters of daily life not master of himself, he often did what he would afterwards rather have left undone. With all his knowledge and acuteness, the high flight of his thoughts was often allied to a moral weakness which among all circles did serious injury to that reverence which had hitherto been reserved for those who held the highest authority, and which was partly bestowed even on him. It could not seem likely that such a man should be able to exercise great influence on the fortunes of Britain.

He did however exercise such an influence. He gave the tone to the policy of the Stuart dynasty, and introduced the complication in which the destiny of his descendants was involved.

In the first years of his reign in England, so long as Robert Cecil was alive, King James exercised no deep influence. The Privy Council possessed to the full the authority which belonged to it by old custom. James used simply to confirm the resolutions which were adopted in the bosom of the Council under the influence of the Treasurer: he appears in the reports of ambassadors as a phantom-king, and the minister as the real ruler of the country.^[386] After the death of Cecil all this was changed. The King knew the party-divisions which prevailed in the Council: he let its members have their own way, and even connived at the relations they formed with foreign powers for their own interest; but he knew how to hold the balance between them, and in the midst of their divisions to carry out his own views. In those country seats, where no one seemed to take thought for anything except the pleasures of the chase and learned pursuits, the business of the state also was carried on in course of time with ever-increasing ardour.^[387] The secretaries about the King were incessantly busy, while the secretaries' chambers in London were idle. Great affairs were generally transacted between the King and the favourite in the ascendant at the time, in conferences to which only a few others were admitted, and sometimes not even these. The King himself decided; and the resolutions which were taken were communicated to the Privy Council, which gradually became accustomed to do nothing more than invest them with the customary forms. If it be asked what the object of the King's efforts was, the answer must be that it was to set the exercise of the supreme power free from the

controlling influence of the men of high rank to whom the King had deferred on his first accession. This was generally the aim of the great rulers of that century. This had been the principal end of the policy of Philip II of Spain during his long political life: however the Kings and Queens of France may have differed on other points, they were all, both Henry III and Henry IV, Mary de' Medici while she was regent, and Lewis XIII so soon as he succeeded to the exercise of power, at one in this endeavour. James, who was a new sovereign in one of his kingdoms, and almost always absent from the other, had more difficulties in his way than other monarchs. Wherever it was possible he proceeded with energy and rigour. People were astonished when they reckoned up the number of considerable men who served him in high offices, and were then deprived of them. He laboured incessantly to make way for the impartial exercise of justice in the King's name throughout Scotland, in spite of the privileges of the great Scottish nobles as its administrators. In his ecclesiastical arrangements in that country, he was fond of insisting on his personal wishes: in cases of emergency indeed he made known that all the treasures of India were not of so much value in his eyes as the observance of his ordinances; and he threatened the opponents of the royal will with the King's anger, to which he then gave unbridled indulgence.^[388] As he looked upon the Church of England as the best bulwark against the influence of the Jesuits which he feared on the one side, and that of the Puritans which he hated on the other, it was naturally his foremost endeavour to fortify his power, and to unite the two kingdoms with one another by the promotion and spread of the forms of that Church. The essential motive of his system of colonisation in Ireland was the wish to establish the Church, by the aid of which he designed to subjugate or to suppress hostile elements. In England he imparted to it a character still more clerical and removed from Presbyterianism than that which had previously distinguished it: he wished it to be as much withdrawn as possible from the action of civil legislation. But in proportion as he supported himself on the Church he fell out with the Parliament, in which aristocratic tendencies and sympathies with popular rights and with Puritanism were blended with a feeling of independence that was hateful to him. He once said that five hundred kings were assembled there, and he thought that he was fulfilling a duty in resisting them. The most momentous questions affecting constitutional rights in regard to the freedom of elections, freedom of speech, the limits of legislative power, and above all

the right of granting taxes, were brought forward under King James. And on every other side he saw himself involved in a struggle with hostile privileges and proud independent powers, from whose ascendancy both in Church and State he was careful to keep himself free, while at the same time he did not proceed to extremities or come to an absolute rupture. He was naturally disposed, and was moreover led by circumstances, to make it a leading rule of conduct, to adhere immovably to principles which he had once espoused, and never to lose sight of them; but, having done this, to appear vacillating and irresolute in matters of detail. His position abroad involved the same apparent contradiction. Placed in the midst of great rival powers, and never completely certain of the obedience of his subjects, he sought to ensure the future for himself by crafty and hesitating conduct. All the world complained that they could not depend on him; each party thought that he was blinded by the other. Those however who knew him more intimately assure us that we must not suppose that he did not apprehend the snares which were laid for him; that if only he were willing to use his eyes, he was as clear-sighted as Argus; that there was no prince in the world who had more insight into affairs or more cleverness in transacting them. They say that if he appeared to lack decision, this arose from his fine perception of the difficulties arising from the nature of things and their necessary consequences; that he was just as slow and circumspect in the execution as he was lively and expeditious in the discussion of measures; that he knew how to moderate his choleric temperament by an intentional reserve,^[389] and that even his absence from the capital and his residence in the country were made to second this systematic hesitation; that, if a disputed point awaited decision, instead of attending a meeting with the Privy Councillors who were with him, he would take advantage of a fine day to fly his falcons, for he thought that something might happen in the meanwhile, or some news be brought in, and that the delay of an hour had often ere now been found profitable.

It was then through no mere weakness on King James's part that he conceded power to a favourite. In a letter to Robert Carr he describes what he thought he had found in him, viz. a man who did not allow himself to be diverted a hair's-breadth from his service,^[390] who never betrayed a secret, and who had nothing before his eyes but the advantage and good name of his sovereign. The greater share that he secured for such a man in the

management of affairs the greater the power which he believed that he himself exercised in them. The A.D. 1613. favourite who depended entirely on the will of the king and knew his secrets, he supposed would be both feared and powerful as a first minister, and would pave the way by his influence upon the state for the carrying out of the views of the sovereign. He thought that he could combine the government of the state and the advance of monarchical ideas, with the comfort of a domestic friendship with an inferior.

James himself brought about the alliance, which we noticed, between Robert Carr, whom he raised to the earldom of Somerset, and the house of Howard. By the union of the hereditary importance of an old family that had almost always held the highest and most influential offices, with the favour of the King which carried with it the fullest authority, a power was in fact consolidated which for a while governed England. Henry Howard, Earl of Northampton, the Lord Treasurer Thomas Howard, Earl of Suffolk, and Robert Carr were considered the triumvirs of England.^[391] In the midst of this combination appears Lady Frances Howard, the daughter of the Earl of Suffolk, whose divorce from Essex and marriage with Somerset had sealed the political alliance between the two families. She was young and beautiful, with an expression of modesty and gentleness, but at the same time stately and brilliant, a fit creature to move in a society that revelled in the enjoyment of life, in the culture of the century, and in the possession of high rank. But what an abyss of dark impulses and unbridled passion sometimes lies hid under such a shining exterior! The Lady Frances had once sought to draw Prince Henry into her net. Many said that she had employed magic for this purpose; indeed they assumed that the early death of the Prince had been brought on partly by this means.^[392] Her marriage with the king's favourite was, if this be true, only a secondary satisfaction of her ambition, but yet a satisfaction which she could not forego. Somerset had an intimate friend, whose advice and services at a former period A.D. 1615. had been very useful to him, but who opposed this marriage and fell out with him on account of it—his name was Overbury.^[393] Lady Frances swore to effect his death. We are revolted at the licence which personal hate enjoyed of misusing the power of the state, when we read that Overbury was first brought to the Tower, and then had creatures who could be relied on set about him there, with whose help the victim was removed out of the

way by means of poison. Lady Frances was not the only female poisoner among the higher classes of society. This mode of assassination had spread in England as it had done in Italy and at times in France. In these transactions the most abandoned profligacy allied itself with the brilliancy and the advantages of a high position, but they foreboded a speedy ruin. The authority of Somerset awakened discontent and secret counterplots. He was naturally turbulent, obstinate, and insolent, and had the presumption to behave in his usual manner even to the King whom he set right with an air of intellectual superiority which revived in the King's breast bitter recollection of the years of his childhood. James put up with this conduct for a while; he then, against the will of the favourite, set his hand to raise to a level with him another young man, for whom he entertained a personal liking: at last the misunderstanding came to an open rupture. And at the same time an accident brought to light the circumstances of Overbury's death.^[394] All Somerset's old enemies raised their heads again, and proceedings were instituted against him and his wife which terminated in their condemnation.^[395] The King pardoned them, to the extent of allowing them to lead a life secluded from the world; they resided afterwards in the same house, but, as far as is known, in complete separation without even seeing one another.

Shortly before this event Henry Howard had died. Thomas Howard, whose wife was accused of exercising a pernicious and corrupt influence upon affairs, lost his office of High Treasurer. The place of Carr was occupied by the young man above referred to, whom Carr's adversaries had combined to push forward, George Villiers, a native of Leicestershire, where his family had lived upon their own ancestral property from the time of the Conquest. After the early death of his father, his mother, a Beaumont by birth, a lady still young and full of ambition and knowledge of the world, had educated him not only in the training of English schools but in French ways and manners, and had then brought him to court. He differed from Carr in being naturally good-tempered, and of a courteous obliging disposition, which won the heart of every one.^[396] Although no one doubted that he would be spoilt by a higher position, yet people thought that he could never become malicious like Somerset. Lord Pembroke and Archbishop Abbot both gave him a helping hand in his rise: the latter moved the Queen also, although she was not without scruples, to aid in it. Villiers was a man after the King's

own heart, well-formed, capable of intellectual cultivation, devoted: in consequence of the favour and confidence of the King the youth, who after a time was created Duke of Buckingham, acquired a ruling position in the English state. The old Admiral Effingham, Earl of Nottingham, resigned his office in order to make room for him: some other high officials were appointed under his influence and according to his views; in a short time the white wands of the royal household and the A.D. 1617. under-secretaryships and subordinate offices had been transferred to the hands of his adherents and friends.

But foreign as well as domestic relations were affected by this change. Somerset had stood in the most confidential relations with the Spanish ambassador: he was accused of having betrayed to him the secrets of the state from his office.^[397] His wife, if not himself, was thought to have drawn money from Spain. Probably the intelligence of this behaviour, which came to the King's ears, contributed most to the downfall of Somerset. This event did not in itself involve a change of policy. In the advice which was given to the young favourite from a well-informed source, it is presupposed that the good understanding with Spain would continue: but it was now possible for the adversaries of this power to bestir themselves again. Some of the most conspicuous men of the other party, such as Winwood, the Secretary of State, would even have been glad if open war with Spain had immediately broken out.

The mutual opposition between these powerful tendencies, and the men who made them their own, brought the career of Walter Raleigh to a close.

Somerset was Raleigh's personal enemy, and had gained possession of his best estate. After his fall Raleigh was liberated from the Tower. He still lay under the weight of a sentence which had been pronounced against him on the occasion of the plot which bears his name. He might have purchased its removal; but he was assured by the most influential voices that he had nothing more to fear from it; and he thought that he could apply the money more profitably to the execution of the great design which he had long ago formed, and which he had never for an instant lost sight of during his captivity. A story was then afloat that after the destruction of the kingdom of Peru the descendants of the Incas had founded another kingdom between the Amazon and the Orinoco, the Dorado of the Spaniards. It was Raleigh's

ambition to open to his countrymen this region which would be easily accessible from the coasts, of which he had formerly taken possession in the name of England. The old reputation of Raleigh's name procured him sufficient support for his expedition, not only from the merchants, but also from wealthy private individuals; and the King gave him a patent which empowered him to sail to the ports of America still in possession of the heathen, in order to open commercial intercourse with them, and to spread the Christian, especially the Reformed, faith among them.^[398] In July 1617 Raleigh set sail from Plymouth harbour for this object, with seven ships of war and a number of small transports carrying about 700 men.

It was presupposed that in such an enterprise all hostilities against the Spaniards would be avoided. When the Spanish ambassador complained of this expedition undertaken by a man who had already on one occasion been very troublesome to the Spanish colonies, the Privy Council answered that Raleigh was pledged by his instructions to do no damage to the Spaniards; and that 'if he violated them his head was there to pay for it.'^[399] The King himself repeated this answer to him.

Raleigh in fact guarded against any collision with the Spaniards on his voyage. He was said not to have taken a single Spanish vessel, and he directed his course without stopping to Guiana, the goal which he had set before himself. But the Spaniards had become powerful there, although not until after his former visit. From Caraccas they had conquered the natives, who were engaged in internal wars, and had firmly established themselves at a short distance from the coast. What was likely to happen if they opposed the forces which Raleigh landed to search for the gold mines which he had formerly seen there? Raleigh remembered full well what a danger he ran if he engaged in a struggle and fought with them: he knew that he was thereby forfeiting his life. But on the other side, was he to return without fulfilling his purpose, and to burden himself with the reproach of not having told the truth? Worst of all, was he to fail in effecting the object which he had entertained all his life long, and not to achieve the discovery on which he staked the future glory of his name? It was perhaps the greatest moment in a life that almost always lifts itself above the ordinary level, when the thirst for discovery gained the victory over considerations of legality and the danger involved in discarding them. And well might he have hoped that not only pardon but praise would have been accorded him, if he had

actually obtained possession of the gold mines, by whatever means. He commanded his men when they advanced inland to behave to the Spaniards as the Spaniards behaved to them. A collision was thus unavoidable. It took place at S. Thomas, which was destroyed, but the Spaniards nevertheless had completely the superiority: Raleigh's only son was killed; and the captain who had the charge of the expedition was so disheartened that he committed suicide. These disasters involved the utter failure of the expedition. His crews, who were naturally insubordinate, quarrelled among themselves, and on the voyage home the fleet dispersed. Raleigh came back to England without an ounce of gold, and without having effected any result whatever: he appeared in the light of an adventurer who had wantonly desired to break the peace with Spain. And when the ambassador of this power asked for full and signal satisfaction, in order to restore the good understanding which Raleigh's enterprise had at once interrupted, was it to be expected that the King should take under his protection the man who had not complied with the conditions prescribed to him, and whom for other reasons he did not love? And moreover the pulse of free generosity which befits a sovereign did not beat in the breast of King James. He A.D. 1618. consented that the old sentence of condemnation, for fifteen years suspended over Raleigh's head, should now be enforced against him. It had been pronounced against him for entering into a secret alliance with Spain; an attack on Spain led to its execution. Raleigh and the King exhibit a contrast between ambition that scorns danger on the one side, and caution that supports itself by the forms of law on the other, such as even in England has hardly ever been so sharply drawn. The King could not possibly get any good by his conduct. The position of England in the world depended upon the resistance that she offered to the preponderance of Spain in both the Indies and in Europe. The King detached himself from one of the chief interests of the nation when he allowed a felon's death to be inflicted on the man of lofty genius, who had undertaken, by an ill-advised attempt it is true, to give effect in America to this feeling of world-wide opposition. James thought that his welfare lay in maintaining the peace with Spain. But we know that at an earlier date he had entered on a course adverse to Spain, and that even now he had not entirely renounced it. What confusion must eventually follow from this divided policy!

NOTES:

[381] Ant. Foscarini, Relatione 1618: 'Il re ritiene questa sorte di vita nella quale fu abituato, e spende tutto il tempo che puo nella caccia e ne studj.'

[382] 'Crums fallen from King James' Table, or his Table Talk.' MS. in the British Museum.

[383] Wilson, James I, 289: 'He had pure notions in conception, but could bring few of them into action, though they tended to his own preservation.' Wilson, Weldon, and the notices in Balfour, are certainly all of them deeply tinged with party feeling. The elder Disraeli is quite right in rejecting them: but his own conception is very unsatisfactory. Gardiner (1863) avoids unauthenticated statements; but the views of James' character which have grown up and established themselves owing to the commonplace repetition of such statements, control his representation of it.

[384] Foscarini: 'A due sorti di persone dona particolarmente, a grandi et a quelli che gli assistono che sono quasi tutti Scocesi, e non vaca cosa alcuna della quale possino cavar utile, che non la demandino e nello stesso momento obtengono.'

[385] Harrington: *Nugae Antiquae* i.

[386] Niccolo Molino, Relatione 1607: 'A abandonato e messo dietro le spalle tutti gli affari li quali lascia al suo consiglio ed a suoi ministri, onde si puo dire con verità ch'egli sia principe di nome e Più tosto d'apparenza che d'effetto.'

[387] A. Foscarini 1618: 'In campagna gli viene di giorno in giorno dal consiglio che risiede per ordinario in Londra dato conto di quanto passa et inviatigli spacci e corrieri: tratta e risolve molte cose con il consiglio solo de suoi favoriti.—Risolve per ordinario in momenti et havendo seco segretarii per gli affari d'Inghilterra, per quelli di Scotia e Ibernia comanda ciascuno di essi, quanto occorre e vuol che si faccia in tutti i suoi regni.'

[388] Calderwood, vii. 311, 434, &c.

[389] Girolamo Lando, Relatione 1622: '(S. M. è) inclinata all'ambiguita et alla dimora non gia per naturale complessione impastata di foco, colerico et molto ardente, ma perche vuol darsi a credere di cavare della protrattione del tempo ciò, che desidera—conli scemi dell'ira tenendo pure quelli della mansuetudine.'

[390] 'Unmoveable in one hair that might concern me against the whole world.' James to Somerset, in Halliwell ii. 127; certainly one of the most important documents in this collection.

[391] Narrative of Abbot in Rushworth i. 460.

[392] A. Foscarini, 1615 Nov. 13. 'Si mantiene viva la voce e sospetto del principe defonto.' Nov. 20, 'Avanthieri parti il re, che per questo accidente e per le gravi dissensioni ed odii che regna in corte si mostra molto addolorato.'

[393] The personal motive of the estrangement might have lain in Overbury's speech to Somerset, mentioned by Payton during the trial: "'I will leave you free to yourself to stand on your own legs.'" My lord of Somerset answered his legs

were strong enough to bear himself.' (State Trials ii. 978.) He wished to show that he could dispense with Overbury.

[394] According to Wilson, Ralph Winwood was informed by a confession made at Vliessingen. From a letter of Winwood extracted by Gardiner (History of England ii. 216) we only learn that Winwood received the first intimation: he reckons it as a proof of the justice of the King of England that he allowed the investigation to be made.

[395] Somerset intimated that he possessed secrets the disclosure of which would compromise the King; and there is nothing, however conjectural or infamous, which has not seemed to some among posterity to be probable on this ground. James I says, 'God knows it is only a trick of his idle brain, hoping thereby to shift his trial. I cannot hear a private message from him without laying an aspersion upon myself of being an accessory to his crime.' (Halliwell ii. 138.)

[396] Girolamo Lando, Relatione 1622, praises him for 'apparenza di modestia, benignita e cortesia,—bellezza, gratia, leggiadria del corpo, a tutti gli esercitii mirabilmente disposto.'

[397] 'Che le lettere Più importanti del re sono passate in mano di Spagna.' Ant. Foscarini, Nov. 13, 1615. There is a letter of James I of October 20 which likewise supposes acts of treachery of this kind. What is true in this supposition we now learn from Digby's letter, in Gardiner, App. iii. 2.

[398] 'To the south parts of America or elsewhere within America possessed and inhabited by heathen and savage people.' So run the words of the commission: it is therein said expressly 'Sir Walter Raleigh being under the peril of the law.'

[399] Dispaccio Veneto Feb. 10, 1617: 'Che le cose erano concertate che S. M. cattolica non avrebbe occasione di riceverne disgusto—che era fermamente del re, che il Rale andasse al suo viaggio, nel quale se avesse contravenuto alle suoi istruzioni—haveva la testa con che pagherebbe la disubbidienza.'

CHAPTER II.

COMPLICATIONS ARISING OUT OF THE AFFAIRS OF THE PALATINATE.

During these years there had been persons at the helm of state in most countries, who either from natural disposition or from a calculation of present circumstances had cherished peaceful views. In spite of all the activity of Spanish policy, Philip III and his minister Lerma clung to the principle that the rest needed to restore the strength of the exhausted monarchy must be granted to it. The Emperor Matthias owed the crown he wore to his alliance with the Protestants: his first minister Klesel, although a cardinal, was a lukewarm Catholic, and a man of conciliatory views in general. The Regent of France, Mary de' Medici, had surrendered the warlike designs of her husband when she entered on the exercise of sovereign power. Christian IV of Denmark held similar views. He declined the proposals of the Poles, which were aimed at a renewal of the war against Sweden: he preferred, with the approval of his council of state, to proceed with the building of towns and harbours in which he was engaged.

Hence it was possible on the whole to carry out a policy such as that maintained by James I. It corresponded to the tone prevalent among the other powers.

From time to time it seemed probable that the opposing forces which were contending with one another in the depths of European life, would burst forth and shatter the peaceful state of affairs. For the advancing revival of Catholicism roused the hostile feelings of Protestants, while the union of the German and the independent feeling of the Italian princes resisted the extension of the alliances of Spain. In the A.D. 1617. year 1615, on the Netherland frontier, and in the year 1616 on the boundaries between Austria and Venice, warlike movements began which threatened to prove the commencement of a general struggle: but these were disputes of an essentially local nature, and peaceful dispositions still maintained the upper hand.

But in the year 1617 and 1618 a question arose which no longer allowed this state of things to continue. It concerned the imperial dignity of Germany, but it exercised so powerful a secondary influence upon affairs most thoroughly English that even in a history of England a short discussion must be devoted to it.

The increasing weakness of the Emperor Matthias rendered his speedy end probable; and all preparations were already being made in the house of Austria to secure the succession of the Archduke Ferdinand of Styria to the imperial throne, as well as to his own hereditary kingdoms and provinces. No arrangement could in itself have been more suitable in the nature of things. Ferdinand was the most vigorous scion of his house; and both the German Archdukes laid their own well-founded claims at his feet. A resignation on the part of Philip III of the claims which he inherited from his mother was thought indispensable: but even this created no difficulty. It was merely stipulated that Ferdinand should indemnify him for resigning them; and this he was willing to do. It only remained that the crown of the German Empire should also be assured to him. The Archdukes were eager for an immediate negotiation on the subject, and were already certain of the support of the spiritual electors.

It is clear however that the succession was not merely a change of persons. The place of the peaceable and moderate Matthias would be filled by one of the most devoted pupils of the Jesuits in the person of Ferdinand, who had made himself terrible to the Protestants by an unsparing restoration of Catholicism in his own country. Moreover the alliance between the German and Spanish line, which had been loosened in the last few years, was to be consolidated into a union resting on common interests: so that it seemed likely that Austria would enjoy a supremacy like that which had been established in the time of Charles V. The letters which passed between the members of that house, and which had accidentally been divulged, excited surprise by the note of general hostility which they struck, while the share of the Palatinate and of Brandenburg in the election was treated in them as a formality which could be dispensed with in case of necessity.^[400]

It is quite intelligible that the Protestants should be agitated by this discovery, and should entertain the idea of opposing the election of Ferdinand. Not that one of them thought of acquiring the throne for himself;

they did not resist the election of a Catholic emperor as such, but they wished to guard against the resumption of the combination between the Austro-Spanish power and the prerogatives of the imperial crown. At first their eyes fell upon Duke Maximilian of Bavaria, whom they would by this means have for ever detached from that power. The Elector Frederick controlled the jealousy which, as Elector Palatine, he felt for a branch of the same house, and went to Munich in order to prevail on his cousin to consent to this arrangement; for, according to the plea advanced on grounds of imperial right, the imperial crown could not be allowed to become hereditary in the house of Austria. He hoped that the Archbishop Ferdinand of Cologne, the brother of the Duke of Bavaria, would support him, and that his influence would win over the other spiritual electors also. The Union and the League would then have combined to oppose the house of Austria.

But meanwhile open resistance to the claims of this family had already broken out in its own provinces. While the Emperor Matthias was still alive, the Archduke Ferdinand, through the combination, as prescribed by Bohemian usage, of an election with the recognition of his hereditary claims, had been acknowledged future King of Bohemia, and had been already crowned, on condition that he would not mix in public affairs before the death of his predecessor. But immediately after the coronation people thought that they could discover his hand in every act of the government. Cardinal Klesel, the man in whom the greatest confidence was reposed, especially by the Protestant portion of the Estates, had been overthrown owing to the influence of the Spanish ambassador. In opposition to the influence thus exercised, 'against the practices and snares of the Jesuits,' as the phrase ran, the zealous Protestants who, when Ferdinand was accepted as King, had been thrust into the background or had retired, now obtained the upper hand in the country, and proceeded to open insurrection while the Emperor Matthias was still alive. This Prince was the first who was overturned by the collision of the two parties, whose enmity was again reviving, and between whom he had thought of mediating. He was bitterly disappointed by his failure. After his death the Bohemians thought themselves justified in refusing any longer to acknowledge Ferdinand as their King, and in seeking on the contrary for a worthier successor to the throne, on the ground that in Ferdinand's election the traditional forms had not been accurately observed, and that he was undermining all religious and

political freedom. Their eyes had even fallen on Catholic princes; but as the motive which prompted their resistance was certainly the religious one, their attention was still more drawn to the most eminent Protestant prince in their vicinity, Frederick Elector Palatine, who as head of the Union was himself the principal opponent of the election of Ferdinand as Emperor.

On the very first steps taken in this matter, the King of England was affected by these movements. We learn that, on the occasion of the overtures made by Frederick, Maximilian of Bavaria had been moved to write to James I, and to express to him his satisfaction at the family connexion which had sprung up between them. The interest of the Palatinate and of England seemed one and the same, especially as the King was still considered a member and protector A.D. 1618. of the Union. The presumption that the son-in-law of the King of England would find support from his power, contributed greatly to the importance which the Elector at this moment enjoyed.

But at the same time it was evident in what an embarrassing position James I was now placed, and that not only on account of the danger threatening the continuance of peace, which he thought no price too high to secure: his hands were tied not merely by this general consideration, but by another special reason as well. He was at that moment seriously engaged in a treaty for the marriage of his son with a Spanish infanta, which was to carry out the long-talked-of alliance between his family and the Austro-Spanish line.

The first overtures in regard to the present Prince of Wales had been made by the Duke of Lerma to the English envoy, Digby, to whom he opened a proposal for the marriage of Prince Charles with Mary, daughter of Philip III. The Spanish ambassador, Gondomar, had then taken the management of the affair in hand. We should do him wrong by supposing that he wished to deceive the King. Gondomar rather belonged to the party who looked for the welfare of the Spanish monarchy in the maintenance of peace, especially with England. The scheme of the marriage was part of the system of powerful alliances by which it was sought to prop the greatness of Spain. Even the uncertain rumour of this scheme, which was instantly propagated, sufficed to agitate the Protestant party in Europe and in England itself. The King declared that he moved only with leaden foot towards the proposal which had been made to him; and that, if it were seen that the alliance was

dangerous to religion or to existing agreements, it should never take effect. But even the Secretary of State, Ralph Winwood, who repeated this declaration, disapproved of the scheme, as did also the whole school of Robert Cecil. They had wished to marry the Prince to the daughter of a German line, perhaps to a Brandenburg princess; and the States General offered their money and their services in order to win the consent of any such princess, and to convey her to England. Many would have preferred even a domestic A.D. 1619. alliance after the old fashion. Opposition was also offered on the part of the Church of England. Archbishop Abbot only delayed to urge it until the conditions of the marriage should come under discussion. But the King likewise had the approval of influential voices on his side. It was considered possible to conclude the marriage, and yet to preserve the other alliances of the country. People thought that England would in that case be only the more courted by both parties, and that the peace of the world would rest on the shoulders of the King.

But what a contradiction was involved in the ascendancy which these ideas obtained? The hereditary right to the crown of Bohemia, which the estates of that country would no longer acknowledge, belonged to the house of Spain. It was intended that the Elector Palatine should step into its place by election; and this prince was son-in-law to the King. After James had married his daughter to the head of the Protestants in Germany, he conceived the thought of marrying his son to the member of a family which had made the patronage and protection of Catholicism its special calling. It seemed as if he was purposely introducing into his own family the disunion which rent Europe in twain.

The negotiations in Germany after a time resulted in the victory of the house of Austria, which in spite of all opposition carried the day in the election of the Emperor. The Elector Palatine acknowledged Ferdinand II without hesitation. But almost at the same moment he received the news that he had himself been elected king by the Estates of Bohemia. It cannot be proved that he was privy to this beforehand: even the rumour that his wife urged him to accept the crown because she was a king's daughter meets with no confirmation. They were not so blind as not to perceive the enormous danger in which the acceptance of this offer would involve them. In reply to a question of the Elector, his wife answered that she regarded the election as a divine dispensation, that if he determined to accept it, which

she left entirely to his consideration, she for her part was resolved to undergo everything that might follow from it. We must not regard as hypocrisy the prominence which the prince and the princess alike gave to religious considerations. Such was the fashion of the times generally, and especially of the party to which they belonged.

The Elector Frederick however did not yet declare his decision. The question of the acceptance of the crown of Bohemia was debated from every point of view by the very councillors who had just been present at the election of the Emperor. Their decision was in favour of the prince inviting first of all the advice of his friends in the empire, of the States-General, but especially of the King of England, and making sure of their support.^[401] The Bohemian envoys, who most urgently requested an immediate answer, were put off with the reply that the Elector must first of all be certain of the consent of the father of his consort. Count Christopher Dohna was sent to England to persuade King James to give it. He was commissioned to deliver to him a letter from the Princess-Electress in which she most urgently entreated her father to support her husband and to prove his paternal love to them both.

King James came now face to face with the greatest question of his life, which summed up and brought to light, so to speak, all the cross purposes and conflicting political aims among which he had long moved. A word from him was now of the greater consequence, as the States-General declared that they would act as he did. But what was his decision to be? He was not unmoved by the thought that the prospect of possessing a crown was opened to his son-in-law and grandchildren. On the other hand he was greatly impressed by a representation which the King of Spain forwarded to him, that his right to the crown of Bohemia was indisputable—as in fact the Spanish line had a contingent claim to the succession—and that he would contend for it with all his strength: on which King James said that he also as a great sovereign had an interest in seeing that no one was deprived of his own. The theories of James I about the hereditary rights of princes, the electoral rights of the Estates, and the influence of religious profession in these matters, presented themselves to his mind together with his wishes on the question of the aggrandisement of his dynasty. He remarked that it could not be allowed that subjects should presume to fall away from their sovereign on a question of religion; he even feared that this doctrine might

react to his own prejudice on England. In these considerations the balance evidently was in favour of a refusal. James would have deserved well of the world if he had given utterance to that refusal, and had decisively dissuaded his son-in-law from accepting the crown. And from his oft-repeated assertions at a later period, to the effect that the Elector had proceeded on his own responsibility, we might think that he had expressed himself in definite terms in favour of a different course.

In reality however this is not the case. He condemned the revolt of the Bohemians against Matthias: in regard to Ferdinand it was his opinion that they should prove from the old capitulations their right to declare his election and coronation invalid, and to proceed to a new election, in which case he would himself support them.^[402] He expressed himself in such a manner, that even members of the Privy Council received the impression that he would approve of and even support the acceptance of the crown when once it had taken place. Christopher Dohna relates that in the negotiations at that time he one day declared that his master, the Elector, was ready to refuse the crown if the King required him to do so; and that James replied, 'I do not say that.'^[403]

Monarchs are set in authority in order that they may pronounce definitive decisions according to the best of their own judgment. It is sometimes their duty to take a decided line. James, who hitherto had always stood between different parties, could not nerve himself at this eventful moment for a firm and straightforward resolve. In the monstrous dilemma in which the various questions at issue were becoming involved he could not come to any decision. The kindest thing that can be said of him is that at this moment his nature was not equal to the requirements of the situation.

Count Dohna, following the example of James's councillors, concluded from his expressions that he was not only not opposed to the acceptance of the crown, but that he would allow himself to be enlisted in its favour, and would support it. And there is no doubt that this view exercised a decisive influence upon the final resolution of the Elector Frederick. He certainly was already strongly inclined to accept the crown in opposition to his more clear-sighted and sagacious mother, but in agreement with his ardent wife: but he had not yet uttered the final words when Dohna's report came in.^[404] When he learned from this that the King was not decidedly unfavourable,

the Elector thought that he recognised a dispensation of God which he would not decline to carry out. In the presence of his councillors at the castle of Heidelberg he declared to the Bohemian ambassadors that he accepted the crown; and soon afterwards he set out for Bohemia. In October 1619 (Oct. 25/Nov. 4) he was crowned at Prague.

What unforeseen consequences however for himself and his friends, for Germany and for England, were destined to spring out of this undertaking!

In London, where the popular party had already from the first fixed their eyes on the Princess, this step was welcomed with the most joyous approval. It was represented to the King that the most brilliant prospect was **A.D. 1620.** thus opened to his family; that on the next vacancy his son-in-law, who already himself held two votes in the electoral body, could not fail to be chosen Emperor; and that England would by this means acquire the greatest influence on the continent. It was expected that these feelings for his family, and the successful issue of events, would work together to detach him again from Spain.

James on one occasion, on receiving the news of the confinement of his daughter, drank a bowl of wine 'to the health of the King and Queen of Bohemia.' He went so far as this, and people thought it worth while to record the event; but he could not be brought to acknowledge Frederick openly. He was not satisfied with the proof of their right advanced by the Bohemians: in conversation he advocated the right of Austria.

Spain and the League, as was inevitable, joined forces with Austria. In the first instance the Palatinate itself was the object of their joint attack. How could men have helped thinking that King James would resolutely take the inheritance of his grandsons under his protection? The Union invited him to do so, reminding him of the obligation imposed on him by his connexion with them mentioned above: they said it was no favour, but justice which they demanded of him. But James replied that he had pledged himself only to repel open and unjustifiable attacks, but that in the present case the Palatinate was the attacking party, and that Austria stood on the defensive. The Union presently saw itself compelled to conclude a treaty with the League, which left that power free to act against Bohemia. The Palatinate however was not secured thereby against the Spaniards.^[405] To effect this, it

would have been deemed advisable to make an attack from Holland on the Spanish Netherlands; for if a single fortified place had been occupied there, the Palatinate would have had nothing more to fear from Spain. But to this measure also James refused his consent: he thought that this would be equivalent to beginning war, which he did not wish.

The general sympathy of the nation was strong enough at last to cause a large English regiment of 2500 men, under Horace Vere, to be sent on the continent, in order that the Palatinate, on which the Spaniards now advanced, might not become utterly a prey to them. The Earls of Essex and Oxford, who had contributed most to raise the regiment, themselves took part in the campaign. They were joined by many other young men of leading families, who wished to learn the art of war. But they had received from the King positive commands to commit no act of hostility. The troops of the Union, who showed themselves quite ready to fight the Spaniards, were withheld by the threat that in that case the King would recall these troops instead of sending two more regiments to join them, the hope of which he held out to them in the event of their obedience. It was enough for the King that the English troops occupied the most important places. Vere held Mannheim, Herbert Heidelberg, Burrows Frankenthal; while the greater part of the country fell into the hands of the Spaniards.

Europe had reason to be alarmed at the advantage which accrued to the Spanish monarchy from this affair. The Tyrol and Alsace were already promised them to form links between Lombardy and the Netherlands: the possession of the Lower Palatinate completed their chain of communication.

The action of Spain and England presented a marked contrast. Spain, while it forsook Lerma's policy, held together all its friends—Germany, Austria, the League, the Pope, the Archducal Netherlands—and combined their forces for joint action on a large scale; while King James, in clinging to the policy of peace, let his allies fall asunder and crippled their activity.

But if James so acted in the case of the Palatinate which he wished to save, what might be fully expected in the case of Bohemia, with regard to which he openly declared, after some hesitation, that he could take no further part in its affairs? The new King found no hearty obedience among the

Bohemians, partly because they found themselves deceived in their expectation of being assisted with troops by the Union, and with money by England. But worse than all, the ill-disciplined soldiery being without pay, broke out in mutiny: they were almost more ready to help themselves to their arrears by an attack upon the capital than to defend their sovereign or their country. On the other hand the soldiers of Austria and of the League, well paid and well disciplined, were spurred on by zealous priests. On their first attack they scattered the troops of Frederick to the four winds (November 1620). It would not have been impossible for Frederick to wage a defensive war in Bohemia; but regard to the danger into which the Queen would have been thrown in consequence prevented the attempt. That one day cost them both crown and country.

It is impossible to describe the impression which the news of this defeat produced in London. The King was held blameable because not a single soldier commissioned by him had been found beside his daughter to draw the sword in her defence. This was attributed either to culpable negligence of his own affairs, or to the influence of the Spanish ambassador. Not Gondomar himself, who was too shrewd to act thus, but certainly his friends and Catholics generally, let their joy at this event be known. The citizens responded with manifestations that were directed against the King himself. A placard was put up in which he was told that he would be made to feel the anger of the people, if in this affair he any longer followed a policy opposed to its views.

James I could no longer put off the question what steps he was to take. The tidings reached him at Newmarket, where he was spending the cold and gloomy days in hunting. He broke off this amusement and hastened to Westminster, in order to attend council with his ministers.

Towards the end of December a meeting was held, in which the secretary Naunton depicted the whole position of the foreign policy of England, and drew from it the conclusion that the King must above all arm, as in that case he could carry on war, or at least negotiate with firmness and some prospect of success. King James himself brought the affair of Bohemia under discussion. He complained, and seemed to feel it as an injury to his paternal authority, that the Elector Frederick even now continued to make the acknowledgment of his right to the crown of Bohemia a condition of his

accepting the mediation offered by the King. Viscount Doncaster, who had just returned from a mission to Germany, fell on his knees before him, in order to remark to him that Frederick deserved no blame for clinging to a right which he supposed to be valid: that his refusal was not addressed to James as a father, but as King of England.^[406] James I distinctly stated afresh that he could not and would not espouse the cause of his son-in-law in Bohemia. But by this time not only was Frederick's new crown as good as lost, but his whole existence was endangered; the greater part of his hereditary territory was in the enemy's hands. James declared with unusual decision that he would not allow the Palatinate, which would one day descend to his grandchildren, to be wrested from them; that he was resolved to send to the Continent in the next year an army sufficient to reconquer it. It might be asked if this measure also would not inevitably lead to a breach with Spain. King James did not think so. He thought that he could carry on a merely local quarrel, and yet at the same time avoid a war on the part of the one power against the other. He did not intend to attack the King of Spain's own dominion, so long as that sovereign did not meddle with his.

But however that might be, whether he was to begin war, though only on a limited scale, or whether he wished to prosecute negotiations with success, in any case it was necessary for him to arm. But for this purpose he required other means besides those of which he could dispose at his own discretion.

NOTES:

^[400] Memorial of the Archduke Maximilian of Feb. 1, 1616, in Lunig, *Europäische Staatsconsilia* i. 918. It is clear from this that the anxiety of the members of the Union with regard to the Venetian war was not so groundless as it might otherwise appear. The Archduke lays before the Emperor the question whether 'in the event of the continuance of the Venetian disturbances he would use the opportunity to bring a numerous force into the field, and maintain it until the laudable work had been everywhere set in train, and had been prosecuted with the wished-for result.'

^[401] Reasons for hesitating advanced by the Privy Councillors of the Prince Elector, in Moser, who calls them prophetic, *Patriotisches Archiv*. vii. 118. The Palatinate 'will not well be able to decide anything certain and final: she has therefore made everything depend on England and the States-General, and has asked them, as well other her friends and potentates in the empire, for trusty counsel and declaration of what they will do in every case by her.'

[402] 'Non approvare che in vita del imperatore li populi si sollevassero, ma che bene consigliava dopo morte dassero in luce le loro ragioni del jus eligendi sopra nullita dell'elettione di Ferdinando, con elegerne un altro, nel qual caso offeriva anche l'ajuto et il soccorso suo.'

[403] 'S. M., se non assenti all accettare della corona, non disse ne anche mai all ora di dissentire: che anzi alla venuta di lui in questa corte offerendole al nome dell'istesso suo signore, che quando ella havesse voluto, l'averebbe anche lasciata, egli rispondesse: io non dico questo.' Girolamo Lando, Feb. 5, 1621.

[404] Dohna mentioned that 'the leading English councillors held that, if the Prince Elector would but soon accept the crown, the King on his part would soon declare himself and give his approval, which accordingly threw almost the greatest weight into the scale.' Secret Report in Moser vii. 51.

[405] From the documents relating to these proceedings, it is proved that Spinola had received instructions in June 1620 to gain possession of the Palatinate; that assurances however were given to King James even in August that nothing was really known of the object of his expedition. Senkenberg iii. 545 n.

[406] Dispaccio Veneto, 8 Gennaio 1621.

CHAPTER III.

PARLIAMENT OF THE YEAR 1621.

We already know the antipathy of James to the Parliament, which had become a power to which, as soon as it was manifested in a newly assembled House, the power of the King was obliged to bend. James had already often felt the ascendancy of Parliament. The schemes of union with Scotland, which filled his soul with ambition, had been shattered by the resistance of that body. The exclusively Protestant disposition which prevailed there had made it impossible for him to give a legal sanction to the favour which he entertained for the Catholics, and which his views of policy naturally disposed him to show. He had been obliged to desist from the attempt to secure financial independence by surrendering the feudal privileges of the crown. The Parliament raised claims which the King regarded as attacks on the prerogative of the crown: even his advances to it had been met by a stubborn resistance. In the ordinary course of things he would never again have summoned Parliament together.

This complication in foreign affairs then arose. All parties, including even the King himself, were convinced that England must step forth armed among the contending powers of the world: and that, not in the fashion of the last expedition, so little in keeping with the situation, when private support and tacit sympathy found the means, but on a large scale, as the position of the kingdom among the great powers demanded. But without Parliamentary grants this was impossible. The summoning of a new Parliament was therefore an incontestable necessity.

A.D. 1621. But on the other hand there was not wanting reasons for hesitation, for it could not be disguised that concessions would be inevitable. King James saw that as plainly as any one, and declared himself beforehand ready to make them. In contradiction to his former assertions he gave out that he would this time allow grievances to be freely alleged, and would give his best assistance in removing them. He said that he wished to meet Parliament half way, and that it should find him an honourable man. From

the investigation of abuses the less was feared because the late opposition was ascribed to a factious resistance to Somerset's administration. But that favourite had since fallen: and of the leaders of that opposition several had gone over to the government, and some had died.^[407] The declared purpose of arming for the reconquest of the Palatinate was in accordance with the feelings of the nation and of the Protestants: no doubt was felt that it would win universal sympathy.

This was in fact the case. The most favourable impression was produced when the King in his speech from the throne (January 30, 1621), which was principally taken up with this subject, declared his resolution to defend the hereditary claim of his grandchildren to the territories of the Palatine Electorate, and the free profession of Protestantism; to compel peace if it were necessary sword in hand; for which objects he claimed the assistance of the country. Parliament did not hesitate for an instant to express its concurrence with him in these designs. Two subsidies were granted on the spot, and the resolution was carried into effect during the continuance of the debates, a step which was altogether unprecedented. The King thanked the Parliament for this extraordinary readiness, which would, he said, increase his importance both at home and abroad.

But this did not prevent Parliament on the other hand from bringing forward its claims with all possible energy. The power of granting money was the sinew of all its powers. The necessity of asking assistance from Parliament in urgent embarrassments, which the Tudors had avoided as far as possible, now appeared as pressing as ever. Was it not to be expected that demands should call forth counter-demands? And the opposition in the previous Parliament rested on a far wider basis than that of hostility to Somerset: at the present election also the candidates of the government were rejected in most of the counties and towns.^[408]

The commission appointed for the investigation of abuses did not deal only with those which were acknowledged to be such. The principal question rather concerned the competence of the crown to confer such privileges as those out of which the abuses originated. Under the lead of Edward Coke, the great lawyer, Parliament adopted a principle which secured for it a firm standing ground.

Coke, who moreover did not think it necessary to ask the King's consent for liberty of speech, because this was, he thought, an independent right of Parliament, vindicated the position that no royal proclamation had validity if it contradicted an act of Parliament or an existing law. He took his stand on the times of the later Plantagenet and of the Lancastrian kings: and he considered that the form which the relation between the government and Parliament then assumed was the only legal form. But the government of James I had granted extraordinarily obnoxious privileges—for instance, the right of setting up taverns with a restriction on the entertainment of guests by private individuals, or by the old inns; and again the right of arresting acknowledged vagrants. But the most obnoxious grants were those of patents for the monopoly of some trade, which were annoying to the whole mercantile class, and brought profit only to a few favoured individuals. Coke argued that the patents were either in themselves illegal, or injurious in their enforcement, or both together. While he proved to Parliament its forgotten or disregarded rights, Coke won the full confidence of both Houses alike: the Upper and the Lower House made common cause. Thus the system of government as it had been developed under the Tudors and continued under the Stuarts was encountered face to face by another system, which rested upon other precedents and principles.

And people were not content with merely declaring the patents invalid; they called those to account who had got possession of them, and even the high officials who had contributed to issue them. A general commotion ensued: every day fresh information came in and fresh complaints were drawn up.

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The Lord Chancellor Bacon had been already brought into danger by this affair. He had assisted in introducing monopolies of different manufactures under the pretence that work would be found for the poor by means of them. It was well known that in matters of this sort he had for the most part followed the suggestions of the Prime Minister. While Bacon was defending the ideal mission of the monarchy, he had the weakness to identify himself too closely with the accidental form which authority just at that particular moment took. In return he found on the other hand that the attacks really aimed at the government recoiled in the first instance upon him. In reality they were directed principally against Buckingham. In order to save him from destruction, suggestions had been made to the King that he might

prefer to dissolve Parliament, as it seemed plain that he had far more reason to expect harm from the attacks than advantage from the grants made by that body. Buckingham saved himself only by coming forward against the monopolies himself, in accordance with the advice of his ecclesiastical confidant, Dean Williams. Claims had been made against two of his brothers also on account of the monopolies. Far from taking them under his protection, he said on the contrary that his father had still a third son who was determined to root out abuses; and that not until the present proceedings had been taken had he recognised the advantages of parliamentary government. Upon this, the leading men with whom Williams had formed a connexion, desisted from attacking the First Minister. It even came about that a person of high rank, accused at the bar of the House of Lords, who had let fall an expression, comparing Buckingham to old favourites of hateful memory, was obliged to retract it with considerable ceremony. But a victim was required: one was found in the Lord Chancellor Bacon.

Although condemned by law and morality, an evil practice still prevailed of receiving presents of money in official transactions. The sums were known and have been registered, by means of which Gondomar retained the services of a number of statesmen in the interest of Spain. How many similar abuses in the control of the Treasury had been brought to light only a short time before! Even the great philosopher, who in his writings is so zealous against bribes, contracted during his administration the stain of receiving them. That he might stand on an equality with the great lords, he incurred inordinate expenses, which these bribes assisted him to meet. Edward Coke was wholly in the right when he exclaimed that a corrupt judge was 'the grievance of grievances.'^[410] Two-and-twenty cases were proved in which the supreme judge, the Lord Chancellor of England, had taken presents from the parties concerned. Lord Bacon made no attempt to justify his conduct; he only affirmed—and this appears in fact to have been the case—that in his decisions he never was influenced by the presents that had been made him. When he was called to account for them, he acquiesced himself in the justice of the proceeding, for he allowed that a reform was necessary, and only deemed himself unfortunate in being the person with whom it began. The Lords pronounced sentence upon him that he should

never again fill an official position, nor be capable of sitting in Parliament, and that he should be banished from the precincts of the court.

Apart from its importance as affecting individuals, this event is very important in the history of the constitution, which now returned to its former paths. That the Lower House again as in old times was able to procure the fall of one of the highest officials, is an evidence of its growing power. That the First Minister and favourite allowed his intimate friend to fall is a proof of the weakness of the highest authority, which moreover ought itself to have attacked abuses of this kind. Bacon justly remarked that reform would soon reach higher regions.

But while Parliament, which the government had no inclination to withstand openly, thus obtained the ascendancy in domestic matters, it was also already turning its eyes in the direction of foreign affairs. These were times in which a warm religious sympathy was awakened by the advance which the counter-reformation was making in the hereditary dominions of Austria, as well as in France, and by the persecutions which befell the Protestants in both countries. The Spaniards were again engaging in war for the subjugation of the Netherlands. In Parliament, on the other hand, it was thought necessary to combine with the Republic, and to equip a fleet to assist the Huguenots, and even to attack Spain, in order thus to make a diversion in favour of the Palatinate. At the very time of the opening of Parliament the ban of the empire was pronounced against Frederick Elector Palatine amid the sound of trumpets and drums in the Palace at Vienna. This was regarded in the whole Protestant world as an injustice, for it was thought that Ferdinand II had been injured by Frederick only as King of Bohemia, and not as Emperor: and on the same grounds the English Parliament was of opinion that the execution of the ban ought to be hindered by force of arms; and it showed itself dissatisfied that the King sought to meet the evil only by demonstrations and embassies.

We can easily understand that the attitude of Parliament aroused the anxiety of the King. He caused the debates on the war to be put a stop to, remarking that they infringed his prerogative, for which great affairs of this kind were exclusively reserved. And yet, so extraordinary was the complication of affairs that the declarations made in Parliament were not altogether displeasing to him. In June he adjourned Parliament, without formally

proroguing it. What was the reason of this? Because Parliament had brought in a new bill containing the severest enactments against Jesuits and Catholic recusants. The King refused to accept it, as by this means the persecution of Protestants in Catholic countries would receive a new impulse. But he was also unwilling to express his refusal in a final shape, because he knew that the wish to hinder the adoption of harsh measures against the Catholics would exercise an influence upon the Spaniards in their negotiations with him.^[411] If he had proceeded to a prorogation, he would have been obliged to reject the laws; and he preferred to keep the prospect of them still open, which he was able to do by resorting to the form of an adjournment. He made it a merit in the eyes of the Spaniards that, far from increasing the severity of the penal laws, he did not even enforce them in their existing form, when moreover, if enforced, they would bring him in a large sum. But he was glad to see that people feared that he might do at some future time what at present he had refrained from doing. When he promised the Parliament on his royal word, that he would call it together again without fail in the autumn, he was also influenced by the consideration that he intended the Spaniards to look forward with fear to the resolution which might then be taken. He was greatly pleased that Parliament before dispersing drew up an energetic remonstrance against the persecutions of the Protestants all over the world, and especially against the oppression of his children. Not that he wished to give effect to it: on the contrary he adhered to the policy of assisting his son-in-law only by means of diplomacy: but he desired that the Spaniards should fear a war with England, and he thought that anxiety on this point would induce them and their friends to show themselves conciliatory and respectful.

Sir John Digby, who was commissioned with the negotiations at the Spanish court, was referred by that power to Brussels and Vienna; and in fact he received favourable answers, not only from the Infanta Isabella in the former, but even from the Emperor himself in the latter city. The Emperor held out to him the hope that the matter would be reconsidered at a future assembly of the Estates of the Empire, which he intended to convene at Ratisbon. But meanwhile warlike operations and the execution of the ban held their course undisturbed. In Bohemia the counter-reformation was carried through with extreme severity. Four-and-twenty Protestant nobles and leaders were executed, and their heads with hoary beards were seen

exposed on the Bridge at Prague. Silesia hastened to make its peace with the Emperor: the Princes of the Union laid down their arms, but they did not yet make their peace by this means. Tilly took possession of the Upper Palatinate, and then turned with his victorious army to the Lower Palatinate in order to complete the subjugation of this province, notwithstanding all the protection of England. On the Lower Rhine the forces of the Spaniards and of the States General confronted each other in arms. Under these circumstances the Princes, who were invited, refused to appear at an Assembly of the Empire,^[412] for none of them thought that he could leave his home without incurring evident danger. The Infanta Isabella too in Brussels declined to conclude the truce which Sir John Digby proposed.

While affairs were in this position, Parliament resumed its interrupted sittings in November 1621. Dean Williams, who after Bacon's fall had received the Great Seal, opened the session with a request for the immediate grant of new subsidies, which he said would be required even before Christmas. He promised that in the coming February, when they resumed their sittings, the other affairs should be brought under discussion.^[413]

On this occasion as on a previous one, the King wished for nothing more than a renewed and stronger demonstration. Even now he lived and moved in a policy of compromise between opposite views. While his son-in-law was being robbed of his country in the interest of Spain, he adhered to the wish of marrying his son to a Spanish Infanta: he thought that he would bring about the restoration of the Palatinate most easily by the influence which this new alliance would confer. But he thought that his friendly advances should also be accompanied by threats, and he wished to be placed by the grants of Parliament in a position to arm more effectually than before. It would have been in accordance with his views, if Parliament had repeated its former declarations, according to which it was ready to put forth all its power in his behalf, in order to place him in a position to compel by force of arms what might be refused to his peaceful negotiations.

It is worth noticing in all this that James not only met the wishes of Parliament because he required support, but that he also encouraged the disposition which it showed in favour of Protestantism, in order to avail himself of it: he thought that he would always be able to control it. But how

often has a policy been shipwrecked, which has thought to avail itself of great interests and great passions for some end immediately in view!

How could it be expected that while religious parties on the continent were meeting in a struggle for life and death, the English Parliament would approve of the wavering policy of James I, which aimed at compromise and had hitherto been without results?^[414] Quite the contrary: starting with the view that England was the centre of Protestantism and must avert the dangers which assailed it, Parliament declared itself ready, it is true, to pay the King new subsidies, but not until the following year, and on the presumption that he should have accepted and ratified the bills for the welfare of the people which had passed the House.^[415] They thought that the common danger to religion arising from the alliance between the Pope and the King of Spain had been brought upon England also by the indulgence hitherto shown to the recusants. Parliament invited the King to draw the sword without further circumlocution for the rescue of the foreign Protestants; in the first instance to break with the power whose army had carried on the war in the Palatinate, but above all to marry the Prince his successor to a lady of the Protestant faith.

The King wished to avoid war because he was anxious lest he should be constantly compelled by Parliament, owing to his repeated want of subsidies, to make fresh concessions, which would affect and diminish the substance of his authority. The Parliament wished for war because it expected that such a proceeding would furnish it with great opportunities for establishing its power.

As soon as the rival powers encountered each other on this ground, all agreement between them was at an end. Parliament interfered still more vigorously than before with the affairs which the King reserved for himself: it wished to induce him to adopt those very measures which he was resolved to avoid. He was expected to break with that power with which it was his principal ambition to become most closely connected. He was expected to take the sword in order to defend the common cause of Protestantism. He was expected to put an end to the indulgence which he had hitherto shown to his Catholic subjects; to do what ran counter to all the expectations which he had raised at Rome and Madrid; and what perhaps, considering the strength of the Catholic element in England, was not

without danger to the maintenance of quiet at home. Meanwhile the payment of the subsidies, which he required at once in order to maintain his political position, was indefinitely deferred. Although it was not actually stated, yet it was quite clear that Parliament made the validity of its grants dependent on his compliance with its advice. And on what important matters was that advice offered! The King complained that his prerogative was openly infringed by it; that Parliament wished to decide on his alliances with other sovereigns, and to dictate to him how to conduct the war; that it brought under debate questions of religion and state, and the marriage of his son: what portion of the sovereign power, he asked, was left to him? On the competence which Parliament claimed as its hereditary right, he remarked that it had to thank the favour of his ancestors and himself for this: that he would protect Parliament, but only in proportion to the regard which it showed for the prerogative of his crown.

If we had to specify the moment in which the quarrel between the Parliament and the Crown once more found its full expression, we should choose this.^[416] The Parliament, which had dissolution in immediate prospect, employed its last moments in making a protest, in which it again affirmed that its liberties and privileges were a birthright and heirloom of the subjects of the English crown, that it certainly was within its power to bring under debate public matters affecting the King, the State, the Church, and the defence of the country; and that full liberty of speech without any subsequent molestation on that account must be secured to every member in the exercise of these rights.

The King would not forego the satisfaction of punishing by arrest a number of members who were peculiarly hateful to him; he declared the protestation null and void, and struck it out of the clerks' book with his own hand. In a detailed exposition of his view of these transactions, in which he gives the assurance that he will still henceforth continue to summon Parliament, he emphatically repudiates this protestation, which he affirms to be drawn up in such terms that the inalienable rights of the crown are called in question by it, rights in the possession of which the crown had found itself in the times of Queen Elizabeth of glorious memory. He affirms that as King he cannot tolerate any such pretensions.

Parliament demanded the policy of Queen Elizabeth; King James demanded her rights. The privileges accorded to the crown and the opposition to Spain had formerly gone together: the surrender of the latter under King James served to supply Parliament on its part with a motive for making an attack upon the former.

The cause of Parliament was of great importance, even when it stood alone: deeper impulses and fresh life and vigour were first imparted to it by its combination with foreign policy and with religion.

NOTES:

[407] From a letter of Bacon to Buckingham.

[408] Lando, Relatione: 'Se bene procurò S. M. di restringere e captivare fino l'autorità, che hanno li communi d'eleggere li deputati, benche in qualche citta e provincia gli è riuscito, nell'universale non ha potuto, rifiutati i privati del favorito e dei consiglieri li lei.' Lando describes the Parliament as 'repubblica altrettanto mal pratica, quanto molto pretendente.'

[409] Chamberlain to Carleton, March 24: 'They find it more than Hercules' labour purgare hoc stabulum Augiae of monopolies, patents and the like.' (St. P. O.)

[410] Chamberlain to Carleton: 'All men approve E. Coke, who upon discovery of those matters exclaimed that a corrupt judge is the grievance of grievances.' Chamberlain relates that an officer of the Court of Chancery, when accused on account of various irregularities, exclaimed 'that he would not sink alone, but draw others after him.'

[411] Buckingham on one occasion very aptly characterises his policy and its danger: 'So long as you waver between the Spaniards and your subjects, to make your advantage of both, you are sure to do with neither.' Hardwicke Papers i. 466.

[412] 'The princes denied their appearance.' (Digby, Recital of his Speech, Parl. Hist. v. 483.) So that the notice by Struv, rejected by Senkenberg (Fortsetzung Häberlins xxv. § 80) is nevertheless correct.

[413] A gap in Williams' speech at this part, occurring in the Journals and in both Parliamentary Histories, is to a certain extent filled up by a letter of Chamberlain to Carleton of Nov. 24; 'intimating that they should forbear needless and impertinent discourses, long and extravagant orations which the king would not indure.'

[414] Lando, Relatione: 'Non potendosi accordare con spiriti discordanti dei proprii impressi di non lasciarsi levare un punto dell'autorità.'

[415] John Locke to Carleton, Nov. 29: 'They have put up a petition, that this may be a session and laws enacted, that the laws made against recusants may be executed, so that the promise of the subsidy seemeth yet to be conditional.'

[416] Chamberlain to Carleton on December 22. The Parliament, on receiving a message enjoining the speedy continuance of their business, answered the King two hours after it had been brought before them: 'but with all for fear of surprise gave order to the speaker and the whole house to meet at four o'clock: where they conceived sat down and entered this proposition enclosed which is nothing pleasing above and for preventing where of there came a commission next morning to adjourn the Parliament.' Cf. the Commons' protestation: Parl. Hist. v. 513.

CHAPTER IV.

NEGOTIATIONS FOR THE MARRIAGE OF THE PRINCE OF WALES WITH A SPANISH INFANTA.

It is a general consequence of the dynastic constitution of the states of Europe that marriages between the reigning families are at the same time political transactions, and as a rule not only affect public interests, but also stir up the rivalry of parties: this effect however has hardly ever come more prominently into notice than when it was proposed to marry the heir to the throne of England with an Infanta of Spain.

We have remarked that the scheme originated in Spain, had already been once rejected, and then had been mooted a second time by the leading minister of Philip III, the Duke of Lerma. It formed part of Lerma's characteristic idea of fortifying the greatness of the Spanish monarchy by a dynastic alliance with the two royal families which were able to threaten it with the greatest danger, those of France and England. This design brought him into contact with a current of policy and personal feeling in England which was favourable to him: but at the same time the great difficulty which the difference of religion presented, came at once into prominence. Not that it would have been difficult for King James to make the concessions requisite for obtaining the Papal dispensation; on the contrary he was personally inclined to do so: but he feared unpleasant embarrassments with his allies and with his subjects. Count Gondomar, the ambassador, assured the King that he should never be pressed to do anything which violated his conscience or A.D. 1622. his honour, or by which he might run a risk of losing the love of his people.^[417]

On this, negotiations which had already been opened for the marriage of the Prince with a French princess were broken off. Besides, the intermarriage with the house of Spain appeared to be far more deserving of preference, as being likely to pacify the feelings of English Catholics, who were accustomed to side principally with Spain, and even to promote the calm of the world, as Spain was a more prominent representative of the Catholic

principle than France. It was thought advisable to leave the conditions of the dispensation to be arranged in the sense indicated by negotiation between the Papal see and the Spanish crown.

But a new and serious hindrance now arose in consequence of the embarrassments caused by the affairs of the Palatinate, in which the interests of the two dynasties came into immediate collision with one another. It is clear that King James could not marry his son to an Infanta of Spain while a Spanish army was taking possession of his son-in-law's territory. He therefore made the restoration of the Palatinate a condition of the marriage. All his tortuous efforts were directed to combine the latter object with the former, and at the same time to avoid a disadvantageous reaction upon his domestic policy.

While he invoked the Protestant sympathies of Parliament in order to give weight to his demands, he nevertheless checked them again as soon as he was in danger of being forced to make war, or even to resume the measures against the Catholics, which might displease the Spanish court. Whilst he made the Spaniards aware that if he were refused the consideration he required, he would throw himself entirely into the hands of his Parliament and proceed to extremities, he at the same time employed every means of effecting a peaceful accommodation, by which he would then at once be saved the necessity of making concessions to Parliament. The most active negotiations were opened in Brussels with the Infanta Isabella, upon whom the issue seemed most to depend. James I had sent thither Richard Weston, the man whom Gondomar himself declared to be the most appropriate instrument for this affair; and an agreement was concluded with the personal co-operation of the Infanta, which held out expectations of the restoration of the Elector. On the side of the Palatinate and England everything was done to promote the conclusion of this agreement, and to ensure its execution. The expelled Elector was induced to recall Mansfeld and Christian of Brunswick from the Upper Rhine, where they were then moving vigorously forward, lest the treaty should be obstructed by their operations.^[418] He himself removed to Sedan, in order not to arouse the suspicions of the House of Austria by his residence in the Netherlands. In the summer of 1622 he had no other troops in the Palatinate but the English garrisons; and King James engaged that, if the treaty were concluded, he would take arms himself against the allies of his son-in-law. But while

expectation was directed to the conclusion of the contract by which the Elector should be re-established in his country, the League advanced against those strongholds which the English held in his name. Neither Heidelberg nor Mannheim could hold out. The English troops were obliged to bend to necessity and to march out, although with the honours of war. Only in Frankenthal did they still maintain themselves for a while. When Weston at Brussels complained of this conduct he was actually told that the League must have everything in their hands first, in order to restore everything hereafter. He was astounded at this subterfuge, and asked for his recall.

In England the friends of Spain fell into a sort of despair at the course of events. For what could follow from it but open war between the King of England and the Emperor? But on whose side would Spain then be found? Would that power pledge itself to fight to the end against every one, even against the Emperor, in behalf of the treaty when concluded? To prevent England from coming into closer alliance with France, the government of Spain had planned the marriage and opened direct negotiations: would it now, when its cause appeared to be advancing, withdraw in violation of its word of honour? Even the Privy Council represented to the King that he was bringing dishonour and danger on his country. The Duke of Buckingham, who also had himself been in close agreement with Gondomar, and was considered to be the man who held the threads of politics in his hand, regarded the increasing discontent as dangerous to his own position.^[419]

While affairs were in this situation and these impressions afloat, a plan for bringing this uncertainty to an end was embraced by the King, the Prince, and the Duke, in those private discussions in which the general course of affairs was decided. It was determined that the Prince, accompanied by Buckingham, should visit Spain himself, in order to bring about the marriage and arrange the conditions. None of the Privy Councillors, not even Williams, who on other occasions was in their intimate confidence, knew anything about this plan. It pleased the King's sense of the romantic, that as he himself had formerly brought home his newly married wife from the icy North, so now his son should in person win the hand of his bride in the distant South. But however much in earnest the King was in the matter, we learn that he still contemplated the possibility of failure. He once said to the Duke of Soubise, that if the marriage came to pass, he would take up the

cause of the Huguenots in alliance with Spain: but that if he did not succeed in his design they might still reckon upon him, for that his son would A.D. 1623. contract a marriage with a French princess, which would procure him great influence at the French court.^[420]

On March 7, 1623, the Prince of Wales and the Duke of Buckingham arrived in Madrid, with an escort including Cottington and Endymion Porter, both of whom afterwards enjoyed great influence. Their arrival was not altogether welcome to the ambassador in residence there, Digby, now Lord Bristol, who would rather have retained this important business in his own hands: but the Spanish court and the nation itself found a certain satisfaction for their pride in the personal suit urged by the heir-apparent of one of the most powerful kingdoms for the hand of the younger Infanta.

At first the Prince of Wales could only see the Infanta as she drove past along a sort of Corso in the Prado. He was then presented to her, but the words which she was to use to him were written down for her beforehand; for she was to receive him merely as a foreign prince without any reference whatsoever to his suit. Some surprise was created when the principal lady of the court one day condescended to say to the Prince that the Infanta in conversation gave signs of an inclination for him. In the country no doubt was felt that the marriage would come to pass, and the prospect was welcomed with joy. Often did a 'Viva' resound under the windows of the Prince. Lope de Vega dedicated some happily expressed stanzas to him; and splendid shows were given in his honour.^[421] All that was now wanting was an agreement as to the conditions.

This depended however in large part on the resolutions which might be arrived at in England. Conditions affecting religion were laid before King James, which he might certainly have hesitated to approve. It was not only that the Infanta was to be indulged in the free exercise of her religion—for how else could the consent of the Spanish clergy or a dispensation from the Pope have been hoped for?—nor even that the children born from this marriage were to be educated under her eyes for the first ten years of their life, for this seemed the natural privilege of a mother: but the presumption that the children might become Catholics involved wide consequences. It was stipulated that the laws against Catholics should not apply to such children, nor prejudice their succession. Still more displeasing however

were some other articles of general import, which were carefully kept back from the knowledge of the public. They amounted to this:—that the laws against the Catholics should no longer be carried into execution, and that the Councillors of the sovereign should be pledged by an oath to abstain from enforcing them.^[422] The King met with some opposition to these articles in the Privy Council. But he said that the question was not whether they were advisable, but whether they were not necessary at a time when part of the domain under dispute, and the Prince himself, were in the hands of the Spaniards. And moreover they did not amount to a complete concession to the wishes of the Catholics, for they spoke only of tolerating their worship in private, not in public: the articles were in harmony with the old ideas of the King. James solemnly swore to the first articles, on July 20, in the presence of the Spanish ambassador; and immediately after him the members of the Council took the same oath. The King alone then pledged himself to carry out the second set of articles.

An extensive alteration had already taken place in the treatment of the Catholics. Priests and recusants had been discharged from prison and enjoyed full liberty. An injunction was issued to the preachers and to the Universities to abstain from all invectives against the Papacy. Men had to see individual preachers who transgressed these orders thrown into prisons which had been just emptied. The families which openly expressed their hitherto secret adherence to Catholicism were already counted by hundreds. Then came these transactions. What was learnt of the articles was enough to spread universal dismay among the Protestants, but they expected yet worse things. They thought they saw a pronounced Catholic tendency becoming ascendant in the conduct of affairs. An universal danger seemed to be hanging over the religion which they professed. Every one hastened to church to pray against it; the churches had never been more crowded. The second ecclesiastic in the country, the Archbishop of York, put the King in mind that by his project of toleration he was encouraging doctrines which he had himself proved in his writings to be superstitious and idolatrous. At this time moreover religious profession and political freedom were most closely connected: all these penal laws which the King was removing had been passed in Parliament, and were the work of the legislative power as a whole. The Archbishop reminded the King in conclusion that when he annulled the statutes of parliament by royal proclamation, he created an

impression that he thought himself at liberty to trample on the laws of the land.^[423]

The wishes of the King did not lean so decidedly in that direction as people assumed. Buckingham and the Prince, who recommended him to take the oath, remarked to him, among other observations, that his promise that Parliament should repeal the penal laws against the Catholics within three years would be fulfilled, if he merely exerted himself to the extent of his strength for that object, even if it should prove impossible to attain it.^[424] In general everything was merely preliminary, and depended on further agreement. The Prince entreated his father to transmit to him the ratification of the articles, that he might decline them or not according to circumstances. He even wished that, in order to put an end to the dilatoriness of the Spaniards, his father should make an express declaration that any longer delay would compel him again to enforce the penal laws against the Catholics.^[425] All these announcements, which filled the Catholics with joy and hope, but the Protestants with dejection, mistrust, and anxiety, were however only political agencies, and were intended to serve a definite end. The object was in the first instance to put an end by this means to all delay in sending the Infanta to England.

Although some religious scruples were still awake in the minds of the Spaniards yet they presented no further obstacle. The conditions for granting a dispensation which had been prescribed by the Pope to the Spanish Court, had been accepted; the Spanish ambassadors had been satisfied: the only question now was whether the Infanta should be conveyed to England at once with the Prince on his return, or in the following spring. As formerly the Tudors so now the Stuarts appeared to be taking their position as a dynasty in Europe in connexion with the Spanish monarchy.

Only one difficulty remained, that connected with the Palatinate; but at the present moment it was more serious than ever.

In his negotiations King James started with the supposition, that the Spanish court could control the Imperial, and bring it over to its own point of view. The inclusion of the German line in this dynastic combination was contemplated. A proposal was made that the eldest son of the expelled

Frederick should contract a marriage with a daughter of the Emperor, which would make the task of reconciliation and restitution far easier.

The Emperor however had to take other interests into consideration; not only those of the Duke of Bavaria, to whom he was so deeply pledged, but those of the whole Catholic party, which thought of seizing this occasion to establish for ever its ascendancy in the Empire. The Emperor, who was also instigated by Rome to this step, solemnly transferred the electoral dignity previously held by the Elector Palatine to Maximilian of Bavaria in February 1623, with the intention of satisfying him, and at the same time of obtaining a majority of Catholic votes in the electoral body. It has indeed been assumed, both then and at a later time, that Spain, only bent on deceiving England, had agreed to all these proceedings. But in fact the Spanish ambassador had opposed them most strenuously at Ratisbon in the name of his king, as well as in that of the Infanta Isabella.^[426] He prophesied with accurate foresight new and inextricable embarrassments as the consequence. The Papal Nuncio complained that the resistance of the ambassador weakened the Catholics and emboldened the Protestants. But his remonstrance had no effect on the Emperor. After his previous experiences Ferdinand II had no more fear of his adversaries, least of all of King James, who would certainly not in his old age make his first appearance as a warrior and try the doubtful fortune of war. He thought besides that he always consulted his security best when he had nothing before his eyes but the advantage of the Catholic Church.

The negotiation about these matters took place just at the time when the Prince of Wales was in Spain. There no one despaired of finding an arrangement with which the Prince could still be satisfied. It was thought that, when the Palsgrave Frederick had been reconciled with the Emperor, and admitted into his family, the electoral dignity might be enjoyed in turn by Bavaria and the Palatinate, or that a new electorship might be founded for Bavaria. The Imperial ambassador, Count Khevenhiller, however rejected these proposals, for no other reason than that King James was not the proper person to make arrangements for his grandson. He did not accept the supposition that the youth, whose education it was proposed to complete in Vienna, would join the Catholic faith, for he said that his mother would never allow that. He set aside the expectation that the Imperial court might send to Spain a full authorisation to negotiate for the marriage. He

moreover affirmed that, if the Imperial court wished to secure its influence in Germany, it could not allow the opinion to gain ground that it depended on Spain and was guided by her.

And in Spain also, after the fall of Lerma, which was brought on by this affair, the old aspirations after the supremacy of the world had again obtained the upper hand.

It is true that at the moment a feeling prevailed in favour of maintaining peace on the very advantageous footing which had then been obtained. Cardinal Zapata, Don Pedro of Toledo, and above all Count Gondomar, who had at that time been made a member of the Council, declared before that body that Spain ought to have no higher political aim than to secure her union with England. These were men of experience in European affairs, who recollected the evils which had sprung from the policy of Philip II. But there were others who were again seized with the old ambition, so interwoven with Catholicism, and who would not separate themselves from the interests of the Emperor at any price—men like the Marquis de Aytona, Don Augustin Mexia. And Count Olivarez, under the influence of the Imperial ambassador, now espoused the same opinion, a man who, as favourite of the King and chief minister, filled the same position in Spain that Buckingham did in England. At the decisive meeting of the Council, he stated that the King of Spain would not venture to separate from the Emperor, even if he had been mortally affronted by him: if he could stand in friendly relations with the Emperor and the King of England at the same time, well and good; but if not, he must break with the King of England without any regard to the marriage: this step was demanded of him for the preservation of Christendom, of the Catholic religion, and of his family. He added that a marriage between the young Count Palatine and a daughter of the Emperor was only to be thought of, if the former became a Catholic: that the complete restoration of the father was by no means advisable; and that he ought to be dealt with as the Duke of Saxony had been dealt with by Charles V.^[427] Olivarez carried the Council with him in favour of this policy. The strictly Catholic point of view, which had been asserted by the German line of the house of Austria, was again adopted as the rule of policy in Spain.

This was a resolution that decided the destinies of Spain. That power again renounced the policy of compromise which it had observed for a quarter of a century. The young King Philip IV and his ambitious favourite revived the designs of Philip II, or, as the former once expressed it, of Charles V: to the restoration of Catholic ascendancy in Germany they sacrificed the friendship of King James, which was of inestimable advantage to the monarchy, inasmuch as it kept the coasts of Spain free from all danger of attack from the English forces.^[428] Olivarez was too violent, too young, and too ill-informed to have any clear conception of the influence of these relations.

But as in great transactions every step has consequences, it is clear that the Spanish predilections of King James, and the policy founded on them, were thus brought to an end. For maintaining these it was necessary not only that they should be advantageous to the Catholics in England, but that they should be equally serviceable to the Protestant interests in Germany, which in the present instance were his own: otherwise he would never have found rest again in his own country, or his own family, or perhaps even in his own breast. He had asked for the reinstatement of his son-in-law in the electorship as well as in the possession of his hereditary dominions, or at least for the hearty assistance of Spain in effecting this object.^[429] And the Prince of Wales shared these views. He once said to Count Olivarez that, without the restoration of the Elector Palatine, the marriage was impossible, and the friendship of England could not be expected. The Spaniards did not think fit to impart to him the resolution which had been taken in the Council of State; but still this implied a new direction given to the course of affairs which could be followed although it was not talked of. The Spaniards contented themselves with dwelling on the necessity of sending the youthful Count Palatine to Vienna for education: as to his father, who was under the ban, they held out indeed a prospect of the restoration of his dominions but not of his electoral dignity. The Prince declared that it was not to be imagined that his brother-in-law would be content with that and would agree to it.^[430] And how was even as much as this to be obtained from the court of Vienna? It was now certain that in the affair of the Palatinate Spain would not interfere with decision. But besides this, the resolutions which had been taken in the Spanish Council of State must lead to much wider consequences.

The miscarriage of the negotiations has been ascribed to the misunderstanding between Olivarez and Buckingham; and it is no wonder that such a misunderstanding arose, for the latter was conceited and irritable, the former imperious and assuming. But these causes are only of a secondary character; the root of the failure lies in the political, or in the combination of the religious with the political relations of the two countries. While in England Protestantism was moving in a direction opposed to the intentions of King James, and could hardly be held down, it was met by the Catholic interest in Spain and Germany, which was fully conscious of its position. Now these were the powerful elements which divided the whole world: the strife between them could not be adjusted by political considerations.

It is hardly necessary to state further how Buckingham, who regarded the somewhat unmeaning delays of the Spaniards as affronts, and who would have had reason to fear for his authority in England in the event of his prolonged absence, now urged the return of the Prince. Charles concurred with him: King James, who moreover was impatient, as he said, to see the two men whom he most loved about him again, commanded it; and the Spanish court could not object.

Yet no estrangement arose in consequence, nor was the proposal for the marriage withdrawn. The Infanta was treated as Princess of Wales; and Philip IV in a letter once styled the Prince of Wales his brother-in-law. The Papal dispensation, for which they had long been kept waiting, at last arrived; and the marriage ceremony might have been performed any day. The other negotiations also still kept advancing. King James then once more demanded an express declaration with regard to the affair of the Palatinate. He wished to know what Spain thought of doing if the Emperor refused to accede to the agreement that was to be made between the two powers. The answer of the Spaniards was evasive: how could it have been otherwise? But the English would not advance further without better security. The Prince sent to request the ambassador not to use the full powers, which he already had in his hands, until he received fresh orders. ^[431] King James declared that the marriage could not be solemnised till the Spanish court consented to take upon itself obligations with regard to the Palatinate.

NOTES:

[417] Letter to Gondomar, as it appears, from Buckingham himself, Cabala 236. 'You promised that the King should be pressed to nothing that should not be agreeable to his conscience, to his honour, and the love of his people.'

[418] So writes Richard Weston to Buckingham: 'The prince elector hath conformed himself to what was demanded, that the count Mansfelt and Duke of Brunswik, the pretended obstacles of the treatie, are now with all their forces removed.' Sept. 3, 1622. Cabala 201. How difficult this was for him we see from a letter of Nethersole to Carlisle, Oct. 18, 1622. 'The slowness of resolution of this side may move H. Mai. [the King of Bohemia] to precipitate his before the time, which will be then to lose the fruits of two long years patience.'

[419] Valaresso: 'Temendo di se stesso e di riuscir l'oggetto di tutta la colpa e forse della pena.'

[420] Valaresso: Disp. 19 Luglio 1623.

[421] A true relation of the arrival and entertainment given to the Prince Charles: in Somers' Tracts ii. 625.

[422] Arcana quatuor capitula ad religionem pertinentia: in Dumont v. ii. 442. Their contents also appear in the Spanish reports.

[423] 'That you now take unto yourself liberty to throw down the laws of the land at your pleasure.' Cabala 13.

[424] The Duke and the Prince to the King, 6 June. Hardwicke Papers i. 419.

[425] Instructions received from His Highness June 7, 1623: in Clarendon State Papers I. xviii. App.

[426] Protestation of the Conde Oñate, in Khevenhillier, Ann. Ferd. viii. 66.

[427] From Khevenhillier's letter, Ann. Ferd. x. 95.

[428] In a Letter of Pope Urban to Olivarez, this passage occurs: 'Diceris in Britannico matrimonio differendo religionis dignitatem privatis omnibus rationibus praetulisse.'

[429] 'We have expected the total restitution of the palatinate, and of the electorship.' James to Bristol, in Halliwell ii. 228.

[430] Prince Charles and the Duke to James, Aug. 30, 1623. Hardwicke Papers i. 449.

[431] Prince Charles to the Earl of Bristol. Halliwell 229.

CHAPTER V.

THE PARLIAMENT OF 1624. ALLIANCE WITH FRANCE.

After the Prince had taken leave of his Spanish escort, and had gone on board an English fleet at Santander, whither it had put in to fetch him away, contrary winds, or, in the words of a contemporary narrative, 'the brothers Boreas and Eurus,' for a while delayed his departure. We are assured that people in England never regarded the weathercocks and the direction of the smoke and of the clouds with more painful anxiety than at that time. Even among the dependents of the royal house many almost gave up the Prince as lost; for who, they said, could trust the word of the Spaniards? The Protestant part of the population thought that he would at least be compelled to abjure his religion. At last the wind subsided. On October 5, after an absence of almost eight months, the Prince arrived in Portsmouth, and the day after in London. The universal joy with which he was received was indescribable: all business was at a standstill; the shops were shut; nothing was seen but waggons driving backwards and forwards, laden with the wood intended for the bonfires which blazed at evening in all the open squares, at all corners of the streets, even in the inner courts, but were most brilliant and costly at the Guildhall.^[432] The joyful acclamations of the multitude mingled with the sound of the bells; people congratulated each other that the heir to the throne had returned as he had gone, and that without the Infanta; for this marriage had never been popular; but above all, that he returned rather confirmed than shaken in his religion. They praised God for his deliverance out of the land of Egypt. Even Buckingham, who was not loved at other times, enjoyed a moment of universal popularity.

Nevertheless the effect which would have been most welcome to the majority, that of banishing all thoughts of an alliance with Catholic powers, and of causing a wife to be sought for the Prince among Protestants, was certainly not produced, for the King had long been revolving another plan. The combination with Spain, although it had best corresponded to his wishes and ideas, had nevertheless been only an experiment: when it

miscarried, he was predisposed to return to the thought of an alliance with France. The Prince, on his way through France, had already seized the opportunity of seeing the Princess, his possible bride, while she was dancing, without being remarked by her; and the impression which she made upon him had been by no means unfavourable.

Instantly on his return from Spain Buckingham opened communications with Mary de' Medici, Queen of France, and that through means of a Franciscan monk, who could not be suspected, and who presented himself to her while she was at dinner. Buckingham made secret overtures to her, intimating that he wished to resume the old negotiations for an alliance between the royal families of England and France, for that he was a Frenchman at heart.^[433] As the Queen expressed herself favourably inclined, Henry Rich, who then bore the title of Lord Kensington, and afterwards that of Lord Holland, was sent before the end of the year 1623 on a secret mission to France in order to set the affair in motion. Rich was one of the most intimate friends of Buckingham, and to a certain extent resembled him in character.

In this affair Buckingham had two circumstances in his favour. It was the main ambition of the Queen-mother to see her daughter on the throne of the neighbouring kingdom. The preference accorded by the English court to an Infanta of Spain over a daughter of France had had A.D. 1624. a painful effect upon her: she was the more gratified when that court now resumed the negotiations which had been broken off. Nevertheless she did not embark on so delicate an affair, the failure of which was still possible, without the necessary reserve. The French court could not but ask for religious concessions in favour of the Princess, as Spain had for the Infanta: but on the very first approach to the subject it hinted that it would not urge the King to such strict pledges as had been demanded on the side of the Spaniards.^[434] The second influence in Buckingham's favour was the political. The advance of the alliance, and of the power of the Spaniards, especially their establishment in the Palatinate, aroused the jealousy of the French. The opinion, which Cardinal Richelieu so often emphatically expressed, that France, everywhere enclosed by the power of the Spaniards, might some day be prostrated by it, was generally held. The interests of his country seemed to be deeply interested when England, from whose close connexion with Spain the greatest danger was to be apprehended, separated

herself from that power, and showed a disposition to adopt a policy in harmony with that of France. Henry Rich assures us that so universal an agreement had never been known among Frenchmen as was shown at that time in the wish to ally themselves with England. Already agents of Mansfeld and Brunswick were seen at Court: an intended mission to Maximilian of Bavaria was given up on the representation of the English ambassador. Envoys from the expelled King of Bohemia also soon arrived, in order to gain the co-operation of the French in his restoration. The negotiations with England actually began: they were directed to an alliance and a marriage at the same time: in each case it was made a preliminary condition that England should openly and completely break with Spain.

But this condition could not be fulfilled in England quite easily and without opposition.

And how indeed could it have been expected that the members of the Privy Council, who had followed the King in the direction given to his policy in favour of Spain, if not without any reserve, yet with an ardour which might be turned to their reproach, would now, as it were, turn round, and follow the example of the favourite in entering on another path? A commission chosen from their body was appointed in order to take into consideration the complaints made by Buckingham about the behaviour of the Spanish court. But the report which Buckingham made was by no means so convincing as to win their concurrence. He rather depended on impressions, which had no doubt in his own eyes a certain truth, than on facts which might have served as evidence for others as well. The commission declared itself almost unanimously against him.^[435] Its sentence was, that Philip IV had seriously intended to marry his sister to the Prince; and that in the affair of the Palatinate he had behaved, if not as a friend, yet at any rate not as an enemy. The first part is undoubtedly correct; with regard to the second however, neither the members of the Privy Council had any suspicion, nor had Buckingham himself any real information, that the Spaniards had made the interests of Austria in the Palatinate so decidedly their own. The Council was moreover in an ill humour with the favourite on account of the arbitrary authority which he arrogated to himself. When Lord Bristol came to England in the beginning of the year 1624, and then laid all the blame on Buckingham himself, a party was formed against the latter, which sought to overthrow him, and was even thought to have already secured a new

favourite, with whom to replace Buckingham, just as he had formerly stepped into the place of Somerset. It was remarked that the friends and adherents of Somerset, who had always been on the side of Spain, came together and bestirred themselves. It was clear, and was generally said, that if relations with Spain were not broken off, the minister must fall. As people expressed it, 'either the marriage must break or Buckingham.'

In this danger Buckingham resolved on a step of the greatest significance, in order to be able at once to attack the Spaniards, and to meet his rivals at home. He turned to those who had for many years demanded war with Spain on principle, the popular and zealous Protestant party. The King assented to his request for the summoning of a new Parliament, of which he had in fact for other reasons already given notice. As was to be expected from the connexion of affairs, the result of the elections corresponded with the views of the last Parliament. Men like Coke, who had been called to account for their attitude at that time, were re-elected two or three times over. The ruling minister now regarded them even as his allies.

What an indescribable advantage however for the supporters of the claims of Parliament was this change! As the ill-success of the German policy of the King in the year 1621 had turned to their advantage, so now they profited by the failure of his negotiations with Spain. The political leanings of James I in favour of Spain, which they had originally opposed, had led to embarrassments in which the First Minister himself invoked their aid.

But not only did party rivalries display themselves at this important moment, but a general opposition also arose on constitutional grounds. The Earl of Carlisle represented to the King that he had been visited by members of Parliament, no mere popular leaders or speakers, but quiet men and good patriots, who feared God and honoured the King: that he had learned from them that the agitation observed in the country had principally arisen because the last grants of Parliament had not been met by any favours on the part of the King, but on the contrary the expression of opinions displeasing to him on the part of certain members had been subsequently punished by their arrest. Carlisle reminded the King that nothing could be more hateful to his enemies, or more strengthening and encouraging to his friends, than the removal of these disagreements; that no king had ever had better subjects if he would but trust them; that if he

would but show them that he relied on their counsel and support, he would win their hearts and command their fortunes; and that the people would then work with him for the welfare and honour of the State.^[436]

These views prevailed when Parliament was opened on the 19th of February, 1624. Hitherto it had been one of the principal grievances of the King that Parliament wished to have a voice in affairs that concerned his state and his family. The new Parliament was opened with a detailed account from Buckingham of his negotiations with Spain, which affected both these interests, and with a request that Parliament would report on the great questions awaiting settlement.^[437]

The answer of both Houses was, that it was contrary to the honour of the King, to the welfare of his people, to the interest of his children, and even to the terms of his former alliances, to continue the negotiations with Spain any longer: they prayed him to break off negotiations on both subjects, with regard to the Palatinate, as well as with regard to the marriage. It was hailed as a public blessing that the conditions accepted for the sake of the latter would not now be fulfilled.

At this moment Buckingham's wishes were on the side of this policy; for otherwise he could not have advanced a step in his dealings with France. But the King had not so fully made up his mind. He had approved the overtures made to France: but when he was now asked to break with Spain, the power which he most feared, and whose friendship it was the first principle of his policy to cultivate, there was something in him which recoiled from the step. Buckingham acknowledged for the first time that he was not of the same mind with the King. He said that he wished to tread only in one path, whereas the King thought that he could walk in two different paths at once; but that the King must choose between the Spaniards and his own subjects. He asked him whether, supposing that sufficient subsidies of a definite amount were at once granted him, and the support of his subjects with their lives and fortunes were promised him for the future, so far as it might be necessary—whether in that case he would resolve to break off the matrimonial alliance with Spain. He asked for a straightforward and definite answer, that he might be able to give information on the subject beforehand to some members of Parliament. It is evident that this was no longer the attitude of a favourite, who has only to

express the opinions and wishes of his prince. Buckingham came forward as a statesman, who opposes his own insight to the aims of his sovereign. He says that if he should concur with the King, he should be a flatterer; that if he should fail to express his own opinion, he should be a traitor. In this matter he could rely on the support of the Prince, who, without estranging himself from his father, still appeared to be less dependent on his will than before.^[438] The result was that James I again gave way. He named the sum which he should require for the defence of his kingdom, for the support of his neighbours, and for the discharge of his own debts. Parliament, although it did not grant the whole amount demanded, yet granted a very considerable sum: it agreed to pay three full subsidies and three fifteenths within a year, if the negotiations were broken off. At the beginning of April Buckingham was able to announce to Parliament that the King, in consequence of the advice given to him, had finally broken off negotiations with Spain on both matters.

Other and further concessions of the greatest extent were coupled with this announcement. The King promised that, if a war should break out, he would not entertain any proposals for peace without the advice of Parliament. It was of still more importance, for the moment at least, that he declared himself willing to allow Parliament itself to dispose of the sums it had granted. He said that he wished to have nothing to do with them: that Parliament itself might nominate a treasurer. These likewise were admissions which Buckingham had demanded from the King:^[439] but it maybe supposed that he had a previous understanding on the subject with the leaders of the Parliament. He also represented to the King that the removal of the old grievances was an absolute necessity. The monopolies to which James had so long clung, and which he had so obstinately defended, he now in turn gave up; while the penal laws against the Catholics, to which he was averse, were revived.

This was an intestine struggle between the different powers in the state, as well as a question of policy. Parliament and the favourite made common cause against the Privy Council, which was on the side of Spain.

Among his opponents in the Privy Council, Buckingham hated none so much as the Lord Treasurer Cranfield, then Earl of Middlesex, for Cranfield, although raised from a humble station by Buckingham himself,

had the courage to resist him on the Spanish question.^[440] By his strict and successful management of business, Cranfield had won the favour of the King, who believed that he had found in him a second Sully. It seems that Cranfield himself had intended to effect the ruin of Buckingham: but Buckingham was too strong for him. Certain accusations, which were partly well founded, were made available in bringing him to trial by Parliamentary means, and in removing him from his office like Bacon; for he had incurred the enmity of many by his strictness and incorruptibility. The King professed to regard this case as even worse than the former, because Bacon had acknowledged his guilt, while Cranfield denied all guilt. The doctrine of the responsibility of ministers was by this means advanced still further, for it was now becoming more dangerous to fall out with Parliament than with the King.

The authority of Parliament in general made important strides. It now threw paramount weight into those deliberations which concerned the general affairs of the kingdom, war and peace, and the royal family. What became of the principle on which the King had hitherto taken his stand, that the decision of these matters must be left exclusively to his discretion? Parliament again assumed the attitude which three years before had led to its dissolution.

It was not possible that James I could look on all this without displeasure and uneasiness. Sometimes the thought occurred to him that Buckingham had not been the right man to conduct the negotiations with Spain. The words escaped him that, if he had sent the Lord Keeper Williams with his son instead of Buckingham, his honour would then have been saved, and his heart would now beat more lightly. He did not approve of the decided turn which was being given to foreign politics. He was once heard to say that he was a poor old man, who in former times had known something about politics, but who now knew nothing more about them.

It seems indeed that he had fancied that he could still continue to hold the balance between parties: so at least those who knew James understood him. He had no intention of allowing Buckingham's fall, as the enemies of that nobleman wished, but he perhaps thought of finding a counterpoise for him: he did not wish to let him become lord and master of affairs. On the other hand Buckingham, by his connexion with the leading men of the Lower

House, had already won an independent position, in which he was no longer at the mercy of the King. He may perhaps be set down as the first English minister who, supported by Parliament and by public opinion, induced or compelled the King to adopt a policy on which of his own accord he would not have resolved. In conjunction with his new friends Buckingham succeeded in breaking up the Spanish party, with which he now for the first time came into conflict: his adherents congratulated him on his success.^[441] In court and state a kind of reaction against the previous importance of this party set in. The offices which were vacated by the fall of Cranfield were conferred on men of the other party, the kind of men who had formerly been displaced under the influence of Gondomar. Seamen were acquitted who had shown the same disregard for orders as Walter Raleigh had once done, and preparations were made to indemnify Raleigh's posterity for the loss of property which they had suffered. The Spanish ambassadors at court availed themselves of a moment of ill humour on the part of the King, to whom indeed they had again obtained access, to call his attention to the loss of authority which threatened him on account of Buckingham's combination with the leading men in the Parliament. But in what they said they mingled so much falsehood with the truth that they could be easily refuted; and Buckingham successfully resisted this attack also.

People still perceived in the King his old indecision. He consented, it is true, that Mansfeld, whom he had formerly helped the Spaniards to expel from his strong position on the Upper Rhine, should now be supported by English as well as French money in a new campaign to recover the Palatinate. But nevertheless he wished at the same time to enjoin him as a condition to abstain from attacking any country which rightfully belonged to the Archduchess Isabella, or to the crown of Spain.^[442] So far was he still from undertaking open war against Spain, as his subjects hoped and expected.

And though he acceded to the negotiations with France, yet in this transaction the very circumstance which displeased the majority of his subjects—namely that he was hereby making an alliance with a Catholic power—was acceptable to him. For even then he would not have consented at any price to have interfered in the general religious quarrel merely on religious grounds. He felt no hesitation in promising the French, as he had the Spaniards, not only freedom of religion in behalf of the future queen,

but even relief for his Catholic subjects in regard to the penal laws imposed by Parliament. Yet he could have wished that they had contented themselves with his simple promise. One of his envoys, Lord Nithisdale, was himself of this opinion. On the other side it was remarked that perhaps the Catholics, of whom he also was one, might be contented with a promise from their sovereign, on whom their whole welfare depended, but that the French government could not, as it must have a dispensation from the Pope, which could not be obtained without a written assurance. James I at first declared himself ready to give such a declaration in a letter to the king of France, and La Vieuville, who was minister at the time, expressed himself content with that. But after his fall and Richelieu's accession to power this arrangement was rejected. It was in vain that the King's ambassadors held out a prospect that the letter should be signed by the Prince and by the chief Secretary of State; the French insisted that the King should ratify not only the treaty, but also a special engagement which they themselves wished to frame and to lay before Urban VIII. The English plenipotentiaries at the French court, Holland and Carlisle, were still refusing to agree to this, when King James had already given way to the French ambassador in England.

The agreement, in the form in which it was at last concluded, was in some points more advantageous for England than that with Spain had been. While the latter stipulated that the laws which had been passed, or might hereafter be passed, in England against the Catholics were not to be applied to the royal children, but that these on the contrary were still to be secured in their right to the succession, an agreement which, as was mentioned, opened a prospect of an alteration in the religion of the reigning family; this supposition was avoided in the contract with France. But it was agreed on the other hand that the future queen was to conduct the education of her children, not merely till their tenth year, as had been stipulated with Spain, but till their thirteenth. She herself and her household were also to enjoy a higher degree of ecclesiastical independence; the superintendence of a bishop was even allowed them. It was the ambition of the Pope to demand not much less from the French than his predecessor had demanded from the Spaniards as the price of bestowing a dispensation for the marriage of a Catholic princess with a Protestant prince; and it was the ambition of the French court to offer him, or at least to appear to offer him, no less. In the special assurance above mentioned James gave a promise that his Catholic

subjects should look forward to the enjoyment of still greater freedom than that which would have been conferred on them by the agreement with Spain. They were not to be molested for the sake of religion, either in their persons or in their possessions, supposing that in other respects they conducted themselves as good and loyal subjects.^[443]

The English ambassadors took exception to single expressions: the King himself passed lightly over them. He was mainly induced to do so by the absence from the agreement with France of the most offensive and burdensome clauses which had been contained in the secret articles of the treaty with Spain. On December 12, 1624, the treaty was signed at Cambridge by the King, and the special assurance both by the King and by the Prince.

James I wished to see his son married. At the Christmas immediately following he greeted him according to English fashion with the tenderest expressions: he said that he existed only for his sake; that he had rather live with him in banishment than lead a desolate life without him. He thought that the treaty of marriage which had just been concluded would establish his happiness for ever.

An alliance between France and England for the recovery of the Palatinate was now moreover in contemplation. From the first moment the French had acknowledged that this would be to their own interest, and had promised to assist in that object to the extent of their power. Nevertheless they hesitated to conclude an express agreement for this object; for what would the Pope say if they allied A.D. 1625. themselves with Protestants against Catholics? At last they submitted a declaration in writing, but this appeared to the English ambassadors so unsatisfactory, that they preferred to return it to them. The French said that this time they would perform more than they promised. Although exceptions of many kinds might be made to their performances, yet they were really seriously bent on doing as much as possible for the recovery of the Palatinate. Just at that time Richelieu had stepped into power, and he expressly directed the policy of France to the destruction of the position which the Spaniards had occupied on the Middle Rhine. In spite of the obstructive efforts of a party which had both ecclesiastical and political objects in view, he concluded the arrangements for the marriage of

the Princess to the Prince of Wales without any delay, even without waiting for the last word of the Pope.

By this means the connexion which the King had formed in earlier years seemed once more to be revived. The Duke of Savoy and the Republic of Venice supported Mansfeld's preparations with subsidies of money. The States General took the most lively interest in the warlike movements in Germany, on which the Elector of Brandenburg also set his hopes. The King of Denmark offered his help in the matter with a readiness which created astonishment. While the English ambassadors were busy in adjusting the disputes that were constantly springing up afresh between him and Sweden, he gathered the estates of Lower Saxony around him, in order to check the swift advance of the Catholic League.^[444] Of the members of the old alliance the princes of Upper Germany alone were absent. It was hoped that the Union would be revived by the efforts of Lower Germany, and above all that its head, the Elector Palatine, would be restored to his country.

Induced by the failure of peaceful negotiations for the restoration of his son-in-law, James allowed greater progress to be made in the direction of war than he had ever done before. He took an eager interest in the preliminaries and preparations for war, even for a naval war. But would he ever have proceeded to action? While preparing to attack the Emperor and the League did he intend to do anything more than make a demonstration against Spain? In truth it may be doubted. He never allowed his English troops to attempt anything for the relief of Breda, which at that time was still blockaded by the Spaniards.^[445]

And in his alliance with France he certainly still held fast to his original principles.

The marriage of his son to a Catholic princess, and the indulgence towards the Catholics to which he thereby pledged himself, express the most characteristic tendencies of his policy. Notwithstanding all the concessions which he made to Parliament, he still refused to grant many of the demands which were addressed to him. The special agreement which he made with France corresponded to the conception which he had formed of his prerogative. By means of it he imported into relations controlled by the law

of nations his claim to give by virtue of his royal power a dispensation even from laws that had been passed by Parliament.

After, as well as before, this event his idea was to control and to combine into harmony the conflicting elements within his kingdom by his personal will; outside his kingdom, to guide or to regulate events by clever policy. This is the important feature in the position and in the pacific attitude of this sovereign. But the blame which attaches to him is also connected with it. He made each and everything, however important it might be in itself, merely secondary to his political calculation. His high-flying thoughts have something laboured and flat about them; they are almost too closely connected with a conscious, and at the same time personal, end; they want that free sweep which is necessary for enlisting the interest of contemporaries and of posterity. And could the policy of James ever have prevailed? Was it not in its own nature already a failure? A great crisis was hanging over England when King James died (March 1625). He had once more received the Lord's Supper after the Anglican use, with edifying expressions of contrition: a numerous assembly had been present, for he wished every one to know that he died holding the same views which he had professed, and had contended for in his writings during his lifetime.

NOTES:

[432] 'True mirth and gladness was in every face, and healths ran bravely round in every place.' John Taylor, Prince Charles his Welcome from Spaine: in Somers ii. 552.

[433] Mémoires de Richelieu. Ranke, Französische Geschichte v. 133 (Werke xii. 162).

[434] Kensington to Buckingham: 'Neither will they strain us to any unreasonableness in conditions for our Catholics.' Cabala 275.

[435] Hacket, Life of Williams 169. 'Scarce any in all the Consalto did vote to my Lords satisfaction.'

[436] The Earl of Carlisle to His Majesty, Feb. 14, 1624. He signs himself 'Your Majesty's most humble, most obedient obliged creature subject and servant.'

[437] Valaresso already observes this, March 8, 1624: 'Nell'ultimo parlamento si chiamava felonìa di parlare di quello, che hora si trasmette alla libera consultatione del presente.'

[438] A. Valaresso, Dec. 15, 1623: 'Col re usa qualche minor rispetto; agli altri da maggior sodisfattione del solito. Parla con Più liberta della Spagna.'

[439] Of all Buckingham's letters to the King, without doubt the most remarkable. Hardwicke i. 466: 'Resolve constantly to run one way.'

[440] Valaresso, April 26. 'La persona merita male perche certo fu d'affetto Spagnola.' He accuses him of a 'Somma scarsezza di pagare.' Chamberlain says of him at his appearance on the scene October 1621: 'whom the King, in his piercing judgment, finds best able to do him service.'

[441] Robert Philips to Buckingham, August 9, 1624. 'You have to your perpetual glory already dissolved and broken the Spanish party.'

[442] 'Not to attempt any act of hostility upon any of the lawful dominions or possessions of the king of spain or the Archiduchess.' He then at any rate supposed certain cases in which this might take place. Hardwicke Papers i. 548.

[443] Escrit particulier: 'qu'il permettra a tous ses subjects Catholiques Romains de jouir de plus de liberté et franchise en ce qui regarde leur religion qu'ils n'eussent fait en vertu d'articles quelconques accordés par le traité de mariage fait avec l'Espagne, ne voulant que ses subjects Catholiques puissent estre inquiétés en leurs personnes et biens pour faire profession de la dite religion et vivre en Catholiques pourvu toutesfois qu'ils en usent modestement, et rendent l'obéissance que de bons et vrays subjects doivent à leur roy, qu'il par sa bonté ne les restreindra pas à aucun sentiment contraire à leur religion.' Hardwicke Papers i. 546. The English ambassadors complain that the word 'liberté' had been inserted by the French without first informing them.

[444] Conway to Carlisle, Feb. 24, 1624-25: 'In contemplation of H. Majesty the king of Denmark hath come to the propositions—upon which H. M. upon good grounds hath made dispatche to the king of Denmark agreeing to the kings of Denmarks propositions.' Hardwicke Papers i. 560.

[445] Valaresso: 'Non è possibile di rimoverlo di contravenire alle tante promesse verso Spagnoli et alle sue prime dichiarazioni.'

CHAPTER VI.

BEGINNING OF THE REIGN OF CHARLES I, AND HIS FIRST AND SECOND PARLIAMENT.

The prince who now ascended the throne was in the bloom of life: he had just completed his twenty-fifth year. He had been weak and delicate in childhood: among the defects from which he suffered was that of stammering, which he did not get over throughout life; but he had grown up stronger in other ways than had been expected. He looked well on horseback: men saw him govern with safety horses that were hard to manage: he was expert in knightly exercises: he was a good shot with the cross-bow, as well as with the gun, and even learned how to load a cannon. He was hardly less unweariedly devoted to the chase than his father. He could not vie with him in intelligence and knowledge, nor with his deceased brother Henry in vivacious energy and in popularity of disposition; but he had learnt much from his father, at whose feet he loved to sit; and his brother's tastes for the arts and for the experimental sciences, especially the former, had passed to him. In moral qualities he was superior to both. He was one of those young men of whom it is said that they have no fault. His strict propriety of demeanour bordered on maiden bashfulness: a serious and temperate soul spoke from his calm eyes. He had a natural gift for apprehending even the most complicated questions, and he was a good writer. From his youth he shewed himself economical; not profuse, but at the same time not niggardly; in all matters precise. All the world had been wearied by the frequent proofs which his father had given of his untrustworthiness, and by the unfathomable mystery in which he enveloped his ever-wavering intentions: they expected from the son more openness, uprightness, and consistency. They asked if he would not also be more decidedly Protestant. He showed, at least at first, that he had a more sensitive feeling with regard to his princely honour.^[446] He had expected that his personal suit for the hand of the Infanta would remove all difficulties on the part of the Spaniards, even those of a political character, which obstructed the marriage. They had paid him every attention suitable to his rank, but in the business which was under discussion they had not given

way a hair's breadth: it rather appeared as if they wished to avail themselves of his presence to impose harder conditions upon him. He was deeply affronted at this. When he found himself again among his countrymen on board an English ship, he expressed his astonishment that he had not been detained after he had been so ill-treated.^[447] Quiet and taciturn by nature, he knew while in Spain how to disguise his real feelings by appearing to feel differently: but we have seen how on his return his whole attitude with regard to affairs in general, both foreign and domestic, in matters which concerned his father and the Parliament alike, assumed an altered character which corresponded to the general feeling of the nation far more closely than the policy previously pursued.

In the last days of James doubts had still been felt whether he would ever allow a marriage to take place between his son and a French princess, and large sums had been wagered on the issue. Charles I at once put an end to all hesitation. He did not allow himself to be induced to defer his marriage even by the death of his father, or by a pestilential sickness which then prevailed, or by the lack of the desirable preparations in the royal palaces. He wished to show the world that he adhered to his policy of opposition to Spain. He even allowed the privateering, which his father had formerly suppressed with so much zeal, to begin again. The royal navy, for the improvement of which Buckingham actively exerted himself, was put in a complete state of efficiency, and the money granted by Parliament was principally employed for this purpose.

But to enable him to undertake war in earnest he required fresh grants. It was almost the first thought of the King after his accession to the throne to call a Parliament for this purpose, and that the same Parliament which had last sat in the reign of his father.^[448] He bent, although unwillingly, to the necessity, imposed by the constitution, of ordering new elections to be proceeded with, for he would rather have avoided all delay: but he entertained no doubt that the Parliament, as it was composed after the elections, would give him its full support. After what had taken place he considered this almost a matter of course.

On June 18/28, 1625, Charles I opened his first Parliament at Westminster. He reminded the members that his father had been induced by the advice of the Parliament, whose wishes he had himself represented to the King, to

break off all further negotiations with Spain. He said that this was done in their interest: that on their instigation he had embarked on the affair as a young man joyfully and with good courage: that this had been his first undertaking: what a reproach would it be both for himself and for them if they now refused him the support which he necessarily required for bringing to a successful issue the quarrel which had already begun!

And certainly if war with Spain had been the only question, he might have reckoned upon abundant grants: but the matter was not quite so simple. Parliament thought above all of its own designs, which it had not been possible to effect in the lifetime of James I, but which Charles had advocated in the last session. If the new King inferred the obligation of Parliament to furnish the money required for a foreign war from the share it had had in the counsels which had led to that war, Parliament also considered that he was no less bound on his part to fulfil the wishes that had been expressed in regard to internal policy. In the very first debate which preceded the election of the Speaker, this point of view was very distinctly put forward. The King was told that in the last session he had sought to remove all differences between Parliament and his father, and to induce the latter to grant the petitions of Parliament: that if he had not succeeded then, that result had been due only to his want of power; but now he had power as well as inclination: what he before had only been able to will, he now was enabled to effect, and everything depended solely on him.^[449] It had been especially the execution of the Acts of Parliament directed against the Catholics which the Parliament demanded, and which the Prince in his ardour against Spain had then thought advisable. His father had refused to grant this: it was now expected that he should grant it himself. They expected this from him as much as he expected from them a subsidy sufficient for carrying on the war. It may be asked, however, whether it was possible for him to give ear to their wishes. The complication in his fortunes arose from his inability to comply.

If Charles I, when Prince of Wales, had wished to identify his cause entirely with the aims of Parliament, he would have been obliged to marry the daughter of a Protestant prince. But this was prevented by the political danger which would then have arisen in the event of a breach with Spain. Neither James nor Charles I believed that they could withstand this great monarchy without an alliance with France. Political and dynastic interests

had led to the marriage which had just been concluded. But by this a relation with the Catholic world had again been contracted which rendered impossible a purely Protestant system of government such as Queen Elizabeth desired to establish. A dispensation from Rome had been required which expressed even without any disguise the hope that the French princess would convert the King and his realm to the old faith.^[450] The marriage could not have been concluded without entering into obligations which were in open contradiction to the Acts of Parliament. Those obligations were not yet fully known, but what was learnt of them caused great agitation. Charles was reminded of a promise, which he was said to have given at an earlier time, to agree to no conditions on his marriage which might be prejudicial to the Church existing in England. Men asked how that promise had been fulfilled; and why any secret was made of the compact which had been concluded. Would not the Queen's chapel, they asked, now serve to unite the Catholics of England; or would they be forbidden to hear mass there? In a forcible petition Parliament asked for the execution of the laws issued against Papists and recusants.^[451]

Charles I was not in a position to be able to regard it. It was not that he had any thought of curtailing the rights of the English Church or of entering on any other course in great questions of general policy than that which had been laid down in conjunction with Parliament. His marriage also was a preparation for the conflict with Spain; but if it was not so decidedly opposed to the common feeling of the country as a Spanish marriage, yet it was far from being in accordance with it. The pledges which had been given on that occasion prevented the King from adopting exclusively Protestant points of view, and from identifying himself completely with his people.

But there was another reason for the King's adherence to his agreement. He was as little inclined as his father had been to allow the Parliament to exercise any influence on ecclesiastical affairs. Much unpleasant surprise was created at that time by the writings of Dr. Montague, in which he treated the Roman Church with forbearance, and Puritanism with scorn and hatred. Parliament wished to institute proceedings against the author. The King did not take him under his protection; but on the request of some dignitaries of the English Church he transferred the matter to his own tribunal. He regarded it moreover as an undoubted element of his prerogative to dispense with the statutes passed by Parliament, so that the

concessions which were expressed in the marriage compact appeared to him quite justifiable.

We see how closely this affected the most important question of English constitutional law. The universal competence of Parliament is here opposed to the authority of the King, strengthened by his ecclesiastical functions. And we understand how Parliament, in spite of the urgent need created by itself, hesitated to fulfil the expectations of the King.

It could not absolutely refuse to make any grant: it offered him two subsidies, 'fruits of its love' as they were termed. But the King had expected a far stronger proof of devotion. What importance could be attached to such an insignificant sum in prospect of so tremendous an undertaking as a war against Spain? The grant itself implied a sort of refusal.

But the Lower House also attempted to introduce a most extensive innovation in regard to finance. The customs formed one of the main sources of the revenue of the crown, without which it could not be supported. They had been increased by the last government on the ground of its right to tonnage and poundage, although, as we saw, not without opposition.^[452] The constitutional question was whether the customs were properly to be regarded as a tax, and accordingly dependent on the grant of Parliament, or whether they were absolutely appropriated to the crown by right derived from long prescription: for since the time of Edward IV, tonnage and poundage had been granted to every king for the whole period of his reign. The controversies arising on the subject under James had brought to light the daily increasing importance conferred by the growth of commerce on this source of revenue, which certainly assured to the crown, if not for extraordinary undertakings, yet for the conduct of the ordinary business of the state, a certain independence of the grants of Parliament. The Lower House was now disinclined, both on principle and under the painful excitement of the moment, to renew the grant on these terms: it therefore conferred the right to tonnage and poundage on the King only for a year. But the import of this restriction was plain enough. The popular leaders were not satisfied with granting the King very inadequate support for the war, but they sought to make him dependent even in time of peace on the goodwill of the Lower House. The resolution was rejected by the Upper House, and it appeared to the King himself as an affront. For why

should he be refused what had been secured to his predecessors during a century and a half? The granting of supplies for life he regarded as a mere form, which after such long prescription was not even necessary. He thought himself entitled, even without such a grant, to have the duties levied in his own name as before.

These were differences of the most thoroughgoing character, which had descended to Charles I with the crown itself from the earlier kings and from his father. The change of government, and certain previous occurrences caused these differences to come into greater prominence than ever; but they received their peculiar character from something in his personal relations which had also been transmitted from the father to the son.

Or rather, we may say, James I would certainly have been inclined to get rid of Buckingham as he had formerly got rid of Somerset: under Charles I this favourite occupied a still stronger position than he had held before.

Between the two men personally there was a great contrast. In the favourite there was nothing of the precision, calmness, and moral behaviour of the King. Buckingham was dissolute, talkative, and vain. His appearance had made his fortune, and he endeavoured to add to it by a splendour of attire, which later times would have allowed only in women. Jewels were displayed in his ears, and precious stones served as buttons for his doublet. It was affirmed that on his journey to France, which preceded the marriage of the King, he had taken with him about thirty different suits, each more costly than the last. It was for him as much an affair of ambition as of sensual pleasure to make an impression upon women, and to achieve what are called conquests in the highest circles. He revelled in the enjoyment of successes in society. Moments of lassitude followed, when those who had to speak with him on business found him extended upon his couch, without giving them a sign of interest or attention, especially when their proposals were not altogether to his mind. Immediately afterwards however he would pass from this state to one of the most highly-strained activity, for which he by no means wanted ability: he then knew neither rest nor weariness. He was spurred on most of all by the necessity of making head alternately against such powerful and active rivals as the two ministers who at that time conducted the affairs of France and Spain. He was bound to Charles I by a common interest in one or two of those employments which fill up daily

life, for instance by fondness for art and art collections, but principally by the companionship into which they had been thrown, first in the cabinet of James I, who weighed his conclusions by their assistance, and afterwards in their journey to Spain. The Spaniards, who were accustomed to treat persons of the highest rank with respect and reverence, were greatly scandalised to see how entirely Buckingham indulged his own humours in the presence of the Prince. He allowed himself to use playful nicknames, such as might have been often applied in the hunting-seats of James or in letters to him, but which at other times appeared very much out of place. He remained sitting when the Prince was standing: in his presence he had indeed the audacity to consult his ease by stretching his legs on another chair. The Prince appeared to find this quite proper: Buckingham was for him not so much a servant as an equal and intimate friend. It would have been impossible to say which of the two was the chief cause of the alienation which arose between them and the Spaniards. Rumour made the favourite responsible for this estrangement: better informed people traced it to the Prince himself. The intimacy formed during their previous association had been made still closer by the policy which they pursued since their return from Spain. Many persons hoped notwithstanding that, in spite of appearances to the contrary, an alteration would take place with the change of government. But on the first entry of Charles I into London, Buckingham was seen sitting by him in his carriage in the usual intimate proximity. His share in the marriage of the King increased their friendship: they both equally agreed even in the subsequent change of policy. Buckingham had allied himself most closely with the leaders of the Puritan opposition in Parliament: by their support principally he had broken up the party favourable to Spain. But in return for these services he had now not the least intention of doing justice to their claims. If it had depended on him, still greater concessions would afterwards have been granted in favour of the Catholics than in fact were made; for Catholic sympathies were very strongly represented in his family: he himself had far less feeling in favour of Anglican orthodoxy than the King. And when the rights of the prerogative were called in question, he again espoused them most zealously, seeing that his own power rested on their validity. He looked at the Parliamentary constitution from the point of view of a holder of power, who wishes to avail himself of it for the end before him without deeming himself

bound by it, so soon as it becomes inconvenient to him. He cared only for success in his immediate object: all means of obtaining it seemed fair.

The continuance of the session in London was at that time rendered impossible by the pestilential sickness already referred to, which every day increased in severity. Buckingham, who although pliant and adroit yet had no regard whatever for others, wished to keep Parliament sitting until it had made satisfactory grants. While the members, and even the Privy Council, wished for a prorogation, he urged with success that the sitting should only be transferred to Oxford. Thither the two Houses very unwillingly went, for there also symptoms of the plague were already showing themselves; and each member would have preferred to be at home with his family. And when Buckingham came before them at Oxford with his proposal for a further grant, the ill-humour of the assembly openly broke out. He was reproached with the illegality of his conduct in asking for a grant of subsidies more than once in a session; the members said that if this was the object of their meeting they might well have been at home.^[453] But they were not content with rejecting the proposal: they said that if they must remain together, they would, according to former precedent, bring under debate the prevailing abuses and their removal.

Buckingham had been warned that by now changing his demeanour he would run the risk of forfeiting those sympathies of Parliament, which he had won by his Protestant attitude. In the very first session at Oxford an event took place which set religious passions in agitation.

Before the departure of the Parliament from London Lord Keeper Williams had promised in the King's name that the laws against Catholic priests should be observed. Immediately after the Speaker had taken his seat at Oxford, a complaint was made that an order for the pardon of six priests had been since issued. Williams had had no share in it; he had refused to seal it. It had been necessary to complete it in the presence of the King, who was induced at the urgent request of Buckingham to give his assent in pursuance of the conditions of the agreement executed with France. This conduct however, the failure to execute laws that had been ratified, especially after a renewed promise to the contrary, appeared to the Parliament an attack upon its rights and upon the constitution of the country. The ill-feeling was directed against Buckingham, whose

exceptional position was now the general object of public and private hatred.

This was a time in which the power of a first minister in France, who came forward as the representative of the monarchy, was winning its way amid the strife of factions, and above all in opposition to the claims of aristocratic independence. What Concini and Luynes had begun, Richelieu with a strong arm carried systematically into effect. Something similar seemed to be at hand in England also. It had been the fashion of James I to give effect to his will in the state by means of a minister, to whom he confided the most important affairs, and whom he wished to be dependent solely on the King himself; and Charles I, in this as in other matters, followed his father's example. Buckingham became more powerful under him than ever. At the meetings of the Privy Council the King hardly allowed any one else to speak: without taking the votes of the members he accepted Buckingham's opinion as conclusive. And yet it was apparent at the same time that this opinion did not deserve preference from any worth of its own. The public administration, so far as it was influenced by him, and his special department, the Admiralty, furnished much occasion for just censure; and the general policy on which he embarked appeared questionable and dangerous. He was coarsely compared to a mule which took its rider into a wrong road. Oxford suggested to men's minds the recollection of the opposition which the great nobles had once offered to Henry III. People said that they might perhaps have been to blame in form, but not in substance. It was wished that Charles I might also govern the state by the help of his wise and dignified councillors, and not with the aid of a single young man. Parliament, the great men of the country, and those who filled the highest offices, were almost unanimous against Buckingham. The Lord Keeper Williams told the King openly at a meeting of the Privy Council at Oxford, that nothing would quiet the apprehensions of his Parliament but an assurance 'that in actions of importance and in the disposition of what sums of money the people should bestow upon him, he would take the advice of a settled and constant council.'^[454] The misconduct of the favourite in not applying the money granted to the objects for which it was voted, was exactly the ground of the complaint urged against him. Not only the real importance of the points in dispute, but also the intention of driving Buckingham from his position, led Parliament to reject all his proposals.

The King's adherence to his resolution of supporting his minister greatly affected the state of affairs in England, which even at that time presupposed and required an agreement between the Crown and the Parliament.

Buckingham attributed the rejection of his proposals in Parliament to personal enmity; and this he thought he could certainly overcome. Williams, who in the time of James I had been entirely in the confidence of the King, was after a time dismissed, not without harshness, and was replaced by Thomas Coventry. The post of Lord Keeper was again filled by a lawyer who troubled himself less about political affairs. Parliament was not prorogued, as the rest of the members of the Privy Council wished: the King agreed with Buckingham that it must be dissolved. The Duke hoped that new elections, held under his influence, would give better results. He did not doubt that another Parliament might be hurried away to make extensive grants under the pressure of the great interest opposed to Spain. But in order to effect this object it appeared to him necessary to exclude from the Lower House its most active members, who were his personal antagonists. He adopted the odious means of advancing them to offices which could not be held compatible with a seat in Parliament. In this way Edward Coke, who revived and found arguments for the constitutional claims of Parliament, was nominated sheriff of Buckinghamshire, and Thomas Wentworth High Sheriff of Yorkshire. Francis Seymour, Robert Phillips, and some others, had a similar fate.^[455] When the lists were submitted as usual the King unexpectedly announced these nominations. Some peers, whose views inspired no confidence, were not summoned to attend the sittings of the Upper House.

Perhaps too much weight has been attributed to the circumstance—but yet it proves the discontent which was widely spreading—that at the coronation of the King, which took place during these days, the traditional question addressed from four sides of the tribune to the surrounding multitude, asking whether they approved, was not answered from one side at least with the joyful readiness usually displayed.^[456]

On February 6, 1626, the new Parliament was opened at Westminster. It made no great objection to the exclusion of some of the former members, as the means by which this had been effected could not be regarded as exactly illegal. Among the members assembled an ambition was rather felt to prove

that their opinions and resolutions were not dependent on the influence of some few men. For all Buckingham's efforts to prevent it, on this occasion also those opinions were in the ascendant which he wished to oppose. In the place of the members excluded others arose, and at times they were the very men from whom he feared nothing. A great impression was made when a personal friend of Buckingham, his vice-admiral in Devonshire, John Eliot, came forward as his decided political opponent. He first brought under discussion the mismanagement of the money granted, which was laid to the charge of the First Minister. With this was connected a transaction of great importance which affected the general relation between the Parliament and the Crown.

In the year 1624 a council of war, consisting of seven members, had been nominated to manage the money then granted. They were now summoned to account for it. Although this measure appeared an innovation, yet the government could do nothing against it—it had even consented to it: but Parliament at the same time submitted to the members the invidious question, whether their advice for the attainment of the ends in view had always been followed. King James had said on a former occasion, that if Parliament granted him subsidies, he had to A.D. 1626. account to it for their disposal as little as to a merchant from whom he received money; for he loved to lay as much emphasis upon his prerogative as possible. How entirely opposed to the prerogative were the claims which Parliament now advanced! It is clear that if the members of the council should make the communications they were asked for, all freedom of action on the part of the minister and of the King himself would be called in question.

The members of the new council for war were thrown into great embarrassment. They answered that they must first consult the lawyers on the subject, and the King conveyed to them his approval of this declaration. He informed them that he had had the Act of Parliament laid before him: that they were bound to submit to questions only about the application of the money, but about nothing else: he even threatened them with his displeasure if they should go beyond this. The president of the council for war, George Carew, called his attention to the probability that the grant of the subsidies which he demanded from Parliament might be hindered by such an answer: it would be better, he said, that the Council should be sent to the Tower,—for it would come to this,—than that the good relations

between the King and the Parliament should be impaired, and the payment of the subsidies hindered. Charles I said that it was not merely a question of money, and that gold might be bought too dear. He thanked them for the regard which they had shown to him; but he added that Parliament was aiming not at them but at himself.^[457]

The controversy about tonnage and poundage coincided with this quarrel. The grant, as has been mentioned, had been obtained only for a short period. Parliament was incensed, that after this had expired, the King had the customs levied just as before. 'How,' it was said, 'did the King wish to raise taxes that had never been voted? Was not this altogether contrary to the form of government of the country? Whoever had counselled the King to this step, he was without doubt the sworn enemy of King and country.'

Parliament declared to the King that if he insisted on those subsidies which were absolutely necessary, it would support him as fully as ever a prince had been supported by a Parliament, but in Parliamentary fashion, or, as they expressed it, 'via parlamentaria.'^[458] The claims of Parliament included both the right of granting money in its widest extent, and the supervision of its application when granted. The King considered that a grant was not necessary in respect of every source of revenue—for instance, not in respect to tonnage and poundage, and was determined to keep the management entirely in his own hands, and to submit to no kind of control over it.

Many other questions, in which wide interests were involved, were brought forward for discussion in Parliament, especially in regard to ecclesiastical matters: the proceedings of the High Commission were attacked again. But the question of the widest range of all was the decided attempt to alter the government and to overthrow the great minister, which gave perhaps the greatest employment to the assembly.^[459] It was directed against the favourite personally, for he had now incurred universal hatred, but at bottom there also lay the definite intention of confirming the doctrine of ministerial responsibility by a new and signal example.

How quickly was Buckingham overtaken by Nemesis; that is to say, in this, as in so many other instances, how soon was he visited by the consequences which in the nature of things attended his actions! First, owing to his influence the establishment of that council for war had been granted which

now gave occasion to the demand for Parliamentary control: and next, he had allowed the fall of Bacon, and had most deliberately overthrown Cranfield by the help of Parliament. These were just the transactions which endangered his own existence by the consequences of the principles involved in both cases alike.

The King was certainly moved by personal inclination to take the part of his minister; but he was also moved by anxiety about the application of these principles. He complained that without actually established facts forthcoming, on the strength of general rumour, people wished to attack the man on whom he bestowed his confidence: but Parliament, he said, was altogether overstepping its competence. It was wishing to inspect the books of the royal officers, to pass judgment upon the letters of his secretary of state, nay, even upon his own: it permitted and sheltered seditious speeches within its bosom. There never had been a king, he affirmed, who was more inclined to remove real abuses, and to observe a truly Parliamentary course; but also there had never been one who was more jealous of his royal honour. The more violently Buckingham was attacked, the more it appeared to the King a point of honour to take him under his protection against charges which he considered futile.

The Lower House did not take up all the points in dispute which the King proposed for discussion. It excused some things which had occurred to the prejudice of the royal dignity, but in the principal matter it was immovable. It asserted, and adhered to its assertion, that it was the constant undoubted right of Parliament, exercised as well under the most glorious of former reigns as under the last, to hold all persons accountable, however high their rank, who should abuse the power transferred to them by their sovereign and oppress the commonwealth. They maintained that without this liberty no one would ever venture to say a word against influential men, and that the common-weal would be forced to languish under their violence.

The impeachment was drawn up in regular form by eight members, among whom we find the names of Selden, Glanvil, Pym, and Eliot. On the 8th of May it was carried by 225 votes to 116 to send up to the Lords a proposal for the arrest of Buckingham.

In the Upper House, the members of which were by no means more favourable to the Duke, and feared the nomination of a large number of peers, Lord Bristol independently brought an accusation against Buckingham relating to the failure of the Spanish marriage. The conduct of which he is accused may rather have shown ambition and foolish assumption than any real criminality; and Buckingham's defence is not without force. The Lower House, to whom it was communicated, nevertheless expressed their opinion that a formal prosecution must take place. It seemed that Buckingham must surely but sink under the combined weight of various complaints.

But the King would not allow matters to go so far. Without paying any regard to the wish of the Lords to the contrary, he proceeded to dissolve this Parliament also (June 15, 1626). In the declaration which he issued on the subject, he said that he recognised Joab's hand in these estrangements: but in spite of them he would fulfil his duty as king of this great nation, and would himself redress their grievances and defend them with the sword against foreign enemies.

The opposition between Parliament and the Crown did not develop by slow degrees. In its main principles at least it appears immediately after the accession of Charles I as a historical necessity.

NOTES:

[446] Lando, *Relatione* 1622: 'Tiene presenza veramente regia fronte, sopraciglio grave, negli occhi e nelli movimenti del corpo gratia notabile, indicante prudente temperanza—di pensieri maniere costumi commendabilissimi attrahenti la benevolenza et l'amore universale.'

[447] Thus Kensington states to the Queen-mother in France: 'He was used ill, not in his entertainment, but in their frivolous delayes, and in the unreasonable conditions which they propounded and pressed upon the advantage they had of his princely person.' Cabala 289.

[448] Consultation at St. James's on the day after he ascended the throne (March 28). 'That which was much insisted upon was a parliament, H. Majesty being so forward to have it sit that he did both propound and dispute it to have no writs go forth to call a new one.' Hacket, *Life of Williams* ii. 4.

[449] Speech of Sir Thomas Edwards, St. P. O. (not mentioned in the *Parliamentary Histories*). It is there said 'He did not only become a continual advocate to his deceased father for the favourable granting of our petitions, but

also did interpose his mediation for the pacefying and removing of all misunderstandings. God having now added the posse to the velle, the kingly power to the willing mind, enabled him to execute what before he could but will.'

[450] Letter from the Pope to the Princess, Dec. 28, 1624: 'Cogitans ad quorum triumphorum gloriam vadis, fruire interim expectatione tui.'

[451] 'Some spare not to say that all goes backward since this connivance in religion came in, both in all wealth valour honour and reputation.' Letter of Chamberlain, June 25, 1625.

[452] 'Tonnage, a duty upon all wines imported; poundage, a duty imposed ad valorem on all other merchandises whatsoever.' Blackstone, Commentaries i. 315.

[453] 'Whosoever gave the counsel (of the meeting in Oxford) had the intention to set the king and his people at variance.' Nethersole to Carleton, Aug. 9, 1625: a circumstantial and very instructive document (St. P. O.).

[454] Hacket ii. 20.

[455] Arthur Ingram to Wentworth, Nov. 1625 (Strafford Papers, i. 29), names besides Guy Palmer, Edward Alford, and a seventh, who had not had a seat in the last Parliament, Sir W. Fleetwood.

[456] Ewis in Ellis, i. 3, 217. The Dutch ambassador present in England, Joachimi, to whose letter I referred, does not seem to have mentioned it.

[457] A memorial of what passed in speech from H. M. to the Earl of Totness, March 8, 1625-26; St. P. O. The King says 'Let them doe what they list: you shall not go to the Tower. It is not you that they aim at, but it is me, upon whom they make inquisition. And for subsidies that will not hinder it; gold may be bought too dear.'

[458] Correro: 'Questo termino di via parlamentaria vuol dire libere concessioni secondo la loro dispositione e di haver cognitione in qualche maniera delli impieghi.'

[459] 'Ils disent' (so it is said in Ruszdorf, Negotiations i. 596) 'que tout alloit mal, que les deniers qu'ils ont contribué ont été mal employés: il falloit toujours et avant toutes choses redresser et regler le gouvernement de l'état.'

CHAPTER VII.

THE COURSE OF FOREIGN POLICY FROM 1625 TO 1627.

In reviewing so important a conflict as that which had broken out at home, it almost requires an effort of will to bestow deep interest upon foreign affairs in turn. But not only is this necessary from the connexion between the two, but we should not be able to understand the history of England if we left out of consideration its relation to those great events of European importance which absorbed even the largest share of public attention.

Charles I had undertaken to do what his father avoided to the end of his life,—to offer open opposition to the Spanish monarchy and its aims. Like Queen Elizabeth he took this step in alliance with France, Holland, and the Protestants of Germany and the North, but yet not in full agreement with his own people. This was due mainly to the circumstance that France had become far more Catholic under Mary de' Medici and Louis XIII than it had been under Henry IV. The offensive alliance between France and England now developed a character which rather irritated than quieted the religious feelings which prevailed in England.

On the first shocks sustained by the close alliance which had existed between the Catholic powers, the Huguenots in France rose in order to recover their former rights which had been curtailed. But the French government was not at all inclined to give fresh life to these powerful and dangerous movements: on the contrary it invoked the assistance of England and Holland to put them down. For the great strength of the Huguenots lay in their naval resources, and without the help of the maritime powers the French government A.D. 1625. would never have been able to overcome them. And so imperative seemed the necessity of internal peace in France,^[460] if she was to be induced to take an active share in the war against Spain, that the English and Dutch were actually persuaded to put their crews and vessels at the disposal of the French government, which then used them with decisive results. The naval power of the Huguenots, which had formed so large an element of the fighting strength of the Protestants, was broken

by the assistance of England and Holland. Queen Elizabeth, in the midst of her war with Philip II, would certainly never have been brought to this step, and even now it roused the bitterest dislike. It was found that the execution of the orders issued met with resistance even on board the ships themselves. A light is thrown upon the ill-feeling at home, when a member of the Privy Council, Lord Pembroke, tells a captain who resisted this mutinous spirit, that the news of the insubordination of his crew was the best which he had heard for a long time, and that it was welcome even to the King: that he must deal leniently with his men, and only see that he remained master of the ship.^[461] But what an impression must doubtless have been produced on the population of England, which still stood in the closest relation to the French Reformed! Sermons were delivered from the pulpits against these proceedings of the government.

But if the active alliance of France against Spain and Austria was secured by this immense sacrifice, what could have appeared more natural than to employ the whole strength of that country for the restoration of the Count Palatine, which the French saw to be advantageous to themselves, and for the support of German Protestantism? In pursuance of the stipulations which had been made the King of Denmark was already in the field: his troops had already fought hand to hand at Nienburg in the circle of Lower Saxony with the forces of the League which were pressing forward into that country. He was strong in cavalry but weak in infantry: the German envoys who were present in England insisted that gallant English troops should be sent to his assistance, and that the fleet which was ready for service should be ordered to the Weser; for that the support which the fleet would give to the King would encourage him to advance with good heart. And then, as they added with extravagant hopefulness, the King of Sweden, who had already offered his aid, would come forward actively, if only he had some security; the Elector of Brandenburg, who had just married his sister to the King of Sweden, would declare himself; the Prince of Transylvania, who was connected with the same family, would force his way into Bohemia: every one would withstand the League and compel it to restore the lands occupied by it to their former sovereigns, and to the religion hitherto professed in them.

But Buckingham had as little sympathy with the German as with the French Protestants: his passionate ambition was to make the Spaniards directly feel

the weight of his hatred. For this purpose he had just concluded an offensive and defensive alliance with the United Provinces; even the great maritime interests of England were themselves a reason for opposing Spain. At all events, in the autumn of 1625 he despatched the fleet, not to the Weser, which appeared to him almost unworthy of this great expedition, but against the coasts of the Spanish peninsula. Orders were given to it to enter the mouth of the Guadalquivir, and to alarm Seville, or else to take the town of Cadiz, for which object it had on board a considerable number of land troops; or, finally, to lie in wait for the Spanish fleet laden with silver, and to bring home the cargo as a lawful prize. Buckingham proceeded on the supposition that the foundation of the Spanish power and its influence would be undermined by the interruption of the Spanish trade with America, and that in the next year the Spaniards would be able to effect nothing. He did not perceive that this would have no decisive influence on that undertaking on which in A.D. 1626. the first instance everything depended, that of the King of Denmark, as meanwhile in Rome, Vienna, and Munich, native forces, independent of Spain, had been collected. But while he preferred the more distant to the more immediate end, it was his fate to achieve neither the one nor the other. In December 1625 the fleet returned without having effected anything at sea or on the Spanish coasts. On the contrary it had suffered the heaviest losses itself.

The discredit into which Buckingham fell with those whom he had desired to win over, and whose wishes were fixed on the struggle with Spain, is exhibited in a very extraordinary enterprise which sprung up at this time, and which had for its object the formation of what we may almost call a joint-stock war company. A wish was felt to form a company for making war on Spain, upon the basis, it is true, of a royal charter, but under the authority of Parliament, with the intention of sharing the booty and the conquests, as well as the costs among the members.^[462]

By the late enterprise moreover the means had been wasted which might have been used for supporting the German allies of England. Left without sufficient subsidies in his quarrel with Parliament, the King was unable to pay the arrears due both to the seamen who were returning from Spain, and to his troops in Holland. He could not repair his fleet; he could hardly defend his coasts: how could he be in a position to make any persevering effort for the conduct of the war in Germany? The King of Sweden asked

for only £15,000 in order to set his forces in motion; but at that time this sum could not be raised. The King of Denmark was the more thrown on England, as the French also made their services depend on what the English would do: but Conway, the Secretary of State, declared himself unable to pay the stipulated sum. Could men feel astonished that the Danish war was not carried on with the energy which the cause seemed to demand? Christian IV had not troops enough, and could not pay even those which he had. The cavalry, which constituted his main strength, had on one occasion refused to fight, because they had not received their pay. He himself threw the chief blame on the English for the defeat which he now sustained at Lutter; and which was the more decisive, as meanwhile Mansfeld also, who wished to turn his steps to the hereditary dominions of Austria in order to combine with the Prince of Transylvania, had been not only defeated, but almost annihilated. The armies which were to have defended the Protestant cause disappeared from off the field. The forces of the Emperor and of the League now occupied North Germany also on both sides of the Elbe.

To Germany the alliance with England had at that time brought no good. It may be doubted whether the Elector Palatine would have accepted the crown of Bohemia but for the support which he thought to find in England. This affair had a great part in bringing on the outbreak of the great religious conflict. But James I sought to retrieve the misfortune into which the Elector had fallen, not so much by employing his own power, as by developing his relations with the Spaniards; and thus he had himself given them the opportunity of establishing themselves in the Palatinate, and had caused the Catholic reaction to triumph in Upper Germany. Without the instigation of England, and the great combination of the powers in East and West hostile to the house of Austria, the King of Denmark would not have determined to begin war, nor would the circle of Lower Saxony have aided him. On this occasion as on others in England the interests of its own power outweighed consideration for the allies. The policy of the English had formerly been ruled by their friendly relations with Spain: it was now ruled by their hostile intentions towards that country. All available forces were employed for their purpose, and the movement in Germany was left to its fate.

Meanwhile another consequence of the breach with Spain came to light, which King James had always feared. In order not to be forced to fight both

great powers at once, Spain found it advisable to show a compliance hitherto unprecedented in the affairs of Italy, in which France had interested herself. After this the irritation against the ascendancy of the Spaniards evidently abated in France.

For in alliances of great powers it is self-evident that their political points of view, if for a moment they coincide, must nevertheless in a short time be again opposed to one another. How should one power really seek the permanent advantage of another?

At that time also, as on so many occasions, other relations arising out of the position of the leading statesmen as members of parties, produced an effect on politics. Cardinal Richelieu met with opposition from a zealously Catholic party, which gathered round the queen mother, and considered the influence of Spain to a certain degree necessary. This party seized the first favourable opportunity of setting on foot a preliminary treaty of peace, to which Richelieu, however long he hesitated, and however much he disliked it, could not help acceding.

Quite in keeping with this understanding between the Catholic powers was the partial recoil of Protestantism in England from the advances which it had made to the Catholic party. The French who surrounded the Queen were so numerous, that a strong feeling of opposition on religious and national grounds was awakened in them by their contact with the English character. They saw in the English nothing but heretics and apostates; the Catholics who had formerly been executed at Tyburn as rebels they honoured as martyrs. The Queen herself, upon whom her priests laid all kinds of penance corresponding to her dignity, was once induced to take part in a procession to this place of execution. It is conceivable how deeply wounded and irritated the English must have felt at these odious demonstrations. To the King it seemed insufferable that the household of his consort should take up a position of open hostility to the ecclesiastical laws of the land. Personally also he felt injured and affronted. We hear complaints from him that he was robbed of his sleep at night by these demonstrations. He quickly and properly resolved to rid himself once for all of these refractory people, whatever might be the consequence. The Queen's court was then refusing to admit into it the English ladies whom he had appointed to attend on her. The King seized the opportunity: he invited his

wife to dine with him, for they still had separate households; and after dinner he made her understand by degrees that he could no longer put up with this exhibition of feeling on the part of her retinue, but must send them all home again, priests and laymen, men and women alike.^[463] This resolution was carried out in spite of all the resistance offered by those whom it affected. Only some few ladies and two priests of moderate views were left with the Queen; all the rest were shipped off to France. There they filled the court and the country with their complaints. Those about the Queen-mother assumed an air as if the most sacred agreements had been infringed, and any measure of retaliation was thought justifiable.

Marshal Bassompierre indeed set out once more for England in order to bring about a reconciliation. Though ill received at first, he nevertheless won his way by his splendid appearance and by clever talk and moderation. In a preliminary agreement leave was given to the Queen to receive back a number of priests and some French ladies;^[464] and Buckingham prepared to go to France to remove the obstacles still remaining. But meanwhile the feeling of estrangement at the French court had become still stronger. The agreement was not approved: and the court would not hear of a visit from Buckingham, as it was thought that he would be sure to use the opportunity afforded by his presence to stir up the Huguenots. Richelieu thought that the dispute with England had been provoked by his enemies in order to break up the friendly relations which he had established. But nevertheless he too did not wish to see Buckingham in France, for he feared that the English minister might side outright with his opponents.

Personal considerations of many kinds co-operated in producing this result, but it was not due mainly to their influence. The religious sympathies and hatreds at work had incalculable effects. While the opposition between the two religions again awoke in all its strength, and a struggle for life and death was being fought out between them in Germany, an alliance could not well be maintained between two courts which professed opposite religious views. The current of the general tendencies of affairs has a power by which the best considered political combinations are swept into the background.

The paramount importance of religious movements not only prevented a combination between France and England, but also brought both Catholic powers into closer agreement with one another, as soon as their immediate

differences had been in some measure adjusted. Father Berulle had promoted the marriage of a French princess with the King of England in the hope of converting him; but now that he became conscious of his mistake, he lent his pen to a project for a common attack to be made by the Catholic powers upon England. The domestic dissensions in that country, which again aroused Catholic sympathies among a part of the population, appeared to favour such a project. An agreement on the subject was in treaty for some time. It was at last concluded and ratified in France in the form in which it was sent back from Spain.^[465]

Although it is not clear that people in England had authentic information of these negotiations, yet the advances made by the two courts to one another, which were visible to every one, could not but cause some anxiety in the third. The English were always anxiously considering what Philip IV might have in view for the next year; at times even in Charles' reign they feared another attack from the Belgian coast. What would happen if France lent her aid in such an enterprise? It was known at all events that the priests exhorted her to do so. That France and Spain should make a joint attack on England appeared to be most for the interest of the Catholic world.^[466]

Another ground for anxiety in England was from that resolution to revive the French naval power, which Richelieu had already taken in consequence of his late experiences. He bought ships of war, or had them built, and took foreign sailors into his service. Charles I perceived this with the greatest displeasure. He regarded it as a threat against England, for he thought that the French could have no other intention than that of robbing England of the supremacy that she had exercised from time immemorial over the sea which bears her name. He declared that he was resolved to prevent matters from going so far.

A great effect was produced by a very definite misunderstanding which now arose between England and France, and affected naval interests as well as the question of religion.

Of all the French Huguenots, who had been compelled by their last defeat to seek peace with the King, the citizens of Rochelle felt the blow most deeply. They had at that time been hemmed in on all sides, and were especially harassed by a fort erected in their neighbourhood. They had been

assured that at the proper time they would be relieved of this annoyance. They had not an express and unequivocal promise; but the English ambassador, who had been invited to mediate, had guaranteed to them, after conference with the French ministry, such an interpretation of the expressions used as would secure the wished-for result.^[467] But just the contrary took place: they were constantly being more closely shut in, and more seriously threatened with the loss of that measure of independence which they had hitherto enjoyed. They turned to Charles I. They would rather have acknowledged him as their sovereign than have submitted to such a loss, and he felt the full weight of his obligation to them. But, if he desired to grant them assistance, it could only be rendered by open war.

A.D. 1627. When the English resolved to undertake an expedition against the Island of Rhé, the prevention of the fall of Rochelle was not the only object in view. It was rather considered that nothing could be more desirable and advantageous than the command of this island in the event of a struggle with the two powers. For Biscay could be reached in a voyage of one night from thence, and the communication between the Netherlands and the harbours on the north-east coast of Spain could at any time be interrupted by the possessors of the island, which might be used at the same time for keeping up constant communication with the Huguenots, and for giving the French power employment at home.^[468] The Huguenots had already taken up arms again, and Rochelle displayed the English banner on its walls. Charles I intended to use Rhé as a station for his fleet, but to cede the general sovereignty over it to Rochelle. A successful result here might serve to infuse new life into the Protestant cause.

In order to achieve so great an end the King thought it admissible to levy a forced loan, and thus to collect those sums which Parliament had promised him by word of mouth, but had not yet formally granted. We shall have hereafter to consider the resistance which he encountered in this attempt, and the various arbitrary acts to which he resorted for its suppression; for they formed one of the turning points of his history. At first he actually succeeded so far, that a fleet of more than a hundred sail was able to put to sea for the attack of Rhé and the support of Rochelle. It was considered in raising this loan that a war with France had greater claims upon popular support than any other. In the present doubtful state of affairs a decided

advantage gained in such a war might even now have exercised great influence upon the internal state of the kingdom.

At this juncture Buckingham assumed a position of extraordinary importance. After the repeated failures of the Protestants, his undertaking aroused all their hopes. Directed against both the Catholic powers, it must, if successful, have directly benefited the French Protestants, and indirectly the German Protestants also by the effect which it would inevitably have produced. But it was besides one enterprise more undertaken by the sole power of the monarch: it was carried out independently of any Parliamentary grants properly so called. It represented the principle of a moderate monarchical Protestantism, combined with toleration for the native Catholics, among whom Buckingham endeavoured to find support. His was a position of which the occupant must either be a great man or perish. Buckingham, who had no equal in restless activity, and was by nature not devoid of adroitness and ability, nevertheless had not that persevering and comprehensive energy which is required for the performance of great actions. He had not gone through the school of those experiences in which minds ripen: and for the want of this training his native gifts were not sufficient to compensate. He was so far fortunate as to gain possession of the Island of Rhé; but Fort Martin, which had been erected there a short time before, and on which the possession of the island depended, defied his attacks, and he was not skilful enough to intercept the support which was thrown into the fort in the hour of its greatest danger. The defence of the French certainly showed greater perseverance than the attack of the English. Buckingham did not know how to awaken among his men that fiery devotion which shrinks from no obstacle, and which would have been necessary here. And the measures which were arranged at home were not so effective as to bring him at the right moment the reinforcement he needed. In November 1627 he returned to England without having effected his object. He left behind him the French Protestants, and Rochelle especially, in the greatest distress.

Charles I had no intention of proving false to the promises which he had given them, any more than he wished to allow the King of Denmark to sink under his difficulties. But what means did he possess of bestowing help either on the former or on the latter?

After the battle of Lutter he had told the Danish ambassador, that he would come to the assistance of his uncle, even if he should have to pawn his crown. How heavily his position weighed on him at that time! While he had undertaken the responsibility of contending for the greatest interests of the world, he was obliged to confess, and did so with tears in his eyes, that at present he hardly had at his disposal the means of defraying the necessary expenses of his daily life.

The King of Denmark advised him to call Parliament together again, and make the needful concessions, in order to obtain such subsidies as would enable him to give vigorous support to his allies. Charles I in the first instance took umbrage at this, because it was good advice from an uncle and an elder, as if some blame were thereby cast on him: by degrees he became convinced of the necessity of this measure.

It was quite evident from the events of the last few years that the King would not be able to maintain the position he had assumed, without active support from Parliament.

NOTES:

[460] Z. Pesaro, April 25, 1625: 'Che la conservatione della pace in Francia sara il fondamento del beneficio comune, che li rumori civili in quella natione sariano il solo remedio che Spagnoli procurano alli loro mali.'

[461] 'That the King and all the rest were exceedingly glad of that relation which he made of the discontent and mutiny of his compagnie.'

[462] M. A. Corroero: 'Trattano di formar una compagnia per la quale possino con l'autorità del parlamente e privilegi reggi attaccare con una flotte il re di Spagna per dividere l'interesse della spesa e l'utile delli bottini e delli acquisti nelli compagni che ne averanno parte (27 Mayo 1626).'

[463] Letter to Joseph Mead: Court and Times of Charles I, i. 134.

[464] According to Ruszdorf, who was well acquainted with Bassompierre, the latter represented 'hoc facto regem obligatum nihil esse intermissurum, quod ad conservationem fortunae illius queat conducere.'

[465] Siri, Memorie recondite vi. 261.

[466] Letter to Joseph Mead, March 16, 1626: 'It still holds that both France and Spain make exceeding great preparations both for sea and land.—The priests of the Dunkirkers are said to preach that God had delivered us into their hands.' (Court and Times of Charles I, i. 205).

[467] I refer for the fuller explanation of these transactions to my History of the Popes and my French History. My meaning is very fully recognised in an essay in the *Revue Germanique*, Nov. 1859.

[468] Beaulieu to Pickering. 'It lieth in the way to intercept the salt that cometh from Biscaje and serveth almost all France, and what so ever cometh out of the river of Bourdeaux: besides it commandeth the haven of Rochelle.' (Court and Times of Charles I, i. 257).

CHAPTER VIII.

PARLIAMENT OF 1628. PETITION OF RIGHT.

In the heat of controversy about the supplies to be granted and the liberties to be confirmed by the King in return, it was once harshly said in the Lower House during this Parliament that it was better to be brought low by foreign enemies than to be obliged to suffer oppression at home. The King answered by saying no less abruptly that it was more honourable for the King to be straitened by the enemies of his country, than to be set at nought by his own subjects.

So much more importance was attached by both sides to domestic than to foreign struggles. But after the last failure both parties had come to feel how much the honour of the country and religion itself suffered from their dissensions. Among the politicians of the time there was a school of learned men, who had studied the old constitution of the country, and wished for nothing more than its restoration. They were seriously bent on establishing an equilibrium between the royal prerogative and the rights of Parliament. Among them were found Edward Coke, John Selden, and John Glanvil; but Robert Cotton may be regarded as the most distinguished of them all, a man who had studied most deeply, and who combined with his studies an insight into the present that was unclouded by passion. To Cotton we owe a report presented by him to the Privy Council, in which he explains that the government should proceed on the old royal road of collecting taxes by grant of Parliament, and indeed should adopt no other method; while at the same time he expresses the conviction that Parliament would be satisfied, if its most pressing anxieties were dissipated. He says that he himself would not advise the King to sacrifice the First Minister, for that such A.D. 1628. a step had always had ruinous consequences: he thought moreover that the old passionate hostility against the Duke need not be feared, if he came forward himself as the man who had advised the King to reassemble Parliament.^[469] We learn that the King did not determine to summon it, until the most prominent men had given him an assurance that Buckingham

should not be attacked. Moderation in the attitude of Parliament, and security for the First Minister formed as it were the condition under which the Parliament of 1628 was summoned.^[470]

On March 22, five days after the beginning of the session, the deliberations of the Lower House were opened by the remark from the Speaker, that they must indeed grant subsidies to the King; but that at the same time they must maintain the undoubted rights of the country. Francis Seymour, who had now again been returned to Parliament, at once expressed himself to the same effect. While he acknowledged that every one must make sacrifices for king and country, he shewed at the same time that it was a sacred duty to cling to their ancestral laws. He proceeded to say that these laws had been transgressed, their liberties infringed, their own selves personally ill-treated, and their property, with which they might have supported the King, exhausted. He proposed therefore to secure the rights, laws, and liberties transmitted from their ancestors by means of a petition to the King.^[471]

Whatever be the tone of opposition which this language betrays, it fell far short of that adopted in the former Parliament. Men had come to an opinion that certainly no money should be granted unless securities could be obtained for their ancient liberties; but at the same time that the King should not be induced to grasp directly at absolute power, for that this would lead at once to a rebellion of uncertain issue.^[472] Men were resolved to avoid questions which could rouse old passions. This time it was not insisted that the penal laws against the Catholics should be made more severe: Parliament waived its claim to alter the constitution of the Admiralty, and to appoint treasurers to manage the money granted to the King: it showed deference for the King, and said nothing of the Duke. But a commission was appointed to take into consideration the rights which subjects ought to have over their persons and property. Already on April 3 resolutions were proposed to the House, by which it was intended that some of the most obnoxious grievances which had lately arisen should be made for ever impossible, such as the collection of taxes that had not been granted, and restraints imposed on personal liberty in consequence of refusal to pay.^[473]

Charles I also now took up this question. Through Coke his Secretary of State, who was also a member of the House, he issued an invitation to them not to allow themselves to be deterred by any anxiety about liberty or

property from making those grants, on which, as he said, the welfare of Christendom depended; 'upon assurance,' Coke proceeds to add, 'that we shall enjoy our rights and liberties, with as much freedom and security in his time as in any age heretofore under the best of our kings; and whether you shall think fit to secure ourselves herein, by way of bill or otherwise, so as it be provided for with due respect to his honour and the publick good whereof he doubteth not that you will be careful, he promiseth and assureth you that he will give way to it.'

This is indeed a very important message. The King approves of an inquiry into the violations of old English right and prescription, which had taken place in his reign. He consents that a bill to secure their observance should be drawn up, and gives hopes beforehand of its ratification. Charles I, like James, had constantly been anxious to prevent grants from being made dependent on conditions; but something very like this occurs when he backs his invitation to a speedy grant of subsidies by a promise to approve of the petition submitted to him for certain objects.

On this five subsidies were without delay unanimously granted to the King, with the concurrence even of members like Pym, who systematically opposed him. It was now only necessary that both sides should agree on the enactments for doing away with the abuses which had been pointed out.

The principal grievance arose from the conduct of the King, who in his embarrassments had imposed a forced loan at the rate fixed on the occasion of the last subsidies, and had sent commissioners into the counties in order to exact payment, just as if he had been armed with the authority of Parliament for this object. Many had submitted: but not a few others high and low had refused to pay, not from want of means but on principle. The King had thought this behaviour a proof of personal disaffection, and had had no hesitation in arresting those who refused: he had even taken steps to assert his right to do so as a matter of principle. Much notice was attracted at that time by a sermon preached by one Sibthorp, in which plenary legislative authority was ascribed to the King, and unconditional obedience was demanded for all his orders if they did not contradict the divine commands. Archbishop Abbot had steadfastly refused to allow the printing of this sermon, which he regarded as an attack upon the constitution: eighteen times in succession an intimate friend of the King went to him to

urge him to give leave.^[474] As the Archbishop refused to comply, he received orders to leave London, and was struck out of the High Commission: the sermon had been printed with the permission of another bishop. So earnestly bent was the King at that time on pressing his claim to override the necessity of a parliamentary grant in moments of emergency.

He had now however retreated from this position. Abbot had obtained permission to resume his seat in the Upper House, and so had Lord Bristol. When, in consequence of the above-mentioned declaration in Parliament, a project was now decided on for securing the legal position of the subject, especially the rights of property and personal freedom, which had been infringed by the previous proceedings, the King expressed his agreement loudly, explicitly, and repeatedly; in general terms he gave up his claim ever to proceed again to a forced loan. No one was ever to be arrested again because he would not lend money; and in all other cases where arrest was necessary the customary forms were to be observed.

At this point however another question arose touching the very essence of the supreme power. The Lower House was not yet content that an abuse like that which had occurred should be merely removed: it wished to destroy it at the root. It was not satisfied with the promise of the King that he would never in any case punish by arrest, unless he was convinced in his conscience of its necessity. They wished to put an end to this discretionary power itself, of which his ministers could avail themselves at pleasure. Parliament demanded that henceforth no one should be arrested without assignment of the reason and observance of the forms of law.

This question led to a discussion of points of constitutional doctrine before the House of Lords, between the representatives of the Lower House and Sir Robert Heath, the Attorney General, in an argument which deserves our whole attention.

The Lower House appealed to that article of Magna Charta, by which the arrest of free persons was forbidden except on the judgment of their peers, or according to the law of the land: and by the law of the land it understood the judicial process and its forms. Sir Robert Heath would not admit this interpretation. He thought that the expression in no way forbade the King to restrict the liberty of individuals in extraordinary cases for reasons of state;

and that this restriction could not be avoided, when it was desired to trace out some conspiracy or treason. If the cause were to be assigned he thought that it must be the real cause, which could be proved before a tribunal; but how often cases arose of such a kind that arrest would have to be ordered under some other pretext, until the ring-leader could be laid hold of! It was very true, he said, that such a power might be seriously abused, but it was the same with all the rights of the prerogative: even the right of making war and peace, and the right of pardon might be abused, and yet no man wished to take these from the crown: it always was, and must always be presumed, that the King would not betray the confidence of God, who had placed him in his office.

Not without good reason did Edward Coke call this the greatest question which had ever been argued in Westminster. It was proved to him that he himself as judge had followed the interpretation which he now condemned. He answered that he was not pope, and made no pretensions to infallibility. He now firmly maintained that the King had no such prerogative at all.

We can see how opinion wavered from a speech of Sir Benjamin Rudyard, who maintains on the one hand that it is impossible to find laws beforehand for every case, but that a circle must be drawn within which the royal authority shall prevail; while on the other hand he lays emphasis also on the danger arising from the plea of mere reasons of state, which he said would only too easily come into conflict with the laws and with religion itself. The best arrangement according to him would be, if Parliament were held so often that the irregular power which could not be broken at once, might by degrees 'moulder away.' A copy of this speech with observations by Laud is extant in the archives. Laud calls attention to the contradiction which lies in first acknowledging the necessity of liberty of movement on the part of the government, and then notwithstanding considering it to be the destination of Parliament by degrees to absorb its power, as it was at present exercised.^[475]

And certainly it may have been the idea of the moderate members of the House of Commons, gradually to break up such a power as that exercised by the minister and favourite, by coming to a better understanding with the King, and at the same time by strictly limiting his arbitrary authority.

The impression however gained ground that even the indispensable functions of the supreme authority would be restricted by the enactments proposed. The right of arresting persons dangerous and troublesome to the government was just then exercised in France to the widest extent; Cardinal Richelieu could never have maintained himself but for his quick and energetic use of it. In all other states, as well republican as monarchical, it was a weapon with which the government thought that it could not dispense. Was it to be dropped in England alone? And that too at a moment when the opposition of factions was constantly becoming more active? In fact the impression spread that Parliament, not content with full promises from the King, while it checked abuses, was impairing his authority.

In the Upper House, where there was a strong party in favour of the King's prerogative, these and similar considerations influenced votes. Men were agreed that abuses like those which had occurred must be for ever put a stop to. Even the proposals introduced for securing individual freedom were not properly speaking rejected: but it was desired to limit them by a clause to the effect that the sovereign power with which the King was entrusted should remain in his hands undiminished for the protection of his people. The Lower House however would not accept any such addition: for the provisions of the Petition would thus be rendered useless. They foresaw that what those provisions forbade would pass as lawful in virtue of the plenitude of the sovereign power: yet the expression 'sovereign power' was unknown in the English Parliament: that body was familiar only with the prerogative of the King, which at the same time was embodied in the laws. The Upper House on this declared that it did not think of departing from the Oath by which each one of them was pledged to maintain the prerogative of the King. Even in the Lower House the members were reminded of this, and no one raised his voice against it; for who would have been willing to confess that he was withstanding the lawful prerogative of the King? The only question was as to its extent.

This question now presented itself to the King himself. Was he to accept the proposal of the Commons, and to content himself with a general reservation of his prerogative? It is very instructive, and forms one of the most important steps in his career, that he thought it advisable to inform himself first of all what rights in this matter he really possessed.

On the 26th of May, just when the heat of the quarrel was most intense, he summoned the two Chief Justices, Hyde and Richardson, to Whitehall, and submitted to them the question whether or not he had the right of ordering the arrest of his subjects without specifying the reason at the same time. On this the Judges were assembled by their two chiefs in the profoundest secrecy, to pronounce on the question. They decided that it certainly was the rule to specify the reasons; but that there might be cases in which the secrecy required made it necessary for some time to withhold them. A further question was then followed by a decision of the same import, that the judges in such a case were not bound to give up the prisoner even if a writ of habeas corpus were presented. Charles then proceeded to a third question, to which no doubt he attached the most importance. If he accepted the petition of the Commons, did he surrender for ever the right of ordering imprisonment without assigning a cause? The judges assembled again, and on the 31st of May, after deliberating together, they gave in their answer, signed with their names. Every law, they said, had its own interpretation; and so must this petition: and the answer must always depend upon the circumstances of the case in question, which could not be determined until the case arose; but the King certainly did not give up his right beforehand by granting the petition. ^[476]

At a later time and in another epoch these questions were finally settled in a different way. The Judges of this time decided them in favour of the power of the time. If we might apply a parallel, though certainly one borrowed from a very different form of government, we might say that the fettah of men learned in the law, the sentence of the mufti, was in favour of the King. In this, as in other respects, a difference is found to exist between the constitutions of the East and those of the West: such a sentence in the West does not finally decide a case; but even here, nevertheless, it always carries great weight. Charles I felt that according to the existing state of the law, he did not exceed his rights by maintaining the prerogative which he had hitherto exercised. The last decision raised him even above the apprehension of losing it by acceding to a petition which was opposed to it.

He could not however resolve on this step without further consideration.

To accede to the petition, and at the same time to reserve in his own favour the declaration made by the Judges, was an act of duplicity, which he

wished to escape by giving an assurance couched in general terms.

On the 2nd of June he came down to the House in full assembly, and had his answer read. Its tenor was, that the laws should be observed and the statutes put in force, and his subjects freed from oppression; that he the King was as anxious for their true rights and liberties as for his own prerogative.

But it is easily intelligible that these words satisfied no one. They appeared to one party as dark as the sentence of an oracle; to the other they appeared useless; for the King, they said, was already pledged to all this by his Coronation Oath: such long sittings and so much labour would not have been required to effect such a result as this. The answer however was not ascribed to the King, whose deliberations remained shrouded in the closest secrecy, and who on the contrary was thought to agree with the substance of the petition, but to the favourite, who was supposed to find such an agreement dangerous for himself.^[477] It was remarked that two days before making this declaration the King had been at one of the country seats of the Duke, and had held confidential conversations with him. It was thought that there, under the influence of the Duke, the declaration had been drawn up, which contained nothing but words that might easily be explained in another sense, and which did not even make any mention of the petition at all. It was fancied that Buckingham even wished to hinder the King from coming to a genuine understanding with his Parliament, which might be disadvantageous to his interests.^[478] His opponents thought that he was at the root of all previous misfortunes; and what might they not still expect from him? He was credited with wishing to alter the constitution of England, to excite a war with Scotland, and to betray Ireland to the Spaniards. In spite of all that the King might have originally expected, they determined to make a direct attack upon such a minister. Popular susceptibility knows no limits in its anxieties or hopes, in its likings or hatreds. Even thoughtful and serious men allowed themselves to entertain the opinion that the prosperity of England at home and abroad was as good as lost: the former was lost if people were content with the answer given, the latter if they refused to make the grants demanded, or even if they made them but left the administration in those untrustworthy hands in which it was at the present time. On one occasion these feelings gave rise to an unparalleled scene in Parliament. Those bearded and sedate men wept and

cursed. They feared for their country, and each one feared for himself, if they did not get rid of the man who possessed power, while on the other hand it seemed to them impossible to do so. Some could not speak for tears: violent exclamations against the Duke prevented the continuance of the debate. But not only were complaints heard: the expression was also heard, that men had still hands and swords, and could get rid of the enemy of King and country by his death. They proceeded at last to deliberate on a protestation which was resolved on after that debate, and they had gone so far as to name the Duke, and to declare him a traitor, when the Speaker who had quitted the House came in again, and brought a message from the King, by which the sitting was adjourned to the following day.

No course seemed to be left for Charles I but to dissolve this Parliament immediately as he had dissolved its predecessor. But what would then have become of the grant of money, which was every day more urgently needed? Like the Petition, it would have fallen to the ground.

Before the end of the same day, June 5, a meeting of the Privy Council was held, in which it was resolved to calm the agitation by accepting the Petition of Right. We do not learn if on that occasion the scruples of the King were discussed or not; but as his questions to the judges already betrayed his inclination to such a course, so now he actually resolved to plunge into the contradiction which he had wished to avoid, and accept the Petition while at the same time, in accordance with the sentence of the Judges, he would reserve for himself the future exercise of the right therein denied.

On June 7 the King appeared in the Upper House, where the Commons also were assembled. The Lords were in their robes, and the King sat upon his throne while the Petition of Right was read. It was directed against some temporary grievances, such as forced billeting and the application of martial law in time of peace, but principally against the exaction of forced loans, or taxes which had not been granted, and against the imprisonments which had been so much talked of. The King, as had been desired, uttered the formula of assent used by his Norman ancestors. His words were greeted with clapping of hands and acclamations. The King added that he had meant just as much by his first declaration; indeed he knew well that it was not the intention of Parliament, nor even in its power, to limit his prerogative: for

that this would be strengthened by the liberties of the people, and consisted in defending those liberties.^[479]

The excitement of the House was taken up by the city. The bells were rung, and bonfires were kindled; and a rumour obtained credence that the Duke of Buckingham himself had fallen, and was expecting his reward on the scaffold. Of what an illusion were men the victims! The King clung to Buckingham as firmly as ever: in granting the Petition he did not mean to surrender a jot of his lawful prerogative. We have seen what he thought of his right to make arrests. In resigning his claim to levy taxes that had not been granted by Parliament he did not mean to be restricted in his claim to tonnage and poundage, for he thought that, unless these were collected, the administration of the State could not be carried on at all, and in the late controversies his right to them had not come under discussion. Some of the higher officials, the Recorder and the Solicitor General, confirmed the King in this view: and to many of his opponents in Parliament it was pointed out that they had previously entertained the same opinion.

The Lower House on its part allowed the bill, by which the grant was made, to pass the last stage; but it could not be moved by advice or warning to desist from the great Remonstrance, in the composition of which the House had been interrupted. In this, mention was made of the Arminian opinions which were now making way in England, and which appeared to Parliament to involve a tendency in the direction of Romanism: but it complained principally of the connivance, which in spite of all ordinances was still constantly extended to the recusants, so that Catholicism, especially in Ireland, had the fullest scope. And the State, it was said, was in just the same plight as religion. The government was introducing foreign soldiers, especially German troopers, and was meditating the imposition of new taxes in order to pay them. In the midst of peace a general was commanding in the country. Trustworthy men were being dismissed from their offices; Parliament and its rights were contemned: was it intended to 'change the frame both of religion and government?'^[480] But the source of all evil was the Duke of Buckingham. The remonstrants begged the King to consider whether it was advisable for himself and for his kingdom to allow him to continue in his high offices, and to keep him among his confidential advisers.^[481]

As we gather, the Lower House attached weight to the circumstance that it did not raise a complaint, nor even strictly speaking a protest, against the continuance of Buckingham's authority, but simply preferred a request that the position of affairs should be taken into consideration. But the King was greatly offended even at this. He replied that he had hitherto always believed that the members of the Lower House understood nothing about the affairs of State, and that he was now greatly strengthened in his opinion by the purport of this representation.^[482] Buckingham prayed the King to cause unsparing investigation into the charges raised against him to be made, for that such a proceeding would bring his innocence to light. The King offered him his hand to kiss, and addressed to him some friendly expressions. But the Lower House was incensed afresh at the bad success of its representation, and proceeded to adopt an express remonstrance on the subject of tonnage and poundage. In order to save himself from again receiving such an address, the King declared Parliament to be prorogued on June 20.

Although it was assumed just at that time that a genuine understanding between the Crown and the Parliament had been brought about in this session, yet this assumption is certainly a mistake. At the beginning of the session suspicious controversies were intentionally avoided. A basis was obtained upon which union between the two parties seemed possible: the great Petition of Right was drawn up, on the whole in concert with the government. When it was discussed however, a demand was set up affecting rights which the King would not forego. He surrendered them in his eagerness to obtain the proceeds of the grants made to him, but not without secretly reserving his rights in his own favour. Then other old differences also came to light again in their full strength. An open disagreement broke out: in haste and with tempers irritated the two parties separated.

NOTES:

^[469] The Danger wherein the Kingdom now standeth and the Remedy, written by Sir Robert Cotton. Jan. 1627-8.

^[470] Aluise Contarini, Feb. 10, 1628: 'La deliberatione di convocare il parlamente è nata—dalle promesse, che hanno fatte molti grandi, che non si parlara del duca.'

[471] 'Those rights, laws, and liberties, which our wise ancestors have left us.' So run the words in the draught of the speech contained in a memorandum in the St. P. O. under the title, 'Speeches of some in the Lower House, March 22, 1628.' In Rushworth and in both Parliamentary Histories two reports are given which differ from one another.

[472] 'Assoluto dominio destruttivo dei parlamenti con azzardo di sollevatione.'

[473] 'To draw the heads of our grievances into a petition, which we will humbly, soberly, and speedily address unto His Majesty whereby we may be secured.'

[474] Abbot's Narration, in Rushworth i. 459.

[475] 'The end is, to make the other power, which he calls irregular moulder away.' (St. P. O.) In Bruce's Calendar, 1628-9, p. 92, more particular reference is made to this document.

[476] Memorandum of Nicholas Hyde, Chief Justice of the King's Bench, in Ellis's Letters, ii. iii. 250.

[477] Nethersole writes to the Queen of Bohemia as early as in April: 'the duke can neither subdue this parliament, neither by fear nor favour,—is almost out of his senses to find that it gained credit with His Majesty.' (St. P. O.)

[478] Al. Contarini, 17 Giugno: 'Attribuendone la cagione al duca per i suoi interessi di voler il re padrone disgiunto dai popoli unito solo con lui, et per le pratiche di Spagnoli guidati in generale da cattolici et in particolare da Gesuiti che praticano quella cosa.'

[479] Parliamentary History viii. 202.

[480] Parliamentary History viii. 227.

[481] Ruszdorf ii. 547.

[482] Al. Contarini: 'Che sempre suppose ne havessero poca cognitione, ma che adesso credeva, che non havessero niente affatto.'

CHAPTER IX.

ASSASSINATION OF BUCKINGHAM. SESSION OF 1629.

For some years nothing had surprised foreigners who came to England so much as the wide severance between the government and the nation. Upon the one side they saw the King, the favourite, and his adherents; upon the other every one else. The King had lost much of the popularity which he had enjoyed when he ascended the throne; but a genuine hatred was directed against the arbitrary government of the Duke. Although it had been repressed out of regard to the King, it had again broken loose: the less practical result it produced, the more it filled all hearts.

Burdened with this hatred, and with the ground shaking under him, Buckingham was nevertheless revolving the largest enterprises in his brain. He repelled with scorn the charge of still keeping up an intercourse with Spain; that was contrary to his obligations to the Protestants. He himself, so he said, had concluded the alliances between England and Denmark and the States-General; and he wished also to abide by them. Without doubt overtures had been made on the part of Spain, and had been responded to on the part of England; but their relations had in fact been such as had led to no result. On the contrary, negotiations with France, which certainly offered some prospect of success, had been opened through the mediation of the Venetian ambassadors resident at the two courts. The English were ready to waive all other points at issue if the other side would resolve to show some indulgence, especially if they would conclude some tolerable arrangement with Rochelle. The forces of both powers would then undertake the war against the Spanish monarchy, and against the advance of the Emperor in Germany. The French army would turn its steps to Italy; the English fleet would go to the aid of the Danes: it was expected that these attacks would exert an enormous influence in all directions.^[483] Buckingham was still engrossed with designs against Spain, in spite of secret but only pretended overtures to that power. He intended to attack the Spanish monarchy at the source of its greatness, in the West Indies; and by a combination of forces

on the Continent to wrest the Palatinate from it, and thereby to destroy the position which it had won on the Middle Rhine. A strange ambition, although in keeping with the age and with his personal character, appears to have been connected with this design. It had entered into his head to marry his daughter to the Electoral Prince Palatine, and perhaps to give his daughter the appearance of a higher rank by getting himself declared independent prince of some West Indian conquest—Jamaica had attracted his ambition^[484]:—a hope not altogether chimerical; for he was still all-powerful with Charles. Foreigners were astonished that he undertook the most extensive negotiations before he had given his sovereign notice of them. Not unlike James I he cherished the hope that the threatening attitude which he took up, even if he did not strike a blow, would dispose the French to make concessions and would restore the former understanding between them. If this were not the case, he was determined to undertake the relief of Rochelle with all his energies.

The condition of the English navy was such that he might reasonably promise himself success. We have credible information according to which Buckingham had made it half as large again as it had been in the time of Elizabeth. He had increased it from 14,000 tons burden to 22,000: he had put the dockyards and magazines at Chatham, Deptford, Woolwich, and Portsmouth into good repair; and a number of large vessels had been built under his orders. Already in May an English squadron had made an attempt to relieve Rochelle: but the commanders on that occasion would not undertake the responsibility of exposing the ships entrusted to them, to the great danger which threatened them if they made the attempt: they were apprehensive of being called to account. Buckingham was not fettered by considerations of this kind. He had had engines of extraordinary dimensions constructed, which it was expected would rend with irresistible power the mole in front of the harbour, by which Rochelle was cut off.^[485] And who shall say that success would have been impossible?

Buckingham felt the hatred which men entertained towards him, but thought that he should still turn it into admiration. He wished to atone for the faults of his youth, and, as he said, to enter on new paths traced on the lines of the ancient maxims and ancient policy of England, in order to bring back better days.^[486] He had to a certain extent made himself the centre of Protestant interests. Every one expected that he would proceed without

delay to the relief of Rochelle, for which all preparations had been made. The destinies of the world seemed to hang upon his resolutions. And he had just received better tidings from that town: no one had ever seen him fuller of strength and energy. At this culminating point of his life he was smitten by a sudden and horrible death. As he stepped out of the dressing-room in his lodging at Portsmouth, and was crossing the hall, in order to mount his carriage and drive to the King, he was murdered by a stroke from a dagger.

The murderer might easily have escaped, for the house was full of men, among them many Frenchmen, on whom the first suspicion fell. While all were crying out for the villain who had murdered the Duke, the murderer said, 'No villain did it, but an honourable man. I am the man.' Men saw before them a lean man with red hair, and dark melancholy features. His name was Felton: he had served in the last maritime expeditions, and had formerly been passed over when there was a vacancy for promotion. He could not endure to be placed below men who had never borne arms, merely because they were in the Duke's favour. The strongest impression had been produced on him by the Remonstrance,^[487] which censured similar transactions, and at the same time represented the Duke as the enemy of religion and his country. Felton was one of these men, who from the way in which they combine religious and political opinions are capable of anything. In this respect he may be compared with the assassins of William of Orange, Henry III, and Henry IV; except that he came forward in behalf of the opposite side, and in his case there is no mention of any participation of a minister of religion. A paper was found on him in which he pronounced that man cowardly and base who was not ready to sacrifice his life for the cause of his God, his king, and his country. In his lodging there was another, on which he had put down some principles, which he seemed to have drawn from one or two books, and which make his intentions somewhat clearer. It is there said that a man has no relations which place him under greater obligations than those which he has with his country; that the welfare of the people is the highest law, and that 'God himself has enacted this law, that whatsoever is for the profit or benefit of the commonwealth should be accounted to be lawful.'^[488] He was believed, and rightly, when he affirmed that he had no accomplices: the slight put upon him, he said, had inspired him with the thought, the Remonstrance had strengthened him in it: 'On my soul,' he repeated, 'nothing but the

Remonstrance. He thought that he might remove the man out of the way who obstructed the public welfare. And he looked with some feeling of sarcasm at those who testified their horror of him when he was led by: 'In your hearts,' he cried out, 'you rejoice in my deed.' There were some in fact who really displayed such a feeling: the crews, who had once already wished to mutiny, disguised their sentiments least; over their beer and pipes they gave the assassin a cheer. Others lamented most that an Englishman should have been capable of assassination. Felton himself was afterwards convinced that his principles were false. He was told that a man had other still nearer and deeper obligations to God, and to his own soul, than to his country; that no one should do the smallest evil for the sake of the greatest good,^[489] much less then a monstrous crime like his in behalf of a cause which to his blinded eyes appeared good. He at last thanked his instructors for their lesson, and only asked in mercy to be allowed before his execution to do penance in sackcloth with ashes on his head, and a cord round his neck, in presence of all the world.

In public King Charles never lost his calmness of demeanour for a moment. He appeared to accept the event as a dispensation of Heaven; but afterwards he shut himself up for two whole days, and gave way to his sorrow.

The expedition against Rochelle now put to sea under the command of the Earl of Lindsay. But the captains did not properly obey their chief: orders which had been planned and issued remained unexecuted: the fire-ships, which were intended to break through the defences of the enemy, were ill-managed. The intention was then formed of waiting for a higher tide, in order to attempt another attack; but meanwhile the very last resources of the town were exhausted, and it found itself obliged to capitulate. England's position in the world was immeasurably lowered when Rochelle was conquered by Richelieu. What further schemes of maritime supremacy had Buckingham latterly connected with the maintenance of this town! The ideas of Buckingham vanished as completely as if they had never been: theA.D. 1629. ideas of Richelieu became the foundation of a new order in the world.

Krempe also fell, which had hitherto been deemed impregnable, the spot which, with Gluckstadt, was still the principal stay of Danish independence, and to which Buckingham's attention had been constantly directed. It is

thought that about 8000 men would have sufficed to relieve it, but as they were not forthcoming, the fortress fell into the hands of the enemy in November 1628.

And Charles I, instead of placing himself in a position to repair these losses of his allies, embarked on a new domestic quarrel with the Parliament.

As the customs had not been fixed by the advice of Parliament, and tonnage and poundage had not been regularly granted at all, some London merchants had refused to satisfy the Custom House. On this the Lords of the Treasury laid their property under seizure. Of course the persons affected declared this proceeding also illegal, and filled the country with their complaints. On this occasion it was not, as almost always hitherto, the want of an immediate subsidy, but the necessity of removing this constitutional difficulty, which caused Parliament to be assembled in January 1629. People might flatter themselves that after the death of Buckingham, who had been the object of the principal hostility of that body, an agreement would be more easily effected.

The plan drawn up by the Privy Council was in the first instance of a conciliatory nature. The right of granting money in general was to be acknowledged, even in the case of tonnage and poundage: the levying of this tax up to the present time, however, was to be justified, on the ground that other kings had collected it before it had been granted. If Parliament, after this general acknowledgement of its right, should still persist in refusing the present King what former kings had enjoyed, he would be exculpated: not the government, but Parliament would in that case have to bear the blame of the breach which would arise in consequence. ^[490]

This was the tenor of the King's speech at the opening of the discussion on January 23, 1629. He asked for tonnage and poundage, less on the strength of his hereditary right to it, than on the plea of custom and necessity. He would always consider it as a gift of his people; but after their scruples had been removed by this declaration, he expected that an end would be put to all difficulties by a grant such as had been made to his ancestors. It was offensive to him that any one contested his title to a tax, without which his state could not be kept up. In the assembled Privy Council he declared that a temporary grant was derogatory to his honour. He said that he would no

longer live from hand to mouth: he had as little disposition to suffer from want, or to allow the privileges of his crown to be wrested from him, as he had had thought of infringing the liberties of his people.^[491] Secretary Coke, a member of the House, brought in the requisite bill without delay, and proposed the first reading.

The assembly, however, consisted of the very men who had thought that through the Petition of Right they had set up a fundamental law for ever, but had since then become conscious how little they had effected by that means.

An unpleasant impression had already been made on them by the printing of the Petition of Right without the expression of simple approval, but with the restrictive declarations which the King had at first made.^[492] But besides this it was seen how little the King intended to be bound to the literal meaning of his words, for arrests without definite assignment of the reason had again taken place. The Star Chamber, which was already regarded as a court of doubtful legality, had imposed harsh and arbitrary penalties which awakened loud murmurs. The political opinions of one or two clergymen had caused general agitation. A preacher named Roger Manwaring gave utterance to extreme Royalist views. He defended forced loans, and contested the unconditional right of Parliament to grant taxes. From some passages of Scripture he deduced the absolute power of the sovereign, so that properly speaking no contract at all could, in his opinion, be made between king and people.^[493] Parliament had called him to account for this, and had punished him by fine and suspension; but the King remitted the sentence. Another clergyman of kindred views, Montague, whom we have already mentioned, had been advanced by the King to the bishopric of Chichester, though, as deserves to be noticed, not without encountering opposition. For at the elections the old forms were still observed. Before the commissary of the Archbishop confirmed the election, which had taken place at the King's commands, he invited those present, if they knew anything in the life and conduct of the bishop-elect which could hinder his confirmation, to declare it. What had never been done on any other occasion was done then. An objection against Montague was presented in writing on the ground that doctrines occurred in his books which were irreconcilable with the existing institutions of England. The matter was brought before a court of justice, which, however, dismissed the objection as proceeding

from a man who did not belong to the diocese of Chichester. The royal confirmation had then followed.^[494] But must it not have been irritating to Parliament that the very men were promoted about whom it had complained? Its complaints seemed rather to serve as a recommendation.

Besides this a Jesuit institution had been discovered in the immediate neighbourhood of London, and had then not been prosecuted with all the severity which Parliament thought requisite. People complained that the number of Papists was increasing every day; that in the counties, where before there had been none, they were now reckoned by thousands. Mainly at the instigation of Sir John Eliot, the Lower House issued a declaration, that it desired to hold the Articles of the English Church in the sense in which they were understood by the writers, whose authority was recognised in that Church, and not in the sense of the Jesuits and Arminians, which was repudiated.

The question of tonnage and poundage came before the House while it was labouring under the irritation kindled by this discussion. What the government desired, the establishment of this tax on a legal footing, was also the wish of Parliament; but Parliament wished the matter to be settled in a way different from that intended by the King. Parliament desired to make the right of granting taxes a genuine reality, and henceforward to fix the duties in detail. The first reading of the bill brought forward by the government was rejected, on the formal ground that tonnage and poundage were subsidies, for granting which a resolution must be taken before a bill on the subject could be brought in.^[495] Parliament espoused the cause of the London merchants, who had certainly suffered in support of its claims, and demanded that the proceedings of the Treasury should be reversed. For they maintained that the collection of tonnage and poundage was as much a breach of the fundamental principles of the realm, as the raising of any other tax that had not been granted would be. Or could any one, they asked, grant what he did not possess? If tonnage and poundage already belonged to the King, he did not need to have it granted him. The arrangement proposed by the government was rejected altogether: and everything else which was inconsistent with the literal meaning of the petition was also declared illegal.

The King was incensed at the political, as well as at the religious attitude of the Lower House. A treatise in his own handwriting is extant, in which he expresses himself on the latter subject. 'You take to yourselves,' he says, 'the interpretation of articles of religion, the deciding of which in doctrinal points only appertains to the clergy and convocation.'^[496] He added that His Majesty—for he loved to speak of himself in the third person—had a short time before announced his intention of maintaining the integrity of the religion of the English Church, and its unity, and that after much reflection, in agreement with the Privy Council and with the bishops: that as the Commons had the same object in view, he was surprised that they were not content with this announcement, and that they did not at all events state wherein the King's declaration did not content them: for that the King was the supreme governor of the English Church after God.

At this very time an order was issued to the Treasury, and to the collectors of customs at the ports that tonnage and poundage should be henceforth levied, just as it had been in the latter years of James I; and that every one who refused payment should be punished.

In this way the King embarked afresh on a course of the most unequivocal hostility towards his Parliament. But that body did not intend to give way. It would not be deterred from drawing up a fresh remonstrance, in which it made use of the strongest expressions to give point to its claims. In this it was said, that whoever furthered Popery or Arminianism, whoever collected or helped to collect tonnage and poundage before it was granted, or who even paid it, the same was an enemy of the English realm and of English liberty. This was a strange combination of ecclesiastical and financial grievances and pretensions. But the course of the transactions had established an intimate relation between them. In regard to both the Commons again took up as hostile an attitude towards the ministers of that day, as they had formerly taken up towards the Duke of Buckingham. The Lord Treasurer Weston was the special object of their hatred on both accounts. For it was said that he was a rebellious Papist—nay even a Jesuit:—did not his nearest kinsmen belong to that order?—and that he was now giving the King pernicious advice, hostile to the rights of the country and the dignity of Parliament. Proceeding on the principle that the collection of tonnage and poundage was a breach of the constitution, preparations were made for calling to account the officers engaged in this process. Nor would

men have been content to stop at the subordinates; they would have reached even the highest.

In this session the moderation which had been for some time exhibited in the former dropped out of sight: the contempt shown to the Petition of Right had called forth a spirit of bitter, violent, and unbounded opposition. When the King, in order to prevent the formal passing of the Remonstrance, proceeded in the first instance to have the session adjourned, a scene of tumult and violence was witnessed, to which the annals of former Parliaments offered no parallel.

The Speaker of the House, Sir John Finch, one of those men who had passed over from the side of the Commons to that of the King, announced to the assembled members after the opening of the sitting on the 2nd of March, that the King adjourned the House till the 10th. But this was the very hour when Sir John Eliot, who had drawn up the new Remonstrance had with his friends intended to carry it through Parliament. The House declared it illegal for the Speaker to make himself the mouthpiece of the royal will: and when he tried to withdraw, he was held on his chair by a couple of strong and resolute members. The Usher of the Black Rod, whose business it was to declare the House adjourned, had already appeared in the ante-room; but the doors of the hall were shut. In this tumult the Remonstrance had to be read and voted on. The Speaker refused to have anything to do with it, although it was declared 'to be his duty to put it to the vote. Sir John Eliot and Denzil Holles must have delivered the sense of the Remonstrance orally, rather than read it properly through: but even in this fashion the majority of the House made known their assent, and in this way the immediate object was attained, as well as the circumstances allowed. On a threat that the doors should be broken through, they were now opened, and the members left the chamber.^[497]

An extraordinary act of disobedience, considering that it was intended to be the means of securing the legal forms of Parliament! It was the last step in this stage of the proceedings. It involved an open breach between the two authorities.

In later times the responsibility for this act has been thrown on the King. Contemporaries of moderate views, and who favoured the Parliament, were

of opinion however that the responsibility rather lay with those fiery and crafty men who had possessed themselves of the control of Parliament. For they thought that the King had seriously striven to compose the quarrel: that people might well have accepted his first declaration, and that the greater part of the members had been inclined to do so; but that the seeming zeal of some few for the liberties of the country had, unfortunately for England, prevented them from yielding.^[498] It is difficult to suppose that the strength and depth of the opposition would any longer have permitted an adjustment. It was now fully apparent at all events that the King and the Lower House could no longer work together.

In the Privy Council the opinion was once more expressed, that Parliament should be treated with indulgence. This was the wish of the Lord Keeper Coventry: but the Treasurer recommended the strict enforcement of the prerogative, and the King sided with this view. Not only was the dissolution of Parliament pronounced, but just as Henry VIII and Elizabeth had done, Charles I proceeded to punish the members who had offended against his dignity in their speeches. He first of all decided not to call Parliament together again. He declared that he had now abundantly proved that he loved to rule by the help of Parliament; that he had been compelled against his wish by the last proceedings to desist from the attempt, and that he would not renew it until his people had learnt to know him better. He said that he should consider it presumption if any time were prescribed to him for reassembling Parliament; that Parliament ought to be summoned, held, and dissolved, solely at the discretion of the King.

The great advantage of Parliament in this conflict consisted in its ability to appeal to legal precedents of past centuries in its favour. What had once rendered the continuance of the ascendancy of Parliament impossible, the danger into which it had plunged the common interests of the kingdom, was now forgotten. The laws of those times had not been repealed, but had only been modified and curtailed in its own favour by the sovereign power, which had grown strong since that time. Every position, new or unusual at the moment, which Parliament maintained was, if not laid down in former ordinances, yet at all events so logically inferred from them, that it appeared customary and in accordance with primitive law. If on the contrary Charles I maintained the prerogative which his father had exercised, and which Queen Elizabeth and the House of Tudor in general had possessed, he was

placed in the awkward position of appearing to act without the countenance of the laws. He now resolved to govern, at least for a time, without the aid of Parliament. Many of his ancestors had done exactly the same; but since their time attachment to parliamentary government had become part of the national feeling. It now appeared not only to represent fully the liberties, but also especially the most popular religious tendencies of the country.

Whether under these circumstances the King would have succeeded in giving effect to his ideas, even if more peaceful times had ensued, was from the beginning extremely doubtful.^[499]

NOTES:

[483] Al. Contarini, Aug. 14, 1628. 'Carleton mi soggiunse che certamente la flotta si volgerebbe in ajuto del re di Danimarca, quando Più non fosse necessaria in Francia.'

[484] The first intimation of this design occurs in an anonymous letter to the King, which probably belongs to the year 1623: Cabala 223. In the correspondence of the ambassadors the project is assumed as certain.

[485] Ruszdorf: 'Magnos apparatus instituit, quibus sperat structuram et molem rumpere'

[486] From the letter of Dudley Viscount Dorchester, in Bruce's Calendar.

[487] 'The remonstrance in the last Parliament and that the duke was the cause of the public grievances, it came into his mind that it would be a good service to God and the Commonwealth to take him away.' Relation of the Duke of Buckingham's death. (St. P. O.)

[488] From the report of Duppa (St. P. O.), which admirably supplements that which is given in the State Trials iii. 370.

[489] 'That the common good could no way be a pretense to a particular mischief.'

[490] Rushworth i. 654: 'To avow a breach upon just cause given, not sought by the King.'

[491] Fragmentary memoranda of a sitting of the Privy Council at the beginning of February 1628-29. (St P. O.)

[492] Statement of the printer. Parliamentary History viii. 247.

[493] His declaration before the Lords. Parliamentary History viii. 208.

[494] We learn this from a letter of Nethersole to the queen of Bohemia, Jan. 28. (St. P. O.)

[495] Nethersole to the Queen of Bohemia: 'That what at the first propounding seemed a very reasonable motion—was at last upon this reason that the bill is in truth and is intituled a bill of subsidy.'

[496] Holograph declaration of Charles I. (St. P. O.)

[497] Information in Star Chamber. Rushworth i. 675.

[498] Autobiography of Sir Symond d'Ewes i. 405: 'Being only misled by some Machiavellian politics who seemed zealous for the liberty of the common wealth.'

[499] Observation of Contarini, March 16, 1629. 'Quello che importa è il parlamento si è conservato nell'intero possesso dei suoi privilegi, senza cader un

tantino: il re per queste due volte ha ceduto sempre qualche cosa.'

END OF VOL. I.

Transcriber's Note:

The section header 'The Conquest' in Book I Chapter II is missing from the original table of contents.

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